

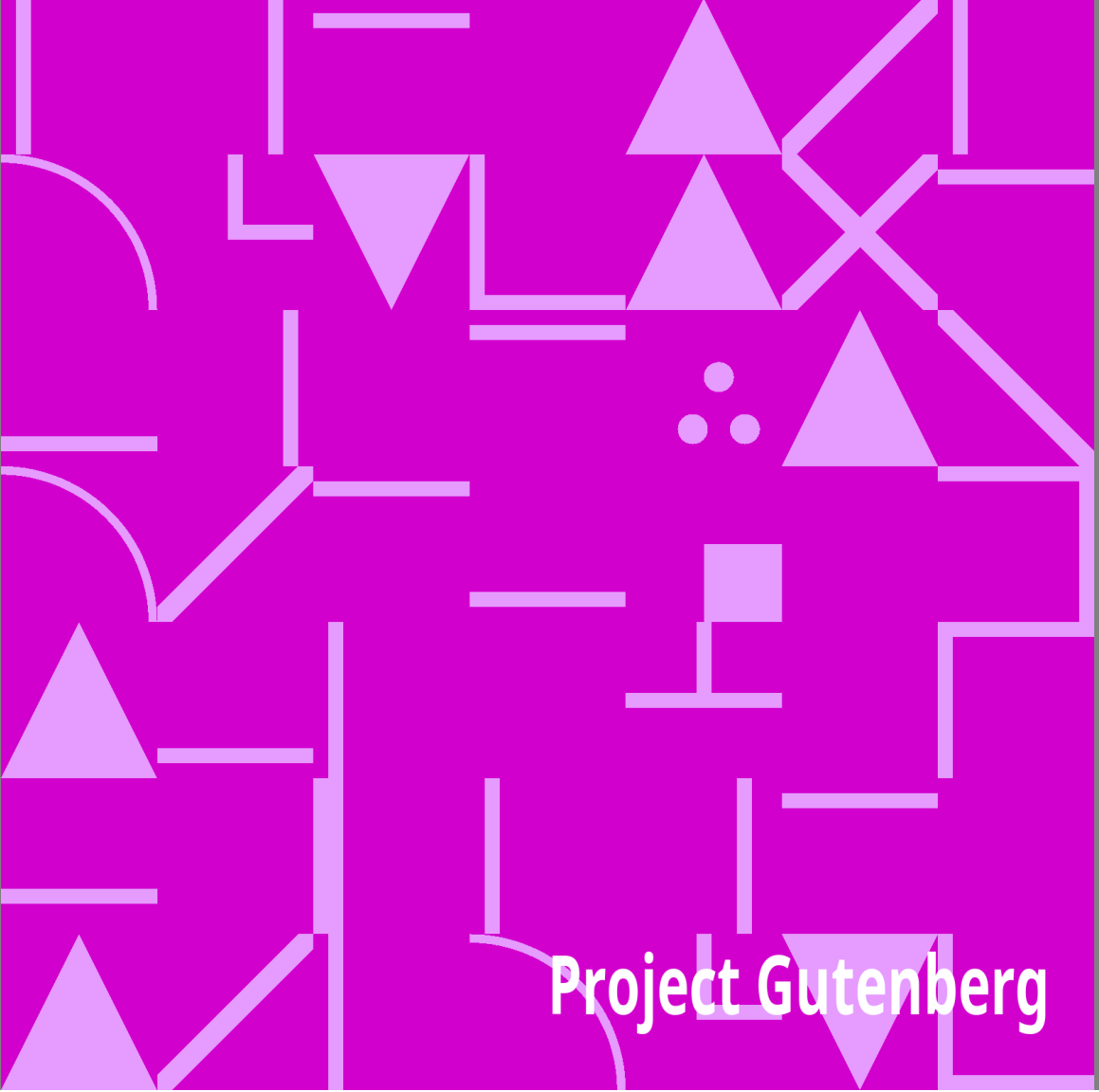
The Anti-Slavery Examiner, Part 1 of 4

American Anti-Slavery Society

Project Gutenberg

The Anti-Slavery Examiner, Part 1 of 4

American Anti-Slavery Society



Project Gutenberg

The Project Gutenberg eBook of The Anti-Slavery Examiner, Part 1 of 4

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Anti-Slavery Examiner, Part 1 of 4

Author: American Anti-Slavery Society

Release date: February 1, 2004 [eBook #11271]

Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/11271

Credits: Produced by Stan Goodman, Amy Overmyer and PG
Distributed Proofreaders

*** START OF THE PROJECT GUTENBERG EBOOK THE ANTI-
SLAVERY EXAMINER, PART 1 OF 4 ***

THE ANTI-SLAVERY EXAMINER Part 1 of 4

By The American
Anti-Slavery Society
1836

1. [No. 1. To the People of the United States; or, To Such Americans As Value Their Rights, and Dare to Maintain Them.](#)
2. [No. 2. Appeal to the Christian Women of the South.](#)
3. [No. 2. Appeal to the Christian Women of the South. Revised and Corrected.](#)
4. [No. 3. Letter of Gerrit Smith to Rev. James Smylie, of the State of Mississippi.](#)
5. [No. 4. The Bible Against Slavery. An Inquiry Into the Patriarchal and Mosaic Systems on the Subject of Human Rights.](#)
6. [No. 4. The Bible Against Slavery. An Inquiry Into the Patriarchal and Mosaic Systems on the Subject of Human Rights. Third Edition—Revised.](#)
7. [No. 4. The Bible Against Slavery. An Inquiry Into the Patriarchal and Mosaic Systems on the Subject of Human Rights. Fourth Edition—Enlarged.](#)
8. [No. 5. Power of Congress Over the District of Columbia.](#)
9. [No. 5. Power of Congress Over the District of Columbia. With Additions by the Author.](#)

THE ANTI-SLAVERY EXAMINER

VOL. I. AUGUST, 1836. NO. 1.

TO THE
PEOPLE OF THE UNITED STATES;
OR, TO SUCH AMERICANS AS VALUE THEIR RIGHTS, AND
DARE TO MAINTAIN THEM.

FELLOW COUNTRYMEN!

A crisis has arrived, in which rights the most important which civil society can acknowledge, and which have been acknowledged by our Constitution and laws, in terms the most explicit which language can afford, are set at naught by men, whom your favor has invested with a brief authority. By what standard is your liberty of conscience, of speech, and of the press, now measured? Is it by those glorious charters you have inherited from your fathers, and which your present rulers have called Heaven to witness, they would preserve inviolate? Alas! another standard has been devised, and if we would know what rights are conceded to us by our own servants, we must consult the COMPACT by which the South engages on certain conditions to give its trade and votes to Northern men. All rights not allowed by this compact, we now hold by sufferance, and our Governors and Legislatures avow their readiness to deprive us of them, whenever in their opinion, legislation on the subject shall be "necessary^A." This compact is not indeed published to the world, under the hands and seals of the contracting parties, but it is set forth in official messages,—in resolutions of the State and National Legislatures—in the proceedings of popular meetings, and in acts of lawless violence. The temples of the Almighty have been sacked, because the worshipers did not conform their consciences to

the compact^B. Ministers of the gospel have been dragged as criminals from the altar to the bar, because they taught the people from the Bible, doctrines proscribed by the compact^C. Hundreds of free citizens, peaceably assembled to express their sentiments, have, because such an expression was forbidden by the compact, been forcibly dispersed, and the chief actor in this invasion on the freedom of speech, instead of being punished for a breach of the peace, was rewarded for his fidelity to the compact with an office of high trust and honor^D.

^A: See the Messages of the Governors of New-York and Connecticut, the resolutions of the New-York Legislature, and the bill introduced into the Legislature of Rhode Island.

^B: Churches in New-York attacked by the mob in 1834.

^C: See two cases within the last twelve months in New Hampshire.

^D: Samuel Beardsley, Esq. the leader of the Utica riot, was shortly afterwards appointed Attorney General of the state of New-York.

* * * * *

POSTAGE—This Periodical contains one sheet, postage under 100 miles, is 1 1-2 cents over 100 miles, 2 1-2 cents.

"The freedom of the press—the palladium of liberty," was once a household proverb. Now, a printing office^A is entered by ruffians, and its types scattered in the highway, because disobedient to the compact. A Grand Jury, sworn to "present all things truly as they come to their knowledge," refuse to indict the offenders; and a senator in Congress rises in his place, and appeals to the outrage in the printing office, and the conduct of the Grand Jury as evidence of the good faith with which the people of the state of New York were resolved to observe the compact^B.

^A: Office of the Utica Standard and Democrat newspaper.

^B: See speech of the Hon. Silas Wright in the U.S. Senate of Feb. 1836.

The Executive Magistrate of the American Union, unmindful of his obligation to execute the laws for the equal benefit of his fellow citizens, has sanctioned a censorship of the press, by which papers incompatible with the compact are excluded from the southern mails, and he has officially advised Congress to do by law, although in violation of the Constitution, what he had himself virtually done already in despite of both. The invitation has indeed been rejected, but by the Senate of the United States only, after a portentous struggle—a struggle which distinctly exhibited the *political* conditions of the compact, as well as the fidelity with which those conditions are observed by a northern candidate for the Presidency. While in compliance with these conditions, a powerful minority in the Senate were forging fetters for the PRESS, the House of Representatives were employed in breaking down the right of PETITION. On the 26th May last, the following resolution, reported by a committee was adopted by the House, viz.

"Resolved, that all Petitions, Memorials, Resolutions and Propositions relating in any way, or to any extent whatever, to the subject of Slavery, shall without being either printed or referred, be laid on the table, and that no further action whatever shall be had thereon." Yeas, 117. Nays, 68.

Bear with us, fellow countrymen, while we call your attention to the outrage on your rights, the contempt of personal obligations and the hardened cruelty involved in this detestable resolution. Condemn us not for the harshness of our language, before you hear our justification. We shall speak only the truth, but we shall speak it as freemen.

The right of petition is founded in the very institution of civil government, and has from time immemorial been acknowledged as among the unquestionable privileges of our English ancestors. This right springs from the great truth that government is established for the benefit of the governed; and it forms the medium by which the people acquaint their rulers with their wants and their grievances. So accustomed were the Americans to the exercise of this right, even during their subjection to the British crown, that, on the formation of the Federal Constitution, the Convention not conceiving that it could be endangered, made no provision

for its security. But in the very first Congress that assembled under the new Government, the omission was repaired. It was thought some case might possibly occur, in which this right might prove troublesome to a dominant faction, who would endeavor to stifle it. An amendment was therefore proposed and adopted, by which Congress is restrained from making any law abridging "the right of the People, peaceably to assemble, and to petition the Government for a redress of grievances." Had it not been for this prudent jealousy of our Fathers, instead of the resolution I have transcribed, we should have had a LAW, visiting with pains and penalties, all who dared to petition the Federal Government, in behalf of the victims of oppression, held in bondage by its authority. The present resolution cannot indeed consign such petitioners to the prison or the scaffold, but it makes the right to petition a congressional boon, to be granted or withheld at pleasure, and in the present case effectually withholds it, by tendering it nugatory.

Petitions are to inform the Government of the wishes of the people, and by calling forth the action of the Legislature, to inform the constituents how far their wishes are respected by their representatives. The information thus mutually given and received is essential to a faithful and enlightened exercise of the right of legislation on the one hand, and of suffrage on the other. But the resolution we are considering, provides that no petition in relation to slavery, shall be printed for the information of the members, nor referred to a committee to ascertain the truth of its statements; nor shall any vote be taken, in regard to it, by which the People may learn the sentiments of their representatives.

If Congress may thus dispose of petitions on one subject, they may make the same disposition of petitions on any and every other subject. Our representatives are bound by oath, not to pass any law abridging the right of petition, but if this resolution is constitutional, they may order every petition to be delivered to their door-keeper, and by him to be committed to the flames; for why preserve petitions on which *no action can be had*? Had the resolution been directed to petitions for an object palpably unconstitutional, it would still have been without excuse. The construction of the Constitution is a matter of opinion, and every citizen has a right to express that opinion in a petition, or otherwise.

But this usurpation is aggravated by the almost universal admission that Congress does possess the constitutional power to legislate on the subject of slavery in the District of Columbia and the Territories. No wonder that a distinguished statesman refused to sanction the right of the House to pass such a resolution by even voting against it^A. The men who perpetrated this outrage had sworn to support the Constitution, and will they hereafter plead at the bar of their Maker, that they had kept their oath, because they had abridged the right of petition *by a resolution*, and not by law!

^A: Mr. J.Q. Adams, on his name being called, refused to vote, saying, "the resolution is in direct violation of the Constitution of the United States, and the privileges of the members of this House."

This resolution not only violates the rights of the people, but it nullifies the privileges and obligations of their representatives. It is an undoubted right and duty of every member of Congress to propose any measure within the limits of the Constitution, which he believes is required by the interests of his constituents and the welfare of his country. Now mark the base surrender of this right—the wicked dereliction of this duty. All "resolutions and propositions" relating "in *any way* or to *any extent* whatever to the subject of slavery," shall be laid on the table, and "no further action *whatever* shall be had thereon." What a spectacle has been presented to the American people!—one hundred and seventeen members of Congress relinquishing their own rights, cancelling their own solemn obligations, forcibly depriving the other members of their legislative privileges, abolishing the freedom of debate, condemning the right of petition, and prohibiting present and future legislation on a most important and constitutional subject, by a rule of order!

In 1820, the New-York Legislature instructed the representatives from that state in Congress, to insist on making "the prohibition of slavery an indispensable condition of admission" of certain territories into the union. In 1828, the Legislature of Pennsylvania instructed the Pennsylvania members of Congress, to vote for the abolition of slavery in the district of Columbia. In vain hereafter shall a representative present the instructions of his constituents, or the injunctions of a sovereign state. No question shall be

taken, or any motion he may offer, in *any way*, or to *any extent*, relating to slavery!

Search the annals of legislation, and you will find no precedent for such a profligate act of tyranny, exercised by a majority over their fellow legislators, nor for such an impudent contempt of the rights of the people.

But this resolution is no less barbarous than it is profligate and impudent. Remember, fellow countrymen! that the decree has gone forth, that there shall be no legislation by Congress, *in any way*, or to *any extent whatever*, on the subject of slavery. Now call to mind, that Congress is the local and only legislature of the District of Columbia, which is placed by the Constitution under its "exclusive jurisdiction *in all cases whatsoever*." In this District, there are thousands of human beings divested of the rights of humanity, and subjected to a negotiable despotism; and Congress is the only power that can extend the shield of law to protect them from cruelty and abuse; and that shield, it is now resolved, shall not be extended in any way, or to any extent! But this is not all. The District has become the great slave-market of North America, and the port of Alexandria is the Guinea of our proud republic, whence "cargoes of despair" are continually departing^A.

^A: One dealer, John Armfield, advertises in the National Intelligencer of the 10th of February last, that he has three vessels in the trade, and they will leave the port of Alexandria on the first and fifteenth of each month.

In the city which bears the name of the Father of his country, dealers in human flesh receive licenses for the vile traffic, at four hundred dollars each per annum; and the gazettes of the Capital have their columns polluted with the advertisements of these men, offering cash for children and youth, who, torn from their parents and families, are to wear out their existence on the plantations of the south.^A For the safe keeping of these children and youth, till they are shipped for the Mississippi, private pens and prisons are provided, and the UNITED STATES' JAIL used when required. The laws of the District in relation to slaves and free negroes are of the most abominable and iniquitous character. Any free citizen with a dark skin, may be arrested on pretence of being a fugitive slave, and committed to the UNITED STATES' PRISON, and unless within a certain number of days he proves

his freedom, while immured within its walls, he is, under authority of Congress, sold as a slave for life. Do you ask why? Let the blood mantle in your cheeks, while we give you the answer of the LAW—"to pay his jail fees!!"

A: Twelve hundred negroes are thus advertised for in the National Intelligencer of the 28th of March last. The negroes wanted are generally from the age of ten or twelve years to twenty-five, and of both sexes.

On the 11th of January, 1827, the Committee for the District of Columbia, (themselves slaveholders) introduced a bill providing that the jail fees should hereafter be a county charge. The bill did not pass; and by the late resolution, a statute unparalleled for injustice and atrocity by any mandate of European despotism, is to be like the law of the Medes and Persians, that altereth not, since no proposition for its repeal or modification can be entertained.

The Grand Jury of Alexandria presented the slave trade of that place, as "disgraceful to our character as citizens of a free government," and as "a grievance demanding legislative redress;" that is, the interposition of Congress—but one hundred and seventeen men have decided that there shall be "no action whatever" by Congress in relation to slavery.

In March, 1816, John Randolph submitted the following resolution to the House of Representatives: "*Resolved*, That a Committee be appointed to inquire into the existence of an *inhuman* and illegal traffic of slaves, carried on in and through the District of Columbia, and to report whether any, and what measures are necessary for putting a stop to the same." The COMPACT had not then been formed and the resolution *was adopted*. Such a resolution would *now* "be laid on the table," and treated with silent contempt.

In 1828, eleven hundred inhabitants of the District presented a petition to Congress, complaining of the "DOMESTIC SLAVE-TRADE" as a grievance disgraceful in its character, and "even more demoralizing its influence" than the foreign traffic. The petition concluded as follows: "The people of this District have within themselves no means of legislative redress, and we therefore appeal to your Honorable body as the *only one*

vested by the American Constitution with power to relieve us." No more shall such appeals be made to the national council. What matters it, that the people of the District are annoyed by the human shambles opened among them? What matters it, that Congress is "the only body vested by the American Constitution with power to relieve" them? The compact requires that no action shall be had on *any* petition relating to slavery.

The horse or the ox may be protected in the District, by act of Congress, from the cruelty of its owner; but MAN, created in the image of God, shall, if his complexion be dark, be abandoned to every outrage. The negro may be bound alive to the stake in front of the Capitol, as well as in the streets of St. Louis—his shrieks may resound through the representative hall—and the stench of his burning body may enter the nostrils of the law-givers—but no vote may rebuke the abomination—no law forbid its repetition.

The representatives of the nation may regulate the traffic in sheep and swine, within the ten miles square; but the SLAVERS of the District may be laden to suffocation with human cattle—the horrors of the middle passage may be transcended at the wharves of Alexandria; but Congress may not limit the size of the cargoes, or provide for the due feeding and watering the animals composing them!—The District of Columbia is henceforth to be the only spot on the face of the globe, subjected to a civilized and Christian police, in which avarice and malice may with legal impunity inflict on humanity whatever sufferings ingenuity can devise, or depravity desire.

And this accumulation of wickedness, cruelty and baseness, is to render the seat of the federal government the scoff of tyrants and the reproach of freemen FOREVER! On the 9th of January 1829, the House of Representatives passed the following vote. "*Resolved*, that the committee of the District of Columbia be instructed to inquire into the expediency of providing by law, for the gradual abolition of Slavery in the District, in such manner that no individual shall be injured thereby." Never again while the present rule of order is in force, can similar instructions be given to a committee—never again shall even an inquiry be made into the expediency of abolishing slavery and the slave-trade in the District. What stronger evidence can we have, of the growing and spreading corruption caused by slavery, than that one hundred and seventeen republican legislators

professed believers in Christianity—many of them from the North, aye even from the land of the Pilgrims, should strive to render such curses PERPETUAL!

The flagitiousness of this resolution is aggravated if possible by the arbitrary means by which its adoption was secured. No representative of the People was permitted to lift up his voice against it—to plead the commands of the Constitution which is violated—his own privileges and duties which it contemned—the rights of his constituents on which it trampled—the chains of justice and humanity which it impiously outraged. Its advocates were afraid and ashamed to discuss it, and forbidding debate, they perpetrated in silence the most atrocious act that has ever disgraced an American Legislature^A. And was no reason whatever, it may be asked, assigned for this bold invasion of our rights, this insult to the sympathies of our common nature? Yes—connected with the resolution was a preamble explaining its OBJECT. Read it, fellow countrymen, and be equally astonished at the impudence of your rulers in avowing such an object, and at their folly in adopting such an expedient to effect it. The lips of a free people are to be sealed by insult and injury!

^A: A debate was allowed on a motion to re-commit the report, for the purpose of preparing a resolution that Congress has no constitutional power to interfere with slavery in the District of Columbia; but when the sense of the House was to be taken on the resolution reported by the committees, all debate was prevented by the previous question.

"Whereas, it is extremely important and desirable that the AGITATION on this subject should be finally ARRESTED, for the purpose of restoring *tranquillity* to the public mind, your committee respectfully recommend the following resolution."

ORDER REIGNS IN WARSAW, were the terms in which the triumph of Russia over the liberties of Poland was announced to the world. When the right of petition shall be broken down—when no whisper shall be heard in Congress in behalf of human rights—when the press shall be muzzled, and the freedom of speech destroyed by gag-laws, then will the slaveholders

announce, that TRANQUILLITY IS RESTORED TO THE PUBLIC MIND!

Fellow countrymen! is such the tranquillity you desire—is such the heritage you would leave to your children? Suffer not the present outrage, by effecting its avowed object, to invite farther aggressions on your rights. The chairman of the committee boasted that the number of petitioners the present session, for the abolition of slavery in the District, was *only* thirty-four thousand! Let us resolve, we beseech you, that at the next session the number shall be A MILLION. Perhaps our one hundred and seventeen representatives will then abandon in despair their present dangerous and unconstitutional expedient for tranquilizing the public mind.

The purpose of this address, is not to urge upon you our own views of the sinfulness of slavery, and the safety of its immediate abolition; but to call your attention to the conduct of your rulers. Let no one think for a moment, that because he is not an abolitionist, his liberties are not and will not be invaded. We have no rights, distinct from the rights of the whole people. Calumny, falsehood, and popular violence, have been employed in vain, to tranquilize abolitionists. It is now proposed to soothe them, by despoiling them of their Constitutional rights; but they cannot be despoiled *alone*. The right of petition and the freedom of debate are as sacred and valuable to those who dissent from our opinions, as they are to ourselves. Can the Constitution at the same time secure liberty to you, and expose us to oppression—give you freedom of speech, and lock our lips—respect your right of petition, and treat ours with contempt? No, fellow countrymen!—we must be all free, or all slaves together. We implore you, then, by all the obligations of interest, of patriotism, and of religion—by the remembrance of your Fathers—by your love for your children, to unite with us in maintaining our common, and till lately, our unquestioned political rights.

We ask you as men to insist that your servants acting as the local legislators of the District of Columbia, shall respect the common rights and decencies of humanity.—We ask you as freemen, not to permit your constitutional privileges to be trifled with, by those who have sworn to maintain them.—We ask you as Christian men, to remember that by sanctioning the sinful acts of your agents, you yourselves assume their guilt.

We have no candidates to recommend to your favor—we ask not your support for any political party; but we do ask you to give your suffrages hereafter only to such men as you have reason to believe will not sacrifice your rights, and their own obligations, and the claims of mercy and the commands of God, to an iniquitous and mercenary COMPACT. If we cannot have northern Presidents and other officers of the general government except in exchange for freedom of conscience, of speech, of the press and of legislation, then let all the appointments at Washington be given to the South. If slaveholders will not trade with us, unless we consent to be slaves ourselves, then let us leave their money, and their sugar, and their cotton, to perish with them.

Fellow countrymen! we wish, we recommend no action whatever, inconsistent with the laws and constitutions of our country, or the precepts of our common religion, but we beseech you to join with us in resolving, that while we will respect the rights of others, we will at every hazard maintain our own.

In behalf of the American Anti-Slavery Society.

ARTHUR TAPPAN, \
WM. JAY, \
JNO. RANKIN, \
LEWIS TAPPAN, \
S.S. JOCELYN, \
S.E. CORNISH, | *Executive Committee.*
JOSHUA LEAVITT, /
ABRAHAM L. COX, /
AMOS A. PHELPS, /
LA ROY SUNDERLAND, /
THEO. S. WRIGHT, /
ELIZUR WRIGHT, JR. /

* * * * *

Published by the American Anti-Slavery Society, corner of Spruce and Nassau Streets.

THE ANTI-SLAVERY EXAMINER.

VOL. I. SEPTEMBER 1836. No. 2.

APPEAL TO THE CHRISTIAN WOMEN OF THE SOUTH,

BY A.E. GRIMKÉ.

"Then Mordecai commanded to answer Esther, Think not within thyself that thou shalt escape in the king's house more than all the Jews. For if thou altogether holdest thy peace at this time, then shall there enlargement and deliverance arise to the Jews from another place: but thou and thy father's house shall be destroyed: and who knoweth whether thou art come to the kingdom for such a time as this. And Esther bade them return Mordecai this answer:—and so will I go in unto the king, which is not according to law, and *if I perish, I perish.*" Esther IV. 13-16.

RESPECTED FRIENDS,

It is because I feel a deep and tender interest in your present and eternal welfare that I am willing thus publicly to address you. Some of you have loved me as a relative, and some have felt bound to me in Christian sympathy, and Gospel fellowship; and even when compelled by a strong sense of duty, to break those outward bonds of union which bound us together as members of the same community, and members of the same religious denomination, you were generous enough to give me credit, for sincerity as a Christian, though you believed I had been most strangely deceived. I thanked you then for your kindness, and I ask you *now*, for the sake of former confidence, and former friendship, to read the following pages in the spirit of calm investigation and fervent prayer. It is because you have known me, that I write thus unto you.

But there are other Christian women scattered over the Southern States, and of these, a very large number have never seen me, and never heard my name, and feel *no* personal interest whatever in *me*. But I feel an interest in *you*, as branches of the same vine from whose root I daily draw the principle of spiritual vitality—Yes! Sisters in Christ I feel an interest in *you*, and often has the secret prayer arisen on your behalf, Lord "open thou their eyes that they may see wondrous things out of thy Law"—It is then, because I *do feel* and *do pray* for you, that I thus address you upon a subject about which of all others, perhaps you would rather not hear any thing; but, "would to God ye could bear with me a little in my folly, and indeed bear with me, for I am jealous over you with godly jealousy." Be not afraid then to read my appeal; it is *not* written in the heat of passion or prejudice, but in that solemn calmness which is the result of conviction and duty. It is true, I am going to tell you unwelcome truths, but I mean to speak those *truths in love*, and remember Solomon says, "faithful are the *wounds* of a friend." I do not believe the time has yet come when *Christian women* "will not endure sound doctrine," even on the subject of Slavery, if it is spoken to them in tenderness and love, therefore I now address *you*.

* * * * *

POSTAGE.—This periodical contains four and a half sheets. Postage under 100 miles, 6 3-4 cents; over 100 miles, 11 1-4 cents. Please read and

circulate.

To all of you then, known or unknown, relatives or strangers, (for you are all *one* to Christ,) I would speak. I have felt for you at this time, when unwelcome light is pouring in upon the world on the subject of slavery; light which even Christians would exclude, if they could, from our country, or at any rate from the southern portion of it, saying, as its rays strike the rock bound coasts of New England and scatter their warmth and radiance over her hills and valleys, and from thence travel onward over the Palisades of the Hudson, and down the soft flowing waters of the Delaware and gild the waves of the Potomac, "hitherto shalt thou come and no further;" I know that even professors of His name who has been emphatically called the "Light of the world" would, if they could, build a wall of adamant around the Southern States whose top might reach unto heaven, in order to shut out the light which is bounding from mountain to mountain and from the hills to the plains and valleys beneath, through the vast extent of our Northern States. But believe me, when I tell you, their attempts will be as utterly fruitless as were the efforts of the builders of Babel; and why? Because moral, like natural light, is so extremely subtle in its nature as to overleap all human barriers, and laugh at the puny efforts of man to control it. All the excuses and palliations of this system must inevitably be swept away, just as other "refuges of lies" have been, by the irresistible torrent of a rectified public opinion. "The *supporters* of the slave system," says Jonathan Dymond in his admirable work on the Principles of Morality, "will *hereafter* be regarded with the *same* public feeling, as he who was an advocate for the slave trade *now is*." It will be, and that very soon, clearly perceived and fully acknowledged by all the virtuous and the candid, that in *principle* it is as sinful to hold a human being in bondage who has been born in Carolina, as one who has been born in Africa. All that sophistry of argument which has been employed to prove, that although it is sinful to send to Africa to procure men and women as slaves, who have never been in slavery, that still, it is not sinful to keep those in bondage who have come down by inheritance, will be utterly overthrown. We must come back to the good old doctrine of our forefathers who declared to the world, "this self evident truth that *all* men are created equal, and that they have certain *inalienable* rights among which are life, *liberty*, and the pursuit of happiness." It is even a greater absurdity to suppose a man can be legally

born a slave under *our free Republican* Government, than under the petty despotisms of barbarian Africa. If then, we have no right to enslave an African, surely we can have none to enslave an American; if it is a self evident truth that *all* men, every where and of every color are born equal, and have an *inalienable right to liberty*, then it is equally true that *no* man can be born a slave, and no man can ever *rightfully* be reduced to *involuntary* bondage and held as a slave, however fair may be the claim of his master or mistress through wills and title-deeds.

But after all, it may be said, our fathers were certainly mistaken, for the Bible sanctions Slavery, and that is the highest authority. Now the Bible is my ultimate appeal in all matters of faith and practice, and it is to *this test* I am anxious to bring the subject at issue between us. Let us then begin with Adam and examine the charter of privileges which was given to him. "Have dominion over the fish of the sea, and over the fowl of the air, and over every living thing that moveth upon the earth." In the eighth Psalm we have a still fuller description of this charter which through Adam was given to all mankind. "Thou madest him to have dominion over the works of thy hands; thou hast put all things under his feet. All sheep and oxen, yea, and the beasts of the field, the fowl of the air, the fish of the sea, and whatsoever passeth through the paths of the seas." And after the flood when this charter of human rights was renewed, we find *no additional* power vested in man. "And the fear of you and the dread of you shall be upon every beast of the earth, and every fowl of the air, and upon all that moveth upon the earth, and upon all the fishes of the sea, into your hand are they delivered." In this charter, although the different kinds of *irrational* beings are so particularly enumerated, and supreme dominion over *all of them* is granted, yet *man* is *never* vested with this dominion over *his fellow man*; he was never told that any of the human species were put *under his feet*; it was only *all things*, and man, who was created in the image of his Maker, *never* can properly be termed a *thing*, though the laws of Slave States do call him "a chattel personal;" *Man* then, I assert *never* was put *under the feet of man*, by that first charter of human rights which was given by God, to the Fathers of the Antediluvian and Postdiluvian worlds, therefore this doctrine of equality is based on the Bible.

But it may be argued, that in the very chapter of Genesis from which I have last quoted, will be found the curse pronounced upon Canaan, by which his posterity was consigned to servitude under his brothers Shem and Japheth. I know this prophecy was uttered, and was most fearfully and wonderfully fulfilled, through the immediate descendants of Canaan, *i.e.* the Canaanites, and I do not know but it has been through all the children of Ham, but I do know that prophecy does *not* tell us what *ought to be*, but what actually does take place, ages after it has been delivered, and that if we justify America for enslaving the children of Africa, we must also justify Egypt for reducing the children of Israel to bondage, for the latter was foretold as explicitly as the former. I am well aware that prophecy has often been urged as an excuse for Slavery, but be not deceived, the fulfillment of prophecy will *not cover one sin* in the awful day of account. Hear what our Saviour says on this subject; "it must needs be that offences come, but *woe unto that man through whom they come*"—Witness some fulfillment of this declaration in the tremendous destruction of Jerusalem, occasioned by that most nefarious of all crimes the crucifixion of the Son of God. Did the fact of that event having been foretold, exculpate the Jews from sin in perpetrating it; No—for hear what the Apostle Peter says to them on this subject, "Him being delivered by the determinate counsel and foreknowledge of God, ye have taken, and by *wicked* hands have crucified and slain." Other striking instances might be adduced, but these will suffice.

But it has been urged that the patriarchs held slaves, and therefore, slavery is right. Do you really believe that patriarchal servitude was like American slavery? Can you believe it? If so, read the history of these primitive fathers of the church and be undeceived. Look at Abraham, though so great a man, going to the herd himself and fetching a calf from thence and serving it up with his own hands, for the entertainment of his guests. Look at Sarah, that princess as her name signifies, baking cakes upon the hearth. If the servants they had were like Southern slaves, would they have performed such comparatively menial offices for themselves? Hear too the plaintive lamentation of Abraham when he feared he should have no son to bear his name down to posterity. "Behold thou hast given me no seed, &c., one born in my house *is mine* heir." From this it appears that one of his *servants* was to inherit his immense estate. Is this like Southern slavery? I leave it to your own good sense and candor to decide. Besides, such was the footing upon

which Abraham was with *his* servants, that he trusted them with arms. Are slaveholders willing to put swords and pistols into the hands of their slaves? He was as a father among his servants; what are planters and masters generally among theirs? When the institution of circumcision was established, Abraham was commanded thus; "He that is eight days old shall be circumcised among you, *every* man-child in your generations; he that is born in the house, or bought with money of any stranger which is not of thy seed." And to render this command with regard to his *servants* still more impressive it is repeated in the very next verse; and herein we may perceive the great care which was taken by God to guard the *rights of servants* even under this "dark dispensation." What too was the testimony given to the faithfulness of this eminent patriarch. "For I know him that he will command his children and his *household* after him, and they shall keep the way of the Lord to do justice and judgment." Now my dear friends many of you believe that circumcision has been superseded by baptism in the Church; *Are you* careful to have *all* that are born in your house or bought with money of any stranger, baptized? *Are you* as faithful as Abraham to command *your household to keep the way of the Lord*? I leave it to your own consciences to decide. Was patriarchal servitude then like American Slavery?

But I shall be told, God sanctioned Slavery, yea commanded Slavery under the Jewish Dispensation. Let us examine this subject calmly and prayerfully. I admit that a species of *servitude* was permitted to the Jews, but in studying the subject I have been struck with wonder and admiration at perceiving how carefully the servant was guarded from violence, injustice and wrong. I will first inform you how these servants became servants, for I think this a very important part of our subject. From consulting Horne, Calmet and the Bible, I find there were six different ways by which the Hebrews became servants legally.

1. If reduced to extreme poverty, a Hebrew might sell himself, i.e. his services, for six years, in which case *he* received the purchase money *himself*. Lev. xxv, 39.
2. A father might sell his children as servants, i.e. his *daughters*, in which circumstance it was understood the daughter was to be the wife or daughter-

in-law of the man who bought her, and the *father* received the price. In other words, Jewish women were sold as *white women* were in the first settlement of Virginia—as *wives*, *not* as slaves. Ex. xxi, 7.

3. Insolvent debtors might be delivered to their creditors as servants. 2 Kings iv, 1.

4. Thieves not able to make restitution for their thefts, were sold for the benefit of the injured person. Ex. xxii, 3.

5. They might be born in servitude. Ex. xxi, 4.

6. If a Hebrew had sold himself to a rich Gentile, he might be redeemed by one of his brethren at any time the money was offered; and he who redeemed him, was *not* to take advantage of the favor thus conferred, and rule over him with rigor. Lev. xxv, 47-55.

Before going into an examination of the laws by which these servants were protected, I would just ask whether American slaves have become slaves in any of the ways in which the Hebrews became servants. Did they sell themselves into slavery and receive the purchase money into their own hands? No! Did they become insolvent, and by their own imprudence subject themselves to be sold as slaves? No! Did they steal the property of another, and were they sold to make restitution for their crimes? No! Did their present masters, as an act of kindness, redeem them from some heathen tyrant to whom *they had sold themselves* in the dark hour of adversity? No! Were they born in slavery? No! No! not according to *Jewish Law*, for the servants who were born in servitude among them, were born of parents who had *sold themselves* for six years: Ex. xxi, 4. Were the female slaves of the South sold by their fathers? How shall I answer this question? Thousands and tens of thousands never were, *their fathers never* have received the poor compensation of silver or gold for the tears and toils, the suffering, and anguish, and hopeless bondage of *their* daughters. They labor day by day, and year by year, side by side, in the same field, if haply their daughters are permitted to remain on the same plantation with them, instead of being as they often are, separated from their parents and sold into distant states, never again to meet on earth. But do the *fathers of the South ever sell their daughters*? My heart beats, and my hand trembles, as I write the awful

affirmative, Yes! The fathers of this Christian land often sell their daughters, *not* as Jewish parents did, to be the wives and daughters-in-law of the man who buys them, but to be the abject slaves of petty tyrants and irresponsible masters. Is it not so, my friends? I leave it to your own candor to corroborate my assertion. Southern slaves then have *not* become slaves in any of the six different ways in which Hebrews became servants, and I hesitate not to say that American masters *cannot* according to *Jewish law* substantiate their claim to the men, women, or children they now hold in bondage.

But there was one way in which a Jew might illegally be reduced to servitude; it was this, he might be *stolen* and afterwards sold as a slave, as was Joseph. To guard most effectually against this dreadful crime of manstealing, God enacted this severe law. "He that stealeth a man and selleth him, or if he be found in his hand, he shall surely be put to death^A." As I have tried American Slavery by *legal* Hebrew servitude, and found, (to your surprise, perhaps,) that Jewish law cannot justify the slaveholder's claim, let us now try it by *illegal* Hebrew bondage. Have the Southern slaves then been stolen? If they did not sell themselves into bondage; if they were not sold as insolvent debtors or as thieves; if they were not redeemed from a heathen master to whom they had sold themselves; if they were not born in servitude according to Hebrew law; and if the females were not sold by their fathers as wives and daughters-in-law to those who purchased them; then what shall we say of them? what can we say of them? but that according to *Hebrew Law they have been stolen*.

^A: And again, "If a man be found stealing any of his brethren of the children of Israel, and maketh merchandise of him, or selleth him; then *that thief shall die*, and thou shalt put away evil from among you." Deut. xxiv, 7.

But I shall be told that the Jews had other servants who were absolute slaves. Let us look a little into this also. They had other servants who were procured in two different ways.

1. Captives taken in war were reduced to bondage instead of being killed; but we are not told that their children were enslaved. Deut. xx, 14.

2. Bondmen and bondmaids might be bought from the heathen round about them; these were left by fathers to their children after them, but it does not appear that the *children* of these servants ever were reduced to servitude. Lev. xxv, 44.

I will now try the right of the southern planter by the claims of Hebrew masters over their *heathen* slaves. Were the southern slaves taken captive in war? No! Were they bought from the heathen? No! for surely, no one will *now* vindicate the slave-trade so far as to assert that slaves were bought from the heathen who were obtained by that system of piracy. The only excuse for holding southern slaves is that they were born in slavery, but we have seen that they were *not* born in servitude as Jewish servants were, and that the children of heathen slaves were not legally subjected to bondage even under the Mosaic Law. How then have the slaves of the South been obtained?

I will next proceed to an examination of those laws which were enacted in order to protect the Hebrew and the Heathen servant; for I wish you to understand that *both* are protected by Him, of whom it is said "his mercies are over all his works." I will first speak of those which secured the rights of Hebrew servants. This code was headed thus:

1. Thou shalt not rule over him with rigor, but shalt fear thy God.
2. If thou buy a Hebrew servant, six years shall he serve, and in the seventh year he shall go out free for nothing. Ex. xx, 2^{[A](#)}.

^{[A](#)}: And when thou sendest him out free from thee, thou shalt not let him go away empty: Thou shalt furnish him *liberally* out of thy flock and out of thy floor, and out of thy wine-press: of that wherewith the Lord thy God hath blessed thee, shalt thou give unto him. Deut. xv, 13, 14.

3. If he come in by himself, he shall go out by himself; if he were married, then his wife shall go out with him.
4. If his master have given him a wife and she have borne him sons and daughters, the wife and her children shall be his master's, and he shall go out by himself.

5. If the servant shall plainly say, I love my master, my wife, and my children; I will not go out free; then his master shall bring him unto the Judges, and he shall bring him to the door, or unto the door-post, and his master shall bore his ear through with an awl, and he shall serve him *forever*. Ex. xxi, 3-6.

6. If a man smite the eye of his servant, or the eye of his maid, that it perish, he shall let him go *free* for his eye's sake. And if he smite out his man servant's tooth or his maid servant's tooth, he shall let him go *free* for his tooth's sake. Ex. xxi, 26, 27.

7. On the Sabbath rest was secured to servants by the fourth commandment. Ex. xx, 10.

8. Servants were permitted to unite with their masters three times in every year in celebrating the Passover, the feast of Pentecost, and the feast of Tabernacles; every male throughout the land was to appear before the Lord at Jerusalem with a gift; here the bond and the free stood on common ground. Deut. xvi.

9. If a man smite his servant or his maid with a rod, and he die under his hand, he shall be surely punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money. Ex. xxi, 20, 21.

From these laws we learn that Hebrew men servants were bound to serve their masters *only six* years, unless their attachment to their employers, their wives and children, should induce them to wish to remain in servitude, in which case, in order to prevent the possibility of deception on the part of the master, the servant was first taken before the magistrate, where he openly declared his intention of continuing in his master's service, (probably a public register was kept of such) he was then conducted to the door of the house, (in warm climates doors are thrown open,) and *there* his ear was *publicly* bored, and by submitting to this operation he testified his willingness to serve him *forever*, i.e. during his life, for Jewish Rabbins who must have understood Jewish *slavery*, (as it is called,) "affirm that servants were set free at the death of their masters and did *not* descend to their heirs:" or that he was to serve him until the year of Jubilee, when *all* servants were set at liberty. To protect servants from violence, it was

ordained that if a master struck out the tooth or destroyed the eye of a servant, that servant immediately became *free*, for such an act of violence evidently showed he was unfit to possess the power of a master, and therefore that power was taken from him. All servants enjoyed the rest of the Sabbath and partook of the privileges and festivities of the three great Jewish Feasts; and if a servant died under the infliction of chastisement, his master was surely to be punished. As a tooth for a tooth and life for life was the Jewish law, of course he was punished with death. I know that great stress has been laid upon the following verse: "Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money."

Slaveholders, and the apologists of slavery, have eagerly seized upon this little passage of scripture, and held it up as the masters' Magna Charta, by which they were licensed by God himself to commit the greatest outrages upon the defenceless victims of their oppression. But, my friends, was it designed to be so? If our Heavenly Father would protect by law the eye and the tooth of a Hebrew servant, can we for a moment believe that he would abandon that same servant to the brutal rape of a master who would destroy even life itself. Do we not rather see in this, the *only* law which protected masters, and was it not right that in case of the death of a servant, one or two days after chastisement was inflicted, to which other circumstances might have contributed, that the master should be protected when, in all probability, he never intended to produce so fatal a result? But the phrase "he is his money" has been adduced to show that Hebrew servants were regarded as mere *things*, "chattels personal;" if so, why were so many laws made to *secure their rights as men*, and to ensure their rising into equality and freedom? If they were mere *things*, why were they regarded as responsible beings, and one law made for them as well as for their masters? But I pass on now to the consideration of how the *female* Jewish servants were protected by *law*.

1. If she please not her master, who hath betrothed her to himself, then shall he let her be redeemed: to sell her unto another nation he shall have no power, seeing he hath dealt deceitfully with her.
2. If he have betrothed her unto his son, he shall deal with her after the manner of daughters.

3. If he take him another wife, her food, her raiment, and her duty of marriage, shall he not diminish.

4. If he do not these three unto her, then shall she go out *free* without money.

On these laws I will give you Calmet's remarks; "A father could not sell his daughter as a slave, according to the Rabbins, until she was at the age of puberty, and unless he were reduced to the utmost indigence. Besides, when a master bought an Israelitish girl, it was *always* with the presumption that he would take her to wife." Hence Moses adds, "if she please not her master, and he does not think fit to marry her, he shall set her at liberty," or according to the Hebrew, "he shall let her be redeemed." "To sell her to another nation he shall have no power, seeing he hath dealt deceitfully with her;" as to the engagement implied, at least of taking her to wife. "If he have betrothed her unto his son, he shall deal with her after the manner of daughters, i.e. he shall take care that his son uses her as his wife, that he does not despise or maltreat her. If he make his son marry another wife, he shall give her her dowry, her clothes and compensation for her virginity; if he does none of these three, she shall *go out free* without money." Thus were the *rights of female servants carefully secured by law* under the Jewish Dispensation; and now I would ask, are the rights of female slaves at the South thus secured? Are *they* sold only as wives and daughters-in-law, and when not treated as such, are they allowed to *go out free*? No! They have *all* not only been illegally obtained as servants according to Hebrew law, but they are also illegally *held* in bondage. Masters at the South and West have all forfeited their claims, (*if they ever had any,*) to their female slaves.

We come now to examine the case of those servants who were "of the heathen round about;" Were *they* left entirely unprotected by law? Horne in speaking of the law, "Thou shalt not rule over him with rigor, but shalt fear thy God," remarks, "this law Lev. xxv, 43; it is true speaks expressly of slaves who were of Hebrew descent; but as *alien born* slaves were ingrafted into the Hebrew Church by circumcision, *there is no doubt* but that it applied to *all* slaves;" if so, then we may reasonably suppose that the other protective laws extended to them also; and that the only difference between Hebrew and Heathen servants lay in this, that the former served but six

years unless they chose to remain longer; and were always freed at the death of their masters; whereas the latter served until the year of Jubilee, though that might include a period of forty-nine years,—and were left from father to son.

There are however two other laws which I have not yet noticed. The one effectually prevented *all involuntary* servitude, and the other completely abolished Jewish servitude every fifty years. They were equally operative upon the Heathen and the Hebrew.

1. "Thou shalt *not* deliver unto his master the servant that is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best: thou shalt *not* oppress him." Deut. xxxiii; 15, 16.

2. "And ye shall hallow the fiftieth year, and proclaim *Liberty* throughout *all* the land, unto *all* the inhabitants thereof: it shall be a jubilee unto you." Deut. xxv, 10.

Here, then, we see that by this first law, the *door of Freedom was opened wide to every servant who* had any cause whatever for complaint; if he was unhappy with his master, all he had to do was to leave him, and *no man* had a right to deliver him back to him again, and not only so, but the absconded servant was to *choose* where he should live, and no Jew was permitted to oppress him. He left his master just as our Northern servants leave us; we have no power to compel them to remain with us, and no man has any right to oppress them; they go and dwell in that place where it chooseth them, and live just where they like. Is it so at the South? Is the poor runaway slave protected *by law* from the violence of that master whose oppression and cruelty has driven him from his plantation or his house? No! no! Even the free states of the North are compelled to deliver unto his master the servant that is escaped from his master into them. By *human* law, under the *Christian Dispensation*, in the *nineteenth century* we are commanded to do, what *God* more than *three thousand* years ago, under the *Mosaic Dispensation*, *positively commanded* the Jews *not* to do. In the wide domain even of our free states, there is not *one* city of refuge for the poor runaway fugitive; not one spot upon which he can stand and say, I am a free man—I am protected in my rights as a *man*, by the strong arm of the law; no! *not*

one. How long the North will thus shake hands with the South in sin, I know not. How long she will stand by like the persecutor Saul, *consenting* unto the death of Stephen, and keeping the raiment of them that slew him, I know not; but one thing I do know, the *guilt of the North* is increasing in a tremendous ratio as light is pouring in upon her on the subject and the sin of slavery. As the sun of righteousness climbs higher and higher in the moral heavens, she will stand still more and more abashed as the query is thundered down into her ear, "*Who hath required this at thy hand?*" It will be found *no* excuse then that the Constitution of our country required that *persons bound to service* escaping from their masters should be delivered up; no more excuse than was the reason which Adam assigned for eating the forbidden fruit. *He was condemned and punished because* he hearkened to the voice of *his wife*, rather than to the command of his Maker; and we will assuredly be condemned and punished for obeying *Man* rather than *God*, if we do not speedily repent and bring forth fruits meet for repentance. Yea, are we not receiving chastisement even *now*?

But by the second of these laws a still more astonishing fact is disclosed. If the first effectually prevented *all involuntary servitude*, the last absolutely forbade even *voluntary servitude being perpetual*. On the great day of atonement every fiftieth year the Jubilee trumpet was sounded throughout the land of Judea, and *Liberty* was proclaimed to *all* the inhabitants thereof. I will not say that the servants' *chains* fell off and their *manacles* were burst, for there is no evidence that Jewish servants *ever* felt the weight of iron chains, and collars, and handcuffs; but I do say that even the man who had voluntarily sold himself and the *heathen* who had been sold to a Hebrew master, were set free, the one as well as the other. This law was evidently designed to prevent the oppression of the poor, and the possibility of such a thing as *perpetual servitude* existing among them.

Where, then, I would ask, is the warrant, the justification, or the palliation of American Slavery from Hebrew servitude? How many of the southern slaves would now be in bondage according to the laws of Moses; Not one. You may observe that I have carefully avoided using the term *slavery* when speaking of Jewish servitude; and simply for this reason, that *no such thing* existed among that people; the word translated servant does *not* mean *slave*, it is the same that is applied to Abraham, to Moses, to Elisha and the

prophets generally. *Slavery* then *never* existed under the Jewish Dispensation at all, and I cannot but regard it as an aspersion on the character of Him who is "glorious in Holiness" for any one to assert that "*God sanctioned, yea commanded slavery* under the old dispensation." I would fain lift my feeble voice to vindicate Jehovah's character from so foul a slander. If slaveholders are determined to hold slaves as long as they can, let them not dare to say that the God of mercy and of truth *ever* sanctioned such a system of cruelty and wrong. It is blasphemy against Him.

We have seen that the code of laws framed by Moses with regard to servants was designed to *protect them as men and women*, to secure to them their *rights as human beings*, to guard them from oppression and defend them from violence of every kind. Let us now turn to the Slave laws of the South and West and examine them too. I will give you the substance only, because I fear I shall trespass too much on your time, were I to quote them at length.

1. *Slavery* is hereditary and perpetual, to the last moment of the slave's earthly existence, and to all his descendants to the latest posterity.
2. The labor of the slave is compulsory and uncompensated; while the kind of labor, the amount of toil, the time allowed for rest, are dictated solely by the master. No bargain is made, no wages given. A pure despotism governs the human brute; and even his covering and provender, both as to quantity and quality, depend entirely on the master's discretion^A.

^A: There are laws in some of the slave states, limiting the labor which the master may require of the slave to fourteen hours daily. In some of the states there are laws requiring the masters to furnish a certain amount of food and clothing, as for instance, *one quart* of corn per day, or *one peck* per week, or *one bushel* per month, and "one linen shirt and pantaloons for the summer, and a linen shirt and woolen great coat and pantaloons for the winter," &c. But "still," to use the language of Judge Stroud "the slave is entirely under the control of his master,—is unprovided with a protector,—and, especially as he cannot be a witness or make complaint in any known mode against his master, the apparent object of these laws may *always* be defeated." ED.

3. The slave being considered a personal chattel may be sold or pledged, or leased at the will of his master. He may be exchanged for marketable commodities, or taken in execution for the debts or taxes either of a living or dead master. Sold at auction, either individually, or in lots to suit the purchaser, he may remain with his family, or be separated from them for ever.

4. Slaves can make no contracts and have no *legal* right to any property, real or personal. Their own honest earnings and the legacies of friends belong in point of law to their masters.

5. Neither a slave nor a free colored person can be a witness against any *white*, or free person, in a court of justice, however atrocious may have been the crimes they have seen him commit, if such testimony would be for the benefit of a *slave*; but they may give testimony *against a fellow slave*, or free colored man, even in cases affecting life, if the *master* is to reap the advantage of it.

6. The slave may be punished at his master's discretion—without trial—without any means of legal redress; whether his offence be real or imaginary; and the master can transfer the same despotic power to any person or persons, he may choose to appoint.

7. The slave is not allowed to resist any free man under *any* circumstances, *his* only safety consists in the fact that his *owner* may bring suit and recover the price of his body, in case his life is taken, or his limbs rendered unfit for labor.

8. Slaves cannot redeem themselves, or obtain a change of masters, though cruel treatment may have rendered such a change necessary for their personal safety.

9. The slave is entirely unprotected in his domestic relations.

10. The laws greatly obstruct the manumission of slaves, even where the master is willing to enfranchise them.

11. The operation of the laws tends to deprive slaves of religious instruction and consolation.

12. The whole power of the laws is exerted to keep slaves in a state of the lowest ignorance.

13. There is in this country a monstrous inequality of law and right. What is a trifling fault in the *white* man, is considered highly criminal in the *slave*; the same offences which cost a white man a few dollars only, are punished in the negro with death.

14. The laws operate most oppressively upon free people of color^A.

^A: See Mrs. Child's Appeal, Chap. II.

Shall I ask you now my friends, to draw the *parallel* between Jewish *servitude* and American *slavery*? No! For there is *no likeness* in the two systems; I ask you rather to mark the contrast. The laws of Moses *protected servants* in their *rights as men and women*, guarded them from oppression and defended them from wrong. The Code Noir of the South *robs the slave of all his rights* as a *man*, reduces him to a chattel personal, and defends the *master* in the exercise of the most unnatural and unwarrantable power over his slave. They each bear the impress of the hand which formed them. The attributes of justice and mercy are shadowed out in the Hebrew code; those of injustice and cruelty, in the Code Noir of America. Truly it was wise in the slaveholders of the South to declare their slaves to be "chattels personal;" for before they could be robbed of wages, wives, children, and friends, it was absolutely necessary to deny they were human beings. It is wise in them, to keep them in abject ignorance, for the strong man armed must be bound before we can spoil his house—the powerful intellect of man must be bound down with the iron chains of nescience before we can rob him of his rights as a man; we must reduce him to a *thing*; before we can claim the right to set our feet upon his neck, because it was only *all things* which were originally *put under the feet of man* by the Almighty and Beneficent Father of all, who has declared himself to be *no respecter* of persons, whether red, white, or black.

But some have even said that Jesus Christ did not condemn slavery. To this I reply, that our Holy Redeemer lived and preached among the Jews only. The laws which Moses had enacted fifteen hundred years previous to his appearance among them, had never been annulled, and these laws *protected* every servant in Palestine. That he saw nothing of *perpetual* servitude is certain from the simple declaration made by himself in John, viii, 35. "The servant abideth *not* in the house for ever, the son abideth ever." If then He did not condemn Jewish *temporary* servitude, this does not prove that he would not have condemned such a monstrous system as that of AMERICAN *slavery*, if that had existed among them. But did not Jesus condemn slavery? Let us examine some of his precepts. "*Whatsoever* ye would that men should do to you, do *ye even so to them*." Let every slaveholder apply these queries to his own heart; Am *I* willing to be a slave—Am *I* willing to see *my* husband the slave of another—Am *I* willing to see my mother a slave, or my father, my *white* sister, or my *white* brother? If *not*, then in holding others as slaves, I am doing what I would *not* wish to be done to me or any relative I have; and thus have I broken this golden rule which was given *me* to walk by.

But some slaveholders have said, "we were never in bondage to any man," and therefore the yoke of bondage would be insufferable to us, but slaves are accustomed to it, their backs are fitted to the burden. Well, I am willing to admit that you who have lived in freedom would find slavery even more oppressive than the poor slave does, but then you may try this question in another form—Am I willing to reduce *my little child* to slavery? You know that *if it is brought up a slave*, it will never know any contrast between freedom and bondage; its back will become fitted to the burden just as the negro child's does—*not by nature*—but by daily, violent pressure, in the same way that the head of the Indian child becomes flattened by the boards in which it is bound. It has been justly remarked that "*God never made a slave*," he made man upright; his back was *not* made to carry burdens as the slave of another, nor his neck to wear a yoke, and the *man* must be crushed within him, before *his* back can be *fitted* to the burden of perpetual slavery; and that his back is *not* fitted to it, is manifest by the insurrections that so often disturb the peace and security of slave-holding countries. Who ever heard of a rebellion of the beasts of the field; and why not? simply because *they* were all placed *under the feet of man*, into whose hand they were

delivered; it was originally designed that they should serve him, therefore their necks have been formed for the yoke, and their backs for the burden; but *not so with man*, intellectual, immortal man! I appeal to you, my friends, as mothers; Are you willing to enslave *your* children? You start back with horror and indignation at such a question. But why, if slavery is *no wrong* to those upon whom it is imposed? why, if, as has often been said, slaves are happier than their masters, freer from the cares and perplexities of providing for themselves and their families? why not place *your children* in the way of being supported without your having the trouble to provide for them, or they for themselves? Do you not perceive that as soon as this golden rule of action is applied to *yourselves*, that you involuntarily shrink from the test; as soon as *your* actions are weighed in *this* balance of the sanctuary, that *you are found wanting*? Try yourselves by another of the Divine precepts, "Thou shalt love thy neighbor as thyself." Can we love a man *as we love ourselves* if we do, and continue to do unto him, what we would not wish any one to do to us? Look too, at Christ's example, what does he say of himself, "I came *not* to be ministered unto, but to minister." Can you for a moment imagine the meek, and lowly, and compassionate Saviour, a *slaveholder*? do you not shudder at this thought as much as at that of his being a *warrior*? But why, if slavery is not sinful?

Again, it has been said, the Apostle Paul did not condemn Slavery, for he sent Onesimus back to Philemon. I do not think it can be said he sent him back, for no coercion was made use of. Onesimus was not thrown into prison and then sent back in chains to his master, as your runaway slaves often are—this could not possibly have been the case, because you know Paul as a Jew, was *bound to protect* the runaway, *he had no right* to send any fugitive back to his master. The state of the case then seems to have been this. Onesimus had been an unprofitable servant to Philemon and left him—he afterwards became converted under the Apostle's preaching, and seeing that he had been to blame in his conduct, and desiring by future fidelity to atone for past error, he wished to return, and the Apostle gave him the letter we now have as a recommendation to Philemon, informing him of the conversion of Onesimus, and entreating him as "Paul the aged to receive him, *not now as a servant*, but *above a servant*, a brother beloved, especially to me, but how much more unto thee, both in the flesh and in the Lord. If thou count *me* therefore as a partner, *receive him as myself*." This

then surely cannot be forced into a justification of the practice of returning runaway slaves back to their masters, to be punished with cruel beatings and scourgings as they often are. Besides the word [Greek: doulos] here translated servant, is the same that is made use of in Matt. xviii, 27. Now it appears that this servant owed his lord ten thousand talents; he possessed property to a vast amount. Onesimus could not then have been a *slave*, for slaves do not own their wives, or children; no, not even their own bodies, much less property. But again, the servitude which the apostle was accustomed to, must have been very different from American slavery, for he says, "the heir (or son), as long as he is a child, differeth *nothing from a servant*, though he be lord of all. But is under *tutors* and governors until the time appointed of the father." From this it appears, that the means of *instruction* were provided for *servants* as well as children; and indeed we know it must have been so among the Jews, because their servants were not permitted to remain in perpetual bondage, and therefore it was absolutely necessary they should be prepared to occupy higher stations in society than those of servants. Is it so at the South, my friends? Is the daily bread of instruction provided for *your slaves*? are their minds enlightened, and they gradually prepared to rise from the grade of menials into that of *free*, independent members of the state? Let your own statute book, and your own daily experience, answer these questions.

If this apostle sanctioned *slavery*, why did he exhort masters thus in his epistle to the Ephesians, "and ye, masters, do the same things unto them (i.e. perform your duties to your servants as unto Christ, not unto me) *forbearing threatening*; knowing that your master also is in heaven, neither is *there respect of persons with him*." And in Colossians, "Masters give unto your servants that which is *just and equal*, knowing that ye also have a master in heaven." Let slaveholders only *obey* these injunctions of Paul, and I am satisfied slavery would soon be abolished. If he thought it sinful even to *threaten* servants, surely he must have thought it sinful to flog and to beat them with sticks and paddles; indeed, when delineating the character of a bishop, he expressly names this as one feature of it, "*no striker*." Let masters give unto their servants that which is *just and equal*, and all that vast system of unrequited labor would crumble into ruin. Yes, and if they once felt they had no right to the *labor* of their servants without pay, surely they could not think they had a right to their wives, their children, and their

own bodies. Again, how can it be said Paul sanctioned slavery, when, as though to put this matter beyond all doubt, in that black catalogue of sins enumerated in his first epistle to Timothy, he mentions "*menstealers*," which word may be translated "*slavedealers*." But you may say, we all despise slavedealers as much as any one can; they are never admitted into genteel or respectable society. And why not? Is it not because even you shrink back from the idea of associating with those who make their fortunes by trading in the bodies and souls of men, women, and children? whose daily work it is to break human hearts, by tearing wives from their husbands, and children from their parents? But why hold slavedealers as despicable, if their trade is lawful and virtuous? and why despise them more than the *gentlemen of fortune and standing* who employ them as *their* agents? Why more than the *professors of religion* who barter their fellow-professors to them for gold and silver? We do not despise the land agent, or the physician, or the merchant, and why? Simply because their professions are virtuous and honorable; and if the trade of men-jobbers was honorable, you would not despise them either. There is no difference in *principle*, in *Christian ethics*, between the despised slavedealer and the *Christian* who buys slaves from, or sells slaves to him; indeed, if slaves were not wanted by the respectable, the wealthy, and the religious in a community, there would be no slaves in that community, and of course no *slavedealers*. It is then the *Christians* and the *honorable men and women* of the South, who are the *main pillars* of this grand temple built to Mammon and to Moloch. It is the *most enlightened* in every country who are *most* to blame when any public sin is supported by public opinion, hence Isaiah says, "*When the Lord hath performed his whole work upon mount Zion and on Jerusalem, (then) I will punish the fruit of the stout heart of the king of Assyria, and the glory of his high looks.*" And was it not so? Open the historical records of that age, was not Israel carried into captivity B.C. 606, Judah B.C. 588, and the stout heart of the heathen monarchy not punished until B.C. 536, fifty-two years *after* Judah's, and seventy years *after* Israel's captivity, when it was overthrown by Cyrus, king of Persia? Hence, too, the apostle Peter says, "*judgment must begin at the house of God.*" Surely this would not be the case, if the *professors of religion* were not *most worthy* of blame.

But it may be asked, why are *they* most culpable? I will tell you, my friends. It is because sin is imputed to us just in proportion to the spiritual

light we receive. Thus the prophet Amos says, in the name of Jehovah, "*You only* have I known of all the families of the earth: *therefore* I will punish you for all your iniquities." Hear too the doctrine of our Lord on this important subject; "The servant who *knew* his Lord's will and *prepared not* himself, neither did according to his will, shall be beaten with *many stripes*"; and why? "For unto whomsoever *much* is given, *of him* shall *much* be required; and to whom men have committed *much*, *of him* they will ask the *more*." Oh! then that the *Christians* of the south would ponder these things in their hearts, and awake to the vast responsibilities which rest *upon them* at this important crisis.

I have thus, I think, clearly proved to you seven propositions, viz.: First, that slavery is contrary to the declaration of our independence. Second, that it is contrary to the first charter of human rights given to Adam, and renewed to Noah. Third, that the fact of slavery having been the subject of prophecy, furnishes *no* excuse whatever to slavedealers. Fourth, that no such system existed under the patriarchal dispensation. Fifth, that *slavery never* existed under the Jewish dispensation; but so far otherwise, that every servant was placed under the *protection of law*, and care taken not only to prevent all *involuntary* servitude, but all *voluntary perpetual* bondage. Sixth, that slavery in America reduces a *man* to a *thing*, a "chattel personal," *robs him* of *all* his rights as a *human being*, fetters both his mind and body, and protects the *master* in the most unnatural and unreasonable power, whilst it *throws him out* of the protection of law. Seventh, that slavery is contrary to the example and precepts of our holy and merciful Redeemer, and of his apostles.

But perhaps you will be ready to query, why appeal to *women* on this subject? We do not make the laws which perpetuate slavery. No legislative power is vested in *us*; we can do nothing to overthrow the system, even if we wished to do so. To this I reply, I know you do not make the laws, but I also know that *you are the wives and mothers, the sisters and daughters of those who do*; and if you really suppose *you* can do nothing to overthrow slavery, you are greatly mistaken. You can do much in every way: four things I will name. 1st. You can read on this subject. 2d. You can pray over this subject. 3d. You can speak on this subject. 4th. You can *act* on this subject. I have not placed reading before praying because I regard it more

important, but because, in order to pray aright, we must understand what we are praying for; it is only then we can "pray with the understanding and the spirit also."

1. Read then on the subject of slavery. Search the Scriptures daily, whether the things I have told you are true. Other books and papers might be a great help to you to this investigation, but they are not necessary, and it is hardly probable that your Committees of Vigilance will allow you to have any other. The *Bible* then is the book I want you to read in the spirit of inquiry, and the spirit of prayer. Even the enemies of Abolitionists, acknowledge that their doctrines are drawn from it. In the great mob in Boston, last autumn, when the books and papers of the Anti-Slavery Society, were thrown out of the windows of their office, one individual laid hold of the Bible and was about tossing it out to the ground, when another reminded him that it was the Bible he had in his hand. "O! 'tis *all one*," he replied, and out went the sacred volume, along with the rest. We thank him for the acknowledgment. Yes, "*it is all one*," for our books and papers are mostly commentaries on the Bible, and the Declaration. Read the *Bible* then, it contains the words of Jesus, and they are spirit and life. Judge for yourselves whether *he sanctioned* such a system of oppression and crime.

2. Pray over this subject. When you have entered into your closets, and shut to the doors, then pray to your father, who seeth in secret, that he would open your eyes to see whether slavery is *sinful*, and if it is, that he would enable you to bear a faithful, open and un-shrinking testimony against it, and to do whatsoever your hands find to do, leaving the consequences entirely to him, who still says to us whenever we try to reason away duty from the fear of consequences, "*What is that to thee, follow thou me.*" Pray also for that poor slave, that he may be kept patient and submissive under his hard lot, until God is pleased to open the door of freedom to him without violence or bloodshed. Pray too for the master that his heart may be softened, and he made willing to acknowledge, as Joseph's brethren did, "Verily we are guilty concerning our brother," before he will be compelled to add in consequence of Divine judgment, "therefore is all this evil come upon us." Pray also for all your brethren and sisters who are laboring in the righteous cause of Emancipation in the Northern States, England and the world. There is great encouragement for prayer in these words of our Lord.

"Whatsoever ye shall ask the Father in my name, he will give it to you"—
Pray then without ceasing, in the closet and the social circle.

3. Speak on this subject. It is through the tongue, the pen, and the press, that truth is principally propagated. Speak then to your relatives, your friends, your acquaintances on the subject of slavery; be not afraid if you are conscientiously convinced it is *sinful*, to say so openly, but calmly, and to let your sentiments be known. If you are served by the slaves of others, try to ameliorate their condition as much as possible; never aggravate their faults, and thus add fuel to the fire of anger already kindled, in a master and mistress's bosom; remember their extreme ignorance, and consider them as your Heavenly Father does the *less* culpable on this account, even when they do wrong things. Discountenance *all* cruelty to them, all starvation, all corporal chastisement; these may brutalize and *break* their spirits, but will never bend them to willing, cheerful obedience. If possible, see that they are comfortably and *seasonably* fed, whether in the house or the field; it is unreasonable and cruel to expect slaves to wait for their breakfast until eleven o'clock, when they rise at five or six. Do all you can, to induce their owners to clothe them well, and to allow them many little indulgences which would contribute to their comfort. Above all, try to persuade your husband, father, brothers and sons, that *slavery is a crime against God and man*, and that it is a great sin to keep *human beings* in such abject ignorance; to deny them the privilege of learning to read and write. The Catholics are universally condemned, for denying the Bible to the common people, but, *slaveholders must not* blame them, for *they* are doing the *very same thing*, and for the very same reason, neither of these systems can bear the light which bursts from the pages of that Holy Book. And lastly, endeavour to inculcate submission on the part of the slaves, but whilst doing this be faithful in pleading the cause of the oppressed.

"Will *you* behold unheeding,
Life's holiest feelings crushed,
Where *woman's* heart is bleeding,
Shall *woman's* voice be hushed?"

4. Act on this subject. Some of you *own* slaves yourselves. If you believe slavery is *sinful*, set them at liberty, "undo the heavy burdens and let the oppressed go free." If they wish to remain with you, pay them wages, if not let them leave you. Should they remain teach them, and have them taught the common branches of an English education; they have minds and those minds, *ought to be improved*. So precious a talent as intellect, never was given to be wrapt in a napkin and buried in the earth. It is the *duty* of all, as far as they can, to improve their own mental faculties, because we are commanded to love God with *all our minds*, as well as with all our hearts, and we commit a great sin, if we *forbid or prevent* that cultivation of the mind in others, which would enable them to perform this duty. Teach your servants then to read &c., and encourage them to believe it is their *duty* to learn, if it were only that they might read the Bible.

But some of you will say, we can neither free our slaves nor teach them to read, for the laws of our state forbid it. Be not surprised when I say such wicked laws *ought to be no barrier* in the way of your duty, and I appeal to the Bible to prove this position. What was the conduct of Shiphrah and Puah, when the king of Egypt issued his cruel mandate, with regard to the Hebrew children? "*They feared God, and did not as the King of Egypt commanded them, but saved the men children alive.*" Did these *women* do right in disobeying that monarch? "*Therefore* (says the sacred text,) *God dealt well* with them, and made them houses" Ex. i. What was the conduct of Shadrach, Meshach, and Abednego, when Nebuchadnezzar set up a golden image in the plain of Dura, and commanded all people, nations, and languages, to fall down and worship it? "Be it known, unto thee, (said these faithful *Jews*) O king, that *we will not* serve thy gods, nor worship the image which thou hast set up." Did these men *do right in disobeying the law* of their sovereign? Let their miraculous deliverance from the burning fiery furnace, answer; Dan. iii. What was the conduct of Daniel, when Darius made a firm decree that no one should ask a petition of any man or God for thirty days? Did the prophet cease to pray? No! "When Daniel *knew that the writing was signed*, he went into his house, and his windows being *open* towards Jerusalem, he kneeled upon his knees three times a day, and prayed and gave thanks before his God, as he did aforetime." Did Daniel do right thus to *break* the law of his king? Let his wonderful deliverance out of the mouths of the lions answer; Dan. vii. Look, too, at

the Apostles Peter and John. When the rulers of the Jews, "*commanded them not* to speak at all, nor teach in the name of Jesus," what did they say? "Whether it be right in the sight of God, to hearken unto you more than unto God, judge ye." And what did they do? "They spake the word of God with boldness, and with great power gave the Apostles witness of the *resurrection* of the Lord Jesus;" although *this* was the very doctrine, for the preaching of which, they had just been cast into prison, and further threatened. Did these men do right? I leave *you* to answer, who now enjoy the benefits of their labors and sufferings, in that Gospel they dared to preach when positively commanded *not to teach any more* in the name of Jesus; Acts iv.

But some of you may say, if we do free our slaves, they will be taken up and sold, therefore there will be no use in doing it. Peter and John might just as well have said, we will not preach the gospel, for if we do, we shall be taken up and put in prison, therefore there will be no use in our preaching. *Consequences*, my friends, belong no more to *you*, than they did to these apostles. Duty is ours and events are God's. If you think slavery is sinful, all *you* have to do is to set your slaves at liberty, do all you can to protect them, and in humble faith and fervent prayer, commend them to your common Father. He can take care of them; but if for wise purposes he sees fit to allow them to be sold, this will afford you an opportunity of testifying openly, wherever you go, against the crime of *manstealing*. Such an act will be *clear robbery*, and if exposed, might, under the Divine direction, do the cause of Emancipation more good, than any thing that could happen, for, "He makes even the wrath of man to praise him, and the remainder of wrath he will restrain."

I know that this doctrine of obeying *God*, rather than man, will be considered as dangerous, and heretical by many, but I am not afraid openly to avow it, because it is the doctrine of the Bible; but I would not be understood to advocate resistance to any law however oppressive, if, in obeying it, I was not obliged to commit *sin*. If for instance, there was a law, which imposed imprisonment or a fine upon me if I manumitted a slave, I would on no account resist that law, I would set the slave free, and then go to prison or pay the fine. If a law commands me to *sin* *I will break it*; if it calls me to *suffer*, I will let it take its course *unresistingly*. The doctrine of

blind obedience and unqualified submission to *any human* power, whether civil or ecclesiastical, is the doctrine of despotism, and ought to have no place among Republicans and Christians.

But you will perhaps say, such a course of conduct would inevitably expose us to great suffering. Yes! my christian friends, I believe it would, but this will *not* excuse you or any one else for the neglect of *duty*. If Prophets and Apostles, Martyrs, and Reformers had not been willing to suffer for the truth's sake, where would the world have been now? If they had said, we cannot speak the truth, we cannot do what we believe is right, because the *laws of our country or public opinion are against us*, where would our holy religion have been now? The Prophets were stoned, imprisoned, and killed by the Jews. And why? Because they exposed and openly rebuked public sins; they opposed public opinion; had they held their peace, they all might have lived in ease and died in favor with a wicked generation. Why were the Apostles persecuted from city to city, stoned, incarcerated, beaten, and crucified? Because they dared to *speak the truth*; to tell the Jews, boldly and fearlessly, that *they* were the *murderers* of the Lord of Glory, and that, however great a stumbling-block the Cross might be to them, there was no other name given under heaven by which men could be saved, but the name of Jesus. Because they declared, even at Athens, the seat of learning and refinement, the self-evident truth, that "they be no gods that are made with men's hands," and exposed to the Grecians the foolishness of worldly wisdom, and the impossibility of salvation but through Christ, whom they despised on account of the ignominious death he died. Because at Rome, the proud mistress of the world, they thundered out the terrors of the law upon that idolatrous, war-making, and slave-holding community. Why were the martyrs stretched upon the rack, gibbeted and burnt, the scorn and diversion of a Nero, whilst their tarred and burning bodies sent up a light which illuminated the Roman capital? Why were the Waldenses hunted like wild beasts upon the mountains of Piedmont, and slain with the sword of the Duke of Savoy and the proud monarch of France? Why were the Presbyterians chased like the partridge over the highlands of Scotland—the Methodists pumped, and stoned, and pelted with rotten eggs—the Quakers incarcerated in filthy prisons, beaten, whipped at the cart's tail, banished and hung? Because they dared to *speak the truth*, to *break* the unrighteous *laws* of their country, and chose rather to suffer affliction with the people of

God, "not accepting deliverance," even under the gallows. Why were Luther and Calvin persecuted and excommunicated, Cranmer, Ridley, and Latimer burnt? Because they fearlessly proclaimed the truth, though that truth was contrary to public opinion, and the authority of Ecclesiastical councils and conventions. Now all this vast amount of human suffering might have been saved. All these Prophets and Apostles, Martyrs, and Reformers, might have lived and died in peace with all men, but following the example of their great pattern, "they despised the shame, endured the cross, and are now set down on the right hand of the throne of God," having received the glorious welcome of "*well done* good and faithful servants, enter ye into the joy of your Lord."

But you may say we are *women*, how can *our* hearts endure persecution? And why not? Have not *women* stood up in all the dignity and strength of moral courage to be the leaders of the people, and to bear a faithful testimony for the truth whenever the providence of God has called them to do so? Are there no *women* in that noble army of martyrs who are now singing the song of Moses and the Lamb? Who led out the women of Israel from the house of bondage, striking the timbrel, and singing the song of deliverance on the banks of that sea whose waters stood up like walls of crystal to open a passage for their escape? It was a *woman*; Miriam, the prophetess, the sister of Moses and Aaron. Who went up with Barak to Kadesh to fight against Jabin, King of Canaan, into whose hand Israel had been sold because of their iniquities? It was a *woman*! Deborah the wife of Lapidoth, the judge, as well as the prophetess of that backsliding people; Judges iv, 9. Into whose hands was Sisera, the captain of Jabin's host delivered? Into the hand of a *woman*. Jael the wife of Heber! Judges vi, 21. Who dared to *speak the truth* concerning those judgments which were coming upon Judea, when Josiah, alarmed at finding that his people "had not kept the word of the Lord to do after all that was written in the book of the Law," sent to enquire of the Lord concerning these things? It was a *woman*. Huldah the prophetess, the wife of Shallum; 2, Chron. xxxiv, 22. Who was chosen to deliver the whole Jewish nation from that murderous decree of Persia's King, which wicked Haman had obtained by calumny and fraud? It was a *woman*; Esther the Queen; yes, weak and trembling *woman* was the instrument appointed by God, to reverse the bloody mandate of the eastern monarch, and save the *whole visible church* from destruction. What

human voice first proclaimed to Mary that she should be the mother of our Lord? It was a *woman*! Elizabeth, the wife of Zacharias; Luke i, 42, 43. Who united with the good old Simeon in giving thanks publicly in the temple, when the child, Jesus, was presented there by his parents, "and spake of him to all them that looked for redemption in Jerusalem?" It was a *woman*! Anna the prophetess. Who first proclaimed Christ as the true Messiah in the streets of Samaria, once the capital of the ten tribes? It was a *woman*! Who ministered to the Son of God whilst on earth, a despised and persecuted Reformer, in the humble garb of a carpenter? They were *women*! Who followed the rejected King of Israel, as his fainting footsteps trod the road to Calvary? "A great company of people and of *women*;" and it is remarkable that to *them alone*, he turned and addressed the pathetic language, "Daughters of Jerusalem, weep not for me, but weep for yourselves and your children." Ah! who sent unto the Roman Governor when he was set down on the judgment seat, saying unto him, "Have thou nothing to do with that just man, for I have suffered many things this day in a dream because of him?" It was a *woman*! the wife of Pilate. Although "*he* knew that for envy the Jews had delivered Christ," yet *he* consented to surrender the Son of God into the hands of a brutal soldiery, after having himself scourged his naked body. Had the *wife* of Pilate sat upon that judgment seat, what would have been the result of the trial of this "just person?"

And who last hung round the cross of Jesus on the mountain of Golgotha? Who first visited the sepulchre early in the morning on the first day of the week, carrying sweet spices to embalm his precious body, not knowing that it was incorruptible and could not be holden by the bands of death? These were *women*! To whom did he *first* appear after his resurrection? It was to a *woman*! Mary Magdalene; Mark xvi, 9. Who gathered with the apostles to wait at Jerusalem, in prayer and supplication, for "the promise of the Father;" the spiritual blessing of the Great High Priest of his Church, who had entered, *not* into the splendid temple of Solomon, there to offer the blood of bulls, and of goats, and the smoking censer upon the golden altar, but into Heaven itself, there to present his intercessions, after having "given himself for us, an offering and a sacrifice to God for a sweet smelling savor?" *Women* were among that holy company; Acts i, 14. And did *women* wait in vain? Did those who had ministered to his necessities, followed in

his train, and wept at his crucifixion, wait in vain? No! No! Did the cloven tongues of fire descend upon the heads of *women* as well as men? Yes, my friends, "it sat upon *each one of them*;" Acts ii, 3. *women* as well as men were to be living stones in the temple of grace, and therefore *their* heads were consecrated by the descent of the Holy Ghost as well as those of men. Were *women* recognized as fellow laborers in the gospel field? They were! Paul says in his epistle to the Philippians, "help those *women* who labored with me, in the gospel;" Phil. iv, 3.

But this is not all. Roman *women* were burnt at the stake, *their* delicate limbs were torn joint from joint by the ferocious beasts of the Amphitheatre, and tossed by the wild bull in his fury, for the diversion of that idolatrous, warlike, and slaveholding people. Yes, *women* suffered under the ten persecutions of heathen Rome, with the most unshrinking constancy and fortitude; not all the entreaties of friends, nor the claims of new born infancy, nor the cruel threats of enemies could make *them* sprinkle one grain of incense upon the altars of Roman idols. Come now with me to the beautiful valleys of Piedmont. Whose blood stains the green sward, and decks the wild flowers with colors not their own, and smokes on the sword of persecuting France? It is *woman's*, as well as man's? Yes, *women* were accounted as sheep for the slaughter, and were cut down as the tender saplings of the wood.

But time would fail me, to tell of all those hundreds and thousands of *women*, who perished in the Low countries of Holland, when Alva's sword of vengeance was unsheathed against the Protestants, when the Catholic Inquisitions of Europe became the merciless executioners of vindictive wrath, upon those who dared to worship God, instead of bowing down in unholy adoration before "my Lord God the *Pope*," and when England, too, burnt her Ann Ascoes at the stake of martyrdom. Suffice it to say, that the Church, after having been driven from Judea to Rome, and from Rome to Piedmont, and from Piedmont to England, and from England to Holland, at last stretched her fainting wings over the dark bosom of the Atlantic, and found on the shores of a great wilderness, a refuge from tyranny and oppression—as she thought, but *even here*, (the warm blush of shame mantles my cheek as I write it,) *even here*, *woman* was beaten and banished, imprisoned, and hung upon the gallows, a trophy to the Cross.

And what, I would ask in conclusion, have *women* done for the great and glorious cause of Emancipation? Who wrote that pamphlet which moved the heart of Wilberforce to pray over the wrongs, and his tongue to plead the cause of the oppressed African? It was a *woman*, Elizabeth Heyrick. Who labored assiduously to keep the sufferings of the slave continually before the British public? They were *women*. And how did they do it? By their needles, paint brushes and pens, by speaking the truth, and petitioning Parliament for the abolition of slavery. And what was the effect of their labors? Read it in the Emancipation bill of Great Britain. Read it, in the present state of her West India Colonies. Read it, in the impulse which has been given to the cause of freedom, in the United States of America. Have English women then done so much for the negro, and shall American women do nothing? Oh no! Already are there sixty female Anti-Slavery Societies in operation. These are doing just what the English women did, telling the story of the colored man's wrongs, praying for his deliverance, and presenting his kneeling image constantly before the public eye on bags and needle-books, card-racks, pen-wipers, pin-cushions, &c. Even the children of the north are inscribing on their handy work, "May the points of our needles prick the slaveholder's conscience." Some of the reports of these Societies exhibit not only considerable talent, but a deep sense of religious duty, and a determination to persevere through evil as well as good report, until every scourge, and every shackle, is buried under the feet of the manumitted slave.

The Ladies' Anti-Slavery Society of Boston was called last fall, to a severe trial of their faith and constancy. They were mobbed by "the gentlemen of property and standing," in that city at their anniversary meeting, and their lives were jeopardized by an infuriated crowd; but their conduct on that occasion did credit to our sex, and affords a full assurance that they will *never* abandon the cause of the slave. The pamphlet, *Right and Wrong* in Boston, issued by them in which a particular account is given of that "mob of broad cloth in broad day," does equal credit to the head and the heart of her who wrote it. I wish my Southern sisters could read it; they would then understand that the women of the North have engaged in this work from a sense of *religious duty*, and that nothing will ever induce them to take their hands from it until it is fully accomplished. They feel no hostility to you, no bitterness or wrath; they rather sympathize in your trials and difficulties; but

they well know that the first thing to be done to help you, is to pour in the light of truth on your minds, to urge you to reflect on, and pray over the subject. This is all *they* can do for you, *you* must work out your own deliverance with fear and trembling, and with the direction and blessing of God, *you can do it*. Northern women may labor to produce a correct public opinion at the North, but if Southern women sit down in listless indifference and criminal idleness, public opinion cannot be rectified and purified at the South. It is manifest to every reflecting mind, that slavery must be abolished; the era in which we live, and the light which is overspreading the whole world on this subject, clearly show that the time cannot be distant when it will be done. Now there are only two ways in which it can be effected, by moral power or physical force, and it is for *you* to choose which of these you prefer. Slavery always has, and always will produce insurrections wherever it exists, because it is a violation of the natural order of things, and no human power can much longer perpetuate it. The opposers of abolitionists fully believe this; one of them remarked to me not long since, there is no doubt there will be a most terrible overturning at the South in a few years, such cruelty and wrong, must be visited with Divine vengeance soon. Abolitionists believe, too, that this must inevitably be the case, if you do not repent, and they are not willing to leave you to perish without entreating you, to save yourselves from destruction; well may they say with the apostle, "am I then your enemy because I tell you the truth," and warn you to flee from impending judgments.

But why, my dear friends, have I thus been endeavoring to lead you through the history of more than three thousand years, and to point you to that great cloud of witnesses who have gone before, "from works to rewards?" Have I been seeking to magnify the sufferings, and exalt the character of woman, that she "might have praise of men?" No! no! my object has been to arouse *you*, as the wives and mothers, the daughters and sisters, of the South, to a sense of your duty as *women*, and as Christian women, on that great subject, which has already shaken our country, from the St. Lawrence and the lakes, to the Gulf of Mexico, and from the Mississippi to the shores of the Atlantic; *and will continue mightily to shake it*, until the polluted temple of slavery fall and crumble into ruin. I would say unto each one of you, "what meanest thou, O sleeper! arise and call upon thy God, if so be that God will think upon us that we perish not." Perceive you not that dark cloud of

vengeance which hangs over our boasting Republic? Saw you not the lightnings of Heaven's wrath, in the flame which leaped from the Indian's torch to the roof of yonder dwelling, and lighted with its horrid glare the darkness of midnight? Heard you not the thunders of Divine anger, as the distant roar of the cannon came rolling onward, from the Texian country, where Protestant American Rebels are fighting with Mexican Republicans—for what? For the re-establishment of *slavery*; yes! of American slavery in the bosom of a Catholic Republic, where that system of robbery, violence, and wrong, had been legally abolished for twelve years. Yes! citizens of the United States, after plundering Mexico of her land, are now engaged in deadly conflict, for the privilege of fastening chains, and collars, and manacles—upon whom? upon the subjects of some foreign prince? No! upon native born American Republican citizens, although the fathers of these very men declared to the whole world, while struggling to free themselves from the three penny taxes of an English king, that they believed it to be a *self-evident* truth that *all men* were created equal, and had an *unalienable right to liberty*.

Well may the poet exclaim in bitter sarcasm,

"The fustian flag that proudly waves
In solemn mockery *o'er a land of slaves*."

Can you not, my friends, understand the signs of the times; do you not see the sword of retributive justice hanging over the South, or are you still slumbering at your posts?—Are there no Shiprahs, no Puahs among you, who will dare in Christian firmness and Christian meekness, to refuse to obey the *wicked laws* which require *woman to enslave, to degrade and to brutalize woman*? Are there no Miriams, who would rejoice to lead out the captive daughters of the Southern States to liberty and light? Are there no Huldahs there who will dare to *speak the truth* concerning the sins of the people and those judgments, which it requires no prophet's eye to see, must follow if repentance is not speedily sought? Is there no Esther among you who will plead for the poor devoted slave? Read the history of this Persian queen, it is full of instruction; she at first refused to plead for the Jews; but, hear the words of Mordecai, "Think not within thyself, that *thou* shalt

escape in the king's house more than all the Jews, for *if thou altogether holdest thy peace at this time*, then shall there enlargement and deliverance arise to the Jews from another place: but *thou and thy father's house shall be destroyed*." Listen, too, to her magnanimous reply to this powerful appeal; "*I will go* in unto the king, which is not according to law, and if I perish. I perish." Yes! if there were but *one* Esther at the South, she *might* save her country from ruin; but let the Christian women there arise, as the Christian women of Great Britain did, in the majesty of moral power, and that salvation is certain. Let them embody themselves in societies, and send petitions up to their different legislatures, entreating their husbands, fathers, brothers and sons, to abolish the institution of slavery; no longer to subject *woman* to the scourge and the chain, to mental darkness and moral degradation; no longer to tear husbands from their wives, and children from their parents; no longer to make men, women, and children, work *without wages*; no longer to make their lives bitter in hard bondage; no longer to reduce *American citizens* to the abject condition of *slaves*, of "*chattels personal*;" no longer to barter the *image of God* in human shambles for corruptible things such as silver and gold.

The *women of the South* can overthrow this horrible system of oppression and cruelty, licentiousness and wrong. Such appeals to your legislatures would be irresistible, for there is something in the heart of man which *will bend under moral suasion*. There is a swift witness for truth in his bosom, which *will respond to truth* when it is uttered with calmness and dignity. If you could obtain but six signatures to such a petition in only one state, I would say, send up that petition, and be not in the least discouraged by the scoffs and jeers of the heartless, or the resolution of the house to lay it on the table. It will be a great thing if the subject can be introduced into your legislatures in any way, even by *women*, and *they* will be the most likely to introduce it there in the best possible manner, as a matter of *morals* and *religion*, not of expediency or politics. You may petition, too, the different, ecclesiastical bodies of the slave states. Slavery must be attacked with the whole power of truth and the sword of the spirit. You must take it up on *Christian* ground, and fight against it with Christian weapons, whilst your feet are shod with the preparation of the gospel of peace. And *you are now* loudly called upon by the cries of the widow and the orphan, to arise and

gird yourselves for this great moral conflict, with the whole armour of righteousness upon the right hand and on the left.

There is every encouragement for you to labor and pray, my friends, because the abolition of slavery as well as its existence, has been the theme of prophecy. "Ethiopia (says the Psalmist) shall stretch forth her hands unto God." And is she not now doing so? Are not the Christian negroes of the south lifting their hands in prayer for deliverance, just as the Israelites did when their redemption was drawing nigh? Are they not sighing and crying by reason of the hard bondage? And think you, that He, of whom it was said, "and God heard their groaning, and their cry came up unto him by reason of the hard bondage," think you that his ear is heavy that he cannot *now* hear the cries of his suffering children? Or that He who raised up a Moses, an Aaron, and a Miriam, to bring them up out of the land of Egypt from the house of bondage, cannot now, with a high hand and a stretched out arm, rid the poor negroes out of the hands of their masters? Surely you believe that his arm is *not* shortened that he cannot save. And would not such a work of mercy redound to his glory? But another string of the harp of prophecy vibrates to the song of deliverance: "But they shall sit every man under his vine, and under his fig-tree, and *none shall make them afraid*; for the mouth of the Lord of Hosts hath spoken it." The *slave* never can do this as long as he is a *slave*; whilst he is a "chattel personal" he can own *no* property; but the time *is to come* when *every* man is to sit under *his own* vine and *his own* fig-tree, and no domineering driver, or irresponsible master, or irascible mistress, shall make him afraid of the chain or the whip. Hear, too, the sweet tones of another string: "Many shall run to and fro, and *knowledge* shall be increased." Slavery is an insurmountable barrier to the increase of knowledge in every community where it exists; *slavery, then, must be abolished before* this prediction can be fulfilled. The last chord I shall touch, will be this, "They shall *not* hurt nor destroy in all my holy mountain."

Slavery, then, must be overthrown before the prophecies can be accomplished, but how are they to be fulfilled? Will the wheels of the millennial car be rolled onward by miraculous power? No! God designs to confer this holy privilege upon *man*; it is through *his* instrumentality that the great and glorious work of reforming the world is to be done. And see

you not how the mighty engine of *moral power* is dragging in its rear the Bible and peace societies, anti-slavery and temperance, sabbath schools, moral reform, and missions? or to adopt another figure, do not these seven philanthropic associations compose the beautiful tints in that bow of promise which spans the arch of our moral heaven? Who does not believe, that if these societies were broken up, their constitutions burnt, and the vast machinery with which they are laboring to regenerate mankind was stopped, that the black clouds of vengeance would soon burst over our world, and every city would witness the fate of the devoted cities of the plain? Each one of these societies is walking abroad through the earth scattering the seeds of truth over the wide field of our world, not with the hundred hands of a Briareus, but with a hundred thousand.

Another encouragement for you to labor, my friends, is, that you will have the prayers and co-operation of English and Northern philanthropists. You will never bend your knees in supplication at the throne of grace for the overthrow of slavery, without meeting there the spirits of other Christians, who will mingle their voices with yours, as the morning or evening sacrifice ascends to God. Yes, the spirit of prayer and of supplication has been poured out upon many, many hearts; there are wrestling Jacobs who will not let go of the prophetic promises of deliverance for the captive, and the opening of prison doors to them that are bound. There are Pauls who are saying, in reference to this subject, "Lord, what wilt thou have me to do?" There are Marys sitting in the house now, who are ready to arise and go forth is this work as soon as the message is brought, "the master is come and calleth for thee." And there are Marthas, too, who have already gone out to meet Jesus, as he bends his footsteps to their brother's grave, and weeps, *not* over the lifeless body of Lazarus bound hand and foot in grave-clothes, but over the politically and intellectually lifeless slave, bound hand and foot in the iron chains of oppression and ignorance. Some may be ready to say, as Martha did, who seemed to expect nothing but sympathy from Jesus, "Lord, by this time he stinketh, for he hath been dead four days." She thought it useless to remove the stone and expose the loathsome body of her brother; she could not believe that so great a miracle could be wrought, as to raise *that putrefied body* into life; but "Jesus said, take ye away the stone;" and when *they* had taken away the stone where the dead was laid, and uncovered the body of Lazarus, then it was that "Jesus lifted up his eyes

and said, Father, I thank thee that thou hast heard me," &c. "And when he had thus spoken, he cried with a loud voice, Lazarus, come forth." Yes, some may be ready to say of the colored race, how can *they* ever be raised politically and intellectually, they have been dead four hundred years? But *we* have *nothing* to do with *how* this is to be done; *our business* is to take away the stone which has covered up the dead body of our brother, to expose the putrid carcass, to show *how* that body has been bound with the grave-clothes of heathen ignorance, and his face with the napkin of prejudice, and having done all it was our duty to do, to stand by the negro's grave, in humble faith and holy hope, waiting to hear the life-giving command of "Lazarus, come forth." This is just what Anti-Slavery Societies are doing; they are taking away the stone from the mouth of the tomb of slavery, where lies the putrid carcass of our brother. They want the pure light of heaven to shine into that dark and gloomy cave; they want all men to see *how* that dead body has been bound, *how* that face has been wrapped in the *napkin of prejudice*; and shall they wait beside that grave in vain? Is not Jesus still the resurrection and the life? Did He come to proclaim liberty to the captive, and the opening of prison doors to them that are bound, in vain? Did He promise to give beauty for ashes, the oil of joy for mourning, and the garment of praise for the spirit of heaviness unto them that mourn in Zion, and will He refuse to beautify the mind, anoint the head, and throw around the captive negro the mantle of praise for that spirit of heaviness which has so long bound him down to the ground? Or shall we not rather say with the prophet, "the zeal of the Lord of Hosts *will* perform this?" Yes, his promises are sure, and amen in Christ Jesus, that he will assemble her that halteth, and gather her that is driven out, and her that is afflicted.

But I will now say a few words on the subject of Abolitionism. Doubtless you have all heard Anti-Slavery Societies denounced as insurrectionary and mischievous, fanatical and dangerous. It has been said they publish the most abominable untruths, and that they are endeavoring to excite rebellions at the South. Have you believed these reports, my friends? have *you* also been deceived by these false assertions? Listen to me, then, whilst I endeavor to wipe from the fair character of Abolitionism such unfounded accusations. You know that *I* am a Southerner; you know that my dearest relatives are now in a slave State. Can you for a moment believe I would prove so recreant to the feelings of a daughter and a sister, as to join a society which

was seeking to overthrow slavery by falsehood, bloodshed, and murder? I appeal to you who have known and loved me in days that are passed, can *you* believe it? No! my friends. As a Carolinian, I was peculiarly jealous of any movements on this subject; and before I would join an Anti-Slavery Society, I took the precaution of becoming acquainted with some of the leading Abolitionists, of reading their publications and attending their meetings, at which I heard addresses both from colored and white men; and it was not until I was fully convinced that their principles were *entirely pacific*, and their efforts *only moral*, that I gave my name as a member to the Female Anti-Slavery Society of Philadelphia. Since that time, I have regularly taken the Liberator, and read many Anti-Slavery pamphlets and papers and books, and can assure you I *never* have seen a single insurrectionary paragraph, and never read any account of cruelty which I could not believe. Southerners may deny the truth of these accounts, but why do they not *prove* them to be false. Their violent expressions of horror at such accounts being believed, *may* deceive some, but they cannot deceive *me*, for I lived too long in the midst of slavery, not to know what slavery is. When I speak of this system, "I speak that I do know," and I am not at all afraid to assert, that Anti-Slavery publications have *not* overdrawn the monstrous features of slavery at all. And many a Southerner *knows* this as well as I do. A lady in North Carolina remarked to a friend of mine, about eighteen months since, "Northerners know nothing at all about slavery; they think it is perpetual bondage only; but of the *depth of degradation* that word involves, they have no conception; if they had, *they would never cease* their efforts until so *horrible* a system was overthrown." She did not know how faithfully some Northern men and Northern women had studied this subject; how diligently they had searched out the cause of "him who had none to help him," and how fearlessly they had told the story of the negro's wrongs. Yes, Northerners know *every* thing about slavery now. This monster of iniquity has been unveiled to the world, her frightful features unmasked, and soon, very soon will she be regarded with no more complacency by the American republic than is the idol of Juggernaut, rolling its bloody wheels over the crushed bodies of its prostrate Victims.

But you will probably ask, if Anti-Slavery societies are not insurrectionary, why do Northerners tell us they are? Why, I would ask you in return, did Northern senators and Northern representatives give their votes, at the last

sitting of congress, to the admission of Arkansas Territory as a state? Take those men, one by one, and ask them in their parlours, do you *approve of slavery*? ask them on *Northern* ground, where they will speak the truth, and I doubt not *every man* of them will tell you, *no*! Why then, I ask, did *they* give their votes to enlarge the mouth of that grave which has already destroyed its tens of thousands? All our enemies tell *us* they are as much anti-slavery as we are. Yes, my friends, thousands who are helping you to bind the fetters of slavery on the negro, despise you in their hearts for doing it; they rejoice that such an institution has not been entailed upon them. Why then, I would ask, do *they* lend you their help? I will tell you, "they love *the praise of men* more than the praise of God." The Abolition cause has not yet become so popular as to induce them to believe, that by advocating it in congress, they shall sit still more securely in their seats there, and like the *chief rulers* in the days of our Saviour, though many believed on him, yet they did *not* confess him, lest they should *be put out of the synagogue*; John xii, 42, 43. Or perhaps like Pilate, thinking they could prevail nothing, and fearing a tumult, they determined to release Barabbas and surrender the just man, the poor innocent slave to be stripped of his rights and scourged. In vain will such men try to wash their hands, and say, with the Roman governor, "I am innocent of the blood of this just person." Northern American statesmen are no more innocent of the crime of slavery, than Pilate was of the murder of Jesus, or Saul of that of Stephen. These are high charges, but I appeal to *their hearts*; I appeal to public opinion ten years from now. Slavery then is a national sin.

But you will say, a great many other Northerners tell us so, who can have no political motives. The interests of the North, you must know, my friends, are very closely combined with those of the South. The Northern merchants and manufacturers are making *their* fortunes out of the *produce of slave labor*; the grocer is selling your rice and sugar; how then can these men bear a testimony against slavery without condemning themselves? But there is another reason, the North is most dreadfully afraid of Amalgamation. She is alarmed at the very idea of a thing so monstrous, as she thinks. And lest this consequence *might* flow from emancipation, she is determined to resist all efforts at emancipation without expatriation. It is not because *she* *approves of slavery*, or believes it to be "the corner stone of our republic," for she is as much *anti-slavery* as we are; but amalgamation is too horrible

to think of. Now I would ask *you*, is it right, is it generous, to refuse the colored people in this country the advantages of education and the privilege, or rather the *right*, to follow honest trades and callings merely because they are colored? The same prejudice exists here against our colored brethren that existed against the Gentiles in Judea. Great numbers cannot bear the idea of equality, and fearing lest, if they had the same advantages we enjoy, they would become as intelligent, as moral, as religious, and as respectable and wealthy, they are determined to keep them as low as they possibly can. Is this doing as they would be done by? Is this loving their neighbor *as themselves*? Oh! that *such* opposers of Abolitionism would put their souls in the stead of the free colored man's and obey the apostolic injunction, to "remember them that are in bonds *as bound with them*." I will leave you to judge whether the fear of amalgamation ought to induce men to oppose anti-slavery efforts, when *they* believe *slavery* to be *sinful*. Prejudice against color, is the most powerful enemy we have to fight with at the North.

You need not be surprised, then, at all, at what is said *against* Abolitionists by the North, for they are wielding a two-edged sword, which even here, cuts through the *CORDS OF CASTE*, on the one side, and the *BONDS OF INTEREST* on the other. They are only sharing the fate of other reformers, abused and reviled whilst they are in the minority; but they are neither angry nor discouraged by the invective which has been heaped upon them by slaveholders at the South and their apologists at the North. They know that when George Fox and William Edmundson were laboring in behalf of the negroes in the West Indies in 1671 that the very *same* slanders were propagated against them, which are *now* circulated against Abolitionists. Although it was well known that Fox was the founder of a religious sect which repudiated *all* war, and *all* violence, yet *even he* was accused of "endeavoring to excite the slaves to insurrection and of teaching the negroes to cut their master's throats." And these two men who had their feet shod with the preparation of the Gospel of Peace, were actually compelled to draw up a formal declaration that *they were not* trying to raise a rebellion in Barbadoes. It is also worthy of remark that these Reformers did not at this time see the necessity of emancipation under seven years, and their principal efforts were exerted to persuade the planters of the necessity of instructing their slaves; but the slaveholder saw then, just what the

slaveholder sees now, that an *enlightened* population *never* can be a *slave* population, and therefore they passed a law, that negroes should not even attend the meetings of Friends. Abolitionists know that the life of Clarkson was sought by slavetraders; and that even Wilberforce was denounced on the floor of Parliament as a fanatic and a hypocrite by the present King of England, the very man who, in 1834, set his seal to that instrument which burst the fetters of eight hundred thousand slaves in his West India colonies. They know that the first Quaker who bore a *faithful* testimony against the sin of slavery was cut off from religious fellowship with that society. That Quaker was a *woman*. On her deathbed she sent for the committee who dealt with her—she told them, the near approach of death had not altered her sentiments on the subject of slavery and waving her hand towards a very fertile and beautiful portion of country which lay stretched before her window, she said with great solemnity, "Friends, the time will come when there will not be friends enough in all this district to hold one meeting for worship, and this garden will be turned into a wilderness."

The aged friend, who with tears in his eyes, related this interesting circumstance to me, remarked, that at that time there were seven meetings of friends in that part of Virginia, but that when he was there ten years ago, not a single meeting was held, and the country was literally a desolation. Soon after her decease, John Woolman began his labors in our society, and instead of disowning a member for testifying *against* slavery, they have for fifty-two years positively forbidden their members to hold slaves.

Abolitionists understand the slaveholding spirit too well to be surprised at any thing that has yet happened at the South or the North; they know that the greater the sin is, which is exposed, the more violent will be the efforts to blacken the character and impugn the motives of those who are engaged in bringing to light the hidden things of darkness. They understand the work of Reform too well to be driven back by the furious waves of opposition, which are only foaming out their own shame. They have stood "the world's dread laugh," when only twelve men formed the first Anti-Slavery Society in Boston in 1831. They have faced and refuted the calumnies of their enemies, and proved themselves to be emphatically *peace men* by *never resisting* the violence of mobs, even when driven by them from the temple of God, and dragged by an infuriated crowd through the streets of the

emporium of New-England, or subjected by *slaveholders* to the pain of corporal punishment. "None of these things move them;" and, by the grace of God, they are determined to persevere in this work of faith and labor of love: they mean to pray, and preach, and write, and print, until slavery is completely overthrown, until Babylon is taken up and cast into the sea, to "be found no more at all." They mean to petition Congress year after year, until the seat of our government is cleansed from the sinful traffic of "slaves and the souls of men." Although that august assembly may be like the unjust judge who "feared not God neither regarded man," yet it must yield just as he did, from the power of importunity. Like the unjust judge, Congress *must* redress the wrongs of the widow, lest by the continual coming up of petitions, it be wearied. This will be striking the dagger into the very heart of the monster, and once 'tis done, he must soon expire.

Abolitionists have been accused of abusing their Southern brethren. Did the prophet Isaiah *abuse* the Jews when he addressed to them the cutting reproofs contained in the first chapter of his prophecies, and ended by telling them, they would be *ashamed* of the oaks they had desired, and *confounded* for the garden they had chosen? Did John the Baptist *abuse* the Jews when he called them "*a generation of vipers*," and warned them "to bring forth fruits meet for repentance?" Did Peter abuse the Jews when he told them they were the *murderers* of the Lord of Glory? Did Paul abuse the Roman Governor when he reasoned before him of righteousness, temperance, and judgment, so as to send conviction home to his guilty heart, and cause him to tremble in view of the crimes he was living in? Surely not. No man will now accuse the prophets and apostles of *abuse*, but what have Abolitionists done more than they? No doubt the Jews thought the prophets and apostles in their day, just as harsh and uncharitable as slaveholders now, think Abolitionists; if they did not, why did they beat, and stone, and kill them?

Great fault has been found with the prints which have been employed to expose slavery at the North, but my friends, how could this be done so effectually in any other way? Until the pictures of the slave's sufferings were drawn and held up to public gaze, no Northerner had any idea of the cruelty of the system, it never entered their minds that such abominations could exist in Christian, Republican America; they never suspected that

many of the *gentlemen* and *ladies* who came from the South to spend the summer months in travelling among them, were petty tyrants at home. And those who had lived at the South, and came to reside at the North, were too *ashamed of slavery* even to speak of it; the language of their hearts was, "tell it *not* in Gath, publish it *not* in the streets of Askelon;" they saw no use in uncovering the loathsome body to popular sight, and in hopeless despair, wept in secret places over the sins of oppression. To such hidden mourners the formation of Anti-Slavery Societies was as life from the dead, the first beams of hope which gleamed through the dark clouds of despondency and grief. Prints were made use of to effect the abolition of the Inquisition in Spain, and Clarkson employed them when he was laboring to break up the Slave trade, and English Abolitionists used them just as we are now doing. They are powerful appeals and have invariably done the work they were designed to do, and we cannot consent to abandon the use of these until the *realities* no longer exist.

With regard to those white men, who, it was said, did try to raise an insurrection in Mississippi a year ago, and who were stated to be Abolitionists, none of them were proved to be members of Anti-Slavery Societies, and it must remain a matter of great doubt whether, even they were guilty of the crimes alledged against them, because when any community is thrown into such a panic as to inflict Lynch law upon accused persons, they cannot be supposed to be capable of judging with calmness and impartiality. *We know* that the papers of which the Charleston mail was robbed, were *not* insurrectionary, and that they were *not* sent to the colored people as was reported. *We know* that Amos Dresser was *no insurrectionist* though he was accused of being so, and on this false accusation was publicly whipped in Nashville in the midst of a crowd of infuriated *slaveholders*. Was that young man disgraced by this infliction of corporal punishment? No more than was the great apostle of the Gentiles who five times received forty stripes, save one. Like him, he might have said, "henceforth I bear in my body the marks of the Lord Jesus," for it was for the *truth's sake, he suffered*, as much as did the Apostle Paul. Are Nelson, and Garrett, and Williams, and other Abolitionists who have recently been banished from Missouri, insurrectionists? *We know* they are *not*, whatever slaveholders may choose to call them. The spirit which now asperses the character of the Abolitionists, is the *very same* which dressed up the

Christians of Spain in the skins of wild beasts and pictures of devils when they were led to execution as heretics. Before we condemn individuals, it is necessary, even in a wicked community, to accuse them of some crime; hence, when Jezebel wished to compass the death of Naboth, men of Belial were suborned to bear *false* witness against him, and so it was with Stephen, and so it ever has been, and ever will be, as long as there is any virtue to suffer on the rack, or the gallows. *False* witnesses must appear against Abolitionists before they can be condemned.

I will now say a few words on George Thompson's mission to this country. This Philanthropist was accused of being a foreign emissary. Were La Fayette, and Steuben, and De Kalb, foreign emissaries when they came over to America to fight against the tories, who preferred submitting to what was termed, "the yoke of servitude," rather than bursting the fetters which bound them to the mother country? *They* came with *carnal weapons* to engage in *bloody* conflict against American citizens, and yet, where do their names stand on the page of History. Among the honorable, or the low? Thompson came here to war against the giant sin of slavery, *not* with the sword and the pistol, but with the smooth stones of oratory taken from the pure waters of the river of Truth. His splendid talents and commanding eloquence rendered him a powerful coadjutor in the Anti-Slavery cause, and in order to neutralize the effects of these upon his auditors, and rob the poor slave of the benefits of his labors, his character was defamed, his life was sought, and he at last driven from our Republic, as a fugitive. But was *Thompson* disgraced by all this mean and contemptible and wicked chicanery and malice? No more than was Paul, when in consequence of a vision he had seen at Troas, he went over to Macedonia to help the Christians there, and was beaten and imprisoned, because he cast out a spirit of divination from a young damsel which had brought much gain to her masters. Paul was as much a *foreign emissary* in the Roman colony of Philippi, as George Thompson was in America, and it was because he was a *Jew*, and taught customs it was not lawful for them to receive or observe, being Romans, that the Apostle was thus treated.

It was said, Thompson was a felon, who had fled to this country to escape transportation to New Holland. Look at him now pouring the thundering strains of his eloquence, upon crowded audiences in Great Britain, and see

in this a triumphant vindication of his character. And have the slaveholder, and his obsequious apologist, gained any thing by all their violence and falsehood? No! for the stone which struck Goliath of Gath, had already been thrown from the sling. The giant of slavery who had so proudly defied the armies of the living God, had received his death-blow before he left our shores. But what is George Thompson doing there? Is he not now laboring there, as effectually to abolish American slavery as though he trod our own soil, and lectured to New York or Boston assemblies? What is he doing there, but constructing a stupendous dam, which will turn the overwhelming tide of public opinion over the wheels of that machinery which Abolitionists are working here. He is now lecturing to *Britons* on *American Slavery*, to the *subjects* of a *King*, on the abject condition of the *slaves of a Republic*. He is telling them of that mighty confederacy of petty tyrants which extends ever thirteen States of our Union. He is telling them of the munificent rewards offered by slaveholders, for the heads of the most distinguished advocates for freedom in this country. He is moving the British Churches to send out to the churches of America the most solemn appeals, reproof, rebuking, and exhorting them with all long suffering and patience to abandon the sin of slavery immediately. Where then I ask, will the name of George Thompson stand on the page of History? Among the honorable, or the base?

What can I say more, my friends, to induce *you* to set your hands, and heads, and hearts, to this great work of justice and mercy. Perhaps you have feared the consequences of immediate Emancipation, and been frightened by all those dreadful prophecies of rebellion, bloodshed and murder, which have been uttered. "Let no man deceive you;" they are the predictions of that same "lying spirit" which spoke through the four thousand prophets of old, to Ahab king of Israel, urging him on to destruction. *Slavery* may produce these horrible scenes if it is continued five years longer, but Emancipation *never will*.

I can prove the *safety* of immediate Emancipation by history. In St. Domingo in 1793 six hundred thousand slaves were set free in a white population of forty-two thousand. That Island "marched as by enchantment towards its ancient splendor", cultivation prospered, every day produced perceptible proofs of its progress, and the negroes all continued quietly to

work on the different plantations, until in 1802, France determined to reduce these liberated slaves again to bondage. It was at *this time* that all those dreadful scenes of cruelty occurred, which we so often *unjustly* hear spoken of, as the effects of Abolition. They were occasioned *not* by Emancipation, but by the base attempt to fasten the chains of slavery on the limbs of liberated slaves.

In Guadaloupe eighty-five thousand slaves were freed in a white population of thirteen thousand. The same prosperous effects followed manumission here, that had attended it in Hayti, every thing was quiet until Buonaparte sent out a fleet to reduce these negroes again to slavery, and in 1802 this institution was re-established in that Island. In 1834, when Great Britain determined to liberate the slaves in her West India colonies, and proposed the apprenticeship system; the planters of Bermuda and Antigua, after having joined the other planters in their representations of the bloody consequences of Emancipation, in order if possible to hold back the hand which was offering the boon of freedom to the poor negro; as soon as they found such falsehoods were utterly disregarded, and Abolition must take place, came forward voluntarily, and asked for the compensation which was due to them, saying, *they preferred immediate emancipation*, and were not afraid of any insurrection. And how is it with these islands now? They are decidedly more prosperous than any of those in which the apprenticeship system was adopted, and England is now trying to abolish that system, so fully convinced is she that immediate Emancipation is the *safest* and the best plan.

And why not try it in the Southern States, if it *never* has occasioned rebellion; if *not a drop of blood* has ever been shed in consequence of it, though it has been so often tried, why should we suppose it would produce such disastrous consequences now? "Be not deceived then, God is not mocked," by such false excuses for not doing justly and loving mercy. There is nothing to fear from immediate Emancipation, but *every thing* from the continuance of slavery.

Sisters in Christ, I have done. As a Southerner, I have felt it was my duty to address you. I have endeavoured to set before you the exceeding sinfulness of slavery, and to point you to the example of those noble women who have

been raised up in the church to effect great revolutions, and to suffer for the truth's sake. I have appealed to your sympathies as women, to your sense of duty as *Christian women*>. I have attempted to vindicate the Abolitionists, to prove the entire safety of immediate Emancipation, and to plead the cause of the poor and oppressed. I have done—I have sowed the seeds of truth, but I well know, that even if an Apollos were to follow in my steps to water them, "*God only* can give the increase." To Him then who is able to prosper the work of his servant's hand, I commend this Appeal in fervent prayer, that as he "*hath chosen the weak things of the world*, to confound the things which are mighty," so He may cause His blessing, to descend and carry conviction to the hearts of many Lydias through these speaking pages. Farewell.—Count me not your "enemy because I have told you the truth," but believe me in unfeigned affection,

Your sympathizing Friend,

ANGELINA E. GRIMKÉ.

Published by the American Anti-Slavery Society, corner of Spruce and Nassau Streets.

THE ANTI-SLAVERY EXAMINER.

* * * * *

VOL. I. SEPTEMBER, 1836. No. 2.

* * * * *

APPEAL TO THE CHRISTIAN WOMEN OF THE SOUTH,

BY A.E. GRIMKÉ

REVISED AND CORRECTED.

"Then Mordecai commanded to answer Esther, Think not within thyself that thou shalt escape in the king's house more than all the Jews. For if thou altogether holdest thy peace at this time, then shalt there enlargement and deliverance arise to the Jews from another place: but thou and thy father's house shall be destroyed: and who knoweth whether thou art come to the kingdom for such a time as this. And Esther bade them return Mordecai this answer:—and so will I go in unto the king, which is not according to law, and *if I perish, I perish.*"

Esther IV. 13-16.

RESPECTED FRIENDS,

It is because I feel a deep and tender interest in your present and eternal welfare that I am willing thus publicly to address you. Some of you have loved me as a relative, and some have felt bound to me in Christian sympathy, and Gospel fellowship; and even when compelled by a strong sense of duty, to break those outward bonds of union which bound us together as members of the same community, and members of the same religious denomination, you were generous enough to give me credit, for sincerity as a Christian, though you believed I had been most strangely deceived. I thanked you then for your kindness, and I ask you *now*, for the sake of former confidence, and former friendship, to read the following pages in the spirit of calm investigation and fervent prayer. It is because you have known me, that I write thus unto you.

But there are other Christian women scattered over the Southern States, of whom a very large number have never seen me, and never heard my name, and feel *no* personal interest whatever in *me*. But I feel an interest in *you*, as branches of the same vine from whose root I daily draw the principle of spiritual vitality—Yes! Sisters in Christ I feel an interest in *you*, and often has the secret prayer arisen on your behalf, Lord "open thou their eyes that they may see wondrous things out of thy Law"—It is then, because I *do feel* and *do pray* for you, that I thus address you upon a subject about which of all others, perhaps you would rather not hear any thing; but, "would to God ye could bear with me a little in my folly, and indeed bear with me, for I am jealous over you with godly jealousy." Be not afraid then to read my appeal; it is *not* written in the heat of passion or prejudice, but in that solemn calmness which is the result of conviction and duty. It is true, I am going to tell you unwelcome truths, but I mean to speak these *truths in love*, and remember Solomon says, "faithful are the *wounds* of a friend." I do not believe the time has yet come when *Christian women* "will not endure sound doctrine," even on the subject of Slavery, if it is spoken to them in tenderness and love, therefore I now address *you*.

* * * * *

POSTAGE.—This periodical contains four and a half sheets. Postage under 100 miles, 6 3-4 cents; over 100 miles, 11 1-4 cents.

Please read and circulate.

* * * * *

To all of you then, known or unknown, relatives or strangers, (for you are all *one* in Christ,) I would speak. I have felt for you at this time, when unwelcome light is pouring in upon the world on the subject of slavery; light which even Christians would exclude, if they could, from our country, or at any rate from the southern portion of it, saying, as its rays strike the rock bound coasts of New England and scatter their warmth and radiance over her hills and valleys, and from thence travel onward over the Palisades of the Hudson, and down the soft flowing waters of the Delaware and gild the waves of the Potomac, "hitherto shalt thou come and no further;" I know that even professors of His name who has been emphatically called the "Light of the world" would, if they could, build a wall of adamant around the Southern States whose top might reach unto heaven, in order to shut out the light which is bounding from mountain to mountain and from the hills to the plains and valleys beneath, through the vast extent of our Northern States. But believe me, when I tell you, their attempts will be as utterly fruitless as were the efforts of the builders of Babel; and why? Because moral, like natural light, is so extremely subtle in its nature as to overleap all human barriers, and laugh at the puny efforts of man to control it. All the excuses and palliations of this system must inevitably be swept away, just as other "refuges of lies" have been, by the irresistible torrent of a rectified public opinion. "The *supporters* of the slave system," says Jonathan Dymond in his admirable work on the Principles of Morality, "will *hereafter* be regarded with the *same* public feeling, as he who was an advocate for the slave trade *now* is." It will be, and that very soon, clearly perceived and fully acknowledged by all the virtuous and the candid, that in *principle* it is as sinful to hold a human being in bondage who has been born in Carolina, as one who has been born in Africa. All that sophistry of argument which has been employed to prove, that although it is sinful to send to Africa to procure men and women as slaves, who have never been

in slavery, that still, it is not sinful to keep those in bondage who have come down by inheritance, will be utterly overthrown. We must come back to the good old doctrine of our forefathers who declared to the world, "this self evident truth that *all* men are created equal, and that they have certain *inalienable* rights among which are life, *liberty*, and the pursuit of happiness." It is even a greater absurdity to suppose a man can be legally born a slave under *our free Republican* Government, than under the petty despotisms of barbarian Africa. If then, we have no right to enslave an African, surely we can have none to enslave an American; if it is a self evident truth that *all* men, every where and of every color are born equal, and have an *inalienable right to liberty*, then it is equally true that *no* man can be born a slave, and no man can ever *rightfully* be reduced to *involuntary* bondage and held as a slave, however fair may be the claim of his master or mistress through wills and title-deeds.

But after all, it may be said, our fathers were certainly mistaken, for the Bible sanctions Slavery, and that is the highest authority. Now the Bible is my ultimate appeal in all matters of faith and practice, and it is to *this test* I am anxious to bring the subject at issue between us. Let us then begin with Adam and examine the charter of privileges which was given to him. "Have dominion over the fish of the sea, and over the fowl of the air, and over every living thing that moveth upon the earth." In the eighth Psalm we have a still fuller description of this charter which through Adam was given to all mankind. "Thou madest him to have dominion over the works of thy hands; thou hast put all things under his feet. All sheep and oxen, yea, and the beasts of the field, the fowl of the air, the fish of the sea, and whatsoever passeth through the paths of the seas." And after the flood when this charter of human rights was renewed, we find *no additional* power vested in man. "And the fear of you and the dread of you shall be upon every beast of the earth, and every fowl of the air, and upon all that moveth upon the earth, and upon all the fishes of the sea, into your hand are they delivered." In this charter, although the different kinds of *irrational* beings are so particularly enumerated, and supreme dominion over *all of them* is granted, yet *man* is *never* vested with this dominion over *his fellow man*; he was never told that any of the human species were put *under his feet*; it was only *all things*, and man, who was created in the image of his Maker, *never* can properly be termed a *thing*, though the laws of Slave States do call him "a chattel

personal;" *Man* then, I assert *never* was put *under the feet of man*, by that first charter of human right, which was given by God, to the Fathers of the Antediluvian and Postdiluvian worlds, therefore this doctrine of equality is based on the Bible.

But it may be argued, that in the very chapter of Genesis from which I have last quoted, will be found the curse pronounced upon Canaan, by which his posterity was consigned to servitude under his brothers Shem and Japheth. I know this prophecy was uttered, and was most fearfully and wonderfully fulfilled, through the immediate descendants of Canaan, i.e. the Canaanites, and I do not know but it has been through all the children of Ham, but I do know that prophecy does *not* tell us what *ought to be*, but what actually does take place, ages after it has been delivered, and that if we justify America for enslaving the children of Africa, we must also justify Egypt for reducing the children of Israel to bondage, for the latter was foretold as explicitly as the former. I am well aware that prophecy has often been urged as an excuse for Slavery, but be not deceived, the fulfilment of prophecy will *not cover one sin* in the awful day of account. Hear what our Saviour says on this subject; "it must needs be that offences come, but *woe unto that man through whom they come*"—Witness some fulfilment of this declaration in the tremendous destruction of Jerusalem, occasioned by that most nefarious of all crimes the crucifixion of the Son of God. Did the fact of that event having been foretold, exculpate the Jews from sin in perpetrating it; No—for hear what the Apostle Peter says to them on this subject, "Him being delivered by the determinate counsel and foreknowledge of God, ye have taken, and by *wicked* hands have crucified and slain." Other striking instances might be adduced, but these will suffice.

But it has been urged that the patriarchs held slaves, and therefore, slavery is right. Do you really believe that patriarchal servitude was like American slavery? Can you believe it? If so, read the history of these primitive fathers of the church and be undeceived. Look at Abraham, though so great a man, going to the herd himself and fetching a calf from thence and serving it up with his own hands, for the entertainment of his guests. Look at Sarah, that princess as her name signifies, baking cakes upon the hearth. If the servants they had were like Southern slaves, would they have performed such comparatively menial offices for themselves? Hear too the plaintive

lamentation of Abraham when he feared he should have no son to bear his name down to posterity. "Behold thou hast given me no seed, &c., one born in my house is *mine* heir." From this it appears that one of his *servants* was to inherit his immense estate. Is this like Southern slavery? I leave it to your own good sense and candor to decide. Besides, such was the footing upon which Abraham was with *his* servants, that he trusted them with arms. Are slaveholders willing to put swords and pistols into the hands of their slaves? He was as a father among his servants; what are planters and masters generally among theirs? When the institution of circumcision was established, Abraham was commanded thus; "He that is eight days old shall be circumcised among you, *every* man-child in your generations; he that is born in the house, or bought with money of any stranger which is not of thy seed." And to render this command with regard to his *servants* still more impressive it is repeated in the very next verse; and herein we may perceive the great care which was taken by God to guard the *rights of servants* even under this "dark dispensation." What too was the testimony given to the faithfulness of this eminent patriarch. "For I know him that he will command his children and his *household* after him, and they shall keep the way of the Lord to do justice and judgment." Now my dear friends many of you believe that circumcision has been superseded by baptism in the Church; *Are you* careful to have *all* that are born in your house or bought with money of any stranger, baptized? *Are you* as faithful as Abraham to command *your household* to *keep the way of the Lord*? I leave it to your own consciences to decide. Was patriarchal servitude then like American Slavery?

But I shall be told, God sanctioned Slavery, yea commanded Slavery under the Jewish Dispensation. Let us examine this subject calmly and prayerfully. I admit that a species of *servitude* was permitted to the Jews, but in studying the subject I have been struck with wonder and admiration at perceiving how carefully the servant was guarded from violence, injustice, and wrong. I will first inform you how these servants became servants, for I think this a very important part of our subject. From consulting Horne, Calmet, and the Bible, I find there were six different ways by which the Hebrews became servants legally.

1. A Hebrew, whose father was still alive, and who on that account had not inherited his patrimonial estate, might sell himself, i.e., his services, for six years, in which case *he* received the purchase money *himself*. Ex. xxi, 2.
2. A father might sell his children as servants, i.e., his *daughters*, in which circumstance it was understood the daughter was to be the wife or daughter-in-law of the man who bought her, and the *father* received the price. In other words, Jewish women were sold as *white women* were in the first settlement of Virginia—as *wives*, *not* as slaves. Ex. xxi, 7-11.
3. Thieves not able to make restitution for their thefts, were sold for the benefit of the injured person. Ex. xxii, 3.
4. They might be born in servitude. Ex. xxi, 4.
5. If reduced to extreme poverty, a Hebrew might sell himself; but in such a case he was to serve, not as a bondsman, whose term of service was only six years, nor was he to serve as a hired servant, who received his wages every evening, nor yet as a sojourner or temporary resident in the family, but he was to serve his master until the year of Jubilee^A. Lev. xxv, 39, 40.

^A: If the reader will leave out the italicised words—But and And, in the 40th verse—he will find that I am fully authorized in the meaning I have attached to it. But and And are *not* in the original Hebrew; have been introduced by the translators, and entirely destroy the true sense of the passage.

6. If a Hebrew had sold himself to a rich Gentile, he might be redeemed by one of his brethren at any time the money was offered; and he who redeemed him, was *not* to take advantage of the favor thus conferred, and rule over him with rigor. Lev. xxv, 47-55.

Before going into an examination of the laws by which these servants were protected, I would just ask whether American slaves have become slaves in any of the ways in which the Hebrews became servants. Did they sell themselves into slavery and receive the purchase money into their own hands? No! No! Did they steal the property of another, and were they sold to make restitution for their crimes? No! Did their present masters, as an act

of kindness, redeem them from some heathen tyrant to whom *they had sold themselves* in the dark hour of adversity? No! Were they born in slavery? No! No! Not according to *Jewish Law*, for the servants who were born in servitude among them, were born of parents who had *sold themselves*: Ex. xxi, 4; Lev. xxv, 39, 40. Were the female slaves of the South sold by their fathers? How shall I answer this question? Thousands and tens of thousands never were, *their fathers never* have received the poor compensation of silver or gold for the tears and toils, the suffering, and anguish, and hopeless bondage of *their* daughters. They labor day by day, and year by year, side by side, in the same field, if haply their daughters are permitted to remain on the same plantation with them, instead of being, as they often are, separated from their parents and sold into distant states, never again to meet on earth. But do the *fathers of the South ever sell their daughters*? My heart beats, and my hand trembles, as I write the awful affirmative, Yes! The fathers of this Christian land often sell their daughters, *not* as Jewish parents did, to be the wives and daughters-in-law of the men who buy them, but to be the abject slaves of petty tyrants and irresponsible masters. Is it not so, my friends? I leave it to your own candor to corroborate my assertion. Southern slaves then have *not* become slaves in any of the six different ways in which Hebrews became servants, and I hesitate not to say that American masters *cannot* according to *Jewish law* substantiate their claim to the men, women, or children they now hold in bondage.

But there was one way in which a Jew might illegally be reduced to servitude; it was this, he might be *stolen* and afterwards sold as a slave, as was Joseph. To guard most effectually against this dreadful crime of manstealing, God enacted this severe law. "He that stealeth a man and selleth him, or if he be found in his hand, he shall surely be put to death." And again, "If a man be found stealing any of his brethren of the children of Israel, and maketh merchandise of him, or selleth him; then *that thief shall die*; and thou shalt put away evil from among you." Deut. xxiv, 7. As I have tried American Slavery by *legal* Hebrew servitude, and found, (to your surprise, perhaps,) that Jewish law cannot justify the slaveholder's claim, let us now try it by *illegal* Hebrew bondage. Have the Southern slaves then been stolen? If they did not sell themselves into bondage; if they were not sold as thieves; if they were not redeemed from a heathen master to whom *they had sold themselves*; if they were not born in servitude according to

Hebrew law; and if the females were not sold by their fathers as wives and daughters-in-law to those who purchased them; then what shall we say of them? what can we say of them? but that according *to Hebrew Law they have been stolen*.

But I shall be told that the Jews had other servants who were absolute slaves. Let us look a little into this also. They had other servants who were procured from the heathen.

Bondmen and bondmaids might be bought of the heathen round about them. Lev. xxv, 44.

I will now try the right of the southern planter by the claims of Hebrew masters to their *heathen* servants. Were the southern slaves bought from the heathen? No! For surely, no one will *now* vindicate the slave-trade so far as to assert that slaves were bought from the heathen who were obtained by that system of piracy. The only excuse for holding southern slaves is that they were born in slavery, but we have seen that they were *not* born in servitude as Jewish servants were, and that the children of heathen servants were not legally subjected to bondage, even under the Mosaic Law. How then have the slaves of the South been obtained?

I will next proceed to an examination of those laws which were enacted in order to protect the Hebrew and the Heathen servant; for I wish you to understand that *both* were protected by Him, of whom it is said "his mercies are over *all* his works." I will first speak of those which secured the rights of Hebrew servants. This code was headed thus:

1. Thou shalt *not* rule over him with *rigor*, but shalt fear thy God.

2. If thou buy a Hebrew servant, six years shall he serve, and in the seventh year he shall go out free for nothing. Ex. xxi, 2. And when thou sendest him out free from thee, thou shalt not let him go away empty: Thou shalt furnish him *liberally* out of thy flock and out of thy floor, and out of thy wine-press: of that wherewith the Lord thy God hath blessed thee, shalt thou give unto him. Deut. xv, 13, 14.

3. If he come in by himself, he shall go out by himself; if he were married, then his wife shall go out with him. Ex. xxi, 3.

4. If his master have given him a wife, and she have borne him sons and daughters, the wife and her children shall be his master's, and he shall go out by himself. Ex. xxi, 4.

5. If the servant shall plainly say, I love my master, my wife, and my children; I will not go out free; then his master shall bring him unto the Judges, and he shall bring him to the door, or unto the door-post, and his master shall bore his ear through with an awl, and he shall serve him *for ever*. Ex. xxi, 5, 6.

6. If a man smite the eye of his servant, or the eye of his maid, that it perish, he shall let him go *free* for his eye's sake. And if he smite out his man servant's tooth or his maid servant's tooth, he shall let him go *free* for his tooth's sake. Ex. xxi, 26, 27.

7. On the Sabbath, rest was secured to servants by the fourth commandment. Ex. xx, 10.

8. Servants were permitted to unite with their masters three times in every year in celebrating the Passover, the feast of Weeks, and the feast of Tabernacles; every male throughout the land was to appear before the Lord at Jerusalem with a gift; here the bond and the free stood on common ground. Deut. xvi.

9. If a man smite his servant or his maid with a rod, and he die under his hand, he shall be surely punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money. Ex. xxi, 20, 21.

From these laws we learn, that one class of Hebrew men servants were bound to serve their masters *only six years*, unless their attachment to their employers, their wives and children, should induce them to wish to remain in servitude, in which case, in order to prevent the possibility of deception on the part of the master, the servant was first taken before the magistrate, where he openly declared his intention of continuing in his master's service, (probably a public register was kept of such,) he was then conducted to the

door of the house, (in warm climates doors are thrown open.) and *there* his ear was *publicly* bored, and by submitting to this operation, he testified his willingness to serve him in subserviency to the law of God; for let it be remembered, that the door-post was covered with the precepts of that law. Deut. vi, 9. xi, 20: *for ever*, i.e., during his life, for Jewish Rabbins, who must have understood Jewish *slavery* (as it is called), "affirm that servants were set free at the death of their masters, and did *not* descend to their heirs;" or that he was to serve him until the year of Jubilee, when *all* servants were set at liberty. The other class, when they first sold themselves, agreed to remain until the year of Jubilee. To protect servants from violence, it was ordained, that if a master struck out the tooth or destroyed the eye of a servant, that servant immediately became *free*, for such an act of violence evidently showed he was unfit to possess the power of a master, and therefore that power was taken from him. All servants enjoyed the rest of the Sabbath, and partook of the privileges and festivities of the three great Jewish Feasts; and if a servant died under the infliction of chastisement, his master was surely to be punished. As a tooth for a tooth and life for life was the Jewish law, of course he was punished with death. I know that great stress has been laid upon the following verse: "Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money."

Slaveholders, and the apologists of slavery, have eagerly seized upon this little passage of Scripture, and held it up as the masters' Magna Charta, by which they were licensed by God himself to commit the greatest outrages upon the defenceless victims of their oppression. But, my friends, was it designed to be so? If our Heavenly Father would protect by law the *eye* and the *tooth* of a Hebrew servant, can we for a moment believe that he would abandon that same servant to the brutal rage of a master who would destroy even life itself? Let us then examine this passage with the help of the context. In the 18th and 19th verses we have a law which was made for *freemen* who strove together. Here we find, that if one man smote another, so that he died not, but only kept his bed from being disabled, and he rose again and walked abroad upon his staff, then *he* was to be paid for the loss of his time, and all the expenses of his sickness were to be borne by the man who smote him. The freeman's time was *his own*, and therefore he was to be remunerated for the loss of it. But *not* so with the *servant*, whose time was,

as it were, *the money of his master*, because he had already paid for it: If he continued a day or two after being struck, to keep his bed in consequence of any wound received, then his lost time was *not* to be paid for, because it was *not his own*, but his master's, who had already paid him for it. The loss of his time was the *master's loss*, and *not* the servant's. This explanation is confirmed by the fact, that the Hebrew word translated continue, means "to stand still;" *i.e.*, to be unable to go out about his master's work.

Here then we find this stronghold of slavery completely demolished. Instead of its being a license to inflict such chastisement upon a servant as to cause even death itself, it is in fact a law merely to provide that a man should not be required to pay his servant twice over for his time. It is altogether an unfounded assumption on the part of the slaveholder, that this servant *died* after a day or two; the text does not say so, and I contend that he *got well* after a day or two, just as the man mentioned in the 19th verse recovered from the effects of the blows he received. The cases are completely parallel, and the first law throws great light on the second. This explanation is far more consonant with the character of God, and were it not that our vision has been so completely darkened by the existence of slavery in our country, we never could so far have dishonored Him as to have supposed that He sanctioned the murder of a servant; although slaveholding legislators might legalize the killing of a slave in *four* different ways.—
(*Stroud's Sketch of Slave Laws.*)

But I pass on now to the consideration of how the *female* Jewish servants were protected by *law*.

1. If she please not her master, who hath betrothed her to himself, then shall he let her be redeemed: to sell her unto another nation he shall have no power, seeing he hath dealt deceitfully with her.
2. If he have betrothed her unto his son, he shall deal with her after the manner of daughters.
3. If he take him another wife, her food, her raiment, and her duty of marriage, shall he not diminish.

4. If he do not these three unto her, then shall she go out *free* without money.

On these laws I will give you Calmet's remarks; "A father could not sell his daughter as a slave, according to the Rabbins, until she was at the age of puberty, and unless he were reduced to the utmost indigence. Besides, when a master bought an Israelitish girl, it was *always* with the presumption that he would take her to wife. Hence Moses adds, 'if she please not her master, and he does not think fit to marry her, he shall set her at liberty,' or according to the Hebrew, 'he shall let her be redeemed.' 'To sell her to another nation he shall have no power, seeing he hath dealt deceitfully with her;' as to the engagement implied, at least of taking her to wife. 'If he have betrothed her unto his son, he shall deal with her after the manner of daughters;' i.e., he shall take care that his son uses her as his wife, that he does not despise or maltreat her. If he make his son marry another wife, he shall give her her dowry, her clothes, and compensation for her virginity; if he does none of these three, she shall *go out free* without money." Thus were the *rights of female servants carefully secured by law* under the Jewish Dispensation; and now I would ask, are the rights of female slaves at the South thus secured? Are *they* sold only as wives and daughters-in-law, and when not treated as such, are they allowed to *go out free*? No! They have *all* not only been illegally obtained as servants according to Hebrew law, but they are also illegally *held* in bondage. Masters at the South and West have all forfeited their claims, (*if they ever had any,*) to their female slaves.

We come now to examine the case of those servants who were "of the heathen round about;" Were *they* left entirely unprotected by law? Horne, in speaking of the law, "Thou shalt not rule over him with rigor, but shalt fear thy God," remarks, "this law, Lev. xxv, 43, it is true, speaks expressly of slaves who were of Hebrew descent; but as *alien born* slaves were ingrafted into the Hebrew Church by circumcision, *there is no doubt* but that it applied to *all* slaves:" if so, then we may reasonably suppose that the other protective laws extended to them also; and that the only difference between Hebrew and Heathen servants lay in this, that the former served but six years, unless they chose to remain longer, and were always freed at the death of their masters; whereas, the latter served until the year of Jubilee,

though that might include a period of forty-nine years,—and were left from father to son.

There are, however, two other laws which I have not yet noticed. The one effectually prevented *all involuntary* servitude, and the other completely abolished Jewish servitude every fifty years. They were equally operative upon the Heathen and the Hebrew.

1. "Thou shalt *not* deliver unto his master the servant that is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best: thou shalt *not* oppress him." Deut. xxiii, 15, 16.

2. "And ye shall hallow the fiftieth year, and proclaim *Liberty* throughout *all* the land, unto *all* the inhabitants thereof; it shall be a jubilee unto you." Lev. xxv, 10.

Here, then, we see that by this first law, the *door of Freedom was opened wide to every servant who* had any cause whatever for complaint; if he was unhappy with his master, all he had to do was to leave him, and *no man* had a right to deliver him back to him again, and not only so, but the absconded servant was to *choose* where he should live, and no Jew was permitted to oppress him. He left his master just as our Northern servants leave us; we have no power to compel them to remain with us, and no man has any right to oppress them; they go and dwell in that place where it chooseth them, and live just where they like. Is it so at the South? Is the poor runaway slave protected *by law* from the violence of that master whose oppression and cruelty has driven him from his plantation or his house? No! no! Even the free states of the North are compelled to deliver unto his master the servant that is escaped from his master into them. By *human* law, under the *Christian Dispensation*, in the *nineteenth century* we are commanded to do, what *God* more than *three thousand* years ago, under the *Mosaic Dispensation*, *positively commanded* the Jews *not* to do. In the wide domain even of our free states, there is not *one* city of refuge for the poor runaway fugitive; not one spot upon which he can stand and say, I am a free man—I am protected in my rights as a *man*, by the strong arm of the law; no! *not one*. How long the North will thus shake hands with the South in sin, I know not. How long she will stand by like the persecutor Saul, *consenting*

unto the death of Stephen, and keeping the raiment of them that slew him. I know not; but one thing I do know, the *guilt of the North* is increasing in a tremendous ratio as light is pouring in upon her on the subject and the sin of slavery. As the sun of righteousness climbs higher and higher in the moral heavens, she will stand still more and more abashed as the query is thundered down into her ear, "*Who hath required this at thy hand?*" It will be found *no* excuse then that the Constitution of our country required that *persons bound to service* escaping from their masters should be delivered up; no more excuse than was the reason which Adam assigned for eating the forbidden fruit. *He was condemned and punished because* he hearkened to the voice of *his wife*, rather than to the command of his Maker; and *we* shall assuredly be condemned and punished for obeying *Man* rather than *God*, if we do not speedily repent and bring forth fruits meet for repentance. Yea, are we not receiving chastisement even *now*?

But by the second of these laws a still more astonishing fact is disclosed. If the first effectually prevented *all involuntary servitude*, the last absolutely forbade even *voluntary servitude being perpetual*. On the great day of atonement every fiftieth year the Jubilee trumpet was sounded throughout the land of Judea, and *Liberty* was proclaimed to *all* the inhabitants thereof. I will not say that the servants' *chains* fell off and their *manacles* were burst, for there is no evidence that Jewish servants *ever* felt the weight of iron chains, and collars, and handcuffs; but I do say that even the man who had voluntarily sold himself and the *heathen* who had been sold to a Hebrew master, were set free, the one as well as the other. This law was evidently designed to prevent the oppression of the poor, and the possibility of such a thing as *perpetual servitude* existing among them.

Where, then, I would ask, is the warrant, the justification, or the palliation of American Slavery from Hebrew servitude? How many of the southern slaves would now be in bondage according to the laws of Moses; Not one. You may observe that I have carefully avoided using the term *slavery* when speaking of Jewish servitude; and simply for this reason, that *no such thing* existed among that people; the word translated servant does *not* mean *slave*, it is the same that is applied to Abraham, to Moses, to Elisha and the prophets generally. *Slavery* then *never* existed under the Jewish Dispensation at all, and I cannot but regard it as an aspersion on the

character of Him who is "glorious in Holiness" for any one to assert that "*God sanctioned, yea commanded slavery* under the old dispensation." I would fain lift my feeble voice to vindicate Jehovah's character from so foul a slander. If slaveholders are determined to hold slaves as long as they can, let them not dare to say that the God of mercy and of truth *ever* sanctioned such a system of cruelty and wrong. It is blasphemy against Him.

We have seen that the code of laws framed by Moses with regard to servants was designed to *protect them as men and women*, to secure to them their *rights as human beings*, to guard them from oppression and defend them from violence of every kind. Let us now turn to the Slave laws of the South and West and examine them too. I will give you the substance only, because I fear I shall trespass too much on your time, were I to quote them at length.

1. *Slavery* is hereditary and perpetual, to the last moment of the slave's earthly existence, and to all his descendants to the latest posterity.
2. The labor of the slave is compulsory and uncompensated; while the kind of labor, the amount of toil, the time allowed for rest, are dictated solely by the master. No bargain is made, no wages given. A pure despotism governs the human brute; and even his covering and provender, both as to quantity and quality, depend entirely on the master's discretion^A.

^A: There are laws in some of the slave states, limiting the labor which the master may require of the slave to fourteen hours daily. In some of the states there are laws requiring the masters to furnish a certain amount of food and clothing, as for instance, *one quart* of corn per day, or *one peck* per week, or *one bushel* per month, and "*one* linen shirt and pantaloons for the summer, and a linen shirt and woolen great coat and pantaloons for the winter," &c. But "still," to use the language of Judge Stroud "the slave is entirely under the control of his master.—is unprovided with a protector,—and, especially as he cannot be a witness or make complaint in any known mode against his master, the *apparent* object of these laws may *always* be defeated." ED.

3. The slave being considered a personal chattel may be sold or pledged, or leased at the will of his master. He may be exchanged for marketable

commodities, or taken in execution for the debts or taxes either of a living or dead master. Sold at auction, either individually, or in lots to suit the purchaser, he may remain with his family, or be separated from them for ever.

4. Slaves can make no contracts and have no *legal* right to any property, real or personal. Their own honest earnings and the legacies of friends belong in point of law to their masters.

5. Neither a slave nor a free colored person can be a witness against any *white*, or free person, in a court of justice, however atrocious may have been the crimes they have seen him commit, if such testimony would be for the benefit of a *slave*; but they may give testimony *against a fellow slave*, or free colored man, even in cases affecting life, if the *master* is to reap the advantage of it.

6. The slave may be punished at his master's discretion—without trial—without any means of legal redress; whether his offence be real or imaginary; and the master can transfer the same despotic power to any person or persons, he may choose to appoint.

7. The slave is not allowed to resist any free man under *any* circumstances, *his* only safety consists in the fact that his *owner* may bring suit and recover the price of his body, in case his life is taken, or his limbs rendered unfit for labor.

8. Slaves cannot redeem themselves, or obtain a change of masters, though cruel treatment may have rendered such a change necessary for their personal safety.

9. The slave is entirely unprotected in his domestic relations.

10. The laws greatly obstruct the manumission of slaves, even where the master is willing to enfranchise them.

11. The operation of the laws tends to deprive slaves of religious instruction and consolation.

12. The whole power of the laws is exerted to keep slaves in a state of the lowest ignorance.

13. There is in this country a monstrous inequality of law and right. What is a trifling fault in the *white* man, is considered highly criminal in the *slave*; the same offences which cost a white man a few dollars only, are punished in the negro with death.

14. The laws operate most oppressively upon free people of color^A.

^A: See Mrs. Child's Appeal, Chap. II.

Shall I ask you now my friends, to draw the *parallel* between Jewish *servitude* and American *slavery*? No! For there is *no likeness* in the two systems; I ask you rather to mark the contrast. The laws of Moses *protected servants* in their *rights as men and women*, guarded them from oppression and defended them from wrong. The Code Noir of the South *robs the slave of all his rights as a man*, reduces him to a chattel personal, and defends the *master* in the exercise of the most unnatural and unwarrantable power over his slave. They each bear the impress of the hand which formed them. The attributes of justice and mercy are shadowed out in the Hebrew code; those of injustice and cruelty, in the Code Noir of America. Truly it was wise in the slaveholders of the South to declare their slaves to be "chattels personal;" for before they could be robbed of wages, wives, children, and friends, it was absolutely necessary to deny they were human beings. It is wise in them, to keep them in abject ignorance, for the strong man armed must be bound before we can spoil his house—the powerful intellect of man must be bound down with the iron chains of nescience before we can rob him of his rights as a man; we must reduce him to a *thing* before we can claim the right to set our feet upon his neck, because it was only *all things* which were originally *put under the feet of man* by the Almighty and Beneficent Father of all, who has declared himself to be *no respecter* of persons, whether red, white or black.

But some have even said that Jesus Christ did not condemn slavery. To this I reply that our Holy Redeemer lived and preached among the Jews only. The laws which Moses had enacted fifteen hundred years previous to his appearance among them, had never been annulled, and these laws protected

every servant in Palestine. If then He did not condemn Jewish servitude this does not prove that he would not have condemned such a monstrous system as that of American *slavery*, if that had existed among them. But did not Jesus condemn slavery? Let us examine some of his precepts. "*Whatsoever ye would that men should do to you, do ye even so to them.*" Let every slaveholder apply these queries to his own heart; Am *I* willing to be a slave—Am *I* willing to see my wife the slave of another—Am *I* willing to see my mother a slave, or my father, my sister or my brother? If not, then in holding others as slaves, I am doing what I would *not* wish to be done to me or any relative I have; and thus have I broken this golden rule which was given *me* to walk by.

But some slaveholders have said, "we were never in bondage to any man," and therefore the yoke of bondage would be insufferable to us, but slaves are accustomed to it, their backs are fitted to the burden. Well, I am willing to admit that you who have lived in freedom would find slavery even more oppressive than the poor slave does, but then you may try this question in another form—Am I willing to reduce *my little child* to slavery? You know that *if it is brought up a slave* it will never know any contrast, between freedom and bondage, its back will become fitted to the burden just as the negro child's does—*not by nature*—but by daily, violent pressure, in the same way that the head of the Indian child becomes flattened by the boards in which it is bound. It has been justly remarked that "*God never made a slave,*" he made man upright; his back was *not* made to carry burdens, nor his neck to wear a yoke, and the *man* must be crushed within him, before *his* back can be *fitted* to the burden of perpetual slavery; and that his back is *not* fitted to it, is manifest by the insurrections that so often disturb the peace and security of slaveholding countries. Who ever heard of a rebellion of the beasts of the field; and why not? simply because *they* were all placed *under the feet of man*, into whose hand they were delivered; it was originally designed that they should serve him, therefore their necks have been formed for the yoke, and their backs for the burden; but *not so with man*, intellectual, immortal man! I appeal to you, my friends, as mothers; Are you willing to enslave *your* children? You start back with horror and indignation at such a question. But why, if slavery is *no wrong* to those upon whom it is imposed? why, if as has often been said, slaves are happier than their masters, free from the cares and perplexities of providing for

themselves and their *wanting*? Try yourselves by another of the Divine precepts, "Thou shalt love thy neighbor as thyself." Can we love a man *as* we love *ourselves if we do, and continue to do* unto him, what we would not wish any one to do to us? Look, too, at Christ's example, what does he say of himself, "I came *not* to be ministered unto, but to minister." Can you for a moment imagine the meek and lowly, and compassionate Saviour, *a slaveholder*? Do you not shudder at this thought as much as at that of his being *a warrior*? But why, if slavery is not sinful?

Again, it has been said, the Apostle Paul did not condemn slavery, for he sent Onesimus back to Philemon. I do not think it can be said he sent him back, for no coercion was made use of. Onesimus was not thrown into prison and then sent back in chains to his master, as your runaway slaves often are—this could not possibly have been the case, because you know Paul as a Jew, was *bound to protect* the runaway; *he had no right* to send *any* fugitive back to his master. The state of the case then seems to have been this. Onesimus had been an unprofitable servant to Philemon and left him—he afterwards became converted under the Apostle's preaching, and seeing that he had been to blame in his conduct, and desiring by future fidelity to atone for past error, he wished to return, and the Apostle gave him the letter we now have as a recommendation to Philemon, informing him of the conversion of Onesimus, and entreating him as "Paul the aged" "to receive him, *not* now as a *servant*, but *above* a servant, a *brother beloved*, especially to me, but how much more unto thee, both in the flesh and in the Lord. If thou count *me* therefore as a partner, *receive him as myself*." This, then, surely cannot be forced into a justification of the practice of returning runaway slaves back to their masters, to be punished with cruel beatings and scourgings as they often are. Besides the word *doulos* here translated servant, is the same that is made use of in Matt. xviii, 27. Now it appears that this servant *owed* his lord ten thousand talents; he possessed property to a vast amount. And what is still more surprising, if he was a *slave*, is, that "forasmuch as he had not to pay, his lord commanded *him* to be sold, and his wife and children, and all that he had, and payment to be made." Whoever heard of a slaveholder selling a *slave* and his family to pay himself a debt due to him from a *slave*? What would he gain by it when the slave is himself his *property*, and his wife and children also? Onesimus could not, then, have been a *slave*, for slaves do not own their

wives or children; no, not even their own bodies, much less property. But again, the servitude which the apostle was accustomed to, must have been very different from American slavery, for he says, "the heir (or son), as long as he is a child, differeth *nothing from a servant*, though he be lord of all. But is under *tutors* and governors until the time appointed of the father." From this it appears, that the means of *instruction* were provided for *servants* as well as children; and indeed we know it must have been so among the Jews, because their servants were not permitted to remain in perpetual bondage, and therefore it was absolutely necessary they should be prepared to occupy higher stations in society than those of servants. Is it so at the South, my friends? Is the daily bread of instruction provided for *your slaves*? are their minds enlightened, and they gradually prepared to rise from the grade of menials into that of *free*, independent members of the state? Let your own statute book, and your own daily experience, answer these questions.

If this apostle sanctioned *slavery*, why did he exhort masters thus in his epistle to the Ephesians, "and ye, masters, do the same things unto them (i.e. perform your duties to your servants as unto Christ, not unto men) *forbearing threatening*; knowing that your master also is in heaven, neither is *there respect of persons with him*." And in Colossians, "Masters give unto your servants that which is *just and equal*, knowing that ye also have a master in heaven." Let slaveholders only *obey* these injunctions of Paul, and I am satisfied slavery would soon be abolished. If he thought it sinful even to *threaten* servants, surely he must have thought it sinful to flog and to beat them with sticks and paddles; indeed, when delineating the character of a bishop, he expressly names this as one feature of it, "*no striker*." Let masters give unto their servants that which is *just and equal*, and all that vast system of unrequited labor would crumble into ruin. Yes, and if they once felt they had no right to the *labor* of their servants without pay, surely they could not think they had a right to their wives, their children, and their own bodies. Again, how can it be said Paul sanctioned slavery, when, as though to put this matter beyond all doubt, in that black catalogue of sins enumerated in his first epistle to Timothy, he mentions "*menstealers*," which word may be translated "*slavedealers*." But you may say, we all despise slavedealers as much as any one can; they are never admitted into genteel or respectable society. And why not? Is it not because even you

shrink back from the idea of associating with those who make their fortunes by trading in the bodies and souls of men, women, and children? whose daily work it is to break human hearts, by tearing wives from their husbands, and children from their parents? But why hold slavedealers as despicable, if their trade is lawful and virtuous? and why despise them more than the *gentlemen of fortune and standing* who employ them as *their* agents? Why more than the *professors of religion* who barter their fellow-professors to them for gold and silver? We do not despise the land agent, or the physician, or the merchant, and why? Simply because their processions are virtuous and honorable; and if the trade of men-jobbers was honorable, you would not despise them either. There is no difference in *principle*, in *Christian ethics*, between the despised slavedealer and the *Christian* who buys slaves from, or sells slaves to him; indeed, if slaves were not wanted by the respectable, the wealthy, and the religious in a community, there would be no slaves in that community, and of course no *slavedealers*. It is then the *Christians* and the *honorable men and women* of the South, who are the *main pillars* of this grand temple built to Mammon and to Moloch. It is the *most enlightened*, in every country who are *most* to blame when any public sin is supported by public opinion, hence Isaiah says, "*When the Lord hath performed his whole work upon mount Zion and on Jerusalem, (then) I will punish the fruit of the stout heart of the king of Assyria, and the glory of his high looks.*" And was it not so? Open the historical records of that age, was not Israel carried into captivity B.C. 721, Judah B.C. 588, and the stout heart of the heathen monarchy not punished until B.C. 536, fifty-two years *after* Judah's, and 185 years, *after* Israel's captivity, when it was overthrown by Cyrus, king of Persia? Hence, too, the apostle Peter says, "judgment must *begin at the house of God.*" Surely this would not be the case, if the *professors of religion* were not *most worthy* of blame.

But it may be asked, why are *they* most culpable? I will tell you, my friends. It is because sin is imputed to us just in proportion to the spiritual light we receive. Thus the prophet Amos says, in the name of Jehovah, "*You only* have I known of all the families of the earth: *therefore* I will punish *you* for all your iniquities." Hear too the doctrine of our Lord on this important subject: "The servant who *knew* his Lord's will and *prepared not* himself, neither did according to his will, shall be beaten with *many stripes:*" and why? "For unto whomsoever *much* is given, *of him* shall *much*

be required; and to whom men have committed *much*, of *him* they will ask the *more*." Oh! then that the *Christians* of the south would ponder these things in their hearts, and awake to the vast responsibilities which rest *upon them* at this important crisis.

I have thus, I think, clearly proved to you seven propositions, viz.: First, that slavery is contrary to the declaration of our independence. Second, that it is contrary to the first charter of human rights given to Adam, and renewed to Noah. Third, that the fact of slavery having been the subject of prophecy, furnishes *no* excuse whatever to slaveholders. Fourth, that no such system existed under the patriarchal dispensation. Fifth, that *slavery never* existed under the Jewish dispensation; but so far otherwise, that every servant was placed under the *protection of law*, and care taken not only to prevent all *involuntary* servitude, but all *voluntary perpetual* bondage. Sixth, that slavery in America reduces a *man* to a *thing*, a "chattel personal," *robs him* of *all* his rights as a *human being*, fetters both his mind and body, and protects the *master* in the most unnatural and unreasonable power, whilst it *throws him out* of the protection of law. Seventh, that slavery is contrary to the example and precepts of our holy and merciful Redeemer, and of his apostles.

But perhaps you will be ready to query, why appeal to *women* on this subject? We do not make the laws which perpetuate slavery. No legislative power is vested in *us*; we can do nothing to overthrow the system, even if we wished to do so. To this I reply, I know you do not make the laws, but I also know that *you are the wives and mothers, the sisters and daughters of those who do*; and if you really suppose *you* can do nothing to overthrow slavery, you are greatly mistaken. You can do much in every way: four things I will name. 1st. You can read on this subject. 2d. You can pray over this subject. 3d. You can speak on this subject. 4th. You can act on this subject. I have not placed reading before praying because I regard it more important, but because, in order to pray right, we must understand what we are praying for; it is only then we can "pray with the understanding and the spirit also."

1. Read then on the subject of slavery. Search the Scriptures daily, whether the things I have told you are true. Other books and papers might be a great

help to you in this investigation, but they are not necessary, and it is hardly probable that your Committees of Vigilance will allow you to have any other. The *Bible* then is the book I want you to read in the spirit of inquiry, and the spirit of prayer. Even the enemies of Abolitionists, acknowledge that their doctrines are drawn from it. In the great mob in Boston, last autumn, when the books and papers of the Anti-Slavery Society, were thrown out of the windows of their office, one individual laid hold of the Bible and was about tossing it out to the crowd, when another reminded him that it was the Bible he had in his hand. "*Oh! 'tis all one,*" he replied, and out went the sacred volume, along with the rest. We thank him for the acknowledgment. Yes, "*it is all one,*" for our books and papers are mostly commentaries on the Bible, and the Declaration. Read the *Bible* then; it contains the words of Jesus, and they are spirit and life. Judge for yourselves whether *he sanctioned* such a system of oppression and crime.

2. Pray over this subject. When you have entered into your closets, and shut to the doors, then pray to your father, who seeth in secret, that he would open your eyes to see whether slavery is *sinful*, and if it is, that he would enable you to bear a faithful, open and unshrinking testimony against it, and to do whatsoever your hands find to do, leaving the consequences entirely to him, who still says to us whenever we try to reason away duty from the fear of consequences, "*What is that to thee, follow thou me.*" Pray also for the poor slave, that he may be kept patient and submissive under his hard lot, until God is pleased to open the door of freedom to him without violence or bloodshed. Pray too for the master that his heart may be softened, and he made willing to acknowledge, as Joseph's brethren did, "Verily we are guilty concerning our brother," before he will be compelled to add in consequence of Divine judgment, "therefore is all this evil come upon us." Pray also for all your brethren and sisters who are laboring in the righteous cause of Emancipation in the Northern States, England and the world. There is great encouragement for prayer in these words of our Lord. "Whatsoever ye shall ask the Father in any name, he will give it to you"—Pray then without ceasing, in the closet and the social circle.

3. Speak on this subject. It is through the tongue, the pen, and the press, that truth is principally propagated. Speak then to your relatives, your friends, your acquaintances on the subject of slavery; be not afraid if you are

conscientiously convinced it is *sinful*, to say so openly, but calmly, and to let your sentiments be known. If you are served by the slaves of others, try to ameliorate their condition as much as possible; never aggravate their faults, and thus add fuel to the fire of anger already kindled, in a master and mistress's bosom; remember their extreme ignorance, and consider them as your Heavenly Father does the *less* culpable on this account, even when they do wrong things. Discountenance *all* cruelty to them, all starvation, all corporal chastisement; these may brutalize and *break* their spirits, but will never bend them to willing, cheerful obedience. If possible, see that they are comfortably and *seasonably* fed, whether in the house or the field; it is unreasonable and cruel to expect slaves to wait for their breakfast until eleven o'clock, when they rise at five or six. Do all you can, to induce their owners to clothe them well, and to allow them many little indulgences which would contribute to their comfort. Above all, try to persuade your husband, father, brothers and sons, that *slavery is a crime against God and man*, and that it is a great sin to keep *human beings* in such abject ignorance; to deny them the privilege of learning to read and write. The Catholics are universally condemned, for denying the Bible to the common people, but, *slaveholders must not* blame them, for *they* are doing the *very same thing*, and for the very same reason, neither of these systems can bear the light which bursts from the pages of that Holy Book. And lastly, endeavour to inculcate submission on the part of the slaves, but whilst doing this be faithful in pleading the cause of the oppressed.

"Will *you* behold unheeding,
Life's holiest feelings crushed,
Where *woman's* heart is bleeding,
Shall *woman's* voice be hushed?"

4. Act on this subject. Some of you *own* slaves yourselves. If you believe slavery is *sinful*, set them at liberty, "undo the heavy burdens and let the oppressed go free." If they wish to remain with you, pay them wages, if not, let them leave you. Should they remain, teach them, and have them taught the common branches of an English education; they have minds, and those minds *ought to be improved*. So precious a talent as intellect, never was given to be wrapt in a napkin and buried in the earth. It is the *duty* of all, as

far as they can, to improve their own mental faculties, because we are commanded to love God with *all our minds*, as well as with all our hearts, and we commit a great sin, if we *forbid or prevent* that cultivation of the mind in others, which would enable them to perform this duty. Teach your servants, then, to read, &c., and encourage them to believe it is their *duty* to learn, if it were only that they might read the Bible.

But some of you will say, we can neither free our slaves nor teach them to read, for the laws of our state forbid it. Be not surprised when I say such wicked laws *ought to be no barrier* in the way of your duty, and I appeal to the Bible to prove this position. What was the conduct of Shiprah and Puah, when the king of Egypt issued his cruel mandate, with regard to the Hebrew children? "*They feared God, and did not as the King of Egypt commanded them, but saved the men children alive.*" And be it remembered, that it was through *their* faithfulness that Moses was preserved. This great and immediate emancipator was indebted to a *woman* for his spared life, and he became a blessing to the whole Jewish nation. Did these *women* do right in disobeying that monarch? "*Therefore (says the sacred text,) God dealt well with them, and made them houses*" Ex. i. What was the conduct of Shadrach, Meshach, and Abednego, when Nebuchadnezzar set up a golden image in the plain of Dura, and commanded all people, nations, and languages, to fall down and worship it? "Be it known, unto thee, (said these faithful *Jews*) O king, that *we will not serve thy gods, nor worship the image which thou hast set up.*" Did these men *do right in disobeying the law* of their sovereign? Let their miraculous deliverance from the burning fiery furnace, answer; Dan. iii. What was the conduct of Daniel, when Darius made a firm decree that no one should ask a petition of any man or God for thirty days? Did the prophet cease to pray? No! "When Daniel *knew that the writing was signed*, he went into his house, and his windows being *open* towards Jerusalem, he kneeled upon his knees three times a day, and prayed and gave thanks before his God, as he did aforetime." Did Daniel do right thus to *break* the law of his king? Let his wonderful deliverance out of the mouths of the lions answer; Dan. vii. Look, too, at the Apostles Peter and John. When the rulers of the Jews, "*commanded them not to speak at all, nor teach in the name of Jesus,*" what did they say? "Whether it be right in the sight of God, to hearken unto you more than unto God, judge ye." And what did they do? "They spake the word of God with

boldness, and with great power gave the Apostles witness of the *resurrection* of the Lord Jesus;" although *this* was the very doctrine, for the preaching of which, they had just been cast into prison, and further threatened. Did these men do right? I leave *you* to answer, who now enjoy the benefits of their labors and sufferings, in that Gospel they dared to preach when positively commanded *not to teach any more* in the name of Jesus; Acts iv.

But some of you may say, if we do free our slaves, they will be taken up and sold, therefore there will be no use in doing it. Peter and John might just as well have said, we will not preach the gospel, for if we do, we shall be taken up and put in prison, therefore there will be no use in our preaching. *Consequences*, my friends, belong no more to *you*, than they did to these apostles. Duty is ours and events are God's. If you think slavery is sinful, all *you* have to do is to set your slaves at liberty, do all you can to protect them, and in humble faith and fervent prayer, commend them to your common Father. He can take care of them; but if for wise purposes he sees fit to allow them to be sold, this will afford you an opportunity of testifying openly, wherever you go, against the crime of *manstealing*. Such an act will be *clear robbery*, and if exposed, might, under the Divine direction, do the cause of Emancipation more good, than any thing that could happen, for, "He makes even the wrath of man to praise him, and the remainder of wrath he will restrain."

I know that this doctrine of obeying *God*, rather than man, will be considered as dangerous, and heretical by many, but I am not afraid openly to avow it, because it is the doctrine of the Bible; but I would not be understood to advocate resistance to any law however oppressive, if, in obeying it, I was not obliged to commit *sin*. If for instance, there was a law, which imposed imprisonment or a fine upon me if I manumitted a slave, I would on no account resist that law, I would set the slave free, and then go to prison or suffer the penalty. If a law commands me to *sin* I will break it; if it calls me to *suffer*, I will let it take its course *unresistingly*. The doctrine of blind obedience and unqualified submission to *any human* power, whether civil or ecclesiastical, is the doctrine of despotism, and ought to have no place among Republicans and Christians.

But you will perhaps say, such a course of conduct would inevitably expose us to great suffering. Yes! my christian friends, I believe it would, but this will *not* excuse you or any one else for the neglect of *duty*. If Prophets and Apostles, Martyrs, and Reformers had not been willing to suffer for the truth's sake, where would the world have been now? If they had said, we cannot speak the truth, we cannot do what we believe is right, because the *laws of our country or public opinion are against us*, where would our holy religion have been now? The Prophets were stoned, imprisoned, and killed by the Jews. And why? Because they exposed and openly rebuked public sins; they opposed public opinion; had they held their peace, they all might have lived in ease and died in favor with a wicked generation. Why were the Apostles persecuted from city to city, stoned, incarcerated, beaten, and crucified? Because they dared to *speak the truth*; to tell the Jews, boldly and fearlessly, that *they* were the *murderers* of the Lord of Glory, and that, however great a stumbling-block the Cross might be to them, there was no other name given under heaven by which men could be saved, but the name of Jesus. Because they declared, even at Athens, the seat of learning and refinement, the self-evident truth, that "they be no gods that are made with men's hands", and exposed to the Grecians the foolishness of worldly wisdom, and the impossibility of salvation but through Christ, whom they despised on account of the ignominious death he died. Because at Rome, the proud mistress of the world, they thundered out the terrors of the law upon that idolatrous, war-making, and slave-holding community. Why were the martyrs stretched upon the rack, gibbeted and burnt, the scorn and diversion of a Nero, whilst their tarred and burning bodies sent up a light which illuminated the Roman capital? Why were the Waldenses hunted like wild beasts upon the mountains of Piedmont, and slain with the sword of the Duke of Savoy and the proud monarch of France? Why were the Presbyterians chased like the partridge over the highlands of Scotland—the Methodists pumped, and stoned, and pelted with rotten eggs—the Quakers incarcerated in filthy prisons, beaten, whipped at the cart's tail, banished and hung? Because they dared to *speak the truth*, to *break* the unrighteous *laws* of their country, and chose rather to suffer affliction with the people of God, "not accepting deliverance," even under the gallows. Why were Luther and Calvin persecuted and excommunicated, Cranmer, Ridley, and Latimer burnt? Because they fearlessly proclaimed the truth, though that truth was contrary to public opinion, and the authority of Ecclesiastical

councils and conventions. Now all this vast amount of human suffering might have been saved. All these Prophets and Apostles, Martyrs, and Reformers, might have lived and died in peace with all men, but following the example of their great pattern, "they despised the shame, endured the cross, and are now set down on the right hand of the throne of God," having received the glorious welcome of "*well done* good and faithful servants, enter ye into the joy of your Lord."

But you may say we are *women*, how can *our* hearts endure persecution? And why not? Have not *women* arisen in all the dignity and strength of moral courage to be the leaders of the people, and to bear a faithful testimony for the truth whenever the providence of God has called them to do so? Are there no *women* in that noble army of martyrs who are now singing the song of Moses and the Lamb? Who led out the women of Israel from the house of bondage, striking the timbrel, and singing the song of deliverance on the banks of that sea whose waters stood up like walls of crystal to open a passage for their escape? It was a *woman*; Miriam, the prophetess, the sister of Moses and Aaron. Who went up with Barak to Kadesh to fight against Jabin, King of Canaan, into whose hand Israel had been sold because of their iniquities? It was a *woman*! Deborah the wife of Lapidoth, the judge, as well as the prophetess of that backsliding people; Judges iv, 9. Into whose hands was Sisera, the captain of Jabin's host delivered? Into the hand of a *woman*. Jael the wife of Heber! Judges vi, 21. Who dared to *speak the truth* concerning those judgments which were coming upon Judea, when Josiah, alarmed at finding that his people "had not kept the word of the Lord to do after all that was written in the book of the Law," sent to enquire of the Lord concerning these things? It was a *woman*. Huldah the prophetess, the wife of Shallum; 2, Chron. xxxiv, 22. Who was chosen to deliver the whole Jewish nation from that murderous decree of Persia's King, which wicked Haman had obtained by calumny and fraud? It was a *woman*; Esther the Queen; yes, weak and trembling *woman* was the instrument appointed by God, to reverse the bloody mandate of the eastern monarch, and save the *whole visible church* from destruction. What human voice first proclaimed to Mary that she should be the mother of our Lord? It was a *woman*! Elizabeth, the wife of Zacharias; Luke i, 42, 43. Who united with the good old Simeon in giving thanks publicly in the temple, when the child, Jesus, was presented there by his parents, "and

spake of him to all them that looked for redemption in Jerusalem?" It was a *woman*! Anna the prophetess. Who first proclaimed Christ as the true Messiah in the streets of Samaria, once the capital of the ten tribes? It was a *woman*! Who ministered to the Son of God whilst on earth, a despised and persecuted Reformer, in the humble garb of a carpenter? They were *women*! Who followed the rejected King of Israel, as his fainting footsteps trod the road to Calvary? "A great company of people and of *women*;" and it is remarkable that to *them alone*, he turned and addressed the pathetic language, "Daughters of Jerusalem weep not for me, but weep for yourselves and your children." Ah! who sent unto the Roman Governor when he was set down on the judgment seat, saying unto him, "Have thou nothing to do with that just man, for I have suffered many things this day in a dream because of him?" It was a *woman*! the wife of Pilate. Although "*he* knew that for envy the Jews had delivered Christ," yet *he* consented to surrender the Son of God into the hands of a brutal soldiery, after having himself scourged his naked body. Had the *wife* of Pilate sat upon that judgment seat, what would have been the result of the trial of this "just person?"

And who last hung round the cross of Jesus on the mountain of Golgotha? Who first visited the sepulchre early in the morning on the first day of the week, carrying sweet spices to embalm his precious body, not knowing that it was incorruptible and could not be holden by the bands of death? These were *women*! To whom did he *first* appear after his resurrection? It was to a *woman*! Mary Magdalene; Mark xvi, 9. Who gathered with the apostles to wait at Jerusalem, in prayer and supplication, for "the promise of the Father;" the spiritual blessing of the Great High Priest of his Church, who had entered, *not* into the splendid temple of Solomon, there to offer the blood of bulls, and of goats, and the smoking censer upon the golden altar, but into Heaven itself, there to present his intercessions, after having "given himself for us, an offering and a sacrifice to God for a sweet smelling savor?" *Women* were among that holy company; Acts i, 14. And did *women* wait in vain? Did those who had ministered to his necessities, followed in his train, and wept at his crucifixion, wait in vain? No! No! Did the cloven tongues of fire descend upon the heads of *women* as well as men? Yes, my friends, "it sat upon *each one of them*;" Acts ii, 3. *Women* as well as men were to be living stones in the temple of grace, and therefore *their* heads

were consecrated by the descent of the Holy Ghost as well as those of men. Were *women* recognized as fellow laborers in the gospel field? They were! Paul says in his epistle to the Philippians, "help those *women* who labored with me, in the gospel;" Phil. iv, 3.

But this is not all. Roman *women* were burnt at the stake, *their* delicate limbs were torn joint from joint by the ferocious beasts of the Ampitheatre, and tossed by the wild bull in his fury, for the diversion of that idolatrous, warlike, and slaveholding people. Yes, *women* suffered under the ten persecutions of heathen Rome, with the most unshrinking constancy and fortitude; not all the entreaties of friends, nor the claims of new born infancy, nor the cruel threats of enemies could make *them* sprinkle one grain of incense upon the altars of Roman idols. Come now with me to the beautiful valleys of Piedmont. Whose blood stains the green sward, and decks the wild flowers with colors not their own, and smokes on the sword of persecuting France? It is *woman's*, as well as man's? Yes, *women* were accounted as sheep for the slaughter, and were cut down as the tender saplings of the wood.

But time would fail me, to tell of all those hundreds and thousands of *women*, who perished in the Low countries of Holland, when Alva's sword of vengeance was unsheathed against the Protestants, when the Catholic Inquisitions of Europe became the merciless executioners of vindictive wrath, upon those who dared to worship God, instead of bowing down in unholy adoration before "my Lord God the *Pope*," and when England, too, burnt her Ann Ascoes at the stake of martyrdom. Suffice it to say, that the Church, after having been driven from Judea to Rome, and from Rome to Piedmont, and from Piedmont to England, and from England to Holland, at last stretched her fainting wings over the dark bosom of the Atlantic, and found on the shores of a great wilderness, a refuge from tyranny and oppression—as she thought, but *even here*, (the warm blush of shame mantles my cheek as I write it,) *even here*, *woman* was beaten and banished, imprisoned, and hung upon the gallows, a trophy to the Cross. And what, I would ask in conclusion, have *women* done for the great and glorious cause of Emancipation? Who wrote that pamphlet which moved the heart of Wilberforce to pray over the wrongs, and his tongue to plead the cause of the oppressed African? It was a *woman*, Elizabeth Heyrick. Who labored

assiduously to keep the sufferings of the slave continually before the British public? They were *women*. And how did they do it? By their needles, paint brushes and pens, by speaking the truth, and petitioning Parliament for the abolition of slavery. And what was the effect of their labors? Read it in the Emancipation bill of Great Britain. Read it, in the present state of her West India Colonies. Read it, in the impulse which has been given to the cause of freedom, in the United States of America. Have English women then done so much for the negro, and shall American women do nothing? Oh no! Already are there sixty female Anti-Slavery Societies in operation. These are doing just what the English women did, telling the story of the colored man's wrongs, praying for his deliverance, and presenting his kneeling image constantly before the public eye on bags and needle-books, card-racks, pen-wipers, pin-cushions, &c. Even the children of the north are inscribing on their handy work, "May the points of our needles prick the slaveholder's conscience." Some of the reports of these Societies exhibit not only considerable talent, but a deep sense of religious duty, and a determination to persevere through evil as well as good report, until every scourge, and every shackle, is buried under the feet of the manumitted slave.

The Ladies' Anti-Slavery Society of Boston was called last fall, to a severe trial of their faith and constancy. They were mobbed by "the gentlemen of property and standing," in that city at their anniversary meeting, and their lives were jeopardized by an infuriated crowd; but their conduct on that occasion did credit to our sex, and affords a full assurance that they will *never* abandon the cause of the slave. The pamphlet, *Right and Wrong in Boston*, issued by them in which a particular account is given of that "mob of broad cloth in broad day," does equal credit to the head and the heart of her who wrote it. I wish my Southern sisters could read it; they would then understand that the women of the North have engaged in this work from a sense of *religious duty*, and that nothing will ever induce them to take their hands from it until it is fully accomplished. They feel no hostility to you, no bitterness or wrath; they rather sympathize in your trials and difficulties; but they well know that the first thing to be done to help you, is to pour in the light of truth on your minds, to urge you to reflect on, and pray over the subject. This is all *they* can do for you, *you* must work out your own deliverance with fear and trembling, and with the direction and blessing of

God, *you can do it*. Northern women may labor to produce a correct public opinion at the North, but if Southern women sit down in listless indifference and criminal idleness, public opinion cannot be rectified and purified at the South. It is manifest to every reflecting mind, that slavery must be abolished; the era in which we live, and the light which is overspreading the whole world on this subject, clearly show that the time cannot be distant when it will be done. Now there are only two ways in which it can be effected, by moral power or physical force, and it is for *you* to choose which of these you prefer. Slavery always has, and always will produce insurrections wherever it exists, because it is a violation of the natural order of things, and no human power can much longer perpetuate it. The opposers of abolitionists fully believe this; one of them remarked to me not long since, there is no doubt there will be a most terrible overturning at the South in a few years, such cruelty and wrong, must be visited with Divine vengeance soon. Abolitionists believe, too, that this must inevitably be the case if you do not repent, and they are not willing to leave you to perish without entreating you, to save yourselves from destruction; well may they say with the apostle, "am I then your enemy because I tell you the truth," and warn you to flee from impending judgments.

But why, my dear friends, have I thus been endeavoring to lead you through the history of more than three thousand years, and to point you to that great cloud of witnesses who have gone before, "from works to rewards?" Have I been seeking to magnify the sufferings, and exalt the character of woman, that she "might have praise of men?" No! no! my object has been to arouse *you*, as the wives and mothers, the daughters and sisters, of the South, to a sense of your duty as *women*, and as Christian women, on that great subject, which has already shaken our country, from the St. Lawrence and the lakes, to the Gulf of Mexico, and from the Mississippi to the shores of the Atlantic; *and will continue mightily to shake it*, until the polluted temple of slavery fall and crumble into ruin. I would say unto each one of you, "what meanest thou, O sleeper! arise and call upon thy God, if so be that God will think upon us that we perish not." Perceive you not that dark cloud of vengeance which hangs over our boasting Republic? Saw you not the lightnings of Heaven's wrath, in the flame which leaped from the Indian's torch to the roof of yonder dwelling, and lighted with its horrid glare the darkness of midnight? Heard you not the thunders of Divine anger, as the

distant roar of the cannon came rolling onward, from the Texian country, where Protestant American Rebels are fighting with Mexican Republicans—for what? For the re-establishment of *slavery*; yes! of American slavery in the bosom of a Catholic Republic, where that system of robbery, violence, and wrong, had been legally abolished for twelve years. Yes! citizens of the United States, after plundering Mexico of her land, are now engaged in deadly conflict, for the privilege of fastening chains, and collars, and manacles—upon whom? upon the subjects of some foreign prince? No! upon native born American Republican citizens, although the fathers of these very men declared to the whole world, while struggling to free themselves from the three penny taxes of an English king, that they believed it to be a *self-evident* truth that *all men* were created equal, and had an *unalienable right to liberty*.

Well may the poet exclaim in bitter sarcasm,

"The fustian flag that proudly waves
In solemn mockery o'er *a land of slaves*."

Can you not, my friends, understand the signs of the times; do you not see the sword of retributive justice hanging over the South, or are you still slumbering at your posts?—Are there no Shiphrahs, no Puahs among you, who will dare in Christian firmness and Christian meekness, to refuse to obey the *wicked laws* which require *woman to enslave, to degrade and to brutalize woman*? Are there no Miriams, who would rejoice to lead out the captive daughters of the Southern States to liberty and light? Are there no Huldahs there who will dare to *speak the truth* concerning the sins of the people and those judgments, which it requires no prophet's eye to see, must follow if repentance is not speedily sought? Is there no Esther among you who will plead for the poor devoted slave? Read the history of this Persian queen, it is full of instruction; she at first refused to plead for the Jews; but, hear the words of Mordecai, "Think not within thyself, that *thou* shalt escape in the king's house more than all the Jews, for *if thou altogether holdest thy peace at this time*, then shall there enlargement and deliverance arise to the Jews from another place: but *thou and thy father's house shall be destroyed*." Listen, too, to her magnanimous reply to this powerful

appeal; "*I will* go in unto the king, which is *not* according to law, and if I perish, I perish." Yes! if there were but *one* Esther at the South, she *might* save her country from ruin; but let the Christian women there arise, as the Christian women of Great Britain did, in the majesty of moral power, and that salvation is certain. Let them embody themselves in societies, and send petitions up to their different legislatures, entreating their husbands, fathers, brothers and sons, to abolish the institution of slavery; no longer to subject *woman* to the scourge and the chain, to mental darkness and moral degradation; no longer to tear husbands from their wives, and children from their parents; no longer to make men, women, and children, work *without wages*; no longer to make their lives bitter in hard bondage; no longer to reduce *American citizens* to the abject condition of *slaves*, of "*chattels personal*;" no longer to barter the *image of God* in human shambles for corruptible things such as silver and gold.

The *women of the South* can overthrow this horrible system of oppression and cruelty, licentiousness and wrong. Such appeals to your legislatures would be irresistible, for there is something in the heart of man which *will bend under moral suasion*. There is a swift witness for truth in his bosom, which *will respond to truth* when it is uttered with calmness and dignity. If you could obtain but six signatures to such a petition in only one state, I would say, send up that petition, and be not in the least discouraged by the scoffs and jeers of the heartless, or the resolution of the house to lay it on the table. It will be a great thing if the subject can be introduced into your legislatures in any way, even by *women*, and *they* will be the most likely to introduce it there in the best possible manner, as a matter of *morals* and *religion*, not of expediency or politics. You may petition, too, the different ecclesiastical bodies of the slave states. Slavery must be attacked with the whole power of truth and the sword of the spirit. You must take it up on *Christian* ground, and fight against it with Christian weapons, whilst your feet are shod with the preparation of the gospel of peace. And *you are now* loudly called upon by the cries of the widow and the orphan, to arise and gird yourselves for this great moral conflict "*with the whole armour of righteousness on the right hand and on the left.*"

There is every encouragement for you to labor and pray, my friends, because the abolition of slavery as well as its existence, has been the theme

of prophecy. "Ethiopia (says the Psalmist) shall stretch forth her hands unto God." And is she not now doing so? Are not the Christian negroes of the south lifting their hands in prayer for deliverance, just as the Israelites did when their redemption was drawing nigh? Are they not sighing and crying by reason of the hard bondage? And think you, that He, of whom it was said, "and God heard their groaning, and their cry came up unto him by reason of the hard bondage," think you that his ear is heavy that he cannot *now* hear the cries of his suffering children? Or that He who raised up a Moses, an Aaron, and a Miriam, to bring them up out of the land of Egypt from the house of bondage, cannot now, with a high hand and a stretched out arm, rid the poor negroes out of the hands of their masters? Surely you believe that his arm is *not* shortened that he cannot save. And would not such a work of mercy redound to his glory? But another string of the harp of prophecy vibrates to the song of deliverance: "But they shall sit every man under his vine, and under his fig-tree, and *none shall make them afraid*; for the mouth of the Lord of Hosts hath spoken it." The *slave* never can do this as long as he is a *slave*; whilst he is a "chattel personal" he can own *no* property; but the time *is to come* when *every* man is to sit under *his own* vine and *his own* fig-tree, and no domineering driver, or irresponsible master, or irascible mistress, shall make him afraid of the chain or the whip. Hear, too, the sweet tones of another string: "Many shall run to and fro, and *knowledge* shall be increased." Slavery is an insurmountable barrier to the increase of knowledge in every community where it exists; *slavery, then, must be abolished before* this prediction can be fulfilled. The last chord I shall touch, will be this, "They shall *not* hurt nor destroy in all my holy mountain."

Slavery, then, must be overthrown before the prophecies can be accomplished, but how are they to be fulfilled? Will the wheels of the millennial car be rolled onward by miraculous power? No! God designs to confer this holy privilege upon *woman*; it is through *their* instrumentality that the great and glorious work of reforming the world is to be done. And see you not how the mighty engine of *moral power* is dragging in its rear the Bible and peace societies, anti-slavery and temperance, sabbath schools, moral reform, and missions? or to adopt another figure, do not these seven philanthropic associations compose the beautiful tints in that bow of promise which spans the arch of our moral heaven? Who does not believe,

that if these societies were broken up, their constitutions burnt, and the vast machinery with which they are laboring to regenerate mankind was stopped, that the black clouds of vengeance would soon, burst over our world, and every city would witness the fate of the devoted cities of the plain? Each one of these societies is walking abroad through the earth scattering the seeds of truth over the wide field of our world, not with the hundred hands of a Briareus, but with a hundred thousand.

Another encouragement for you to labor, my friends, is, that you will have the prayers and co-operation of English and Northern philanthropists. You will never bend your knees in supplication at the throne of grace for the overthrow of slavery, without meeting there the spirits of other Christians, who will mingle their voices with yours, as the morning or evening sacrifice ascends to God. Yes, the spirit of prayer and of supplication has been poured out upon many, many hearts; there are wrestling Jacobs who will not let go of the prophetic promises of deliverance for the captive, and the opening, of prison doors to them that are bound. There are Pauls who are saying, in reference to this subject, "Lord, what wilt thou have me to do?" There are Marys sitting in the house now, who are ready to arise and go forth in this work as soon as the message is brought, "the master is come and calleth for thee." And there are Marthas, too, who have already gone out to meet Jesus, as he bends his footsteps to their brother's grave, and weeps, *not* over the lifeless body of Lazarus bound hand and foot in grave-clothes, but over the politically and intellectually lifeless slave, bound hand and foot in the iron chains of oppression and ignorance. Some may be ready to say, as Martha did, who seemed to expect nothing but sympathy from Jesus, "Lord, by this time he stinketh, for he hath been dead four days." She thought it useless to remove the stone and expose the loathsome body of her brother; she could not believe that so great a miracle could be wrought, as to raise *that putrified body* into life; but "Jesus said, take ye away the stone;" and when *they* had taken away the stone where the dead was laid, and uncovered the body of Lazarus, then it was that "Jesus lifted up his eyes and said, Father, I thank thee that thou hast heard me," &c. "And when he had thus spoken, he cried with a loud voice, Lazarus, come forth." Yes, some may be ready to say of the colored race, how can *they* ever be raised politically and intellectually, they have been dead four hundred years? But *we* have *nothing* to do with *how* this is to be done; *our business* is to take

away the stone which has covered up the dead body of our brother, to expose the putrid carcass, to show *how* that body has been bound with the grave-clothes of heathen ignorance, and his face with the napkin of prejudice, and having done all it was our duty to do, to stand by the negro's grave, in humble faith and holy hope, waiting to hear the life-giving command of "Lazarus, come forth." This is just what Anti-Slavery Societies are doing; they are taking away the stone from the mouth of the tomb of slavery, where lies the putrid carcass of our brother. They want the pure light of heaven to shine into that dark and gloomy cave; they want all men to see *how* that dead body has been bound, *how* that face has been wrapped in the *napkin of prejudice*; and shall they wait beside that grave in vain? Is not Jesus still the resurrection and the life? Did He come to proclaim liberty to the captive, and the opening of prison doors to them that are bound, in vain? Did He promise to give beauty for ashes, the oil of joy for mourning, and the garment of praise for the spirit of heaviness unto them that mourn in Zion, and will He refuse to beautify the mind, anoint the head, and throw around the captive negro the mantle of praise for that spirit of heaviness which has so long bowed him down to the ground? Or shall we not rather say with the prophet, "the zeal of the Lord of Hosts *will* perform this?" Yes, his promises are sure, and amen in Christ Jesus, that he will assemble her that halteth, and gather her that is driven out, and her that is afflicted.

But I will now say a few words on the subject of Abolitionism. Doubtless you have all heard Anti-Slavery Societies denounced as insurrectionary and mischievous, fanatical and dangerous. It has been said they publish the most abominable untruths, and that they are endeavoring to excite rebellions at the South. Have you believed these reports, my friends? have *you* also been deceived by these false assertions? Listen to me, then, whilst I endeavor to wipe from the fair character of Abolitionism such unfounded accusations. You know that *I* am a Southerner: you know that my dearest relatives are now in a slave State. Can you for a moment believe I would prove so recreant to the feelings of a daughter and a sister, as to join a society which seeking to overthrow slavery by falsehood, bloodshed and murder? I appeal to you who have known and loved me in days that are passed, can *you* believe it? No! my friends. As a Carolinian, I was peculiarly jealous of any movements on this subject; and before I would join an Anti-Slavery Society, I took the precaution of becoming acquainted with some of the

leading Abolitionists, of reading their publications and attending their meetings, at which I heard addresses both from colored and white men; and it was not until I was fully convinced that their principles were *entirely pacific*, and their efforts *only moral*, that I gave my name as a member to the Female Anti-Slavery Society of Philadelphia. Since that time, I have regularly taken the Liberator, and read many Anti-Slavery pamphlets and papers and books, and can assure you I *never* have seen a single insurrectionary paragraph, and never read any account of cruelty which I could not believe. Southerners may deny the truth of these accounts, but why do they not *prove* them to be false. Their violent expressions of horror at such accounts being believed, *may* deceive some, but they cannot deceive *me*, for I lived too long in the midst of slavery, not to know what slavery is. Such declarations remind me of an assertion made by a Catholic priest, who said that his Church had never persecuted Protestants for their religion, when it is well known that the pages of history are black with the crimes of the Inquisition. Oh! if the slaves of the South could only write a book, it would vie, I have no doubt, with the horrible details of Catholic cruelty. When *I* speak of this system, "I speak that I do know," and I am not afraid to assert, that Anti-Slavery publications have *not* overdrawn the monstrous features of slavery at all. And many a Southerner *knows* this as well as I do. A lady in North Carolina remarked to a friend of mine, about eighteen months since, "Northerners know nothing at all about slavery; they think it is perpetual bondage only; but of the *depth of degradation* that word involves, they have no conception; if they had, *they would never cease* their efforts until so *horrible* a system was overthrown." She did not, know how faithfully some Northern men and Northern women had studied this subject; how diligently they had searched out the cause of "him who had none to help him," and how fearlessly they had told the story of the negro's wrongs. Yes, Northerners know *every* thing about slavery now. This monster of iniquity has been unveiled to the world, his frightful features unmasked, and soon, very soon, will he be regarded with no more complacency by the American republic than is the idol of Juggernaut, rolling its bloody wheels over the crushed bodies of its prostrate victims.

But you will probably ask, if Anti-Slavery societies are not insurrectionary, why do Northerners tell us they are! Why, I would ask you in return, did Northern senators and Northern representatives give their votes, at the last

sitting of congress, to the admission of Arkansas Territory as a slave state? Take those men, one by one, and ask them in their parlours, do you *approve of slavery*? ask them on *Northern* ground, where they will speak the truth, and I doubt not *every man* of them will tell you, *no*! Why then, I ask, did *they* give their votes to enlarge the mouth of that grave which has already destroyed its tens of thousands! All our enemies tell *us* they are as much anti slavery as we are. Yes, my friends, thousands who are helping you to bind the fetters of slavery on the negro, despise you in their hearts for doing it; they rejoice that such an institution has not been entailed upon them. Why then, I would ask, do *they* lend you their help? I will tell you, "they love *the praise of men* more than the praise of God." The Abolition cause has not yet become so popular as to induce them to believe, that by advocating it in congress, they shall sit still more securely in their seats there, and like the *chief rulers* in the days of our Saviour, though *many* believed on him, yet they did *not* confess him, lest they should *be put out of the synagogue*; John xii, 42, 43. Or perhaps like Pilate, thinking they could prevail nothing, and fearing a tumult, they determined to release Barabbas and surrender the just man, the poor innocent slave to be stripped of his rights and scourged. In vain will such men try to wash their hands, and say, with the Roman governor, "I am innocent of the blood of this just person." Northern American statesmen are no more innocent of the crime of slavery, than Pilate was of the murder of Jesus, or Saul of that of Stephen. These are high charges, but I appeal to *their hearts*; I appeal to public opinion ten years from now. Slavery then is a national sin.

But you will say, a great many other Northerners tell us so, who can have no political motives. The interests of the North, you must know, my friends, are very closely combined with those of the South. The Northern merchants and manufacturers are making *their* fortunes out of the *produce of slave labor*; the grocer is selling your rice and sugar; how then can these men bear a testimony against slavery without condemning themselves? But there is another reason, the North is most dreadfully afraid of Amalgamation. She is alarmed at the very idea of a thing so monstrous, as she thinks. And lest this consequence *might* flow from emancipation, she is determined to resist all efforts at emancipation without expatriation. It is not because she *approves of slavery*, or believes it to be "the corner stone of our republic," for she is as much *anti-slavery* as we are; but amalgamation is too horrible

to think of. Now I would ask *you*, is it right, is it generous, to refuse the colored people in this country the advantages of education and the privilege, or rather the *right*, to follow honest trades and callings merely because they are colored? The same prejudice exists here against our colored brethren that existed against the Gentiles in Judea. Great numbers cannot bear the idea of equality, and fearing lest, if they had the same advantages we enjoy, they would become as intelligent, as moral, as religious, and as respectable and wealthy, they are determined to keep them as low as they possibly can. Is this doing as they would be done by? Is this loving their neighbor as *themselves*? Oh! that *such* opposers of Abolitionism would put their souls in the stead of the free colored man's and obey the apostolic injunction, to "remember them that are in bonds *as bound with them*." I will leave you to judge whether the fear of amalgamation ought to induce men to oppose anti-slavery efforts, when *they* believe *slavery* to be *sinful*. Prejudice against color, is the most powerful enemy we have to fight with at the North.

You need not be surprised, then, at all, at what is said *against* Abolitionists by the North, for they are wielding a two-edged sword, which even here, cuts through the *CORDS OF CASTE*, on the one side, and the *BONDS OF INTEREST* on the other. They are only sharing the fate of other reformers, abused and reviled whilst they are in the minority; but they are neither angry nor discouraged by the invective which has been heaped upon them by slaveholders at the South and their apologists at the North. They know that when George Fox and William Edmundson were laboring in behalf of the negroes in the West Indies in 1671 that the very *same* slanders were propagated against them, which are *now* circulated against Abolitionists. Although it was well known that Fox was the founder of a religious sect which repudiated *all* war, and *all* violence, yet *even he* was accused of "endeavoring to excite the slaves to insurrection and of teaching the negroes to cut their master's throats." And these two men who had their feet shod with the preparation of the Gospel of Peace, were actually compelled to draw up a formal declaration that *they were not* trying to raise a rebellion in Barbadoes. It is also worthy of remark that these Reformers did not at this time see the necessity of emancipation under seven years, and their principal efforts were exerted to persuade the planters of the necessity of instructing their slaves; but the slaveholder saw then, just what the

slaveholder sees now, that an *enlightened* population *never* can be a *slave* population, and therefore they passed a law that negroes should not even attend the meetings of Friends. Abolitionists know that the life of Clarkson was sought by slavetraders, and that even Wilberforce was denounced on the floor of Parliament as a fanatic and a hypocrite by the present King of England, the very man who, in 1834 set his seal to that instrument which burst the fetters of eight hundred thousand slaves in his West India colonies. They know that the first Quaker who bore a *faithful* testimony against the sin of slavery was cut off from religious fellowship with that society. That Quaker was a *woman*. On her deathbed she sent for the committee who dealt with her—she told them, the near approach of death had not altered her sentiments on the subject of slavery and waving her hand towards a very fertile and beautiful portion of country which lay stretched before her window, she said with great solemnity, "Friends, the time will come when there will not be friends enough in all this district to hold one meeting for worship, and this garden will be turned into a wilderness."

The aged friend, who with tears in his eyes, related this interesting circumstance to me, remarked, that at that time there were seven meetings of friends in that part of Virginia, but that when he was there ten years ago, not a single meeting was held, and the country was literally a desolation. Soon after her decease, John Woolman began his labors in our society, and instead of disowning a member for testifying *against* slavery, they have for sixty-two years positively forbidden their members to hold slaves.

Abolitionists understand the slaveholding spirit too well to be surprised at any thing that has yet happened at the South or the North; they know that the greater the sin is, which is exposed, the more violent will be the efforts to blacken the character and impugn the motives of those who are engaged in bringing to light the hidden things of darkness. They understand the work of Reform too well to be driven back by the furious waves of opposition, which are only foaming out their own shame. They have stood "the world's dread laugh," when only twelve men formed the first Anti-Slavery Society in Boston in 1831. They have faced and refuted the calumnies of their enemies, and proved themselves to be emphatically *peace men* by *never resisting* the violence of mobs, even when driven by them from the temple of God, and dragged by an infuriated crowd through the streets of the

emporium of New-England, or subjected by *slaveholders* to the pain of corporal punishment. "None of these things move them;" and, by the grace of God, they are determined to persevere in this work of faith and labor of love: they mean to pray, and preach, and write, and print, until slavery is completely overthrown, until Babylon is taken up and cast into the sea, to "be found no more at all." They mean to petition Congress year after year, until the seat of our government is cleansed from the sinful traffic of "slaves and the souls of men." Although that august assembly may be like the unjust judge who "feared not God neither regarded man," yet it *must* yield just as he did, from the power of importunity. Like the unjust judge, Congress *must* redress the wrongs of the widow, lest by the continual coming up of petitions, it be wearied. This will be striking the dagger into the very heart of the monster, and once this done, he must soon expire.

Abolitionists have been accused of abusing their Southern brethren. Did the prophet Isaiah *abuse* the Jews when he addressed to them the cutting reproof contained in the first chapter of his prophecies, and ended by telling them, they would be *ashamed* of the oaks they had desired, and *confounded* for the garden they had chosen? Did John the Baptist *abuse* the Jews when he called them "*a generation of vipers*," and warned them "to bring forth fruits meet for repentance!" Did Peter abuse the Jews when he told them they were the murderers of the Lord of Glory? Did Paul abuse the Roman Governor when he reasoned before him of righteousness, temperance, and judgment, so as to send conviction home to his guilty heart, and cause him to tremble in view of the crimes he was living in? Surely not. No man will *now* accuse the prophets and apostles of *abuse*, but what have Abolitionists done more than they? No doubt the Jews thought the prophets and apostles in their day, just as harsh and uncharitable as slaveholders now, think Abolitionists; if they did not, why did they beat, and stone, and kill them?

Great fault has been found with the prints which have been employed to expose slavery at the North, but my friends, how could this be done so effectively in any other way? Until the pictures of the slave's sufferings were drawn and held up to public gaze, no Northerner had any idea of the cruelty of the system, it never entered their minds that such abominations could exist in Christian, Republican America; they never suspected that many of the *gentlemen* and *ladies* who came from the South to spend the

summer months in traveling among them, were petty tyrants at home. And those who had lived at the South, and came to reside at the North, were too *ashamed of slavery* even to speak of it; the language of their hearts was, "tell it *not* in Gath, publish it *not* in the streets of Askelon;" they saw no use in uncovering the loathsome body to popular sight, and in hopeless despair, wept in secret places over the sins of oppression. To such hidden mourners the formation of Anti-Slavery Societies was as life from the dead, the first beams of hope which gleamed through the dark clouds of despondency and grief. Prints were made use of to effect the abolition of the Inquisition in Spain, and Clarkson employed them when he was laboring to break up the Slave trade, and English Abolitionists used them just as we are now doing. They are powerful appeals and have invariably done the work they were designed to do, and we cannot consent to abandon the use of these until the *realities* no longer exist.

With regard to those white men, who, it was said, did try to raise an insurrection in Mississippi a year ago, and who were stated to be Abolitionists, none of them were proved to be members of Anti-Slavery Societies, and it must remain a matter of great doubt whether, even they were guilty of the crimes alledged against them, because when any community is thrown into such a panic as to inflict Lynch law upon accused persons, they cannot be supposed to be capable of judging with calmness and impartiality. *We know* that the papers of which the Charleston mail was robbed, were *not* insurrectionary, and that they were *not* sent to the colored people as was reported. *We know* that Amos Dresser was *no insurrectionist* though he was accused of being so, and on this false accusation was publicly whipped in Nashville in the midst of a crowd of infuriated *slaveholders*. Was that young man disgraced by this infliction of corporal punishment? No more than was the great apostle of the Gentile; who five times received forty stripes, save one. Like him, he might have said, "henceforth I bear in my body the marks of the Lord Jesus," for it was for the *truth's sake, he suffered*, as much as did the Apostle Paul. Are Nelson, and Garrett, and Williams, and other Abolitionists who have recently been banished from Missouri, insurrectionists? *We know* they are *not*, whatever slaveholders may choose to call them. The spirit which now asperses the character of the Abolitionists, is the *very same* which dressed up the Christians of Spain in the skins of wild beasts and pictures of devils when

they were led to execution as heretics. Before we condemn individuals, it is necessary, even in a wicked community, to accuse them of some crime; hence, when Jezebel wished to compass the death of Naboth, men of Belial were suborned to bear false witness against him, and so it was with Stephen, and so it ever has been, and ever will be, as long as there is any virtue to suffer on the rack, or the gallows. *False* witnesses must appear against Abolitionists before they can be condemned.

I will now say a few words on George Thompson's mission to this country. This Philanthropist was accused of being a foreign emissary. Were Lafayette, and Steuben, and De Kalb, and Pulawski, foreign emissaries when they came over to America to fight against the tories, who preferred submitting to what was termed, "the yoke of servitude," rather than bursting the fetters which bound them to the mother country? *They* came with *carnal weapons* to engage in *bloody* conflict against American citizens, and yet, where do their names stand on the page of History. Among the honorable, or the base? Thompson came here to war against the giant sin of slavery, *not* with the sword and the pistol, but with the smooth stones of oratory taken from the pure waters of the river of Truth. His splendid talents and commanding eloquence rendered him a powerful coadjutor in the Anti-Slavery cause, and in order to neutralize the effects of these upon his auditors, and rob the poor slave of the benefits of his labors, his character was defamed, his life was sought, and he at last driven from our Republic, as a fugitive. But was *Thompson* disgraced by all this mean and contemptible and wicked chicanery and malice? No more than was Paul, when in consequence of a vision he had seen at Treas, he went over the Macedonia to help the Christians there, and was beaten and imprisoned, because he cast out a spirit of divination from a young damsel which had brought much gain to her masters. Paul was as much a *foreign emissary* in the Roman colony of Philippi, as George Thompson was in America, and it was because he was a *Jew*, and taught customs it was not lawful for them to receive or observe being Romans, that the Apostle was thus treated.

It was said, Thompson was a felon, who had fled to this country to escape transportation to New Holland. Look at him now pouring the thundering strains of his eloquence, upon crowded audiences in Great Britain, and see in this a triumphant vindication of his character. And have the slaveholder,

and his obsequious apologist, gained anything by all their violence and falsehood? No! for the stone which struck Goliath of Gath, had already been thrown from the sling. The giant of slavery who had so proudly defied the armies of the living God, had received his death-blow before he left our shores. But what is George Thompson doing there? Is he not now laboring there, as effectually to abolish American slavery as though he trod our own soil, and lectured to New York or Boston assemblies? What is he doing there, but constructing a stupendous dam, which will turn the overwhelming tide of public opinion over the wheels of that machinery which Abolitionists are working here. He is now lecturing to *Britons on American Slavery*, to the *subjects of a King*, on the abject condition of the *slaves of a Republic*. He is telling them of that mighty Confederacy of petty tyrants which extends over thirteen States of our Union. He is telling them of the munificent rewards offered by slaveholders, for the heads of the most distinguished advocates for freedom in this country. He is moving the British Churches to send out to the churches of America the most solemn appeals, reproving, rebuking, and exhorting, them with all long suffering and patience to abandon the sin of slavery immediately. Where then I ask, will the name of George Thompson stand on the page of History? Among the honorable, or the base?

What can I say more, my friends, to induce you to set your hands, and heads, and hearts, to the great work of justice and mercy. Perhaps you have feared the consequences of immediate emancipation, and been frightened by all those dreadful prophecies of rebellion, bloodshed and murder, which have been uttered. "Let no man deceive you;" they are the predictions of that same "lying spirit" which spoke through the four hundred prophets of old, to Ahab king of Israel, urging him on to destruction. *Slavery* may produce these horrible scenes if it is continued five years longer, but Emancipation *never will*.

I can prove the *safety* of immediate Emancipation by history. In St. Domingo in 1793 six hundred thousand slaves were set free in a white population of forty-two thousand. That Island "marched as by enchantment towards its ancient splendor", cultivation prospered, every day produced perceptible proofs of its progress, and the negroes all continued quietly to work on the different plantations, until in 1802, France determined to

reduce these liberated slaves again to bondage. It was at *this time* that all those dreadful scenes of cruelty occurred, which we so often *unjustly* hear spoken of, as the effects of Abolition. They were occasioned *not* by Emancipation, but by the base attempt to fasten the chains of slavery on the limbs of liberated slaves.

In Guadaloupe eighty-five thousand slaves were freed in a white population of thirteen thousand. The same prosperous effects followed manumission here, that had attended it in Hayti, every thing was quiet until Buonaparte sent out a fleet to reduce these negroes again to slavery, and in 1802 this institution was re-established in that Island. In 1834, when Great Britain determined to liberate the slaves in her West India colonies, and proposed the apprenticeship system; the planters of Bermuda and Antigua, after having joined the other planters in their representations of the bloody consequences of Emancipation, in order if possible to hold back the hand which was offering the boon of freedom to the poor negro; as soon as they found such falsehoods were utterly disregarded, and Abolition must take place, came forward voluntarily, and asked for the compensation which was due to them, saying, *they preferred immediate emancipation*, and were not afraid of any insurrection. And how is it with these islands now? They are decidedly more prosperous than any of those on which the apprenticeship system was adopted, and England is now trying to abolish that system, so fully convinced is she that immediate Emancipation is the *safest* and the best plan.

And why not try it in the Southern States, if it *never* has occasioned rebellion; if *not a drop of blood* has ever been shed in consequence of it, though it has been so often tried, why should we suppose it would produce such disastrous consequences now? "Be not deceived then, God is not mocked," by such false excuses for not doing justly and loving mercy. There is nothing to fear from immediate Emancipation, but *every thing* from the continuance of slavery.

Sisters in Christ, I have done. As a Southerner, I have felt it was my duty to address you. I have endeavoured to set before you the exceeding sinfulness of slavery, and to point you to the example of those noble women who have been raised up in the church to effect great revolutions, and to suffer for the

truth's sake. I have appealed to your sympathies as women, to your sense of duty as *Christian women*. I have attempted to vindicate the Abolitionists, to prove the entire safety of immediate Emancipation, and to plead the cause of the poor and oppressed. I have done—I have sowed the seeds of truth, but I well know, that even if an Apollos were to follow in my steps to water them, "*God only* can give the increase." To Him then who is able to prosper the work of his servant's hand, I commend this Appeal in fervent prayer, that as he "*hath chosen the weak things of the world*, to confound the things which are mighty," so He may guise His blessing, to descend and carry conviction to the hearts of many Lydias through these speaking pages. Farewell—Count me not your "enemy because I have told you the truth," but believe me in unfeigned affection,

Your sympathizing Friend,

ANGELINA E. GRIMKÉ.

Shrewsbury, N.J., 1836.

* * * * *

THIRD EDITION.

**Price 6 1-4 cents single, 62 1-2 cents per dozen, \$4
per hundred.**

No. 3.

THE ANTI-SLAVERY EXAMINER.

* * * * *

**LETTER OF GERRIT SMITH
TO
REV. JAMES SMYLIE,
OF THE
STATE OF MISSISSIPPI.**

1837.

LETTER, ETC.

PETERBORO', October 28, 1836.

Rev. JAMES SMYLIE,

Late Stated Clerk of the Presbytery of Mississippi:

SIR,—Accept my thanks for your politeness in sending me a copy of your book on slavery. This book proves, that the often repeated assertion, that the whole South is opposed to the discussion of the question of slavery, is not true:—and so far, I rejoice in its appearance. I presume—I know, indeed, that you are not the only man in the South, who is in favor of this discussion. There are, doubtless, many persons in the South, who believe, that all attempts to suppress it, are vain, as well as wicked. Besides, you virtually admit, that the South is compelled to discuss the question of slavery; or, at least, to give her own views of it, in order to prevent the conscience of Southern Christians—that conscience, "which does make cowards of us all"—from turning traitor to the cause of slavery. I rejoice, too, that you accompanied the copy sent to me, with the request, that I should review it, and make "candid remarks" upon it; and, that you have thus put it in my power to send to the South some of my views on slavery, without laying myself open to the charge of being discourteous and obtrusive.

You undertake to show that slavery existed, and, with the Divine approbation, amongst the Old Testament Jews; and that it also existed, whilst our Saviour and his Apostles were on the earth, and was approved by them. You thence argue, that it is not only an innocent institution, but one which it is a religious duty to maintain.

I admit, for the sake of argument, that there was a servitude in the patriarchal families which was approved by God. But what does this avail in your defence of slavery, unless you show, that that servitude and slavery are essentially alike? The literal terms of the relation of master and servant, under that servitude, are not made known to us; but we can, nevertheless,

confidently infer their spirit from facts, which illustrate their practical character; and, if this character be found to be opposite to that of slavery, then it is manifest, that what you say of patriarchal servitude is impertinent, and tends to mislead, rather than enlighten your readers. To a few of these facts and a few of the considerations arising from them, I now call your attention.

1st. Read the first eight verses of the eighteenth chapter of Genesis, and tell me, if you ever saw Gov. McDuffie or any other Southern patriarch (for the governor desires to have all slaveholders looked upon in the character of patriarchs) putting himself on a level with his servants, and "working with his hands," after the manner of Abraham and Sarah?

2d. There was such a community of interest—so much of mutual confidence—between Abraham and his servants, that they fought his battles. Indeed, the terms of this patriarchal servitude were such, that in the event of the master's dying without issue, one of his servants inherited his property (Gen. 15: 3). But, according to the code of Southern slavery, the slave can no more own property, than he can own himself. "All that a slave possesses belongs to his master"—"Slaves are incapable of inheriting or transmitting property." These, and many similar phrases, are found in that code. Severe as was the system of Roman slavery, yet in this respect, it was far milder than yours; for its subjects could acquire property (their peculium); and frequently did they purchase their liberty with it. So far from Southern slaves being, as Abraham's servants were, a dependence in war, it is historically true, that they are accustomed to improve this occasion to effect their escape, and strengthen the hands of the enemy. As a further proof that Southern slavery begets none of that confidence between master and slave, which characterized the mutual intercourse of Abraham and his servants—the slave is prohibited, under severe penalties, from having any weapons in his possession, even in time of peace; and the nightly patrol, which the terror-stricken whites of Southern towns keep up, in peace, as well as in war, argues any thing, rather than the existence of such confidence. "For keeping or carrying a gun, or powder or shot, or a club, or other weapon whatsoever, offensive or defensive, a slave incurs, says Southern statute book, for each offence, thirty-nine lashes."

3d. When I read your quotation from the twenty-fourth chapter of Genesis, made for the purpose of showing that God allowed Abraham to have slaves, I could not but wonder at your imprudence, in meddling with this chapter, which is of itself, enough to convince any unbiased mind, that Abraham's servants held a relation to their master and to society, totally different from that held by Southern slaves. Have you ever known a great man in your state send his slave into another to choose a wife for his son?—And if so, did the lily white damsel he selected call the sable servant "my lord?"—And did her family spare no pains to manifest respect for their distinguished guest, and promote his comfort? But this chapter, which you call to your aid, informs us, that Abraham's servant was honored with such tokens of confidence and esteem. If a Southern slave shall ever be employed in such a mission, he may count himself highly favored, if he be not taken up by the way, imprisoned, and "sold for his jail fees."

4th. Did you ever know Southern slaves contend for their rights with their masters? When a Southern master reads the thirteenth verse of the thirty-first chapter of Job, he must think that Job was in the habit of letting down his dignity very low.

5th. Do Southern masters accord religious privileges and impart religious instruction equally to their slaves and their children? Your laws, which visit with stripes, imprisonment, and death, the attempt to teach slaves to read the Bible, show but too certainly, that the Southern master, who should undertake to place "his children and his household" on the same level, in respect to their religious advantages, as it is probable that Abraham did (Gen. 18:19), would soon find himself in the midst of enemies, not to his reputation only, but to his life also.

And now, sir, admitting that the phrase, on which you lay so much stress—"bought with his money"—was used in connexion with a form of servitude which God approved—I put it to your candor, whether this phrase should be allowed to weigh at all against the facts I have adduced and the reasonings I have employed to show the true nature of that servitude, and how totally unlike it is to slavery? Are you not bound by the principles of sound reasoning, to attach to it a meaning far short of what, I grant, is its natural import in this age, and, especially, amongst a people who, like

ourselves, are accustomed to associate such an expression with slavery? Can you deny, that you are bound to adopt such a meaning of it, as shall harmonize with the facts, which illustrate the nature of the servitude in question, and with the laws and character of Him, whose sanction you claim for that servitude? An opposite course would give a preference to words over things, which common sense could not tolerate. Many instances might be cited to show the absurdity of the assumption that whatever is spoken of in the Scriptures as being "bought," is property. Boaz "purchased" his wife. Hosea "bought her (his wife) for fifteen pieces of silver." Jacob, to use a common expression, "took his wages" in wives. Joseph "bought" the Egyptians, after they had said to him "buy us." But, so far from their having become the property of Joseph or of his king, it was a part of the bargain, that they were to have as much land as they wanted—seed to sow it—and four-fifths of the crops. The possessors of such independence and such means of wealth are not the property of their fellow-men.

I need say no more, to prove that slavery is entirely unlike the servitude in the patriarchal families. I pass on, now, to the period between the promulgation of the Divine law by Moses, and the birth of Christ.

You argue from the fifth and sixth verses of the twenty-first chapter of Exodus, that God authorized the enslavement of the Jews: but, on the same page, on which you do so, you also show the contrary. It may, nevertheless, be well for me to request you to read and read again Leviticus 25:39-42, until your remaining doubts, on this point, shall all be put to flight. I am free to admit the probability, that under some of the forms of servitude, in which Jews were held, the servant was subjected to a control so extensive as to expose him to suffer great cruelties. These forms corresponded with the spirit and usages of the age, in which they existed; entirely unsuited, as they are, to a period and portion of the world, blessed with the refining and softening influences of civilization and the gospel. Numerous as were the statutory regulations for the treatment of the servant, they could not preclude the large discretion of the master. The apprentice, in our country, is subjected to an authority, equaling a parent's authority, but not always tempered in its exercise, with a parent's love. His condition is, therefore, not unfrequently marked with severity and suffering. Now, imagine what this condition would be, under the harsh features of a more barbarous age, and

you will have in it, as I conjecture, no distant resemblance to that of some of the Jewish servants. But how different is this condition from that of the slave!

I am reminded in this connexion, of the polished, but pernicious, article on slavery in a late number of the Biblical Repertory. In that article Professor Hodge says, that the claim of the slaveholder "is found to be nothing more than a transferable claim of service either for life, or for a term of years." Will he allow me to ask him, where he discovered that the pretensions of the slaveholder are all resolvable into this modest claim? He certainly did not discover it in any slave code; nor in any practical slavery. Where then? No where, but in that undisclosed system of servitude, which is the creation of his own fancy. To this system I raise no objection whatever. On the contrary, I am willing to admit its beauty and its worthiness of the mint in which it was coined. But I protest against his right to bestow upon it the name of another and totally different thing. He must not call it slavery.

Suppose a poor German to be so desirous of emigrating with his family to America, as to agree to give his services for ten years, as a compensation for the passage. Suppose further, that the services are to be rendered to the captain of the ship in which they sail, or to any other person, to whom he may assign his claim. Such a bargain is not uncommon. Now, according to Professor Hodge, this German may as rightly as any of your Southern servants, be called a slave. He may as rightly be called *property*, as they may be, who, in the language of the South Carolina laws, "shall be deemed, held, taken, reputed, and adjudged in law, to be chattels personal, in the hands of their owners and possessors, and their executors, administrators, and assigns, *to all intents, constructions, and purposes whatsoever.*"

We will glance at a few points of difference in their condition. 1st. The German is capable of making a contract, and in the case supposed, does make a contract; but your slave is incapable of making any contract. 2d. The German receives wages; the price of carrying himself and family being the stipulated price for his services, during the ten years; but your slave receives no wages. 3d. The German, like any other hireling, and, like any apprentice in our country, is under the protection of law. But, there is no law to shield the slave from wrongs. Being a mere chattel or thing, he has no

rights; and, therefore, he can have no wrongs to be redressed. Does Professor Hodge say, that there are statutes limiting and regulating the power of the slaveholder? I grant there are; though it must be remembered, that there is one way of even murdering a slave, which some of the slave States do not only not forbid, but impliedly and practically admit^A. The Professor should know, however, that all these statutes are, practically, a mere nullity. Nevertheless, they show the absoluteness of the power which they nominally qualify. This absoluteness is as distinctly implied by them, as the like was by the law of the Emperor Claudius, which imposed limitations upon the "jus vitae et necis" (the right of life and death) which Roman slavery put into the hand of the master. But if the Professor should be so imprudent as to cite us to the slave code for evidence of its merciful provisions, he will, in so doing, authorize us to cite him to that code for evidence of the *nature* of slavery. This authority, however, he would not like to give us; for he is unwilling to have slavery judged of by its own code. He insists, that it shall be judged of by that ideal system of slavery, which is lodged in his own brain, and which he can bring forth by parcels, to suit present occasions, as Mahomet produced the leaves of the Koran.

^A: The licensed murder referred to, is that where the slave dies under "moderate correction." But is not the murder of a slave by a white man, *in any way*, practically licensed in all the slave States? Who ever heard of a white man's being put to death, under Southern laws, for the murder of a slave? American slavery provides impunity for the white murderer of the slave, by its allowing none but whites—none but those who construct and uphold the system of abominations—to testify against the murderer. But why particularize causes of this impunity? The whole policy of the Southern slave system goes to provide it. How unreasonable is it to suppose, that they, who have conspired against a portion of their fellow-beings, and mutually pledged themselves to treat them as *mere things*—how unreasonable, I say, is it to suppose, that they would consent to put a *man* to death, on account of his treatment, in whatever way, of a *mere thing*? Not long ago, I was informed by a highly respectable lawyer of the State of Georgia, that he had known a number of attempts (attempts most probably but in form and name) to effect the conviction of whites for their undoubted murder of slaves. But in every instance, the jurors perjured themselves, rather than consent that a *man* should be put to death, for the liberty he had

taken in disposing of a *thing*. They had rather perjure themselves, than by avenging the blood of a *slave* with that of a *man*, make a breach upon the policy of keeping the slave ignorant, that he has the *nature*, and consequently the *rights*, of a man.

Professor Hodge tells his readers, in substance, that the selling of men, as they are sold under the system of slavery, is to be classed with the cessions of territory, occasionally made by one sovereign to another; and he would have the slave, who is sold from hand to hand, and from State to State, at the expense to his bleeding heart, of the disruption of its dearest ties, think his lot no harder than that of the inhabitant of Louisiana, who was passed without his will, from the jurisdiction of the French government to that of the United States.

When a good man lends himself to the advocacy of slavery, he must, at least for a time, feel himself to be anywhere but at home, amongst his new thoughts, doctrines, and modes of reasoning. This is very evident in the case before us—especially, when now and then, old habits of thought and feeling break out, in spite of every effort to repress them, and the Professor is himself again, and discourses as manfully, as fearlessly, and as eloquently, as he ever had done before the slaveholders got their hands upon him. It is not a little amusing to notice, that, although the burden of his article is to show that slavery is one of God's institutions, (what an undertaking for a Professor of Theology in the year 1836!) he so far forgets the interests of his new friends and their expectations from him, as to admit on one page, that "the general principles of the gospel have destroyed domestic slavery throughout the greater part of Christendom;" and on another, that "the South has to choose between emancipation, by the silent and holy influence of the gospel, or to abide the issue of a long continued conflict against the laws of God." Whoever heard, until these strange times on which we have fallen, of any thing, which, to use the Professor's language about slavery, "it is in vain, to contend is sin, and yet profess reverence for the Scriptures," being at war with and destroyed by the principles of the gospel. What sad confusion of thought the pro-slavery influences, to which some great divines have yielded, have wrought in them!

I will proceed to argue, that the institution in the Southern States called "slavery," is radically unlike any form of servitude under which Jews were held, agreeably to the Divine will; and also radically unlike any form of servitude approved of God in the patriarchal families.

1st. God does not contradict Himself. He is "without variableness or shadow of turning." He loves his word and has "magnified it above all his name." He commands his rational creatures to "search the Scriptures." He cannot, therefore, approve of a system which forbids the searching of them, and shuts out their light from the soul; and which, by the confession of your own selves, turns men in this gospel land into heathen. He has written his commandment against adultery, and He cannot, therefore, approve of a system, which induces this crime, by forbidding marriage. The following extract from an opinion of the Attorney General of Maryland, shows some of the consequences of this "forbidding to marry." "A slave has never maintained an action against the violator of his bed. A slave is not admonished for incontinence, or punished for fornication or adultery; never prosecuted for bigamy." Again, God has written his commandment, that children should honor their parents. How, then, can He approve of a system, which pours contempt on the relation of parent and child? Which subjects them to be forcibly separated from each other, and that too, beyond the hope of reunion?—under which parents are exposed and sold in the market-place along with horses and cattle?—under which they are stripped and lashed, and made to suffer those innumerable, and some of them, nameless indignities, that tend to generate in their children, who witness them, any feelings, rather than those of respect and honor, for parents thus degraded? Some of these nameless indignities are alluded to in a letter written to me from a slave state, in March, 1833. "In this place," says the writer, "I find a regular and a much frequented slave market, where thousands are yearly sold like cattle to the highest bidder. It is the opinion of gentlemen here, that not far from five hundred thousand dollars are yearly paid in this place for negroes; and at this moment, I can look from the window of my room and count six droves of from twenty to forty each, sitting in the market place for sale. This morning I witnessed the sale of twelve slaves, and I could but shudder at the language used and the liberties taken with the females!"

2d. As a proof, that in the kinds of servitude referred to, God did not invest Abraham, or any other person with that absolute ownership of his fellow-men, which is claimed by Southern slaveholders—I would remark, that He has made man accountable to Himself; but slavery makes him accountable to, and a mere appendage to his fellow-man. Slavery substitutes the will of a fallible fellow-man for that infallible rule of action—the will of God. The slave, instead of being allowed to make it the great end of his existence to glorify God and enjoy Him for ever, is degraded from his exalted nature, which borders upon angelic dignity, to be, to do, and to suffer what a mere man bids him be, do, and suffer.

The Southern slave would obey God in respect to marriage, and also to the reading and studying of His word. But this, as we have seen, is forbidden him. He may not marry; nor may he read the Bible. Again, he would obey God in the duties of secret and social prayer. But he may not attend the prayer-meeting—certainly not that of his choice; and instances are known, where the master has intruded upon the slave's secret audience with heaven, to teach him by the lash, or some other instrument of torture, that he would allow "no other God before" himself.

Said Joseph Mason, an intelligent colored man, who was born and bred near Richmond, in Virginia, in reply to my question whether he and his fellow-slaves cared about their souls—"We did not trouble ourselves about our souls; we were our masters' property and not our own; under their and not our own control; and we believed that our masters were responsible for our souls." This unconcern for their spiritual interests grew very naturally out of their relation to their masters; and were the relation ordained of God, the unconcern would, surely, be both philosophical and sinless.

God cannot approve of a system of servitude, in which the master is guilty of assuming absolute power—of assuming God's place and relation towards his fellow-men. Were the master, in every case, a wise and good man—as wise and good as is consistent with this wicked and heaven-daring assumption on his part—the condition of the slave would it is true, be far more tolerable, than it now is. But even then, we should protest as strongly as ever against slavery; for it would still be guilty of its essential wickedness of robbing a man of his right to himself, and of robbing God of

His right to him, and of putting these stolen rights into the hand of an erring mortal. Nay, if angels were constituted slaveholders, our objection to the relation would remain undiminished; since there would still be the same robbery of which we now complain.

But you will say, that I have overlooked the servitude in which the Jews held strangers and foreigners; and that it is on this, more than any other, that you rely for your justification of slavery. I will say nothing now of this servitude; but before I close this communication, I will give my reasons for believing, that whatever was its nature, even if it were compulsory, it cannot be fairly pleaded in justification of slavery.

After you shall have allowed, as you will allow, that slavery, as it exists, is at war with God, you will be likely to say, that the fault is not in the theory of it; but in the practical departure from that theory; that it is not the system, but the practice under it, which is at war with God. Our concern, however, is with slavery as it is, and not with any theory of it. But to indulge you, we will look at the system of slavery, as it is presented to us, in the laws of the slave States; and what do we find here? Why, that the system is as bad as the practice under it. Here we find the most diabolical devices to keep millions of human beings in a state of heathenism—in the deepest ignorance and most loathsome pollution. But you will tell me, that I do not look far enough to find the true theory of slavery; and that the cruelties and abominations, which the laws of the slave States have ingrafted on this theory, are not acknowledged by the good men in those States to be a part of the theory. Well, you shall have the benefit of this plea; and I admit, for the sake of argument, that this theory of slavery, which lies far back, and out of sight of every thing visible and known about slavery, is right. And what does this admission avail you? It is slavery as it is—as it is seen and known, that the abolitionists are contending against. But, say you, to induce our forbearance, "We good men at the South are restoring slavery, as fast as we can, to what it should be; and we will soon make its erring practice quadrate with its perfect and sinless theory." Success to your endeavors! But let me ask these good men, whether similar representations would avail to make them forbearing towards any other class of offenders; and whether they would allow these offenders to justify the wickedness of their hands, by pleading the purity of their hearts. Suppose that I stand in court

confessedly guilty of the crime of passing counterfeit money; and that I ask for my acquittal on the ground, that, notwithstanding I am practically wrong, I am, nevertheless, theoretically right. "Believe me," I say, in tones of deep and unfeigned pathos, and with a corresponding pressure of my hand upon my heart, "that the principles within are those of the purest morality; and that it is my faithful endeavor to bring my deportment, which, as you this day witness, is occasionally devious, into perfect conformity with my inward rectitude. My theory of honest and holy living is all that you could wish it to be. Be but patient, and you shall witness its beautiful exhibitions in my whole conduct." Now, you certainly would not have this plea turn to my advantage;—why then expect that your similar plea should be allowed?

We must continue to judge of slavery by what it is, and not by what you tell us it will, or may be. Until its character be righteous, we shall continue to condemn it; but when you shall have brought it back to your sinless and beautiful theory of it, it will have nothing to fear from the abolitionists. There are two prominent reasons, however, for believing that you will never present Southern slavery to us in this lovely character, the mere imagination of which is so dear to you. The first is, that you are doing nothing to this end. It is an indisputable fact that Southern slavery is continually getting wider and wider from God, and from an innocent theory of servitude; and the "good men at the South," of whom we have spoken, are not only doing nothing to arrest this increasing divergency, but they are actually favoring it. The writings of your Dews, and Baxters, and Plummerts, and Postells, and Andersons, and the proceedings of your ecclesiastical bodies, abundantly show this. Never, and the assertion is borne out by your statute books, as well as other evidences, has Southern slavery multiplied its abominations so rapidly, as within the last ten years; and never before had the Southern Church been so much engaged to defend and perpetuate these abominations. The other of these reasons for believing that Southern slavery will never be conformed to your *beau ideal* of slavery, in which it is presupposed there are none but principles of righteousness, is, that on its first contact with these principles, it would "vanish into thin air," leaving "not a wreck behind." In proof of this, and I need not cite any other case, it would be immediate death to Southern slavery to concede to its subjects, God's institution of marriage; and hence it is, that its code forbids marriage.

The rights of the husband in the wife, and of the wife in the husband, and of parents in their children, would stand directly in the way of that traffic in human flesh, which is the very life-blood of slavery; and the assumptions of the master would, at every turn and corner, be met and nullified by these rights; since all his commands to the children of those servants (for now they should no longer be called slaves) would be in submission to the paramount authority of the parents^A. And here, sir, you and I might bring our discussion to a close, by my putting the following questions to you, both of which your conscience would compel you to answer in the affirmative.

^A: I am aware that Professor Hodge asserts, that "slavery may exist without those laws which interfere with their (the slaves) marital or parental right" Now, this is a point of immense importance in the discussion of the question, whether slavery is sinful; and I, therefore, respectfully ask him either to retract the assertion, or to prove its correctness. Ten thousands of his fellow-citizens, to whom the assertion is utterly incredible, unite with me in this request. If he can show, that slavery does not "interfere with marital or parental rights," they will cease to oppose it. Their confident belief is, that slavery and marriage, whether considered in the light of a civil contract, or a scriptural institution, are entirely incompatible with each other.

1st. Is not Southern slavery guilty of a most heaven-daring crime, in substituting concubinage for God's institution of marriage?

2d. Would not that slavery, and also every theory and modification of slavery, for which you may contend, come speedily to nought, if their subjects were allowed to marry? Slavery, being an abuse, is incapable of reformation. It dies, not only when you aim a fatal blow at its life principle—its foundation doctrine of man's right to property in man^B—but it dies as surely, when you prune it of its manifold incidents of pollution and irreligion.

^B: I mean by this phrase, "right to property in man," a right to hold man as property; and I do not see with what propriety certain writers construe it to mean, a property in the mere services of a man.

But it would be treating you indecorously to stop you at this stage of the discussion, before we are a third of the way through your book, and thus deny a hearing to the remainder of it. We will proceed to what you say of the slavery which existed in the time of the New Testament writers. Before we do so, however, let me call your attention to a few of the specimens of very careless reasoning in that part of your book, which we have now gone over. They may serve to inspire you with a modest distrust of the soundness of other parts of your argument.

After concluding that Abraham was a slaveholder, you quote the following language from the Bible; "Abraham obeyed my voice and kept my charge, my commandments, my statutes, and my laws." You then inquire, "How could this be true of Abraham, holding as he did, until he was an old man, more slaves than any man in Mississippi or Louisiana?" To be consistent with your design in quoting this passage, you must argue from it, that Abraham was perfect. But this he was not; and, therefore, your quotation is vain. Again, if the slaveholder would quiet his conscience with the supposition, that "Abraham held more slaves than any man in Mississippi or Louisiana," let him remember, that he had also more concubines (Gen. 25: 6), "than any man in Mississippi or Louisiana;" and, if Abraham's authority be in the one case conclusive for slaveholding, equally so must it be in the other, for concubinage.

Perhaps, in saying that "Abraham had more concubines than any man in Mississippi or Louisiana," I have done injustice to the spirit of propagation prevailing amongst the gentlemen of those States. It may be, that some of your planters quite distance the old patriarch in obedience to the command to "multiply and replenish the earth." I am correctly informed, that a planter in Virginia, who counted, I know not how many slaves upon his plantation, confessed on his death-bed, that his licentiousness had extended to every adult female amongst them. This planter was a near relative of the celebrated Patrick Henry. It may be, that you have planters in Mississippi and Louisiana, who avail themselves to the extent that he did, of the power which slaveholding gives to pollute and destroy. The hundreds of thousands of mulattoes, who constitute the Southern commentary on the charge, that the abolitionists design amalgamation, bear witness that this planter was not singular in his propensities. I do not know what you can do with this species

of your population. Besides, that it is a standing and deep reproach on Southern chastity, it is not a little embarrassing and puzzling to those who have received the doctrine, that the descendants of Africa amongst us must be returned to the land of their ancestors. How the poor mulatto shall be disposed of, under this doctrine, between the call which Africa makes for him, on the one hand, and that which some state of Europe sends out for him on the other, is a problem more difficult of solution than that which the contending mothers brought before the matchless wisdom of Solomon.

In the paragraph, which relates to the fourth and tenth commandments, there is another specimen of your loose reasoning. You say, that the language, "In it (the Sabbath) thou shalt do no work, thou, nor thy son, nor thy daughter, nor thy man servant, nor thy maid servant," "recognises the authority of the master over the servant." I grant, that it does: but does it at all show, that these servants were slaves? Does it recognise any more authority than the master should exercise over his voluntary servants? Should not the head of a family restrain all his servants, as well the voluntary as the involuntary, from unnecessary labor on the Sabbath? You also say, that the tenth commandment "recognizes servants as the *property* of their masters." But how does it appear from the language of this commandment, that the man servant and maid servant are property any more than the wife is? We will proceed, however, to the third section of your book.

Your acquaintance with history has enabled you to show some of the characteristics and fruits of Greek and Roman slavery. You state the facts, that the subjects of this slavery were "absolutely the property of their masters"—that they "were used like dogs"—that "they were forbidden to learn any liberal art or perform any act worthy of their masters"—that "once a day they received a certain number of stripes for fear they should forget they were slaves"—that, at one time, "sixty thousand of them in Sicily and Italy were chained and confined to work in dungeons"—that "in Rome there was a continual market for slaves," and that "the slaves were commonly exposed for sale naked"—that, when old, they were turned away," and that too by a master, highly esteemed for his superior virtues, to starve to death"—that they were thrown into ponds to be food for fish—that they were in the city of Athens near twenty times as numerous as free persons—

that there were in the Roman Empire sixty millions of slaves to twenty millions of freemen mind that many of the Romans had five thousand, some ten thousand, and others twenty thousand.

And now, for what purpose is your recital of these facts?—not, for its natural effect of awakening, in your readers, the utmost abhorrence of slavery:—no—but for the strange purpose (the more strange for being in the breast of a minister of the gospel) of showing your readers, that even Greek and Roman slavery was innocent, and agreeable to God's will; and that, horrid as are the fruits you describe, the tree, which bore them, needed but to be dug about and pruned—not to be cut down. This slavery is innocent, you insist, because the New Testament does not show, that it was specifically condemned by the Apostles. By the same logic, the races, the games, the dramatic entertainments, and the shows of gladiators, which abounded in Greece and Rome, were, likewise, innocent, because the New Testament does not show a specific condemnation of them by the apostles^A. But, although the New Testament does not show such condemnation, does it necessarily follow, that they were silent, in relation to these sins? Or, because the New Testament does not specifically condemn Greek and Roman slavery, may we, therefore, infer, that the Apostles did not specifically condemn it? Look through the published writings of many of the eminent divines, who have lived in modern times, and have written and published much for the instruction of the churches, and you will not find a line in them against gambling or theatres or the slave-trade;—in some of them, not a line against the very common sin of drunkenness. Think you, therefore, that they never spoke or wrote against these things? It would be unreasonable to expect to find, in print, their sentiments against all, even of the crying sins of their times. But how much more unreasonable is it to expect to find in the few pages of the Apostles' published letters, the whole of which can be read in a few hours, their sentiments in relation to all the prominent sins of the age in which they lived! And far greater still is the unreasonableness of setting them down, as favorable to all practices which these letters do not specifically condemn.

^A: Prof. Hodge says, if the apostles did abstain from declaring slavery to be sinful, "it must have been, because they did not consider it as, in itself, a crime. No other solution of their conduct is consistent with their truth or

fidelity." But he believes that they did abstain from so doing; and he believes this, on the same evidence, on which he believes, that they abstained from declaring the races, games, &c., above enumerated, to be sinful. His own mode of reasoning, therefore, brings him unavoidably to the conclusion, that these races, games, &c., were not sinful.

It may be, that the Saviour and the Apostles, in the course of their teachings, both oral and written, did specify sins to a far greater extent, than they are supposed to have done. It may be, that their followers had much instruction, in respect to the great sin of slavery. We must bear in mind, that but a very small part of that Divine instruction, which, on the testimony of an Apostle, "the world itself could not contain if written," has come down to us. Of the writings of our Saviour we have nothing. Of those of his Apostles a very small part. It is probable, that, during his protracted ministry, the learned apostle to the Gentiles wrote many letters on religious subjects to individuals and to churches. So also of the immense amount of instruction, which fell from the lips of the Apostles, but very little is preserved. It was Infinite Wisdom, however, which determined the size of the New, as well as of the Old Testament, and of what kinds and portions of the Saviour's and the Apostles' instructions it should consist. For obvious considerations, it is made up, in a great measure, of general truths and propositions. Its limited size, if no other reason, accounts for this. But, these general truths and propositions are as comprehensive as the necessity of the case requires; and, carried out into all their suitable applications they leave no sin unforbidden. Small as is the New Testament, it is as large as we need. It instructs us in relation to all our duties. It is as full on the subject of slavery, as is necessary; and, if we will but obey its directions, that bear on this subject, and "love one another," and love our neighbors as ourselves, and, as we would that men should do to us, do "also to them likewise," and "remember them, that are in bonds as bound with them," and "give unto servants, that which is just and equal"—not a vestige of this abomination will remain.

For the sake of the argument, I will admit, that the Apostles made no specific attack on slavery^A; and that they left it to be reached and overthrown, provided it be sinful, by the general principles and instructions which they had inculcated. But you will say, that it was their practice, in addition to inculcating such principles and instructions, to point out sins and

reprove them:—and you will ask, with great pertinence and force, why they did not also point out and reprove slavery, which, in the judgment of abolitionists, is to be classed with the most heinous sins. I admit, that there is no question addressed to abolitionists, which, after the admission I have made for them, it is less easy to answer; and I admit further, that they are bound to answer it. I will proceed to assign what to me appear to be some of the probable reasons, why the Apostles specified the sins of lying, covetousness, stealing, &c., and, agreeably to the admission, which lays me under great disadvantage, did not specify slavery.

A: This is no small admission in the face of the passage, in the first chapter of Timothy, which particularizes manstealing, as a violation of the law of God. I believe all scholars will admit, that one of the crimes referred to by the Apostle, is kidnapping. But is not kidnapping an integral and most vital part of the system of slavery? And is not the slaveholder guilty of this crime? Does he not, indeed, belong to a class of kidnappers stamped with peculiar meanness? The pirate, on the coast of Africa, has to cope with the strength and adroitness of mature years. To get his victim into his clutches is a deed of daring and of peril demanding no little praise, upon the principles of the world's "code of honor." But the proud chivalry of the South is securely employed in kidnapping newborn infants. The pirate, in the one case, soothes his conscience with the thought, that the bloody savages merit no better treatment, than they are receiving at his hands:—but the pirate, in the other, can have no such plea—for they, whom he kidnaps, are untainted with crime.

And what better does it make the case for you, if we adopt the translation of "men stealers?" Far better, you will say, for, on the authority of Othello himself,

"He that is robb'd——"

Let him not know it, and he's not robbed at all."

But, your authority is not conclusive. The crime of the depredation is none the less, because the subject is ignorant or unconscious of it. It is true, the slave, who never possessed liberty—who was kidnapped at his birth—may not grieve, under the absence of it, as he does, from whose actual and

conscious possession it had been violently taken: but the robbery is alike plain, and is coupled with a meanness, in the one case, which does not disgrace it in the other.

1st. The book of Acts sets forth the fundamental doctrines and requirements of Christianity. It is to the letters of the Apostles we are to look for extended specifications of right and wrong affections, and right and wrong practices. Why do these letters omit to specify the sin of slaveholding? Because they were addressed to professing Christians exclusively; who, far more emphatically then than now, were "the base things of the world," and were in circumstances to be slaves, rather than slaveholders. Doubtless, there were many slaves amongst them—but I cannot admit, that there were slaveholders. There is not the least probability, that slaveholding was a prevalent sin amongst primitive Christians^B. Instructions to them on that sin might have been almost as superfluous, as would be lectures on the sin of luxury, addressed to the poor Greenland disciples, whose poverty compels them to subsist on filthy oil. No one, acquainted with the history of their lives, believes that the Apostles were slave-holders. They labored, "working with (their) own hands." The supposition, that they were slaveholders, is inconsistent with their practice, and with the tenor of their instructions to others on the duty of manual labor. But if the Apostles were not slaveholders, why may we suppose, that their disciples were? At the South, it is, "like people, like priest," in this matter. There, the minister of the gospel thinks, that he has as good right to hold slaves, as has his parishioner: and your Methodists go so far, as to say, that even a bishop has as good right, as any other person, to have slaves

^B: How strongly does the following extract from the writings of the great and good Augustine, who lived in the fourth century, argue, that slaveholding was not a prevalent sin amongst primitive Christians! "Non oportet Christianum possidere servum quomodo equum aut argentum. Quis dicere audeat ut vestimentum cum debere contemni? Hominem namque homo tamquam seipsum diligere debet cui ab omnium Domino, ut inimicos diligat, imperatur." *A Christian ought not to hold his servant as he does his horse or his money. Who dares say that he should be thought as lightly of as a garment? For man, whom the Lord of all has commanded to love his enemies, should love his fellow-man as himself.*

"——to fan him while he sleeps,
And tremble when he wakes."

Indeed, they already threaten to separate from their Northern brethren, unless this right be conceded. But have we not other and conclusive evidence, that primitive Christians were not slaveholders? We will cite a few passages from the Bible to show, that it was not the will of the Apostles to have their disciples hold manual labor in disrepute, as it is held, in all slaveholding communities. "Do your own business, and work with your own hands, as we commanded you." "For this we commanded you, that, if any would not work, neither should he eat." "Let him that stole, steal no more; but rather let him labor, working with his hands the thing which is good, that he may have to give to him that needeth." In bringing the whole verse into this last quotation, I may have displeased you. I am aware, that you slaveholders proudly and indignantly reject the applicableness to yourselves of the first phrase in this verse, and also of the maxim, that "the partaker of stolen goods is as bad as the thief." I am aware, that you insist, that the kidnapping of a man, or getting possession of him, after he has been kidnapped, is not to be compared, if indeed it can be properly called theft at all, with the crime of stealing a *thing*. It occurs to me, that if a shrewd lawyer had you on trial for theft, he would say, that you were *estopped* from going into this distinction between a *man* and a *thing*, inasmuch as, by your own laws, the slave is expressly declared to be a *chattel*—is expressly *elevated* into a *thing*. He would say, however competent it may be for others to justify themselves on the ground, that it was but a *man*, and not a *thing*, they had stolen; your own statutes, which, with magic celerity, convert stolen men into things, make such a plea, on your part, utterly inadmissible. He would have you as fast, as though the stolen goods, in your hands, were a bushel of wheat, or some other important *thing*, instead of a *mere man*.

But, if you are not yet convinced that primitive Christians were not slaveholders, let me cite another passage to show you, how very improbable it is, that they stood in this capacity:—"all, that believed, had all things common, and sold their possessions and goods, and parted them to all men, as every man had need." Now I do not say, that all the primitive believers did so. But if a portion of them did, and met with the Apostles' approbation

in it, is it at all probable, that a course, so diverse from it, as that of slaveholding in the Church, met likewise with their approbation?

2d. I go on to account for the Apostles' omission to specify slavery.

Criminality is not always obvious, in proportion to its extent. The sin of the traffic in intoxicating liquors, was, until the last few years, almost universally unfelt and unperceived. But now, we meet with men, who, though it was "in all good conscience," that they were once engaged in it, would not resume it for worlds; and who see more criminality, in taking money from a fellow man, in exchange for the liquor which intoxicates him, than in simple theft. However it may be with others, in this employment, they now see, that, for them to traffic in intoxicating liquors, would be to stain themselves with the twofold crime of robbery and murder. How is it, that good men ever get into this employment?—and, under what influences and by what process of thought, do they come to the determination to abandon it? The former is accounted for, by the fact, that they grow up—have their education—their moral and intellectual training—in the midst of a public opinion, and even of laws also, which favor and sanction the employment. The latter is accounted for, by the fact, that they are brought, in the merciful providence of God, to observe and study and understand the consequences of their employment—especially on those who drink their liquor—the liquor which they sell or make, or, with no less criminality, furnish the materials for making. These consequences they find to be "evil, only evil, and that continually." They find, that this liquor imparts no benefit to them who drink it, but tends to destroy, and, oftentimes, does destroy, their healths and lives. To continue, therefore, in an employment in which they receive their neighbor's money, without returning him an equivalent, or any portion of an equivalent, and, in which they expose both his body and soul to destruction, is to make themselves, in their own judgments, virtually guilty of theft and murder.

Thus it is in the case of a national war, waged for conquest. Christians have taken part in it; and, because they were blinded by a wrong education, and were acting in the name of their country and under the impulses of patriotism, they never suspected that they were doing the devil, instead of "God, service." But when, in the kind providence of God, one of these

butchers of their fellow beings is brought to pause and consider his ways, and to resolve his enormous and compound sin into its elements of wickedness,—into the lies, theft, covetousness, adultery, murder, and what not of crime, which enter into it,—he is amazed that he has been so "slow of heart to believe," and abandon the iniquity of his deeds.

What I have said to show that Christians, even in enlightened and gospelized lands, may be blind to the great wickedness of certain customs and institutions, serves to introduce the remark; that there were probably some customs and institutions, in the time of the Apostles, on which it would have been even worse than lost labor for them to make direct attacks. Take, for example, the kind of war of which we have been speaking. If there are reasons why the modern Christian can be insensible to the sin of it, there are far stronger reasons why the primitive Christian could be. If the light and instruction which have been accumulating for eighteen centuries, are scarcely sufficient to convince Christians of its wickedness, is it reasonable to suppose that, at the commencement of this long period, they could have been successfully taught it? Consider, that at that time the literature and sentiment of the world were wholly on the side of war; and especially, consider how emphatically the authority of civil government and of human law was in favor of its rightfulness. Now, to how great an extent such authority covers over and sanctifies sin, may be inferred from the fact, that there are many, who, notwithstanding they believe slavery to be a most Heaven-daring sin, yet, because it is legalized and under the wing of civil government, would not have it spoken against. Even Rev. Dr. Miller, in certain resolutions which he submitted to the last General Assembly, indicated his similar reverence for human laws; and the lamented Dr. Rice distinctly recognises, in his letter to Mr. Maxwell, the doctrine that the Church is bound to be quiet about every sin which the civil government adopts and whitewashes. That the Christian Spectator should indorse the Doctor's sentiments on this point is still more worthy of remark than that he should utter them. Indeed, I judge from what you say on the 68th and 69th pages of your book, that you are yourself opposed to calling in question the morality of that which civil government approves. But, to doubt the infallibility of civil government,—to speak against Caesar,—was manifestly held to be quite as presumptuous in the time of the Apostles as it is now.

Another reason why an Apostle would probably have deemed it hopeless to attempt to persuade his disciples, immediately and directly, of the sin of war, is to be found in the fact of their feeble and distorted perception of truth and duty. We, whose advantage it is to have lived all our days in the light of the gospel, and whose ancestors, from time immemorial, had the like precious advantage, can hardly conceive how very feeble and distorted was that perception. But, consider for a moment who those disciples were. They had, most of them, but just been taken out of the gross darkness and filth of heathenism. In reading accounts which missionaries give of converted heathen—of such, even, as have for ten, fifteen, or twenty years, been reputed to be pious—you are, doubtless, often surprised to find how grossly erroneous are their moral perceptions. Their false education still cleaves to them. They are yet, to a great extent, in the mould of a corrupted public opinion; and, as far from having a clear discernment of moral truth, as were the partially unsealed eyes which saw "men, as trees, walking." The first letter to the Church at Corinth, proves that the new principles implanted in its members had not yet purged out the leaven of their old wickedness; and that their conceptions of Christian purity and conduct were sadly defective. As it was with the Corinthian Christians, so was it to a great extent with the other Christians of that age. Now, if the Apostles did not directly teach the primitive believers that wars, and theatres, and games, and slavery, are sinful, it is because they thought it more fit to exercise their ignorant pupils chiefly in the mere alphabet and syllables of Christianity. (Acts xv, 28, 29.) The construction of words and sentences would naturally follow. The rudiments of the gospel, if once possessed by them, would be apt to lead them on to greater attainments. Indeed, the love, peace, truth, and other elements of holy living inculcated by the Apostles, would, if turned to all proper account, be fatal to every, even the most gigantic, system of wickedness. Having these elements in their minds and hearts, they would not fail of condemning the great and compound sin of war whenever they should be led to take it up, examine it, resolve it into its constituent parts, and lay these parts for comparison, by the side of those elements. But, such an advance was hardly to be expected from many of these heathen converts during the brief period in which they enjoyed Apostolic instruction; and it is but too probable, that most of them died in great ignorance of the sin of national wars. Converts from the heathen, in the present age, when conviction of the sinfulness of war is spreading in

different parts of Christendom, would be more likely to imbibe correct views of it.

The Apostles "fed with milk" before they fed with meat, as did our Saviour, who declared, "I have yet many things to say unto you, but ye cannot bear them now." In every community, the foundation principles of righteousness must be laid, before there can be fulcrums for the levers to be employed in overthrowing the sins which prevail in it. You will doubtless, then, agree with me, that it is not probable that the Apostles taught their heathen converts, directly and specifically, the sinfulness of war. But slaves, in that age, with the exception of the comparative few who were reduced to slavery on account of the crimes of which they had been judicially convicted, were the spoils of war. How often in that age, as was most awfully the fact, on the final destruction of Jerusalem, were the slave-markets of the world glutted by the captives of war! Until, therefore, they should be brought to see the sinfulness of war, how could they see the sinfulness of so direct and legitimate a fruit of it as slavery?—and, if the Apostles thought their heathen converts too weak to be instructed in the sinfulness of war, how much more would they abstain from instructing them, directly and specifically, in the sin of slavery!

3d. In proceeding with my reasons why the Apostles did not extend their specification of sins to slavery, I remark, that it is apparent from the views we have taken, and from others which might have been taken, that nothing would have been gained by their making direct and specific attacks on the institutions of the civil governments under which they lived. Indeed, much might have been lost by their doing so. Weak converts, with still many remains of heathenism about them, might in this wise have been incurably prejudiced against truths, which, by other modes of teaching,—by general and indirect instructions,—would probably have been lodged in their minds. And there is another point of view in which vastly more, even their lives, might have been lost, by the Apostles making the direct and specific attacks referred to. I know that you ridicule the idea of their consulting their personal safety. But what right have you to do so? They did, on many occasions, consult the security of their lives. They never perilled them needlessly, and through a presumptuous reliance on God. It is the devil, who, in a garbled quotation from the Scriptures, lays down, in unlimited

terms, the proposition, that God will keep his children. But, God promises them protection only when they are in their own proper ways. The Saviour himself consulted the safety of his life, until his "time" had "full come;" and his command to his Apostles was, "when they persecute you in this city, flee ye into another." If you suppose me to admit for a moment, that regard for the safety of their lives ever kept them from the way of their duty, you are entirely mistaken; and, if you continue to assert, in the face of my reasoning to the contrary, that on the supposition of the sinfulness of slavery, their omission to make direct and specific attacks on it would have been a failure of their duty, then I can only regret that this reasoning has had no more influence upon you.

I observe that Professor Hodge agrees with you, that if slavery is sin, it would have been specifically attacked by the Apostles at any hazard to their lives. This is his conclusion, because they did not hesitate to specify and rebuke idolatry. Here is another of the Professor's sophisms. The fact, that the Apostles preached against idolatry, is no reason at all why, if slavery is sin, they would have preached against that also. On the one hand, it is not conceivable that the gospel can be preached where there is idolatry, without attacking it: for, in setting forth the true God to idolaters, the preacher must denounce their false gods. On the other hand, gospel sermons can be preached without number, and the true God presented, not only in a nation of idolaters, but elsewhere, without one allusion being made to such crying sins as slavery, lewdness, and intemperance.

In the same connexion, Professor Hodge makes the remark "We do not expect them (our missionaries) to refrain from denouncing the institutions of the heathen as sinful, because they are popular, or intimately interwoven with society." If he means by this language, that it is the duty of missionaries on going into a heathen nation, to array themselves against the civil government, and to make direct and specific attacks on its wicked nature and wicked administration, then is he at issue, on this point, with the whole Christian public; and, if he does not mean this, or what amounts to this, I do not see how his remark will avail any thing, in his attempt to show that the Apostles made such attacks on whatever sinful institutions came under their observation.

What I have said on a former page shows sufficiently how fit it is for missionaries to the heathen, more especially in the first years of their efforts among them, to labor to instruct their ignorant pupils in the elementary principles of Christianity, rather than to call their attention to the institutions of civil government, the sinfulness of which they would not be able to perceive until they had been grounded in those elementary principles; and the sinfulness of which, more than of any thing else, their prejudices would forbid them to suspect. Another reason why the missionary to the heathen should not directly, and certainly not immediately, assail their civil governments, is that he would thereby arouse their jealousies to a pitch fatal to his influence, his usefulness, and most probably his life; and another reason is, that this imprudence would effectually close the door, for a long time, against all efforts, even the most judicious, to spread the gospel amongst a people so needlessly and greatly prejudiced against it by an unwise and abrupt application of its principles. For instance, what folly and madness it would be for our missionaries to Burmah, to make a direct assault on the political institutions of that country! How fatal would it be to their lives, and how incalculably injurious to the cause entrusted to their hands! And, if this can be said of them, after they have spent ten, fifteen, and twenty years, in efforts to bring that portion of the heathen world to a knowledge and love of the truth, how much more emphatically could it be said if they had been in the field of their labors but three or four years! And yet, even this short space of time exceeds the average period of the Apostles' labor among those different portions of the heathen world which they visited;—labor, too, it must be remembered, not of the whole, nor even of half of "the twelve."

That the Apostles could not have made direct attacks on the institutions of the Roman government, but at the expense of their lives, is not to be doubted. Our Saviour well knew how fatal was the jealousy of that government to the man who was so unhappy as to have excited it; and he accordingly avoided the excitement of it, as far as practicable and consistent. His ingenious and beautiful disposition of the question, "Is it lawful to give tribute to Caesar or not," is among the instances, in which He studied to shun the displeasure of the civil government. Pilate gave striking evidence of his unwillingness to excite the jealousy of his government, when, every other expedient to induce him to consent to the Saviour's death

having failed, the bare charge, utterly unproven and groundless, that, the Divine prisoner had put forth pretensions, interfering with Caesar's rights, availed to procure His death-warrant from the hands of that truth-convicted, but man-fearing governor. Had it not availed, Pilate would have been exposed to the suspicion of disloyalty to his government; and so perilous was this suspicion, that he was ready, at any expense to his conscience and sense of justice, to avoid incurring it.

A direct attack on Roman slavery, as it would have called in question the rightfulness of war—the leading policy of the Roman government—would, of course, have been peculiarly perilous to its presumptuous author. No person could have made this attack, and lived; or, if possibly he might have escaped the vengeance of the government, do we not know too much of the deadly wrath of slaveholders, to believe that he could have also escaped the summary process of Lynch law? If it be at the peril of his life that a Northern man travels in the Southern States,—and that, too, whether he do or do not say a word about slavery, or even whether he be or be not an abolitionist;—if your leading men publicly declare, that it is your religious duty to put to an immediate death, whenever they come within your power, those who presume to say that slavery is sin (and such a declaration did a South Carolina gentleman make on the floor of congress, respecting the inconsiderable person who is addressing you);—and, if your professing Christians, not excepting ministers of the gospel, thirst for the blood of abolitionists^A, as I will abundantly show, if you require proof;—if, in a gospel land, all this be so, then I put it to your candor, whether it can reasonably be supposed that the Apostles would have been allowed to attack slavery in the midst of heathen slaveholders. Why it is that slaveholders will not allow a word to be breathed against slavery, I cannot, perhaps, correctly judge. Abolitionists think that this unwillingness denotes that man is unfit for absolute power over his fellow men. They think as unfavorably of the influence of this power on the slaveholder, as your own Jefferson did. They think that it tends to make him impatient of contradiction, self-willed, supercilious, cruel, murderous, devilish; and they think that they can establish this opinion, not by the soundest philosophy only, but by the pages of many of your own writers, and by those daily scenes of horrid brutality which make the Southern States, in the sight both of God and man, one of

the most frightful and loathsome portions of the world—of the whole world—barbarous as well as civilized.

[A](#): I will relate an incident, to show what a fiend even woman, gentle, lovely woman, may become, after she has fallen under the sway of the demon of slavery. Said a lady of Savannah, on a visit in the city of New York, "I wish he (Rev. Dr. Samuel H. Cox) would come to Savannah. I should love to see him tarred and feathered, and his head cut off and carried on a pole around Savannah." This lady is a professing Christian. Her language stirs me up to retaliate upon her, and to express the wish that she would come to the town, and even to the dwelling, in which Dr. Cox resides. She would find that man of God—that man of sanctified genius—as glad to get his enemies into his hands, as she would be to get him into the hands of his enemies:—not, however, for the purpose of disgracing and decapitating them, but, that he might pour out upon them the forgiveness and love of his generous and *abolitionized* heart. In the city of New York there are thousands of whole-souled abolitionists. What a striking testimony is it, in behalf of their meekness and forbearance, when a southern fury is perfectly secure, in belching out such words of wrath in the midst of them! We abolitionists never love our principles better, than when we see the slaveholder feeling safe amongst us. No man has been more abusive of us than Governor McDuffie; and yet, were he to travel in the Northern States, he would meet with no unkindness at the hands of any abolitionist. On the other hand, let it be known to the governor, that he has within his jurisdiction a prominent abolitionist—one, whose heart of burning love has made him specially anxious to persuade the unfortunate slaveholder to be just to himself, to his fellow men, and to his God,—and the governor, true to the horrid sentiments of his famous message, would advise that he be "put to death without benefit of clergy." Let slaveholders say what they will about our blood-thirstiness, there is not one of them who fears to put himself in our power. The many of them, who have been beneath my roof, and the roofs of other abolitionists, have manifested their confidence in our kindness. Were a stranger to the institution of slavery to learn, in answer to his inquiries, that "an abolitionist" is "an outlaw amongst slaveholders," and that "a slaveholder" is "the kindly entertained guest of abolitionists,"—here would be a puzzle indeed. But the solution of it would not fail to be as

honorable to the persecuted man of peace, as it would be disgraceful to the bloody advocate and executioner of Lynch law.

I need not render any more reasons why the Apostles did not specifically attack slavery; but I will reply to a question, which I am sure will be upon your lips all the time you are reading those I have rendered. This question is, "If the Apostles did not make such an attack on slavery, why may the American abolitionists?" I answer, that the difference between the course of the abolitionists and of the Apostles, in this matter, is justified by the difference in their circumstances. Professor Hodge properly says, that our course should be like theirs, "unless it can be shown that their circumstances were so different from ours, as to make the rule of duty different in the two cases." And he as properly adds, "the obligation to point out and establish this difference rests upon the abolitionists."

The reasons I have given, why the Apostles did not directly attack slavery, do not apply to the abolitionists. The arm of civil power does not restrain us from attacking it. To open our lips against the policy and institutions of civil government is not certain death. A despotic government restricted the efforts of the Apostles to do good. But we live under governments which afford the widest scope for exertions to bless our fellow men and honor God. Now, if we may not avail ourselves of this advantage, simply because the Apostles did not have it to avail themselves of, then whatever other interests may prosper under a republican government, certain it is, that the cause of truth and righteousness is not to be benefited by it. Far better never to have had our boasted form of government, if, whilst it extends the freedom and multiplies the facilities of the wicked, it relieves the righteous of none of the restrictions of a despotic government. Again, there is a religious conscience all over this land, and an enlightened and gospel sense of right and wrong; on which we can and do (as in your Introduction you concede is the fact) bring our arguments against slavery to bear with mighty power. But, on the other hand, the creating of such a conscience and such a sense, in the heathen and semi-heathen amongst whom they lived and labored, was the first, and appropriate, and principal work of the Apostles. To employ, therefore, no other methods for the moral and religious improvement of the people of the United States, than were employed by the Apostles for that of the people of the Roman empire, is as absurd as it

would be to put the highest and lowest classes in a school to the same lessons; or a raw apprentice to those higher branches of his trade which demand the skill of an experienced workman.

I am here reminded of what Professor Hodge says were the means relied on by the Saviour and Apostles for abolishing slavery. "It was," says he, "by teaching the true nature, dignity, equality, and destiny of men; by inculcating the principles of justice and love; and by leaving these principles to produce their legitimate effects in ameliorating the condition of all classes of society." I would not speak disparagingly of such a course of instruction; so far from it, I am ready to admit that it is indispensable for the removal of evils, in every age and among every people. When general instructions of this character shall have ceased to be given, then will all wholesome reforms have ceased also. But, I cannot approve of the Professor's object in this remark. This object is to induce his readers to believe, that these abstract and general instructions are all that is needed to effect the termination of slavery. Now, I maintain that one thing more is wanting; and that is, the application of these instructions—of the principles contained in them—to the evil in hand. As well may it be supposed, that the mechanic can accomplish his work without the application, and by the mere possession, of his tools, as that a given reformation can be effected by unapplied general principles. Of these principles, American philanthropists have been possessed from time immemorial; and yet all the while American slavery has been flourishing and growing strong. Of late, however, these principles have been brought to bear upon the system, and it manifestly is already giving way. The groans of the monster prove that those rays of truth, which did not disturb him whilst they continued to move in the parallel lines of abstractions and generalities, make it quite too hot for him since they are converged to a burning focus upon his devoted head. Why is it, for example, that the influence of the Boston Recorder and New-York Observer—why is it, that the influence of most of our titled divines—is decidedly hostile to the abolition of slavery? It is not because they are deficient in just general sentiments and principles respecting man's duties to God and his fellow man. It is simply because they stand opposed to the application of these sentiments and principles to the evil in question; or, in other words, stand opposed to the Anti-Slavery Society, which is the chosen lens of Divine Providence for turning these sentiments and principles, with

all the burning, irresistible power of their concentration, against a giant wickedness. What is the work of the Temperance Societies, but to make a specific application of general truths and principles to the vice of intemperance? And the fact, that from the time of Noah's intoxication, until the organization of the American Temperance Society, the desolating tide of intemperance had been continually swelling, proves that this reliance on unapplied principles, however sound—this "faith without works"—is utterly vain. Nathan found that nothing, short of a specific application of the principles of righteousness, would answer in the case of the sin of adultery. He had to abandon all generalities and circuitousness, and come plump upon the royal sinner with his "Thou art the man." Those divines, whose policy it is to handle slaveholders "with gloves," if they must handle them at all, doubtless regard Nathan as an exceedingly impolite preacher.

But, not only is it far less difficult to instruct the people of the United States than it was the people of the Roman Empire, in the sin of slavery; it is also—for the reason that the sin is ours, to a far greater extent, than it was theirs—much more important for us than for them to be instructed in it. They had no share in the government which upheld it. They could not abolish it by law. But, on the other hand, the people of the United States are themselves the government of their country. They are the co-sovereigns of their nation. They uphold slavery by law, and they can put it down by law. In this point of view, therefore, slavery is an incomparably greater sin in us, than it was in them.

Only one other reason will be given why it is more needful to overthrow American, than it was to overthrow Roman slavery. The Church was then but a handful of "strangers scattered throughout" the heathen world. It was made up of those who had little influence, and who were esteemed "the filth of the world, and the offscouring of all things." It had, probably, little, if any thing, to do with slavery, except to suffer its rigors in the persons of many of its members. But here, the Church, comprising no very small proportion of the whole population, and exerting a mighty influence for good or ill on the residue, is tainted, yes, rotten with slavery. In this contrast, we not only see another reason why the destruction of American slavery is more important than was that of Roman slavery; but we also see, that the Apostles could have been little, if at all, actuated by that motive, which is

more urgent than any other in the breasts of the American abolitionists—the motive of purging the Church of slavery.

To return to what you say of the abominations and horrors of Greek and Roman slavery:—I should be doing you great injustice, were I to convey the idea that you approve of them. It is admitted that you disapprove of them; and, it is also admitted, that no responsibility for them rests on the relation of slaveholder and slave, if that relation have, as you labor to show, the stamp of Divine approbation. You say, that slavery, like marriage, is an institution sanctioned by the New Testament; and that, therefore, neither for the evils which attend it, nor for any other cause, is it to be argued against. This is sound reasoning, on your part; and, if your premises are correct, there is no resisting your deduction. We are, in that case, not only not to complain of the institution of slavery, but we are to be thankful for it. Considering, however, that the whole fabric of your argument, in the principal or New Testament division of your book, is based on the alleged fact that the New Testament approves of slavery, it seems to me that you have contented yourself, and sought to make your readers contented, with very slender evidences of the truth of this proposition. These evidences are, mainly—that the New Testament does not declare slavery to be a sin: and, that the Apostles enjoin upon masters and servants their respective duties; and this, too, in the same connexion in which they make similar injunctions upon those who stand in the confessedly proper relations of life—the husband and wife, the parent and child. Your other evidences, that the New Testament approves of slavery, unimportant as they are, will not be left unnoticed.

I have attempted to show, that the omission of the New Testament to declare slavery to be a sin, is not proof that it is not a sin. I pass on to show, that the Apostolic injunction of duties upon masters and servants does not prove that slavery is sinless.

I have now reached another grand fallacy in your book. It is also found in Professor Hodge's article. You, gentlemen, take the liberty to depart from our standard English translation of the Bible, and to substitute "slaveholder" for "master"—"slave" for "servant"—and, in substance, "emperor" for "ruler"—and "subject of an imperial government" for "subject of civil

government generally." I know that this substitution well suits your purposes: but, I know not by what right you make it. Professor Hodge tells the abolitionists, certainly without much respect for either their intelligence or piety, that "it will do no good (for them) to attempt to tear the Bible to pieces." There is but too much evidence, that he himself has not entirely refrained from the folly and crime, which he is so ready to impute to others.

I will proceed to offer some reasons for the belief, that when the Apostles enjoined on masters and servants their respective duties, they had reference to servitude in general, and not to any modification of it.

1st. You find passages in the New Testament, where you think *despotes* refers to a person who is a slaveholder, and *doulos* to a person who is a slave. Admit that you are right: but this (which seems to be your only ground for it) does not justify you in translating these words "slaveholder" and "slave," whenever it may be advantageous to your side of the question to have them thus translated. These words, have a great variety of meanings. For instance, there are passages in the New Testament where *despotes* means "God"—Jesus Christ—Head of a family:" and where *doulos* means "a minister or agent"—a subject of a king"—a disciple or follower of Christ." *Despotes* and *doulos* are the words used in the original of the expression: "Lord, now lettest thou thy servant depart in peace:" *doulos* in that of the expressions, "servant of Christ," and "let him be servant of all." Profane writers also use these words in various senses. My full belief is, that these words were used in both a generic and special sense, as is the word corn, which denotes bread-stuffs in general, and also a particular kind of them; as is the word meat, the meaning of which is, sometimes, confined to flesh that is eaten, and, at other times, as is frequently the case in the Scriptures, extends to food in general; and, as is the word servant, which is suitable, either in reference to a particular form of servitude, or to servitude in general. There is a passage in the second chapter of Acts, which is, of itself, perhaps, sufficient to convince an unbiassed mind, that the Apostles used the word *doulos* in a, generic, as well as in a special sense. *Doulos* and *doule* are the words in the phrase: "And on my servants and on my handmaidens." A reference to the prophecy as it stands; in Joel 2: 28, 29, makes it more obvious, that persons in servitude are referred to under the words *doulos* and *doule*; and, that the predicted

blessing was to be shed upon persons of all ages, classes, and conditions—upon old men and young men—upon sons and daughters—and upon man-servants and maid-servants. But, under the interpretation of those, who, like Professor Hodge and yourself, confine the meaning of *doulos* and *doyle* to a species of servants, the prophecy would have reference to persons of all ages, classes, and conditions—*excepting certain descriptions of servants*. Under this interpretation, we are brought to the absurd conclusion, that the spirit is to be poured out upon the master and his slaves—*but not upon his hired servants*.

I trust that enough has been said, under this my first head, to show that the various senses in which the words *despotes* and *doulos* are employed, justify me in taking the position, that whenever we meet with them, we are to determine, from the nature of the case, and from the connexion in which they are used, whether they refer to servitude in general, or to a species of it.

2d. The confinement of the meaning of the words in question supposes, what neither religion nor common sense allows us to suppose, that slaveholders and slaves, despots and those in subjection to them, were such especial favorites of the Apostles, as to obtain from them specific instructions in respect to their relative duties, whilst all other masters and servants, and all other rulers and subjects, throughout all future time, were left unprovided with such instructions. According to this supposition, when slavery and despotism shall, agreeably to Professor Hodge's expectations, have entirely ceased, there will be not one master nor servant, not one ruler nor subject in the whole earth, to fall, as such, under the Apostolic injunctions.

3d. You admit that there were hirelings, in a community of primitive believers; and I admit, for the moment, that there were slaves in it. Now, under my interpretation of the Apostolic injunction, all husbands, all wives, all parents, all children, and all servants, in this community, are told their respective duties: but, under yours, these duties are enjoined on all husbands, all wives, all parents, all children, and a *part of the servants*. May we not reasonably complain of your interpretation, that it violates analogy?

Imagine the scene, in which a father, in the Apostolic age, assembles his family to listen to a letter from the glowing Peter, or "such an one as Paul the aged." The letter contains instructions respecting the relative duties of life. The venerable pair, who stand in the conjugal and parental relations, receive, with calm thankfulness, what is addressed to themselves;—the bright-eyed little ones are eager to know what the Apostle says to children—a poor slave blesses God for his portion of the Apostolic counsel;—and the scene would be one of unmingled joy, if the writer had but addressed hired servants, as well as slaves. One of the group goes away to weep, because the Apostle had remembered the necessities of all other classes of men, and forgotten those of the hireling. Sir, do you believe that the Apostle was guilty of such an omission? I rejoice that my side of the question between us, does not call for the belief of what is so improbable and unnatural—and, withal, so dishonoring to the memory of the Apostle.

4th. Another reason for believing, that the Apostles intended no such limitation as that which you impose upon their words, is, that their injunctions are as applicable to the other classes of persons occupying these relations, as they are to the particular class to which you confine them. The hired servant, as well as the slave, needs to be admonished of the sins of "eye service" and "purloining;" and the master of voluntary, as well as involuntary servants, needs to be admonished to "give that which is just and equal." The ruler in a republic, or, in a limited monarchy, as well as the despot, requires to be reminded, that he is to be "a minister of God for good." So the subject of one kind of civil government, as well as that of another, needs to be told to be "subject unto the higher powers."

I need not extend my remarks to prove, that *despotes* and *doulos* are, in the case before us, to be taken in their comprehensive sense of master and servant: and, clearly, therefore, the abolitionist is not guilty of violating your rule, "not to interfere with a civil relation (in another place, you say, 'any of the existing relations of life') for which, and to regulate which, either Christ or his Apostles have prescribed regulations." He believes, as fully as yourself, that the relation of master and servant is approved of God. It is the slavery modification of it—the slaveholder's abuse and perversion of the relation, in reducing the servant to a chattel—which, he believes, is not approved of God.

For the sake of the argument, I will admit, that the slave alone, of all classes of servants, was favored with specific instructions from the Apostles: and then, how should we account for the selection? In no other way, can I conceive, than, on the ground, that his lot is so peculiarly hard—so much harder than that of persons under other forms of servitude—that he needs, whilst they do not, Apostolic counsel and advice to keep him just, and patient, and submissive. Let me be spared from the sin of reducing a brother man to such a lot. Your doctrine, therefore, that the Apostles addressed slaves only, and not servants in general, would not, were its correctness admitted, lift you out of all the difficulties in your argument.

Again, does it necessarily follow from this admission, that the relation of slaveholder and slave is sinless? Was the despotism of the Roman government sinless? I do not ask whether the *abuses* of civil government, in that instance, were sinless. But, I ask, was a government, despotic in its constitution, depriving all its subjects of political power, and extending absolute control over their property and persons—was such a government, independently of the consideration of its *abuses*, (if indeed we may speak of the abuses of what is in itself an *abuse*,) sinless? I am aware, that Prof. Hodge says, that it was so: and, when he classes despotism and slavery with *adiaphora*, "things indifferent;" and allows no more moral character to them than to a table or a broomstick, I trust no good man envies his optics. May I not hope that you, Mr. Smylie, perceive a difference between despotism and an "indifferent thing." May I not hope, that you will, both as a Republican and a Christian, take the ground, that despotism has a moral character, and a bad one? When our fathers prayed, and toiled, and bled, to obtain for themselves and their children the right of self-government, and to effect their liberation from a power, which, in the extent and rigor of its despotism, is no more to be compared to the Roman government, than the "little finger" to the "loins," I doubt not, that they felt that despotism had a moral, and a very bad moral character. And so would Prof. Hodge have felt, had he stood by their side, instead of being one of their ungrateful sons. I say ungrateful—for, who more so, than he who publishes doctrines that disparage the holy cause in which they were embarked, and exhibits them, as contending for straws, rather than for principles? Tell me, how long will this Republic endure after our people shall have imbibed the doctrine, that

the *nature* of civil government is an indifferent thing: and that the poet was right when he said,

"For forms of government let *fools* contest?"

This, however, is but one of many doctrines of ruinous tendency to the cause of civil liberty, advanced by pro-slavery writers to sustain their system of oppression.

It would surely be superfluous to go into proofs, that the Roman government was vicious and wicked in its constitution and nature. Nevertheless, the Apostle enjoined submission to it, and taught its subjects how to demean themselves under it. Here, then, we have an instance, in which we cannot argue the sinlessness of a relation, from the fact of Apostolic injunctions on those standing in it. Take another instance. The Chaldeans went to a foreign land, and enslaved its people—as members of your guilty partnership have done for some of the slaves you now own, and for the ancestors of others. And God destroyed the Chaldeans expressly "for all their evil that they had done in Zion." But, wicked as they were, for having instituted this relation between themselves and the Jews, God, nevertheless, tells the Jews to submit to it. He tells them, "Serve the King of Babylon." He even says, "seek the peace of the city, whither I have caused you to be carried away captives, and pray unto the Lord for it; for, in the peace thereof, shall ye have peace." Here then, we have another instance, in addition to that of the Roman despot and his subjects, in which the Holy Spirit prescribed regulations for wicked relations. You will, at least, allow, that the relation established by the Chaldeans between themselves and the captive Jews, was wicked. But, you will perhaps say, that this is not a relation coming within the contemplation of your rule. Your rule speaks of a civil relation, and also of the existing relations of life. But, the relation in question, being substantially that of slaveholder and slave, is, according to your own showing, a civil relation. Perhaps you will say, it is not an "existing relation of life." But what do you mean by "an existing relation of life?" Do you mean, that it is a relation approved of God? If you do, and insist that the relation of slaveholder and slave is "an existing relation of life," then you are guilty of begging the great question between us. Your

rule, therefore, can mean nothing more than this—that any relation is rightful, for which the Bible prescribes regulations. But the relation referred to between the Chaldeans and Jews, proves the falsity of the rule. Again, when a man compels me to go with him, is not the compelled relation between him and me a sinful one? And the relation of robber and robbed, which a man institutes between himself and me, is not this also sinful? But, the Bible has prescribed regulations for the relations in both these cases. In the one, it requires me to "go with him twain;" and, in the other, to endure patiently even farther spoliation and, "let him have (my) cloak also." In these cases, also, do we see the falsity of your rule—and none the less clearly, because the relations in question are of brief duration.

Before concluding my remarks on this topic, let me say, that your doctrine, that God has prescribed no rules for the behaviour of persons in any other than the just relations of life, reflects no honor on His compassion. Why, even we "cut-throat" abolitionists are not so hard-hearted as to overlook the subjects of a relation, because it is wicked. Pitying, as we do, our poor colored brethren, who are forced into a wicked relation, which, by its very nature and terms, and not by its *abuses*, as you would say, has robbed them of their all—even we would, nevertheless, tell them to "resist not evil"—to be obedient unto their own masters"—not purloining, but showing all good fidelity." We would tell them, as God told the captive Jews, to "seek the peace of those, whither they are carried away captives, and to pray unto the Lord" for them: and our hope of their emancipation is not, as it is most slanderously and wickedly reported to be, in their deluging the South with blood: but, it is, to use again those sweet words of inspiration, that "in the peace thereof they shall have peace." We do not communicate with the slave; but, if we did, we would teach him, that our hope of his liberation is grounded largely in his patience, and that, if he would have us drop his cause from our hands, he has but to take it into his own, and attempt to accomplish by violence, that which we seek to effect through the power of truth and love on the understanding and heart of his master.

Having disposed of your reasons in favor of the rightfulness of the relation of slaveholder and slave, I will offer a few reasons for believing that it is not rightful.

1st. My strongest reason is, that the great and comprehensive principles, and the whole genius and spirit of Christianity, are opposed to slavery.

2d. In the case of Pharoah and his Jewish slaves, God manifested his abhorrence of the relation of slavery. The fact that the slavery in this case was political, instead of domestic, and, therefore, of a milder type than that of Southern slavery, does not forbid my reasoning from the one form to the other. Indeed, if I may receive your declaration on this point, for the truth, I need not admit that the type of the slavery in question is milder than that of Southern slavery;—for you say, that "their (the Jews) condition was that of the most abject bondage or slavery." But the supposition that it is milder, being allowed to be correct, would only prove, that God's abhorrence of Southern bondage as much exceeds that which he expressed of Egyptian bondage, as the one system is more full than the other of oppression and cruelty.

We learn from the Bible, that it was not because of the *abuses* of the Egyptian system of bondage, but, because of its sinful nature, that God required its abolition. He did not command Pharaoh to cease from the *abuses* of the system, and to correct his administration of it, but to cease from the system itself. "I have heard," says God, "the groaning of the children of Israel, whom the Egyptians keep in bondage;"—not whom the Egyptians, availing themselves of their absolute power, compel to make brick without straw, and seek to waste and exterminate by the murder of their infant children;—but simply "whom the Egyptians keep in bondage." These hardships and outrages were but the leaves and branches. The root of the abomination was the bondage itself, the assertion of absolute and slaveholding power by "a new king over Egypt, which knew not Joseph." In the next verse God says: "I will rid you"—not only from the burdens and abuses, as you would say, of bondage,—but "out of their (the Egyptians) bondage" itself—out of the relation in which the Egyptians oppressively and wickedly hold you.

God sends many messages to Pharaoh. In no one of them does He reprove him for the abuses of the relation into which he had forced the Jews. In no one of them is he called on to correct the evils which had grown out of that relation. But, in every one, does God go to the root of the evil, and

command Pharaoh, "let my people go"—"let my people go, that they may serve me." The abolitionist is reproachfully called an "ultraist" and "an immediatist." It seems that God was both, when dealing with this royal slaveholder:—for He commanded Pharaoh, not to mitigate the bondage of the Israelites, but to deliver them from it—and that, too, immediately. The system of slavery is wicked in God's sight, and, therefore, did He require of Pharaoh its immediate abandonment. The phrase, "let my people go, that they may serve me," shows most strikingly one feature of resemblance between Egyptian and American slavery. Egyptian slavery did not allow its subjects to serve God, neither does American. The Egyptian master stood between his slave and their God: and how strikingly and awfully true is it, that the American master occupies the like position! Not only is the theory of slavery, the world over, in the face of God's declaration; "all souls are mine:" but American slaveholders have brought its practical character to respond so fully to its theory—they have succeeded, so well, in excluding the light and knowledge of God from the minds of their slaves—that they laugh at His claim to "all souls."

3d. Paul, in one of his letters to the Corinthian Church, tells servants—say slaves, to suit your views—if they may be free, to prefer freedom to bondage. But if it be the duty of slaves to prefer freedom to bondage, how clearly is it the correlative duty of the master to grant it to him! You interpret the Apostle's language, in this case, as I do; and it is not a little surprising, that, with your interpretation of it, you can still advocate slavery. You admit, that Paul says—I use your own words—"a state of freedom, on the whole, is the best." Now, it seems to me, that this admission leaves you without excuse, for defending slavery. You have virtually yielded the ground. And this admission is especially fatal to your strenuous endeavors to class the relation of master and slave with the confessedly proper relations of life, and to show that, like these, it is approved of God. Would Paul say to the child, "a state of freedom" from parental government "on the whole is the best?" Would he say to the wife, "a state of freedom from your conjugal bonds" on the whole is the best? Would he say to the child and wife, in respect to this freedom, "use it rather?" Would he be thus guilty of attempting to annihilate the family relation?

Does any one wonder, that the Apostle did not use stronger language, in advising to a choice and enjoyment of freedom? It is similar to that which a pious, intelligent, and prudent abolitionist would now use under the like circumstances. Paul was endeavoring to make the slave contented with his hard lot, and to show him how unimportant is personal liberty, compared with liberation from spiritual bondage: and this explains why it is, that he spoke so briefly and moderately of the advantages of liberty. His advice to the slave to accept the boon of freedom, was a purely incidental remark: and we cannot infer from it, how great stress he would have laid on the evils of slavery, and on the blessings of liberty, in a discourse treating directly and mainly of those subjects. What I have previously said, however, shows that it would, probably, have been in vain, and worse than in vain, for him to have come out, on any occasion whatever, with an exposition of the evils of slavery.

On the thirty-second page of your book, you say, "Masters cannot, according to the command of Christ, render to their slaves that which is just and equal, if you abolish the relation; for, then they will cease to be masters." Abolish any of the relations for which regulations are provided "in the New Testament, and, in effect, you abolish some of the laws of Christ." But, we have just seen that Paul was in favor of abolishing the relation of master and slave; which, as you insist, is a relation for which regulations are provided in the New Testament. It is, therefore, irresistibly deduced from your own premises, that he was in favor of abolishing "the laws of Christ." It would require but little, if any, extension of your doctrine, to make it wrong to remove all the graven images out of a nation. For, in that event, the law of God against bowing down to them would have nothing left to act upon. It would thenceforth be inoperative.

4th. Another reason for believing, that the Apostles did not approve of the slavery modification of servitude, is found in Paul's injunction; "Remember them that are in bonds as bound with them." I admit, that it is probable that others as well as slaves, are referred to in this injunction: but it certainly is not probable, that others, to the exclusion of slaves, are referred to. But, even on the supposition that slaves are not referred to, but those only who are tenants of prisons, let me ask you which you would rather be—a slave or a prisoner, as Paul probably was when he wrote this injunction?—and

whether your own description of the wretched condition of the Roman slave, does not prepare you to agree with me, that if the Apostle could ask sympathy for the prisoner, who, with all his deprivations, has still the protection of law, it is not much more due to the poor slave, who has no protection whatever against lawless tyranny and caprice!

But to proceed, if slaves are the only, or even a part of the persons referred to in the injunction, then you will observe, that the Apostle does not call for the exercise of sympathy towards those who are said to be suffering what you call the *abuses* of slavery; but towards those who are so unhappy as to be but the subjects of it—towards those who are "in bonds." The bare relation of a slave is itself so grievous, as to call for compassion towards those who bear it. Now, if this relation were to be classed with the approved relations of life, why should the Apostle have undertaken to awaken compassion for persons, simply because they were the subject, of it? He never asked for sympathy for persons, simply because they were parties to the relations of husband and wife, parent and child. It may be worthy of notice, that the injunction under consideration is found in Paul's letter to the Jewish Christians. This attempt to awaken pity in behalf of the slave, and to produce abhorrence of slavery, was made upon these, and not upon the Gentile Christians; because, perhaps, that they, who had always possessed the Oracles of God, could bear it; and they who had just come up out of the mire of heathenism, could not. If this explanation be just, it enforces my argument for ascribing to causes, other than the alleged sinfulness of the institution, the Apostle's omission to utter specific rebukes of slavery.

5th. Another reason for believing that the slavery modification of servitude should not be classed with the confessedly proper relations with which you class it, is the conclusive one, that it interferes with, and tends to subvert, and does actually subvert, these relations. The Apostles prescribe duties, which are necessary to sustain these relations, and make them fruitful sources of happiness to the parties to them. Among these duties are the following: "Wives, submit yourselves to your own husbands, as it is fit in the Lord"—"Children, obey your parents"—"Husbands, dwell with them" (your wives). But slavery, where it does not make obedience to these commands utterly impossible, conditions it on the permission of usurpers, who have presumed to step between the laws of God and those on whom

they are intended to bear. Slavery, not the law of God, practically determines whether husbands shall dwell with their wives: and an amount of anguish, which God alone can compute, testifies that slavery has thus determined, times without number, that husbands shall not dwell with their wives. A distinguished gentleman, who has been much at the South, is spending a little time in my family. He told me but this day, that he had frequently known the air filled with shrieks of anguish for a whole mile around the spot, where, under the hammer of the auctioneer, the members of a family were undergoing an endless separation from each other. It was but last week, that a poor fugitive reached a family, in which God's commands, "Hide the outcasts, betray not him that wandereth"—"Hide not thyself from thy own flesh"—are not a dead letter. The heaviest burden of his heart is, that he has not seen his wife for five years, and does not expect to see her again: his master, in Virginia, having sold him to a Georgian, and his wife to an inhabitant of the District of Columbia. Whilst the law of God requires wives to "submit themselves to their husbands, as it is fit in the Lord;" the law of slavery commands them, under the most terrific penalties, to submit to every conceivable form of violence, and the most loathsome pollution, "as it is fit" in the eyes of slaveholders—no small proportion of whom are, as a most natural fruit of slavery, abandoned to brutality and lust. The laws of South Carolina and Georgia make it an offence punishable with death, "if any slave shall presume to strike a white person." By the laws of Maryland and Kentucky, it is enacted "if any negro, mulatto, or Indian, bond or free, shall, at any time, lift his or her hand in opposition to any person, not being a negro or Indian, he or she shall, in the first-mentioned State, suffer the penalty of cropped ears; and, in the other, thirty-nine lashes on his or her bare back, well laid on, by order of the justice." In Louisiana there is a law—for the enactment of which, slavery is, of course, responsible—in these words: "Free people of color ought never to insult or strike white people, nor presume to conceive themselves equal to the whites: but, on the contrary, they ought *to yield to them on every occasion*, and never speak or answer them but with respect, under the penalty of imprisonment, according to the nature of the offence." The following extract of a letter, written to me from the South, by a gentleman who still resides there, serves to show how true it is, that "on every occasion," the colored person must yield to the white, and, especially, if the white be clothed with the authority of an ambassador of Christ. "A negro was executed in Autauga Co., not long

since, for the murder of his master. The latter, it seems, attempted to violate the wife of his slave in his presence, when the negro enraged, smote the wretch to the ground. And this master—this brute—this fiend—was a preacher of the gospel, in regular standing!" In a former part of this communication, I said enough to show, that slavery prevents children from complying with the command to obey their parents. But, in reply to what I have said of these outrages on the rights of husbands and wives, parents and children, you maintain, that they are no part of the system of slavery. Slaveholders, however, being themselves judges, they are a part of it, or, at least, are necessary to uphold it; else they would not by deliberate, solemn legislation, authorize them. But, be this as it may, it is abundantly proven, that slavery is, essentially and inevitably, at war with the sacred rights of the family state. Let me say, then, in conclusion under this head, that in whatever other company you put slavery, place it not in that of the just relations of husband and wife, parent and child. They can no more company with each other, than can fire with water. Their natures are not only totally opposite to, but destructive of, each other.

6th. The laws, to which you refer on the sixty-eighth page of your book, tend to prove, and, so far as your admission of the necessity of them goes, do prove, that the relation of slaveholder and slave does not deserve a place, in the class of innocent and proper relations. You there say, that the writings of "such great and good men as Wesley, Edwards, Porteus, Paley, Horsley, Scott, Clark, Wilberforce, Sharp, Clarkson, Fox, Johnson, and a host of as good if not equally great, men of later date," have made it necessary for the safety of the institution of slavery, to pass laws, forbidding millions of our countrymen to read. You should have, also, mentioned the horrid sanctions of these laws—stripes, imprisonment, and death. Now, these laws disable the persons on whom they bear, from fulfilling God's commandments, and, especially, His commandment to "search the Scriptures." They are, therefore, wicked. What then, in its moral character, must be a relation, which, to sustain it, requires the aid of wicked laws?—and, how entirely out of place must it be, when you class it with those just relations of life, that, certainly, require none of the support, which, you admit, is indispensable to the preservation of the relation of slaveholder and slave! It is true, that you attempt to justify the enactment of the laws in question, by the occasions which you say led to it. But, every law forbidding what God requires, is a

wicked law—under whatever pretexts, or for whatever purposes, it may have been enacted. Let the occasions which lead to a wicked measure be what they may, the wickedness of the measure is still sufficient to condemn it.

In the case before us, we see how differently different persons are affected by the same fact. Whilst the stand taken against slavery by Wesley, Edwards, and the other choice spirits you enumerate, serves but to inspire you with concern for its safety, it would, of itself, and without knowing their reasons for it, be well nigh enough to destroy my confidence in the institution. Let me ask you, Sir, whether it would not be more reasonable for those, who are so industriously engaged in insulating the system of American slavery, and shrouding it with darkness, to find less fault with the bright and burning light which the writings of the wisest and best men pour upon it, and more with the system which "hateth the light, neither cometh to the light."

You would have your readers believe, that the blessings of education are to be withheld from your slaves—only "until the storm shall be overblown," and that you hope that "Satan's being let loose will be but for a little season." I say nothing more about the last expression, than that I most sincerely desire you may penitently regret having attributed the present holy excitement against slavery to the influences of Satan. By "the storm" you, doubtless, mean the excitement produced by the publications and efforts of the American Anti-Slavery Society. Now, I will not suppose that you meant to deceive your readers on this point. You are, nevertheless, inexcusable for using language so strikingly calculated to lead them into error. It is not yet three years since that Society was organized: but the statute books of some of the slave States contain laws, forbidding the instruction of slaves in reading, which were enacted long before you and I were born. As long ago as the year 1740, South Carolina passed a law, forbidding to teach slaves to write. Georgia did so in 1770. In the year 1800, thirty-three years before "the storm" of the Anti-Slavery Society began to blow, South Carolina passed a law, forbidding "assemblies of slaves, free negroes, &c., for the purpose of mental instruction." In the Revised Code of Virginia of 1819, is a law similar to that last mentioned. In the year 1818, the city of Savannah forbade by an ordinance, the instruction of all persons of color, either free

or bond, in reading and writing. I need not specify any more of these man-crushing, soul-killing, God-defying laws;—nor need I refer again to the shocking penalties annexed to the violation of most of them. I conclude my remarks under this head, with the advice, that, in the next edition of your book, you do not assign the anti-slavery excitement, which is now spreading over our land, as the occasion of the passage of the laws in question.

7th. The only other reason I will mention for believing, that the slavery modification of servitude is not approved of God, is, that it has never been known *to work well*—never been known to promote man's happiness or God's glory. Wickedness and wretchedness are, so uniformly, the product of slavery, that they must be looked upon, not as its abuses, but as its legitimate fruits. Whilst all admit, that the relations of the family state are, notwithstanding their frequent perversions, full of blessings to the world; and that, but for them, the world would be nothing better than one scene of pollution and wo;—to what history of slavery will you refer me, for proof of its beneficent operation? Will it be to the Bible history of Egyptian slavery? No—for that informs us of the exceeding wickedness and wretchedness of Egyptian slavery. Will it be to the history of Greek and Roman slavery? No—for your own book acknowledges its unutterable horrors and abominations. Will you refer me to the history of the West Indies for proofs of the happy fruits of slavery? Not until the earth is no more, will its polluted and bloody pages cease to testify against slavery. And, when we have come down to American slavery, you will not even open the book which records such facts, as that its subjects are forbidden to be joined in wedlock, and to read the Bible. No—you will not presume to look for a single evidence of the benign influences of a system, where, by the admission of your own ecclesiastical bodies, it has turned millions of men into heathen. I say nothing now of your beautiful and harmless theories of slavery:—but this I say, that when you look upon slavery as it has existed, or now exists, either amidst the darkness of Mahomedanism or the light of Christianity, you dare not, as you hope for the Divine favor, say that it is a Heaven-descended institution; and that, notwithstanding it is like Ezekiel's roll, "written within and without with lamentations and mourning and wo," it, nevertheless, bears the mark of being a boon from God to man.

Having disposed of your "strong reasons" for the position, that the New Testament authorizes slavery, I proceed to consider your remaining reasons for it.

Because it does not appear, that our Saviour and the Apostle Peter told certain centurions, who, for the sake of the argument, I will admit were slaveholders, that slaveholding is sinful, you argue, and most confidently too, that it is not sinful. But, it does not appear, that the Saviour and the Apostle charged *any* sinful practices upon them. Then, by your logic, all their other practices, as well as their slaveholding, were innocent, and these Roman soldiers were literally perfect.—Again; how do you know that the Saviour and the Apostle did not tell them, on the occasion you refer to, that they were sinners for being slaveholders? The fact, that the Bible does not inform us that they told them so, does not prove that they did not; much less does it prove, that they did not tell them so subsequently to their first interview with them. And again, the admission that they did not specifically attack slavery, at any of their interviews with the centurions, or on any other occasions whatever, would not justify the inference, that it is sinless. I need not repeat the reasoning which makes the truth of this remark apparent.

You refer to the Saviour's declaration of the unequalled faith of one of these centurions, with the view of making it appear that a person of so great faith could not be a great sinner. But, how long had he exercised this, or, indeed, any Christian faith? That he was on good terms with the Jews, and had built them a synagogue, is quite as strong evidence, that he had not, as that he had, previously to that time, believed in Jesus:—and, if he had not, then his faith, however strong, and his conversion, however decided, are nothing towards proving that slavery is sinless.

It is evident, that the Apostle was sent to Cornelius for the single purpose of inculcating the doctrine of the remission of sin, through faith in Christ.

I proceed to examine another of your arguments. From Paul's declaration to the Elders at Miletus, "I have not shunned to declare unto you all the counsel of God," taken in connexion with the fact, that the Bible does not inform us that he spoke to them of slaveholding, you confidently and exultingly infer that it is innocent. Here, again, you prove too much, and therefore, prove nothing. It does not appear that he specified a hundredth

part of their duties. If he did not tell them to abstain from slaveholding, neither did he tell them to abstain from games and theatres. But, his silence about slaveholding proves to your mind its sinlessness: equally then should his silence about games and theatres satisfy you of their innocence. Two radical errors run through a great part of your book. They are, that the Apostle gave specific instructions concerning all duties, and that the Bible contains these instructions. But, for these errors, your book would be far less objectionable than it is. I might, perhaps, rather say, that but for these, you could not have made up your book.

And now, since Paul's address to the Elders has been employed by you in behalf of slavery, allow me to try its virtue against slavery: and, if it should turn out that you are slain with your own weapon, it will not be the first time that temerity has met with such a fate. I admit, that the Apostle does not tell the Elders of any wrong thing which they had done; but there are some wrong things from which he had himself abstained, and some right things which he had himself done, of which he does tell them. He tells them, for instance, that he had not been guilty of coveting what was another's, and also, that with his own hands he had ministered to his own necessities and those of others: and he further tells them, that they ought to copy his example, and labor, as he had done, "to support the weak." Think you, sir, from this language that Paul was a slaveholder—and, that his example was such, as to keep lazy, luxurious slaveholders in countenance? The slaveholder is guilty of coveting, not only all a man has, but even the man himself. The slaveholder will not only not labor with his hands to supply the wants of others, and "to support the weak;" but he makes others labor to supply his wants:—yes, makes them labor unpaid—night and day—in storm, as well as in sunshine—under the lash—bleeding—groaning—dying—and all this, not to minister to his actual needs, but to his luxuriousness and sensuality.

You ridicule the idea of the abolition of slavery, because it would make the slaveholder "so poor, as to oblige him to take hold of the maul and wedge himself—he must catch, curry, and saddle his own horse—he must black his own brogans (for he will not be able to buy boots)—his wife must go herself to the wash-tub—take hold of the scrubbing broom, wash the pots, and cook all that she and her rail-mauler will eat." If Paul were, as you

judge he was, opposed to the abolition of slavery, it is at least certain, from what he says of the character of his life in his address to the Elders, that his opposition did not spring from such considerations as array you against it. In his estimation, manual labor was honorable. In a slaveholding community, it is degrading. It is so in your own judgment, or you would not hold up to ridicule those humble employments, which reflect disgrace, only where the moral atmosphere is tainted by slavery. That the pernicious influences of slavery in this respect are felt more or less, in every part of this guilty nation, is but too true. I put it to your candor, sir, whether the obvious fact, that slavery makes the honest labor of the hands disreputable, is not a weighty argument against the supposition that God approves it? I put it to your candor, sir, whether the fact, which you, at least, cannot gainsay, that slavery makes even ministers of the gospel despise the employments of seven-eighths of the human family, and, consequently, the humble classes, who labor in them—I put it to your candor, whether the institution, which breeds such contempt of your fellow-men and fellow Christians, must not be offensive to Him, who commands us to "Honor all men, and love the brotherhood?"

In another argument, you attempt to show, that Paul's letter to Philemon justifies slaveholding, and also the apprehension and return of fugitive slaves. After having recited the Resolution of the Chilicothe Presbytery—"that to apprehend a slave who is endeavoring to escape from slavery, with a view to restore him to his master, is a direct violation of the Divine law, and, when committed by a member of the church, ought to subject him to censure"—you undertake to make your readers believe, that Paul's sending Onesimus to Philemon, is a case coming fairly within the purview of the resolution. Let us see if it does. A man by the name of Onesimus was converted to Christianity, under Paul's ministry at Rome. Paul learnt that he had formerly been a servant—say a slave—of Philemon, who was a "dearly beloved" Christian: and believing that his return to his old master would promote the cause of Christ, and beautifully exemplify its power, he advised him to return to him. He followed the Apostle's advice and returned. Now, from this example, you attempt to derive a justification for "a member of a Church" to be engaged in forcibly apprehending and restoring fugitive slaves. I say forcibly—as the apprehension and return, referred to in the Resolution, are clearly forcible. I cannot refrain, sir, from saying, that you

greatly wrong the memory of that blessed Apostle of the Lord Jesus, in construing his writings to authorize such violence upon the persons and rights of men. And greatly, also, do you wrong the Resolution in question, by your endeavor to array the Bible against it. The Resolution is right; it is noble—it denotes in the source whence it emanated, a proper sense of the rights and dignity of man. It is all the better for being marked with an honorable contempt of wicked and heaven-daring laws. May I, having the suspicion, or even the certain knowledge, that my fellow man was once held in slavery, and is still *legally* a slave, seize upon him and reduce him again to slavery? May I thus deal with a guiltless and unaccused brother? Human laws may, it is true, bear me out in this man-stealing, which is not less flagrant than that committed on the coast of Africa:—but, says the Great Law-giver, "The word that I have spoken, the same shall judge him in the last day:"—and, it is a part of this "word," that "he that stealeth a man shall surely be put to death." In that last day, the mayors, recorders, sheriffs, and others, who have been engaged, whether in their official or individual capacity, in slave-catching and man-stealing, will find human laws but a flimsy protection against the wrath of Him, who judges his creatures by his own and not by human laws. In that "last day," all who have had a part, and have not repented of it, in the sin of treating man as property; all, I say, whether slaveholders or their official or unofficial assistants, the drivers upon their plantations, or their drivers in the free States—all, who have been guilty of throwing God's "image" into the same class with the brutes of the field—will find, that He is the avenger of his poorest, meanest ones—and that the crime of transmuting His image into property, is but aggravated by the fact and the plea that it was committed under the sanction of human laws.

But, to return—wherein does the letter of Paul to Philemon justify slaveholding? What evidence does it contain, that Philemon was a slaveholder at the time it was written? He, who had been his slave "in time past," had, very probably, escaped before Philemon's conversion to Christ. This "time past," may have been a *long* "time past." The word in the original, which is translated "in time past," does not forbid the supposition. Indeed, it is the same word, which the Apostle uses in the thirteenth verse of the first chapter of Galatians; and there it denotes a *long* "time past"—as much as from fifteen to eighteen years. Besides, Onesimus' escape and

return both favor the supposition, that it was between the two events that Philemon's conversion took place. On the one hand, he fled to escape from the cruelties of an unconverted master; on the other, he was encouraged to follow the Apostle's advice, by the consideration, that on his return to Philemon he should not have to encounter again the unreasonableness and rage of a heathen, but that he should meet with the justice and tenderness of a Christian—qualities, with the existence and value of which, he had now come to an experimental acquaintance. Again, to show that the letter in question does not justify slaveholding—in what character was it, that Paul sent Onesimus to Philemon? Was it in that of a slave? Far from it. It was, in that of "a brother beloved," as is evident from his injunction to Philemon to "receive him forever—not now as a *slave*, but above a *slave*—a brother beloved."

It is worthy of remark, that Paul's message to Philemon, shows, not only that he himself was not in favor of slaveholding, but, that he believed the gospel had wrought such an entire change on this subject, in the heart of Philemon, that Onesimus would find on his return to him, the tyrant and the slaveholder sunk in the brother and the Christian.

Paul's course in relation to Onesimus was such, as an abolitionist would deem it proper to adopt, under the like circumstances. If a fugitive slave, who had become a dear child of God, were near me, and, if I knew that his once cruel master had also become a "dearly beloved" Christian; and if, therefore, I had reason to believe, as Paul had, in the case of Philemon, that he would "receive him forever—not now as a *slave*, but above a *slave*, a brother beloved," I would advise him to revisit his old master, provided he could do so, without interference and violence from others. Such interference and violence did not threaten Onesimus in his return to Philemon. He was not in danger of being taken up, imprisoned, and sold for his jail fees, as a returning Onesimus would be in parts of this nation.

On the 72d page of your book, you utter sentiments, which, I trust, all your readers will agree, are unworthy of a man, a republican, and a Christian. You there endeavor again to make it appear, that it is not the *relation* of master and slave, but only the abuse of it, which is to be objected to.—You say: "Independence is a charming idea, especially to Americans: but what

gives it the charm? Is it the thing in itself? or is it because it is a release from the control of a bad master? Had Great Britain been a kind master, our ancestors were willing to remain her slaves." In reply to this I would say, that it must be a base spirit which does not prize "independence" for its own sake, whatever privation and suffering may attend it; and much more base must be that spirit, which can exchange that "independence" for a state of slavish subjection—even though that state abound in all sensual gratifications. To talk of "a kind master" is to talk of a blessing for a dog, but not for a man, who is made to "call no man master." Were the people of this nation like yourself, they would soon exchange their blood-bought liberties for subjection to any despot who would promise them enough to eat, drink, and wear. But, I trust, that we at the North are "made of sterner stuff." They, who make slaves of others, can more easily become slaves themselves: for, in their aggressions upon others, they have despised and trampled under foot those great, eternal principles of right, which *not only* constitute the bulwark of the general freedom; but his respect for which is indispensable to every man's valuation and protection of his individual liberties. This train of thought associates with itself in my mind, the following passage in an admirable speech delivered by the celebrated William Pinckney, in the Maryland House of Delegates in 1789. Such a speech, made at the present time in a slave State, would probably cost the life of him who should make it; nor could it be delivered in a free States at any less sacrifice, certainly, than that of the reputation of the orator. What a retrograde movement has liberty made in this country in the last fifty years!

"Whilst a majority of your citizens are accustomed to rule with the authority of despots, within particular limits—while your youths are reared in the habit of thinking that the great rights of human nature are not so sacred, but they may with innocence be trampled on, can it be expected, that the public mind should glow with that generous ardor in the cause of freedom, which can alone save a government, like ours, from the lurking demon of usurpation? Do you not dread the contamination of principle? Have you no alarms for the continuance of that spirit, which once conducted us to victory and independence, when the talons of power were unclasped for our destruction? Have you no apprehension left, that when the votaries of freedom sacrifice also at the gloomy altars of slavery, they will, at length, become apostates from them for ever? For my own part, I have no hope,

that the stream of general liberty will flow for ever, unpolluted, through the foul mire of partial bondage, or that they, who have been habituated to lord it over others, will not be base enough, in time, to let others lord it over them. If they resist, it will be the struggle of *pride* and *selfishness*, not of *principle*."

Had Edmund Burke known slaveholders as well as Mr. Pinckney knew them, he would not have pronounced his celebrated eulogium on their love of liberty;—he would not have ascribed to them any love of liberty, but the spurious kind which the other orator, impliedly, ascribes to them—that which "pride and selfishness" beget and foster. Genuine love of liberty, as Mr. Pinckney clearly saw, springs from "principle," and is found no where but in the hearts of those who respect the liberties and the rights of others.

I had reason, in a former part of this communication, to charge some of the sentiments of Professor Hodge with being alike reproachful to the memory of our fathers, and pernicious to the cause of civil liberty. There are sentiments on the 72d page of your book, obnoxious to the like charge. If political "independence"—if a free government—be the poor thing—the illusive image of an American brain—which you sneeringly represent it, we owe little thanks to those who purchased it for us, even though they purchased it with their blood; and little pains need we take in that case to preserve it. When will the people of the Northern States see, that the doctrines now put forth so industriously to maintain slavery, are rapidly undermining liberty?

On the 43d page of your book you also evince your low estimate of man's rights and dues. You there say, "the fact that the planters of Mississippi and Louisiana, even while they have to pay from twenty to twenty-five dollars per barrel for pork the present season, afford to their slaves from three to four and a half pounds per week, does not show, that they are neglectful in rendering to their slaves that which is just and equal." If men had only an animal, and not a spiritual and immortal nature also, it might do for you to represent them as well provided for, if but pork enough were flung to them. How preposterous to tell us, that God approves a system which brings a man, as slavery seems to have brought you, to regard his fellow man as a mere animal!

I am happy to find that you are not all wrong. You are no "gradualist." You are not inconsistent, like those who admit that slavery is sinful, and yet refuse to treat it as sinful. I hope our Northern "gradualists" will profit by the following passage in your book: "If I were convinced by that word (the Bible) that slavery is itself a sin, I trust that, let it cost what it would, I should be an abolitionist, because there is no truth, more clear to my mind, than that the gospel requires an *immediate* abandonment of sin."

You have no doubt of your right to hold your fellow men, as slaves. I wish you had given your readers more fully your views of the origin of this right. I judge from what you say, that you trace it back to the curse pronounced by Noah upon Canaan. But was that curse to know no end? Were Canaan's posterity to endure the entailment of its disabilities and woes, until the end of time? Was Divine mercy never to stay the desolating waves of this curse? Was their harsh and angry roar to reach, even into the gospel dispensation, and to mingle discordantly with the songs of "peace on earth and good will to men?" Was the captivity of Canaan's race to be even stronger than He, who came "to bind up the broken-hearted, and proclaim liberty to the captives?" But who were Canaan and his descendants? You speak of them, and with singular unfairness, I think, as "*the* posterity of Ham, from whom, it is supposed, sprang the Africans." They were, it is true, a part of Ham's posterity; but to call them "*the* posterity of Ham," is to speak as though he had no other child than Canaan. The fifteenth to nineteenth verses of the tenth chapter of Genesis teach us, beyond all question, that Canaan's descendants inhabited the land of Canaan and adjacent territory, and that this land is identical with the country afterwards occupied by the Jews, and known, in modern times, by the name of Palestine, or the Holy Land. Therefore, however true it may be, that a portion of Ham's posterity settled in Africa, we not only have no evidence that it was the portion cursed, but we have conclusive evidence that it was not.

But, was it a state of slavery to which Canaanites were doomed? I will suppose, for a moment, that it was: and, then, how does it appear right to enslave them? The curse in question is prophecy. Now prophecy does not say what ought to come to pass: nor does it say, that they who have an agency in the production of the foretold event, will be innocent in that agency. If the prediction of an event justifies those who are instrumental in

producing it, then was Judas innocent in betraying our Saviour. "It must needs be that offences come, but wo to that man by whom the offence cometh." Prophecy simply tells what will come to pass. The question, whether it was proper to enslave Canaanites, depends for its solution not on the curse or prophecy in question. If the measure were in conformity with the general morality of the Bible, then it was proper. Was it in conformity with it? It was not. The justice, equity and mercy which were, agreeable to the Divine command, to characterize the dealings of the Jews with each other, are in such conformity, and these are all violated by slavery. If those dealings were all based on the general morality of the Bible, as they certainly were, then slavery, which, in its moral character, is completely opposite to them, cannot rest on that morality. If that morality did not permit the Jews to enslave Canaanites, how came they to enslave them? You will say, that they had special authority from God to do so, in the words, "Both thy bondmen and thy bondmaids, which thou shalt have, shall be of the heathen that are around about you; of them shall ye buy bondmen and bondmaids." Well, I will admit that God did in one instance, and that He may have done so in others, give special authority to the Jews to do that, which, without such authority, would have been palpably and grossly immoral. He required them to exterminate some of the tribes of the Canaanites. He may have required them to bring other Heathens under a form of servitude violative of the general morality of his word.—Of course, no blame attaches to the execution of such commands. When He specially deposes us to kill for Him, we are as innocent in the agency, notwithstanding the general law, "thou shalt not kill," as is the earthquake or thunderbolt, when commissioned to destroy. Samuel was as innocent in hewing "Agag in pieces," as is the tree that falls upon the traveler. It may be remarked, in this connexion, that the fact that God gave a special statute to destroy some of the tribes of the Canaanites, argues the contrariety of the thing required to the morality of the Bible. It argues, that this morality would not have secured the accomplishment of what was required by the statute. Indeed, it is probable that it was, sometimes, under the influence of the tenderness and mercy inculcated by this morality, that the Jews were guilty of going counter to the special statute in question, and sparing the devoted Canaanites, as in the instance when they "spared Agag." We might reason, similarly to show that a special statute, if indeed there were such a one, authorizing the Jews to compel the Heathen to serve them, argues that

compulsory service is contrary to fundamental morality. We will suppose that God did; in the special statute referred to, clothe the Jews with power to enslave Heathens, and now let me ask you, whether it is by this same statute to enslave, that you justify your neighbors and yourself for enslaving your fellow men? But this is a special statute, conferring a power on the Jews only—a power too, not to enslave whomsoever they could; but only a specified portion of the human family, and this portion, as we have seen, of a stock, other than that from which you have obtained your slaves. If the special statutes, by which God clothed the Jews with peculiar powers, may be construed to clothe you with similar powers, then, inasmuch as they were authorized and required to kill Canaanites, you may hunt up for destruction the straggling descendants of such of the devoted ones, as escaped the sword of the Jews. Or, to make a different interpretation of your rights, under this supposition; since the statute in question authorized and required the Jews to kill the heathen, within the borders of what was properly the Jews' country, then you are also authorized and required to kill the heathens within the limits of your country:—and these are not wanting, if the testimony of your ecclesiastical bodies, before referred to, can be relied on; and, if it be as they say, that the millions of the poor colored brethren in the midst of you are made heathens by the operation of the system, to which, with unparalleled wickedness, they are subjected.

If then, neither Noah's curse, nor the special statute in question, authorize you to enslave your fellow men, there is, probably, but one ground on which you will contend for authority to do so—and this is the ground of the general morality of the Christian religion—of the general principles of right and duty, in the word of God. Do you find your authority on this ground? If you do, then, manifestly, you have a right to enslave me, and I a right to enslave you, and every man has a right to enslave whomsoever he can;—a right as perfect, as is the right to do good to one another. Indeed, the enslavement of each other would, under this construction of duty, *be* the doing of good to one another. Think you, sir, that the universal exercise of this right would promote the fulfilment of the "new commandment that ye love one another?" Think you, it would be the harbinger of millennial peace and blessedness? Or, think you not, rather, that it would fully and frightfully realize the prophet's declaration: "They all lie in wait for blood: they hunt every man his neighbor with a net."

If any people have a right to enslave their fellow men, it must be the Jews, if they once had it. But if they ever had it, it ceased, when all their peculiar rights ceased. In respect to rights from the Most High, they are now on the same footing with other races of men. When "the vail of the temple was rent in twain from the top to the bottom," then that distinction from the Gentile, in which the Jew had gloried, ceased, and the partition wall between them was prostrate for ever. The Jew, as well as the Gentile, was never more to depart from the general morality of the Bible. He was never again to be under any special statutes, whose requirements should bring him into collision with that morality: He was no more to confine his sympathies and friendships within the narrow range of the twelve tribes: but every son and daughter of Adam were thenceforth entitled to claim from him the heart and hand of a brother. "Under the glorious dispensation of the gospel," says the immortal Granville Sharp, "we are absolutely bound to consider ourselves as citizens of the world; every man whatever, without any partial distinction of nation, distance, or complexion, must necessarily be esteemed our neighbor and our brother; and we are absolutely bound, in Christian duty, to entertain a disposition towards all mankind, as charitable and benevolent, at least, as that which was required of the Jews under the law towards their brethren; and, consequently, it is absolutely unlawful for those who call themselves Christians, to exact of their brethren (I mean their brethren of the universe) a more burthensome service, than that to which the Jews were limited with respect to their brethren of the house of Israel; and the slavery or involuntary bondage of a brother Israelite was absolutely forbid."

It occurs to me, that after all which has been said to satisfy you, that compulsory servitude, if such there were among the Jews, cannot properly be pleaded in justification of yours; a question may still be floating in your mind whether, if God directed his chosen people to enslave the Heathen, slavery should not be regarded as a good system of servitude? Just as pertinently may you ask, whether that is not a good system of servitude, which is found in some of our state prisons. Punishment probably—certainly not labor—is the leading object in the one case as well as the other: and the labor of the bondman in the one, as well as of the convict in the other, constitutes but a subordinate consideration. To suppose that God would, with every consideration out of view, but that of having the best relation of employer and laborer, make choice of slavery—to suppose that

He believes that this state of servitude operates most beneficially, both for the master and the servant—is a high impeachment of the Divine wisdom and goodness. But thus guilty are you, if you are unwilling to believe, that, if He chose the severe servitude in question, He chose it for the punishment of his enemies, or from some consideration, other than its suitableness for the ordinary purposes of the relation of master and servant.

But it has been for the sake of argument only, that I have admitted that God authorized the Jews to enslave the heathen. I now totally deny that He did so. You will, of course, consent that if He did so, it was in a special statute, as was the case when He authorized them to exterminate other heathen: and you will as readily consent that He enacted the statutes, in both instances, with the view of punishing his enemies. Now, in killing the Canaanites, the Jew was constituted, not the owner of his devoted fellow man, but simply the executioner of God's vengeance: and evidently, such and no other was his character when he was reducing the Canaanite to involuntary servitude—that he did so reduce him, and was commissioned by God to do so, is the supposition we make for the sake of argument. Had the Jews been authorized by God to shut up in dungeons for life those of the heathen, whom they were directed to have for bondmen and bondmaids, you would not claim, that they, any more than sheriffs and jailers in our day, are to be considered in the light of owners of the persons in their charge. Much less then, can the Jews be considered as the owners of any person whom they held in servitude: for, however severe the type of that servitude, the liberty of its subject was not restricted, as was that of the prisoners in question:—most certainly, the power asserted over him is not to be compared in extent with that asserted by the Jew over the Canaanite, whom he slew;—a case in which he was, indisputably, but the executioner of the Divine wrath. The Canaanite, whether devoted to a violent death or to an involuntary servitude, still remained the property of God: and God no more gave him up to be the property of the executioner of his wrath, than the people of the State of New York give up the offender against public justice to be the property of the ministers of that justice. God never suspends the accountability of his rational creatures to himself: and his rights to them, He never transfers to others. He could not do so consistently with his attributes, and his indissoluble relations to man. But slavery claims, that its subjects are the property of man. It claims to turn them into mere chattels, and to

make them as void of responsibility to God, as other chattels. Slavery, in a word, claims to push from his throne the Supreme Being, who declares, "all souls are mine." That it does not succeed in getting its victim out of God's hand, and in unmanning and *chattelizing* him—that God's hold upon him remains unbroken, and that those upward tendencies of the soul, which distinguish man from the brute, are not yet entirely crushed in him—is no evidence in favor of its nature:—it simply proves, that its power is not equal to its purposes. We see, then, that the Jews—if it be true that they reduced their fellow men to involuntary servitude, and did so as the Heaven-appointed ministers of God's justice,—are not to be charged with slaveholding for it. There may be involuntary servitude where there is no slavery. The essential and distinguishing feature of slavery is its reduction of man to property—to a thing. A tenant of one of our state prisons is under a sentence of "hard labor for life." But he is not a slave. That is, he is not the *thing* which slavery would mark its subject. He is still a man. Offended justice has placed him in his present circumstances, because he is a man: and, it is because he is a *man* and not a *thing*—a responsible, and not an irresponsible being, that he must continue in his present trials and sufferings.

God's commandments to the Jews, respecting servants and strangers, show that He not only did not authorize them to set up the claim of property in their fellow men, but that He most carefully guarded against such exercises of power, as might lead to the assumption of a claim so wrongful to Himself. Some of these commandments I will bring to your notice. They show that whatever was the form of servitude under which God allowed the Jews to hold the heathen, it was not slavery. Indeed, if all of the Word of God which bears on this point were cited and duly explained, it would, perhaps, appear that He allowed no involuntary servitude whatever amongst the Jews. I give no opinion whether he allowed it or not. There are strong arguments which go to show, that He did not allow it; and with these arguments the public will soon be made more extensively acquainted. It is understood, that the next number of the Anti-Slavery Examiner will be filled with them.

1st. So galling are the bonds of Southern slavery, that it could not live a year under the operation of a law forbidding the restoration of fugitive

servants to their masters. How few of the discontented subjects of this oppressive servitude would agree with Hamlet, that it is better to

—"bear those ills we have,
Than fly to others that we know not of."

What a running there would be from the slave States to the free!—from one slave State to another!—from one plantation to another! Now, such a law—a solemn commandment of God—many writers on slavery are of the opinion, perhaps too confident opinion, was in force in the Jewish nation (Deut. xxiii, 15); and yet the system of servitude on which it bore, and which you cite as the pattern and authority for your own, lived in spite of it. How could it? Manifestly, because its genius was wholly unlike that of Southern slavery; and because its rigors and wrongs, if rigors and wrongs there were in it, bear no comparison to those which characterize Southern slavery; and which would impel nine-tenths of its adult subjects to fly from their homes, did they but know that they would not be obliged to return to them. When Southern slaveholders shall cease to scour the land for fugitive servants, and to hunt them with guns and dogs, and to imprison, and scourge, and kill them;—when, in a word, they shall subject to the bearing of such a law as that referred to their system of servitude, then we shall begin to think that they are sincere in likening it to the systems which existed among the Jews. The law, enacted in Virginia in 1705, authorizing any two justices of the peace "by proclamation to *outlaw* runaways, who might thereafter be killed and destroyed by any person whatsoever, by such ways and means as he might think fit, without accusation or impeachment of any crime for so doing," besides that it justifies what I have just said about hunting fugitive servants, shows, 1st. That the American Anti-Slavery Society is of too recent an origin to be the occasion, as slaveholders and their apologists would have us believe, of all the cruel laws enacted at the South. 2d. That Southern slaveholders would be very unwilling to have their system come under the operation of such a law as that which allowed the Jewish servant to change his master. 3d. That they are monsters, indeed, into which men may be turned by their possession of absolute power.

You, perhaps, suppose, (and I frankly admit to you, that there is some room for the supposition,) that the servants referred to in the 15th and 16th verses of the 23d chapter of Deuteronomy, were such as had escaped from foreign countries to the country of the Jews. But, would this view of the matter help you? By taking it, would you not expose yourself to be most pertinently and embarrassingly asked, for what purpose these servants fled to a strange and most odious people?—and would not your candid reply necessarily be, that it was to escape from the galling chains of slavery, to a far-famed milder type of servitude?—from Gentile oppression, to a land in which human rights were protected by Divine laws? But, as I have previously intimated, I have not the strongest confidence in the anti-slavery argument, so frequently drawn from this passage of the Bible. I am not sure that a Jewish servant is referred to: nor that on the supposition of his being a foreigner, the servant came under any form of servitude when entering the land of the Jews. Before leaving the topic, however, let me remark, that the passage, under any construction of it, makes against Southern slavery. Admit that the fugitive servant was a foreigner, and that he was not reduced to servitude on coming among the Jews, let me ask you whether the law in question, under this view of it, would be tolerated by the spirit of Southern slavery?—and whether, before obedience would be rendered to it, you would not need to have a different type of servitude, in the place of slavery? You would—I know you would—for you have been put to the trial. When, by a happy providence, a vessel was driven, the last year, to a West India island, and the chains of the poor slaves with which it was filled fell from around them, under freedom's magic power, the exasperated South was ready to go to war with Great Britain. *Then*, the law against delivering up foreign servants to their masters was not relished by you. The given case comes most strikingly within the supposed policy of this law. The Gentile was to be permitted to remain in the land to which he had fled, and where he would have advantages for becoming acquainted with the God of the Bible. Such advantages are they enjoying who escaped from the confessed heathenism of Southern slavery to the island in question. They are now taught to read that "Book of life," which before, they were forbidden to read. But again, suppose a slave were to escape from a West India island into the Southern States—would you, with your "domestic institutions," of which you are so jealous, render obedience to this Divine law? No; you would subject him *for ever* to a servitude more severe than that, from which he had escaped.

Indeed, if a *freeman* come within a certain portion of our Southern country, and be so unhappy as to bear a physical resemblance to the slave, he will be punished for that resemblance, by imprisonment, and even by a reduction to slavery.

2d. Southern slaveholders, who, by their laws, own men as absolutely as they own cattle, would have it believed, that Jewish masters thus owned their fellow-men. If they did, why was there so wide a difference between the commandment respecting the stray man, and that respecting the stray ox or ass? The man was not, but the beasts were, to be returned; and that too, even though their owner was the enemy of him who met them. (Ex. 23. 4.) I repeat the question;—why this difference? The only answer is, because God made the brute to be the *property* of man; but He never gave us our noble nature for such degradation. Man's title deed, in the eighth Psalm, extends his right of property to the inanimate and brute creation only—not to the flesh and bones and spirit of his fellow-man.

3d. The very different penalties annexed to the crime of stealing a man, and to that of stealing a thing, shows the eternal and infinite difference which God has established between a man and property. The stealing of a man was *surely* to be punished with death; whilst mere property was allowed to atone for the offence of stealing property.

4th. Who, if not the slave, can be said to be vexed and oppressed! But God's command to his people was, that they should neither "vex a stranger, nor oppress him."

5th. Such is the nature of American slavery, that not even its warmest friends would claim that it could recover itself after such a "year of jubilee" as God appointed. One such general delivery of its victims would be for ever fatal to it. I am aware that you deny that all the servants of the Jews shared in the blessings of the "year of jubilee." But let me ask you, whether if one third or one half of your servants were discharged from servitude every fiftieth year—and still more, whether if a considerable proportion of them were thus discharged every sixth year—the remainder would not be fearfully discontented? Southern masters believe, that their only safety consists in keeping down the discontent of their servants. Hence their anxious care to withhold from them the knowledge of human rights. Hence

the abolitionist who is caught in a slave state, must be whipped or put to death. If there were a class of servants amongst the Jews, who could bear to see all their fellow servants go free, whilst they themselves were retained in bondage, then that bondage was of a kind very different from what you suppose it to have been. Had its subjects worn the galling chains of American slavery, they would have struggled with bloody desperation for the deliverance which they saw accorded to others.

I scarcely need say, that the Hebrew words rendered "bondmen" and "bondmaids," do not, in themselves considered, and independently of the connexion in which they are used, any more than the Greek words *doulos* and *doule*, denote a particular kind of servant. If the servant was a slave, because he was called by the Hebrew word rendered "bondman," then was Jacob a slave also:—and even still greater absurdities could be deduced from the position.

I promised, in a former part of this communication, to give you my reasons for denying that you are at liberty to plead in behalf of slavery, the example of any compulsory servitude in which Jews may have held foreigners. My promise is now fulfilled, and I trust that the reasons are such as not to admit of an answer.

Driven, as you now are, from every other conceivable defence of slaveholding it may be (though I must hope better things of you), that you will fly to the ground taken by the wicked multitude—that there is authority in the laws of man for being a slaveholder. But, not only is the sin of your holding slaves undiminished by the consideration, that they are held under human laws; but, your claiming to hold them under such laws, makes you guilty of an additional sin, which, if measured by its pernicious consequences to others, is by no means inconsiderable. The truth of these two positions is apparent from the following considerations.

1st. There is no valid excuse to be found, either in man's laws or any where else, for transgressing God's laws. Whatever may be thought, or said to the contrary, it still remains, and for ever will remain true, that under all circumstances, "sin is the transgression of the (Divine) law."

2d. In every instance in which a commandment of God is transgressed, under the cover and plea of a human law, purporting to permit what that commandment forbids, there is, in proportion to the authority and influence of the transgressor, a fresh sanction imparted to that law; and consequently, in the same proportion the public habit of setting up a false standard of right and wrong is promoted. It is this habit—this habit of graduating our morality by the laws of the land in which we live—that makes the "mischief framed by a law" so much more pernicious than that which has no law to countenance it, and to commend it to the conscience. Who is unaware, that nothing tends so powerfully to keep the traffic in strong drink from becoming universally odious, as the fact, that this body and soul destroying business finds a sanction in human laws? Who has not seen the man, authorized by these laws to distribute the poison amongst his tippling neighbors, proof against all the shafts of truth, under the self-pleasing and self-satisfying consideration, that his is a lawful business.

This habit of setting up man's law, instead of God's law, as the standard of conduct, is strikingly manifested in the fact, that on the ground, that the Federal Constitution binds the citizens of the United States to perpetuate slavery, or at least, not to meddle with it, we are, both at the North and the South, called on to forbear from all efforts to abolish it. The exertions made to discover in that instrument, authority for slavery, and authority against endeavors to abolish it, are as great, anxious, and unwearied, as if they who made them, thought that the fortunate discovery would settle for ever the great question which agitates our country—would nullify all the laws of God against slavery—and make the oppression of our colored brethren, as long as time shall last, justifiable and praiseworthy. But this discovery will never be made; for the Constitution is not on the side of the slaveholder. If it were, however, it would clothe him with no moral right to act in opposition to the paramount law of God. It is not at all necessary to the support of my views, in this communication, to show that the Constitution was not designed to favor slavery; and yet, a few words to this end may not be out of place.

A treaty between Great Britain and Turkey, by the terms of which the latter should be prohibited from allowing slaves to be brought within her dominions, after twenty years from its date, would, all will admit, redound

greatly to the credit of Great Britain. To be sure, she would not have done as much for the cause of humanity, as if she had succeeded in bringing the further indulgence of the sin within the limits of a briefer period, and incomparably less than if she had succeeded in reconciling the Sublime Porte to her glorious and emphatically English doctrines of immediate emancipation. But still she would deserve some praise—much more than if she had done nothing in this respect. Now, for my present purpose, and many of our statesmen say, for nearly all purposes, the Federal Constitution is to be regarded as a treaty between sovereign States. But how much more does this treaty do for the abolition of slavery, than that on which we were, a moment since, bestowing our praise! It imposes a prohibition similar to that in the supposed treaty between Great Britain and Turkey, so that no slaves have been allowed to be introduced into the United States since the year 1808. It goes further, and makes ample provision for the abolition and prevention of slavery in every part of the nation, save these States; so that the District of Columbia and the national territories can be cleared forever of slavery, whenever a majority of the parties, bound by the treaty, shall desire it. And it goes still farther, and clothes this majority with the power of regulating commerce between the States, and consequently, of prohibiting their mutual traffic in "the bodies and souls of men." Had this treaty gone but one step farther, and made an exception, as it should have done, in behalf of slaves, in the clause making necessary provision for the return of fugitives held to service in the States from which they flee, none but those who think it is fairly held responsible for the twenty years indulgence of the unholy traffic, would have claimed any thing more from it in relation to slavery. Now, this instrument, which contains nothing more, bearing on the subject of slavery, than what I have referred to, and whose pages are not once polluted with the words "slave" and "slavery," is abundantly and triumphantly cited, as conclusive authority in favor of slavery, and against endeavors to abolish it. Whilst we regret, that the true-hearted sons of freedom in the Convention which formed it, could obtain no more concessions from the advocates of slavery, let us honor their sacred memory, and thank God for those they did obtain.

I have supposed it possible, that you might number yourself with those, who defend slavery on the ground of its alleged conformity with human laws. It occurs to me, that you may, also, take hope, that slavery is

defensible in the supposed fact, that a considerable share of the professing Christians, in the free States, are in favor of it. "Let God be true, but every man a liar." If all professing Christians were for slavery, yet, if God is against it, that is reason enough why you also should be against it. It is not true, however, that a considerable share of our professing Christians are on the side of slavery. Indeed, until I read Professor Hodge's article, I had not supposed that any of them denied its sinfulness. It is true, that a large proportion of them refuse to take a stand against it. Let them justify to their consciences, and to their God, as they can, the equivocal silence and still more equivocal action on this subject, by which they have left their Southern brethren to infer, that Northern piety sanctions slavery. It is the doctrine of expediency, so prevalent and corrupting in the American Church, which has deceived you into the belief, that a large share of the professing Christians in the free States, think slavery to be sinless. This share, which you have in your eye, is, as well as the remainder, convinced that slavery is sinful—*only they think it inexpedient to say so*. In relation to other sins, they are satisfied with God's way of immediate abandonment. But, in relation to slavery, they flatter themselves that they have discovered "a more excellent way"—that of leaving the sin untouched, and simply hoping for its cessation, at some indefinite period in the distant future. I say hoping, instead of praying, as prayer for an object is found to be accompanied by corresponding efforts. But for this vile doctrine of expediency, which gives to our ecclesiastical bodies, whenever the subject of such a giant and popular sin as slavery is broached in them, the complexion of a political caucus steeped in unprincipled policy, rather than that of a company of the Saviour's disciples, inquiring "in simplicity and godly sincerity, not with fleshly wisdom," the way of the Lord;—but for this doctrine, I say, you would, long ago, have heard the testimony of Northern Christians against Southern slavery;—and not only so, but you would long ago have seen this Dagon fall before the power of that testimony. I trust, however, that this testimony will not long be withheld; and that Northern Christians will soon perceive, that, in relation to slavery, as well as every other sin, it is the safest and wisest, as well as the holiest course, to drop all carnal policy—to "trust in the Lord with all thine heart, and lean not unto thine own understanding."

Not only are Northern Christians, with very rare exceptions, convinced of the sin of slavery; but even your slaveholders were formerly accustomed, with nearly as great unanimity, to admit, that they themselves thought it to be sinful. It is only recently, and since they have found that their system must be tested by the Bible, thoroughly and in earnest—not merely for the purpose, as formerly, of determining without any practical consequences of the determination, what is the moral character of slavery—but, for the purpose of settling the point, whether the institution shall stand or fall,—it is only, I say, since the civilized world has been fast coming to claim that it shall be decided by the Bible, and by no lower standard, whether slavery shall or shall not exist—that your slaveholders have found it expedient to take the ground, that slavery is not sin.

It probably has not occurred to you, how fairly and fully you might have been stopped, upon the very threshold of your defence of slavery. The only witness you have called to the stand to sustain your sinking cause, is the Bible. But this is a witness, which slavery has itself impeached, and of which, therefore, it is not entitled to avail itself. It is a good rule in our civil courts, that a party is not permitted to impeach his own witness; and it is but an inconsiderable variation of the letter of this rule, and obviously no violation of its spirit and policy to say, that no party is permitted to attempt to benefit his cause by a witness whom he has himself impeached. Now, the slaveholder palpably violates this rule, when he presumes to offer the Bible as a witness for his cause:—for he has previously impeached it, by declaring, in his slave system, that it is not to be believed—that its requirements are not to be obeyed—that they are not even to be read (though the Bible expressly directs that they shall be)—that concubinage shall be substituted for the marriage it enjoins—and that its other provisions for the happiness, and even the existence, of the social relations, shall be trampled under foot. The scene, in which a lawyer should ask the jury to believe what his witness is saying at one moment, and to reject what he is saying at another, would be ludicrous enough. But what more absurdity is there in it than that which the pro-slavery party are guilty of, when they would have us deaf, whilst their witness is testifying in favor of marriage and searching the Scriptures; and, all ears, whilst that same witness is testifying, as they construe it, in favor of slavery! No—before it will be competent for the American slaveholder to appeal to the Bible for

justification of his system, that system must be so modified, as no longer to make open, shameless war upon the Bible. I would recommend to slaveholders, that, rather than make so unhallowed a use of the Bible as to attempt to bolster up their hard beset cause with it, they should take the ground, which a very distinguished slaveholding gentleman of the city of Washington took, in a conversation with myself on the subject of slavery. Feeling himself uncomfortably plied by quotations from the word of God, he said with much emphasis, "Stop, Sir, with that, if you please—
SLAVERY IS A SUBJECT, WHICH HAS NOTHING TO DO WITH THE BIBLE."

This practice of attempting to put the boldest and most flagrant sins under the wing and sanction of the Bible, is chargeable on others as well as on the advocates of slavery. Not to speak of other instances of it—it is sought to justify by this blessed book the most despotic forms of civil government, and the drinking of intoxicating liquors. There are two evils so great, which arise from this perversion of the word of God, that I cannot forbear to notice them. One is, that the consciences of men are quieted, when they imagine that they have found a justification in the Bible for the sins of which they are guilty. The other is, that infidels are multiplied by this perversion. A respectable gentleman, who edits a newspaper in this neighborhood, and who, unhappily, is not established in the Christian faith, was asked, a few months since, to attend a meeting of a Bible Society. "I am not willing," said he, in reply, "to favor the circulation of a volume, which many of its friends claim to be on the side of slavery." Rely on it, Sir, that wherever your book produces the conviction that the Bible justifies slavery, it there weakens whatever of respect for that blessed volume previously existed. Whoever is brought to associate slavery with the Bible, may, it is true, think better of slavery; but he will surely think worse of the Bible. I hope, therefore, in mercy to yourself and the world, that the success of your undertaking will be small.

But oftentimes the same providence has a bright, as well as a gloomy, aspect. It is so in the case before us. The common attempt, in our day, to intrench great sins in the authority of the Bible, is a consoling and cheering evidence, that this volume is recognised as the public standard of right and wrong; and that, whatever may be their private opinions of it who are guilty

of these sins, they cannot hope to justify themselves before the world, unless their lives are, apparently, at least, conformed, in some good degree, to this standard. We may add, too, that, as surely as the Bible is against slavery, every pro-slavery writer, who like yourself appeals to it as the infallible and only admissible standard of right and wrong, will contribute to the overthrow of the iniquitous system. His writings may not, uniformly, tend to this happy result. In some instances, he may strengthen confidence in the system of slavery by producing conviction, that the Bible sanctions it;—and then his success will be, as before remarked, at the expense of the claims and authority of the Bible:—but these instances of the pernicious effects of his writings will be very rare, quite too rare we may hope, to counterbalance the more generally useful tendency of writings on the subject of slavery, which recognise the paramount authority of God's law.

Having completed the examination of your book, I wish to hold up to you, in a single view, the substance of what you have done. You have come forth, the unblushing advocate of American slavery;—a system which, whether we study its nature in the deliberate and horrid enactments of its code, or in the heathenism and pollution and sweat and tears and blood, which prove, but too well, the agreement of its practical character with its theory—is, beyond all doubt, more oppressive and wicked than any other, which the avaricious, sensual, cruel heart of man ever devised. You have come forth, the unblushing advocate of a system under which parents are daily selling their children; brothers and sisters, their brothers and sisters; members of the Church of Christ, their fellow-members—under which, in a word, immortal man, made "in the image of God," is more unfeelingly and cruelly dealt with, than the brute. I know that you intimate that this system would work well, were it in the hands of none but good men. But with equal propriety might you say, that the gaming-house or the brothel would work well in such hands. You have attempted to sustain this system by the testimony of the Bible. The system, a part only of the crimes of which, most of the nations of Christendom have declared to be piracy;—against which, the common sense, the philosophy, the humanity, the conscience of the world, are arrayed;—this system, so execrable and infamous, you have had the presumption to attempt to vindicate by that blessed book, whose Author "is of purer eyes than to behold evil, and (who) cannot look upon iniquity"—and who "has magnified his word above all his name."

And now, Sir, let me solemnly inquire of you, whether it is right to do what you have done?—whether it is befitting a man, a Christian, and a minister of the gospel?—and let me, further, ask you, whether you have any cheering testimony in your heart that it is God's work you have been doing? That you and I may, in every future work of our hands, have the happiness to know, that the approbation of our employer comes from the upper, and not from the under world, is the sincere desire of

Your friend,

GERRIT SMITH.

No. 4

**THE
ANTI-SLAVERY EXAMINER.**

**THE
BIBLE AGAINST SLAVERY.**

**AN INQUIRY
INTO THE
PATRIARCHAL AND MOSAIC SYSTEMS
ON THE SUBJECT OF HUMAN RIGHTS.**

**NEW-YORK:
PUBLISHED BY THE AMERICAN ANTI-
SLAVERY SOCIETY,
NO. 143 NASSAU STREET.**

1837.

POSTAGE—This periodical contains five and a half sheets. Postage under 100 miles, 8-1/2 cts over 100 miles, 14 cents.

Please read and circulate.

PIERCY & REED. PRINTERS,

7 Theatre Alley.

CONTENTS.

- [Definition of Slavery](#)
- [Man-stealing—Examination of Ex. xxi. 16](#)
- [Import of "Bought with money," etc.](#)
- [Rights and privileges of servants](#)
- [No involuntary servitude under the Mosaic system](#)
- [Servants were paid wages](#)
- [Masters, not owners](#)
- [Servants distinguished from property](#)
- [Social equality of servants with their masters](#)
- [Condition of the Gibeonites, as subjects of the Hebrew Commonwealth](#)
- [Egyptian bondage analyzed](#)
- [OBJECTIONS CONSIDERED.](#)
- ["Cursed be Canaan, a servant of servants shall he be," etc. Gen. ix. 25](#)
- ["For he is his money," Examination of, Ex. xxi. 20, 21](#)
- ["Bondmen and bondmaids" bought of the heathen. Lev. xxv. 44-46](#)
- ["They shall be your bondmen forever." Lev. xxv. 46](#)
- ["Ye shall take them as an inheritance," etc. Lev. xxv. 46](#)
- [The Israelite to serve as a hired servant. Lev. xxv. 39, 40](#)
- [Difference between bought and hired servants](#)
- [Bought servants the most privileged class](#)
- [Summary of the different classes of servants](#)
- [Disabilities of the servants from the heathen](#)
- [Examination of Exodus xxi. 2-6](#)
- [The Canaanites not sentenced to unconditional extermination](#)

INQUIRY, &c.

* * * * *

The spirit of slavery never takes refuge in the Bible *of its own accord*. The horns of the altar are its last resort. It seizes them, if at all, only in desperation—rushing from the terror of the avenger's arm. Like other unclean spirits, it "hateth the light, neither cometh to the light, lest its deeds should be reproved." Goaded to phrenzy in its conflicts with conscience and common sense, denied all quarter, and hunted from every covert, it breaks at last into the sacred enclosure, and courses up and down the Bible, "seeking rest, and finding none." THE LAW OF LOVE, streaming from every page, flashes around it an omnipresent anguish and despair. It shrinks from the hated light, and howls under the consuming touch, as demons recoiled from the Son of God, and shrieked, "Torment us not." At last, it slinks away among the shadows of the Mosaic system, and thinks to burrow out of sight among its types and shadows. Vain hope! Its asylum is its sepulchre; its city of refuge, the city of destruction. It rushes from light into the sun; from heat, into devouring fire; and from the voice of God into the thickest of His thunders.

DEFINITION OF SLAVERY.

If we would know whether the Bible is the charter of slavery, we must first determine *just what slavery is*. The thing itself must be separated from its appendages. A constituent element is one thing; a relation another; an appendage another. Relations and appendages presuppose *other* things, of which there are relations and appendages. To regard them as *the things* to which they pertain, or as constituent parts of them, leads to endless fallacies. A great variety of conditions, relations, and tenures, indispensable to the social state, are confounded with slavery; and thus slaveholding is deemed quite harmless, if not virtuous. We will specify some of the things which are often confounded with slavery.

1. *Privation of the right of suffrage.* Then *minors* are slaves.
2. *Ineligibility to office.* Then *females* are slaves.
3. *Taxation without representation.* Then three-fourths of the people of Rhode Island are slaves, and *all* in the District of Columbia.
4. *Privation of one's oath in law.* Then the *free* colored people of Ohio are slaves. So are disbelievers in a future retribution, generally.
5. *Privation of trial by jury.* Then all in France and Germany are slaves.
6. *Being required to support a particular religion.* Then the people of England are slaves. [To the preceding may be added all other disabilities, merely political.]
7. *Cruelty and oppression.* Wives are often cruelly treated; hired domestics are often oppressed; but these forms of oppression are not slavery.
8. *Apprenticeship.* The rights and duties of master and apprentice are correlative and reciprocal. The *claim* of each upon the other results from the *obligation* of each to the other. Apprenticeship is based on the principle of equivalent for value received. The rights of the apprentice are secured, and his interests are promoted equally with those of the master. Indeed, while the law of apprenticeship is *just* to the master, it is *benevolent* to the apprentice. Its main design is rather to benefit the apprentice than the master. It *promotes* the interests of the former, while it guards from injury those of the latter in doing it. It secures to the master a mere legal compensation, while it secures to the apprentice both a legal compensation, and a virtual gratuity in addition, the apprentice being of the two decidedly the greatest gainer. The law not only recognizes the *right* of the apprentice to a reward for his labor, but appoints the wages, and enforces the payment. The master's claim covers only the *services* of the apprentice. The apprentice's claim covers *equally* the services of the master. The master cannot hold the apprentice as property, nor the apprentice the master; but each holds property in the services of the other, and BOTH EQUALLY. Is this slavery?

9. *Filial subordination and parental claims.* Both are nature's dictates, and indispensable to the existence of the social state; their *design* the promotion of mutual welfare; and the *means*, those natural affections created by the relation of parent and child, and blending them in one by irrepressible affinities; and thus, while exciting each to discharge those offices incidental to the relation, they constitute a shield for mutual protection. The parent's legal claim to the services of his children, while minors, is a slight boon for the care and toil of their rearing, to say nothing of outlays for support and education. This provision for the good of the *whole*, is, with the greater part of mankind, indispensable to the preservation of the family state. The child, in helping his parents, helps himself—increases a common stock, in which he has a share; while his most faithful services do but acknowledge a debt that money cannot cancel.

10. *Bondage for crime, or governmental claims on criminals.* Must innocence be punished because guilt suffers penalties? True, the criminal works for the government without pay; and well he may. He owes the government. A century's work would not pay its drafts on him. He is a public defaulter, and will die so. Because laws make men pay their debts, shall those be forced to pay who owe *nothing*? Besides, the law makes no criminal, PROPERTY. It restrains his liberty; it makes him pay something, a mere penny in the pound, of his debt to the government; but it does not make him a *chattel*. Test it. To own property is to own its product. Are children born of convicts government property? Besides, can *property* be *guilty*? Are *chattels* punished?

11. *Restrictions upon freedom.* Children are restrained by parents, wards by guardians, pupils by teachers, patients by physicians and nurses, corporations by charters, and legislators by constitutions. Embargoes, tariffs, quarantine, and all other laws, keep men from doing as they please. Restraints are the web of civilized society, warp and woof. Are they slavery? then civilized society is a mammoth slave—a government of LAW, *the climax of slavery*, and its executive a king among slaveholders.

12. *Involuntary or compulsory service.* A juryman is empannelled *against his will*, and sit he *must*. A sheriff orders his posse; bystanders *must* turn in. Men are *compelled* to remove nuisances, pay fines and taxes, support their

families, and "turn to the right as the law directs," however much *against their wills*. Are they therefore slaves? To confound slavery with involuntary service is absurd. Slavery is a *condition*. The slave's *feelings* toward it, are one thing; the condition itself, the object of these feelings, is *another* thing; his feelings cannot alter the nature of that condition. Whether he *desire* or *detest* it, the *condition* remains the same. The slave's *willingness* to be a slave is no palliation of his master's guilt in holding him. Suppose the slave verily thinks himself a chattel, and consents that others may so regard him, does that *make* him a chattel, or make those guiltless who *hold* him as such? I may be sick of life, and I tell the assassin so that stabs me; is he any the less a murderer because I *consent* to be made a corpse? Does my partnership in his guilt blot out his part of it? If the slave were willing to be a slave, his *voluntariness*, so far from *lessening* the guilt of the "owner," *aggravates* it. If slavery has so palsied his mind and he looks upon himself as a chattel, and consents to be one, actually *to hold him as such*, falls in with his delusion, and confirms the impious falsehood. *These very feelings and convictions of the slave*, (if such were possible) increase a hundred fold the guilt of the master in holding him as property, and call upon him in thunder, immediately to recognize him as a MAN, and thus break the sorcery that binds his soul, cheating it of its birth-right, and the consciousness of its worth and destiny.

Many of the foregoing conditions and relations are *appendages* of slavery, and some of them inseparable from it. But no one, nor all of them together, constitute its *intrinsic unchanging element*.

We proceed to state affirmatively that,

ENSLAVING MEN IS REDUCING THEM TO ARTICLES OF PROPERTY, making free agents chattels, converting *persons* into *things*, sinking intelligence, accountability, immortality, into *merchandise*. A *slave* is one held in this condition. He is a mere tool for another's use and benefit. In law "he owns nothing, and can acquire nothing." *His right to himself is abrogated*. He is another's property. If he say *my hands, my feet, my body, my mind, MYself*; they are figures of speech. To *use himself* for his own good is a CRIME. To keep what he *earns* is stealing. To take his body into his own keeping is *insurrection*. In a word, the *profit* of his master is the

END of his being, and he, a *mere means* to that end, a *mere means* to an end into which his interests do not enter, of which they constitute no portion^A. MAN sunk to a *thing*! the intrinsic element, the *principle* of slavery; MEN sold, bartered, leased, mortgaged, bequeathed, invoiced, shipped in cargoes, stored as goods, taken on executions, and knocked off at public outcry! Their *rights* another's conveniences, their interests, wares on sale, their happiness, a household utensil; their personal inalienable ownership, a serviceable article, or plaything, as best suits the humor of the hour; their deathless nature, conscience, social affections, sympathies, hopes, marketable commodities! We repeat it, *the reduction of persons to things*; not robbing a man of privileges, but of *himself*; not loading with burdens, but making him a *beast of burden*; not *restraining* liberty, but subverting it; not curtailing rights, but abolishing them; not inflicting personal cruelty, but annihilating *personality*; not exacting involuntary labor, but sinking him into an *implement* of labor; not abridging his human comforts, but abrogating his *human nature*; not depriving an animal of immunities, but *despoiling a rational being of attributes*, uncreating a MAN to make room for a *thing*!

^A: Whatever system sinks man from an END to a *means*, or in other words, whatever transforms him from an object of instrumentality into a mere instrumentality to an object, just so far makes him a *slave*. Hence West India apprenticeship retains in *one* particular the cardinal principle of slavery. The apprentice, during three-fourths of his time, is still forced to labor, and robbed of his earnings; just so far forth he is a *mere means*, a *slave*. True, in all other respects slavery is abolished in the British West Indies. Its bloodiest features are blotted out—but the meanest and most despicable of all—forcing the poor to work for the rich without pay three-fourths of their time, with a legal officer to flog them if they demur at the outrage, is one of the provisions of the "Emancipation Act!" For the glories of that luminary, abolitionists thank God, while they mourn that it rose behind clouds, and shines through an eclipse.

That this is American slavery, is shown by the laws of slave states. Judge Stroud, in his "Sketch of the Laws relating to Slavery," says, "The cardinal principle of slavery, that the slave is not to be ranked among sentient beings, but among *things*—is an article of property, a chattel personal,

obtains as undoubted law in all of these states," (the slave states.) The law of South Carolina thus lays down the principle, "Slaves shall be deemed, held, taken, reputed, and adjudged in law to be *chattels personal* in the hands of their owners and possessors, and their executors, administrators, and assigns, to ALL INTENTS, CONSTRUCTIONS, AND PURPOSES WHATSOEVER." Brevard's Digest, 229. In Louisiana, "a slave is one who is in the power of a master to whom he *belongs*; the master may sell him, dispose of his *person, his industry, and his labor*; he can do nothing, possess nothing, nor acquire any thing, but what must belong to his master." Civil Code of Louisiana, Art. 35.

This is American slavery. The eternal distinction between a person and a thing, trampled under foot—the crowning distinction of all others—their centre and circumference—the source, the test, and the measure of their value—the rational, immortal principle, embalmed by God in everlasting remembrance, consecrated to universal homage in a baptism of glory and honor, by the gift of His Son, His Spirit, His Word, His presence, providence, and power; His protecting shield, upholding staff, and sheltering wing; His opening heavens, and angels ministering, and chariots of fire, and songs of morning stars, and a great voice in heaven, proclaiming eternal sanctions, and confirming the word with signs following.

Having stated the *principle* of American slavery, we ask, DOES THE BIBLE SANCTION SUCH A PRINCIPLE?[A]^A? To the *law* and the *testimony*. First, the moral law, or the ten commandments. Just after the Israelites were emancipated from their bondage in Egypt, while they stood before Sinai to receive the law, as the trumpet waxed louder, and the mount quaked and blazed, God spake the ten commandments from the midst of clouds and thunderings. Two of those commandments deal death to slavery. Look at the eighth, "*Thou shall not steal*," or, thou shalt not take from another what belongs to him. All man's powers of body and mind are God's gift to *him*. That they are *his own*, and that he has a right to them, is proved from the fact that God has given them to *him alone*, that each of them is a part of *himself*, and all of them together *constitute* himself. All *else* that belongs to man is acquired by the *use* of these powers. The *interest* belongs to him, because the *principal* does—the product is his, because he is the *producer*. Ownership of any thing is ownership of its *use*. The right to use

according to will, is *itself* ownership. The eighth commandment *presupposes and assumes the right of every man to his powers, and their product*. Slavery robs of both. A man's right to himself is the only right absolutely original and intrinsic—his right to whatever else that belongs to him is merely *relative* to his right to himself—is derived from it, and held only by virtue of it. SELF-RIGHT is the *foundation right*—the *post in the middle*, to which all other rights are fastened. Slaveholders, the world over, when talking about their RIGHT to their slaves, always assume *their own right to themselves*. What slaveholder ever undertook to prove his own right to himself? He knows it to be a self-evident proposition, that *a man belongs to himself*—that the right is intrinsic and absolute. The slaveholder, in making out his own title to himself, makes out the title of every human being to *himself*. As the fact of being *a man* is itself the title, the whole human family have one common title deed. If *one* man's title is valid, *all* are valid. If one is worthless, all are. To deny the validity of the *slave's* title is to deny the validity of *his own*; and yet in the act of making him a slave, the slaveholder *asserts* the validity of his own title, while he seizes *him* as his property who has the *same* title. Further, in making him a slave, he does not merely unhumanize *one* individual, but UNIVERSAL MAN. He destroys the foundations. He annihilates *all rights*. He attacks not only the human race, but *universal being*, and rushes upon JEHOVAH.—For rights are *rights*; God's are no more—man's are no less.

A: The Bible record of actions is no comment on their moral character. It vouches for them as *facts*, not as *virtues*. It records without rebuke, Noah's drunkenness, Lot's incest, and the lies of Jacob and his mother—not only single acts, but *usages*, such as polygamy and concubinage, are entered on the record without censure. Is that *silent entry* God's *endorsement*? Because the Bible, in its catalogue of human actions, does not stamp on every crime its name and number, and write against it, *this is a crime*—does that wash out its guilt, and bleach it into a virtue?

The eighth commandment forbids the taking of *any* part of that which belongs to another. Slavery takes the *whole*. Does the same Bible which forbids the taking of *any* thing belonging to him, sanction the taking of *every* thing? Is it such a medley of absurdities as to thunder wrath against him who robs his neighbor of a *cent*, while it bids God speed to him who

robs his neighbor of *himself*? Slavery is the highest possible violation of the eighth commandment. To take from a man his earnings, is theft. But to take the *earner*, is compound, superlative, perpetual theft. It is to be a thief by profession. It is a trade, a life of robbery, that vaults through all the gradations of the climax at a leap—the dread, terrific, giant robbery, that towers among other robberies, a solitary horror, monarch of the realm. The eighth commandment forbids the taking away, and the *tenth* adds, "*Thou shalt not COVET any thing that is thy neighbor's;*" thus guarding every man's right to himself and his property, by making not only the actual taking away a sin, but even that state of mind which would *tempt* to it. Who ever made human beings slaves, or held them as slaves without *coveting* them? Why do they take from them their time, their labor, their liberty, their right of self-preservation and improvement, their right to acquire property, to worship according to conscience, to search the Scriptures, to live with their families, and their right to their own bodies? Why do they *take* them, if they do not *desire* them? They COVET them for purposes of gain, convenience, lust of dominion, of sensual gratification, of pride and ostentation. *They break the tenth commandment*, and pluck down upon their heads the plagues that are written in the book. *Ten* commandments constitute the brief compend of human duty. *Two* of these brand slavery as sin.

The giving of the law at Sinai, immediately preceded the promulgation of that body of laws and institutions, called the "Mosaic system." Over the gateway of that system, fearful words were written by the finger of God—"HE THAT STEALETH A MAN AND SELLETH HIM, OR IF HE BE FOUND IN HIS HAND, HE SHALL SURELY BE PUT TO DEATH." See Exodus, xxi. 16.

The oppression of the Israelites in Egypt, and the wonders wrought for their deliverance, proclaim the reason for *such* a law at *such* a time—when the body politic became a theocracy, and reverently waited for the will of God. They had just been emancipated. The tragedies of their house of bondage were the realities of yesterday, and peopled their memories with thronging horrors. They had just witnessed God's testimony against oppression in the plagues of Egypt—the burning blains on man and beast—the dust quickened into loathsome life, and cleaving in swarms to every living thing

—the streets, the palaces, the temples, and every house heaped up with the carcasses of things abhorred—even the kneading troughs and ovens, the secret chambers and the couches, reeking and dissolving with the putrid death—the pestilence walking in darkness at noonday, the devouring locusts and hail mingled with fire, the first-born death-struck, and the waters blood, and, last of all, that dread high hand and stretched out arm, that whelmed the monarch and his hosts, and strewed their corpses in the sea. All this their eyes had looked upon,—earth's proudest city, wasted and thunder-scarred, lying in desolation, and the doom of oppressors traced on her ruins in the hand writing of God, glaring in letters of fire mingled with blood—a blackened monument of wrath to the uttermost against the stealers of men.

No wonder that God, in a code of laws prepared for such a people at such a time, should light up on its threshold a blazing beacon to flash terror on slaveholders. "*He that stealeth a man and selleth him, or if he be found in his hand, he shall be surely put to death.*" Ex. xxii. 16. God's cherubim and flaming sword guarding the entrance to the Mosaic system! See also Deut. xxiv. 7^A.

^A: Jarchi, the most eminent of the Jewish writers, (if we except perhaps the Egyptian Maimonides,) who wrote seven hundred years ago, in his comment on this stealing and making merchandize of men, gives the meaning thus:—"Using a man against his will, as a servant lawfully purchased; yea though he should use his services ever so little, only to the value of a farthing, or use but his arm to lean on to support him, *if he be forced so to act as a servant*, the person compelling him but once to do so shall die as a thief, whether he has sold him or not."

The Hebrew word, *Gaunab*, here rendered *stealeth*, means the taking from another what *belongs* to him, whether it be by violence or fraud; the same word is used in the eighth commandment, and prohibits both *robbery* and *theft*.

The crime specified is that of *depriving* SOMEBODY *of the ownership of a man*. Is this somebody a master? and is the crime that of depriving a *master* of his *servant*? Then it would have been "he that stealeth" a *servant*, *not* "he

that stealeth a *man*." If the crime had been the taking of an individual from *another*, then the *term* used would have been *expressive of that relation*, and *most especially* if it was the relation of property and *proprietor*!

The crime, as stated in the passage, is three-fold—man *stealing*, *selling* and *holding*. All are put on a level, and whelmed under one penalty—DEATH. This *somebody* deprived of the ownership of man, is the *man himself*, robbed of personal ownership. Joseph said to the servants of Pharoah, "Indeed I was *stolen* away out of the land of the Hebrews." Gen. xl. 15. How *stolen*? His brethren took him and sold him as an *article of merchandize*. Contrast this penalty for *man-stealing* with that for *property-stealing*. Exod. xxii. If a man stole an ox and killed or sold it, he was to restore five oxen; if he had neither sold nor killed it, the penalty was two oxen. The selling or the killing being virtually a deliberate repetition of the crime, the penalty was more than doubled.

But in the case of stealing a *man*, the first act drew down the utmost power of punishment; however often repeated, or however aggravated the crime, human penalty could do no more. The fact that the penalty for *man-stealing* was death, and the penalty for *property-stealing*, the mere *restoration of double*, shows that the two cases were adjudicated on totally different principles. The man stolen might be past labor, and his support a *burden*, yet death was the penalty, though not a cent's worth of *property value* was taken. The penalty for stealing *property* was a mere *property penalty*. However large the amount stolen, the payment of *double* wiped out the score. It might have a greater *money* value than a *thousand* men, yet *death* was never the penalty, nor maiming, nor branding, nor even *stripes*. Whatever the kind, or the amount stolen, the unvarying penalty was double of *the same kind*. Why was not the rule uniform? When a *man* was stolen why not require the thief to restore *double of the same kind*—*two men*, or if he had sold him, *five men*? Do you say that the man-thief might not *have* them? So the ox-thief might not have two *oxen*, or if he had killed it, *five*. But if God permitted men to hold *men* as property, equally with *oxen*, the *man-thief* could get *men* with whom to pay the penalty, as well as the *ox-thief*, *oxen*.

Further, when *property* was stolen, the whole of the legal penalty was a compensation to the person injured. But when a *man* was stolen, no property compensation was offered. To tender *money* as an equivalent, would have been to repeat the outrage with the intolerable aggravations of supreme insult and impiety. Compute the value of a MAN in *money*! Throw dust into the scale against immortality! The law recoiled from such outrage and blasphemy. To have permitted the man-thief to expiate his crime by restoring double, would have been making the repetition of crime its atonement. But the infliction of death for *man-stealing* exacted from the guilty wretch the utmost possibility of reparation. It wrung from him, as he gave up the ghost, a testimony in blood, and death groans, to the infinite dignity and worth of man,—a proclamation to the universe, voiced in mortal agony, that MAN IS INVIOLENT,—a confession shrieked in phrenzy at the grave's mouth—"I die accursed, and God is just."

If God permitted man to hold *man* as property, why did He punish for stealing *that* kind of property infinitely more than for stealing any *other* kind of property? Why did he punish with *death* for stealing a very little, perhaps not a sixpence worth, of *that* sort of property, and make a mere *fine*, the penalty for stealing a thousand times as much, of any other sort of property—especially if God did by his own act annihilate the difference between man and *property*, by putting him *on a level with it*?

The atrociousness of a crime, depends greatly upon the nature, character, and condition of the victim. To steal is a crime, whoever the thief, or whatever the plunder. To steal bread from a *full* man, is theft; to steal it from a *starving* man, is both theft and murder. If I steal my neighbor's *property*, the crime consists not in the *nature* of the article, but in *shifting its external relation* from *him to me*. But when I take my neighbor *himself*, and first make him *property*, and then *my* property, the latter act, which was the sole crime in the former case, dwindles to a mere appendage. The sin in stealing a man does not consist in transferring, from its owner to another, that which is *already property*, but in turning *personality* into *property*. True, the *attributes* of man still remain, but the rights and immunities which grow out of them are *annihilated*. It is the first law of reason and revelation to regard things and beings as they are; and the sum of religion, to feel and act toward them according to their nature and value. Knowingly to treat

them otherwise, is *sin*; and the degree of violence done to their nature, relations, and value, measures its guilt. When things are sundered which God has indissolubly joined, or confounded in one, which he has separated by infinite extremes; when sacred and eternal distinctions, which he has garnished with glory, are derided and set at nought, then, if ever, *sin* reddens in its "scarlet dye." The sin specified in the passage, is that of doing violence to the *nature* of a *man*—his *intrinsic value* and relations as a rational being, and blotting out the exalted distinction stamped upon him by his Maker. In the verse preceding, and in that which follows, the same principle is laid down. Verse 15, "*He then smiteth his father or his mother shall surely be put to death.*" Verse 17, "*He that curseth his father or his mother, shall surely be put to death.*" If a Jew smote his neighbor, the law merely smote him in return. But if that same blow were given to a *parent*, the law struck the smiter *dead*. Why this difference in the punishment of the same act, inflicted on different persons? Answer—God guards the parental relation with peculiar care. It is the *centre* of human relations. To violate that, is to violate *all*. Whoever trampled on *that*, showed that no relation had any sacredness in his eyes—that he was unfit to move among human relations who had violated one so sacred and tender.—Therefore, the Mosaic law uplifted his bleeding corpse, and brandished the ghastly terror around the parental relation to guard it from impious inroads.

But why the difference in the penalty since the *act* was the same? The sin had divers aggravations.

1. The relation violated was obvious—the distinction between parents and others, manifest, dictated by natural affection—a law of the constitution.
2. The act was violence to nature—a suicide on constitutional susceptibilities.
3. The parental relation then, as now, was the centre of the social system, and required powerful safe-guards. "*Honor thy father and thy mother,*" stands at the head of those commands which prescribe the duties of man to man; and, throughout the Bible, the parental relation is God's favorite illustration, of his own relations to the whole family of man. In this case, death is inflicted not at all for the act of *smiting*, nor for smiting a *man*, but a *parent*—for violating a vital and sacred relation—a *distinction* cherished

by God, and around which, both in the moral and ceremonial law, He threw up a bulwark of defence. In the next verse, "He that stealeth a man," &c., the SAME PRINCIPLE is wrought out in still stronger relief. The crime here punished with death, is not the mere act of taking property from its owner, but the disregarding of *fundamental relations*, doing violence to an *immortal nature*, making war on a *sacred distinction* of priceless worth. That distinction which is cast headlong by the principle of American slavery; which makes MEN "*chattels*."

The incessant pains-taking throughout the old Testament, in the separation of human beings from brutes and things, shows God's regard for the sacredness of his own distinction.

"In the beginning" the Lord uttered it in heaven, and proclaimed it to the universe as it rose into being. He arrayed creation at the instant of its birth, to do it reverent homage. It paused in adoration while He ushered forth its crowning work. Why that dread pause, and that creating arm held back in mid career, and that high conference in the godhead? "*Let us make man in OUR IMAGE, after OUR LIKENESS, AND LET HIM HAVE DOMINION over the fish of the sea, and over the fowl of the air, and over the cattle, and over all the earth, and over every living thing that moveth upon the earth.*"

Then while every living thing, with land, and sea, and firmament, and marshalled worlds, waited to catch and swell the shout of morning stars—THEN "GOD CREATED MAN IN HIS OWN IMAGE. IN THE IMAGE OF GOD CREATED HE HIM." This solves the problem, IN THE IMAGE OF GOD CREATED HE HIM. Well might the sons of God cry all together, "Amen, alleluia"—"*Thou art worthy, O Lord, to receive blessing and honor*"—"For thou hast made him a little lower than the angels, and hast crowned him with glory and honor. Thou madest him to have dominion over the works of thy hands; thou hast put all things under his feet. O Lord, our Lord, how excellent is thy name in all the earth." Psalms viii. 5, 6, 9. The frequent and solemn repetition of this distinction by God proclaims his infinite regard. The 26th, 27th, and 28th verses of the 1st chapter of Genesis are little else than the repetition of it in various forms. In the 5th chapter, 1st verse, we find it again—"In the day that God created man, IN THE

LIKENESS of GOD MADE HE MAN." In the 9th chapter, 6th verse, we find it again. After giving license to shed the blood of "every moving thing that liveth," it is added, "*Whoso sheddeth man's blood, by man shall his blood be shed, for IN THE IMAGE OF GOD MADE HE MAN.*" As though he had said, "All these other creatures are your property, designed for your use—they have the likeness of earth, they perish with the using, and their spirits go downward; but this other being, MAN, has my own *likeness*; IN THE IMAGE OF GOD made I man; an intelligent, moral, immortal agent, invited to all that I can give and he can be." So in Levit. xxiv. 17, 18, "*He that killeth any MAN shall surely be put to death; and he, that killeth a beast shall make it good, beast for beast; and he that killeth a MAN shall be put to death.*" So in the passage quoted above, Ps. viii. 5, 6. What an enumeration of particulars, each separating infinitely, MEN from brutes and things!

1. "*Thou hast made him a little lower than the angels.*" Slavery drags him down among *brutes*.

2. "*And hast crowned him with glory and honor.*" Slavery tears off his crown, and puts on a *yoke*.

3. "*Thou madest him to have dominion OVER the works of thy hands.*" Slavery breaks his sceptre, and casts him down *among* those works—yea, *beneath* them.

4. "*Thou hast put all things under his feet.*" Slavery puts HIM *under the feet of an owner*, with beasts and creeping things. Who, but an impious scorner, dare thus strive with his Maker, and mutilate HIS IMAGE, and blaspheme the Holy One, who saith to those that grind his poor, "*Inasmuch as ye did it unto one of the least of these, ye did it unto me.*"

But time would fail us to detail the instances in which this distinction is most impressively marked in the Bible.

In further prosecuting this inquiry, the Patriarchal and Mosaic systems will be considered together, as each reflects light upon the other, and as many regulations of the latter are mere *legal* forms of Divine institutions previously existing. As a *system*, however, the latter alone is of Divine

authority. Whatever were the usages of the *patriarchs*, God has not made them our exemplars^A.

^A: Those who insist that the patriarchs held slaves, and sit with such delight under their shadow, hymning the praises of "those good old patriarchs and slaveholders," might at small cost greatly augment their numbers. A single stanza celebrating patriarchal *concubinage*, winding off with a chorus in honor of patriarchal *drunkenness*, would be a trumpet call, summoning from bush and brake, highway and hedge, and sheltering fence, a brotherhood of kindred affinities, each claiming Abraham or Noah as his patron saint, and shouting, "My name is legion." What a myriad choir, and thunderous song!

Before entering upon an analysis of the condition of servants under these two states of society, let us settle the import of certain terms which describe the mode of procuring them.

IMPORT OF THE WORD "BUY," AND THE PHRASE "BOUGHT WITH MONEY."

From the direction to the Israelites to "buy" their servants, and from the phrase "bought with money," applied to Abraham's servants, it is argued that they were articles of *property*. The sole ground for this belief is the *terms* "buy" and "bought with money," and such an import to these terms when applied to servants is assumed, not only in the absence of all proof, but in the face of evidence to the contrary. How much might be saved, if in discussion, the thing to be proved was always *assumed*. To *beg* the question in debate, what economy of midnight oil! what a forestaller of premature wrinkles, and grey hairs! Instead of protracted investigation into Scripture usage, and painful collating of passages, and cautiously tracing minute relations, to find the meaning of Scripture terms, let every man boldly resolve to interpret the language of the oldest book in the world, by the usages of his own time and place, and the work is done. And then what a march of mind! Instead of *one* revelation, they might be multiplied as the drops of the morning! Every man might take orders as an inspired interpreter, with an infallible clue to the mind of the Spirit, if he only understood the dialect of his own neighborhood! We repeat it, the only

ground of proof that these terms are to be interpreted to mean, when applied to servants in the Bible, the same that they mean when applied to our *slaves, is the terms themselves.*

What a Babel-jargon it would make of the Bible to take it for granted that the sense in which words are *now* used is the *inspired* sense.

David says, "I prevented the dawning of the morning, and cried." What a miracle-worker, to stop the earth in its revolution! Rather too fast. Two hundred years ago, *prevent* was used in the strict Latin sense to *come before*, or *anticipate*. It is always used in this sense in the Old and New Testaments. David's expression, in the English of the nineteenth century, is, "Before the dawning of the morning I cried," or, I began to cry before day-break. "So my prayer shall *prevent* thee." "Let us *prevent* his face with thanksgiving." "Mine eyes *prevent* the night watches." "We shall not *prevent* them that are asleep," &c. In almost every chapter of the Bible, words are used in a sense now nearly or quite obsolete, and sometimes in a sense totally *opposite* to their present meaning. A few examples follow: "Oftentimes I purposed to come to you, but was *let* (hindered) hitherto." "And the four *beasts* (living ones) fell down and worshipped God,"—Whosoever shall *offend* (cause to sin) one of these little ones,"—Go out into the high ways and *compel* (urge) them to come in,"—Only let your *conversation* (habitual conduct or course of life) be as becometh the Gospel,"—They that seek me *early* (earnestly) shall find me,—Give me *by and by* (now) in a charger, the head of John the Baptist,"—So when tribulation or persecution ariseth *by-and-by* (immediately) they are offended. Nothing is more mutable than language. Words, like bodies, are continually throwing off particles and absorbing others. So long as they are mere *representatives*, elected by the whims of universal suffrage, their meaning will be a perfect volatile, and to cork it up for the next century is an employment sufficiently silly, (to speak within bounds,) for a modern Bible dictionary maker. There never was a shallower conceit than that of establishing the sense attached to a word centuries ago, by showing what it means *now*. Pity that hyper-fashionable mantuamakers and milliners were not a little quicker at taking hints from some of our Doctors of Divinity. How easily they could save their pious customers all qualms of conscience about the weekly shiftings of fashion, by demonstrating that the last

importation of Parisian indecency, just now flaunting here on promenade, was the identical style of dress in which the pious Sarah kneaded cakes for the angels, the modest Rebecca drew water for the camels of Abraham's servants. Since such fashions are rife in Chestnut-street and Broadway *now*, they *must* have been in Canaan and Pandanaram four thousand years ago!

II. 1. The inference that the word buy, used to describe the procuring of servants, means procuring them as *chattels*, seems based upon the fallacy—that whatever *costs* money *is* money; that whatever or whoever you pay money *for*, is an article of property, and the fact of your paying for it *proves* that it is property. The children of Israel were required to *purchase* their first-born out from under the obligations of the priesthood, Numb. xviii. 15, 16; Exod. xxxiv. 20. This custom is kept up to this day among the Jews, and the word *buy* is still used to describe the transaction. Does this prove that their first-born were, or are, held as property? They were *bought* as really as were *servants*. So the Israelites were required to *pay money* for their own souls. This is called sometimes a ransom, sometimes an atonement. Were their *souls* therefore marketable commodities?

2. Bible saints *bought* their wives. Boaz *bought* Ruth. "So Ruth the Moabitess, the wife of Mahlon, have I *purchased* to be my wife." Ruth iv. 10. Hosea bought his wife. "So I *bought* her to me for fifteen pieces of silver, and for an homer of barley, and an half homer of barley." Hosea iii. 2. Jacob *bought* his wives Rachel and Leah, and not having money, paid for them in labor—seven years a piece. Gen. xxix. 15-29. Moses probably bought his wife in the same way, and paid for her by his labor, as the servant of her father. Exod. ii. 21. Shechem, when negotiating with Jacob and his sons for Dinah, says, "What ye shall say unto me, I will *give*. Ask me never so much dowry and gift, and I will give according as ye shall say unto me." Gen. xxxiv. 11, 12. David purchased Michal, Saul's daughter, and Othniel, Achsah, the daughter of Caleb, by performing perilous services for the benefit of their fathers-in-law. 1 Sam. xviii. 25-27; Judges i. 12, 13. That the purchase of wives, either with money or by service was the general practice, is plain from such passages as Exod. xxii. 17, and 1 Sam. xviii. 25. Among the Jews of the present day this usage exists, though it is now a mere form, there being no *real* purchase. Yet among their marriage ceremonies, is one called "marrying by the penny." The coincidences, not

only in the methods of procuring wives and servants, and in the terms employed in describing the transactions, but in the prices paid for each, are worthy of notice. The highest price of wives (virgins) and servants was the same. Compare Deut. xxii. 28, 29, and Exod. xxii. 17, with Lev. xxvii. 2-8. The *medium* price of wives and servants was the same. Compare Hosea iii. 2, with Exod. xxi. 2. Hosea appears to have paid one half in money and the other in grain. Further, the Israelitish female bought-servants were *wives*, their husbands and their masters being the same persons. Exod. xxi. 8, and Judges xix. 3, 27. If *buying* servants among the Jews shows that they were property, then buying *wives* shows that *they* were property. The words in the original used to describe the one, describe the other. Why not contend that the wives of the ancient fathers of the faithful were their chattels, and used as ready change at a pinch? And thence deduce the rights of modern husbands. How far gone is the Church from primitive purity! How slow to emulate illustrious examples! Alas! Patriarchs and prophets are followed afar off! When will pious husbands live up to their Bible privileges, and become partakers with Old Testament worthies in the blessedness of a husband's rightful immunities! Surely professors of religion now, are *bound* to buy and hold their wives as property! Refusing so to do, is to question the morality of those "good old" wife-trading "patriarchs, Abraham, Isaac, and Jacob," with the prophets, and a host of whom the world was not worthy.

The use of the word buy, to describe the procuring of wives, is not peculiar to the Hebrew. In the Syriac language, the common expression for "the married," or "the espoused," is "the bought." Even so late as the 16th century, the common record of *marriages* in the old German Chronicles was "A. BOUGHT B."

The Hebrew word translated *buy*, is, like other words, modified by the nature of the subject to which it is applied. Eve says, "I have *gotten* (bought) a man of the Lord." She named him Cain, that is, *bought*. "He that heareth reproof, getteth (buyeth) understanding", Prov. xv. 32. So in Isa. xi. 11. "The Lord shall set his hand again to recover (to *buy*) the remnant of his people." So Ps. lxxviii. 54. He brought them to this mountain which his right hand had *purchased*, i.e. gotten. Jer. xiii. 4. "Take the girdle that thou hast got" (bought.) Neh. v. 8. "We of our ability have *redeemed* (bought)

our brethren that were sold to the heathen." Here "*bought*" is not applied to persons who were made slaves, but to those taken *out* of slavery. Prov. 8. 22. "The Lord possessed (bought) me in the beginning of his way before his works of old." Prov. xix. 8. "He that *getteth* (buyeth) wisdom loveth his own soul." Prov. xvi. 16. "How much better is it to *get* (buy) wisdom than gold?" Finally, to *buy* is a *secondary* meaning of the Hebrew word *Kana*.

4. Even at this day the word *buy* is used to describe the procuring of servants, where slavery is abolished. In the British West Indies, where slaves became apprentices in 1834, they are still "*bought*." This is now the current word in West India newspapers. So a few years since in New-York, Connecticut, Pennsylvania, and even now in New-Jersey servants are "*bought*" as really as in Virginia. And the different senses in which the same word is used in the two states, puts no man in a quandary, whose common sense amounts to a modicum.

So under the system of legal *indenture* in Illinois, servants now are "*bought*."^A A short time since, hundreds of foreigners who came to this country were "*bought*" annually. By voluntary contract they engaged to work for their purchasers a given time to pay for their passage. This class of persons called "*redemptioners*," consisted at one time of thousands. Multitudes are *bought out* of slavery by themselves or others, and remove into free states. Under the same roof with the writer is a "*servant bought with money*." A few weeks since, she was a slave. As soon as "*bought*," she was a slave no longer. Alas! for our leading politicians if "*buying*" men makes them "*chattels*." The Whigs say that Benton and Rives were "*bought*" by the administration with the surplus revenue; and the other party, that Clay and Webster were "*bought*" by the Bank. The histories of the revolution tell us that Benedict Arnold was "*bought*" by British gold. Did that make him an article of property? When a northern clergyman marries a rich southern widow, country gossip hits off the indecency with this current phrase, "*The cotton bags bought him*." When Robert Walpole said, "*Every man has his price, and whoever will pay it can buy him*," and when John Randolph said, while the Missouri question was pending, "*The northern delegation is in the market; give me money enough, and I can buy them*," they both meant *just what they said*. When the temperance publications tell us that candidates for office *buy* men with whiskey; and the oracles of street

tattle, that the court, district attorney, and jury, in the late trial of Robinson were *bought*, we have no floating visions of "chattels personal," man auctions, or coffles.

A: The following statute is now in force in the state of Illinois—"No negro, mulatto, or Indian, shall at any time *purchase* any servant other than of their own complexion: and if any of the persons aforesaid shall presume to *purchase* a white servant, such servant shall immediately become free, and shall be so held, deemed, and taken."

The transaction between Joseph and the Egyptians gives a clue to the meaning attached to "buy" and "bought with money." See Gen. xlvii. 18-26. The Egyptians proposed to Joseph to become servants, and that he should *buy* them. When the bargain was closed, Joseph said, "Behold I have *bought you* this day," and yet it is plain that neither of the parties dreamed that the persons *bought* were in any sense articles of property, but merely that they became thereby obligated to labor for the government on certain conditions, as a *compensation* for the entire support of themselves and families during the famine. And that the idea attached to "buy us," and "behold I have bought you," was merely the procuring of services voluntarily offered, and secured by contract, as a return for *value received*, and not at all that the Egyptians were bereft of their personal ownership, and made articles of property. And this buying of *services* (they were to give one-fifth part of their crops to Pharaoh) is called in Scripture usage, *buying the persons*. This case deserves special notice, as it is the only one where the whole transaction of buying servants is detailed—the preliminaries, the process, the mutual acquiescence, and the permanent relation resulting therefrom. In all other instances, the *mere fact* is stated without entering into particulars. In this case, the whole process is laid open.

1. The persons "bought," *sold themselves*, and of their own accord.
2. Obtaining permanently the *services* of persons, or even a portion of them, is called "buying" those persons. The objector, at the outset, assumes that servants were bought of *third* persons; and thence infers that they were articles of property. This is sheer *assumption*. Not a single instance is recorded, of a servant being sold by any one but himself; not a case, either under the patriarchal, or the Mosaic systems, in which a *master sold his*

servant. That the servants who were "bought" *sold themselves*, is a fair inference from various passages of Scripture.

In Leviticus xxv. 47, the case of the Israelite, who became the servant of the stranger, the words are, "If he SELL HIMSELF unto the stranger." The *same word*, and the same *form* of the word, which, in the 47th verse, is rendered *sell himself*, is in the 39th verse of the same chapter, rendered *be sold*; in Deut. xxviii. 68, the same word is rendered "*be sold*." Here it is the Hithpael conjugation, which is reflexive in its force, and, like the middle voice in Greek, represents what an individual does for himself; or in his own concerns; and should manifestly have been rendered, ye shall *offer yourselves* for sale. For a clue to Scripture usage on this point, see 1 Kings xxi. 20, 25—"Thou hast *sold thyself* to work evil." "There was none like to Ahab that *sold himself* to work wickedness."—2 Kings xvii. 17. "They used divination and enchantments, and *sold themselves* to do evil."—Isa. l. 1. "For your iniquities have ye *sold yourselves*." Isa. lii. 3, "Ye have *sold yourselves* FOR NOUGHT, and ye shall be redeemed without money." See also, Jeremiah xxxiv. 14—Romans vii. 14, and vi. 16—John viii. 34, and the case of Joseph and the Egyptians, already quoted.

Again, if servants were *bought of third persons*, where are the instances? In the purchase of wives, though spoken of rarely, it is generally stated that they were bought of *third persons*. Is it not a fair inference, if servants were bought of third persons, that there would *sometimes* have been such an intimation?

II.-THE LEADING DESIGN OF THE MOSAIC LAWS RELATING TO MASTERS AND SERVANTS, WITH AN ENUMERATION OF THE RIGHTS AND PRIVILEGES SECURED TO SERVANTS.

The general object of those statutes, which prescribed the relations of master and servant, was the good of both parties—but more especially the good of the *servants*. While the interests of the master were specially guarded from injury, those of the servants were *promoted*.

These laws were a merciful provision for the poorer classes, both of the Israelites and Strangers. Not laying on burdens, but lightening them—they were a grant of *privileges*—a bestowment of *favours*.

1. *No servant from the Strangers, could remain a servant in the family of an Israelite, without becoming a proselyte.* Compliance with this condition was the *price of the privilege*.—Genesis xvii. 9-14, 23, 27.

2. *Excommunication from the family was a PUNISHMENT.*—Genesis xxi. 14-Luke xvi. 2-4.

3. *The fact that every Hebrew servant could COMPEL his master to keep him after the six years contract had, expired,* shows that the system was framed to advance the interests and gratify the wishes of the servant *quite as much* as those of the master. If the servant *demand*ed it, the law *obliged* the master to retain him in his household, however little he might need his services, or great his dislike to the individual. Deut. xv. 12-17, and Exodus xxi. 2-6.

4. *The rights and privileges guaranteed by law to all servants.* (1.) *They were admitted into covenant with God.* Deut. xxix. 10-13.

(2.) *They were invited guests at all the national and family festivals of the household in which they resided.* Exodus xii. 43-44; Deut. xii. 12, 18, and xvi. 10-16.

(3.) *They were statedly instructed in morality and religion.* Deut. xxxi. 10-13; Joshua viii. 33-35; 2 Chronicles xvii. 8-9.

(4.) *They were released from their regular labor nearly ONE HALF OF THE WHOLE TIME.* During which, the law secured to them their entire support; and the same public and family instruction that was provided for the other members of the Hebrew community.

(a.) The Law secured to them the *whole of every seventh year*; Lev. xxv. 3-6; thus giving to those servants that remained such during the entire period between the jubilees, *eight whole years* (including the Jubilee year) of unbroken rest.

(b.) *Every seventh day.* This in forty-two years, (the eight being subtracted from the fifty) would amount to just *six years*.

(c.) *The three great annual festivals.* The *Passover*, which commenced on the 15th of the 1st month, and lasted seven days, Deut. xvi. 3, 8. The Pentecost, or Feast of Weeks, which began on the sixth day of the third month, and lasted seven days. Lev. xxiii. 15-21. And the Feast of Tabernacles, which commenced on the 15th of the seventh month, and lasted eight days. Deut. xvi. 13, 15; Lev. xxiii. 34-39. As all met in one place, much time would be spent on the journey. Their cumbered caravans moved slowly. After their arrival at the place of sacrifice, a day or two at least, would be requisite for divers preparations, before entering upon the celebration of the festival, besides some time at the close of it, in preparations for their return. If we assign three weeks to each festival—including the time spent on the journey going and returning, and the delays before and after the celebration, together with the *festival week*; it will be a small allowance for the cessation of their regular labor. As there were three festivals in the year, the main body of the servants would be absent from their stated employments at least *nine weeks annually*, which would amount in forty-two years, subtracting the sabbaths, to six years and eighty-four days.

(e.) *The new moons.* The Jewish year had twelve; Josephus tells us that the Jews always kept *two days* for the new moon. See Calmet on the Jewish Calender, and Horne's Introduction; also 1 Sam. xx, 18, 19, 27. This would amount in forty-two years, to two years, two hundred and eighty days, after the necessary subtractions.

(f.) *The feast of trumpets.* On the first day of the seventh month, and of the civil year. Lev. xxiii. 24, 25.

(g.) *The day of atonement.* On the tenth of the seventh month. Lev. xxiii. 27-32.

These two last feasts would consume not less than sixty-five days of time not otherwise reckoned.

Thus it appears that those persons who continued servants during the whole period between the jubilees, were by law released from their labor, TWENTY-THREE YEARS AND SIXTY-FOUR DAYS, OUT OF FIFTY YEARS, and those who remained a less time, in nearly the same proportion. In the foregoing calculation, besides making a generous donation of all the *fractions* to the objector, we have left out of the account, those numerous *local* festivals to which frequent allusion is made, as in Judges xxi. 19; 1 Sam. 9th chapter. And the various *family* festivals, such as at the weaning of children; at marriages; at sheep shearings; at the making of covenants, &c., to which reference is often made, as in 1st Sam. xx. 28, 29. Neither have we included those memorable festivals instituted at a later period of the Jewish history. The feast of Purim, Esther, ix. 28, 29; and the feast of the Dedication, which lasted eight days. John x. 22; 1 Mac. iv. 59.

Finally, the Mosaic system secured to servants, an amount of time, which, if distributed, would on an average be almost ONE HALF OF THE DAYS IN EACH YEAR. Meanwhile, they and their families were supported, and furnished with opportunities of instruction. If this amount of time were distributed over *every day*, the servants would have *to themselves*, all but a *fraction of* ONE HALF OF EACH DAY, and would labor for their masters the remaining fraction and the other half of the day.

THIS REGULATION IS A PART OF THAT MOSAIC SYSTEM WHICH IS CLAIMED BY SLAVEHOLDERS AS THE GREAT PROTOTYPE OF AMERICAN SLAVERY.

5. *The servant was protected by law equally with the other members of the community.*

Proof—"Hear the causes between your brethren, and judge righteously between every man and his neighbor, and THE STRANGER THAT IS WITH HIM." "Ye shall not RESPECT PERSONS in judgment, but ye shall hear the SMALL as well as the great." Deut. i. 16, 17. Also in Lev. xxiv. 22. "Ye shall have one manner of law as well for the stranger, as for one of your own country, for I am the Lord your God." So Numbers xv. 29. "Ye shall have ONE LAW for him that sinneth through ignorance, both for him that is born among the children of Israel, and for the STRANGER that sojourneth among them." Deut. xxvii. 19. "Cursed be he that

PERVERTETH THE JUDGMENT OF THE STRANGER, *the fatherless and the widow.*"

6. *The Mosaic system enjoined upon the Israelites the greatest affection and kindness toward their servants, foreign as well as Jewish.*

Lev. xix. 34. "*The stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself.*" Also Deut. x. 17, 19. "*For the Lord your God is God of gods, and Lord of lords, a great God, a mighty and a terrible, which REGARDETH NOT PERSONS, nor taketh reward. He doth execute the judgment of the fatherless and widow, and LOVETH THE STRANGER, in giving him food and raiment, LOVE YE THEREFORE THE STRANGER.*" So Exodus xxii. 21. "*Thou shalt neither vex a stranger nor oppress him.*" Exodus xxiii. 9. "*Thou shalt not oppress a stranger, for ye know the heart of a stranger.*" Lev. xxv. 35, 36. "*If thy brother be waxen poor thou shalt relieve him, yea, though he be a STRANGER or a sojourner, that he may live with thee, take thou no usury of him or increase, but fear thy God.*" [What an absurdity to suppose that *this same stranger* could be taken by one that *feared his God*, held as a *slave*, and robbed of time, earnings, and all his rights!]

7. *Servants were placed upon a level with their masters in all civil and religious rights.* See Numbers xv. 15, 16, 29. Numb. ix. 14. Deut, i. 16, 17. Lev. xxiv. 22.

III.—DID PERSONS BECOME SERVANTS VOLUNTARILY, OR WERE THEY MADE SERVANTS AGAINST THEIR WILLS?

We argue that they became servants *of their own accord*,

1. Because to become a servant in the family of an Israelite, was to abjure idolatry, to enter into covenant with God^A, to be circumcised in token of it, to be bound to the observance of the Sabbath, of the Passover, the Pentecost, and the Feast of Tabernacles, and to receive instruction in all the particulars of the moral and ceremonial law.

[A](#): Maimonides, who wrote in Egypt about seven hundred years ago, a contemporary with Jarchi, and who stands with him at the head of Jewish writers, gives the following testimony on this point: "Whether a servant be born in the power of an Israelite, or whether he be purchased from the heathen, the master is to bring them both into the covenant."

"But he that is in the *house* is entered on the eighth day, and he that is bought with money, on the day on which the master receives him, unless the slave be *unwilling*. For if the master receive a grown slave, and he be *unwilling*, his master is to bear with him, to seek to win him over by instruction, and by love and kindness, for one year. After which, should he *refuse* so long, it is forbidden to keep him, longer than a year. And the master must send him back to the strangers from whence he came. For the God of Jacob will not accept any other than the worship of a *willing* heart."—Maimon, Hilcoth, Miloth, Chap. 1st, Sec. 8th.

The ancient Jewish Doctors agree in the testimony, that the servant from the strangers who at the close of his probationary year still refused to adopt the religion of the Mosaic system, and was on that account cut off from the family, and sent back to his own people, received a *full compensation* for his services, besides the payment of his expenses. But that *postponement* of the circumcision of the foreign servant for a year (*or even at all* after he had entered the family of an Israelite) of which the Mishnic doctors speak, seems to have been a *mere usage*. We find nothing of it in the regulations of the Mosaic system. Circumcision was manifestly a rite strictly *initiatory*. Whether it was a rite merely *national* or *spiritual*, or *both*, comes not within the scope of this inquiry. Nor does it at all affect the argument.

Were the servants *forced* through all these processes? Was the renunciation of idolatry *compulsory*? Were they *dragged* into covenant with God? Were they seized and circumcised by *main strength*? Were they *compelled* mechanically to chew, and swallow, the flesh of the Paschal lamb, while they abhorred the institution, despised its ceremonies, spurned the law which enjoined it, detested its author and executors, and instead of rejoicing in the deliverance which it commemorated, bewailed it as a calamity, and cursed the day of its consummation? Were they *driven* from all parts of the land three times in the year up to the annual festivals? Were they drugged

with instruction which they nauseated? Were they goaded through a round of ceremonies, to them senseless and disgusting mummeries; and drilled into the tactics of a creed rank with loathed abominations?

We repeat it, to become a *servant*, was to become a *proselyte*. And how did God authorize his people to make proselytes? At the point of the sword? By the terror of pains and penalties? By converting men into *merchandise*? Were *proselyte* and *chattel* synonymes, in the Divine vocabulary? Must a man be sunk to a *thing* before taken into covenant with God? Was this the stipulated condition of adoption, and the sole passport to the communion of the saints?

2. We argue the voluntariness of servants from Deut. xxiii. 15, 16, "*Thou shall not deliver unto his master the servant which is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best; thou shalt not oppress him.*"

As though God had said, "To deliver him up would be to recognize the *right* of the master to hold him. His *fleeing* "shows his *choice*—proclaims his wrongs, his master's oppressive acts, and his own claim to legal protection." You shall not force him back, and thus recognize the *right* of the master to hold him in such a condition as induces him to flee to others for protection." It may be objected, that this command had no reference to servants among the *Israelites*, but only to those of *heathen* masters in the surrounding nations. We answer, The regulation has no restriction. Its terms are unlimited. But the objection, even if valid, merely shifts the pressure of the difficulty to another point. Does God array his infinite authority to protect the *free choice* of a *single* servant from the heathen, and yet *authorize* the same persons, to crush the free choice of *thousands* of servants from the heathen! Suppose a case. A *foreign* servant flees from his master to the *Israelites*; God speaks, "He shall dwell with thee, in that place which *he shall choose*, in one of thy gates where it *liketh* him best." They were strictly charged not to put him in a condition which he did not *choose*. Now, suppose this same servant, instead of coming into Israel of his own accord, had been *dragged* in by some kidnapper who *bought* him of his master, and *forced* him into a condition against his will. Would He who forbade such

treatment of the stranger, who *voluntarily* came into the land, sanction the *same* treatment of the *same person*, provided in *addition* to this last outrage, the *previous* one had been committed of *forcing him into the nation against his will*?

To commit violence on the free choice of a *foreign* servant is a horrible enormity, forsooth, PROVIDED you *begin* the violence *after* he has come among you. But if you commit the *first act*, on the *other side of the line*; if you *begin* the outrage by buying him from a third person *against his will*, and then tear him from home, and drag him across the line into the land of Israel, and hold him as a slave—ah! that alters the case, and you may perpetrate the violence now with impunity! Would *greater* favor have been shown to this new comer from the heathen than to the old residents—those who had been servants in Jewish families perhaps for a generation? Were the Israelites commanded to exercise toward *him*, uncircumcised and *out* of the covenant, a justice and kindness denied to the multitude, who *were* circumcised, and *within* the covenant?

Again: the objector finds small gain to his argument on the supposition that the covenant respected merely the fugitives from the surrounding nations, while it left the servants of the Israelites in a condition against their wills—the objector finds small gain to his argument. In that case, the surrounding nations would of course adopt retaliatory measures, and resolve themselves into so many asylums for fugitive Israelitish servants. As these nations were on every side of them such a proclamation would have been an effectual lure to men held in a condition which was a constant *counteraction of will*. Further, the objector's assumption destroys itself; for the same command which protected the foreign servant from the power of his *master*, protected him equally from the power of an *Israelite*. It was not merely, "Thou shalt not deliver him to his *master*," but "he (the servant) shall dwell with thee, in that place which *he shall choose*, in one of thy gates where it liketh him best." Every Israelite was commanded to respect his free choice, and to put him in no condition *against his will*. What was this but a proclamation, that all who *chose* to live in the land and obey the laws, were left to their own free will, to dispose of their services at such a rate, to such persons, and in such places as they pleased?

Besides, grant that this command prohibited the sending back of *foreign* servants merely, was the any law requiring the return of servants who had escaped from the *Israelites*? There was a statute requiring the return of *property* lost, and *cattle* escaped, but none requiring the return of escaped *servants*.

Finally, these verses contain, *first*, a command, "Thou shalt not deliver," &c. *Secondly*, a declaration of the fugitive's right of *free choice*, and of God's will that he should exercise it at his own discretion; and *thirdly*, a command guarding this right, namely, "Thou shalt not oppress him," as though God had said, If you forbid him to exercise his *own choice*, as to the place and condition of his residence, it is *oppression*, and I will not tolerate it.

3. *We argue the voluntariness of servants from their peculiar opportunities and facilities for escape.* Three times every year, all the males over twelve years of age, were required to attend the public festivals. The main body were thus absent from their homes not less than three weeks each time, making nine weeks annually. As these caravans moved over the country, were there military scouts lining the way, to intercept deserters?—a corporal's guard stationed at each pass of the mountains, sentinels pacing the hill-tops, and light horse scouring the defiles? What safe contrivance had the Israelites for taking their "*slaves*" three times in a year to Jerusalem and back? When a body of slaves is moved any distance in our free and equal *republic*, they are handcuffed to keep them from running away, or beating their drivers' brains out. Was this the *Mosaic* plan, or an improvement left for the wisdom of Solomon? The usage, doubtless, claims a paternity not less venerable and biblical! Perhaps they were lashed upon camels, and transported in bundles, or caged up, and trundled on wheels to and fro, and while at the Holy City, "lodged in jail for safe keeping," religious services *extra* being appointed, and special "ORAL instruction" for their benefit. But meanwhile, what became of the sturdy *handmaids* left at home? What hindered them from marching off in a body? Perhaps the Israelitish matrons stood sentry in rotation round the kitchens, while the young ladies scoured the country, as mounted rangers, to pick up stragglers by day, and patrolled the streets as city guards, keeping a sharp look-out at night.

4. *Their continuance in Jewish families depended upon the performance of various rites and ceremonies necessarily VOLUNTARY.*

Suppose a servant from the heathen should, upon entering a Jewish family, refuse circumcision; the question whether he shall remain a servant, is in his own hands. If a *slave*, how simple the process of emancipation! His *refusal* did the job. Or, suppose that, at any time, he should refuse to attend the tri-yearly feasts, or should eat leavened bread during the Passover, or compound the ingredients of the anointing oil, he is "cut off from the people;" *excommunicated*.

5. *We infer the voluntariness of the servants of the Patriarchs from the impossibility of their being held against their wills.* The servants of Abraham are an illustration. At one time he had three hundred and eighteen *young men* "born in his house," and probably many more *not* born in his house. The whole number of his servants of all ages, was probably MANY THOUSANDS. Doubtless, Abraham was a man of a million, and Sarah too, a right notable housekeeper; still, it is not easy to conceive how they contrived to hold so many thousand servants against their wills, unless the patriarch and his wife *took turns* in performing the Hibernian exploit of surrounding them! The neighboring tribes, instead of constituting a picket guard to hem in his servants, would have been far more likely to sweep them and him into captivity, as they did Lot and his household. Besides, Abraham had neither "Constitution," nor "compact," nor statutes, nor judicial officers to send back his fugitives, nor a truckling police to pounce upon panic-stricken women, nor gentleman-kidnappers, suing for patronage, volunteering to howl on the track, boasting their blood-hound scent, and pledging their "honor" to hunt down and "deliver up," *provided* they had a description of the "flesh marks," and were stimulated in their chivalry by *pieces of silver*. Abraham seems also to have been sadly deficient in all the auxiliaries of family government, such as stocks, hand cuffs, foot-chains, yokes, gags, and thumb-screws. His destitution of these patriarchal indispensables is the more afflicting, when we consider his faithful discharge of responsibilities to his household, though so deplorably destitute of the needful aids.

6. *We infer that servants were voluntary, from the fact that there is no instance of an Israelitish master ever SELLING a servant.* Abraham had thousands of servants, but appears never to have sold one. Isaac "grew until he became very great," and had "great store of servants." Jacob's youth was spent in the family of Laban, where he lived a servant twenty-one years. Afterward he had a large number of servants.

When Joseph sent for Jacob to come into Egypt, the words are, "thou and thy children, and thy children's children, and thy flocks and thy herds, and ALL THAT THOU HAST." Jacob took his flocks and herds but *no servants*. Gen xlv. 10; xlvii. 6; xlvii. 1. His servants doubtless, served under their *own contracts*, and when Jacob went into Egypt, they *chose* to stay in their own country.

The government might sell *thieves*, if they had no property, until their services had made good the injury, and paid the legal fine. Ex. xxii. 3. But *masters* seem to have had no power to sell their *servants*—the reason is obvious. To give the master a *right* to sell his servant, would annihilate the servant's right of choice in his own disposal; but says the objector, To give the master a right to *buy* a servant, equally annihilates the servant's *right of choice*. Answer. It is one thing to have a right to buy a man, and a very different thing to have a right to buy him of *another* man.

Though there is no instance of a servant being bought of his, or her master, yet there are instances of young females being bought of their *fathers*. But their purchase as *servants* was their betrothal as WIVES. Exodus xxi. 7, 8. "*If a man sell his daughter to be a maid-servant, she shall not go out as the men-servants do. If she please not her master WHO HATH BETROTHED HER TO HIMSELF, he shall let her be redeemed*^A."

^A: The comment of Maimonides on this passage is as follows:

"A Hebrew handmaid might not be sold but to one who laid himself under obligations, to espouse her to himself or to his son, when she was fit to be betrothed."—*Maimonides—Hilcoth—Obedim*, Ch. IV. Sec. XI.

Jarchi, on the same passage, says, "He is bound to espouse her and take her to be his wife for the *money of her purchase* is the money of her *espousals*."

7. *We infer that the Hebrew servant was voluntary in COMMENCING his service, because he was pre-eminently so IN CONTINUING it.* If, at the year of release, it was the servant's *choice* to remain with his master, so did the law guard his free will, that it required his ear to be bored by the judges of the land, thus making it impossible for the servant to be held in an involuntary condition. Yea, so far was his *free choice* protected, that his master was compelled to keep him, however much he might wish to get rid of him.

8. *The method prescribed for procuring servants, recognized their choice, and was an appeal to it.* The Israelites were commanded to offer them a suitable *inducement*, and then leave them to decide. They might neither seize by *force*, nor frighten them by *threats*, nor wheedle them by false pretenses, nor *borrow* them, nor *beg* them; but they were commanded to BUY them^A; that is, they were to recognize the *right* of the individuals to their own services—their right to *dispose* of them, and their right to *refuse all offers*. They might, if they pleased, refuse all applications, and thus oblige those who made them, *to do their own work*. Suppose all, with one accord, *refused* to become servants, what provision did the Mosaic law make for such an emergency? NONE.

^A: The case of thieves, whose services were sold until they had earned enough to make restitution to the person wronged, and to pay the legal penalty, *stands by itself*, and has no relation to the condition of servants.

9. *Various incidental expressions throughout the Bible, corroborate the idea that servants became such by virtue of their own contract.* Job xli. 4. is an illustration, "*Will he (Leviathan) make a COVENANT with thee? wilt thou take him for a SERVANT forever?*"

10. *The transaction which made the Egyptians the SERVANTS OF PHAROAH, shows entire voluntariness throughout.* It is detailed in Gen. xlvii. 18-26. Of their own accord, they came to Joseph and said, "We have not aught left but our *bodies* and our lands; *buy us*;" then in the 25th verse, "*Thou hast saved our lives: let us find grace in the sight of my Lord, and we will be servants to Pharaoh.*"

11. *We argue that the condition of servants was an OPTIONAL one from the fact that RICH strangers did not become servants.* Indeed, so far were they from becoming servants themselves, that *they bought and held Jewish servants.* Lev. xxv. 47.

12. *The sacrifices and offerings which ALL were required to present, were to be made VOLUNTARILY.* Lev. i. 2, 3.

13. *Mention is often made of persons becoming servants where they were manifestly and pre-eminently VOLUNTARY.* The case of the Prophet Elisha is one. 1 Kings xix. 21; 2 Kings iii. 11. Elijah was his *master*. The original word, translated *master*, is the same that is so rendered in almost every instance where masters are spoken of throughout the Mosaic and patriarchal systems. It is translated *master* eighty-five times in our English version. Moses was the servant of Jethro. Exodus iii. 1. Joshua was the servant of Moses. Numbers xi. 28. Jacob was the servant of Laban. Genesis xxix, 18-27.

IV. WERE THE SERVANTS FORCED TO WORK WITHOUT PAY?

Having already shown that the servants became and continued such *of their own accord*, it would be no small marvel if they *chose* to work without pay. Their becoming servants, pre-supposes *compensation* as a motive.

That they *were paid* for their labor, we argue,

1. *Because, while Israel was under the Mosaic system, God rebuked in thunder, the sin of using the labor of others without wages. "Wo unto him that buildeth his house by unrighteousness, and his chambers by wrong; that useth his neighbor's service without wages, and giveth him not for his work."* Jer. xxii. 13. Here God testifies that to use the service of others without wages is "unrighteousness," and He commissions his "wo" to burn upon the doer of the "wrong." This "wo" was a permanent safeguard of the *Mosaic system*. The Hebrew word *Rea*, here translated *neighbor*, does not mean one man, or class of men, in distinction from others, but *any one with whom we have to do*—all descriptions of persons, not merely servants and

heathen, but even those who prosecute us in lawsuits, and enemies while in the act of fighting us—"As when a man riseth against his NEIGHBOR and slayeth him." Deut. xxii. 26. "Go not forth hastily to strive, lest thou know not what to do in the end thereof, when thy NEIGHBOR hath put thee to shame." Prov. xxv. 8. "Thou shalt not bear false witness against thy NEIGHBOR." Exod. xx. 16. "If any man come presumptuously upon his NEIGHBOR to slay him with guile." Exod. xxi. 14. In these, and in scores of similar cases, *Rea* is the original word.

2. *We have the testimony of God, that in our duty to our fellow men, ALL THE LAW AND THE PROPHETS hang upon this command, "Thou shalt love thy neighbor as thyself."* Our Saviour, in giving this command, quoted *verbatim* one of the laws of the Mosaic system. Lev. xix. 18. In the 34th verse of the same chapter, Moses commands obedience to this law in all the treatment of strangers, "*The stranger that dwelleth with you shall be unto you as one born among you, and THOU SHALT LOVE HIM AS THYSELF.*" If it be loving others *as ourselves*, to make them work for us without pay; to rob them of food and clothing, as well as wages, would be a stranger illustration still of the law of love! Super-disinterested benevolence! And if it be doing to others as we would have them do to us, to make them work for *our own* good alone, Paul should be called to order for his hard sayings against human nature, especially for that libellous matter in Ephes. v. 29, "*No man ever yet hated his own flesh, but nourisheth and cherisheth it.*"

3. *As persons became servants FROM POVERTY, we argue that they were compensated, since they frequently owned property, and sometimes a large amount.* Ziba, the servant of Mephibosheth, gave David a princely present, "An hundred loaves of bread, and an hundred bunches of raisins, and an hundred of summer fruits, and a bottle of wine." 2 Sam. xvi. 1. The extent of his possessions can be inferred from the fact, that though the father of fifteen sons, he still employed twenty servants, of whom he was the master.

A case is stated in Leviticus xxv. 47-55, where a servant, reduced to poverty, sells himself; and it is declared that afterward he may be *redeemed*, either by his kindred, or by HIMSELF. As he was forced to sell himself

from sheer poverty he must not only have acquired property *after* he became a servant, but a considerable sum.

If it had not been common for servants to possess, and acquire property, over which they had the exclusive control, Gehazi, the servant of Elisha, would hardly have ventured to take a large sum of money, (nearly \$3000^A) from Naaman, (2 Kings v. 22, 23.) As it was procured by deceit, he was anxious to conceal the means used in getting it; but if the Israelitish servants, like our slaves, could "own nothing, nor acquire any thing," to embark in such an enterprise would have been consummate stupidity. The fact of having in his possession two talents of silver, would of itself convict him of theft^B. But since the possession and use of property by servants, was common under the Mosaic system, he might have it, and invest or use it, without attracting special attention. And that consideration alone would have been a strong motive to the act. His master, while he rebukes him for using such means to get the money, not only does not take it from him, but seems to expect that he would invest it in real estate, and cattle, and would procure servants with it. 2 Kings v. 26. In 1 Sam. ix. 8, we find the servant of Saul having money, and relieving his master in an emergency. Arza, the servant of Elah, was the *owner of a house*. That it was spacious and somewhat magnificent, would be a natural inference from the fact that it was a resort of the king. 1 Kings xvi. 9. The case of the Gibeonites, who, after they became servants, still occupied their cities, and remained, in many respects, a distinct people for centuries; and that of the 150,000 Canaanites, the *servants* of Solomon, who worked out their tribute of bond-service in levies, periodically relieving each other, while preparing the materials for the temple, are additional illustrations of independence in the acquisition and ownership of property.

^A: Though we have not sufficient data to decide with accuracy upon the *relative* value of that sum, *then* and *now*, yet we have enough to warrant us in saying that two talents of silver had far more value *then* than three thousand dollars have *now*.

^B: Whoever heard of the slaves in our southern states stealing a large amount of money? They "*know how to take care of themselves*" quite too well for that. When they steal, they are careful to do it on such a *small*

scale, or in the taking of *such things* as will make detection difficult. No doubt they steal now and then a little, and a gaping marvel would it be if they did not. Why should they not follow in the footsteps of their masters and mistresses? Dull scholars indeed! if, after so many lessons from *proficients* in the art, who drive the business by *wholesale*, they should not occasionally copy their betters, fall into the *fashion*, and try their hand in a small way, at a practice which is the *only permanent and universal* business carried on around them! Ignoble truly! never to feel the stirrings of high impulse, prompting them to imitate the eminent pattern set before them in the daily vocation of "Honorable" and "Excellencies," and to emulate the illustrious examples of Doctor of Divinity and *Right and Very Reverends*! Hear President Jefferson's testimony. In his notes of Virginia, speaking of slaves, he says, "That disposition to theft with which they (the slaves) have been branded, must be ascribed to their *situation*, and not to any special depravity of the moral sense. It is a problem which I give the master to solve, whether the religious precepts against the violation of property were not framed for HIM as well as for his slave—and whether the slave may not as justifiably take a little from one who has taken ALL from him, as he may *slay* one who would slay him" See Jefferson's Notes on Virginia, pp. 207-8

4. *Heirship*—Servants frequently inherited their master's property; especially if he had no sons, or if they had dishonored the family. This seems to have been a general usage.

The cases of Eliezer, the servant of Abraham; Ziba, the servant of Mephibosheth, Jarha an Egyptian, the servant of Sheshan, and the husband of his daughter; 1 Chron. ii. 34, 35, and of the *husbandmen* who said of their master's son, "*this is the HEIR*, let us kill him, *and the INHERITANCE WILL BE OURS*." Mark xii. 7, are illustrations. Also the declaration in Prov. xvii. 2—"A wise servant shall have rule over a son that causeth shame, and SHALL HAVE PART OF THE INHERITANCE AMONG THE BRETHREN." This passage seems to give *servants* precedence as heirs, even over the *wives* and *daughters* of their masters. Did masters hold by force, and *plunder of earnings*, a class of persons, from which, in frequent contingencies, they selected both heirs for their property, and husbands for their daughters?

5. ALL were required to present offerings and sacrifices. Deut. xvi. 15, 17. 2 Chron. xv. 9-11. Numb. ix. 13.

Servants must have had permanently, the means of *acquiring* property to meet these expenditures.

6. *Those Hebrew servants who went out at the seventh year, were provided by law with a large stock of provisions and cattle.* Deut. xv. 11-14. "*Thou shalt furnish him liberally out of thy flock, and out of thy floor, and out of thy wine press, of that wherewith the Lord thy God hath blessed thee, thou shalt give him*^A." If it be objected, that no mention is made of the servants from the strangers, receiving a like bountiful supply, we answer, neither did the most honorable class of the *Israelitish* servants, the free-holders; and for the same reason, *they did not go out in the seventh year*, but continued until the jubilee. If the fact that no mention is made of the Gentile servants receiving such a *gratuity* proves that they were robbed of their *earnings*; it proves that the most valued class of *Hebrew* servants were robbed of theirs also, a conclusion too stubborn for even pro-slavery masticators, however unscrupulous.

^A: The comment of Maimonides on this passage is as follows—"Thou shalt furnish him liberally,' &c. That is to say, '*Loading ye shall load him.*' likewise every one of his family, with as much as he can take with him in abundant benefits. And if it be avariciously asked, How much must I give him? I say unto you, *not less than thirty shekels*, which is the valuation of a servant, as declared in Exodus xxi. 32"—Maimonides, Hilcoth, Obedim, Chapter ii. Section 3.

7. *The servants were BOUGHT. In other words, they received compensation for their services in advance.* Having shown, under a previous head, that servants *sold themselves*, and of course received the compensation for themselves, (except in cases where parents hired out the time of their children until they became of age^B.) a mere reference to the fact in this place is all that is required for the purposes of this argument.

^B: Among the Israelites, girls became of age at twelve, and boys at thirteen years.

8. *We infer that servants were paid, because we find masters at one time having a large number of servants, and afterwards none, without any intimation that they were sold.* The wages of servants would enable them to set up in business for themselves. Jacob, after being the servant of Laban for twenty-one years, became thus an independent herdsman, and was the master of many servants. Gen. xxx. 43, and xxxii. 15. But all these servants had left him before he went down into Egypt, having doubtless acquired enough to commence business for themselves. Gen. xlv. 10, 11, and xlvi. 1-7, 32.

9. *God's testimony to the character of Abraham.* Genesis xviii. 19. *"For I know him that he will command his children and his household after him, and they shall keep THE WAY OF THE LORD TO DO JUSTICE AND JUDGMENT."* We have here God's testimony, that Abraham taught his servants "the way of the Lord." What was the "way of the Lord" respecting the payment of wages where service was rendered? *"Wo unto him that useth his neighbor's service without wages!"* Jer. xxii. 13. *"Masters, give unto your servants that which is just and equal."* Col. iv. 1. *"Render unto all their DUES."* ROM. xiii. 7. *"The laborer is worthy of his hire."* Luke x. 7. How did Abraham teach his servants to "do justice" to others? By doing *injustice to them*? Did he exhort them to "render to all their dues" by keeping back *their own*? Did he teach them that "the laborer was worthy of his hire" by robbing them of *theirs*? Did he beget in them a reverence for the eighth commandment by pilfering all their time and labor? Did he teach them "not to defraud" others "in any matter" by denying *them* "what was just and equal?" If each of Abraham's pupils under such a catechism did not become a very *Aristides* in justice, then an illustrious example, patriarchal dignity, and *practical* lessons, can make but slow headway against human perverseness!

10. *Specific precepts of the Mosaic law enforcing general principles.* Out of many, we select the following:

(1.) *"Thou shall not muzzle the ox that treadeth out the corn,"* or literally, *while he thresheth.* Deut. xxv. 4. Here is a general principle applied to a familiar case. The ox representing all domestic animals. Isaiah xxx. 24. A *particular* kind of service—all kinds; and a law requiring an abundant

provision for the wants of an animal ministering to man in a *certain* way,—*a general principle of treatment covering all times, modes, and instrumentalities of service.* The object of the law was, not merely to enjoin tenderness towards brutes, but to inculcate the duty of *rewarding those who serve us*, showing that they who labor for others, are entitled to what is just and equal in return; and if such care is enjoined, by God, not merely for the ample sustenance, but for the *present enjoyment of a brute*, what would be a meet return for the services of *man*? MAN, with his varied wants, exalted nature and immortal destiny! Paul tells us expressly, that the principle which we have named, lies at the bottom of the statute. See 1 Corinthians ix. 9, 10—"For it is written in the law of Moses, *Thou shalt not muzzle the mouth of the ox that treadeth out the corn. Doth God take care for oxen? Or saith he it altogether for OUR sakes? that he that ploweth should plow in HOPE, and that he that thresheth in hope should be PARTAKER OF HIS HOPE.*"

(2.) "*If thy brother be waxen poor, and fallen in decay with thee, then thou shalt relieve him. YEA, THOUGH HE BE A STRANGER OR a SOJOURNER, that he may live with thee. Take thou no usury of him, or increase, but fear thy God. Thou shalt not give him thy money upon usury, nor lend him thy victuals for increase.*" Lev. xxv. 35-37. Or, in other words, "relief at your hands is his right, and your duty—you shall not take advantage of his necessities, but cheerfully supply them." Now, we ask, by what process of pro-slavery legerdemain, this benevolent regulation can be made to be in *keeping* with the doctrine of WORK WITHOUT PAY? Did God declare the poor stranger entitled to RELIEF, and in the same breath, *authorize them to "use his services without wages;"* force him to work, and ROB HIM OF ALL HIS EARNINGS? Judge ye.

V.—WERE MASTERS THE PROPRIETORS OF SERVANTS AS THEIR LEGAL PROPERTY?

The discussion of this topic has been already somewhat anticipated under the preceding heads; but a variety of considerations, not within the range of our previous inquiries, remain to be noticed.

1. *Servants were not subjected to the uses, nor liable to the contingencies of property.*

(1.) *They were never taken in payment for their masters' debts*, though children were sometimes taken (without legal authority) for the debts of a father. 2 Kings iv. 1; Job xxiv. 9; Isaiah l. 1; Matt. xviii. 25.

Cases are recorded to which creditors took from debtors property of all kinds, to satisfy their demands. In Job xxiv. 3, cattle are taken; in Prov. xxii 27, household furniture; in Lev. xxv. 25-28, the productions of the soil; in Lev. xxv. 27-30, houses; in Exodus xxii. 26-29, and Deut. xxiv. 10-13, and Matt. v. 40, clothing; but *servants* were taken in *no instance*.

(2.) *Servants were never given as pledges. Property* of all sorts was given and held in pledge. We find in the Bible, household furniture, clothing, cattle, money, signets, and personal ornaments, with divers other articles of property, used as pledges for value received. But no *servants*.

(3.) *All lost PROPERTY was to be restored.* "Oxen, asses, sheep, raiment, and whatsoever lost things," are specified—servant *not*. Deut. xxii. 13. Besides, the Israelites were expressly forbidden to take back the runaway servant to his master. Deut. xxiii. 15.

(4.) *The Israelites never gave away their servants as presents.* They made princely presents of great variety. Lands, houses, all kinds of animals, merchandize, family utensils, precious metals, and grain, armor, &c. are among their recorded *gifts*. Giving presents to superiors and persons of rank when visiting them, and at other times, was a standing usage. 1 Sam. x. 27; 1 Sam. xvi. 20; 2 Chron. xvii. 5. Abraham to Abimelech, Gen. xxi. 27; Jacob to the viceroy of Egypt. Gen. xliii. 11; Joseph to his brethren and father, Gen. xlv. 22, 23; Benhadad to Elisha, 2 Kings viii. 8, 9; Ahaz to Tiglath Pileser, 2 Kings xvi. 8; Solomon to the Queen of Sheba, 1 Kings, x. 13; Jeroboam to Ahijah, 1 Kings xiv. 3; Asa to Benhadad, 1 Kings xv. 18, 19. But no servants were given as presents—though that was a prevailing fashion in the surrounding nations. Gen. xii. 16; Gen. xx. 14.

OBJECTION 1. *Laban GAVE handmaids to his daughters, Jacob's wives.* Without enlarging on the nature of the polygamy then prevalent, it is

enough to say that the handmaids of wives, at that time, were themselves regarded as wives, though of inferior dignity and authority. That Jacob so regarded his handmaids, is proved by his curse upon Reuben, (Gen. xlix. 4, and Chron. v. 1) also by the equality of their children with those of Rachel and Leah. But had it been otherwise—had Laban given them *as articles of property*, then, indeed, the example of this "good old patriarch and slaveholder," Saint Laban, would have been a fore-closer to all argument.

Ah! We remember his jealousy for *religion*—his holy indignation when he found that his "GODS" were stolen! How he mustered his clan, and plunged over the desert in hot pursuit, seven days, by forced marches; how he ransacked a whole caravan, sifting the contents of every tent, little heeding such small matters as domestic privacy, or female seclusion, for lo! the zeal of his "IMAGES" had eaten him up!

No wonder that slavery, in its Bible-navigation, drifting dismantled before the free gusts, should scud under the lee of such a pious worthy to haul up and refit; invoking his protection, and the benediction of his "GODS!"

OBJECTION 2. *Servants were enumerated in inventories of property.* If that proves *servants* property, it proves *wives* property. "*Thou shalt not covet thy neighbor's house, thou shalt not covet thy neighbor's WIFE, nor his man servant, nor his maid-servant, nor his ox, nor his ass, nor any thing that is thy neighbor's*" EXODUS xx. 17. An examination of all the places in which servants are included among beasts, chattels, &c., will show, that in inventories of *mere property*, servants are not included, or if included, it is in such a way, as to show that they are not regarded as *property*. Eccl. ii. 7, 8. But when the design is to show, not merely the wealth but the *greatness* of any personage, that he is a man of distinction, a ruler, a prince, servants are spoken of, as well as property. In a word, if *riches* alone are spoken of, no mention is made of servants; if *greatness*, servants and property. Gen. xiii. 2. "*And Abraham was very rich in cattle, in silver and in gold.*" No mention of *servants*. So in the fifth verse; Lot's riches are enumerated, "*And Lot also had flocks, and herds, and tents.*" In the seventh verse servants are mentioned, "*And there was a strife between the HERDMEN of Abraham's cattle and the HERDMEN of Lot's cattle*". See also Josh. xxii. 8; Gen.

xxxiv. 23; Job. xlii. 12; 2 Chron. xxi. 3; xxxii. 27-29; Job 1. 3-5; Deut. viii. 12-17; Gen. xxiv. 35, and xxvi. 13, and xxx. 43.

Divers facts dropped incidentally, show that when servants are mentioned in connection with property, it is in such a way as to *distinguish* them from it. When Jacob was about to leave Laban, his wives say, "All the *riches* which thou hast taken from our father, that is ours and our children's." Then follows an inventory of property. "All his cattle," "all his goods," "the cattle of his getting," &c. He had a large number of servants at the time, *but they are not included with his property*. Compare Gen. xxx. 43, with Gen. xxxi. 16-18.

When he sent messengers to Esau, in order to secure his respect, and impress him with an idea of his state and sway, he bade them tell him not only of *his RICHES*, but of his GREATNESS; that Jacob had "*oxen, and asses, and flocks, and men servants, and maid servants*." Gen. xxxii. 4, 5. Yet in the present which he sent, there were no servants; though he seems to have aimed to give it as much variety as possible. Gen. xxxii. 14, 15; see also Gen. xxxvi. 6, 7; Gen. xxxiv. 23. As flocks and herds were the *staples* of wealth, a large number of servants *presupposed* large possessions of cattle, which would require many herdsmen. Further. When servants are spoken of in connection with *mere property*, the terms used to express the latter do not include the former.

The Hebrew word *Mickna* is an illustration. It is a derivative of *Kana*, to procure, to buy, and its meaning is, a *possession, wealth, riches*. It occurs more than forty times in the Old Testament—and is applied always to *mere property*—generally to domestic animals, but *never* to servants. In some instances, servants are mentioned in *distinction* from the *Mickna*. See Gen. xii. 5. "*And Abraham took Sarah his wife, and Lot his brother's son. And all their SUBSTANCE that they had gathered, and the souls that they had gotten in Haran, and they went forth to go into the land of Canaan.*" *Substance gathered and souls gotten!* Many will have it, that these *souls* were a part of Abraham's *substance* (notwithstanding the pains here taken to separate them from it)—that they were *slaves*—probably captives in war, and now, by right of conquest, taken with him in his migration as part of his family effects. Who but slaveholders, either actually, or in heart, would

torture into the principle and practice of slavery, such a harmless phrase as "*the souls that they had gotten?*" Until the slave trade breathed its haze upon the vision of the church, and smote her with palsy and decay, commentators saw no slavery in, "The souls that they had gotten." In the Targum of Onkelos^A it is thus rendered, "The souls whom they had brought to obey the law in Haran." In the Targum of Jonathan, thus: "The souls whom they had made proselytes in Haran." In the Targum of Jerusalem, "The souls proselyted in Haran." Jarchi, placed by Jewish Rabbis at the head of their commentators, thus renders it: "The souls whom they had brought under the Divine wings." Jerome, one of the most learned of the Christian fathers: "The persons whom they had proselyted." The Persian version thus gives the whole verse, "And Abraham took Sarah his wife, and Lot his brother's son, and all their wealth which they had accumulated, and the souls which they had *made*." The Vulgate version thus translates it, "Universam substantiam quam possederant et animas quas fecerant in Haran." "The entire wealth which they possessed, and the souls which they had made." The Syriac thus, "All their possessions which they possessed, and the souls which they had made in Haran." The Arabic, "All their property which they had acquired, and the souls whom they had made in Haran." The Samaritan, "All the wealth which they had gathered, and the souls which they had made in Haran." Menochius, a commentator who wrote before our present translation of the English Bible, renders it as follows:—"Quas de idolotria converterunt^B." "Those whom they have converted from idolatry."—Paulus Fagius^C. "Quas instituerant in religione."—"Those whom they had instructed in religion."—Luke Franke, a German commentator who lived two centuries ago. "Quas legi subjicerant."—"Those whom they had brought to obey the law."

^A: The Targums are Chaldee paraphrases of parts of the Old Testament. The Targum of Onkelos is for the most part, a very accurate and faithful translation of the original, and was probably made at about the commencement of the Christian era. The Targum of Jonathan Ben Uzziel bears about the same date. The Targum of Jerusalem was probably about five hundred years later.

The Israelites, during their long captivity in Babylon, lost as a body, their knowledge of their own language. These translations of the Hebrew

Scriptures into the Chaldee, the language which they acquired in Babylon, were thus called for by the necessity of the case.

B: See his "Brevis explicatio sensus literalis totius Scripture."

C: This eminent Hebrew scholar was invited to England by Cranmer, then Archbishop of Canterbury, to superintend the translation of the Bible into English, under the patronage of Henry the Eighth. He had hardly commenced the work when he died. This was nearly a century before the date of our present translation.

2. The condition of servants in their masters' families, the privileges which they shared in common with the children, and their recognition as equals by the highest officers of the government—make the doctrine that they were mere COMMODITIES, an absurdity. The testimony of Paul, in Gal. iv. 1, gives an insight into the condition of servants. *"Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all."*

That Abraham's servants were voluntary,—that their interests were identified with those of their master's family—that they were regarded with great affection by the household, and that the utmost confidence was reposed in them, is shown in the arming of 318 of them for the recovery of Lot and his family from captivity. See Gen. xiv. 14, 15.

When Abraham's servant went to Padanaram, the young Princess Rebekah did not disdain to say to him, "Drink, MY Lord," as "she hasted and let down her pitcher upon her hand, and gave him drink," and "she hasted and emptied her pitcher, and ran again unto the well, and drew for all his camels." Laban, the brother of Rebekah, prepared the house for his reception, *"ungirded his camels, and brought him water to wash his feet, and the men's feet that were with him!"*

In the 9th chapter of 1 Samuel, we have an account of a high festival in the city of Zuph, at which Samuel, the chief judge and ruler in Israel, presided. None sat down at the feast but those that were bidden. And only "about *thirty* persons" were invited. Quite a select party!—the elite of the city of Zuph! Saul and his servant arrived at Zuph just as the party was assembling;

and *both* of them, at Samuel's solicitation, accompany him as invited guests. "*And Samuel took Saul and his SERVANT, and brought THEM into the PARLOR(!) and made THEM sit in the CHIEFEST SEATS among those that were bidden.*" A servant invited by the chief judge, ruler, and prophet in Israel, to dine publicly with a select party, in company with his master, who was *at the same time anointed King of Israel*; and this servant introduced by Samuel into the PARLOR, and assigned, with his master, to the *chiefest seat* at the table! This was "*one of the servants*" of *Kish*, Saul's father; not the *steward* or the *chief* of them—not at all a *picked* man, but "*one of the servants*;" *any* one that could be most easily spared, as no endowments specially rare would be likely to find scope in looking after asses.

Again: we learn from 1 Kings xvi. 8, 9, that Elah, the King of Israel, was slain by Zimri, one of his chief officers, at a festive entertainment, in the house of Arza, his steward, or head servant, with whom he seems to have been on terms of familiarity. Without detailing other cases, we refer the reader to the intercourse between Gideon and his servant.—Judges vii. 10, 11.—Jonathan and his servant.—1 Samuel xiv. 1-14.—Elisha and his servant.

3. *The condition of the Gibeonites, as subjects of the Hebrew commonwealth, shows that they were neither articles of property, nor even INVOLUNTARY servants.* The condition of the inhabitants of Gibeon, Chephirah, Beeroth, and Kirjathjearim, under the Israelites, is quoted in triumph by the advocates of slavery; and truly they are right welcome to all the crumbs that can be gleaned from it. Milton's devils made desperate snatches at fruit that turned to ashes on their lips. The spirit of slavery raves under tormenting gnawings, and casts about in blind phrenzy for something to ease, or even to *mock* them. But for this, it would never have clutched at the Gibeonites, for even the incantations of the demon cauldron, could not extract from their case enough to tantalize starvation's self. But to the question. What was the condition of the Gibeonites under the Israelites?

(1.) *It was voluntary.* It was their own proposition to Joshua to become servants. Joshua ix. 8, 11. Their proposition was accepted, but the kind of service which they should perform, was not specified until their gross

imposition came to light; they were then assigned to menial offices in the tabernacle.

(2.) *They were not domestic servants in the families of the Israelites.* They still continued to reside in their own cities, cultivating their own fields, tending their flocks and herds, and exercising the functions of a *distinct*, though not independent community. They were *subject* to the Jewish nation as *tributaries*. So far from being distributed among the Israelites, their family relations broken up, and their internal organization as a distinct people abolished, they seem to have remained a separate, and, in some respects, an independent community for many centuries. When they were attacked by the Amorites, they applied to the Israelites as confederates for aid—it was promptly rendered, their enemies routed, and themselves left unmolested in the occupation of their cities, while all Israel returned to Gilgal. Joshua x. 6-18. Long afterwards, Saul slew some of them, and God sent upon Israel a three years' famine for it. David said to the Gibeonites, "What shall I do for you, and wherewith shall I make the atonement, that ye may bless the inheritance of the Lord?" At their demand, he delivered up to them, seven of the royal family, five of them the sons of Michal, his own former wife. 2 Samuel xxi. 1-9. The whole transaction was a formal recognition of the Gibeonites as a separate people. There is no intimation that they served families, or individuals of the Israelites, but only the "house of God," or the Tabernacle. This was established first at Gilgal, a day's journey from the cities of the Gibeonites; and then at Shiloh, nearly two days' journey from them; where it continued about 350 years. During all this period, the Gibeonites inhabited their ancient cities and territory. Only a few, comparatively, could have been absent from their cities at any one time in attendance on the tabernacle.

(1.) Whenever allusion is made to them in the history, the main body are spoken of as *at home*.

(2.) It is preposterous to suppose that their tabernacle services could have furnished employment for all the inhabitants of these four cities. One of them "was a great city, as one of the royal cities;" so large, that a confederacy of five kings, apparently the most powerful in the land, was deemed necessary for its destruction. It is probable that the men were

divided into classes, and thus ministered at the tabernacle in rotation—each class a few days or weeks at a time. This service was their *national tribute* to the Israelites, rendered for the privilege of residence and protection under their government. No service seems to have been required of the *females*. As these Gibeonites were Canaanites, and as they had greatly exasperated the Israelites by impudent imposition, hypocrisy, and lying, we might assuredly expect that they would reduce *them* to the condition of chattels and property, if there was *any* case in which God permitted them to do so.

7. *Because, throughout the Mosaic system, God warns them against holding their servants in such a condition as they were held in by the Egyptians.* How often are the Israelites pointed back to the grindings of their prison-house! What motives to the exercise of justice and kindness towards their servants, are held out to their fears in threatened judgements; to their hopes in promised good; and to all within them that could feel, by those oft repeated words of tenderness and terror! "For ye were bondmen in the land of Egypt"—waking anew the memory of tears and anguish, and of the wrath that avenged them.

That the argument derived from the condition of the Israelites in Egypt, and God's condemnation of it, may be appreciated, it is important that the Egyptian bondage should be analyzed. We shall then be able to ascertain, of what rights the Israelites were plundered, and what they retained.

EGYPTIAN BONDAGE ANALYZED. (1.) *The Israelites were not dispersed among the families of Egypt, the property of individual owners^A.* They formed a *separate* community. See Gen. xlv. 35. Ex. viii. 22, 24, and ix. 26, and x. 23, and xi. 7, and ii. 9, and xvi. 22, and xvii. 5.

^A: The Egyptians evidently had *domestic* servants living in their families; these may have been slaves; allusion is made to them in Exodus ix. 14, 20, 21. But none of the Israelites were included in this class.

(2.) *They had the exclusive possession of the land of Goshen^B, one of the richest and most productive parts of Egypt.* Gen. xlv. 18, and xlvii. 6, 11, 27. Ex. xii. 4, 19, 22, 23, 27.

[B](#): The land of Goshen was a large tract of country, east of the Pelusian arm of the Nile, and between it and the head of the Red Sea, and the lower border of Palestine. The probable centre of that portion, occupied by the Israelites, could hardly, have been less than 60 miles from the city. From the best authorities it would seem that the extreme western boundary of Goshen must have been many miles distant from Egypt. See "Exodus of the Israelites out of Egypt," an able article by Professor Robinson, in the Biblical Repository for October, 1832.

(3.) *They lived in permanent dwellings.* These were *houses*, not *tents*. In Ex. xii. 6, the two side *posts*, and the upper door *posts* of the houses are mentioned, and in the 22d, the two side posts and the lintel. Each family seems to have occupied a house *by itself*—Acts vii. 20, Ex. xii. 4—and from the regulation about the eating of the Passover, they could hardly have been small ones—Ex. xii. 4—and probably contained separate apartments, and places for seclusion. Ex. ii. 2, 3; Acts vii. 20. They appear to have been well apparelled. Ex. xii. 11. To have had their own burial grounds. Ex. xiii. 19, and xiv. 11.

(4.) *They owned "a mixed multitude of flocks and herds,"* and "*very much cattle.*" Ex. xii. 32, 37, 38.

(5.) They had their own form of government, and preserved their tribe and family divisions, and their internal organization throughout, though still a province of Egypt, and *tributary* to it. Ex. ii. 1, and xii. 19, 21, and vi. 14, 25, and v. 19, and iii. 16, 18.

(6.) *They seem to have had in a considerable measure, the disposal of their own time,*—Ex. xxiii. 4, and iii. 16, 18, and xii. 6, and ii. 9, and iv. 27, 29-31. Also to have practised the fine arts. Ex. xxxii. 4, and xxxv. 32-35.

(7.) *They were all armed.* Ex. xxxii. 27.

(8.) *All the females seem to have known something of domestic refinements; they were familiar with instruments of music, and skilled in the working of fine fabrics.* Ex. xv. 20, and 35, 36.

(9.) *They held their possessions independently, and the Egyptians seem to have regarded them as inviolable.* This we infer from the fact that there is no intimation that the Egyptians dispossessed them of their habitations, or took away their flocks, or herds, or crops, or implements of agriculture, or any article of property.

(10.) *Service seems to have been exacted from none but adult males.* Nothing is said from which the bond service of females could be inferred; the hiding of Moses three months by his mother, and the payment of wages to her by Pharaoh's daughter, go against such a supposition. Ex. ii. 29.

(11.) So far from being fed upon a given allowance, their food was abundant, and had great variety. "They sat by the flesh-pots," and "did eat bread to the full." Ex. xvi. 3, and xxiv. 1, and xvii. 5, and iv. 29, and vi. 14. Also, "they did eat fish freely, and cucumbers, and melons, and leeks, and onions, and garlic." Num. xi. 4, 5, and x. 18, and xx. 5.

(12.) *That the great body of the people were not in the service of the Egyptians, we infer* (1) from the fact, that the extent and variety of their own possessions, together with such a cultivation of their crops as would provide them with bread, and such care of their immense flocks and herds, as would secure their profitable increase, must have furnished constant employment for the main body of the nation.

(2.) During the plague of darkness, God informs us that "ALL the children of Israel had light in their dwellings." We infer that they were *there* to enjoy it.

(3.) It seems improbable that the making of brick, the only service named during the latter part of their sojourn in Egypt, could have furnished permanent employment for the bulk of the nation. See also Ex. iv. 29-31.

Besides, when Eastern nations employed tributaries, it was, as now, in the use of the levy, requiring them to furnish a given quota, drafted off periodically, so that comparatively but a small portion of the nation would be absent *at any one time*.

Probably there was the same requisition upon the Israelites for one-fifth part of the proceeds of their labor, that was laid upon the Egyptians. See Gen. xlvii. 24, 26. Instead of taking it out of their *crops*, (Goshen being better for *pasturage* than crops) they exacted it of them in brick making; and it is quite probable that only the *poorer* Israelites were required to work for the Egyptians at all, the wealthier being able to pay their tribute, in money. See Exod. iv. 27-31.

This was the bondage in Egypt. Contrast it with American slavery. Have our slaves "very much cattle," and "a mixed multitude of flocks and herds?" Do they live in commodious houses of their own? Do they "*sit by the flesh-pots*," "*eat fish freely*," and "*eat bread to the full*?" Do they live in a separate community, at a distance from their masters, in their distinct tribes, under their own rulers and officers? Have they the exclusive occupation of an extensive and fertile tract of country for the culture of their own crops, and for rearing immense herds of *their own* cattle—and all these held independently of their masters, and regarded by them as inviolable? Are our female slaves free from all exactions of labor and liabilities of outrage?—and whenever employed, are they paid wages, as was the Israelitish woman, when employed by the king's daughter? Exod. ii. 9. Have the females entirely, and the males to a considerable extent, the disposal of their own time? Have they the means for cultivating social refinements, for practising the fine arts, and for intellectual and moral improvement?

THE ISRAELITES, UNDER THE BONDAGE OF EGYPT, ENJOYED ALL THESE RIGHTS AND PRIVILEGES. True, "*their lives were made bitter, and all the service wherein they made them serve was with rigor*." But what was that, when compared with the incessant toil of American slaves, the robbery of all their time and earnings, and even the "power to own any thing, or acquire any thing"—the "quart of corn a day," the legal allowance of food^A!—their *only* clothing for one half the year, "*one shirt and one pair of pantaloons*"^B!—the *two hours and a half* only for rest and refreshment in the twenty-four^C!—their dwellings, *hovels*, unfit for human residence, commonly with but one apartment, where both sexes and all ages herd promiscuously at night, like the beasts of the field. Add to this, the mental ignorance, and moral degradation; the daily separations of kindred, the revelries of lust, the lacerations and baptisms of blood, sanctioned by

the laws of the South, and patronized by its public sentiment. What, we ask, was the bondage of Egypt when compared with this? And yet for *her* oppression of the poor, God smote her with plagues, and trampled her as the mire, till she passed away in his wrath, and the place that knew her in her pride, knew her no more. Ah! "*I have seen the afflictions of my people, and I have heard their groanings, and am come down to deliver them.*" HE DID COME, and Egypt sank, a ruinous heap, and her blood closed over her.

A: The law of North Carolina. See Haywood's Manual, 524-5

B: The law of Louisiana. See Martin's Digest, 610.

C: The whole amount of time secured by the law of Louisiana. See Act of July 7, 1806. Martin's Digest, 610-12

If such was God's retribution for the oppression of heathen Egypt, of how much sorer punishment shall a Christian people be thought worthy, who cloak with religion, a system, in comparison with which the bondage of Egypt dwindles to nothing?

Let those believe who can, that God gave his people permission to hold human beings, robbed of *all* their rights, while he threatened them with wrath to the uttermost, if they practised the *far lighter* oppression of Egypt—which robbed its victims of only the *least* and *cheapest* of their rights, and left the *females* unplundered even of these. What! *Is God divided against himself?* When he had just turned Egypt into a funeral pile; while his curse yet blazed upon her unburied dead, and his bolts still hissed amidst her slaughter, and the smoke of her torment went upwards because she had "ROBBED THE POOR," did He license the VICTIMS of robbery to rob the poor of ALL? As *Lawgiver*, did he *create* a system tenfold more grinding than that, for which he had just hurled Pharaoh headlong, and cloven down his princes, and overwhelmed his hosts, and blasted them with His thunder, till "hell was moved to meet them at their coming?"

Having touched upon the general topics which we design to include in this inquiry, we proceed to examine various Scripture facts and passages, which will doubtless be set in array against the foregoing conclusions.

OBJECTIONS CONSIDERED.

The advocates of slavery are always at their wits end when they try to press the Bible into their service. Every movement shows that they are hard-pushed. Their odd conceits and ever varying shifts, their forced constructions, lacking even plausibility, their bold assumptions, and blind guesswork, not only proclaim their *cause* desperate, but themselves. Some of the Bible defences thrown around slavery by ministers of the Gospel, do so torture common sense, Scripture, and historical fact, that it were hard to tell whether absurdity, fatuity, ignorance, or blasphemy, predominates, in compound. Each strives so lustily for the mastery, it may be set down a drawn battle.

How often has it been set up in type, that the color of the negro is the *Cain-mark*, propagated downward. Doubtless Cain's posterity started an opposition to the ark, and rode out the flood with flying streamers! Why should not a miracle be wrought to point such an argument, and fill out for slaveholders a Divine title-deed, vindicating the ways of God to men?

OBJECTION 1. "*Cursed be Canaan, a servant of servants shall he be unto his brethren.*" Gen. i. 25.

This prophecy of Noah is the vade mecum of slaveholders, and they never venture abroad without it. It is a pocket-piece for sudden occasion—a keepsake to dote over—a charm to spell-bind opposition, and a magnet to attract "whatsoever worketh abomination, or maketh a lie." But closely as they cling to it, "cursed be Canaan" is a poor drug to stupify a throbbing conscience—a mocking lullaby, vainly wooing slumber to unquiet tossings, and crying "Peace, be still," where God wakes war, and breaks his thunders.

Those who plead the curse on Canaan to justify negro slavery, *assume* all the points in debate.

1. That the condition prophesied was *slavery*, rather than the mere *rendering of service* to others, and that it was the bondage of *individuals* rather than the condition of a *nation tributary* to another, and in *that* sense its *servant*.

2. That the *prediction* of crime *justifies* it; that it grants absolution to those whose crimes fulfil it, if it does not transform the crimes into *virtues*. How piously the Pharaohs might have quoted God's prophecy to Abraham, "*Thy seed shall be in bondage, and they shall afflict them for four hundred years.*" And then, what *saints* were those that crucified the Lord of glory!

3. That the Africans are descended from Canaan. Whereas Africa was peopled from Egypt and Ethiopia, and Mizraim settled Egypt, and Cush, Ethiopia. See Gen. x. 15-19, for the location and boundaries of Canaan's posterity. So on the assumption that African slavery fulfils the prophecy, a curse pronounced upon one people, is quoted to justify its infliction upon another. Perhaps it may be argued that Canaan includes all Ham's posterity. If so, the prophecy has not been fulfilled. The other sons of Ham settled the Egyptian and Assyrian empires, and conjointly with Shem the Persian, and afterward, to some extent, the Grecian and Roman. The history of these nations gives no verification of the prophecy. Whereas the history of Canaan's descendants, for more than three thousand years, is a record of its fulfilment. First, they were made tributaries by the Israelites. Then Canaan was the servant of Shem. Afterward, by the Medes and Persians. Then Canaan was the servant of Shem, and in part of the other sons of Ham. Afterward, by the Macedonians, Grecians, and Romans, successively. Then Canaan was the servant of Japhet, mainly, and secondarily of the other sons of Ham. Finally, they were subjected by the Ottoman dynasty, where they yet remain. Thus Canaan is *now* the servant of Shem and Japhet and the other sons of Ham.

But it may still be objected, that though Canaan is the only one *named* in the curse, yet the 22d and 23d verses show that it was pronounced upon the posterity of Ham in general. "*And Ham, the father of Canaan, saw the nakedness of his father, and told his two brethren without.*"—Verse 22. In verse 23, Shem and Japhet cover their father with a garment. Verse 24, "*And Noah awoke from his wine, and knew what his YOUNGER son had done unto him, and said,*" &c.

It is argued that this younger son cannot be *Canaan*, as he was not the *son*, but the *grandson* of Noah, and therefore it must be *Ham*. We answer, whoever that "*younger son*" was, or whatever he did, *Canaan* alone was

named in the curse. Besides, the Hebrew word *Ben*, signifies son, grandson, great-grandson, or *any one* of the posterity of an individual. Gen. xxix. 5, "*And he said unto them, Know ye Laban, the SON of Nahor?*" Yet Laban was the *grandson* of Nahor. Gen. xxiv. 15, 29. In 2 Sam. xix. 24, it is said, "*Mephibosheth, the SON of Saul, came down to meet the king.*" But Mephibosheth was the son of Jonathan, and the *grandson* of Saul. 2 Sam. ix. 6. So Ruth iv. 17. "*There is a SON born to Naomi.*" This was the son of Ruth, the daughter-in-law of Naomi. Ruth iv. 13, 15. So 2 Sam. xxi. 6. "*Let seven men of his (Saul's) SONS be delivered unto us,*" &c. Seven of Saul's *grandsons* were delivered up. 2 Sam. xxi. 8, 9. So Gen. xxi. 28, "*And hast not suffered me to kiss my SONS and my daughters;*" and in the 55th verse, "*And early in the morning Laban rose up and kissed his SONS,*" &c. These were his *grandsons*. So 2 Kings ix. 20, "*The driving of Jehu, the SON of Nimshi.*" So 1 Kings xix. 16. But Jehu was the *grandson* of Nimshi. 2 Kings ix. 2, 14. Who will forbid the inspired writer to use the *same* word when speaking of Noah's grandson?

Further, if Ham were meant what propriety in calling him the *younger* son? The order in which Noah's sons are always mentioned, makes Ham the *second*, and not the *younger* son. If it be said that Bible usage is variable, and that the order of birth is not always preserved in enumerations; the reply is, that, enumeration in the order of birth, is the *rule*, in any other order the *exception*. Besides, if the younger member of a family, takes precedence of older ones in the family record, it is a mark of pre-eminence, either in original endowments, or providential instrumentality. Abraham, though sixty years younger than his eldest brother, and probably the youngest of Terah's sons, stands first in the family genealogy. Nothing in Ham's history warrants the idea of his pre-eminence; besides, the Hebrew word *Hakkaton*, rendered *younger*, means the *little, small*. The same word is used in Isaiah xl. 22. "*A LITTLE ONE shall become a thousand.*" Also in Isaiah xxii. 24. "*All vessels of SMALL quantity.*" So Psalms cxv. 13. "*He will bless them that fear the Lord, both SMALL and great.*" Also Exodus xviii. 22. "*But every SMALL matter they shall judge.*" It would be a perfectly literal rendering of Gen. ix. 24, if it were translated thus, "when Noah knew what his little son^A, or grandson (*Beno hakkaton*) had done unto him, he said, cursed be Canaan," &c.

A: The French language in this respect follows the same analogy. Our word *grandson* being in French, *petit fils*, (little son.)

Even if the Africans were the descendants of Canaan, the assumption that their enslavement is a fulfilment of this prophecy, lacks even plausibility, for, only a mere *fraction* of the inhabitants of Africa have at any one time been the slaves of other nations. If the objector say in reply, that a large majority of the Africans have always been slaves at *home*, we answer, 1st. *It is false in point of fact*, though zealously bruited often to serve a turn. 2d. *If it were true*, how does it help the argument? The prophecy was, "Cursed be Canaan; a servant of servants shall he be unto his brethren" not unto *himself*!

OBJECTION II.—"*If a man smite his servant or his maid with a rod, and he die under his hand, he shall surely be punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money.*" Exodus xxi. 20, 21.

Arguments drawn from the Mosaic system in support of slavery, originate in a misconception both of its genius, *as a whole*, and of the design and scope of its most simple provisions. The verses quoted above, afford an illustration in point.

What was the design of this regulation? Was it to grant masters an indulgence to beat servants with impunity? and an assurance, that if they beat them to death, the offence would not be *capital*? This is substantially what some modern Doctors tell us. What Deity do such men worship? Some blood-gorged Moloch, enthroned on human hecatombs, and snuffing carnage for incense? Did He who thundered out from Sinai's flames, "THOU SHALT NOT KILL," offer a bounty on *murder*? Whoever analyzes the Mosaic system—the condition of the people for whom it was made—their inexperience in government—ignorance of judicial proceedings—laws of evidence, &c., will find a moot court in session, trying law points—setting definitions, or laying down rules of evidence, in almost every chapter. Numbers xxxv. 10-22; Deuteronomy xi. 11, and xix. 4-6; Leviticus xxiv. 19-22; Exodus, xxi. 18, 19, are a few, out of many cases stated, with tests furnished by which to detect *the intent*, in actions brought before them.

The detail gone into, in the verses quoted, is manifestly to enable the judges to get at the *motive* of the action, and find out whether the master *designed* to kill.

1. "If a man smite his servant with a *rod*."—The instrument used, gives a clue to the *intent*. See Numbers xxxv. 16, 18. It was a *rod*, not an axe, nor a sword, nor a bludgeon, nor any other death-weapon—hence, from the *kind* of instrument, no design to *kill* would be inferred; for *intent* to kill would hardly have taken a *rod* for its weapon. But if the servant dies *under his hand*, then the unfitness of the instrument, instead of being evidence in his favor, is point blank against him; for, to strike him with a *rod* until he *dies*, argues a *great many* blows laid on with *great* violence, and this kept up to the death-gasp, establishes the point of *intent to kill*. Hence the sentence, "He shall *surely* be punished." The case is plain and strong. But if he continued *a day or two*, the *length of time that he lived*, together with the *kind* of instrument used, and the fact that the master had a pecuniary interest in his *life*, ("he is his *money*,") all, made out a strong case of circumstantial evidence, showing that the master did not *design* to kill; and required a corresponding decision and sentence. A single remark on the word "punished:" in Exodus xxi. 20, 21, the Hebrew word here rendered *punished*, (*Nakum*,) is *not so rendered in another instance*. Yet it occurs thirty-five times in the Old Testament—in almost every instance, it is translated *avenge*—in a few, "*to take vengeance*," or "*to revenge*," and in this instance ALONE, "*punish*." As it stands in our translation, the pronoun preceding it, refers to the *master*—the *master* in the 21st verse, is to be *punished*, and in the 22d *not* to be punished; whereas the preceding pronoun refers neither to the *master* nor to the *servant*, but to the *crime*, and the word rendered *punished*, should have been rendered *avenged*. The meaning is this: If a man smite his servant or his maid with a rod, and he die under his hand, IT (the death) shall surely be avenged, or literally, *by avenging it shall be avenged*; that is, the *death* of the servant shall be *avenged* by the *death* of the master. So in the next verse—"If he continues a day or two," his death shall not be avenged by the *death* of the *master*, for in that case the crime was to be adjudged *manslaughter*, and not *murder*, as in the first instance. In the following verse, another case of personal injury is stated, not intentional, nor extending to life or limb, a mere accidental hurt, for which the injurer is to pay *a sum of money*; and yet our translators employ

the same phraseology in both places. One, an instance of deliberate, wanton, *killing by piecemeal*. The other and *accidental*, and comparatively slight injury—of the inflicter, in both cases, they say the same thing! "*He shall surely be punished*." Now, just the difference which common sense would expect to find in such cases, where GOD legislates, is strongly marked in the original. In the case of the servant wilfully murdered, God says, "It (the death) shall surely be *avenged*," (*Nakum*,) that is, *the life of the wrong doer shall expiate the crime*. The same word is used in the Old Testament, when the greatest wrongs are redressed, by devoting the perpetrators, whether individuals or communities, to *destruction*. In the case of the *unintentional* injury, in the following verse, God says, "He shall surely be" *fined*, (*Aunash*.) "He shall *pay* as the judges determine." The simple meaning of the word *Aunash*, is to lay a fine. It is used in Deut. xxii. 19. They shall *amerce* him in one hundred shekels," and in 2 Chron. xxxvi. 3—"He condemned (*mulcted*) the land in a hundred talents of gold.—This is the general use of the word, and its primary signification. That *avenging* the death of the servant, was neither imprisonment, nor stripes, nor amercing the master in damages, but that it was *taking the master's life* we infer.

1. From the *Bible usage* of the word *Nakam*. See Genesis iv. 24; Joshua x. 13; Judges xv. 7-xvi. 28; 1 Samuel xiv. 24-xviii. 25-xxv. 31; 2 Samuel iv. 8; Judges v. 2; 1 Samuel xxv. 26-33, &c. &c.

2. From the express statute in such case provided. Leviticus xxiv. 17. "*He that killeth ANY man shall surely be put to death*." Also Numbers xxxv. 30, 31. "*Whoso killeth ANY person, the murderer shall be put to death. Moreover ye shall take NO SATISFACTION for the life of a murderer which is guilty of death, but he shall surely be put to death*."

3. The Targum of Jonathan gives the verse thus, "Death by the sword shall assuredly be adjudged." The Targum of Jerusalem thus, "Vengeance shall be taken for him to the *uttermost*." Jarchi gives the same rendering. The Samaritan version thus, "He shall die the death."

Again, the last clause in the 21st verse ("for he is his money") is often quoted to prove that the servant is his master's *property*, and *therefore*, if he died, the master was not *to be punished*. *Because*, 1st. A man may dispose

of his *property* as he pleases. 2d. If the servant died of the injury, the master's *loss* was a sufficient punishment. A word about the premises, before we notice the inferences. The assumption is, that the phrase, "HE IS HIS MONEY," proves not only that the servant is *worth money* to the master, but that he is an *article of property*. If the advocates of slavery will take this principle of interpretation into the Bible, and turn it loose, let them either give bonds for its behavior, or else stand and draw in self-defence, "lest it turn again and rend" them. If they endorse for it at one point, they must stand sponsors all around the circle. It will be too late to cry for quarter when they find its stroke clearing the whole table, and tilting them among the sweepings beneath. The Bible abounds with such expressions as the following: "This (bread) *is* my body;" "this (wine) *is* my blood;" "all they (the Israelites) *are* brass, and tin, and iron, and lead;" "this *is* life eternal, that they might know thee;" "this (the water of the well of Bethlehem) *is* the blood of the men who went in jeopardy of their lives;" "I *am* the lily of the valleys;" "a garden enclosed *is* my sister;" "my tears *have been* my meat;" "the Lord God *is* a sun and a shield;" "God *is* love;" "the Lord *is* my rock;" "the seven good ears *are* seven years, and the seven good kine *are* seven years;" "the seven thin and ill-favored kine *are* seven years, and the seven empty ears blasted by the east wind *shall be* seven years of famine;" "he *shall be* head, and thou *shall be* tail;" "the Lord *will be* a wall of fire;" "they *shall be* one flesh;" "the tree of the field *is* man's life;" "God *is* a consuming fire;" "he *is* his money," &c. A passion for the exact *literalities* of Bible language is so amiable, it were hard not to gratify it in this case. The words in the original are (Kaspo-hu,) "his *silver* is he." The objector's principle of interpretation is, a philosopher's stone! Its miracle touch transmutes five feet eight inches of flesh and bones into *solid silver*! Quite a *permanent* servant, if not so nimble with all—reasoning against "*forever*," is forestalled henceforth, and, Deut. xxiii. 15, utterly outwitted.

Who in his senses believes that in the expression, "*He is his money*," the object was to inculcate the doctrine that the servant was a *chattel*? The obvious meaning is, he is *worth money* to his master, and since, if the master killed him, it would take money out of his pocket, the *pecuniary loss*, the *kind of instrument used*, and the *fact of his living some time after the injury*, (as, if the master *meant* to kill, he would be likely to *do* it while about it,) all together make out a strong case of presumptive evidence

clearing the master of *intent to kill*. But let us look at the objector's inferences. One is, that as the master might dispose of his *property* as he pleased, he was not to be punished, if he destroyed it. Answer. Whether the servant died under the master's hand, or continued a day or two, he was *equally* his master's property, and the objector admits that in the *first* case the master is to be "surely punished" for destroying *his own property*! The other inference is, that since the continuance of a day or two, cleared the master of *intent to kill*, the loss of the slave would be a sufficient punishment for inflicting the injury which caused his death. This inference makes the Mosaic law false to its own principles. A *pecuniary loss*, constituted no part of the claims of the law, where a person took the *life* of another. In such case, the law utterly spurned money, however large the sum. God would not so cheapen human life, as to balance it with such a weight. "*Ye shall take no satisfaction for the life of a murderer, but he shall surely be put to death.*" See Numb. xxxv. 31. Even in excusable homicide, a case of death purely accidental, as where an axe slipped from the helve and killed a man, no sum of money availed to release from confinement in the city of refuge, until the death of the High Priest. Numbers xxxv. 32. The doctrine that the loss of the servant would be a penalty *adequate* to the desert of the master, admits the master's *guilt*—his desert of *some* punishment, and it prescribes a *kind* of punishment, rejected by the law, in all cases where man took the life of man, whether with or without *intent* to kill. In short, the objector annuls an integral part of the system—resolves himself into a legislature, with power in the premises, makes a *new* law, and coolly metes out such penalty as he thinks fit, both in kind and quantity. Mosaic statutes amended, and Divine legislation revised and improved!

The master who struck out the tooth of a servant, whether intentionally or not, was required to set him free for his tooth's sake. The *pecuniary loss* to the master was the same as though the servant had *died*. Look at the two cases. A master beats his servant so severely, that after a day or two he dies of his wounds; another master accidentally strikes out his servant's tooth, and his servant is free—the *pecuniary loss of both masters is the same*. The objector contends that the loss of the slave's services in the first case is punishment sufficient for the crime of killing him; yet God commands the *same* punishment for even the *accidental* knocking out of a *tooth*! Indeed, unless the injury was done *inadvertently*, the loss of the servant's services is

only a *part* of the punishment—mere reparation to the *individual* for injury done; the *main* punishment, that strictly *judicial*, was, reparation to the *community* for injury to one of its members. To set the servant *free*, and thus proclaim his injury, his right to redress, and the measure of it—answered not the ends of public justice. The law made an example of the offender, "those that remain might hear and fear." "*If a man cause a blemish in his neighbour, as he hath done, so shall it be done unto him. Breach for breach, eye for eye, tooth for tooth; as he hath caused a blemish in a man, so shall it be done to him again. You have one manner of law as well for the STRANGER as for one of your own country.*" Lev. xxiv. 19, 20, 22. Finally, if a master smote out the tooth of a servant, the law smote out *his* tooth—thus redressing the *public* wrong; and it cancelled the servant's obligation to the master, thus giving some compensation for the injury done, and exempting him from perilous liabilities in future.

OBJECTION III. *Both the bondmen and bondmaids which thou shalt have, shall be of the heathen that are round about you, of them shall ye buy bondmen and bondmaids. Moreover of the children of the strangers that do sojourn among you, of them shall ye buy, and of their families that are with you, which they begat in your land, and they shall be your possession. And ye shall take them as an inheritance for your children after you, to inherit them for a possession; they shall be your bondmen forever.* Lev. xxv. 44-46.

The *points* in these verses, urged as proof, that the Mosaic system sanctioned slavery, are 1. The word "BONDMEN." 2. "BUY." 3. "INHERITANCE AND POSSESSION." 4. "FOREVER."

The *second* point, the *buying* of servants, has been already discussed, see [page 15](#). And a part of the *third* (holding servants as a "possession." See [p. 36](#).) We will now ascertain what sanction to slavery is derivable from the terms "bondmen," "inheritance," and "forever."

I. BONDMEN. The fact that servants, from the heathen are called "*bondmen*," while others are called "*servants*," is quoted as proof that the former were slaves. As the *caprices* of King James' translators were not divinely inspired, we need stand in no special awe of them. The word rendered *bondmen*, in this passage, is the same word uniformly rendered

servants elsewhere. To infer from this that the Gentile servants were slaves, is absurd. Look at the use of the Hebrew word "*Ebed*," the plural of which is here translated "*bondmen*." In Isaiah xlii. 1, the *same word* is applied to Christ. "Behold my *servant* (bondman, slave?) whom I have chosen, mine elect in whom my soul delighteth." So Isaiah lii. 13. "Behold my *servant* (Christ) shall deal prudently." In 1 Kings xii. 6, 7, it is applied to *King Rehoboam*. "And they (the old men) spake unto him, saying if thou wilt be a *servant* (*Ebed*) unto this people this day, and will serve them and answer them, and wilt speak good words to them, then they will be thy *servants* forever." In 2 Chron. xii. 7, 8, 9, 13, it is applied to the king and all the nation. In fine, the word is applied to *all* persons doing service to others—to magistrates, to all governmental officers, to tributaries, to all the subjects of governments, to younger sons—defining their relation to the first born, who is called *Lord* and *ruler*—to prophets, to kings, to the Messiah, and in respectful addresses not less than *fifty* times in the Old Testament.

If the Israelites not only held slaves, but multitudes of them, why had their language *no word* that *meant slave*? If Abraham had thousands, and if they *abounded* under the Mosaic system, why had they no such *word* as slave or slavery? That language must be woefully poverty stricken, which has *no signs* to represent the most *common* and *familiar* objects and conditions. To represent by the same word, and without figure, *property*, and the *owner* of that property, is a solecism. Ziba was an "*Ebed*," yet he "*owned*" (!) twenty *Ebeds*. In *English*, we have both the words *servant* and *slave*. Why? Because we have both the *things*, and need *signs* for them. If the tongue had a sheath, as swords have scabbards, we should have some *name* for it: but our dictionaries give us none. Why? because there is no such *thing*. But the objector asks, "Would not the Israelites use their word *Ebed* if they spoke of the slave of a heathen?" Answer. The servants of individuals among the heathen are scarcely ever alluded to. *National* servants or *tributaries*, are spoken of frequently, but so rarely are their *domestic* servants alluded to, no necessity existed, even if they were slaves, for coining a new word. Besides, the fact of their being domestics, under *heathen laws and usages*, proclaimed their *liabilities*; their locality told their condition; so that in applying to them the word *Ebed*, there would be no danger of being misunderstood. But if the Israelites had not only *servants*, but besides these, a multitude of *slaves*, a *word meaning slave*, would have been indispensable

for purposes of every day convenience. Further, the laws of the Mosaic system were so many sentinels on every side, to warn off foreign practices. The border ground of Canaan, was quarantine ground, enforcing the strictest non-intercourse between the *without* and the *within*, not of *persons*, but of *usages*. The fact that the Hebrew language had no words corresponding to *slave* and *slavery*, though not a conclusive argument, is no slight corroborative.

II. "FOREVER."—"They shall be your bondmen *forever*." This is quoted to prove that servants were to serve during their life time, and their posterity, from generation to generation.

No such idea is contained in the passage. The word *forever*, instead of defining the length of *individual* service, proclaims the *permanence* of the regulation laid down in the two verses preceding, namely, that their *permanent domestics* should be of the *Strangers*, and not of the Israelites; and it declares the duration of that general provision. As if God had said, "You shall *always* get your *permanent* laborers from the nations round about you—your *servants* shall always be of *that* class of persons." As it stands in the original, it is plain—"Forever of *them* shall ye serve yourselves." This is the literal rendering of the Hebrew words, which, in our version, are translated, "*They shall be your bondmen forever*."

This construction is in keeping with the whole of the passage. "Both thy bondmen and thy bondmaids, which thou shalt have, shall be of the *heathen* (the nations) that are round about you. OF THEM shall ye buy bondmen and bondmaids. Moreover of the children of the strangers that do sojourn among you, OF THEM shall ye buy," &c. The design of this passage is manifest from its structure. It was to point out the *class* of persons from which they were to get their supply of servants, and the *way* in which they were to get them. That "*forever*" refers to the permanent relations of a *community*, rather than to the services of *individuals*, is a fair inference from the form of the expression, "THEY shall be your possession. Ye shall take *them* as an inheritance for your children to inherit them for a possession." To say nothing of the uncertainty of *these individuals* surviving those *after* whom they are to live, the language used, applies more naturally to a *body* of people, than to *individual* servants.

But suppose it otherwise; still *perpetual* service could not be argued from the term *forever*. The ninth and tenth verses of the same chapter, limit it absolutely by the jubilee. "*Then shall thou cause the trumpet of the jubilee to sound on the tenth day of the seventh month: in the day of atonement shall ye make the trumpet sound throughout ALL your land.*" "*And ye shall hallow the fiftieth year, and proclaim liberty throughout all the land unto ALL the inhabitants thereof.*"

It may be objected that "inhabitants" here means *Israelitish* inhabitants alone. The command is, "Proclaim liberty throughout all the land unto ALL the inhabitants thereof." Besides, in the sixth verse, there is an enumeration of the different classes of the inhabitants, in which servants and strangers are included. "*And the Sabbath of the land shall be meet for YOU—[For whom? For you Israelites only?]*—for thee, and for thy SERVANT, and for thy maid, and for thy hired servant, and for thy STRANGER that sojourneth with thee.**"

Further, in all the regulations of the jubilee, and the sabbatical year, the strangers are included in the precepts, prohibitions, and promised blessings. Again: the year of jubilee was ushered in, by the day of atonement. What was the design of these institutions? The day of atonement prefigured the atonement of Christ, and the year of jubilee, the gospel jubilee. And did they prefigure an atonement and a jubilee to *Jews* only? Were they the types of sins remitted, and of salvation, proclaimed to the nation of *Israel* alone? Is there no redemption for us Gentiles in these ends of the earth, and is our hope presumption and impiety? Did that old partition wall survive the shock, that made earth quake, and hid the sun, burst graves and rocks, and rent the temple vail? And did the Gospel only rear it higher to thunder direr perdition from its frowning battlements on all without? No! The God of OUR salvation lives. "Good tidings of great joy shall be to ALL people." *One* shout shall swell from *all* the ransomed, "Thou hast redeemed us unto God by thy blood out of EVERY kindred, and tongue, and people, and nation." To deny that the blessings of the jubilee extended to the servants from the *Gentiles*, makes Christianity *Judaism*. It not only eclipses the glory of the Gospel, but strikes out the sun. The refusal to release servants at the sound of the jubilee trumpet, falsified and disannulled a grand leading type of the atonement, and thus libelled the doctrine of Christ's redemption.

Finally, even if *forever* did refer to the length of *individual* service, we have ample precedents for limiting the term by the jubilee. The same word is used to define the length of time for which those *Jewish* servants were held, who refused to go out in the *seventh* year. And all admit that their term of service did not go beyond the jubilee. Ex. xxi. 2-6; Deut. xv. 12-17.

The 23d verse of the same chapter is quoted to prove that "*forever*" in the 46th verse, extends beyond the jubilee. "*The land shall not be sold FOREVER, for the land is mine*"—as it would hardly be used in different senses in the same general connection. In reply, we repeat that *forever* respects the duration of the *general arrangement*, and not that of *individual service*. Consequently, it is not affected by the jubilee; so the objection does not touch the argument. But it may not be amiss to show that it is equally harmless against any other argument drawn from the use of *forever* in the 46th verse,—for the word there used, is *Olam*, meaning *throughout the period*, whatever that may be. Whereas in the 23d verse, it is *Tsemithuth*, meaning *cutting off*, or *to be cut off*.

III. "INHERITANCE AND POSSESSION."—"Ye shall take them as an INHERITANCE for your children after you to inherit them for a possession." This refers to the *nations*, and not to the *individual* servants, procured from these nations. We have already shown, that servants could not be held as a *property-possession*, and inheritance; that they became servants of their *own accord*, and were paid wages; that they were released by law from their regular labor nearly *half the days in each year*, and thoroughly *instructed*; that the servants were *protected* in all their personal, social, and religious rights, equally with their masters, &c. Now, truly, all remaining, after these ample reservations, would be small temptation, either to the lust of power or of lucre. What a profitable "possession" and "inheritance!" What if our American slaves were all placed in *just such a condition*! Alas, for that soft, melodious circumlocution, "Our PECULIAR species of property!" Truly, emphasis is cadence, and euphony and irony have met together!

What eager snatches at mere words, and bald technics, irrespective of connection, principles of construction, Bible usages, or limitations of meaning by other passages—and all to eke out such a sense as accords with

existing usages and sanctifies them, thus making God pander for their lusts. Little matter whether the meaning of the word be primary or secondary, literal or figurative, *provided* it sustains their practices.

But let us inquire whether the words rendered "inherit" and "inheritance," when used in the Old Testament, necessarily point out the things inherited and possessed as *articles of property*. *Nahal* and *Nahala*—*inherit* and *inheritance*. See 2 Chronicles x. 16. "The people answered the king and said, What portion have we in David, and we have none *inheritance* in the son of Jesse." Did they mean gravely to disclaim the holding of their king as an article of *property*? Psalms cxxvii. 3—"Lo, children are an *heritage* (inheritance) of the Lord." Exodus xxxiv. 9—"Pardon our iniquity and our sin, and take us for thine *inheritance*." When God pardons his enemies, and adopts them as his children, does he make them *articles of property*? Are forgiveness, and chattel-making, synonymes? Psalms cxix. 111—"Thy testimonies have I taken as a *heritage* (inheritance) forever." Ezekiel xlv. 27, 28—"And in the day that he goeth into the sanctuary, unto the inner court to minister in the sanctuary, he shall offer his sin-offering, saith the Lord God. And it shall be unto them for an *inheritance*; *I* am their *inheritance*." Psalms ii. 8—"Ask of me, and I will give thee the heathen for thine *inheritance*." Psalms xciv. 14—"For the Lord will not cast off his people, neither will he forsake his *inheritance*." See also Deuteronomy iv. 20; Joshua xiii. 33; Chronicles x. 16; Psalms lxxxii. 8, and lxxviii. 62, 71; Proverbs xiv. 8.

The question whether the servants were a PROPERTY—"possession," has been already discussed—(See [p. 36](#))—we need add in this place but a word. *Ahusa* rendered "*possession*." Genesis xlii. 11—"And Joseph placed his father and his brethren, and gave them a *possession* in the land of Egypt, in the best of the land, in the land of Rameses, as Pharaoh had commanded."

In what sense was the land of Goshen the *possession* of the Israelites? Answer, In the sense of, *having it to live in*. In what sense were the Israelites to *possess* these nations, and *take them* as an *inheritance for their children*? We answer, They possessed them as a *permanent source of supply for domestic or household servants*. And this relation to these nations was to go down to posterity as a standing regulation—a national usage

respecting them, having the certainty and regularity of a descent by inheritance. The sense of the whole regulation may be given thus: "Thy permanent domestics, both male and female, which thou shalt have, shall be of the nations that are round about you, of *them* shall ye get male and female domestics." "Moreover of the children of the foreigners that do sojourn among you, of *them* shall ye get, and of their families that are with you, which they begat in your land, and *they* shall be your permanent resource," (for household servants.) "And ye shall take them as a *perpetual* provision for your children after you, to hold as a *constant source of supply*. ALWAYS of *them* shall ye serve yourselves."

OBJECTION IV. "*If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a BOND-SERVANT, but as an HIRED-SERVANT, and as a sojourner shall he be with thee, and shall serve thee unto the year of jubilee.*" Lev. xxv. 39, 40.

From the fact that only *one* class of the servants is called *hired*, it is sagely inferred that servants of the *other* class were *not paid* for their labor. That is, that while God thundered anathemas against those who "used their neighbor's service *without wages*," he granted a special indulgence to his chosen people to seize persons, force them to work, and rob them of earnings, provided always, in selecting their victims, they spared "the gentlemen of property and standing," and pounced only upon the *strangers* and the *common* people. The inference that "*hired*" is synonymous with *paid*, and that those servants not *called* "*hired*" were *not paid* for their labor, is a *mere assumption*.

The meaning of the English verb *to hire*, is, as every one knows, to procure for a temporary use at a certain price—to engage a person to *temporary* service for wages. That is also the meaning of the Hebrew word "*Saukar*." *Temporary* service, and generally for a *specific* object, is inseparable from its meaning. It is never used when the procurement of *permanent* service, for a long period, is spoken of. Now, we ask, would *permanent* servants, those who constituted an integral and stationary part of the family, have been designated by the same term that marks *temporary* servants? The every-day distinctions made on this subject, are as familiar as table-talk. In many families, the domestics perform only such labor, as every day brings

along with it—the *regular* work. Whatever is *occasional* merely, as the washing of a family, is done by persons *hired expressly for the purpose*. In such families, the familiar distinction between the two classes, is "servants," or "domestics," and "hired help," (not *paid* help.) *Both* classes are *paid*. One is permanent, the other occasional and temporary, and therefore in this case called "*hired*." To suppose a servant robbed of his earnings, because when spoken of, he is not called a *hired* servant, is profound induction! If I employ a man at twelve dollars a month to work my farm, he is my "*hired*" man, but if, instead of giving him so much a month, I *give him such a portion of the crop*, or in other words, if he works my farm "*on shares*," he is no longer my *hired* man. Every farmer knows that *that* designation is not applied to him. Yet he works the same farm, in the same way, at the same times, and with the same teams and tools; and does the same amount of work in the year, and perhaps clears twenty dollars a month, instead of the twelve, paid him while he was my *hired* laborer. Now, as the technic "*hired*" is no longer used to designate him, and as he still labors on my farm, suppose my neighbors gather in conclave, and from such ample premises sagely infer, that since he is no longer my "*hired*" laborer, I *rob* him of his earnings, and with all the gravity of owls, they record their decision, and adjourn to hoot it abroad. My neighbors are deep divers!—like some theological professors, they not only go to the bottom, but come up covered with the tokens.

A variety of particulars are recorded in the Bible, distinguishing *hired* from *bought* servants. (1.) Hired servants were paid daily at the close of their work. Lev. xix 13; Deut. xxiv. 14, 15; Job. vii. 2; Matt. xx. 8. "*Bought*" servants were paid in advance, (a reason for their being called, *bought*,) and those that went out at the seventh year received a *gratuity* at the close of their period of service. Deut. xv. 12-13. (2.) The hired servant was paid *in money*, the bought servant received his *gratuity*, at least, in grain, cattle, and the product of the vintage. Deut. xiv. 17. (3.) The *hired* servant *lived by himself*, in his own family. The *bought* servant was a part of his master's family. (4.) The *hired* servant supported his family out of his wages; the *bought* servant and his family, were supported by the master *besides* his wages.

A careful investigation of the condition of "*hired*" and of "*bought*" servants, shows that the latter were, *as a class, superior to the former*—were more trust-worthy, had greater privileges, and occupied in every respect (*other things being equal*) a higher station in society. (1.) *They were intimately incorporated with the family of the master.* They were guests at family festivals, and social solemnities, from which hired servants were excluded. Lev. xxii. 10; Exod. xii. 43, 45. (2) *Their interests were far more identified with the general interests of their masters' family.* Bought servants were often actually, or prospectively, heirs of their master's estate. Witness the case of Eliezer, of Ziba, of the sons of Bilhah, and Zilpah, and others. When there were no sons to inherit the estate, or when, by unworthiness, they had forfeited their title, bought servants were made heirs. Proverbs xvii. 2. We find traces of this usage in the New Testament. "But when the husbandmen saw him, they reasoned among themselves, saying, this is the *heir*, come let us kill him, *that the inheritance may be ours.*" Luke xx. 14; also Mark xii. 7. In no instance on Bible record, does a *hired* servant inherit his master's estate. (3.) *Marriages took place between servants and their master's daughters.* "Now Sheshan had no sons, but daughters: and Sheshan had a *servant*, an Egyptian, whose name was Jarha. And Sheshan gave his daughter to Jarha his *servant* to wife." 1 Chron. ii. 34, 35. There is no instance of a *hired* servant forming such an alliance.

(4.) *Bought servants and their descendants seem to have been regarded with the same affection and respect as the other members of the family* [A] The treatment of Eliezer, and the other servants in the family of Abraham, Gen. chap. 25—the intercourse between Gideon and his servant Phurah, Judges vii. 10, 11. and Saul and his servant, in their interview with Samuel, 1 Sam. ix. 5, 22; and Jonathan and his servant, 1 Sam. xiv. 1-14, and Elisha and his servant Gehazi, are illustrations. No such tie seems to have existed between *hired* servants and their masters. Their untrustworthiness seems to have been proverbial. See John ix. 12, 13.

None but the *lowest class* seem to have engaged as hired servants. No instance occurs in which they are assigned to business demanding much knowledge or skill. Various passages show the low repute and trifling character of the class from which they were hired. Judges ix. 4; 1 Sam. ii. 5.

The superior condition and privileges of bought servants, are manifested in the high trusts confided to them, and in the dignity and authority with which they were clothed in their master's household. But in no instance is a *hired* servant thus distinguished. In some cases, the *bought* servant is manifestly the master's representative in the family—with plenipotentiary powers over adult children, even negotiating marriage for them. Abraham besought Eliezer his servant, to take a solemn oath, that HE would not take a wife for Isaac of the daughters of the Canaanites, but from Abraham's kindred. The servant went accordingly, and *himself* selected the individual. Servants also exercised discretionary power in the management of their master's estate, "And the servant took ten camels, of the camels of his master, *for all the goods of his master were under his hand.*" Gen. xxiv. 10. The reason assigned for taking them, is not that such was Abraham's direction, but that the servant had discretionary control. Servants had also discretionary power in the *disposal of property*. See Gen. xxiv. 22, 23, 53. The condition of Ziba in the house of Mephiboseth, is a case in point. So is Prov. xvii. 2. Distinct traces of this estimation are to be found in the New Testament, Math. xxiv. 45; Luke xii. 42, 44. So in the parable of the talents; the master seems to have set up each of his servants in trade with considerable capital. One of them could not have had less than eight thousand dollars. The parable of the unjust steward is another illustration. Luke xvi. 4, 8. He evidently was entrusted with large *discretionary* power, was "accused of wasting his master's goods." and manifestly regulated with his master's debtors, the *terms* of settlement. Such trusts were never reposed in *hired* servants.

The inferior condition of *hired* servants, is illustrated in the parable of the prodigal son. When the prodigal, perishing with hunger among the swine and husks, came to himself, his proud heart broke; "I will arise," he cried, "and go to my father." And then to assure his father of the depth of his humility, resolved to add imploringly, "Make me as one of thy *hired* servants." It need not be remarked, that if *hired* servants were the *superior* class; to apply for the situation, and press the suit, savored little of that sense of unworthiness that seeks the dust with hidden face, and cries "unclean." Unhumbled nature *climbs*; or if it falls, clings fast, where first it may. Humility sinks of its own weight, and in the lowest deep, digs lower. The design of the parable was to illustrate on the one hand, the joy of God, as he beholds afar off, the returning sinner "seeking an injured father's face"

who runs to clasp and bless him with an unchiding welcome; and on the other, the contrition of the penitent, turning homeward with tears, from his wanderings, his stricken spirit breaking with its ill-desert, he sobs aloud, "The lowest place, *the lowest place*, I can abide no other." Or in those inimitable words, "*Father, I have sinned against Heaven, and in thy sight, and no more worthy to be called thy son; make me as one of thy HIRED servants.*" The supposition that *hired* servants were the *highest* class, takes from the parable an element of winning beauty and pathos. It is manifest to every careful student of the Bible, that *one* class of servants, was on terms of equality with the children and other members of the family. (Hence the force of Paul's declaration, Gal. iv. 1, "*Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all.*") If this were the *hired* class, the prodigal was a sorry specimen of humility. Would our Lord have put such language, into the lips of one held up by himself, as a model of gospel humility, to illustrate its lowliness, its conscious destitution of all merit, and deep sense of all ill desert? If this is *humility*, put it on stilts, and set it a strutting, while pride takes lessons, and blunders in apeing it.

Here let it be observed, that both Israelites and Strangers, belonged indiscriminately to *each* class of the servants, the *bought* and the *hired*. That those in the former class, whether Jews or Strangers, were in higher estimation, and rose to honors and authority in the family circle, which were not conferred on *hired* servants, has been already shown. It should be added, however, that in the enjoyment of privileges, merely *political* and *national*, the hired servants from the *Israelites*, were more favored than either the hired, or the bought servants from the *Strangers*. No one from the Strangers, however wealthy or highly endowed, was eligible to the highest office, nor could he own the soil. This last disability seems to have been one reason for the different periods of service required of the two classes of bought servants—the Israelites and the Strangers. The Israelite was to serve six years—the Stranger until the jubilee^A.

^A: Both classes may with propriety be called *permanent* servants; even the bought Israelite, when his six-years' service is contrasted with the brief term of the hired servant.

As the Strangers could not own the soil, nor even houses, except within walled towns, most of them would choose to attach themselves permanently to Israelitish families. Those Strangers who were wealthy, or skilled in manufactures, instead of becoming servants themselves, would need servants for their own use, and as inducements for the Strangers to become servants to the Israelites, were greater than persons of their own nation could hold out to them, these wealthy Strangers would naturally procure the poorer Israelites for servants. See Levit. xxv. 47. In a word, such was the political condition of the Strangers, the Jewish polity furnished a strong motive to them, to become servants, thus incorporating themselves with the nation, and procuring those social and religious privileges already enumerated, and for their children in the second generation, a permanent inheritance. (This last was a regulation of later date. Ezekiel xlvii. 21-23.) Indeed, the structure of the whole Mosaic polity, was a virtual bounty offered to those who would become permanent servants, and merge in the Jewish system their distinct nationality. None but the monied aristocracy among them, would be likely to decline such offers.

For various reasons, this class, (the servants bought from the Strangers,) would prefer a *long* service. They would thus more effectually become absorbed into the national circulation, and identify their interests with those in whose gift were all things desirable for themselves, and brighter prospects for their children. On the other hand, the Israelites, owning all the soil, and an inheritance of land being a sort of sacred possession, to hold it free of incumbrance, was, with every Israelite, a delicate point, both of family honor and personal character. 1 Kings xxi. 3. Hence, to forego the *possession* of one's inheritance, *after* the division of the paternal domain, or to be restrained from its *control*, after having acceded to it, was a burden grievous to be borne. To mitigate, as much as possible, such a calamity, the law, instead of requiring the Israelite to continue a servant until the jubilee, released him at the end six years^A, as, during that time—if, of the first class—the partition of the patrimonial land might have taken place; or, if of the second, enough money might have been earned to disencumber his estate, and thus he might assume his station as a lord of the soil. If these contingencies had not occurred, then, at the end of another six years, the opportunity was again offered, and in the same manner until the jubilee. So while strong motives urged the Israelite, to discontinue his service as soon

as the exigency had passed, which induced him to become a servant, every consideration impelled the *Stranger* to *prolong* his term of service; and the same kindness which dictated the law of six years' service for the Israelite, assigned as the general rule, a much longer period to the Gentile servant, who, instead of being tempted to a brief service, had every inducement to protract the term.

A: Another reason for protracting the service until the seventh year, seems to have been, its coincidence with other arrangements, and provisions, inseparable from the Jewish economy. That period was a favorite one in the Mosaic system. Its pecuniary responsibilities, social relations and general internal structure, if not *graduated* upon a septennial scale, were variously modified by the lapse of the period. Another reason doubtless was, that as those Israelites who became servants through poverty, would not sell themselves, except as a last resort when other expedients to recruit their finances had failed—(See Lev. xxv. 35)—their *becoming servants* proclaimed such a state of their affairs, as demanded the labor of *a course of years* fully to reinstate them.

It is important to a clear understanding of the whole subject, to keep in mind that adult Jews ordinarily became servants, only as a temporary expedient to relieve themselves from embarrassment, and ceased to be such when that object was effected. The poverty that forced them to it was a calamity, and their service was either a means of relief, or a measure of prevention. It was not pursued as a *permanent business*, but resorted to on emergencies—a sort of episode in the main scope of their lives. Whereas with the Strangers, it was a *permanent employment*, pursued not merely as a *means* of bettering their own condition, and prospectively that of their posterity, but also, as an *end* for its own sake, conferring on them privileges, and a social estimation not otherwise attainable.

We see from the foregoing, why servants purchased from the heathen, are called by way of distinction, *the servants*, (not *bondmen*, as our translators have it.) (1.) They followed it as a *permanent business*. (2.) Their term of service was *much longer* than that of the other class. (3.) As a class, they doubtless greatly outnumbered the Israelitish servants. (4.) All the Strangers that dwelt in the land, were *tributaries* to the Israelites—required to pay an

annual tribute to the government, either in money, or in public service, which was called a "*tribute of bond-service*;" in other words, all the Strangers were *national servants*, to the Israelites, and the same Hebrew word which is used to designate *individual* servants, equally designates *national* servants or tributaries. 2 Sam. viii. 2, 6, 14. 2 Chron. viii. 7-9. Deut. xx. 11. 2 Sam. x. 19. 1 Kings ix. 21, 22. 1 Kings iv. 21. Gen. xxvii. 29. The same word is applied to the Israelites, when they paid tribute to other nations. See 2 Kings xvii. 3. Judges iii. 8, 14. Gen. xlix. 15. Another distinction between the Jewish and Gentile bought servants, claims notice. It was in the *kinds* of service assigned to each class. The servants from the Strangers, were properly the *domestics*, or household servants, employed in all family work, in offices of personal attendance, and in such mechanical labor, as was constantly required in every family, by increasing wants, and needed repairs. On the other hand, the Jewish bought servants seem to have been almost exclusively *agricultural*. Besides being better fitted for this by previous habits—agriculture, and the tending of cattle, were regarded by the Israelites as the most honorable of all occupations; kings engaged in them. After Saul was elected king, and escorted to Gibeah, the next report of him is, "*And behold Saul came after the herd out of the field.*"—1 Sam. xi. 7.

Elisha "was plowing with twelve yoke of oxen" when Elijah threw his mantle upon him. 1 Kings xix. 19. King Uzziah "loved husbandry." 2 Chron. xxvi. 10. Gideon, the deliverer of Israel, was "*threshing wheat* by the wine press" when called to lead the host against the Midianites. Judges vi. 11. The superior honorableness of agriculture, is shown by the fact, that it was *protected and supported by the fundamental law* of the theocracy—God thus indicating it as the chief prop of the government, and putting upon it peculiar honor. An inheritance of land seems to have filled out an Israelite's idea of worldly furnishment. They were like permanent fixtures on their soil, so did they cling to it. To be agriculturalists on their own inheritances, was, in their notions, the basis of family consequence, and the grand claim to honorable estimation. Agriculture being pre-eminently a *Jewish* employment, to assign a native Israelite to *other* employments as a *business*, was to break up his habits, do violence to cherished predilections, and put him to a kind of labor in which he had no skill, and which he deemed degrading. In short, it was, in the earlier ages of the Mosaic system, practically to *unjew* him, a hardship and rigor grievous to be borne, as it

annihilated a visible distinction between the descendants of Abraham and the Strangers—a distinction vital to the system, and gloried in by every Jew.

To guard this and another fundamental distinction, God instituted the regulation contained in Leviticus xxv. 39, which stands at the head of this branch of our inquiry, "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a bond-servant." In other words, thou shalt not put him to servants' work—to the business, and into the condition of domestics.

In the Persian version it is translated thus, "Thou shalt not assign to him the work of *servitude*," (or *menial* labor.) In the Septuagint thus, "He shall not serve thee with the service of a *domestic or household servant*." In the Syriac thus, "Thou shalt not employ him after the manner of servants." In the Samaritan thus, "Thou shalt not require him to serve in the service of a servant." In the Targum of Onkelos thus, "He shall not serve thee with the service of a household servant." In the Targum of Jonathan thus, "Thou shalt not cause him to serve according to the usages of the servitude of servants^A." In fine, "thou shalt not compel him to serve as a bond-servant," means, *thou shalt not assign him to the same grade, nor put him to the same services, with permanent domestics.*

^A: Jarchi's comment on "Thou shalt not compel him to serve as a bond-servant" is, "the Hebrew servant is not to be required to do any thing which is accounted degrading—such as all offices of personal attendance, as loosing his master's shoe latchet, bringing him water to wash his feet and hands, waiting on him at table, dressing him, carrying things to and from the bath. The Hebrew servant is to work with his master as a son or brother, in the business of his farm, or other labor, until his legal release."

We pass to the remainder of the regulation in the 40th verse:—

"But as an hired servant and as a sojourner shall he be with thee." Hired servants were not incorporated into the families of their masters; they still retained their own family organization, without the surrender of any domestic privilege, honor, or authority; and this, even though they resided under the same roof with their master. While bought-servants were associated with their master's families at meals, at the Passover, and at other

family festivals, hired servants and sojourners were not. Exodus xii. 44, 45; Lev. xxii. 10, 11. Not being merged in the family of his master, the hired servant was not subject to his authority, (except in directions about his labor) in any such sense as the master's wife, children, and bought servants. Hence the only form of oppressing hired servants spoken of in the Scriptures as practicable to masters, is that of *keeping back their wages*.

To have taken away these privileges in the case stated in the passage under consideration, would have been preeminent *rigor*; for the case described, is not that of a servant born in the house of a master, nor that of a minor, whose unexpired minority had been sold by the father, neither was it the case of an Israelite, who though of age, had not yet acceded to his inheritance; nor, finally, was it that of one who had received the *assignment* of his inheritance, but was, as a servant, working off from it an incumbrance, before entering upon its possession and control^A. But it was that of *the head of a family*, who had lived independently on his own inheritance, and long known better days, now reduced to poverty, forced to relinquish the loved inheritance of his fathers, with the competence and respectful consideration its possession secured to him, and to be indebted to a neighbor for shelter, sustenance, and employment, both for himself and his family. Surely so sad a reverse, might well claim sympathy; but there remaineth to him one consolation, and it cheers him in the house of his pilgrimage. He is an *Israelite*—*Abraham is his father*, and now in his calamity he clings closer than ever, to the distinction conferred by the immunities of his birthright. To rob him of this, were "the unkindest cut of all." To have assigned him to a *grade* of service filled only by those whose permanent business was *serving*, would have been to *rule over him with peculiar rigor*.

^A: These two latter classes are evidently referred to in Exod. xxi. 1-6, and Deut. xv. 12

Finally, the former part of the regulation, "Thou shalt not compel him to serve as a bond-servant," or more literally, *thou shalt not serve thyself with him, with the service of a servant*, guaranties his political privileges, and secures to him a kind and grade of service, comporting with his character and relations as a son of Israel. And the remainder of the verse, "But as a

hired servant, and as a sojourner shall he be with thee," continues and secures to him his separate family organization, the respect and authority due to his head, and the general consideration in society resulting from such a station. Though this individual was a Jewish *bought* servant, the case is peculiar, and forms an exception to the general class of Jewish bought servants. Being already in possession of his inheritance, and the head of a household, the law so arranged his relations, as a servant, as to *alleviate* as much as possible the calamity which had reduced him from independence and authority, to penury and subjection.

Having gone so much into detail on this point, comment on the command which concludes this topic in the forty-third verse, would be superfluous. "*Thou shalt not rule over him with rigor, but shalt fear thy God.*" As if it had been said, "In your administration you shall not disregard those differences in previous habits, station, authority, and national and political privileges, upon which this regulation is based; for to exercise authority over this class of servants, *irrespective* of these distinctions, and annihilating them, is *torule with rigor.*" The same command is repeated in the forty-sixth verse, and applied to the distinction between the servants of Jewish, and those of Gentile extraction, and forbids the overlooking of distinctive Jewish peculiarities, so vital to an Israelite as to make the violation of them, *rigorous* in the extreme; while to the servants from the Strangers, whose previous habits and associations differed so widely from those of the Israelite, these same things would be deemed slight disabilities.

It may be remarked here, that the political and other disabilities of the Strangers, which were the distinctions growing out of a different national descent, and important to the preservation of national characteristics, and to the purity of national worship, do not seem to have effected at all the *social* estimation, in which this class of servants was held. They were regarded according to their character and worth as *persons*, irrespective of their foreign origin, employments, and political condition.

The common construction put upon the expression, "*rule with rigor,*" and an inference drawn from it, have an air so oracular, as quite to overcharge risibles of ordinary calibre, if such an effect were not forestalled by its impiety. It is interpreted to mean, "you shall not make him an article of

property, you shall not force him to work, and rob him of his earnings, you shall not make him a chattel, and strip him of legal protection." So much for the interpretation. The inference is like unto it, viz. Since the command forbade such outrages upon the *Israelites*, it *permitted and commissioned* the infliction of them upon the *Strangers*. Such impious and shallow smattering, captivates two classes of minds, the one by its flippancy, the other by its blasphemy, and both, by the strong scent of its unbridled license. What boots it to reason against such rampant affinities!

In Exodus, chap. i. 13, 14, it is said that the Egyptians "made the children of Israel to serve with rigor," "and all their *service* wherein they made them serve, was with rigor." The rigor here spoken of, is affirmed of the *amount of labor* extorted from them, and the *mode* of the exaction. This form of expression, "*serve with rigor*," is never applied to the service of servants either under the Patriarchal, or the Mosaic systems. Nor is any other form of expression ever used, either equivalent to it, or at all similar. The phrase, "thou shalt not RULE over him with rigor," used in Leviticus xxv. 43, 46, does not prohibit unreasonable exactions of labor, nor inflictions of personal cruelty. *Such were provided against otherwise*. But it forbids, confounding the distinctions between a Jew and a Stranger, by assigning the former to the same grade of service, for the same term of time, and under the same national and political disabilities as the latter.

We are now prepared to survey at a glance, the general condition of the different classes of servants, with the modifications peculiar to each class. I. In the possession of *all fundamental rights*, *all classes of servants were on an absolute equality*, all were *equally protected* by law in their persons, character, property and social relations. All were *voluntary*, all were *compensated* for their labor. All were released from their regular labor nearly *one half of the days in each year*, all were furnished with stated *instruction*; none in either class were in any sense articles of *property*, all were regarded as *men*, with the rights, interests, hopes, and destinies of *men*. In these respects the circumstances of *all* classes of servants among the Israelites, were not only similar but *identical*, and so far forth, they formed but ONE CLASS.

II. DIFFERENT CLASSES OF SERVANTS.

1. *Hired Servants*.—This class consisted both of Israelites and Strangers. Their employments were different. The *Israelite*, was an agricultural servant. The Stranger was a *domestic* and *personal* servant, and in some instances *mechanical*; both were *occasional*, procured *temporally* to serve an emergency. Both lived in their own families, their wages were *money*, and they were paid when their work was done. As a *class of servants*, the hired were less loved, trusted, honored and promoted than any other.

2. *Bought Servants, (including those "born in the house.")*—This class also, was composed both of Israelites and Strangers, the same general difference obtaining in their kinds of employment as was noticed before. Both were paid in advance^A, and neither was temporary.

^A: The payment *in advance*, doubtless lessened considerably the price of the purchase; the servant thus having the use of the money from the beginning, and the master assuming all the risks of life, and health for labor; at the expiration of the six years' contract, the master having experienced no loss from the risk incurred at the making of it, was obliged by law to release the servant with a liberal gratuity. The reason assigned for this is, "he hath been worth a double hired servant unto thee in serving thee six years," as if it had been said, he has now served out his time, and as you have experienced no loss from the risks of life, and ability to labor which you incurred in the purchase, and which lessened the price, and as, by being your permanent servant for six years, he has saved you all the time and trouble of looking up and hiring laborers on emergencies, therefore, "thou shalt furnish him liberally," &c.

The Israelitish servant, in most instances, was released after six years. (The *freeholder* continued until the jubilee.) The Stranger, was a *permanent* servant, continuing until the jubilee. Besides these distinctions between Jewish and Gentile bought servants, a marked distinction obtained between different classes of Jewish bought servants. Ordinarily, during their term of service, they were merged in their master's family, and, like the wife and children of the master, subject to his authority; (and of course, like them, protected by law from its abuse.) But *one* class of the Jewish bought servants was a marked exception. The *freeholder*, obliged by poverty to leave his possession, and sell himself as a servant, did not thereby affect his

family relations, or authority, nor subject himself as an inferior to the control of his master, though dependent upon him for employment. In this respect, his condition differed from that of the main body of Jewish bought servants, which seems to have consisted of those, who had not yet come into possession of their inheritance, or of those who were dislodging from it an incumbrance.

Having dwelt so much at length on this part of the subject, the reader's patience may well be spared further details. We close it with a suggestion or two, which may serve as a solvent of some minor difficulties, if such remain.

I. It should be kept in mind, that *both* classes of servants, the Israelite and the Stranger, not only enjoyed *equal natural and religious rights*, but *all the civil and political privileges* enjoyed by those of their own people, who were *not* servants. If Israelites, all rights belonging to Israelites were theirs. If from the Strangers, the same political privileges enjoyed by those wealthy Strangers, who bought and held *Israelitish* servants, *were theirs*. They also shared *in common with them*, the political disabilities which appertained to *all* Strangers, whether the servants of Jewish masters, or the masters of Jewish servants.

II. The disabilities of the servants from the Strangers, were exclusively *political* and *national*.

1. They, in common with all Strangers, *could not own the soil*.

2. They were *ineligible to civil offices*.

3. They were assigned to *employments* less honorable than those in which Israelitish servants engaged; agriculture being regarded as fundamental to the prosperity and even to the existence of the state, other employments were in far less repute, and deemed *unjewish*.

Finally, the condition of the Strangers, whether servants or masters, was, as it respected political privileges, much like that of unnaturalized foreigners in the United States; no matter how great their wealth or intelligence, or moral principle, or love for our institutions, they can neither go to the

ballot-box, nor own the soil, nor be eligible to office. Let a native American, who has always enjoyed these privileges, be suddenly bereft of them, and loaded with the disabilities of an alien, and what to the foreigner would be a light matter, to *him*, would be the severity of *rigor*.

The recent condition of the Jews and Catholics in England, is a still better illustration of the political condition of the Strangers in Israel. Rothschild, the late English banker, though the richest private citizen in the world, and perhaps master of scores of English servants, who sued for the smallest crumbs of his favor, was, as a subject of the government, inferior to the veriest scavenger among them. Suppose an Englishman, of the Established Church, were by law deprived of power to own the soil, made ineligible to office, and deprived unconditionally of the electoral franchise, would Englishmen think it a misapplication of language, if it were said, "The government rules over that man with rigor?" And yet his life, limbs, property, reputation, conscience, all his social relations, the disposal of his time, the right of locomotion at pleasure, and of natural liberty in all respects, are just as much protected by law as the Lord Chancellor's. The same was true of all "the strangers within the gates" among the Israelites: Whether these Strangers were the servants of Israelitish masters, or the masters of Israelitish servants, whether sojourners, or bought servants, or born in the house, or hired, or neither—all *were protected equally with the descendants of Abraham*.

Finally—As the Mosaic system was a great compound type, made up of innumerable fractional ones, each rife with meaning in doctrine and duty; the practical power of the whole, depended upon the exact observance of those distinctions and relations which constituted its significancy. Hence, the care everywhere shown to preserve inviolate the distinction between a *descendant of Abraham* and a *Stranger*, even when the Stranger was a proselyte, had gone through the initiatory ordinances, entered the congregation, and become incorporated with the Israelites by family alliance. The regulation laid down in Exodus xxi. 2-6, is an illustration, "*If thou buy an Hebrew servant, six years shall he serve: and in the seventh he shall go out free for nothing. If he came in by himself, he shall go out by himself: if he were married, then, his wife shall go out with him. If his master have given him a wife, and she have borne him sons or daughters;*

the wife and her children shall be her master's, and he shall go out by himself. And if the servant should plainly say, I love my master, my wife, and my children, I will not go out free: then his master shall bring him unto the judges; he shall also bring him to the door, or unto the door-post; and his master shall bore his ear through with an awl, and he shall serve him forever." In this case, the Israelitish servant, whose term expired in six years, married one of his master's *permanent female domestics*; but the fact of her marriage, did not release her master from *his* part of the contract for her whole term of service, nor absolve him from his legal obligation to support and educate her children. Nor could it do away that distinction, which marked her national descent by a specific *grade* and *term* of service. Her marriage did not impair her obligation to fulfil *her* part of the contract. Her relations as a permanent domestic grew out of a distinction guarded with great care throughout the Mosaic system. To permit this to be rendered void, would have been to divide the system against itself. This God would not tolerate. Nor, on the other hand, would he permit the master, to throw off the responsibility of instructing her children, nor the care and expense of their helpless infancy and rearing. He was bound to support and educate them, and all her children born afterwards during her term of service. The whole arrangement beautifully illustrates that wise and tender regard for the interests of all the parties concerned, which arrays the Mosaic system in robes of glory, and causes it to shine as the sun in the kingdom of our Father. By this law, the children had secured to them a mother's tender care. If the husband loved his wife and children, he could compel his master to keep him, whether he had any occasion for his services or not, and with such remuneration as was provided by the statute. If he did not love them, to be rid of him was a blessing; and in that case, the regulation would prove an act for the relief of an afflicted family. It is not by any means to be inferred, that the release of the servant from his service in the seventh year, either absolved him from the obligations of marriage, or shut him out from the society of his family. He could doubtless procure a service at no great distance from them, and might often do it, to get higher wages, or a kind of employment better suited to his taste and skill, or because his master might not have sufficient work to occupy him. Whether he lived near his family, or at a considerable distance, the great number of days on which the law released servants from regular labor, would enable him to spend much more time with them than can be spent by most of the agents of our benevolent

societies with *their* families, or by many merchants, editors, artists, &c., whose daily business is in New York, while their families reside from ten to one hundred miles in the country.

We conclude this Inquiry by touching briefly upon an objection, which, though not formally stated, has been already set aside by the whole tenor of the foregoing argument. It is this,—

"The slavery of the Canaanites by the Israelites, was appointed by God as a commutation of the punishment of death denounced against them for their sins."—If the absurdity of a sentence consigning persons to *death*, and at the same time to perpetual *slavery*, did not sufficiently laugh in its own face, it would be small self-denial, in a case so tempting, to make up the deficiency by a general contribution. For, *be it remembered*, the Mosaic law was given, while Israel was *in the wilderness*, and only *one* statute was ever given respecting *the disposition to be made of the inhabitants of the land*. If the sentence of death was first pronounced against them, and afterwards *commuted*, when? where? by whom? and in what terms was the commutation? And where is it recorded? Grant, for argument's sake, that all the Canaanites were sentenced to unconditional extermination; as there was no reversal of the sentence, how can a right to *enslave* them, be drawn from such premises? The punishment of death is one of the highest recognitions of man's moral nature possible. It proclaims him *man*—intelligent accountable, guilty *man*, deserving death for having done his utmost to cheapen human life, and make it worthless, when the proof of its priceless value, lives in his own nature. But to make him a *slave*, cheapens to nothing *universal human nature*, and instead of healing a wound, gives a death stab. What! repair an injury done to rational being in the robbery of *one* of its rights, not merely by robbing it of *all*, but by annihilating the very *foundation* of them—that everlasting distinction between men and things? To make a man a chattel, is not the *punishment*, but the *annihilation* of a *human* being, and, so far as it goes, of *all* human beings. This commutation of the punishment of death, into perpetual slavery, what a fortunate discovery! Alas! for the honor of Deity, if commentators had not manned the forlorn hope, and rushed to the rescue of the Divine character at the very crisis of its fate, and, by a timely movement, covered its retreat from the perilous position in which inspiration had carelessly left it! Here a question

arises of sufficient importance for a separate dissertation; but must for the present be disposed of in a few paragraphs. WERE THE CANAANITES SENTENCED BY GOD TO INDIVIDUAL AND UNCONDITIONAL EXTERMINATION? That the views generally prevalent on this subject, are wrong, we have no doubt; but as the limits of this Inquiry forbid our going into the merits of the question, so as to give all the grounds of dissent from the commonly received opinions, the suggestions made, will be thrown out merely as QUERIES, and not as a formal laying down of *doctrines*.

The leading directions as to the disposal of the Canaanites, are mainly in the following passages, Exod. xxiii. 23-33, and 33-51, and 34, 11—Deut. vii. 16-25, and ix. 3, and xxxi. 3, 1, 2. In these verses, the Israelites are commanded to "destroy the Canaanites"—to "drive out,"—"consume,"—"utterly overthrow,"—"put out,"—"dispossess them," &c. Quest. Did these commands enjoin the unconditional and universal destruction of the *individuals*, or merely of the *body politic*? Ans. The Hebrew word *Haram*, to destroy, signifies *national*, as well as individual destruction; *political* existence, equally with *personal*; the destruction of governmental organization, equally with the lives of the subjects. Besides, if we interpret the words destroy, consume, overthrow, &c., to mean *personal* destruction, what meaning shall we give to the expressions, "drive out before thee;" "cast out before thee;" "expel," "put out," "dispossess," &c., which are used in the same passages?

For a clue to the sense in which the word "destroy" is used, see Exodus xxiii. 27. "I will destroy all the people to whom thou shalt come, and I will make all thine enemies *turn their backs unto thee*." Here "*all their enemies*" were to *turn their backs*, and "*all the people*" to be "*destroyed*". Does this mean that God would let all their *enemies* escape, but kill all their *friends*, or that he would *first* kill "all the people" and THEN make them turn their backs in flight, an army of runaway corpses?

The word rendered *backs*, is in the original, *necks*, and the passage *may* mean, I will make all your enemies turn their necks unto you; that is, be *subject to you as tributaries*, become *denationalized*, their civil polity, state organization, political existence, *destroyed*—their idolatrous temples, altars, images, groves, and all heathen rites *destroyed*; in a word, their whole

system, national, political, civil, and religious, subverted, and the whole people *put under tribute*. Again; if these commands required the unconditional destruction of all the *individuals* of the Canaanites, the Mosaic law was at war with itself, for the directions relative to the treatment of native residents and sojourners, form a large part of it. "The stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself." "If thy brother be waxen poor, thou shalt relieve him, yea, though he be a *stranger or a sojourner*, that he may live with thee." "Thou shalt not oppress a *stranger*." "Thou shalt not vex a *stranger*." "Judge righteously between every, man and his brother, and the *stranger* that is with him." "Ye shall not respect persons in judgement." "Ye shall have one manner of law as well for the *stranger*, as for him of your own country." We find, also, that provision was made for them in the cities of refuge. Num. xxxv. 15—the gleanings of the harvest and vintage were assigned to them, Lev. xix. 9, 10, and xxiii. 22, and 25, 6;—the blessings of the Sabbath, theirs, Ex. xx. 10;—the privilege of offering sacrifices secured, Lev. 22. 18; and stated religious instruction provided for them. Deut. xxxi. 9, 12. Now, does this *same law* authorize and appoint the *individual extermination* of those very persons, whose lives and general interests it so solicitously protects? These laws were given to the Israelites, long *before* they entered Canaan; and they must of necessity have inferred from them, that a multitude of the inhabitants of the land would *continue in it*, under their government.

3. *We argue that these commands did not require the INDIVIDUAL destruction of the Canaanites unconditionally, from the fact that the most pious Israelites never seem to have so regarded them.* Joshua was selected as the leader of Israel to execute God's threatenings upon Canaan. He had no *discretionary* power. God's commands were his *official instructions*. Going *beyond* them would have been usurpation; refusing to *carry them out*, rebellion and treason. For not obeying, in *every particular*, and in a *single* instance, God's command respecting the Amalekites, Saul was rejected from being king.

Now, if God commanded the individual destruction of all the Canaanitish nations, Joshua *disobeyed him in every instance*. For at his death, the Israelites still "*dwelt among them*," and each nation is mentioned by name.

See Judges i. 5, and yet we are told that "Joshua was full of the spirit of the Lord and of WISDOM," Deut. xxxiv. 9. (of course, he could not have been ignorant of the meaning of those commands,)—that "the Lord was with him," Josh. vi. 27; and that he "left nothing undone of all that the Lord commanded Moses;" and further, that he "took all that land." Joshua xi, 15-23. Also, that "the Lord gave unto Israel all the land which he swore to give unto their fathers, and they possessed it and dwelt therein, and there *stood not a man of all* their enemies before them." "The Lord delivered *all their* enemies into their hand," &c.

How can this testimony be reconciled with itself, if we suppose that the command to *destroy* enjoined *individual* extermination, and the command to *drive out*, enjoined the unconditional expulsion of individuals from the country, rather than their expulsion from the *possession* or *ownership* of it, as the lords of the soil? It is true, multitudes of the Canaanites were slain, but in every case it was in consequence of their refusing to surrender their land to the possession of the Israelites. Not a solitary case can be found in which a Canaanite was either killed or driven out of the country, who acquiesced in the transfer of the territory of Canaan, and its sovereignty, from the inhabitants of the land to the Israelites. Witness the case of Rahab and all her kindred, and the inhabitants of Gibeon, Chephirah, Beeroth, and Kirjathjearim^A. The Canaanites knew of the miracles in Egypt, at the Red Sea, in the wilderness, and at the passage of Jordan. They knew that their land had been transferred to the Israelites, as a judgment upon them for their sins.—See Joshua ii. 9-11, and ix. 9, 10, 24. Many of them were awed by these wonders, and made no resistance to the confiscation of their territory. Others fiercely resisted, defied the God of the armies of Israel, and came out to battle. These occupied the *fortified cities*, were the most *inveterate* heathen—the *aristocracy* of idolatry, the *kings*, the *nobility* and *gentry*, the *priests*, with their crowds of satellites, and retainers that aided in the performance of idolatrous rites, the *military forces*, with the chief profligates and lust-panders of both sexes. Every Bible student will recall many facts corroborating this supposition. Such as the multitudes of *tributaries* in the midst of Israel, and that too, when the Israelites had "waxed strong," and the uttermost nations quaked at the terror of their name. The large numbers of the Canaanites, as well as the Philistines and others, who became proselytes, and joined themselves to the Hebrews—as

the Nethenims, Uriah the Hittite, one of David's memorable "thirty seven"—Rahab, who married one of the princes of Judah—Ittai—The six hundred Gittites—David's bodyguard, "faithful among the faithless."—2 Sam. xv. 18, 21. Obbedom the Gittite, who was adopted into the tribe of Levi.—Compare 2 Sam. vi. 10, 11, with 1 Chron. xv. 18, and 1 Chron xxvi. 45. The cases of Jaziz, and Obil,—1 Chron. xxvi. 30, 31, 33. Jephunneh, the father of Caleb—the Kenite, registered in the genealogies of the tribe of Judah, and the one hundred and fifty thousand Canaanites, employed by Solomon in the building of the Temple^B. Add to these, the fact that the most memorable miracle on record, was wrought for the salvation of a portion of those very Canaanites, and for the destruction of those who would exterminate them.—Joshua x. 12-14. Further—the terms used in the directions of God to the Israelites, regulating their disposal of the Canaanites, such as, "drive out," "put out," "cast out," "expel," "dispossess," &c. seem used interchangeably with "consume," "destroy," "overthrow," &c., and thus indicate the sense in which the latter words are used. As an illustration of the meaning generally attached to these and similar terms, when applied to the Canaanites in Scripture, we refer the reader to the history of the Amalekites. In Ex. xxvii. 14, God says, "I will utterly put out the remembrance of Amalek from under heaven,"—In Deut. xxv. 19, "Thou shalt blot out the remembrance of Amalek from under heaven; thou shalt not forget it."—In 1 Sam. xv. 2, 3. "Smite Amalek and *utterly destroy* all that they have, and spare them not, but slay both man and woman, infant and suckling, ox and sheep." In the seventh and eighth verses of the same chapter, we are told, "Saul smote the Amalekites, and took Agag the king of the Amalekites, alive, and UTTERLY DESTROYED ALL THE PEOPLE with the edge of the sword." In verse 20, Saul says, "I have obeyed the voice of the Lord, and have brought Agag, the king of Amalek, and have *utterly destroyed* the Amalekites."

^A: Perhaps it will be objected, that the preservation of the Gibeonites, and of Rahab and her kindred, was a violation of the command of God. We answer, if it had been, we might expect some such intimation. If God had straitly commanded them to *exterminate all the Canaanites*, their pledge to save them alive, was neither a repeal of the statute, nor absolution for the breach of it. If *unconditional destruction* was the import of the command, would God have permitted such an act to pass without severe rebuke?

Would he have established such a precedent when Israel had hardly passed the threshold of Canaan, and was then striking the first blow of a half century war? What if they *had* passed their word to Rahab and the Gibeonites? Was that more binding upon them than God's command? So Saul seems to have passed *his* word to Agag; yet Samuel hewed him in pieces, because in saving his life, Saul had violated God's command. This same Saul appears to have put the same construction on the command to destroy the inhabitants of Canaan, that is generally put upon it now. We are told that he sought to slay the Gibeonites "in his zeal for the children of Israel and Judah." God sent upon Israel a three years' famine for it. In assigning the reason, he says, "It is for Saul and his bloody house, because he slew the Gibeonites." When David inquired of them what atonement he should make, they say, "The man that consumed us, and that devised against us, that we should be destroyed from *remaining in any of the coasts of Israel* let seven of his sons be delivered," &c. 2 Samuel xxii. 1-6.

B: If the Canaanites were devoted by God to individual and unconditional extermination, to have employed them in the erection of the temple,—what was it but the climax of impiety? As well might they pollute its altars with swine's flesh, or make their sons pass through the fire to Moloch.

In 1 Sam. 30th chapter, we find the Amalekites at war again, marching an army into Israel, and sweeping every thing before them—and all this in hardly more than twenty years after they had *all been* UTTERLY DESTROYED!

Deut. xx. 16, 17, will probably be quoted against the preceding view. "*But of the cities of these people which the Lord thy God doth give thee for an inheritance, thou shalt save alive nothing that breatheth: but thou shalt utterly destroy them; namely, the Hittites, and the Amorites, the Canaanites, and the Perizzites, the Hivites, and the Jebusites, as the Lord thy God hath commanded thee.*" We argue that this command to exterminate, did not include all the individuals of the Canaanitish nations, but only the inhabitants of the *cities*, (and even those conditionally,) for the following reasons.

I. Only the inhabitants of *cities* are specified,—"*of the cities of these people thou shalt save alive nothing that breatheth.*" The reasons for this wise

discrimination were, no doubt, (1.) Cities then, as now, were pest-houses of vice—they reeked with abominations little practiced in the country. On this account, their influence would be far more perilous to the Israelites than that of the country. (2.) These cities were the centres of idolatry—the residences of the priests, with their retinues of the baser sort. There were their temples and altars, and idols, without number. Even their buildings, streets, and public walks were so many visibilities of idolatry. The reason assigned in the 18th verse for exterminating them, strengthens the idea, —"*that they teach you not to do after all the abominations which they have done unto their gods.*" This would be a reason for exterminating *all* the nations and individuals *around* them, as all were idolaters; but God permitted, and even commanded them, in certain cases, to spare the inhabitants. Contact with *any* of them would be perilous—with the inhabitants of the *cities* peculiarly, and of the *Canaanitish* cities preeminently so.

It will be seen from the 10th and 11th verses, that those cities which accepted the offer of peace were to be spared. "*When thou comest nigh unto a city to fight against it, then proclaim peace unto it. And it shall be, if it make thee answer of peace and open unto thee, then it shall be, that all the people that is found therein shall be* **TRIBUTARIES** *unto thee, and they shall* **SERVE** *thee.*"—Deuteronomy xx. 10, 11. These verses contain the general rule prescribing the method in which cities were to be summoned to surrender.

1. The offer of peace—if it was accepted, the inhabitants became *tributaries*—if it was rejected, and they came out against Israel in battle, the *men* were to be killed, and the women and little ones saved alive. See Deuteronomy xx. 12, 13, 14. The 15th verse restricts their lenient treatment in saving the wives and little ones of those who fought them, to the inhabitants of the cities *afar off*. The 16th verse gives directions for the disposal of the inhabitants of Canaanitish cities, after they had taken them. Instead of sparing the women and children, they were to save alive nothing that breathed. The common mistake has been, in taking it for granted, that the command in the 15th verse, "Thus shalt thou do unto all the cities," &c. refers to the *whole system of directions preceding*, commencing with the 10th verse, whereas it manifestly refers only to the *inflictions* specified in

the verses immediately preceding, viz. the 12th, 13th, and 14th, and thus make a distinction between those *Canaanitish* cities that *fought*, and the cities *afar off* that fought—in one case destroying the males and females, and in the other, the *males* only. The offer of peace, and the *conditional preservation*, were as really guarantied to *Canaanitish* cities as to others. Their inhabitants were not to be exterminated *unless they came out against Israel in battle*. But let us settle this question by the "*law and the testimony*." Joshua xix. 19, 20.—"*There was not a city that made peace with the children of Israel save, the Hivites, the inhabitants of Gibeon; all others they took in battle. For it was of the Lord to harden their hearts, that they should COME OUT AGAINST ISRAEL IN BATTLE, that he might destroy them utterly, and that they might have no favor, but that he might destroy them, as the Lord commanded Moses.*" That is, if they had not come out against Israel in battle, they would have had "favor" shown them, and would not have been "*destroyed utterly*"

The great design of God seems to have been to *transfer the territory* of the Canaanites to the Israelites, and along with it, *absolute sovereignty in every respect*; to annihilate their political organizations, civil polity, jurisprudence, and their system of religion, with all its rights and appendages; and to substitute therefor, a pure theocracy, administered by Jehovah, with the Israelites as His representatives and agents. Those who resisted the execution of Jehovah's purpose were to be killed, while those who quietly submitted to it were to be spared. All had the choice of these alternatives, either free egress out of the land^A; or acquiescence in the decree, with life and residence as tributaries, under the protection of the government; or resistance to the execution of the decree, with death. "*And it shall come to pass, if they will diligently learn the ways of my people, to swear by my name, the Lord liveth, as they taught my people to swear by Baal; THEN SHALL THEY BE BUILT IN THE MIDST OF MY PEOPLE.*"

^A: Suppose all the Canaanitish nations had abandoned their territory at the tidings of Israel's approach, did God's command require the Israelites to chase them to the ends of the earth, and hunt them down, until every Canaanite was destroyed? It is too preposterous for belief, and yet it follows legitimately from that construction, which interprets the terms "consume,"

"destroy," "destroy utterly," &c. to mean unconditional individual extermination.

* * * * *

[The preceding Inquiry is merely an *outline*. Whoever *reads* it, needs no such information. Its original design embraced a much wider range of general topics, and subordinate heads, besides an Inquiry into the teachings of the New Testament on the same subject. To have filled up the outline, in conformity with the plan upon which it was sketched, would have swelled it to a volume. Much of the foregoing has therefore been thrown into the form of a mere skeleton of heads, or rather a series of *indices*, to trains of thought and classes of proof, which, however limited or imperfect, may perhaps, afford some facilities to those who have little leisure for minute and protracted investigation.]

No. 4.

**THE
ANTI-SLAVERY EXAMINER.**

THE

**BIBLE AGAINST SLAVERY.
AN INQUIRY INTO THE PATRIARCHAL AND
MOSAIC SYSTEMS ON THE SUBJECT OF
HUMAN RIGHTS. Third Edition—Revised.**

NEW YORK:

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY,

NO. 143 NASSAU STREET.

1838.

This periodical contains 5 sheets.—Postage under 100 miles, 7 1-2 cts; over 100 miles, 12 1-2 cts.

Please read and circulate.

CONTENTS

- DEFINITION OF SLAVERY,
 - Negative,
 - Affirmative,
 - Legal,
- THE MORAL LAW AGAINST SLAVERY
 - "Thou shalt not steal,"
 - "Thou shalt not covet,"
- MAN-STEALING—EXAMINATION OF EX. xxi. 16,
 - Separation of man from brutes and things,
- IMPORT OF "BUY" AND "BOUGHT WITH MONEY,"
 - Servants sold themselves,
- RIGHTS AND PRIVILEGES SECURED BY LAW TO SERVANTS,
- SERVANTS WERE VOLUNTARY,
 - Runaway Servants not to be delivered to their Masters,
- SERVANTS WERE PAID WAGES,
- MASTERS NOT "OWNERS,"
 - Servants not subjected to the uses of property,
 - Servants expressly distinguished from property,
 - Examination of Gen. xii. 5.—"The souls that they had gotten," &c.
 - Social equality of Servants and Masters,
 - Condition of the Gibeonites as subjects of the Hebrew Commonwealth,
 - Egyptian Bondage analyzed,
- OBJECTIONS CONSIDERED.
- "CURSED BE CANAAN," &c.—EXAMINATION OF GEN. ix. 25,
- "FOR HE IS HIS MONEY," &c.—EXAMINATION OF EX. xxi. 20, 21,
- EXAMINATION OF LEV. xxv. 44-46,
 - "Both thy BONDMEN, &c., shall be of the heathen,"
 - "They shall be your bondmen FOREVER,"
 - "Ye shall take them as an INHERITANCE," &c.
- EXAMINATION OF LEV. XXV. 39, 40.—THE FREEHOLDER NOT TO "SERVE AS A BOND SERVANT,"
 - Difference between Hired and Bought Servants,
 - Bought Servants the most favored and honored class,
 - Israelites and Strangers belonged to both classes,

- Israelites servants to the Strangers,
- Reasons for the release of the Israelitish Servants in the seventh year,
- Reasons for assigning the Strangers to a longer service,
- Reasons for calling them *the* Servants,
- Different kinds of service assigned to the Israelites and Strangers,
- REVIEW OF ALL THE CLASSES OF SERVANTS WITH THE MODIFICATIONS OF EACH,
- ◦ Political disabilities of the Strangers,
- EXAMINATION OF EX. xxi. 2-6.—"IF THOU BUY AN HEBREW SERVANT,"
- THE CANAANITES NOT SENTENCED TO UNCONDITIONAL EXTERMINATION,

THE BIBLE AGAINST SLAVERY.

The spirit of slavery never seeks shelter in the Bible, of its own accord. It grasps the horns of the altar only in desperation—rushing from the terror of the avenger's arm. Like other unclean spirits, it "hateth the light, neither cometh to the light, lest its deeds should be reproved." Goaded to phrenzy in its conflicts with conscience and common sense, denied all quarter, and hunted from every covert, it vaults over the sacred inclosure and courses up and down the Bible, "seeking rest, and finding none." THE LAW OF LOVE, glowing on every page, flashes around it an omnipresent anguish and despair. It shrinks from the hated light, and howls under the consuming touch, as demons quailed before the Son of God, and shrieked, "Torment us not." At last, it slinks away under the types of the Mosaic system, and seeks to burrow out of sight among their shadows. Vain hope! Its asylum is its sepulchre; its city of refuge, the city of destruction. It flies from light into the sun; from heat, into devouring fire; and from the voice of God into the thickest of His thunders.

DEFINITION OF SLAVERY.

If we would know whether the Bible sanctions slavery, we must determine *what slavery is*. A constituent element, is one thing; a relation, another; an appendage, another. Relations and appendages presuppose *other* things to which they belong. To regard them as *the things themselves*, or as constituent parts of them, leads to endless fallacies. A great variety of conditions, relations, and tenures, indispensable to the social state, are confounded with slavery; and thus slaveholding becomes quite harmless, if not virtuous. We will specify some of these.

1. *Privation of suffrage*. Then minors are slaves.
2. *Ineligibility to office*. Then females are slaves.
3. *Taxation without representation*. Then slaveholders in the District of Columbia are slaves.
4. *Privation of one's oath in law*. Then disbelievers in a future retribution are slaves.
5. *Privation of trial by jury*. Then all in France and Germany are slaves.
6. *Being required to support a particular religion*. Then the people of England are slaves. [To the preceding may be added all other disabilities, merely *political*.]
7. *Cruelty and oppression*. Wives, children, and hired domestics are often oppressed; but these forms of cruelty are not slavery.
8. *Apprenticeship*. The rights and duties of master and apprentice are correlative and reciprocal. The claim of each upon the other results from his *obligation* to the other. Apprenticeship is based on the principle of equivalent for value received. The rights of the apprentice are secured, equally with those of the master. Indeed, while the law is *just* to the master, it is *benevolent* to the apprentice. Its main design is rather to benefit the apprentice than the master. It promotes the interests of the former, while in doing it, it guards from injury those of the latter. To the master it secures a mere legal compensation—to the apprentice, both a legal compensation and a virtual gratuity in addition, he being of the two the greatest gainer. The

law not only recognizes the *right* of the apprentice to a reward for his labor, but appoints the wages, and enforces the payment. The master's claim covers only the services of the apprentice. The apprentice's claim covers *equally* the services of the master. Neither can hold the other as property; but each holds property in the services of the other, and BOTH EQUALLY. Is this slavery?

9. *Filial subordination and parental claims.* Both are nature's dictates and intrinsic elements of the social state; the natural affections which blend parent and child in one, excite each to discharge those offices incidental to the relation, and constitute a shield for mutual protection. The parent's legal claim to the child's services, while a minor, is a slight return for the care and toil of his rearing, to say nothing of outlays for support and education. This provision is, with the mass of mankind, indispensable to the preservation of the family state. The child, in helping his parents, helps himself—increases a common stock, in which he has a share; while his most faithful services do but acknowledge a debt that money cannot cancel.

10. *Bondage for crime.* Must innocence be punished because guilt suffers penalties? True, the criminal works for the government without pay; and well he may. He owes the government. A century's work would not pay its drafts on him. He is a public defaulter, and will die so. Because laws make men pay their debts, shall those be forced to pay who owe nothing? The law makes no criminal, PROPERTY. It restrains his liberty, and makes him pay something, a mere penny in the pound, of his debt to the government; but it does not make him a chattel. Test it. To own property, is to own its product. Are children born of convicts, government property? Besides, can *property* be guilty? Are chattels punished?

11. *Restraints upon freedom.* Children are restrained by parents—pupils, by teachers—patients, by physicians—corporations, by charters—and legislatures, by constitutions. Embargoes, tariffs, quarantine, and all other laws, keep men from doing as they please. Restraints are the web of society, warp and woof. Are they slavery? then civilized society is a giant slave—a government of LAW, *the climax of slavery*, and its executive, a king among slaveholders.

12. *Compulsory service.* A juryman is empannelled against his will, and sit he must. A sheriff orders his posse; bystanders *must* turn in. Men are *compelled* to remove nuisances, pay fines and taxes, support their families, and "turn to the right as the law directs," however much against their wills. Are they therefore slaves? To confound slavery with involuntary service is absurd. Slavery is a *condition*. The slave's *feelings* toward it, are one thing; the condition itself, is another thing; his feelings cannot alter the nature of that condition. Whether he desires or detests it, the condition remains the same. The slave's willingness to be a slave is no palliation of the slaveholder's guilt. Suppose the slave should think himself a chattel, and consent to be so regarded by others, does that *make* him a chattel, or make those guiltless who *hold* him as such? I may be sick of life, and I tell the assassin so that stabs me; is he any the less a murderer? Does my *consent* to his crime, atone for it? my partnership in his guilt, blot out his part of it? The slave's willingness to be a slave, so far from lessening the guilt of the "owner," aggravates it. If slavery has so palsied his mind that he looks upon himself as a chattel, and consents to be one, actually to hold him as such, falls in with his delusion, and confirms the impious falsehood. These very feelings and convictions of the slave, (if such were possible) increase a hundred fold the guilt of the master, and call upon him in thunder, immediately to recognize him as a man and thus break the sorcery that cheats him out of his birthright—the consciousness of his worth and destiny.

Many of the foregoing conditions are *appendages* of slavery. But no one, nor all of them together, constitute its intrinsic unchanging element.

We proceed to state affirmatively that, ENSLAVING MEN IS REDUCING THEM TO ARTICLES OF PROPERTY—making free agents, chattels—converting *persons* into *things*—sinking immortality, into *merchandize*. A *slave* is one held in this condition. In law, "he owns nothing, and can acquire nothing." His right to himself is abrogated. If he say *my hands, my feet, my body, my mind, MY self*, they are figures of speech. To use *himself* for his own good, is a CRIME. To keep what he *earns*, is stealing. To take his body into his own keeping, is *insurrection*. In a word, the *profit* of his master is made the END of his being, and he, a *mere means* to that end—a *mere means* to an end into which his interests do not enter, of which they

constitute no portion^A. MAN, sunk to a *thing*! the intrinsic element, the *principle* of slavery; MEN, bartered, leased, mortgaged, bequeathed, invoiced, shipped in cargoes, stored as goods, taken on executions, and knocked off at public outcry! Their *rights*, another's conveniences; their interests, wares on sale; their happiness, a household utensil; their personal inalienable ownership, a serviceable article, or a plaything, as best suits the humor of the hour; their deathless nature, conscience, social affections, sympathies, hopes—marketable commodities! We repeat it, *the reduction of persons to things*; not robbing a man of privileges, but of *himself*; not loading with burdens, but making him a *beast of burden*; not *restraining* liberty, but subverting it; not curtailing rights, but abolishing them; not inflicting personal cruelty, but annihilating *personality*; not exacting involuntary labor, but sinking him into an *implement* of labor; not abridging human comforts, but abrogating human nature; not depriving an animal of immunities, but despoiling a rational being of attributes—uncreating a MAN, to make room for a *thing*!

^A: Whatever system sinks men from an END to a mere *means*, just so far makes him a *slave*. Hence West India apprenticeship retains the cardinal principle of slavery. The apprentice, during three fourths of his time, is still forced to labor, and robbed of his earnings; just so far forth he is a *mere means*, a *slave*. True, in other respects slavery is abolished in the British West Indies. Its bloodiest features are blotted out—but the meanest and most despicable of all—forcing the poor to work for the rich without pay three fourths of their time, with a legal officer to flog them if they demur at the outrage, is one of the provisions of the "Emancipation Act!" For the glories of that luminary, abolitionists thank God, while they mourn that it rose behind clouds, and shines through an eclipse.

That this is American slavery, is shown by the laws of slave states. Judge Stroud, in his "Sketch of the Laws relating to Slavery," says, "The cardinal principle of slavery, that the slave is not to be ranked among sentient beings, but among *things*—obtains as undoubted law in all of these [the slave] states." The law of South Carolina thus lays down the principle, "Slaves shall be deemed, held, taken, reputed, and adjudged in law to be chattels personal in the hands of their owners and possessors, and their executors, administrators, and assigns, to ALL INTENTS,

CONSTRUCTIONS, AND PURPOSES WHATSOEVER."—Brevard's Digest, 229. In Louisiana, "A slave is one who is in the power of a master to whom he belongs; the master may sell him, dispose of his person, his industry, and his labor; he can do nothing, possess nothing, nor acquire any thing, but what must belong to his master."—Civ. Code of Louisiana, Art. 35.

This is American slavery. The eternal distinction between a person and a thing, trampled under foot—the crowning distinction of all others—alike the source, the test, and the measure of their value—the rational, immortal principle, consecrated by God to universal homage, in a baptism of glory and honor by the gift of His Son, His Spirit, His word, His presence, providence, and power; His shield, and staff, and sheltering wing; His opening heavens, and angels ministering, and chariots of fire, and songs of morning stars, and a great voice in heaven, proclaiming eternal sanctions, and confirming the word with signs following.

Having stated the *principle* of American slavery, we ask, DOES THE BIBLE SANCTION SUCH A PRINCIPLE?^A "To the *law* and the *testimony*?" First, the moral law. Just after the Israelites were emancipated from their bondage in Egypt, while they stood before Sinai to receive the law, as the trumpet waxed louder, and the mount quaked and blazed, God spake the ten commandments from the midst of clouds and thunderings. Two of those commandments deal death to slavery. "THOU SHALT NOT STEAL," or, "thou shalt not take from another what belongs to him." All man's powers are God's gift to *him*. That they are *his own*, is proved from the fact that God has given them to *him alone*,—that each of them is a part of himself, and all of them together constitute himself. All else that belongs to man, is acquired by the *use* of these powers. The interest belongs to him, because the principal does; the product is his, because he is the producer. Ownership of any thing, is ownership of its *use*. The right to use according to will, is *itself* ownership. The eighth commandment presupposes and assumes the right of every man to his powers, and their product. Slavery robs of both. A man's right to himself, is the only right absolutely original and intrinsic—his right to whatever else that belongs to him is merely *relative* to this, is derived from it, and held only by virtue of it. SELF-RIGHT is the *foundation right*—the *post is the middle*, to which all other

rights are fastened. Slaveholders, when talking about their RIGHT to their slaves, always assume their own right to themselves. What slaveholder ever undertook to prove his right to himself? He knows it to be a self-evident proposition, that *a man belongs to himself*—that the right is intrinsic and absolute. In making out his own title, he makes out the title of every human being. As the fact of being a *man* is itself the title, the whole human family have one common title deed. If one man's title is valid, all are valid. If one is worthless, all are. To deny the validity of the *slave's* title is to deny the validity of *his own*; and yet in the act of making a man a slave, the slaveholder *asserts* the validity of his own title, while he seizes him as his property who has the *same* title. Further, in making him a slave, he does not merely disfranchise the humanity of *one* individual, but of UNIVERSAL MAN. He destroys the foundations. He annihilates *all rights*. He attacks not only the human race, but *universal being*, and rushes upon JEHOVAH. For rights are *rights*; God's are no more—man's are no less.

A: The Bible record of actions is no comment on their moral character. It vouches for them as *facts*, not as *virtues*. It records without rebuke, Noah's drunkenness, Lot's incest, and the lies of Jacob and his mother—not only single acts, but *usages*, such as polygamy and concubinage, are entered on the record without censure. Is that *silent entry* God's *endorsement*? Because the Bible in its catalogue of human actions, does not stamp on every crime its name and number, and write against it, *this is a crime*—does that wash out its guilt, and bleach into a virtue?

The eighth commandment forbids the taking of *any part* of that which belongs to another. Slavery takes the *whole*. Does the same Bible which prohibits the taking of *any* thing from him, sanction the taking of *every* thing? Does it thunder wrath against him who robs his neighbor of a *cent*, yet bid God speed to him who robs his neighbor of *himself*? Slaveholding is the highest possible violation of the eighth commandment. To take from a man his earnings, is theft. But to take the *earner*, is a compound, life-long theft—supreme robbery, that vaults up the climax at a leap—the dread, terrific, giant robbery, that towers among other robberies a solitary horror, monarch of the realm. The eighth commandment forbids the taking away, and the *tenth* adds, "THOU SHALT NOT COVET ANY THING THAT IS THY NEIGHBOR'S;" thus guarding every man's right to himself and his

property, by making not only the actual taking away a sin, but even that state of mind which would *tempt* to it. Who ever made human beings slaves, without *coveting* them? Why take from them their time, labor, liberty, right of self-preservation and improvement, their right to acquire property, to worship according to conscience; to search the Scriptures, to live with their families, and their right to their own bodies, if they do not *desire* them? They covet them for purposes of gain, convenience, lust of dominion, of sensual gratification of pride and ostentation. THEY BREAK THE TENTH COMMANDMENT, and pluck down upon their heads the plagues that are written in the book.—*Ten* commandments constitute the brief compend of human duty.—*Two* of these brand slavery as sin.

The giving of the law at Sinai, immediately preceded the promulgation of that body of laws called the "Mosaic system." Over the gateway of that system, fearful words were written by the finger of God—"HE THAT STEALETH A MAN AND SELLETH HIM, OR IF HE BE FOUND IN HIS HAND, HE SHALL SURELY BE PUT TO DEATH." Ex. xxi. 16.

The oppression of the Israelites in Egypt, and the wonders wrought for their deliverance, proclaim the reason for *such* a law at *such* a time—when the body politic became a theocracy, and reverently waited for the will of God. They had just been emancipated. The tragedies of their house of bondage were the realities of yesterday, and peopled their memories with thronging horrors. They had just witnessed God's testimony against oppression in the plagues of Egypt—the burning blains on man and beast—the dust quickened into loathsome life, and swarming upon every living thing—the streets, the palaces, the temples, and every house heaped up with the carcasses of things abhorred—the kneading troughs and ovens, the secret chambers and the couches; reeking and dissolving with the putrid death—the pestilence walking in darkness at noonday, the devouring locusts, and hail mingled with fire, the first-born death-struck, and the waters blood, and last of all, that dread high hand and stretched-out arm, that whelmed the monarch and his hosts, and strewed their corpses on the sea. All this their eyes had looked upon,—earth's proudest city, wasted and thunder-scarred, lying in desolation, and the doom of oppressors traced on her ruins in the hand writing of God, glaring in letters of fire mingled with blood—a blackened monument of wrath to the uttermost against the stealers of men.

No wonder that God, in a code of laws prepared for such a people at such a time, should light up on its threshold a blazing beacon to flash terror on slaveholders. "*He that stealeth a man and selleth him, or if he be found in his hand, he shall surely be put to death.*" Ex. xxi. 16. Deut. xxiv. 7^A. God's cherubim and flaming sword guarding the entrance to the Mosaic system!

^A: Jarchi, the most eminent of the Jewish Commentators, who wrote seven hundred years ago, in his commentary on this stealing and making merchandize of men, gives the meaning thus:—"Using a man against his will, as a servant lawfully purchased; yea, though he should use his services ever so little, only to the value of a farthing, or use but his arm to lean on to support him, *if he be forced so to act as a servant*, the person compelling him but once to do so shall die as a thief, whether he has sold him or not."

The word *Gānābh* here rendered *stealeth*, means the taking what *belongs* to another, whether by violence or fraud; the same word is used in the eighth commandment, and prohibits both *robbery* and theft.

The crime specified is that of depriving **SOMEBODY** of the ownership of a man. Is this somebody a master? and is the crime that of depriving a master of his servant? Then it would have been "he that stealeth" a *servant*, *not* "he that stealeth a *man*." If the crime had been the taking an individual from *another*, then the *term* used would have been expressive of that relation, and most especially if it was the relation of property and *proprietor*!

The crime is stated in a three-fold form—man *stealing*, *selling*, and *holding*. All are put on a level, and whelmed under one penalty—DEATH. This *somebody* deprived of the ownership of a man, is the *man himself*, robbed of personal ownership. Joseph said, "Indeed I was *stolen* away out of the land of the Hebrews." Gen. xl. 15. How *stolen*? His brethren sold him as an article of merchandize. Contrast this penalty for *man-stealing* with that for *property-stealing*, Ex. xxii. If a man had stolen an ox and killed or sold it, he was to restore five oxen; if he had neither sold nor killed it, two oxen. But in the case of stealing a *man*, the *first* act drew down the utmost power of punishment; however often repeated, or aggravated the crime, human penalty could do no more. The fact that the penalty for *man-stealing* was death, and the penalty for *property-stealing*, the mere restoration of double,

shows that the two cases were adjudicated on totally different principles. The man stolen might be past labor, and his support a burden, yet death was the penalty, though not a cent's worth of *property value* was taken. The penalty for stealing property was a mere property penalty. However large the theft, the payment of double wiped out the score. It might have a greater *money* value than a thousand men, yet death was not the penalty, nor maiming, nor branding, nor even *stripes*, but double of *the same kind*. Why was not the rule uniform? When a *man* was stolen why was not the thief required to restore double of the same kind—two men, or if he had sold him, five men? Do you say that the man-thief might not *have* them? So the ox-thief might not have two oxen, or if he had killed it, five. But if God permitted men to hold *men* as property, equally with *oxen*, the man-thief could get men with whom to pay the penalty, as well as the ox-thief, oxen. Further, when *property* was stolen, the legal penalty was a compensation to the person injured. But when a *man* was stolen, no property compensation was offered. To tender money as an equivalent, would have been to repeat the outrage with intolerable aggravations. Compute the value of a MAN in *money*! Throw dust into the scale against immortality! The law recoiled from such supreme insult and impiety. To have permitted the man-thief to expiate his crime by restoring double, would have been making the repetition of crime its atonement. But the infliction of death for *man-stealing* exacted the utmost possibility of reparation. It wrung from the guilty wretch as he gave up the ghost, a testimony in blood, and death-groans, to the infinite dignity and worth of man,—a proclamation to the universe, voiced in mortal agony, "MAN IS INVIOLEABLE"—a confession shrieked in phrenzy at the grave's mouth—"I die accursed, and God is just."

If God permitted man to hold man as property, why did he punish for stealing that kind of property infinitely more than for stealing any other kind of property? Why did he punish with death for stealing a very little of *that* sort of property, and make a mere fine, the penalty for stealing a thousand times as much, of any other sort of property—especially if God did by his own act annihilate the difference between man and *property*, by putting him on a level with it?

The atrociousness of a crime, depends much upon the nature, character, and condition of the victim. To steal is a crime, whoever the thief, or whatever

the plunder. To steal bread from a full man, is theft; to steal from a starving man, is both theft and murder. If I steal my neighbor's property, the crime consists not in altering the *nature* of the article but in shifting its relation from him to me. But when I take my neighbor himself, and first make him *property*, and then *my property*, the latter act, which was the sole crime in the former case, dwindles to nothing. The sin in stealing a man, is not the transfer from its owner to another of that which is *already property*, but the turning of *personality* into *property*. True, the attributes of man remain, but the rights and immunities which grow out of them are attributed. It is the first law both of reason and revelation to regard things and beings as they are; and the sum of religion, to feel and act towards them according to their value. Knowingly to treat them otherwise is sin; and the degree of violence done to their nature, religions, and value, measures its guilt. When things are sundered which God has indissolubly joined, or confounded in one, which he has separated by infinite extremes; when sacred and eternal distinctions, which he has garnished with glory, are derided and set at naught, then, if ever, sin reddens to its "scarlet dye." The sin specified in the passage, is that of doing violence to the *nature* of a man—to his intrinsic value as a rational being, and blotting out the exalted distinction stamped upon him by his Maker. In the verse preceding, and in that which follows, the same principle is laid down. Verse 15, "He that smiteth his father or his mother shall surely be put to death." V. 17, "He that curseth his father or his mother, shall surely be put to death." If a Jew smote his neighbor, the law merely smote him in return; but if the blow was given to a *parent*, it struck the smiter dead. The parental relation is the *centre* of human society. God guards it with peculiar care. To violate that, is to violate all. Whoever trampled on that, showed that *no* relation had any sacredness in his eyes—that he was unfit to move among human relations who had violated one so sacred and tender. Therefore, the Mosaic law uplifted his bleeding corpse, and brandished the ghastly terror around the parental relation to guard it from impious inroads.

Why such a difference in penalties, for the same act? Answer. (1.) The relation violated was obvious—the distinction between parents and others manifest, dictated by natural affection—a law of the constitution. (2.) The act was violence to nature—a suicide on constitutional susceptibilities. (3.) The parental relation then, as now, was the focal point of the social system,

and required powerful safeguards. "*Honor thy father and thy mother*," stands at the head of those commands which prescribe the duties of man to man; and, throughout the Bible, the parental state is God's favorite illustration of his own relations to the whole human family. In this case death was to be inflicted not for smiting a *man*, but a *parent*—a *distinction* cherished by God, and around which, He threw up a bulwark of defence. In the next verse, "He that stealeth a man," &c., the SAME PRINCIPLE is wrought out in still stronger relief. The crime to be punished with death was not the taking of property from its owner, but the doing violence to an *immortal nature*, blotting out a sacred *distinction*, making MEN "chattels." The incessant pains taken in the Old Testament to separate human beings from brutes and things, shows God's regard for his own distinction.

"In the beginning" it was uttered in heaven, and proclaimed to the universe as it rose into being. Creation was arrayed at the instant of its birth, to do it homage. It paused in adoration while God ushered forth its crowning work. Why that dread pause and that creating arm held back in mid career and that high conference in the godhead? "Let us make man in OUR IMAGE after OUR LIKENESS, AND LET HIM HAVE DOMINION over the fish of the sea, and over the fowl of the air, and over the cattle, and over all the earth." Then while every living thing, with land, and sea, and firmament, and marshalled worlds, waited to swell the shout of morning stars—then "GOD CREATED MAN IN HIS OWN IMAGE; IN THE IMAGE OF GOD CREATED HE HIM." This solves the problem, **IN THE IMAGE OF GOD, CREATED HE HIM**. Well might the sons of God shout, "Amen, alleluia"—For thou hast made him a little lower than the angels, and hast crowned him with glory and honor. Thou madest him to have dominion over the works of thy hands; thou hast put all things under his feet." Ps. viii. 5, 6. The repetition of this distinction is frequent and solemn. In Gen. i. 26-28, it is repeated in various forms. In Gen. v. 1, we find it again, "IN THE LIKENESS OF GOD MADE HE MAN." In Gen. ix. 6, again. After giving license to shed the blood of "every moving thing that liveth," it is added, "*Whoso sheddeth man's blood, by man shall his blood be shed, for IN THE IMAGE OF GOD MADE HE MAN.*" As though it had been said, "All these creatures are your property, designed for your use—they have the likeness of earth, they perish with the using, and their spirits go downward; but this other being, MAN, has my own likeness: "IN THE IMAGE OF

GOD made I man;" "an intelligent, moral, immortal agent, invited to all that I can give and he can be." So in Lev. xxiv. 17, 18, 21, "He that killeth any MAN shall surely be put to death; and he that killeth a beast shall make it good, beast for beast; and he that killeth a man shall be put to death." So in Ps. viii. 5, 6, what an enumeration of particulars, each separating infinitely MEN from brutes and things! (1.) "*Thou hast made him a little lower than the angels.*" Slavery drags him down among *brutes*. (2.) "*And hast crowned him with glory and honor.*" Slavery tears off his crown, and puts on a yoke. (3.) "*Thou madest him to have dominion OVER the works of thy hands.*" Slavery breaks the sceptre, and casts him down *among* those works—yea *beneath* them. (4.) "*Thou hast put all things under his feet.*" Slavery puts HIM under the feet of an "owner." Who, but an impious scorner, dares thus strive with his Maker, and mutilate HIS IMAGE, and blaspheme the Holy One, who saith, "*Inasmuch as ye did it unto one of the least of these, ye did it unto ME.*"

In further presenting this inquiry, the Patriarchal and Mosaic systems will be considered together, as each reflects light upon the other, and as many regulations of the latter are mere *legal* forms of Divine institutions previously existing. As a *system*, the latter alone is of Divine authority. Whatever were the usages of the patriarchs, God has not made them our exemplars^{[A](#)}.

^{[A](#)}: Those who insist that the patriarchs held slaves, and sit with such delight under their shadow, hymning the praises of "those good old patriarchs and slaveholders," might at small cost greatly augment their numbers. A single stanza celebrating patriarchal *concubinage*, winding off with a chorus in honor of patriarchal *drunkenness*, would be a trumpet call, summoning from bush and brake, highway and hedge, and sheltering fence, a brotherhood of kindred affinities, each claiming Abraham or Noah as his patron saint, and shouting, "My name is legion." What a myriad choir and thunderous song.

Before entering upon an analysis of the condition of servants under these two states of society, we will consider the import of certain terms which describe the mode of procuring them.

IMPORT OF "BUY," AND "BOUGHT WITH MONEY."

As the Israelites were commanded to "buy" their servants, and as Abraham had servants "bought with money," it is argued that servants were articles of *property*. The sole ground for this belief is the terms themselves. How much might be saved, if in discussion, the thing to be proved were always *assumed*. To beg the question in debate, would be vast economy of midnight oil! and a great forestaller of wrinkles and grey hairs! Instead of protracted investigation into Scripture usage, with painful collating of passages, to find the meaning of terms, let every man interpret the oldest book in the world by the usages of his own time and place, and the work is done. And then instead of one revelation, they might be multiplied as the drops of the morning, and every man have an infallible clue to the mind of the Spirit, if he only understood the dialect of his own neighborhood! What a Babel-jargon it would make of the Bible to take it for granted that the sense in which words are *now* used is the *inspired* sense, David says, "I prevented the dawning of the morning, and cried." What, stop the earth in its revolution! Two hundred years ago, *prevent* was used in its strict Latin sense to *come before*, or *anticipate*. It is always used in this sense in the Old and New Testaments. David's expression, in the English of the nineteenth century, would be "Before the dawning of the morning I cried." In almost every chapter of the Bible, words are used in a sense now nearly or quite obsolete, and sometimes in a sense totally *opposite* to their present meaning. A few examples follow: "I purposed to come to you, but was *let* (hindered) hitherto." "And the four *beasts* (living ones) fell down and worshipped God,"—"Whosoever shall *offend* (cause to sin) one of these little ones,"—"Go out into the highways and *compel* (urge) them to come in,"—"Only let your *conversation* (habitual conduct) be as becometh the Gospel,"—"They that seek me *early* (earnestly) shall find me,"—"So when tribulation or persecution ariseth *by-and-by* (immediately) they are offended." Nothing is more mutable than language. Words, like bodies, are always throwing off some particles and absorbing others. So long as they are mere *representatives*, elected by the whims of universal suffrage, their meaning will be a perfect volatile, and to cork it up for the next century is an employment sufficiently silly (to speak within bounds) for a modern Bible Dictionary maker. There never was a shallower conceit than that of establishing the sense attached to a word centuries ago, by showing what it

means *now*. Pity that fashionable mantuamakers were not a little quicker at taking hints from some Doctors of Divinity. How easily they might save their pious customers all qualms of conscience about the weekly shiftings of fashion, by proving that the last importation of Parisian indecency now flaunting on promenade, was the very style of dress in which the pious Sarah kneaded cakes for the angels, and the modest Rebecca drew water for the camels of Abraham's servants. Since such fashions are rife in Broadway *now*, they *must* have been in Canaan and Padanaram four thousand years ago!

The inference that the word *buy*, used to describe the procuring of servants, means procuring them as *chattels*, seems based upon the fallacy, that whatever *costs* money *is* money; that whatever or whoever you pay money *for*, is an article of property, and the fact of your paying for it *proves* it property. The children of Israel were required to purchase their first-born from under the obligations of the priesthood, Num. xviii. 15, 16; Ex. xiii. 13; xxxiv. 20. This custom still exists among the Jews, and the word *buy* is still used to describe the transaction. Does this prove that their first-born were, or are, held as property? They were *bought* as really as were *servants*. (2.) The Israelites were required to pay money for their own souls. This is called sometimes a ransom, sometimes an atonement. Were their souls therefore marketable commodities? (3.) Bible saints *bought* their wives. Boaz bought Ruth. "So Ruth the Moabitess, the wife of Mahlon, have I *purchased* to be my wife." Ruth iv. 10. Hosea bought his wife. "So I *bought* her to me for fifteen pieces of silver, and for an homer of barley, and an half homer of barley." Hosea iii. 2. Jacob bought his wives Rachael and Leah, and not having money, paid for them in labor—seven years a piece. Gen. xxix. 15-29. Moses probably bought his wife in the same way, and paid for her by his labor, as the servant of her father. Exod. ii. 21. Shechem, when negotiating with Jacob and his sons for Dinah, says, "Ask me never so much dowry and gift, and I will give according as ye shall say unto me." Gen. xxxiv. 11, 12. David purchased Michal, and Othniel, Achsah, by performing perilous services for their fathers. 1 Sam. xviii. 25-27; Judg. i. 12, 13. That the purchase of wives, either with money or by service, was the general practice, is plain from such passages as Ex. xxii. 17, and 1 Sam. xviii. 25. Among the modern Jews this usage exists, though now a mere form, there being no *real* purchase. Yet among their marriage ceremonies, is

one called "marrying by the penny." The coincidences in the methods of procuring wives and servants, in the terms employed in describing the transactions, and in the prices paid for each, are worthy of notice. The highest price of wives (virgins) and servants was the same. Comp. Deut. xxii. 28, 29, and Ex. xxii. 17, with Lev. xxvii. 2-8. The *medium* price of wives and servants was the same. Comp. Hos. iii. 2, with Ex. xxi. 32. Hosea seems to have paid one half in money and the other half in grain. Further, the Israelitish female bought servants were *wives*, their husbands and masters being the same persons. Ex. xxi. 8, Judg. xix. 3, 27. If *buying* servants proves them property, buying wives proves them property. Why not contend that the *wives* of the ancient fathers of the faithful were their "chattels," and used as ready change at a pinch; and thence deduce the rights of modern husbands? Alas! Patriarchs and prophets are followed afar off! When will pious husbands live up to their Bible privileges, and become partakers with Old Testament worthies in the blessedness of a husband's rightful immunities! Refusing so to do, is questioning the morality of those "good old patriarchs and slaveholders, Abraham, Isaac, and Jacob."

This use of the word buy, is not peculiar to the Hebrew. In the Syriac, the common expression for "the espoused," is "the bought." Even so late as the 16th century, the common record of *marriages* in the old German Chronicles was, "A BOUGHT B."

The word translated *buy*, is, like other words, modified by the nature of the subject to which it is applied. Eve said, "I have *gotten* (bought) a man of the Lord." She named him Cain, that is *bought*. "He that heareth reproof, getteth (buyeth) understanding," Prov. xv. 32. So in Isa. xi. 11. "The Lord shall set his hand again to recover (to *buy*) the remnant of his people." So Ps. lxxviii. 54. "He brought them to this mountain which his right hand had *purchased*," (gotten.) Jer. xiii. 4. "Take the girdle that thou hast got" (bought.) Neh. v. 8. "We of our ability have *redeemed* (bought) our brethren that were sold to the heathen." Here "*bought*" is not applied to persons reduced to servitude, but to those taken *out* of it. Prov. 8. 22. "The Lord possessed (bought) me in the beginning of his way." Prov. xix. 8. "He that *getteth* (buyeth) wisdom loveth his own soul." Finally, to *buy* is a *secondary* meaning of the Hebrew word Kānā.

Even at this day the word *buy* is used to describe the procuring of servants, where slavery is abolished. In the British West Indies, where slaves became apprentices in 1834, they are still "bought." This is the current word in West India newspapers. Ten years since servants were "*bought*" in New-York, as really as in Virginia, yet the different senses in which the word was used in the two states, put no man in a quandary. Under the system of legal *indenture* in Illinois, servants now are "*bought*."^A Until recently immigrants to this country were "bought" in great numbers. By voluntary contract they engaged to work a given time to pay for their passage. This class of persons called "redemptioners," consisted at one time of thousands. Multitudes are "bought" *out* of slavery by themselves or others. Under the same roof with the writer is a "servant bought with money." A few weeks since, she was a slave; when "bought" she was a slave no longer. Alas! for our leading politicians if "buying" men makes them "chattels." The Whigs say that Benton and Rives are "bought" by the administration; and the other party, that Clay and Webster are "bought" by the Bank. The histories of the revolution tell us that Benedict Arnold was "bought" by British gold. When a northern clergyman marries a rich southern widow, country gossip thus hits off the indecency, "The cotton bags *bought* him." Sir Robert Walpole said, "Every man has his price, and whoever will pay it, can *buy* him," and John Randolph said, "The northern delegation is in the market, give me money enough, and I can *buy* them;" both meant just what they said. The temperance publications tell us that candidates for office *buy* men with whiskey; and the oracles of street tattle that the court, district attorney, and jury, in the late trial of Robinson were *bought*, yet we have no floating visions of "chattels personal," man auctions, or coffles.

^A: The following statute is now in force in the free state of Illinois—No negro, mulatto, or Indian shall at any time *purchase* any servant other than of their own complexion: and if any of the persons aforesaid shall presume to *purchase* a white servant, such servant shall immediately become free, and shall be so held, deemed and taken.

The transaction between Joseph and the Egyptians gives a clue to the use of "buy" and "bought with money." Gen, xlvii. 18-26. The Egyptians proposed to Joseph to become servants. When the bargain was closed, Joseph said, "Behold I have *bought you* this day," and yet it is plain that neither party

regarded the persons *bought* as articles of property, but merely as bound to labor on certain conditions, to pay for their support during the famine. The idea attached by both parties to "buy us," and "behold I have bought you," was merely that of service voluntarily offered, and secured by contract, in return for *value received*, and not at all that the Egyptians were bereft of their personal ownership, and made articles of property. And this buying of *services* (in this case it was but one-fifth part) is called in Scripture usage, *buying the persons*. This case claims special notice, as it is the only one where the whole transaction of buying servants is detailed—the preliminaries, the process, the mutual acquiescence, and the permanent relation resulting therefrom. In all other instances, the *mere fact* is stated without particulars. In this case, the whole process is laid open. (1.) The persons "bought," *sold themselves*, and of their own accord. (2.) Obtaining permanently the *services* of persons, or even a portion of them, is called "buying" those persons. The objector, at the outset, takes it for granted, that servants were bought of *third* persons; and thence infers that they were articles of property. Both the alleged fact and the inference are sheer *assumptions*. No instance is recorded, under the Mosaic system, in which a *master sold his servant*. That servants who were "bought" *sold themselves* is a fair inference from various passages of Scripture.

In Leviticus xxv. 47, the case of the Israelite, who became the servant of the stranger, the words are, "If he SELL HIMSELF unto the stranger." The *same word*, and the same *form* of the word, which, in verse 47, is rendered *sell himself*, is in verse 39 of the same chapter, rendered *be sold*; in Deut. xxviii. 68, the same word is rendered "be sold." "And there ye shall BE SOLD unto your enemies for bond-men and bond-women and NO MAN SHALL BUY YOU." How could they "*be sold*" without *being bought*? Our translation makes it nonsense. The word *Mākar* rendered "be sold" is used here in the Hithpael conjugation, which is generally reflexive in its force, and, like the middle voice in Greek, represents what an individual does for himself, and should manifestly have been rendered, "ye shall *offer yourselves* for sale, and there shall be no purchaser." For a clue to Scripture usage on this point, see 1 Kings xxi. 20, 25—"Thou hast *sold thyself* to work evil." "There was none like to Ahab that *sold himself* to work wickedness."—2 Kings xvii. 17. "They used divination and enchantments, and *sold themselves* to do evil."—Isa. l. 1. "For your iniquities have ye *sold*

yourselves." Isa. lii. 3, "Ye have *sold yourselves* FOR NOUGHT, and ye shall be redeemed without money." See also, Jer. xxxiv. 14—Romans vii. 14, vi. 16—John viii. 34, and the case of Joseph and the Egyptians, already quoted. In the purchase of wives, though spoken of rarely, it is generally stated that they were bought of *third* persons. If *servants* were bought of third persons, it is strange that no *instance* of it is on record.

II.—THE LEADING DESIGN OF THE LAWS RELATING TO SERVANTS, WITH THE RIGHTS AND PRIVILEGES SECURED TO THEM.

The general object of the laws defining the relations of master and servant, was the good of both parties—more especially the good of the *servants*. While the master's interests were guarded from injury, those of the servants were *promoted*. These laws made a merciful provision for the poorer classes, both of the Israelites and Strangers, not laying on burdens, but lightening them—they were a grant of *privileges* and *favours*.

I. No servant from the Strangers, could remain in the family of an Israelite without becoming a proselyte. Compliance with this condition was the *price of the privilege*.—Gen. xvii. 9-14, 23, 27.

II. Excommunication from the family was a PUNISHMENT.—Gen. xxi. 14. Luke xvi. 2-4.

III. Every Hebrew servant could COMPEL his master to keep him after the six years contract had expired. This shows that the system was framed to advance the interests and gratify the wishes of the servant quite as much as those of the master. If the servant *demand*ed it, the law *obliged* the master to retain him, however little he might need his services. Deut. xv. 12-17. Ex. xxi. 2-6.

IV. The rights and privileges guaranteed by law to all servants.

1. *They were admitted into covenant with God.* Deut. xxix. 10-13.

2. *They were invited guests at all the national and family festivals.* Ex. xii. 43-44; Deut. xii. 12, 18, xvi. 10-16.

3. *They were statedly instructed in morality and religion.* Deut. xxxi. 10-13; Josh. viii. 33-35; 2 Chron. xvii. 8-9.

4. *They were released from their regular labor nearly ONE HALF OF THE WHOLE TIME.* During which they had their entire support, and the same instruction that was provided for the other members of the Hebrew community.

(a.) The Law secured to them the *whole of every seventh year*; Lev. xxv. 3-6; thus giving to those who were servants during the entire period between the jubilees, *eight whole years*, including the jubilee year, of unbroken rest.

(b.) *Every seventh day.* This in forty-two years, the eight being subtracted from the fifty, would amount to just *six years*.

(c.) *The three annual festivals.* The *Passover*, which commenced on the 15th of the 1st month, and lasted seven days, Deut. xvi. 3, 8. The Pentecost, or Feast of Weeks, which began on the 6th day of the 3d month, and lasted seven days. Lev. xvi. 10, 11. The Feast of Tabernacles, which commenced on the 15th of the 7th month, and lasted eight days. Deut. xvi. 13, 15; Lev. xxiii. 34-39. As all met in one place, much time would be spent on the journey. Cumbered caravans move slowly. After their arrival, a day or two would be requisite for divers preparations before the celebration, besides some time at the close of it, in preparations for return. If we assign three weeks to each festival—including the time spent on the journeys, and the delays before and after the celebration, together with the *festival week*, it will be a small allowance for the cessation of their regular labor. As there were three festivals in the year, the main body of the servants would be absent from their stated employments at least *nine weeks annually*, which would amount in forty-two years, subtracting the Sabbaths, to six years and eighty-four days.

(d.) *The new moons.* The Jewish year had twelve; Josephus says that the Jews always kept *two days* for the new moon. See Calmet on the Jewish Calendar, and Horne's Introduction; also 1 Sam. xx. 18, 19, 27. This in forty-two years, would be two years 280 days.

(e.) *The feast of trumpets*. On the first day of the seventh month, and of the civil year. Lev. xxiii. 24, 25.

(f.) *The atonement day*. On the tenth of the seventh month. Lev. xxiii. 27.

These two feasts would consume not less than sixty-five days not reckoned above.

Thus it appears that those who continued servants during the period between the jubilees, were by law released from their labor, TWENTY-THREE YEARS AND SIXTY-FOUR DAYS, OUT OF FIFTY YEARS, and those who remained a less time, in nearly the same proportion. In this calculation, besides making a donation of all the *fractions* to the objector, we have left out those numerous *local* festivals to which frequent allusion is made, Judg. xxi. 19; I Sam. ix. etc., and the various *family* festivals, such as at the weaning of children; at marriages; at sheep shearings; at circumcisions; at the making of covenants, &c., to which reference is often made, as in 1 Sam. xx. 28, 29. Neither have we included the festivals instituted at a later period of the Jewish history. The feast of Purim, Esth. ix. 28, 29; and of the Dedication, which lasted eight days. John x. 22; 1 Mac. iv. 59.

Finally, the Mosaic system secured to servants, an amount of time which, if distributed, would be almost ONE HALF OF THE DAYS IN EACH YEAR. Meanwhile, they were supported, and furnished with opportunities of instruction. If this time were distributed over *every day*, the servants would have to themselves nearly *one half of each day*.

THIS IS A REGULATION OF THAT MOSAIC SYSTEM WHICH IS CLAIMED BY SLAVEHOLDERS AS THE PROTOTYPE OF AMERICAN SLAVERY.

V. The servant was protected by law equally with the other members of the community.

Proof.—"Judge righteously between every man and his neighbor, and THE STRANGER THAT IS WITH HIM." "Ye shall not RESPECT PERSONS in judgement, but ye shall hear the SMALL as well as the great." Deut. i. 16,

17. Also Lev. xxiv. 22. "Ye shall have one manner of law as well for the STRANGER, as for one of your own country." So Numb. xv. 29. "Ye shall have ONE LAW for him that sinneth through ignorance, both for him that is born among the children of Israel and for the STRANGER that sojourneth among them." Deut. xxvii. 19. "Cursed be he that PERVERTETH THE JUDGMENT OF THE STRANGER."

VI. The Mosaic system enjoined the greatest affection and kindness toward servants, foreign as well as Jewish.

Lev. xix. 34. "The stranger that dwelleth with you shall be unto you as one born among you, and thou shall love him as thyself." Also Deut. x. 17, 19. "For the Lord your God * * REGARDETH NOT PERSONS. He doth execute the judgment of the fatherless and widow, and LOVETH THE STRANGER, in giving him food and raiment, LOVE YE THEREFORE THE STRANGER." So Ex. xxii. 21. "Thou shalt neither vex a STRANGER nor oppress him." Ex. xxiii. 9. "Thou shalt not oppress a STRANGER, for ye know the heart of a stranger." Lev. xxv. 35, 36. "If thy brother be waxen poor thou shalt relieve him, yea, though he be a STRANGER or a sojourner, that he may live with thee, take thou no usury of him or increase, but fear thy God." Could this same stranger be taken by one that feared his God, and held as a slave, and robbed of time, earnings, and all his rights?

VII. Servants were placed upon a level with their masters in all civil and religious rights. Num. xv. 15, 16, 29; ix. 14. Deut. i. 16, 17. Lev. xxiv. 22.

III.—DID PERSONS BECOME SERVANTS VOLUNTARILY, OR WERE THEY MADE SERVANTS AGAINST THEIR WILLS?

We argue that they became servants *of their own accord*.

I. Because to become a servant in the family of an Israelite, was to abjure idolatry, to enter into covenant with God^A, be circumcised in token of it, bound to keep the Sabbath, the Passover, the Pentecost, and the Feast of Tabernacles, and to receive instruction in the moral and ceremonial law. Were the servants *forced* through all these processes? Was the renunciation of idolatry *compulsory*? Were they *dragged* into covenant with God? Were they seized and circumcised by *main strength*? Were they *compelled*

mechanically to chew, and swallow the flesh of the Paschal lamb, while they abhorred the institution, spurned the laws that enjoined it, detested its author and its executors, and instead of rejoicing in the deliverance which it commemorated, bewailed it as a calamity, and cursed the day of its consummation? Were they *driven* from all parts of the land three times in the year to the annual festivals? Were they drugged with instruction which they nauseated? Goaded through a round of ceremonies, to them senseless and disgusting mummeries; and drilled into the tactics of a creed rank with loathed abominations? We repeat it, to become a *servant*, was to become a *proselyte*. And did God authorize his people to make proselytes, at the point of the sword? by the terror of pains and penalties? by converting men into *merchandise*? Were *proselyte* and *chattel* synonymes, in the Divine vocabulary? Must a man be sunk to a *thing* before taken into covenant with God? Was this the stipulated condition of adoption, and the sole passport to the communion of the saints?

[A](#): Maimonides, who wrote in Egypt about seven hundred years ago, a contemporary with Jarchi, and who stands with him at the head of Jewish writers, gives the following testimony on this point:

"Whether a servant be born in the power of an Israelite, or whether he be purchased from the heathen, the master is to bring them both into the covenant."

"But he that is in the *house* is entered on the eighth day, and he that is bought with money, on the day on which his master receives him, unless the slave be *unwilling*. For if the master receive a grown slave, and he be *unwilling*, his master is to bear with him, to seek to win him over by instruction, and by love and kindness, for one year. After which, should he *refuse* so long, it is forbidden to keep him longer than a year. And the master must send him back to the strangers from whence he came. For the God of Jacob will not accept any other than the worship of a willing heart"—Mamon, Hilcoth Mileth, Chap. 1st, Sec. 8th.

The ancient Jewish Doctors assert that the servant from the Strangers who at the close of his probationary year, refused to adopt the Jewish religion and was on that account sent back to his own people, received a *full compensation* for his services, besides the payment of his expenses. But that

postponement of the circumcision of the foreign servant for a year (*or even at all* after he had entered the family of an Israelite), of which the Mishnic doctors speak, seems to have been *a mere usage*. We find nothing of it in the regulations of the Mosaic system. Circumcision was manifestly a rite strictly *initiatory*. Whether it was a rite merely *national* or *spiritual*, or *both*, comes not within the scope of this inquiry.

II. We argue the voluntariness of servants from Deut. xxiii. 15, 16, "Thou shalt not deliver unto his master the servant which is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best; thou shalt not oppress him."

As though God had said, "To deliver him up would be to recognize the *right* of the master to hold him; his *fleeing* shows his *choice*—proclaims his wrongs and his title to protection; you shall not force him back and thus recognize the *right* of the master to hold him in such a condition as induces him to flee to others for protection." It may be said that this command referred only to the servants of *heathen* masters in the surrounding nations. We answer, the terms of the command are unlimited. But the objection, if valid, would merely shift the pressure of the difficulty to another point. Did God require them to protect the *free choice* of a *single* servant from the heathen, and yet *authorize* the same persons, to crush the free choice of *thousands* of servants from the heathen? Suppose a case. A *foreign* servant flees to the Israelites; God says, "He shall dwell with thee, in that place which *he shall choose*, in one of thy gates where it *liketh him* best." Now, suppose this same servant, instead of coming into Israel of his own accord, had been *dragged* in by some kidnapper who *bought* him of his master, and *forced* him into a condition against his will; would He who forbade such treatment of the stranger, who *voluntarily* came into the land, sanction the *same* treatment of the *same person*, provided in *addition* to this last outrage, the *previous* one had been committed of forcing him into the nation against his will? To commit violence on the free choice of a *foreign* servant is forsooth a horrible enormity, PROVIDED you *begin* the violence *after* he has come among you. But if you commit the *first act* on the *other side of the line*; if you begin the outrage by buying him from a third person against his will, and then tear him from home, drag him across the line into the land

of Israel, and hold him as a slave—ah! that alters the case, and you may perpetrate the violence now with impunity! Would *greater* favor have been shown to this new comer than to the old residents—those who had been servants in Jewish families perhaps for a generation? Were the Israelites commanded to exercise toward *him*, uncircumcised and out of the covenant, a justice and kindness denied to the multitudes who *were* circumcised, and *within* the covenant? But, the objector finds small gain to his argument on the supposition that the covenant respected merely the fugitives from the surrounding nations, while it left the servants of the Israelites in a condition against their wills. In that case, the surrounding nations would adopt retaliatory measures, and become so many asylums for Jewish fugitives. As these nations were not only on every side of them, but in their midst, such a proclamation would have been an effectual lure to men whose condition was a constant counteraction of will. Besides the same command which protected the servant from the power of his foreign *master*, protected him equally from the power of an *Israelite*. It was not, "Thou shalt not deliver him unto his *master*," but "he shall dwell with thee, in that place which *he shall choose* in one of thy gates where it liketh *him* best." Every Israelite was forbidden to put him in any condition *against his will*. What was this but a proclamation, that all who *chose* to live in the land and obey the laws, were left to their own free will, to dispose of their services at such a rate, to such persons and in such places as they pleased? Besides, grant that this command prohibited the sending back of *foreign* servants merely, there was no law requiring the return of servants who had escaped from the *Israelites*. *Property* lost, and *cattle* escaped, they were required to return, but not escaped servants. These verses contain 1st, a command, "Thou shalt not deliver," &c., 2d, a declaration of the fugitive's right of *free choice*, and of God's will that he should exercise it at his own discretion; and 3d, a command guarding this right, namely, "Thou shalt not oppress him," as though God had said, "If you restrain him from exercising his *own choice*, as to the place and condition of his residence, it is *oppression*."

III. We argue the voluntariness of servants from their peculiar opportunities and facilities for escape. Three times every year, all the males over twelve years, were required to attend the national feasts. They were thus absent from their homes not less than three weeks at each time, making nine weeks annually. As these caravans moved over the country, were there military

scouts lining the way, to intercept deserters?—a corporal's guard at each pass of the mountains, sentinels pacing the hill-tops, and light horse scouring the defiles? The Israelites must have had some safe contrivance for taking their "*slaves*" three times in a year to Jerusalem and back. When a body of slaves is moved any distance in our *republic*, they are hand-cuffed and chained together, to keep them from running away, or beating their drivers' brains out. Was this the *Mosaic* plan, or an improvement introduced by Samuel, or was it left for the wisdom of Solomon? The usage, doubtless, claims a paternity not less venerable and biblical! Perhaps they were lashed upon camels, and transported in bundles, or caged up, and trundled on wheels to and fro, and while at the Holy City, "lodged in jail for safe keeping," the Sanhedrim appointing special religious services for their benefit, and their "drivers" officiating at "ORAL instruction." Mean while, what became of the sturdy *handmaids* left at home? What hindered them from marching off in a body? Perhaps the Israelitish matrons stood sentry in rotation round the kitchens, while the young ladies scoured the country, as mounted rangers, picking up stragglers by day, and patrolled the streets, keeping a sharp look-out at night.

IV. Their continuance in Jewish families depended upon the performance of various rites necessarily VOLUNTARY.

Suppose the servants from the heathen had upon entering Jewish families, refused circumcision; if *slaves*, how simple the process of emancipation! Their *refusal* did the job. Or, suppose they had refused to attend the annual feasts, or had eaten unleavened bread during the Passover, or compounded the ingredients of the anointing oil, they would have been "cut off from the people;" *excommunicated*.

V. We infer the voluntariness of the servants of the Patriarchs from the impossibility of their having been held against their wills. Abraham's servants are an illustration. At one time he had three hundred and eighteen *young men* "born in his house," and many more *not* born in his house. His servants of all ages, were probably MANY THOUSANDS. How Abraham and Sarah contrived to hold fast so many thousand servants against their wills, we are left quite in the dark. The most natural supposition is that the Patriarch and his wife *took turns* in surrounding them! The neighboring

tribes, instead of constituting a picket guard to hem in his servants, would have been far more likely to sweep them and him into captivity, as they did Lot and his household. Besides, there was neither "Constitution" nor "compact," to send back Abraham's fugitives, nor a truckling police to pounce upon them, nor gentleman-kidnappers, suing for his patronage, volunteering to howl on their track, boasting their blood-hound scent, and pledging their "honor" to hunt down and "deliver up," *provided* they had a description of the "flesh-marks," and were suitably stimulated by *pieces of silver*. Abraham seems also to have been sadly deficient in all the auxiliaries of family government, such as stocks, hand-cuffs, foot-chains, yokes, gags, and thumb-screws. His destitution of these patriarchal indispensables is the more afflicting, since he faithfully trained "his household to do justice and judgment," though so deplorably destitute of the needful aids.

VI. We infer that servants were voluntary, as there is no instance of an Israelitish master SELLING a servant. Abraham had thousands of servants, but seems never to have sold one. Isaac "grew until he became very great," and had "great store of servants." Jacob's youth was spent in the family of Laban, where he lived a servant twenty-one years. Afterward he had a large number of servants. Joseph sent for Jacob to come into Egypt, "thou and thy children, and thy children's children, and thy flocks and thy herds, and ALL THAT THOU HAST." Jacob took his flocks and herds but *no servants*. Gen xlv. 10; xlvii. 16. They doubtless, served under their *own contracts*, and when Jacob went into Egypt, they *chose* to stay in their own country. The government might sell *thieves*, if they had no property, until their services had made good the injury, and paid the legal fine. Ex. xxii. 3. But *masters* seem to have had no power to sell their *servants*. To give the master a *right* to sell his servant, would annihilate the servant's right of choice in his own disposal; but says the objector, "to give the master a right to *buy* a servant, equally annihilates the servant's *right of choice*." Answer. It is one thing to have a right to buy a man, and a different thing to have a right to buy him of another man^A.

^A: There is no evidence that masters had the power to dispose even the *services* of their servants, as men hire out their laborers whom they employ by the year; but whether they had or not, affects not the argument.

Though servants were not bought of their masters, yet young females were bought of their *fathers*. But their purchase as *servants* was their betrothal as wives. Ex. xxi. 7, 8. "If a man sell his daughter to be a maid-servant, she shall not go out as the men-servants do. If she please not her master WHO HATH BETROTHED HER TO HIMSELF, he shall let her be redeemed." ^B

^B: The comment of Maimonides on this passage is as follows: "A Hebrew handmaid might not be sold but to one who laid himself under obligations, to espouse her to himself or to his son, when she was fit to be betrothed."—*Maimonides—Hilcoth—Obedim*, Ch. IV. Sec. XI. Jarchi, on the same passage, says, "He is bound to espouse her and take her to be his wife, for the *money of her purchase* is the money of her espousal."

VII. We infer that the Hebrew servant was voluntary in COMMENCING his service, because he was pre-eminently so IN CONTINUING it. If, at the year of release, it was the servant's *choice* to remain with his master, law required his ear to be bored by the judges of the land, thus making it impossible for him to be held against his will. Yea more, his master was *compelled* to keep him, however much he might wish to get rid of him.

VIII. The method prescribed for procuring servants, was an appeal to their choice. The Israelites were commanded to offer them a suitable inducement, and then leave them to decide. They might neither seize them by *force*, nor frighten them by *threats*, nor wheedle them by false pretences, nor *borrow* them, nor *beg* them; but they were commanded to buy them ^A; that is, they were to recognize the *right* of the individuals to *dispose* of their own services, and their right to *refuse all offers*, and thus oblige those who made them, *to do their own work*. Suppose all, with one accord, had *refused* to become servants, what provision did the Mosaic law make for such an emergency? NONE.

^A: The case of thieves, whose services were sold until they had earned enough to make restitution to the person wronged, and to pay the legal penalty, *stands by itself*, and has nothing to do with the condition of servants.

IX. Various incidental expressions corroborate the idea that servants became such by their own contract. Job xli. 4, is an illustration, "Will he (Leviathan) make a COVENANT with thee? wilt thou take him for a SERVANT forever?"

X. The transaction which made the Egyptians the SERVANTS OF PHARAOH was voluntary throughout. See Gen. xlvii. 18-26. Of their own accord they came to Joseph and said, "We have not aught left but our *bodies* and our lands; *buy us*;" then in the 25th verse, "we will be servants to Pharaoh."

XI. We infer the voluntariness of servants, from the fact that RICH Strangers did not become servants. Indeed, so far were they from becoming servants themselves, that they bought and held Jewish servants. Lev. xxv. 47.

XII. The sacrifices and offerings which ALL were required to present, were to be made VOLUNTARILY. Lev. i. 2, 3.

XIII. Mention is often made of persons becoming servants where they were manifestly and pre-eminently VOLUNTARY. As the Prophet Elisha. 1 Kings xix. 21; 2 Kings iii. 11. Elijah was his *master*. The word, translated master, is the same that is so rendered in almost every instance where masters are spoken of under the Mosaic and patriarchal systems. Moses was the servant of Jethro. Ex. iii. 1. Joshua was the servant of Moses. Num. xi. 28. Jacob was the servant of Laban. Gen. xxix. 18-27.

IV.—WERE THE SERVANTS FORCED TO WORK WITHOUT PAY?

As the servants became and continued such of *their own accord*, it would be no small marvel if they *chose* to work without pay. Their becoming servants, pre-supposes *compensation* as a motive. That they *were paid* for their labor, we argue,

I. Because God rebuked in thunder, the sin of using the labor of others without wages. "Wo unto him that buildeth his house by unrighteousness, and his chambers by wrong; THAT USETH HIS NEIGHBOR'S SERVICE WITHOUT WAGES, and giveth him not for his work." Jer. xxii. 13. God

here testifies that to use the service of others without wages is "unrighteousness" and pronounces his "wo" against the doer of the "wrong." The Hebrew word *Reā*, translated *neighbor*, does not mean one man, or class of men, in distinction from others, but any one with whom we have to do—all descriptions of persons, even those who prosecute us in lawsuits and enemies while in the act of fighting us—"As when a man riseth against his NEIGHBOR and slayeth him." Deut. xxii. 26. "Go not forth hastily to strive, lest thou know not what to do in the end thereof, when thy NEIGHBOR hath put thee to shame." Prov. xxv. 8. "Thou shalt not bear false witness against thy NEIGHBOR." Ex. xx. 16. "If any man come presumptuously upon his NEIGHBOR to slay him with guile." Ex. xxi. 14, &c.

II. God testifies that in our duty to our fellow men, ALL THE LAW AND THE PROPHETS hang upon this command, "Thou shalt love thy neighbor as thyself." Our Savior, in giving this command, quoted *verbatim* one of the laws of the Mosaic system. Lev. xix. 18. In the 34th verse of the same chapter, Moses applies this law to the treatment of Strangers, "The stranger that dwelleth with you shall be unto you as one born among you, and THOU SHALT LOVE HIM AS THYSELF." If it be loving others *as* ourselves, to make them work for us without pay; to rob them of food and clothing also, would be a stronger illustration still of the law of love! *Super-disinterested* benevolence! And if it be doing unto others as we would have them do to us, to make them work for *our own* good alone, Paul should be called to order for his hard saying against human nature, especially for that libellous matter in Eph. v. 29, "No man ever yet hated his own flesh, but nourisheth it and cherisheth it."

III. As persons became servants FROM POVERTY, we argue that they were compensated, since they frequently owned property, and sometimes a large amount. Ziba, the servant of Mephibosheth, gave David a princely present, "An hundred loaves of bread, and an hundred bunches of raisins, and an hundred of summer fruits, and a bottle of wine." 2 Sam. xvi. 1. The extent of his possessions can be inferred from the fact, that though the father of fifteen sons, he had twenty servants. In Lev. xxv. 57-59, where a servant, reduced to poverty, sold himself, it is declared that he may be *redeemed*, either by his kindred, or by HIMSELF. Having been forced to sell himself

from poverty, he must have acquired considerable property *after* he became a servant. If it had not been common for servants to acquire property over which they had the control, the servant of Elisha would hardly have ventured to take a large sum of money, (nearly \$3000^A) from Naaman, 2 Kings v. 22, 23. As it was procured by deceit, he wished to conceal the means used in getting it; but if servants, could "own nothing, nor acquire any thing," to embark in such an enterprise would have been consummate stupidity. The fact of having in his possession two talents of silver, would of itself convict him of theft^B. But since it was common for servants to own property he might have it, and invest or use it, without attracting special attention, and that consideration alone would have been a strong motive to the act. His master, while rebuking him for using such means to get the money, not only does not take it from him; but seems to expect that he would invest it in real estate, and cattle, and would procure servants with it. 2 Kings v. 26. We find the servant of Saul having money, and relieving his master in an emergency. 1 Sam. ix. 8. Arza, the servant of Elah, was the *owner of a house*. That it was somewhat magnificent, would be a natural inference from it's being a resort of the king. 1 Kings xvi. 9. The case of the Gibeonites, who after becoming servants, still occupied their cities, and remained in many respects, a distinct people for centuries; and that of the 150,000 Canaanites, the *servants* of Solomon, who worked out their "tribute of bond-service" in levies, periodically relieving each other, are additional illustrations of independence in the acquisition and ownership of property.

^A: Though we have not sufficient data to decide upon the *relative* value of that sum, *then* and *now*, yet we have enough to warrant us in saying that two talents of silver, had far more value *then* than three thousand dollars have *now*.

^B: Whoever heard of the slaves in our southern states stealing a large amount of money? They "*know how to take care of themselves*" quite too well for that. When they steal, they are careful to do it on such a *small* scale, or in the taking of *such things* as will make detection difficult. No doubt they steal now and then a little, and a gaping marvel would it be if they did not. Why should they not follow in the footsteps of their masters and mistresses? Dull scholars indeed! if, after so many lessons from *proficients* in the art, who drive the business by *wholesale*, they should not

occasionally copy their betters, fall into the *fashion*, and try their hand in a small way, at a practice which is the *only permanent and universal* business carried on around them! Ignoble truly! never to feel the stirrings of high impulse, prompting to imitate the eminent pattern set before them in the daily vocation of "Honorable" and "Excellences," and to emulate the illustrious examples of Doctors of Divinity, and *Right and Very Reverends*! Hear President Jefferson's testimony. In his Notes on Virginia, pp. 207-8, speaking of slaves, he says, "That disposition to theft with which they have been branded, must be ascribed to their *situation*, and not to any special depravity of the moral sense. It is a problem which I give the master to solve, whether the religious precepts against the violation of property were not framed for HIM as well as for his slave—and whether the slave may not as justifiably take a *little* from one who has taken ALL from him, as he may *slay* one who would slay him?"

IV. Heirship.—Servants frequently inherited their master's property; especially if he had no sons, or if they had dishonored the family. Eliezer, the servant of Abraham; Ziba, the servant of Mephibosheth, Jarha the servant of Sheshan, and the *husbandmen* who said of their master's son, "this is the HEIR, let us kill him, and the INHERITANCE WILL BE OURS," are illustrations; also Prov. xvii. 2—"A wise servant shall have rule over a son that causeth shame, and SHALL HAVE PART OF THE INHERITANCE AMONG THE BRETHREN." This passage gives servants precedence as heirs, even over the wives and daughters of their masters. Did masters hold by force, and plunder of earnings, a class of persons, from which, in frequent contingencies, they selected both heirs for their property, and husbands for their daughters?

V. ALL were required to present offerings and sacrifices. Deut. xvi. 15, 17, 2 Chron. xv. 9-11. Numb. ix. 13. Servants must have had permanently, the means of *acquiring* property to meet these expenditures.

VI. Those Hebrew servants who went out at the seventh year, were provided by law with a large stock of provisions and cattle. Deut. xv. 11-14. "Thou shalt furnish him liberally out of thy flock, and out of thy flour, and out of thy wine press, of that wherewith the Lord thy God hath blessed thee, thou shalt give him A." If it be said that the servants from the Strangers did

not receive a like bountiful supply, we answer, neither did the most honorable class of *Israelitish* servants, the free-holders; and for the same reason, *they did not go out in the seventh year*, but continued until the jubilee. If the fact that the Gentile servants did not receive such a *gratuity* proves that they were robbed of their *earnings*, it proves that the most valued class of *Hebrew* servants were robbed of theirs also; a conclusion too stubborn for even pro-slavery masticators, however unscrupulous.

[A](#): The comment of Maimonides on this passage is as follows—"Thou shalt furnish him liberally," &c. "That is to say, '*Loading, ye shall load him,*' likewise every one of his family, with as much as he can take with him—abundant benefits. And if it be avariciously asked, "How much must I give him?" I say unto you, *not less than thirty shekels*, which is the valuation of a servant, as declared in Ex. xxi. 32."—Maimonides, Hilcoth Obedim, Chap. ii. Sec. 3

VII. The servants were BOUGHT. In other words, they received compensation in advance. Having shown, under a previous head, that servants *sold themselves*, and of course received the compensation for themselves, except in cases where parents hired out the time of their children till they became of age^{[B](#)}, a mere reference to the fact is all that is required for the purposes of this argument.

[B](#): Among the Israelites, girls became of age at twelve, and boys at thirteen years.

VIII. We find masters at one time having a large number of servants, and afterwards none, without any intimation that they were sold. The wages of servants would enable them to set up in business for themselves. Jacob, after being Laban's servant for twenty-one years, became thus an independent herdsman, and was the master of many servants. Gen. xxx. 43, xxxii. 15. But all these servants had left him before he went down into Egypt, having doubtless acquired enough to commence business for themselves. Gen. xlv. 10, 11; xlvi. 1-7, 32.

IX. God's testimony to the character of Abraham. Gen. xviii. 19. "For I know him that he will command his children and his household after him, and they shall keep, THE WAY OF THE LORD TO DO JUSTICE AND

JUDGEMENT." God here testifies that Abraham taught his servants "the way of the Lord." What was the "way of the Lord" respecting the payment of wages where service was rendered? "Wo unto him that useth his neighbor's service WITHOUT WAGES!" Jer. xxii. 13. "Masters, give unto your servants that which is JUST AND EQUAL." Col. iv. 1. "Render unto all their DUES." Rom. xiii. 7. "The laborer is WORTHY OF HIS HIRE." Luke x. 7. How did Abraham teach his servants to "*do justice*" to others? By doing injustice to them? Did he exhort them to "render to all their dues" by keeping back *their own*? Did he teach them that "the laborer was worthy of his hire" by robbing them of *theirs*? Did he beget in them a reverence for honesty by pilfering all their time and labor? Did he teach them "not to defraud" others "in any matter" by denying them "what was just and equal?" If each of Abraham's pupils under such a catechism did not become a very *Aristides* in justice, then illustrious examples, patriarchal dignity, and *practical* lessons, can make but slow headway against human perverseness!

X. *Specific precepts of the Mosaic law enforcing general principles.* Out of many, we select the following: (1.) "Thou shalt not muzzle the ox that treadeth out the corn," or literally, while he thresheth. Deut. xxv. 4. Here is a general principle applied to a familiar case. The ox representing all domestic animals. Isa. xxx. 24. A *particular* kind of service, *all* kinds; and a law requiring an abundant provision for the wants of an animal ministering to man in a *certain* way,—a general principle of treatment covering all times, modes, and instrumentalities of service. The object of the law was; not merely to enjoin tenderness towards brutes, but to inculcate the duty of rewarding those who serve us; and if such care be enjoined, by God, both for the ample sustenance and present enjoyment of *a brute*, what would be a meet return for the services of *man*?—MAN with his varied wants, exalted nature and immortal destiny! Paul says expressly, that this principle lies at the bottom of the statute. 1 Cor. ix. 9, 10, "For it is written in the law of Moses, Thou shalt not muzzle the mouth of the ox that treadeth out the corn. Doth God take care for oxen? Or saith he it altogether for OUR SAKES? that he that ploweth should plow in HOPE, and that he that thresheth in hope should be PARTAKER OF HIS HOPE," (2.) "If thy brother be waxen poor, and fallen in decay with thee, then thou shalt relieve him, YEA, THOUGH HE BE A STRANGER or a SOJOURNER that he may live with thee. Take thou no usury of him, or increase, but fear thy

God. Thou shalt not give him thy money upon usury, nor lend him thy victuals for increase." Lev. xxv. 35-37. Now, we ask, by what process of pro-slavery legerdemain, this regulation can be made to harmonize with the doctrine of WORK WITHOUT PAY? Did God declare the poor stranger entitled to RELIEF, and in the same breath, authorize them to "use his services without wages;" force him to work and ROB HIM OF HIS EARNINGS?

V.—WERE MASTERS THE PROPRIETORS OF SERVANTS AS LEGAL PROPERTY?

The discussion of this topic has already been somewhat anticipated, but a variety of additional considerations remain to be noticed.

1. Servants were not subjected to the uses nor liable to the contingencies of property. (1.) They were never taken in payment for their masters' debts, though children were sometimes taken (without legal authority) for the debts of a father. 2 Kings iv. 1; Job xxiv. 9; Isa. l., 1; Matt. xviii. 25. Creditors took from debtors property of all kinds, to satisfy their demands. Job xxiv. 3, cattle are taken; Prov. xxii. 27, household furniture; Lev. xxv. 25-28, the productions of the soil; Lev. xxv. 27-30, houses; Ex. xxii. 26-29, Deut. xxiv. 10-13, Matt. v. 40, clothing; but *servants* were taken in *no instance*. (2.) Servants were never given as pledges. Property of all sorts was given in pledge. We find household furniture, clothing, cattle, money, signets, and personal ornaments, with divers other articles of property, used as pledges for value received; but no servants. (3.) All lost PROPERTY was to be restored. Oxen, asses, sheep, raiment, and "whatsoever lost things," are specified—servants *not*. Deut. xxii. 13. Besides, the Israelites were forbidden to return the runaway servant. Deut. xxiii. 15. (4.) The Israelites never gave away their servants as presents. They made costly presents, of great variety. Lands, houses, all kinds of animals, merchandise, family utensils, precious metals, grain, armor, &c. are among their recorded *gifts*. Giving presents to superiors and persons of rank, was a standing usage. 1 Sam. x. 27; 1 Sam. xvi. 20; 2 Chron. xvii. 5. Abraham to Abimelech, Gen. xxi. 27; Jacob to the viceroy of Egypt, Gen. xliii. 11; Joseph to his brethren and father, Gen. xlv. 22, 23; Benhadad to Elisha, 2 Kings viii. 8, 9; Ahaz to Tiglath Pilezer, 2 Kings vi. 8; Solomon to the Queen of Sheba, 1 Kings x.

13; Jeroboam to Ahijah, 1 Kings xiv. 3; Asa to Benhadad, 1 Kings xv. 18, 19. But no servants were given as presents—though it was a prevailing fashion in the surrounding nations. Gen. xii. 16; Gen. xx. 14. It may be objected that Laban GAVE handmaids to his daughters, Jacob's wives. Without enlarging on the nature of the polygamy then prevalent suffice it to say that the handmaids of wives were regarded as wives, though of inferior dignity and authority. That Jacob so regarded his handmaids, is proved by his curse upon Reuben, Gen. xlix. 4, and Chron. v. 1; also by the equality of their children with those of Rachel and Leah. But had it been otherwise—had Laban given them as *articles of property*, then, indeed, the example of this "good old patriarch and slaveholder," Saint Laban, would have been a forecloser to all argument. Ah! we remember his jealousy for *religion*—his holy indignation when he found that his "GODS" were stolen! How he mustered his clan, and plunged over the desert in hot pursuit, seven days, by forced marches; how he ransacked a whole caravan, sifting the contents of every tent, little heeding such small matters as domestic privacy, or female seclusion, for lo! the zeal of his "IMAGES" had eaten him up! No wonder that slavery, in its Bible-navigation, drifting dismantled before the free gusts, should scud under the lee of such a pious worthy to haul up and refit: invoking his protection, and the benediction of his "GODS!" "Again, it may be objected that, servants were enumerated in inventories of property. If that proves *servants* property, it proves *wives* property. "Thou shalt not covet thy neighbor's house, thou shalt not covet thy neighbor's WIFE, nor his man-servant, nor his maid-servant, nor his ox, nor his ass, nor any thing that is thy neighbor's." Ex. xx. 17. In inventories of *mere property* if servants are included, it is in such a way, as to show that they are not regarded as *property*. See Eccl. ii. 7, 8. But when the design is to show not merely the wealth, but the *greatness* of any personage, servants are spoken of, as well as property. In a word, if *riches* alone are spoken of, no mention is made of servants; if *greatness*, servants and property. Gen. xiii. 2. "And Abraham was very rich in cattle, in silver and in gold." So in the fifth verse, "And Lot also had flocks, and herds, and tents." In the seventh verse servants are mentioned, "And there was a strife between the HERDMEN of Abraham's cattle and the HERDMEN of Lot's cattle." See also Josh. xxii. 8; Gen. xxxiv. 23; Job xlii. 12; 2 Chron. xxi. 3; xxxii. 27-29; Job i. 3-5; Deut. viii. 12-17; Gen. xxiv. 35, xxvi. 13, xxx. 43. Jacobs's wives say to him, "All the *riches* which thou hast taken from our father that is ours and our children's."

Then follows an inventory of property. "All his cattle," "all his goods," "the cattle of his getting." He had a large number of servants at the time but they are not included with his property. Comp. Gen. xxx. 43, with Gen. xxxi. 16-18. When he sent messengers to Esau, wishing to impress him with an idea of his state and sway, he bade them tell him not only of his RICHES, but of his GREATNESS; that Jacob had "oxen, and asses, and flocks, and men-servants, and maid-servants." Gen. xxxii. 4, 5. Yet in the present which he sent, there were no servants; though he seems to have sought as much variety as possible. Gen. xxxii. 14, 15; see also Gen. xxxvi. 6, 7; Gen. xxxiv. 23. As flocks and herds were the staples of wealth, a large number of servants presupposed large possessions of cattle, which would require many herdsmen. When servants are spoken of in connection with *mere property*, the terms used to express the latter do not include the former. The Hebrew word *Miknē*, is an illustration. It is derived from *Kānā*, to procure, to buy, and its meaning is, *a possession, wealth, riches*. It occurs more than forty times in the Old Testament, and is applied always to *mere property*, generally to domestic animals, but never to servants. In some instances, servants are mentioned in distinction from the *Miknē*. And Abraham took Sarah his wife, and Lot his brother's son, and all their SUBSTANCE that they had gathered; and the souls that they had gotten in Haran, and they went forth to go into the land of Canaan."—Gen. xii. 5. Many will have it, that these *souls* were a part of Abraham's *substance* (notwithstanding the pains here taken to separate them from it)—that they were slaves taken with him in his migration as a part of his family effects. Who but slaveholders, either actually or in heart, would torture into the principle and practice of slavery, such a harmless phrase as "*the souls that they had gotten?*" Until the slave trade breathed its haze upon the vision of the church, and smote her with palsy and decay, commentators saw no slavery in, "The souls that they had gotten." In the Targum of Onkelos^A it is rendered, "The souls whom they had brought to obey the law in Haran." In the Targum of Jonathan, "The souls whom they had made proselytes in Haran." In the Targum of Jerusalem, "The souls proselyted in Haran." Jarchi, the prince of Jewish commentators, "The souls whom they had brought under the Divine wings." Jerome, one of the most learned of the Christian fathers, "The persons whom they had proselyted." The Persian version, the Vulgate, the Syriac, the Arabic, and the Samaritan all render it, "All the wealth which they had gathered, and the souls which they had made in Haran."

Menochius, a commentator who wrote before our present translation of the Bible, renders it, "Quas de idolatraria converterant." "Those whom they had converted from idolatry."—Paulus Fagius^B. "Quas instituerant in religione." "Those whom they had established in religion." Luke Francke, a German commentator who lived two centuries ago. "Quas legi subjicerant"—"Those whom they had brought to obey the law."

^A: The Targums are Chaldee paraphrases of parts of the Old Testament. The Targum of Onkelas is, for the most part, a very accurate and faithful translation of the original, and was probably made at about the commencement of the Christian era. The Targum of Jonathan Ben Uzziel, bears about the same date. The Targum of Jerusalem was probably about five hundred years later. The Israelites, during their captivity in Babylon, lost, as a body, their own language. These translations into the Chaldee, the language which they acquired in Babylon, were thus called for by the necessity of the case.

^B: This eminent Hebrew scholar was invited to England to superintend the translation of the Bible into English, under the patronage of Henry the Eighth. He had hardly commenced the work when he died. This was nearly a century before the date of our present translation.

II. The condition and treatment of servants make the doctrine that they were mere COMMODITIES, an absurdity. St. Paul's testimony in Gal. iv. 1, shows the condition of servants: "Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all." That Abraham's servants were voluntary, that their interests were identified with those of their master's family, and that the utmost confidence was reposed in them, is shown in their being armed.—Gen. xiv. 14, 15. When Abraham's servant went to Padanaram, the young Princess Rebecca did not disdain to say to him, "Drink, MY LORD," as "she hasted and let down her pitcher upon her hand, and gave him drink." Laban, the brother of Rebecca, "ungirded his camels, and brought him water to wash his feet and the men's feet that were with him!" In 1 Sam. ix. is an account of a festival in the city of Zuph, at which Samuel presided. None but those bidden, sat down at the feast, and only "about thirty persons" were invited. Quite a select party!—the elite of the city. Saul and his servant had just

arrived at Zuph, and *both* of them, at Samuel's solicitation, accompany him as invited guests. "And Samuel took Saul and his SERVANT, and brought THEM into the PARLOR(!) and made THEM sit in the CHIEFEST SEATS among those that were bidden." A *servant* invited by the chief judge, ruler, and prophet in Israel, to dine publicly with a select party, in company with his master, who was at the same time anointed King of Israel! and this servant introduced by Samuel into the PARLOR, and assigned, with his master, to the *chiefest seat* at the table! This was "*one* of the servants" of Kish, Saul's father; not the steward or the chief of them—not at all a *picked* man, but "*one* of the servants;" *any* one that could be most easily spared, as no endowments specially rare would be likely to find scope in looking after asses. Again: we find Elah, the King of Israel, at a festive entertainment, in the house of Arza, his steward, or head servant, with whom he seems to have been on terms of familiarity.—1 Kings xvi. 8, 9. See also the intercourse between Gideon and his servant.—Judg. vii. 10, 11. Jonathan and his servant.—1 Sam. xiv. 1-14. Elisha and his servant.—2 Kings iv. v. vi.

III. The case of the Gibeonites. The condition of the inhabitants of Gibeon, Chephirah, Beeroth, and Kirjathjearim, under the Hebrew commonwealth, is quoted in triumph by the advocates of slavery; and truly they are right welcome to all the crumbs that can be gleaned from it. Milton's devils made desperate snatches at fruit that turned to ashes on their lips. The spirit of slavery raves under tormenting gnawings, and casts about in blind phrenzy for something to ease, or even to *mock* them. But for this, it would never have clutched at the Gibeonites, for even the incantations of the demon cauldron, could not extract from their case enough to tantalize starvation's self. But to the question. What was the condition of the Gibeonites under the Israelites? (1.) *It was voluntary*. Their own proposition to Joshua was to become servants. Josh. ix. 8, 11. It was accepted, but the kind of service which they should perform, was not specified until their gross imposition came to light; they were then assigned to menial offices in the Tabernacle. (2.) *They were not domestic servants in the families of the Israelites*. They still resided in their own cities, cultivated their own fields, tended their flocks and herds, and exercised the functions of a *distinct*, though not independent community. They were subject to the Jewish nation as *tributaries*. So far from being distributed among the Israelites, and their

internal organization as a distinct people abolished, they remained a separate, and, in some respects, an independent community for many centuries. When attacked by the Amorites, they applied to the Israelites as confederates for aid—it was rendered, their enemies routed, and themselves left unmolested in their cities. Josh. x. 6-18. Long afterwards, Saul slew some of them, and God sent upon Israel a three years' famine for it. David inquired of the Gibeonites, "What shall I do for you, and wherewith shall I make the atonement?" At their demand, he delivered up to them, seven of Saul's descendants. 2 Sam. xxi. 1-9. The whole transaction was a formal recognition of the Gibeonites as a distinct people. There is no intimation that they served families, or individuals of the Israelites, but only the "house of God," or the Tabernacle. This was established first at Gilgal, a day's journey from their cities; and then at Shiloh, nearly two day's journey from them; where it continued about 350 years. During this period, the Gibeonites inhabited their ancient cities and territory. Only a few, comparatively, could have been absent at any one time in attendance on the Tabernacle. Wherever allusion is made to them in the history, the main body are spoken of as *at home*. It is preposterous to suppose that all the inhabitants of these four cities could find employment at the Tabernacle. One of them "was a great city, as one of the royal cities;" so large, that a confederacy of five kings, apparently the most powerful in the land, was deemed necessary for its destruction. It is probable that the men were divided into classes, ministering in rotation—each class a few days or weeks at a time. This service was their *national tribute* to the Israelites, for the privilege of residence and protection under their government. No service seems to have been required of the *females*. As these Gibeonites were Canaanites, and as they had greatly exasperated the Israelites by impudent imposition, and lying, we might assuredly expect that they would reduce *them* to the condition of chattels if there was *any* case in which God permitted them to do so.

IV. Throughout the Mosaic system, God warns the Israelites against holding their servants in such a condition as they were held in by the Egyptians. How often are they pointed back to the grindings of their prison-house! What motives to the exercise of justice and kindness towards their servants, are held out to their fears in threatened judgments; to their hopes in promised good; and to all within them that could feel; by those oft repeated

words of tenderness and terror! "For ye were bondmen in the land of Egypt"—waking anew the memory of tears and anguish, and of the wrath that avenged them.

God's denunciations against the bondage of Egypt make it incumbent on us to ascertain, of what rights the Israelites were plundered, and what they retained.

EGYPTIAN BONDAGE ANALYZED. (1.) The Israelites were not dispersed among the families of Egypt^A, but formed a separate community. Gen. xlvi. 35. Ex. viii. 22, 24; ix. 26; x. 23; xi. 7; ii. 9; xvi. 22; xvii. 5. (2.) They had the exclusive possession of the land of Goshen^B. Gen. xlv. 18; xlvii. 6, 11, 27. Ex. xii. 4, 19, 22, 23, 27. (3.) They lived in permanent dwellings. These were *houses*, not *tents*. In Ex. xii. 6, 22, the two side *posts*, and the upper door *posts*, and the lintel of the houses are mentioned. Each family seems to have occupied a house *by itself*,—Acts vii. 20. Ex. xii. 4— and judging from the regulation about the eating of the Passover, they could hardly have been small ones, Ex. xii. 4, probably contained separate apartments, and places for concealment. Ex. ii. 2, 3; Acts vii. 20. They appear to have been well apparelled. Ex. xii. 11. To have their own burial grounds. Ex. xiii. 19, and xiv. 11. (4.) They owned "a mixed multitude of flocks and herds," and "very much cattle." Ex. xii. 32, 37, 38. (5.) They had their own form of government, and preserved their tribe and family divisions, and their internal organization throughout, though still a province of Egypt, and *tributary* to it. Ex. ii. 1; xii. 19, 21; vi. 14, 25; v. 19; iii. 16, 18. (6.) They seem to have had in a considerable measure, the disposal of their own time,—Ex. xxiii. 4; iii. 16, 18, xii. 6; ii. 9; and iv. 27, 29-31. And to have practiced the fine arts. Ex. xxxii. 4; xxxv. 22-35. (7.) They were all armed. Ex. xxxii. 27. (8.) They held their possessions independently, and the Egyptians seem to have regarded them as inviolable. No intimation is given that the Egyptians dispossessed them of their habitations, or took away their flocks, or herds, or crops, or implements of agriculture, or any article of property. (9.) All the females seem to have known something of domestic refinements; they were familiar with instruments of music, and skilled in the working of fine fabrics. Ex. xv. 20; xxxv. 25, 26. (10.) Service seems to have been exacted from none but adult males. Nothing is said from which the bond service of females could be inferred; the hiding of

Moses three months by his mother, and the payment of wages to her by Pharaoh's daughter, go against such a supposition. Ex. ii. 29. (11.) So far from being fed upon a given allowance, their food was abundant, and of great variety. "They sat by the flesh-pots," and "did eat bread to the full." Ex. xvi. 3; xxiv. 1; xvii. 5; iv. 29; vi. 14; "they did eat fish freely, and cucumbers, and melons, and leeks, and onions, and garlic." Num. xi. 4, 5; x. 18; xx. 5. (12.) The great body of the people were not in the service of the Egyptians. (a.) The extent and variety of their own possessions, together with such a cultivation of their crops as would provide them with bread, and such care of their immense flocks and herds, as would secure their profitable increase, must have furnished constant employment for the main body of the nation. (b.) During the plague of darkness, God informs us that "ALL the children of Israel had light in their dwellings." We infer that they were *there* to enjoy it. (c.) It seems improbable that the making of brick, the only service named during the latter part of their sojourn in Egypt, could have furnished permanent employment for the bulk of the nation. See also Ex. iv. 29-31. Besides, when Eastern nations employed tributaries, it was as now, in the use of the levy, requiring them to furnish a given quota, drafted off periodically, so that comparatively but a small portion of the nation would be absent *at any one time*. Probably one-fifth part of the proceeds of their labor was required of the Israelites in common with the Egyptians. Gen. xlvii. 24, 26. Instead of taking it from their *crops*, (Goshen being better for *pasturage*) they exacted it of them in brick making; and it is quite probable that labor was exacted only from the *poorer* Israelites, the wealthy being able to pay their tribute in money. Ex. iv. 27-31. Contrast this bondage of Egypt with American slavery. Have our slaves "very much cattle," and "a mixed multitude of flocks and herds?" Do they live in commodious houses of their own, "sit by the flesh-pots," "eat fish freely," and "eat bread to the full?" Do they live in a separate community, in their distinct tribes, under their own rulers, in the exclusive occupation of an extensive tract of country for the culture of their crops, and for rearing immense herds of their own cattle—and all these held inviolable by their masters? Are our female slaves free from exactions of labor and liabilities of outrage? or when employed, are they paid wages, as was the Israelitish woman by the king's daughter? Have they the disposal of their own time and the means for cultivating social refinements, for practising the fine arts, and for personal improvement? THE ISRAELITES UNDER THE

BONDAGE OF EGYPT, ENJOYED ALL THESE RIGHTS AND PRIVILEGES. True, "all the service wherein they made them serve was with rigor." But what was this when compared with the incessant toil of American slaves, the robbery of all their time and earnings, and even the power to "own any thing, or acquire any thing?" a "quart of corn a-day," the legal allowance of food^C! their *only* clothing for one half the year, "*one* shirt and *one* pair of pantaloons^D!" *two hours and a half only*, for rest and refreshment in the twenty-four^E!—their dwellings, *hovels*, unfit for human residence, with but one apartment, where both sexes and all ages herd promiscuously at night, like the beasts of the field. Add to this, the ignorance, and degradation; the daily sundering of kindred, the revelries of lust, the lacerations and baptisms of blood, sanctioned by law, and patronized by public sentiment. What was the bondage of Egypt when compared with this? And yet for her oppression of the poor, God smote her with plagues, and trampled her as the mire, till she passed away in his wrath, and the place that knew her in her pride, knew her no more. Ah! "I have seen the afflictions of my people, and I have heard their groanings, and am come down to deliver them." HE DID COME, and Egypt sank a ruinous heap, and her blood closed over her. If such was God's retribution for the oppression of heathen Egypt, of how much sorer punishment shall a Christian people be thought worthy, who cloak with religion a system, in comparison with which the bondage of Egypt dwindles to nothing? Let those believe who can that God commissioned his people to rob others of *all* their rights, while he denounced against them wrath to the uttermost, if they practised the *far lighter* oppression of Egypt—which robbed it's victims of only the least and cheapest of their rights, and left the females unplundered even of these. What! Is God divided against himself? When He had just turned Egypt into a funeral pile; while his curse yet blazed upon her unburied dead, and his bolts still hissed amidst her slaughter, and the smoke of her torment went upwards because she had "ROBBED THE POOR," did He license the victims of robbery to rob the poor of ALL? As *Lawgiver* did he *create* a system tenfold more grinding than that for which he had just hurled Pharaoh headlong, and overwhelmed his princes, and his hosts, till "hell was moved to meet them at their coming?"

^A: The Egyptians evidently had *domestic* servants living in their families; these may have been slaves; allusion is made to them in Ex. ix. 14, 20, 21.

[B](#): The land of Goshen was a large tract of country, east of the Pelusian arm of the Nile, and between it and the head of the Red Sea, and the lower border of Palestine. The probable centre of that portion, occupied by the Israelites, could hardly have been less than sixty miles from the city. The border of Goshen nearest to Egypt must have been many miles distant. See "Exodus of the Israelites out of Egypt," an able article by Professor Robinson, in the Biblical Repository for October, 1832.

[C](#): Law of N.C. Haywood's Manual 524-5.

[D](#): Law of La. Martin's Digest, 610.

[E](#): Law of La. Act of July 7, 1806. Martin's Digest, 610-12.

We now proceed to examine various objections which will doubtless be set in array against all the foregoing conclusions.

OBJECTIONS CONSIDERED.

The advocates of slavery find themselves at their wits end in pressing the Bible into their service. Every movement shows them hard-pushed. Their ever-varying shifts, their forced constructions, and blind guesswork, proclaim both their *cause* desperate, and themselves. The Bible defences thrown around slavery by professed ministers of the Gospel, do so torture common sense, Scripture, and historical facts it were hard to tell whether absurdity, fatuity, ignorance, or blasphemy, predominates in the compound; each strives so lustily for the mastery it may be set down a drawn battle. How often has it been bruited that the color of the negro is the *Cain-mark*, propagated downward. Cain's posterity started an opposition to the ark, forsooth, and rode out the flood with flying streamers! Why should not a miracle be wrought to point such an argument, and fill out for slaveholders a Divine title-deed, vindicating the ways of God to man?

OBJECTION 1. "Cursed be Canaan, a servant of servants shall he be unto his brethren." Gen. ix. 25.

This prophecy of Noah is the *vade mecum* of slaveholders, and they never venture abroad without it; it is a pocket-piece for sudden occasion, a

keepsake to dote over, a charm to spell-bind opposition, and a magnet to draw around their standard "whatsoever worketh abomination or maketh a lie." But "cursed be Canaan" is a poor drug to ease a throbbing conscience—a mocking lullaby, to unquiet tossings, and vainly crying "Peace be still," where God wakes war, and breaks his thunders. Those who justify negro slavery by the curse of Canaan, *assume* all the points in debate. (1.) That *slavery* was prophesied rather than mere *service* to others, and *individual* bondage rather than *national* subjection and tribute. (2.) That the *prediction* of crime *justifies* it; at least absolving those whose crimes fulfill it, if not transforming the crimes into *virtues*. How piously the Pharoahs might have quoted the prophecy "*Thy seed shall be a stranger in a land that is not theirs, and they shall afflict there four hundred years.*" And then, what *saints* were those that crucified the Lord of glory! (3.) That the Africans are descended from Canaan. Whereas Africa was peopled from Egypt and Ethiopia, and they were settled by Mizraim and Cush. For the location and boundaries of Canaan's posterity, see Gen. x. 15-19. So a prophecy of evil to one people, is quoted to justify its infliction upon another. Perhaps it may be argued that Canaan includes all Ham's posterity. If so, the prophecy is yet unfulfilled. The other sons of Ham settled Egypt and Assyria, and, conjointly with Shem, Persia, and afterward, to some extent, the Grecian and Roman empires. The history of these nations gives no verification of the prophecy. Whereas, the history of Canaan's descendants for more than three thousand years, records its fulfilment. First, they were put to tribute by the Israelites; then by the Medes and Persians; then by the Macedonians, Grecians and Romans, successively; and finally, were subjected by the Ottoman dynasty, where they yet remain. Thus Canaan has been for ages the servant mainly of Shem and Japhet, and secondarily of the other sons of Ham. It may still be objected, that though Canaan alone is *named* in the curse, yet the 23d and 24th verses show the posterity of Ham in general to be meant. "And Ham, the father of Canaan, saw the nakedness of his father, and told his two brethren without." "And Noah awoke from his wine, and knew what his YOUNGER son had done unto him, and said," &c. It is argued that this "*younger* son" can not be *Canaan*, as he was the *grandson* of Noah, and therefore it must be *Ham*. We answer, whoever that "*younger son*" was, *Canaan* alone was named in the curse. Besides, the Hebrew word *Ben*, signifies son, grandson, or *any* of *one* the posterity of an individual. "*Know ye Laban the SON of Nahor?*" Laban was the *grandson* of Nahor.

Gen. xxix. 5. "*Mephibosheth the SON of Saul.*" 2 Sam. xix. 24. Mephibosheth was the *grandson* of Saul. 2 Sam. ix. 6. "*There is a SON born to Naomi.*" Ruth iv. 17. This was the son of Ruth, the daughter-in-law of Naomi. "*Let seven men of his (Saul's) SONS be delivered unto us.*" 2 Sam. xxi. 6. Seven of Saul's *grandsons* were delivered up. "*Laban rose up and kissed his SONS.*" Gen. xxi. 55. These were his *grandsons*. "*The driving of Jehu the SON of Nimshi.*" 2 Kings ix. 20. Jehu was the *grandson* of Nimshi. Shall we forbid the inspired writer to use the *same* word when speaking of Noah's grandson? Further; Ham was not the "*younger*" son. The order of enumeration makes him the *second* son. If it be said that Bible usage varies, the order of birth not always being observed in enumerations, the reply is, that, enumeration in that order is the *rule*, in any other order the *exception*. Besides, if a younger member of a family, takes precedence of older ones in the family record, it is a mark of pre-eminence, either in endowments, or providential instrumentality. Abraham, though sixty years younger than his eldest brother, stands first in the family genealogy. Nothing in Ham's history shows him pre-eminent; besides, the Hebrew word *Hākkātān* rendered "*the younger*," means the *little, small*. The same word is used in Isa. xl. 22. "*A LITTLE ONE shall become a thousand.*" Isa. xxii. 24. "*All vessels of SMALL quantity.*" Ps. cxv. 13. "*He will bless them that fear the Lord both SMALL and great.*" Ex. xviii. 22. "*But every SMALL matter they shall judge.*" It would be a literal rendering of Gen. ix. 24, if it were translated thus. "When Noah knew what his little son^A, or grandson (*Bēno Hākkātān*) had done unto him, he said cursed be Canaan," &c. Further, even if the Africans were the descendants of Canaan, the assumption that their enslavement fulfils this prophecy, lacks even plausibility, for, only a *fraction* of the Africans have at any time been the slaves of other nations. If the objector say in reply, that a large majority of the Africans have always been slaves *at home*, we answer: *It is false in point of fact*, though zealously bruited often to serve a turn; and *if it were true*, how does it help the argument? The prophecy was, "Cursed be Canaan, a servant of servants shall he be *unto his BRETHREN*," not *unto himself*!

^A: The French follows the same analogy; *grandson* being *petit fils* (little son.)

OBJECTION II.—"If a man smite his servant or his maid with a rod, and he die under his hand, he shall surely be punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money." Ex. xxi. 20, 21. What was the design of this regulation? Was it to grant masters an indulgence to beat servants with impunity, and an assurance, that if they beat them to death, the offense shall not be *capital*? This is substantially what commentators tell us. What Deity do such men worship? Some blood-gorged Moloch, enthroned on human hecatombs, and snuffing carnage for incense? Did He who thundered from Sinai's flames, "THOU SHALT NOT KILL," offer a bounty on *murder*? Whoever analyzes the Mosaic system, will find a moot court in session, trying law points—settling definitions, or laying down rules of evidence, in almost every chapter. Num. xxxv. 10-22; Deut. xi. 11, and xix. 4-6; Lev. xxiv. 19-22; Ex. xxi. 18, 19, are a few, out of many cases stated, with tests furnished the judges by which to detect *the intent*, in actions brought before them. Their ignorance of judicial proceedings, laws of evidence, &c., made such instructions necessary. The detail gone into, in the verses quoted, is manifestly to enable them to get at the *motive* and find out whether the master *designed* to kill. (1.) "If a man smite his servant with a *rod*."—The instrument used, gives a clue to the *intent*. See Num. xxxv. 16, 18. A *rod*, not an axe, nor a sword, nor a bludgeon, nor any other death-weapon—hence, from the *kind* of instrument, no design to *kill* would be inferred; for *intent* to kill would hardly have taken a *rod* for its weapon. But if the servant die *under his hand*, then the unfitness of the instrument, is point blank against him; for, to strike him with a *rod* until he *dies*, argues a great many blows and great violence, and this kept up to the death-gasp, showed an *intent to kill*. Hence "He shall surely be punished." But if he continued *a day or two*, the *length of time that he lived*, together with the *kind* of instrument used, and the master's pecuniary interest in his *life*, ("he is his *money*,") all made a strong case of circumstantial evidence, showing that the master did not design to kill. Further, the word *nākām*, here rendered *punished*, is *not so rendered in another instance*. Yet it occurs thirty-five times in the Old Testament, and in almost every place is translated "*avenge*," in a few, "*to take vengeance*," or "*to revenge*," and in this instance ALONE, "*punish*." As it stands in our translation, the pronoun preceding it, refers to the *master*, whereas it should refer to the *crime*, and the word rendered *punished*, should have been rendered *avenged*. The meaning is this: If a man smite his servant or his

maid with a rod, and he die under his hand, IT (the death) shall surely be avenged, or literally, *by avenging it shall be avenged*; that is, the *death* of the servant shall be *avenged* by the *death* of the master. So in the next verse, "If he continue a day or two," his death is not to be avenged by the *death* of the *master*, as in that case the crime was to be adjudged *manslaughter*, and not *murder*. In the following verse, another case of personal injury is stated, for which the injurer is to pay a *sum of money*; and yet our translators employ the same phraseology in both places. One, an instance of deliberate, wanton, killing by piecemeal. The other, an accidental, and comparatively slight injury—of the inflicter, in both cases, they say the same thing! "He shall surely be punished." Now, just the discrimination to be looked for where God legislates, is marked in the original. In the case of the servant wilfully murdered, He says, "It (the death) shall surely be *avenged*," that is, the life of the wrong doer shall expiate the crime. The same word is used in the Old Testament, when the greatest wrongs are redressed, by devoting the perpetrators to *destruction*. In the case of the unintentional injury, in the following verse, God says, "He shall surely be *fin*ed," (*Aunash*.) "He shall *pay* as the judges determine." The simple meaning of the word *ānāsh*, is to lay a fine. It is used in Deut. xxii. 19: "They shall amerce him in one hundred shekels," and in 2 Chron. xxxvi. 3: "He condemned (*mulcted*) the land in a hundred talents of gold." That *avenging* the death of the servant, was neither imprisonment, nor stripes, nor a fine, but that it was *taking the master's life* we infer, (1.) From the *use* of the word *nākām*. See Gen. iv. 24; Josh. x. 13; Judg. xiv. 7; xvi. 28; I Sam. xiv. 24; xviii. 25; xxv. 31; 2 Sam. iv. 8; Judg. v. 2; I Sam. xxv. 26-33. (2.) From the express statute, Lev. xxiv. 17; "He that killeth ANY man shall surely be put to death." Also Num. xxxv. 30, 31: "Whoso killeth ANY person, the murderer shall be put to death. Moreover, ye shall take NO SATISFACTION for the life of a murderer which is guilty of death, but he shall surely be put to death." (3.) The Targum of Jonathan gives the verse thus, "Death by the sword shall surely be adjudged." The Targum of Jerusalem. "Vengeance shall be taken for him to the *uttermost*." Jarchi, the same. The Samaritan version: "He shall die the death," Again the clause "for he is his money," is quoted to prove that the servant is his master's property, and therefore, if he died, the master was not to be punished. The assumption is, that the phrase, "HE IS HIS MONEY." proves not only that the servant is *worth money* to the master, but that he is an *article of property*. If the advocates of slavery insist

upon taking the principle of interpretation into the Bible, and turning it loose, let them stand and draw in self-defence. If they endorse for it at one point, they must stand sponsors all around the circle. It will be too late to cry for quarter when its stroke clears the table, and tilts them among the sweepings beneath. The Bible abounds with such expressions as the following: "This (bread) is my body;" "this (wine) is my blood;" "all they (the Israelites) are brass and tin;" "this (water) is the blood of the men who went in jeopardy of their lives;" "the Lord God is a sun and a shield;" "God is love;" "the seven good ears are seven years, and the seven good kine are seven years;" "the tree of the field is man's life;" "God is a consuming fire;" "he is his money," &c. A passion for the exact *literalities* of the Bible is so amiable, it were hard not to gratify it in this case. The words in the original are (*Kāspo-hu*), "his *silver* is he." The objector's principle of interpretation is a philosopher's stone! Its miracle touch transmutes five feet eight inches of flesh and bones into *solid silver*! Quite a *permanent* servant, if not so nimble with all—reasoning against "*forever*," is forestalled henceforth, and, Deut. xxiii. 15, utterly outwitted. The obvious meaning of the phrase, "*He is his money*," is, he is *worth money* to his master, and since, if the master had killed him, it would have taken money out of his pocket, the *pecuniary loss*, the *kind of instrument used*, and the *fact of his living some time after the injury*, (if the master *meant* to kill, he would be likely to *do* it while about it,) all together make a strong case of presumptive evidence clearing the master of *intent to kill*. But let us look at the objector's *inferences*. One is, that as the master might dispose of his *property* as he pleased, he was not to be punished, if he destroyed it. Whether the servant died under the master's hand, or after a day or two, he was *equally* his property, and the objector admits that in the *first* case the master is to be "surely punished" for destroying *his own property*! The other inference is, that since the continuance of a day or two, cleared the master of *intent to kill*, the loss of the slave would be a sufficient punishment for inflicting the injury which caused his death. This inference makes the Mosaic law false to its own principles. A *pecuniary loss* was no part of the legal claim, where a person took the *life* of another. In such case, the law spurned money, whatever the sum. God would not cheapen human life, by balancing it with such a weight. "Ye shall take NO SATISFACTION for the life of a murderer, but he shall surely be put to death." Num. xxxv. 31. Even in excusable homicide, where an axe slipped from the helve and killed a man, no sum of

money availed to release from confinement in the city of refuge, until the death of the High Priest. Numb. xxxv. 32. The doctrine that the loss of the servant would be a penalty *adequate* to the desert of the master, admits his *guilt* and his desert of *some* punishment, and it prescribes a kind of punishment, rejected by the law in all cases where man took the life of man, whether with or without the intent to kill. In short, the objector annuls an integral part of the system—makes a *new* law, and coolly metes out such penalty as he thinks fit. Divine legislation revised and improved! The master who struck out his servant's tooth, whether intentionally or not, was required to set him free. The *pecuniary loss* to the master was the same as though he had killed him. Look at the two cases. A master beats his servant so that he dies of his wounds; another accidentally strikes out his servant's tooth,—*the pecuniary loss of both cases is the same*. If the loss of the slave's services is punishment sufficient for the crime of killing him, would *God* command the *same* punishment for the *accidental* knocking out of a *tooth*? Indeed, unless the injury was done *inadvertantly*, the loss of the servant's services was only a *part* of the punishment—mere reparation to the *individual* for injury done; the *main* punishment, that strictly *judicial*, was reparation to the *community*. To set the servant free, and thus proclaim his injury, his right to redress, and the measure of it—answered not the ends of *public* justice. The law made an example of the offender. That "those that remain might hear and fear." "If a man cause a blemish in his neighbor, as he hath done, so shall it be done unto him. Breach for breach, eye for eye, tooth for tooth. Ye shall have one manner of law as well for the STRANGER as for one of your own country." Lev xxiv. 19, 20, 22. Finally, if a master smote out his servant's tooth the law smote out *his* tooth—thus redressing the *public* wrong; and it cancelled the servant's obligation to the master, thus giving some compensation for the injury done, and exempting him from perilous liabilities in future.

OBJECTION III. "Both thy bondmen and bondmaids which thou shalt have shall be of the heathen that are round about you, of them shall ye buy bondmen and bondmaids. Moreover of the children of the stranger that do sojourn among you, of them shall ye buy, and of their families that are with you, which they begat in your land, and they shall be your possessions. And ye shall take them as an inheritance of your children from you, to inherit

them for a possession; they shall be your bondmen forever." Lev, xxv. 44-46.

The *points* in these verses urged as proof, that the Mosaic system sanctioned slavery, are 1. The word "BONDMEN." 2. "BUY." 3. "INHERITANCE AND POSSESSION." and 4. "FOREVER."

The *buying* of servants was discussed, pp. 17-22, and holding them as a "possession." pp. 37-46. We will now ascertain what sanction to slavery is derivable from the terms "bondmen," "inheritance," and "forever."

1. "BONDMEN." The fact that servants from the heathen are called "*bondmen*," while others are called "*servants*," is quoted as proof that the former were slaves. As the caprices of King James' translators were not inspired, we need stand in no special awe of them. The word here rendered bondmen is uniformly rendered servants elsewhere. The Hebrew word "*ēbēdh*," the plural of which is here translated "bondmen," is in Isa. xlii. 1, applied to Christ. "Behold my *servant* (bondman, slave?) whom I have chosen." So Isa. lii. 13. "Behold my *servant* (Christ) shall deal prudently." In 1 Kings xii. 6, 7, to *King Rehoboam*. "And they spake unto him, saying if thou wilt be a *servant* unto this people, then they will be thy *servants* forever." In 2 Chron. xii. 7, 8, 9, 13, to the king and all the nation. In fine, the word is applied to *all* persons doing service for others—to magistrates, to all governmental officers, to tributaries, to all the subjects of governments, to younger sons—defining their relation to the first born, who is called *Lord* and *ruler*—to prophets, to kings, to the Messiah, and in respectful addresses not less than *fifty* times in the Old Testament.

If the Israelites not only held slaves, but multitudes of them, if Abraham had thousands and if they *abounded* under the Mosaic system, why had their language *no word* that *meant slave*? That language must be woefully poverty-stricken, which has no signs to represent the most common and familiar objects and conditions. To represent by the same word, and without figure, property, and the owner of that property, is a solecism. Ziba was an "*ēbēdh*," yet he "*owned*" (!) twenty *ēbēdhs*! In our language, we have both *servant* and *slave*. Why? Because we have both the *things* and need *signs* for them. If the tongue had a sheath, as swords have scabbards, we should have some *name* for it: but our dictionaries give us none. Why? Because

there is no such *thing*. But the objector asks, "Would not the Israelites use their word *ēbēdh* if they spoke of the slave of a heathen?" Answer. Their *national* servants or tributaries, are spoken of frequently, but domestic servants so rarely that no necessity existed, even if they were slaves, for coining a new word. Besides, the fact of their being domestics, under *heathen laws and usages* proclaimed their *liabilities*, their *locality* made a *specific* term unnecessary. But if the Israelites had not only *servants*, but a multitude of *slaves*, a *word meaning slave*, would have been indispensable for every day convenience. Further, the laws of the Mosaic system were so many sentinels on the outposts to warn off foreign practices. The border ground of Canaan, was quarantine ground, enforcing the strictest non-intercourse in usages between the without and the within.

2. "FOREVER." This is quoted to prove that servants were to serve during their life time, and their posterity from generation to generation. No such idea is contained in the passage. The word "forever," instead of defining the length of *individual* service, proclaims the permanence of the regulation laid down in the two verses preceding, namely, that their *permanent domestics* should be of the Strangers, and not of the Israelites: it declares the duration of that general provision. As if God had said, "You shall *always* get your *permanent* laborers from the nations round about you—your servants shall always be of that class of persons." As it stands in the original it is plain—"Forever of them shall ye serve yourselves." This is the literal rendering.

That "*forever*" refers to the permanent relations of a *community*, rather than to the services of *individuals*, is a fair inference from the form of the expression, "Both thy bondmen, &c., shall be of the *heathen*. Of THEM shall ye buy," &c. "THEY shall be your possession." To say nothing of the uncertainty of *those individuals* surviving those *after* whom they are to live, the language used, applies more naturally to a *body* of people, than to *individual* servants. Besides *perpetual* service cannot be argued from the term *forever*. The ninth and tenth verses of the same chapter, limit it absolutely by the jubilee. "Then thou shalt cause the trumpet of the jubilee to sound * * throughout ALL your land." "And ye shall proclaim liberty throughout all the land unto ALL the inhabitants thereof." It may be objected that "inhabitants" here means *Israelitish* inhabitants alone. The

command is, "Proclaim liberty throughout all the land unto ALL *the inhabitants thereof*." Besides, in the sixth verse, there is an enumeration of the different classes of the inhabitants, in which servants and Strangers are included; and in all the regulations of the jubilee, and the sabbatical year, the Strangers are included in the precepts, prohibitions, and promises. Again: the year of jubilee was ushered in, by the day of atonement. What did these institutions show forth? The day of atonement prefigured the atonement of Christ, and the year of jubilee, the gospel jubilee. And did they prefigure an atonement and a jubilee to Jews only? Were they types of sins remitted, and of salvation proclaimed to the nation of Israel alone? Is there no redemption for us Gentiles in these ends of the earth, and is our hope presumption and impiety? Did that old partition wall survive the shock, that made earth quake, and hid the sun, burst graves and rocks, and rent the temple veil? and did the Gospel only rear it higher to thunder direr perdition from its frowning battlements on all without? No! The God of our salvation lives "Good tidings of great joy shall be to ALL people." One shout shall swell from all the ransomed, "Thou hast redeemed us unto God by thy blood out of every kindred, and tongue, and people, and nation." To deny that the blessings of the jubilee extended to the servants from the *Gentiles*, makes Christianity *Judaism*. It not only eclipses the glory of the Gospel, but strikes out the sun. The refusal to release servants at the jubilee falsified and disannulled a grand leading type of the atonement, and was a libel on the doctrine of Christ's redemption. Finally, even if *forever* did refer to *individual* service, we have ample precedents for limiting the term by the jubilee. The same word defines the length of time which *Jewish* servants served who did not go out in the *seventh* year. And all admit that they went out at the jubilee. Ex. xxi. 2-6; Deut. xv. 12-17. The 23d verse of the same chapter is quoted to prove that "*forever*" in the 46th verse, extends beyond the jubilee. "The land shall not be sold FOREVER, for the land is mine"—since it would hardly be used in different senses in the same general connection. As *forever*, in the 46th verse, respects the *general arrangement*, and not *individual service* the objection does not touch the argument. Besides in the 46th verse, the word used, is *Olām*, meaning *throughout the period*, whatever that may be. Whereas in the 23d verse, it is *Tsēmīthuth*, meaning, a *cutting off*.

3. "INHERITANCE AND POSSESSION," "Ye shall take them as an INHERITANCE for your children after you to inherit them for a possession." This refers to the *nations*, and not to the *individual* servants, procured from these nations. We have already shown, that servants could not be held as a *property*-possession, and inheritance; that they became servants of their *own accord*, and were paid wages; that they were released by law from their regular labor nearly *half the days in each year*, and thoroughly *instructed*; that the servants were *protected* in all their personal, social and religious rights, equally with their masters &c. All remaining, after these ample reservations, would be small temptation, either to the lust of power or of lucre; a profitable "possession" and "inheritance," truly! What if our American slaves were all placed in *just such a condition* Alas, for that soft, melodious circumlocution, "Our PECULIAR species of property!" Verily, emphasis would be cadence, and euphony and irony meet together! What eager snatches at mere words, and bald technics, irrespective of connection, principles of construction, Bible usages, or limitations of meaning by other passages—and all to eke out such a sense as sanctifies existing usages, thus making God pander for lust. The words *nahal* and *nahala*, inherit and inheritance by no means necessarily signify *articles of property*. "The people answered the king and said, we have none *inheritance* in the son of Jesse." 2 Chron. x. 16. Did they moan gravely to disclaim the holding of their kin; as an article of *property*? "Children are an *heritage* (inheritance) of the Lord." Ps. cxxvii. 3. "Pardon our iniquity, and take us for thine *inheritance*." Ex. xxxiv. 9. When God pardons his enemies, and adopts them as children, does he make them *articles of property*? Are forgiveness, and chattel-making, synonymes? "Thy testimonies have I taken as a *heritage*" (inheritance.) Ps. cxix. 111. "I am their *inheritance*." Ezek. xliv. 28. "I will give thee the heathen for thine *inheritance*." Ps. ii. 8. "For the Lord will not cast off his people, neither will he forsake his *inheritance*." Ps. xciv 14. see also Deut. iv. 20; Josh. xiii. 33; Ps. lxxxii. 8; lxxviii. 62, 71; Prov. xiv. 8. The question whether the servants were a PROPERTY-"possession," has been already discussed—pp. 37-46—we need add in this place but a word, *āhuzzā* rendered "*possession*." "And Joseph placed his father and his brethren, and gave them a *possession* in the land of Egypt." Gen. xlii. 11. In what sense was Goshen the *possession* of the Israelites? Answer, in the sense of *having it to live in*. In what sense were the Israelites to *possess* these nations, and *take them* as an *inheritance*

for their children? Answer, they possessed them as a permanent source of supply for domestic or household servants. And this relation to these nations was to go down to posterity as a standing regulation, having the certainty and regularity of a descent by inheritance. The sense of the whole regulation may be given thus: "Thy permanent domestics, which thou shalt have, shall be of the nations that are round about you, of *them* shall ye get male and female domestics." "Moreover of the children of the foreigners that do sojourn among you, of *them* shall ye get, and of their families that are with you, which they begat in your land, and *they* shall be your permanent resource." "And ye shall take them as a *perpetual* provision for your children after you, to hold as a *constant source of supply*. Always of *them* shall ye serve yourselves." The design of the passage is manifest from its structure. It was to point out the *class* of persons from which they were to get their supply of servants, and the *way* in which they were to get them.

OBJECTION IV. "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a BOND-SERVANT, but as an HIRED-SERVANT, and as a sojourner shall he be with thee, and shall serve thee unto the year of jubilee." Lev. xxv. 39, 40.

As only *one* class is called "*hired*," it is inferred that servants of the *other* class were *not paid* for their labor. That God, with thundering anathemas against those who "used their neighbor's service without wages," granted a special indulgence to his chosen people to force others to work, and rob them of earnings, provided always, in selecting their victims, they spared "the gentlemen of property and standing," and pounced only upon the strangers and the common people. The inference that "*hired*" is synonymous with *paid*, and that those servants not *called* "*hired*" were not *paid* for their labor, is a mere assumption. The meaning of the English verb *to hire*, is to procure for a *temporary* use at a certain price—to engage a person to temporary service for wages. That is also the meaning of the Hebrew word "*saukar*." It is not used when the procurement of *permanent* service is spoken of. Now, we ask, would *permanent* servants, those who constituted a stationary part of the family, have been designated by the same term that marks *temporary* servants? The every-day distinction on this subject, are familiar as table-talk. In many families the domestics perform only the *regular* work. Whatever is occasional merely, as the washing of a

family, is done by persons hired expressly for the purpose. The familiar distinction between the two classes, is "servants," and "hired help," (not *paid* help.) *Both classes are paid.* One is permanent, the other occasional and temporary, and therefore in this case called "*hired*^A."

^A: To suppose a servant robbed of his earnings because he is not called a *hired* servant is profound induction! If I employ a man at twelve dollars a month to work my farm, he is my "*hired*" man, but if *I give him such a portion of the crop*, or in other words, if he works my farm "*on shares*," every farmer knows that he is no longer called my "*hired*" man. Yet he works the same farm, in the same way, at the same time, and with the same teams and tools; and does the same amount of work in the year, and perhaps earns twenty dollars a month, instead of twelve. Now as he is no longer called "*hired*," and as he still works my farm, suppose my neighbours sagely infer, that since he is not my "*hired*" laborer, I *rob* him of his earnings and with all the gravity of owls, pronounce the oracular decision, and hoot it abroad. My neighbors are deep divers!—like some theological professors, they not only go to the bottom but come up covered with the tokens.

A variety of particulars are recorded distinguishing *hired* from *bought* servants. (1.) Hired servants were paid daily at the close of their work. Lev. xix 13; Deut. xxiv. 14, 15; Job. vii. 2; Matt. xx. 8. "*Bought*" servants were paid in advance, (a reason for their being called *bought*,) and those that went out at the seventh year received a *gratuity*. Deut. xv. 12, 13. (2.) The "*hired*" were paid *in money*, the "*bought*" received their *gratuity*, at least, in grain, cattle, and the product of the vintage. Deut. xiv. 17. (3.) The "*hired*" *lived* in their own families, the "*bought*" were part of their masters' families. (4.) The "*hired*" supported their families out of their wages: the "*bought*" and their families were supported by the master *besides* their wages. The "*bought*" servants were, *as a class, superior to the hired*—were more trustworthy, had greater privileges, and occupied a higher station in society. (1.) They were intimately incorporated with the family of the masters, were guests at family festivals, and social solemnities, from which hired servants were excluded. Lev. xxii. 10; Ex. xii, 43, 45. (2.) Their interests were far more identified with those of their masters' family. They were often, actually or prospectively, heirs of their masters' estates, as in the case of

Eliezer, of Ziba, and the sons of Bilhah and Zilpah. When there were no sons, or when they were unworthy, bought servants were made heirs. Prov. xvii. 2. We find traces of this usage in the New Testament. "But when the husbandmen saw him, they reasoned among themselves, saying, this is the *heir*, come let us kill him, *that the inheritance may be ours.*" Luke xx. 14. In no instance does a *hired* servant inherit his master's estate. (3.) Marriages took place between servants and their master's daughters. Sheshan had a *servant*, an Egyptian, whose name was Jarha. And Sheshan gave his daughter to Jarha his servant to wife. 1 Chron. ii. 34, 35. There is no instance of a *hired* servant forming such an alliance. (4.) Bought servants and their descendants were treated with the same affection and respect as the other members of the family.^A The treatment of Abraham's servants, Gen. xxv.—the intercourse between Gideon and his servant, Judg. vii. 10, 11; Saul and his servant, 1 Sam. iv. 5, 22; Jonathan and his servant, 1 Sam. xiv. 1-14, and Elisha and his servant, are illustrations. No such tie seems to have existed between *hired* servants and their masters. Their untrustworthiness was proverbial. John ix. 12, 13. None but the *lowest class* engaged as hired servants, and the kinds of labor assigned to them required little knowledge and skill. Various passages show the low repute and trifling character of the class from which they were hired. Judg. ix. 4; 1 Sam. ii. 5. The superior condition of bought servants is manifest in the high trusts confided to them, and in their dignity and authority in the household. In no instance is a *hired* servant thus distinguished. The *bought* servant is manifestly the master's representative in the family—with plenipotentiary powers over adult children, even negotiating marriage for them. Abraham adjured his servant not to take a wife for Isaac of the daughters of the Canaanites. The servant himself selected the individual. Servants also exercised discretionary power in the management of their masters' estates, "And the servant took ten camels of the camels of his master, *for all the goods of his master were under his hand.*" Gen. xxiv. 10. The reason assigned for taking them, is not that such was Abraham's direction, but that the servant had discretionary control. Servants had also discretionary power in the *disposal of property*. See Gen. xxiv. 22, 23, 53. The condition of Ziba in the house of Mephibosheth, is a case in point. So in Prov. xvii. 2. Distinct traces of this estimation are to be found in the New Testament, Matt. xxiv. 45; Luke xii, 42, 44. So in the parable of the talents; the master seems to have set up each of his servants in trade with a large capital. The unjust

steward had large *discretionary* power, was "accused of wasting his master's goods," and manifestly regulated with his debtors, the *terms* of settlement. Luke xvi. 4-8. Such trusts were never reposed in *hired* servants.

A: "For the *purchased servant* who is an Israelite, or proselyte, shall fare as his master. The master shall not eat fine bread, and his servant bread of bran. Nor yet drink old wine, and give his servant new; nor sleep on soft pillows, and bedding, and his servant on straw. I say unto you, that he that gets a *purchased* servant does well to make him as his friend, or he will prove to his employer as if he got himself a master."—Maimonides, in Mishna Kiddushim. Chap. 1, Sec. 2.

The inferior condition of *hired* servants, is illustrated in the parable of the prodigal son. When the prodigal, perishing with hunger among the swine and husks, came to himself, his proud heart broke; "I will arise," he cried, "and go to my father." And then to assure his father of the depth of his humility, resolved to add, "Make me as one of thy *hired* servants." If *hired* servants were the *superior* class—to apply for the situation, savored little of that sense of unworthiness that seeks the dust with hidden face, and cries "unclean." Unhumbled nature *climbs*; or if it falls, clings fast, where first it may. Humility sinks of its own weight, and in the lowest deep, digs lower. The design of the parable was to illustrate on the one hand, the joy of God, as he beholds afar off, the returning sinner "seeking an injured father's face" who runs to clasp and bless him with unchiding welcome; and on the other, the contrition of the penitent, turning homeward with tears from his wanderings, his stricken spirit breaking with its ill-desert he sobs aloud. "The lowest place, *the lowest place*, I can abide no other." Or in those inimitable words, "Father I have sinned against Heaven, and in thy sight, and am no more worthy to be called thy son; make me as one of thy HIRED servants." The supposition that *hired* servants were the *highest* class, takes from the parable an element of winning beauty and pathos. It is manifest to every careful student of the Bible, that *one* class of servants, was on terms of equality with the children and other members of the family. (Hence the force of Paul's declaration, Gal. iv. 1, "Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all.") If this were the *hired* class, the prodigal was a sorry specimen of humility. Would our Lord have put such language upon the lips

of one held up by himself, as a model of gospel humility, to illustrate its deep sense of an ill-desert? If this is *humility*, put it on stilts, and set it a strutting, while pride takes lessons, and blunders in apeing it.

Israelites and Strangers, belonged indiscriminately to *each* class of the servants, the *bought* and the *hired*. That those in the former class, whether Jews or Strangers, rose to honors and authority in the family circle, which were not conferred on *hired* servants, has been shown. It should be added, however, that in the enjoyment of privileges, merely *political*, the hired servants from the *Israelites*, were more favored than even the bought servants from the *Strangers*. No one from the Strangers, however wealthy or highly endowed, was eligible to the highest office, nor could he own the soil. This last disability seems to have been one reason for the different periods of service required of the two classes of bought servants—the Israelites and the Strangers. The Israelite was to serve six years—the Stranger until the jubilee. As the Strangers could not own the soil, nor even houses, except within walled towns, most would attach themselves to Israelitish families. Those who were wealthy, or skilled in manufactures, instead of becoming servants would need servants for their own use, and as inducements for the Stranger's to become servants to the Israelites, were greater than persons of their own nation could hold out to them, these wealthy Strangers would naturally procure the poorer Israelites for servants. Lev. xxv. 47. In a word, such was the political condition of the Strangers, that the Jewish polity offered a virtual bounty, to such as would become permanent servants, and thus secure those privileges already enumerated, and for their children in the second generation a permanent inheritance. Ezek. xlvii. 21-23. None but the monied aristocracy would be likely to decline such offers. On the other hand, the Israelites, owning all the soil, and an inheritance of land being a sacred possession, to hold it free of incumbrance was with every Israelite, a delicate point, both of family honor and personal character. 1 Kings xxi. 3. Hence, to forego the control of one's inheritance, after the division of the paternal domain, or to be kept out of it after having acceded to it, was a burden grievous to be borne. To mitigate as much as possible such a calamity, the law released the Israelitish servant at the end of six years^A; as, during that time—if of the first class—the partition of the patrimonial land might have taken place; or, if of the second, enough money might have been earned to disencumber his estate, and thus

he might assume his station as a lord of the soil. If neither contingency had occurred, then after another six years the opportunity was again offered, and so on, until the jubilee. So while strong motives urged the Israelite to discontinue his service as soon as the exigency had passed which made him a servant, every consideration impelled the *Stranger* to *prolong* his term of service; and the same kindness which dictated the law of six years' service for the Israelite, assigned as a general rule, a much longer period to the Gentile servant, who had every inducement to protract the term. It should be borne in mind, that adult Jews ordinarily became servants, only as a temporary expedient to relieve themselves from embarrassment, and ceased to be such when that object was effected. The poverty that forced them to it was a calamity, and their service was either a means of relief, or a measure of prevention; not pursued as a permanent business, but resorted to on emergencies—a sort of episode in the main scope of their lives. Whereas with the Strangers, it was a *permanent employment*, pursued both as a *means* of bettering their own condition, and that of their posterity, and as an *end* for its own sake, conferring on them privileges, and a social estimation not otherwise attainable.

A: Another reason for protracting the service until the seventh year, seems to have been the coincidence of that period with other arrangements, in the Jewish economy. Its pecuniary responsibilities, social relations, and general internal structure, were *graduated* upon a septennial scale. Besides as those Israelites who became servants through poverty, would not sell themselves, till other expedients to recruit their finances had failed—(Lev. xxv. 35)—their *becoming servants* proclaimed such a state of their affairs, as demanded the labor of a *course of years* fully to reinstate them.

We see from the foregoing, why servants purchased from the heathen, are called by way of distinction, *the servants*, (not *bondmen*,) (1.) They followed it as a *permanent business*. (2.) Their term of service was *much longer* than that of the other class. (3.) As a class they doubtless greatly outnumbered the Israelitish servants. (4.) All the Strangers that dwelt in the land were *tributaries*, required to pay an annual tax to the government, either in money, or in public service, (called a "*tribute of land-service*;") in other words, all the Strangers were *national servants* to the Israelites, and the same Hebrew word used to designate *individual* servants, equally

designates *national* servants or tributaries. 2 Sam. viii. 2, 6, 14. 2 Chron. viii. 7-9. Deut xx. 11. 2 Sam. x. 19. 1 Kings ix. 21, 22. 1 Kings iv. 21. Gen. xxvii. 29. The same word is applied to the Israelites, when they paid tribute to other nations. 2 Kings xvii. 3. Judg. iii. 8, 14. Gen. xlix. 15. Another distinction between the Jewish and Gentile bought servants, was in their *kinds* of service. The servants from the Strangers were properly the *domestics*, or household servants, employed in all family work, in offices of personal attendance, and in such mechanical labor, as was required by increasing wants, and needed repairs. The Jewish bought servants seem almost exclusively *agricultural*. Besides being better fitted for it by previous habits—agriculture, and the tending of cattle, were regarded by the Israelites as the most honorable of all occupations. After Saul was elected king, and escorted to Gibeah, the next report of him is, "*And behold Saul came after the herd out of the field.*" 1 Sam. xi. 7. Elisha "was plowing with twelve yoke of oxen." 1 Kings xix. 19. King Uzziah "loved husbandry." 2 Chron. xxvi. 10. Gideon was "*threshing wheat*" when called to lead the host against the Midianites. Judg. vi. 11. The superior honorableness of agriculture, is shown, in that it was protected and supported by the fundamental law of the theocracy—God indicating it as the chief prop of the government. The Israelites were like permanent fixtures on their soil, so did they cling to it. To be agriculturalists on their own inheritances, was with them the grand claim to honorable estimation. Agriculture being pre-eminently a *Jewish* employment, to assign a native Israelite to other employments as a business, was to break up his habits, do violence to cherished predilections, and put him to a kind of labor in which he had no skill, and which he deemed degrading. In short, it was in the earlier ages of the Mosaic system, practically to *unjew* him, a hardship and rigor grievous to be borne, as it annihilated a visible distinction between the descendants of Abraham and the Strangers.—*To guard this and another fundamental distinction*, God instituted the regulation which stands at the head of this branch of our inquiry, "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a bond-servant." In other words, thou shalt not put him to servant's work—to the business, and into the condition of domestics. In the Persian version it is translated thus, "Thou shalt not assign to him the work of *servitude*." In the Septuagint, "He shall not serve thee with the service of a *domestic*." In the Syriac, "Thou shalt not employ him after the manner of servants." In the

Samaritan, "Thou shalt not require him to serve in the service of a servant." In the Targum of Onkelos, "He shall not serve thee with the service of a household servant." In the Targum of Jonathan, "Thou shalt not cause him to serve according to the usages of the servitude of servants."^A The meaning of the passage is, *thou shalt not assign him to the same grade, nor put him to the same service, with permanent domestics*. The remainder of the regulation is,—"*But as an hired servant and as a sojourner shall he be with thee*." Hired servants were not incorporated into the families of their masters: they still retained their own family organization, without the surrender of any domestic privilege, honor, or authority; and this even though they resided under the same roof with their master. While bought servants were associated with their master's families at meals, at the Passover, and at other family festivals, hired servants and sojourners were not. Ex. xii. 44, 45; Lev. xxii. 10, 11. Hired servants were not subject to the authority of their masters in any such sense as the master's wife, children, and bought servants. Hence the only form of oppressing hired servants spoken of in the Scriptures as practicable to masters, is that of *keeping back their wages*. To have taken away such privileges in the case under consideration, would have been pre-eminent "*rigor*," for it was not a servant born in the house of a master, not a minor, whose minority had been sold by the father, neither was it one who had not yet acceded to his inheritance: nor finally, one who had received the *assignment* of his inheritance, but was working off from it an incumbrance, before entering upon its possession and control. But it was that of *the head of a family*, who had known better days, now reduced to poverty, forced to relinquish the loved inheritance of his fathers, with the competence and respectful consideration its possession secured to him, and to be indebted to a neighbor for shelter, sustenance, and employment. So sad a reverse, might well claim sympathy; but one consolation cheers him in the house of his pilgrimage; he is an *Israelite*—*Abraham is his father*, and now in his calamity he clings closer than ever, to the distinction conferred by his birth-right. To rob him of this, were "the unkindest cut of all." To have assigned him to a grade of service filled only by those whose permanent business was serving, would have been to "rule over him with" peculiar "*rigor*." "Thou shalt not compel him to serve as a bond-servant," or literally, *thou shalt not serve thyself with him, with the service of a servant*, guarantees his political privileges, and a kind and grade of service, comporting with his character and relations as an Israelite. And

"as a *hired* servant, and as a sojourner shall he be with thee," secures to him his family organization, the respect and authority due to its head, and the general consideration resulting from such a station. Being already in possession of his inheritance, and the head of a household, the law so arranged the conditions of his service as to *alleviate* as much as possible the calamity, which had reduced him from independence and authority, to penury and subjection. The import of the command which concludes this topic in the forty-third verse, ("Thou shalt not rule over him with rigor,") is manifestly this, you shall not disregard those differences in previous associations, station, authority, and political privileges, upon which this regulation is based; for to hold this class of servants *irrespective* of these distinctions, and annihilating them, is to "rule with rigor." The same command is repeated in the forty-sixth verse, and applied to the distinction between servants of Jewish, and those of Gentile extraction, and forbids the overlooking of distinctive Jewish peculiarities, the disregard of which would be *rigorous* in the extreme^B. The construction commonly put upon the phrase "rule with rigor," and the inference drawn from it, have an air vastly oracular. It is interpreted to mean, "you shall not make him a chattel, and strip him of legal protection, nor force him to work without pay." The inference is like unto it, viz., since the command forbade such outrages upon the Israelites, it permitted and commissioned their infliction upon the Strangers. Such impious and shallow smattering captivates scoffers and libertines; its flippancy and blasphemy, and the strong scent of its loose-reined license works like a charm upon them. What boots it to reason against such rampant affinities! In Ex. i. 13, it is said that the Egyptians "made the children of Israel to *serve* with rigor." This rigor is affirmed of the *amount of labor* extorted and the *mode* of the exaction. The expression, "serve with rigor," is never applied to the service of servants under the Mosaic system. The phrase, "thou shalt not **RULE** over him with rigor," does not prohibit unreasonable exactions of labor, nor inflictions of cruelty. Such were provided against otherwise. But it forbids confounding the distinctions between a Jew and a Stranger, by assigning the former to the same grade of service, for the same term of time, and under the same political disabilities as the latter.

^A: Jarchi's comment on "Thou shalt not compel him to serve as a bond-servant" is, "The Hebrew servant is not to be required to do any thing which

is accounted degrading—such as all offices of personal attendance, as loosing his master's shoe-latchet, bringing him water to wash his feet and hands, waiting on him at table, dressing him, carrying things to and from the bath. The Hebrew servant is to work with his master as a son or brother, in the business of his farm, or other labor, until his legal release."

B: The disabilities of the Strangers, which were distinctions, based on a different national descent, and important to the preservation of national characteristics, and a national worship, did not at all affect their *social* estimation. They were regarded according to their character, and worth as *persons*, irrespective of their foreign origin, employments, and political condition.

We are now prepared to review at a glance, the condition of the different classes of servants, with the modifications peculiar to each class. In the possession of all fundamental rights, all classes of servants were on an absolute equality, all were equally protected by law in their persons, character, property and social relations; all were voluntary, all were compensated for their labor, and released from it nearly half of the days in each year; all were furnished with stated instruction: none in either class were in any sense articles of property, all were regarded as *men*, with the rights, interests, hopes and destinies of *men*. In all these respects, *all* classes of servants among the Israelites, formed but ONE CLASS. The *different* classes and the differences in *each* class, were, (1.) *Hired Servants*. This class consisted both of Israelites and Strangers. Their employments were different. The *Israelite* was an agricultural servant. The Stranger was a *domestic* and *personal* servant, and in some instances *mechanical*; both were occasional and temporary. Both lived in their own families, their wages were *money*, and they were paid when their work was done. (2.) *Bought Servants*, (including those "born in the house.") This class also, consisted of Israelites and Strangers, the same difference in their kinds of employments noticed before. Both were paid in advance^A, and neither was temporary. The Israelitish servant, with the exception of the *freeholders* was released after six years. The stranger was a permanent servant, continuing until the jubilee. A marked distinction obtained also between different classes of *Jewish* bought servants. Ordinarily, they were merged in their master's family, and, like his wife and children, subject to his authority;

(and, like them, protected by law from its abuse.) But the *freeholder* was a marked exception: his family relations, and authority remained unaffected, nor was he subjected as an inferior to the control of his master, though dependent upon him for employment.

A: The payment *in advance*, doubtless lessened the price of the purchase; the servant thus having the use of the money, and the master assuming all the risks of life and health for labor: at the expiration of the six year's contract, the master having suffered no loss from the risk incurred at the making of it, was obliged by law to release the servant with a liberal gratuity. The reason assigned for this is, "he hath been worth a double hired servant unto thee in serving thee six years," as if it had been said, as you have experienced no loss from the risks of life, and ability to labor, incurred in the purchase, and which lessened the price, and as, by being your servant for six years, he has saved you the time and trouble of looking up and hiring laborers on emergencies, therefore, "thou shalt furnish him liberally," &c.

It should be kept in mind, that *both* classes of servants, the Israelite and the Stranger, not only enjoyed *equal natural and religious rights*, but *all the civil and political privileges* enjoyed by those of their own people who were *not* servants. They also shared in common with them the political disabilities which appertained to all Strangers, whether the servants of Jewish masters, or the masters of Jewish servants. Further, the disabilities of the servants from the Strangers were exclusively *political* and *national*. (1.) They, in common with all Strangers, could not own the soil. (2.) They were ineligible to civil offices. (3.) They were assigned to employments less honorable than those in which Israelitish servants engaged; agriculture being regarded as fundamental to the existence of the state, other employments were in less repute, and deemed *unjewish*.

Finally, the Strangers, whether servants or masters, were all protected equally with the descendants of Abraham. In respect to political privileges, their condition was much like that of naturalized foreigners in the United States; whatever their wealth or intelligence, or moral principle, or love for our institutions, they can neither go to the ballot-box, nor own the soil, nor be eligible to office. Let a native American, be suddenly bereft of these privilege, and loaded with the disabilities of an alien, and what to the

foreigner would be a light matter, to *him*, would be the severity of *rigor*. The recent condition of the Jews and Catholics in England, is another illustration. Rothschild, the late banker, though the richest private citizen in the world, and perhaps master of scores of English servants, who sued for the smallest crumbs of his favor, was, as a subject of the government, inferior to the lowest among them. Suppose an Englishman of the Established Church, were by law deprived of power to own the soil, of eligibility to office and of the electoral franchise, would Englishmen think it a misapplication of language, if it were said, the government "rules over him with rigor?" And yet his person, property, reputation, conscience, all his social relations, the disposal of his time, the right of locomotion at pleasure, and of natural liberty in all respects, are just as much protected by law as the Lord Chancellor's.

FINALLY,—As the Mosaic system was a great compound type, rife with meaning in doctrine and duty; the practical power of the whole, depended upon the exact observance of those distinctions and relations which constituted its significancy. Hence, the care to preserve serve inviolate the distinction between a *descendant of Abraham* and a *Stranger*, even when the Stranger was a proselyte, had gone through the initiatory ordinances, entered the congregation, and become incorporated with the Israelites by family alliance. The regulation laid down in Ex. xxi. 2-6, is an illustration. In this case, the Israelitish servant, whose term expired in six years, married one of his master's *permanent female domestics*; but her marriage, did not release her master from *his* part of the contract for her whole term of service, nor from his legal obligation to support and educate her children. Neither did it do away that distinction, which marked her national descent by a specific *grade* and *term* of service, nor impair her obligation to fulfill *her* part of the contract. Her relations as a permanent domestic grew out of a distinction guarded with great care throughout the Mosaic system. To render it void, would have been to divide the system against itself. This God would not tolerate. Nor, on the other hand, would he permit the master, to throw off the responsibility of instructing her children, nor the care and expense of their helpless infancy and rearing. He was bound to support and educate them, and all her children born afterwards during her term of service. The whole arrangement beautifully illustrates that wise and tender regard for the interests of all the parties concerned, which arrays the Mosaic

system in robes of glory, and causes it to shine as the sun in the kingdom of our Father. By this law, the children had secured to them a mother's tender care. If the husband loved his wife and children, he could compel his master to keep him, whether he had any occasion for his services or not. If he did not love them, to be rid of him was a blessing; and in that case, the regulation would prove an act for the relief of an afflicted family. It is not by any means to be inferred, that the release of the servant in the seventh year, either absolved him from the obligations of marriage, or shut him out from the society of his family. He could doubtless procure a service at no great distance from them, and might often do it, to get higher wages, or a kind of employment better suited to his taste and skill. The great number of days on which the law released servants from regular labor, would enable him to spend much more time with his family, than can be spent by most of the agents of our benevolent societies with *their* families, or by many merchants, editors, artists &c., whose daily business is in New York, while their families reside from ten to one hundred miles in the country.

We conclude this Inquiry by touching briefly upon an objection, which, though not formally stated, has been already set aside by the whole tenor of the foregoing argument. It is this,—"The slavery of the Canaanites by the Israelites, was appointed by God as a commutation of the punishment of death denounced against them for their sins." If the absurdity of a sentence consigning persons to *death*, and at the same time to perpetual *slavery*, did not sufficiently laugh at itself, it would be small self-denial, in a case so tempting, to make up the deficiency by a general contribution. For, *be it remembered*, only *one* statute was ever given respecting the disposition to be made of the inhabitants of Canaan. If the sentence of death was pronounced against them, and afterwards *commuted*, when? where? by whom? and in what terms was the commutation, and where is it recorded? Grant, for argument's sake, that all the Canaanites were sentenced to unconditional extermination; as there was no reversal of the sentence, how can a right to *enslave* them, be drawn from such premises? The punishment of death is one of the highest recognitions of man's moral nature possible. It proclaims him *man*—rational, accountable, guilty, deserving death for having done his utmost to cheapen human life, when the proof of its priceless worth lived in his own nature. But to make him a *slave*, cheapens to nothing *universal human nature*, and instead of healing a wound, gives a

death-stab. What! repair an injury to rational being in the robbery of *one* of its rights, by robbing it of *all*, and annihilating their *foundation*—the everlasting distinction between persons and things? To make a man a chattel, is not the *punishment*, but the *annihilation* of a *human* being, and, so far as it goes, of *all* human beings. This commutation of the punishment of death, into perpetual slavery, what a fortunate discovery! Alas! for the honor of Deity, if commentators had not manned the forlorn hope, and by a timely movement rescued the Divine character, at the very crisis of its fate, from the perilous position in which inspiration had carelessly left it! Here a question arises of sufficient importance for a separate dissertation; but must for the present be disposed of in a few paragraphs. WERE THE CANAANITES SENTENCED BY GOD TO INDIVIDUAL AND UNCONDITIONAL EXTERMINATION? As the limits of this inquiry forbid our giving all the grounds of dissent from commonly received opinions, the suggestions made, will be thrown out merely as *QUERIES*, rather than laid down as *doctrines*. The directions as to the disposal of the Canaanites, are mainly in the following passages: Ex. xxiii. 23-33; xxxiv. 11; Deut. vii. 16-25; ix. 3; xxxi. 3-5. In these verses, the Israelites are commanded to "destroy the Canaanites," "drive out," "consume," "utterly overthrow," "put out," "dispossess them," &c. Did these commands enjoin the unconditional and universal destruction of the *inhabitants* or merely of the *body politic*? The word *hārām*, to destroy, signifies *national*, as well as individual destruction, the destruction of *political* existence, equally with *personal*; of governmental organization, equally with the lives of the subjects. Besides, if we interpret the words destroy, consume, overthrow, &c., to mean *personal* destruction, what meaning shall we give to the expressions, "throw out before thee;" "cast out before thee;" "expel," "put out," "dispossess," &c., which are used in the same passages? "I will destroy all the people to whom thou shalt come, and I will make all thine enemies *turn their backs unto thee*" Ex. xxiii. 27. Here "*all thine enemies*" were to *turn their backs* and "*all the people*" to be "*destroyed*." Does this mean that God would let all their *enemies* escape, but kill all their *friends*, or that he would *first* kill "all the people" and THEN make them "turn their backs," an army of runaway corpses? If these commands required the destruction of all the inhabitants, the Mosaic law was at war with itself, for directions as to the treatment of native residents form a large part of it. See Lev. xix. 34; xxv. 35, 36; xx. 22. Ex. xxiii. 9; xxii. 21; Deut. i. 16, 17; x. 17,

19, xxvii. 19. We find, also that provision was made for them in the cities of refuge. Num. xxxv. 15;—the gleanings of the harvest and vintage were theirs, Lev. xix. 9, 10; xxiii. 22;—the blessings of the Sabbath, Ex. xx. 10;—the privilege of offering sacrifices secured, Lev. xxii. 18; and stated religious instruction provided for them, Deut. xxxi. 9, 12. Now does this same law require the *individual extermination* of those whose lives and interests it thus protects? These laws were given to the Israelites, long *before* they entered Canaan; and they must have inferred from them that a multitude of the inhabitants of the land were to *continue* in it, under their government. Again Joshua was selected as the leader of Israel to execute God's threatenings upon Canaan. He had no *discretionary* power. God's commands were his *official instructions*. Going beyond them would have been usurpation; refusing to carry them out rebellion and treason. Saul was rejected from being king for disobeying god's commands in a *single* instance. Now, if God commanded the individual destruction of all the Canaanites. Joshua *disobeyed him in every instance*. For at his death, the Israelites still "*dwelt among them*," and each nation is mentioned by name. Judg. i. 5, and yet we are told that Joshua "left nothing undone of all that the Lord commanded Moses;" and that he "took all that land." Josh. xi. 15-22. Also, that "*there stood not a man of all their enemies before them*." How can this be, if the command to *destroy* enjoined *individual* extermination, and the command to *drive out*, unconditional expulsion from the country, rather than their expulsion from the *possession* or *ownership* of it, as the lords of the soil? True, multitudes of the Canaanites were slain, but not a case can be found in which one was either killed or expelled who *acquiesced* in the transfer of the territory, and its sovereignty, from the inhabitants of the land to the Israelites. Witness the case of Rahab and her kindred, and the Gibeonites^A. The Canaanites knew of the miracles wrought for the Israelites; and that their land had been transferred to them as a judgment for their sins. Josh. ii. 9-11; ix. 9, 10, 24. Many of them were awed by these wonders, and made no resistance. Others defied God and came out to battle. These occupied the fortified cities, were the most inveterate heathen—the aristocracy of idolatry, the kings, the nobility and gentry, the priests, with their crowds of satellite, and retainers that aided in idolatrous rites, and the military forces, with the chief profligates of both sexes. Many facts corroborate the general position. Such as the multitude of *tributaries* in the midst of Israel, and that too, after they had "waxed

strong," and the uttermost nations quaked at the terror of their name—the Canaanites, Philistines, and others, who became proselytes—as the Nethenims, Uriah the Hittite—Rahab, who married one of the princes of Judah—Ittai—the six hundred Gittites—David's body guard. 2 Sam. xv. 18, 21. Obodedom the Gittite, adopted into the tribe of Levi. Comp. 2 Sam. vi. 10, 11, with 1 Chron. xv. 18, and 1 Chron. xxvi. 45—Jaziz, and Obil. 1 Chron. xxvi. 30, 31, 33. Jephunneh the father of Caleb, the Kenite, registered in the genealogies of the tribe of Judah, and the one hundred and fifty thousand Canaanites, employed by Solomon in the building of the Temple^B. Besides, the greatest miracle on record, was wrought to save a portion of those very Canaanites, and for the destruction of those who would exterminate them. Josh. x. 12-14. Further—the terms employed in the directions regulating the disposal of the Canaanites, such as "drive out," "put out," "cast out," "expel," "dispossess," &c. seem used interchangeably with "consume," "destroy," "overthrow," &c., and thus indicate the sense in which the latter words are used. As an illustration of the meaning generally attached to these and similar terms, we refer to the history of the Amelekites. "I will utterly put out the remembrance of Amelek from under heaven." Ex. xxvii. 14. "Thou shalt blot out the remembrance of Amelek from under heaven; thou shalt not forget it." Deut. xxv. 19. "Smite Amelek and *utterly destroy* all that they have, and spare them not, but slay both man and woman, infant and suckling, ox and sheep." 1 Sam. xv. 2, 3. "Saul smote the Amelekites, and took Agag the king of the Amelekites, alive and UTTERLY DESTROYED ALL THE PEOPLE with the edge of the sword." Verses 7, 8. In verse 20, Saul says, "I have brought Agag, the king of Amelek, and have *utterly destroyed* the Amelekites." In 1 Sam. xxx. we find the Amelekites marching an army into Israel, and sweeping everything before them—and this in about eighteen years after they had *all been* "UTTERLY DESTROYED!" Deut. xx. 16, 17, will probably be quoted against the preceding view. We argue that the command in these verses, did not include all the individuals of the Canaanitish nations, but only the inhabitants of the *cities*, (and even those conditionally,) because, only the inhabitants of the *cities* are specified,—"*of the cities of these people thou shalt save alive nothing that breatheth.*" Cities then, as now, were pest-houses of vice—they reeked with abominations little practiced in the country. On this account their influence would be far more perilous to the Israelites than that of the country. Besides, they were the centres of idolatry

—there were the temples and altars, and idols, and priests, without number. Even their buildings, streets, and public walks were so many visibilities of idolatry. The reason assigned in the 18th verse for exterminating them, strengthens the idea,—"that they teach you not to do after all the abominations which they have done unto their gods." This would be a reason for exterminating *all* the nations and individuals *around* them, as all were idolaters; but God commanded them, in certain cases, to spare the inhabitants. Contact with *any* of them would be perilous—with the inhabitants of the *cities* peculiarly, and of the *Canaanitish* cities pre-eminently so. The 10th and 11th verses contain the general rule prescribing the method in which cities were to be summoned to surrender. They were first to receive the offer of peace—if it was accepted, the inhabitants became *tributaries*—but if they came out against Israel in battle, the *men* were to be killed, and the women and little ones saved alive. The 15th verse restricts this lenient treatment to the inhabitants of the cities *afar off*. The 16th directs as to the disposal of the inhabitants of Canaanitish cities. They were to save alive "nothing that breathed." The common mistake has been, in supposing that the command in the 15th verse refers to the *whole system of directions preceding*, commencing with the 10th, whereas it manifestly refers only to the *inflictions* specified in the 12th, 13th, and 14th, making a distinction between those *Canaanitish* cities that *fought*, and the cities *afar off* that fought—in one case destroying the males and females, and in the other, the *males* only. The offer of peace, and the *conditional preservation*, were as really guaranteed to *Canaanitish* cities as to others. Their inhabitants were not to be exterminated unless they came out against Israel in battle. But let us settle this question by the "law and the testimony." "There was not a city that made peace with the children of Israel save the Hivites, the inhabitants of Gibeon; all others they took in battle. For it was of the Lord to harden their hearts, that they should COME OUT AGAINST ISRAEL IN BATTLE, that he might destroy them utterly, and that they might have no favor, but that he might destroy them, as the Lord commanded Moses." Josh. xix. 19, 20. That is, if they had *not* come out against Israel in battle, they would have had "favor" shown them, and would not have been "*destroyed utterly*." The great design was to *transfer the territory* of the Canaanites to the Israelites, and along with it, *absolute sovereignty in every respect*; to annihilate their political organizations, civil polity, and jurisprudence and their system of religion, with all its rights and

appendages; and to substitute therefor, a pure theocracy, administered by Jehovah, with the Israelites as His representatives and agents. In a word the people were to be *denationalized*, their political existence annihilated, their idol temples, altars, images groves and heathen rites destroyed, and themselves put under tribute. Those who resisted the execution of Jehovah's purpose were to be killed, while those who quietly submitted to it were to be spared. All had the choice of these alternatives, either free egress out of the land^C; or acquiescence in the decree, with life and residence as tributaries, under the protection of the government; or resistance to the execution of the decree, with death. "*And it shall come to pass, if they will diligently learn the ways of my people, to swear by my name, the Lord liveth as they taught my people to swear by Baal; THEN SHALL THEY BE BUILT IN THE MIDST OF MY PEOPLE.*"

^A: Perhaps it will be objected, that the preservation of the Gibeonites, and of Rahab and her kindred, was a violation of the command of God. We answer, if it had been, we might expect some such intimation. If God had strictly commanded them to *exterminate all the Canaanites*, their pledge to save themselves was neither a repeal of the statute, nor absolution for the breach of it. If *unconditional destruction* was the import of the command, would God have permitted such an act to pass without rebuke? Would he have established such a precedent when Israel had hardly passed the threshold of Canaan, and was then striking the first blow of a half century war? What if they *had* passed their word to Rahab and the Gibeonites? Was that more binding than God's command? So Saul seems to have passed *his* word to Agag; yet Samuel hewed him in pieces, because in saving his life, Saul had violated God's command. When Saul sought to slay the Gibeonites in "his zeal for the children of Israel and Judah," God sent upon Israel three years famine for it. When David inquired of them what atonement he should make, they say, "The man that devised against us, that we should be destroyed from *remaining in any of the coasts of Israel*, let seven of his sons be delivered," &c. 2 Sam. xxii. 1-6.

^B: If the Canaanites were devoted by God to unconditional extermination, to have employed them in the erection of the temple,—what was it but the climax of impiety? As well might they pollute its altars with swine's flesh, or make their sons pass through the fire to Moloch.

C: Suppose all the Canaanitish nations had abandoned their territory at the tidings of Israel's approach, did God's command require the Israelites to chase them to the ends of the earth and hunt them out, until every Canaanite was destroyed? It is too preposterous for belief and yet it follows legitimately from that construction, which interprets the terms "consume," "destroy," "destroy utterly," &c. to mean unconditional, individual extermination.

[The original design of the preceding Inquiry embraced a much wider range of topics. It was soon found, however, that to fill up the outline would be to make a volume. Much of the foregoing has therefore been thrown into a mere series of *indices*, to trains of thought and classes of proof which, however limited or imperfect, may perhaps, afford some facilities to those who have little leisure for protracted investigation.]

THE

ANTI-SLAVERY EXAMINER NO 4.

THE

BIBLE AGAINST SLAVERY.

AN INQUIRY INTO THE

PATRIARCHAL AND MOSAIC SYSTEMS

ON THE SUBJECT OF

HUMAN RIGHTS.

Fourth Edition—Enlarged.

NEW YORK:

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY,

NO. 143 NASSAU STREET.

1838.

This No. contains 7 sheets:—Postage, under 100 miles, 10 1/2 cents; over 100 miles, 14 cents.

Please read and Circulate.

CONTENTS.

- DEFINITION OF SLAVERY,
- ◦ NEGATIVE,
- ◦ AFFIRMATIVE,
- ◦ LEGAL,
- THE MORAL LAW AGAINST SLAVERY
- ◦ "THOU SHALT NOT STEAL,"
- ◦ "THOU SHALT NOT COVET,"
- MAN-STEALING—EXAMINATION OF EX. xxi. 16,
- ◦ SEPARATION OF MAN FROM BRUTES AND THINGS,
- IMPORT OF "BUY" AND "BOUGHT WITH MONEY,"
- ◦ SERVANTS SOLD THEMSELVES,
- RIGHTS AND PRIVILEGES SECURED BY LAW TO SERVANTS,
- SERVANTS WERE VOLUNTARY,
- ◦ RUNAWAY SERVANTS NOT TO BE DELIVERED TO THEIR MASTERS,
- SERVANTS WERE PAID WAGES,
- MASTERS NOT "OWNERS,"
- ◦ SERVANTS NOT SUBJECTED TO THE USES OF PROPERTY,
- ◦ SERVANTS EXPRESSLY DISTINGUISHED FROM PROPERTY,
- ◦ EXAMINATION OF GEN. xii. 5.—"THE SOULS THAT THEY HAD GOTTEN," &c.
- ◦ SOCIAL EQUALITY OF SERVANTS AND MASTERS,
- ◦ CONDITION OF THE GIBIONITES AS SUBJECTS OF THE HEBREW COMMONWEALTH,
- ◦ EGYPTIAN BONDAGE CONTRASTED WITH AMERICAN SLAVERY,
- ◦ CONDITION OF AMERICAN SLAVES,
- ◦ ILL FED,
- ◦ ILL CLOTHED,

- OVER-WORKED,
 - THEIR DWELLING UNFIT FOR HUMAN BEINGS,
 - MORAL CONDITION—"HEATHENS,"
- OBJECTIONS CONSIDERED.
- "CURSED BE CANAAN," &c.—EXAMINATION OF GEN. ix. 25,
- "FOR HE IS HIS MONEY," &c.—EXAMINATION OF EX. xxi. 20,
21,
- EXAMINATION OF LEV. xxv. 44-46,
 - "BOTH THY **BONDMEN**, &c., SHALL BE OF THE
HEATHEN,"
 - "OF THEM SHALL YE **BUY**,"
 - "THEY SHALL BE YOUR BONDMEN **FOREVER**,"
 - "YE SHALL TAKE THEM AS AN **INHERITANCE**," &c.
- EXAMINATION OF LEV. xxv. 39, 40.—THE FREEHOLDER NOT
TO "SERVE AS A BOND SERVANT,"
- - DIFFERENCE BETWEEN HIRED AND BOUGHT
SERVANTS,
 - BOUGHT SERVANTS THE MOST FAVORED AND
HONORED CLASS,
 - ISRAELITES AND STRANGERS BELONGED TO BOTH
CLASSES,
 - ISRAELITES SERVANTS TO THE STRANGERS,
 - REASONS FOR THE RELEASE OF THE ISRAELITISH
SERVANTS IN THE SEVENTH YEAR,
 - REASONS FOR ASSIGNING THE STRANGERS TO A
LONGER SERVICE,
 - REASONS FOR CALLING THEM THE SERVANTS,
 - DIFFERENT KINDS OF SERVICE ASSIGNED TO THE
ISRAELITES AND STRANGERS,
- REVIEW OF ALL THE CLASSES OF SERVANTS WITH THE
MODIFICATIONS OF EACH,
- - POLITICAL DISABILITIES OF THE STRANGERS,
- EXAMINATION OF EX. xxi. 2-6.—"IF THOU BUY AN HEBREW
SERVANT,"
- THE CANAANITES NOT SENTENCED TO UNCONDITIONAL
EXTERMINATION,

THE BIBLE AGAINST SLAVERY.

The spirit of slavery never seeks refuge in the Bible of its own accord. The horns of the altar are its last resort—seized only in desperation, as it rushes from the terror of the avenger's arm. Like other unclean spirits, it "hateth the light, neither cometh to the light, lest its deeds should be reproved." Goaded to phrenzy in its conflicts with conscience and common sense, denied all quarter, and hunted from every covert, it vaults over the sacred inclosure and courses up and down the Bible, "seeking rest, and finding none." THE LAW OF LOVE, glowing on every page, flashes around it an omnipresent anguish and despair. It shrinks from the hated light, and howls under the consuming touch, as demons quailed before the Son of God, and shrieked, "Torment us not." At last, it slinks away under the types of the Mosaic system, and seeks to burrow out of sight among their shadows. Vain hope! Its asylum is its sepulchre; its city of refuge, the city of destruction. It flies from light into the sun; from heat, into devouring fire; and from the voice of God into the thickest of His thunders.

DEFINITION OF SLAVERY.

If we would know whether the Bible sanctions slavery, we must determine *what slavery is*. An element, is one thing; a relation, another; an appendage, another. Relations and appendages presuppose other things to which they belong. To regard them as the things themselves, or as constituent parts of them, leads to endless fallacies. Mere political disabilities are often confounded with slavery; so are many relations, and tenures, indispensable to the social state. We will specify some of these.

1. PRIVATION OF SUFFRAGE. Then minors are slaves.
2. INELIGIBILITY TO OFFICE. Then females are slaves.
3. TAXATION WITHOUT REPRESENTATION. Then slaveholders in the District of Columbia are slaves.

4. PRIVATION OF ONE'S OATH IN LAW. Then atheists are slaves.

5. PRIVATION OF TRIAL BY JURY. Then all in France are slaves.

6. BEING REQUIRED TO SUPPORT A PARTICULAR RELIGION. Then the people of England are slaves.

7. APPRENTICESHIP. The rights and duties of master and apprentice are correlative. The *claim* of each upon the other results from his *obligation* to the other. Apprenticeship is based on the principle of equivalent for value received. The rights of the apprentice are secured, equally with those of the master. Indeed while the law is *just* to the former it is *benevolent* to the latter; its main design being rather to benefit the apprentice than the master. To the master it secures a mere compensation—to the apprentice, both a compensation and a virtual gratuity in addition, he being of the two the greatest gainer. The law not only recognizes the *right* of the apprentice to a reward for his labor, but appoints the wages, and enforces the payment. The master's claim covers only the *services* of the apprentice. The apprentice's claim covers *equally* the services of the master. Neither can hold the other as property; but each holds property in the services of the other, and BOTH EQUALLY. Is this slavery?

8. FILIAL SUBORDINATION AND PARENTAL CLAIMS. Both are nature's dictates, and intrinsic elements of the social state; the natural affections which blend parent and child in one, excite each to discharge those offices incidental to the relation, and are a shield for mutual protection. The parent's legal claim to the child's services, is a slight return for the care and toil of his rearing, exclusively of outlays for support and education. This provision is, with the mass of mankind, indispensable to the preservation of the family state. The child, in helping his parents, helps himself—increases a common stock, in which he has a share; while his most faithful services do but acknowledge a debt that money cannot cancel.

9. CLAIMS OF GOVERNMENT ON SUBJECTS. Governments owe their subjects protection; subjects owe just governments allegiance and support. The obligations of both are reciprocal, and the benefits received by both are mutual, equal, and voluntarily rendered.

10. BONDAGE FOR CRIME. Must innocence be punished because guilt suffers penalties? True, the criminal works for the government without pay; and well he may. He owes the government. A century's work would not pay its drafts on him. He will die a public defaulter. Because laws make men pay their debts, shall those be forced to pay who owe nothing? The law makes no criminal, PROPERTY. It restrains his liberty, and makes him pay something, a mere penny in the pound, of his debt to the government; but it does not make him a chattel. Test it. To own property, is to own its product. Are children born of convicts, government property? Besides, can *property* be guilty? Can *chattels* deserve punishment?

11. RESTRAINTS UPON FREEDOM. Children are restrained by parents, pupils, by teachers, patients, by physicians, corporations, by charters, and legislatures, by constitutions. Embargoes, tariffs, quarantine, and all other laws, keep men from doing as they please. Restraints are the web of civilized society, warp and woof. Are they slavery? then a government of LAW, is the climax of slavery!

12. INVOLUNTARY OR COMPULSORY SERVICE. A juryman is empannelled against his will, and sit he *must*. A sheriff orders his posse; bystanders *must* turn in. Men are *compelled* to remove nuisances, pay fines and taxes, support their families, and "turn to the right as the law directs," however much against their wills. Are they therefore slaves? To confound slavery with involuntary service is absurd. Slavery is a *condition*. The slave's *feelings* toward it cannot alter its nature. Whether he desires or detests it, the condition remains the same. The slave's willingness to be a slave is no palliation of the slaveholder's guilt. Suppose he should really believe himself a chattel, and consent to be so regarded by others, would that *make* him a chattel, or make those guiltless who *hold* him as such? I may be sick of life, and I tell the assassin so that stabs me; is he any the less a murderer? Does my *consent* to his crime, atone for it? my partnership in his guilt, blot out his part of it? The slave's willingness to be a slave, so far from lessening the guilt of his "owner," aggravates it. If slavery has so palsied his mind that he looks upon himself as a chattel, and consents to be one, actually to hold him as such, falls in with his delusion, and confirms the impious falsehood. These very feelings and convictions of the slave, (if such were possible) increase a hundred fold the guilt of the master, and call

upon him in thunder, immediately to recognize him as a MAN, and thus break the sorcery that cheats him out of his birthright—the consciousness of his worth and destiny.

Many of the foregoing conditions are *appendages* of slavery, but no one, nor all of them together, constitute its intrinsic unchanging element.

ENSLAVING MEN IS REDUCING THEM TO ARTICLES OF PROPERTY—making free agents, chattels—converting *persons* into *things*—sinking immortality into *merchandize*. A *slave* is one held in this condition. In law, "he owns nothing, and can acquire nothing." His right to himself is abrogated. If he say *my hands, my body, my mind, MYself*, they are figures of speech. To *use himself* for his own good, is a *crime*. To keep what he earns, is *stealing*. To take his body into his own keeping, is *insurrection*. In a word, the profit of his master is made the END of his being, and he, a *mere means* to that end—a mere means to an end into which his interests do not enter, of which they constitute no portion^A. MAN, sunk to a *thing*! the intrinsic element, the *principle* of slavery; MEN, bartered, leased, mortgaged, bequeathed, invoiced, shipped in cargoes, stored as goods, taken on executions, and knocked off at a public outcry! Their *rights*, another's conveniences; their interests, wares on sale; their happiness, a household utensil; their personal inalienable ownership, a serviceable article or a plaything, as best suits the humour of the hour; their deathless nature, conscience, social affections, sympathies, hopes—marketable commodities! We repeat it, THE REDUCTION OF PERSONS TO THINGS! Not robbing a man of privileges, but of *himself*; not loading him with burdens, but making him a *beast of burden*; not restraining liberty, but subverting it; not curtailing rights, but abolishing them; not inflicting personal cruelty, but annihilating *personality*; not exacting involuntary labor, but sinking man into an *implement* of labor; not abridging human comforts, but abrogating human *nature*; not depriving an animal of immunities, but despoiling a rational being of attributes—uncreating a MAN, to make room for a *thing*!

^A: To deprive human nature of *any* of its rights is *oppression*; to take away the *foundation* of its rights is slavery. In other words, whatever sinks man from an END to a mere *means*, just so far makes him a slave. Hence West-

India apprenticeship retained the cardinal principle of slavery. The apprentice, during three-fourths of his time, was forced to labor, and robbed of his earnings; just so far forth he was a *mere means*, a slave. True in other respects slavery was abolished in the British West Indies August, 1834. Its bloodiest features were blotted *out*—but the meanest and most despicable of all—forcing the poor to work for the rich without pay three fourths of their time, with a legal officer to flog them if they demurred at the outrage, was one of the provisions of the "Emancipation Act!" For the glories of that luminary, abolitionists thanked God, while they mourned that it rose behind clouds and shone through an eclipse.

[West India apprenticeship is now (August 1838) abolished. On the first of the present month, every slave in every British island and colony stood up a freeman!—Note to fourth edition.]

That this is American slavery, is shown by the laws of slave states. Judge Stroud, in his "Sketch of the Laws relating to Slavery," says, "The cardinal principle of slavery, that the slave is not to be ranked among sentient beings, but among *things*—obtains as undoubted law in all of these [the slave] states." The law of South Carolina says, "Slaves shall be deemed, held, taken, reputed, and adjudged in law to be chattels personal in the hands of their owners and possessors, and their executors, administrators, and assigns, to ALL INTENTS, CONSTRUCTIONS, AND PURPOSES WHATSOEVER." *Brev. Dig.*, 229. In Louisiana, "A slave is one who is in the power of a master to whom he belongs; the master may sell him, dispose of his person, his industry, and his labor; he can do nothing, possess nothing, nor acquire any thing, but what must belong to his master."—*Civ. Code*, Art. 35.

This is American slavery. The eternal distinction between a person and a thing, trampled under foot—the crowning distinction of all others—alike the source, the test, and the measure of their value—the rational, immortal principle, consecrated by God to universal homage in a baptism of glory and honor, by the gift of his Son, his Spirit, his word, his presence, providence, and power; his shield, and staff, and sheltering wing; his opening heavens, and angels ministering, and chariots of fire, and songs of

morning stars, and a great voice in heaven proclaiming eternal sanctions, and confirming the word with signs following.

Having stated the *principle* of American slavery, we ask, DOES THE BIBLE SANCTION SUCH A PRINCIPLE?^A "To the *law* and the testimony?"

^A: The Bible record of actions is no comment on their moral character. It vouches for them as *facts*, not as *virtues*. It records without rebuke, Noah's drunkenness, Lot's incest, and the lies of Jacob and his mother—not only single acts, but *usages*, such as polygamy and concubinage, are entered on the record without censure. Is that *silent entry* God's *endorsement*? Because the Bible in its catalogue of human actions, does not stamp on every crime its name and number, and write against it, *this is a crime*—does that wash out its guilt, and bleach it into a virtue?

THE MORAL LAW AGAINST SLAVERY.

Just after the Israelites were emancipated from their bondage in Egypt, while they stood before Sinai to receive the law, as the trumpet waxed louder, and the mount quaked and blazed, God spake the ten commandments from the midst of clouds and thunderings. Two of those commandments deal death to slavery. "THOU SHALT NOT STEAL," or, "thou shalt not take from another what *belongs* to him." All man's powers are God's gift to HIM. Each of them is a part of himself, and all of them together constitute himself. All else that belongs to man, is acquired by the *use* of these powers. The interest belongs to him, because the principal does; the product is his, because he is the producer. Ownership of any thing, is ownership of its *use*. The right to use according to will, is *itself* ownership. The eighth commandment presupposes and assumes the right of every man to his powers, and their product. Slavery robs of both. A man's right to himself, is the only right absolutely original and intrinsic—his right to anything else is merely *relative* to this, is derived from it, and held only by virtue of it. SELF-RIGHT is the *foundation right*—the *post in the middle*, to which all other rights are fastened. Slaveholders, when talking about their RIGHT to their slaves, always assume their own right to themselves. What slave-holder ever undertook to prove his right to himself?

He knows it to be a self-evident proposition, that *a man belongs to himself*—that the right is intrinsic and absolute. In making out his own title, he makes out the title of every human being. As the fact of being *a man* is itself the title, the whole human family have one common title deed. If one man's title is valid, all are valid. If one is worthless, all are. To deny the validity of the *slave's* title is to deny the validity of *his own*; and yet in the act of making a man a slave, the slaveholder *asserts* the validity of his own title, while he seizes him as his property who has the *same* title. Further, in making him a slave, he does not merely disfranchise of humanity *one* individual, but UNIVERSAL MAN. He destroys the foundations. He annihilates *all rights*. He attacks not only the human race, but *universal being*, and rushes upon JEHOVAH. For rights are *rights*; God's are no more—man's are no less.

The eighth commandment forbids the taking of *any part* of that which belongs to another. Slavery takes the *whole*. Does the same Bible which prohibits the taking of *any* thing from him, sanction the taking of *every* thing! Does it thunder wrath against the man who robs his neighbor of a *cent*, yet commission him to rob his neighbour of *himself*? Slaveholding is the highest possible violation of the eight commandment. To take from a man his earnings, is theft. But to take the *earner*, is a compound, life-long theft—supreme robbery that vaults up the climax at a leap—the dread, terrific, giant robbery, that towers among other robberies a solitary horror. The eight commandment forbids the taking away, and the tenth adds, "Thou shalt not *covet* any thing that is thy neighbor's;" thus guarding every man's right to himself and property, by making not only the actual taking away a sin, but even that state of mind which would *tempt* to it. Who ever made human beings slaves, without *coveting* them? Why take from them their time, labor, liberty, right of self-preservation and improvement, their right to acquire property, to worship according to conscience, to search the Scriptures, to live with their families, and their right to their own bodies, if they do not *desire* them? They COVET them for purposes of gain, convenience, lust of dominion, of sensual gratification, of pride and ostentation. THEY BREAK THE TENTH COMMANDMENT, and pluck down upon their heads the plagues that are written in the book. *Ten* commandments constitute the brief compend of human duty. *Two* of these brand slavery as sin.

MANSTEALING—EXAMINATION OF EX. XXI. 16.

The giving of the law at Sinai, immediately preceded the promulgation of that body of laws called the "Mosaic system." Over the gateway of that system, fearful words were written by the finger of God—"HE THAT STEALETH A MAN AND SELLETH HIM, OR IF HE BE FOUND IN HIS HAND, HE SHALL SURELY BE PUT TO DEATH^A." Ex. xxi. 16.

^A: A writer in the American Quarterly Review, commenting on this passage, thus blasphemes. "On this passage an impression has gone abroad that slave-owners are necessarily menstealers; how hastily, any one will perceive who consults the passage in its connection. Being found in the chapter which authorizes this species of property among the Hebrews, it must of course relate to *its full protection from the danger of being enticed away from its rightful owner.*"—Am. Quart. Review for June, 1833. Article "Negro slavery."

The oppression of the Israelites in Egypt, and the wonders wrought for their deliverance, proclaim the reason for such a law at such a time. They had just been emancipated. The tragedies of their house of bondage were the realities of yesterday, and peopled their memories with thronging horrors. They had just witnessed God's testimony against oppression in the plagues of Egypt—the burning blains on man and beast; the dust quickened into loathsome life, and swarming upon every living thing; the streets, the palaces, the temples, and every house heaped up with the carcasses of things abhorred; the kneading troughs and ovens, the secret chambers and the couches, reeking and dissolving with the putrid death; the pestilence walking in darkness at noonday, the devouring locusts, and hail mingled with fire, the first-born death-struck, and the waters blood; and last of all, that dread high hand and stretched-out arm, that whelmed the monarch and his hosts, and strewed their corpses on the sea. All this their eyes had looked upon; earth's proudest city, wasted and thunder-scarred, lying in desolation, and the doom of oppressors traced on her ruins in the handwriting of God, glaring in letters of fire mingled with blood—a blackened monument of wrath to the uttermost against the stealers of men. No wonder that God, in a code of laws prepared for such a people at such a time, should uprear on its foreground a blazing beacon to flash terror on

slaveholders. "*He that stealeth a man and selleth him, or if he be found in his hand, he shall surely be put to death.*" Ex. xxi. 16. Deut. xxiv, 7^A. God's cherubim and flaming sword guarding the entrance to the Mosaic system!

^A: Jarchi, the most eminent of the Jewish Commentators, who wrote seven hundred years ago, in his comment on this stealing and making merchandize of men, gives the meaning thus:—"Using a man against his will, as a servant lawfully purchased; yea, though he should use his services ever so little, only to the value of a farthing, or use but his arm to lean on to support him, *if he be forced so to act as a servant*, the person compelling him but once to do so, shall die as a thief, whether he has sold him or not."

The word *Gānābh* here rendered *stealeth*, means, the taking of what belongs to another, whether by violence or fraud; the same word is used in the eight commandment, and prohibits both robbery and theft.

The crime specified, is that of depriving **SOMEBODY** of the ownership of a man. Is this somebody a master? and is the crime that of depriving a master of his servant? Then it would have been "he that stealeth" a *servant*, not "he that stealeth a *man*." If the crime had been the taking of an individual from *another*, then the *term* used would have been expressive of that relation, and most especially if it was the relation of property and *proprietor*!

The crime is stated in a three-fold form—man *stealing, selling, and holding*. All are put on a level, and whelmed under one penalty—**DEATH**^A. This *somebody* deprived of the ownership of a man, is the *man himself*, robbed of personal ownership. Joseph said, "Indeed I was *stolen* away out of the land of the Hebrews." Gen. xl. 15. How *stolen*? His brethren sold him as an article of merchandize. Contrast this penalty for *man*-stealing with that for *property*-stealing, Ex. xxii. 14. If a man had stolen an ox and killed or sold it, he was to restore five oxen; if he had neither sold nor killed it, two oxen. But in the case of stealing a *man*, the *first* act drew down the utmost power of punishment; however often repeated or aggravated the crime, human penalty could do no more. The fact that the penalty for *man*-stealing was death, and the penalty for *property*-stealing, the mere restoration of double, shows that the two cases were adjudicated on totally different principles.

The man stolen might be diseased or totally past labor, consequently instead of being profitable to the thief, he would be a tax upon him, yet death was still the penalty, though not a cent's worth of *property-value* was taken. The penalty for stealing property was a mere property-penalty. However large the theft, the payment of double wiped out the score. It might have a greater money value than a thousand men, yet death was not the penalty, nor maiming, nor braiding, nor even stripes, but double *of the same kind*. Why was not the rule uniform? When a *man* was stolen why was not the thief required to restore double of the same kind—two men, or if he had sold him, five men? Do you say that the man-thief might not *have* them? So the ox-thief might not have two oxen, or if he had killed it, five. But if God permitted men to hold *men* as property, equally with oxen, the man-thief, could get men with whom to pay the penalty, as well as the ox-thief, oxen. Further, when property was stolen, the legal penalty was a compensation to the person injured. But when a *man* was stolen, no property compensation was offered. To tender money as an equivalent, would have been to repeat the outrage with intolerable aggravations. Compute the value of a MAN in *money*! Throw dust into the scale against immortality! The law recoiled from such supreme insult and impiety. To have permitted the man-thief to expiate his crime by restoring double, would have been making the repetition of crime its atonement. But the infliction of death for man-stealing exacted the utmost possibility of reparation. It wrung from the guilty wretch as he gave up the ghost, the testimony of blood, and death-groans, to the infinite dignity and worth of man,—a proclamation to the universe, voiced in mortal agony, "MAN IS INVIOLEABLE."—a confession shrieked in phrenzy at the grave's mouth—"I die accursed, and God is just."

A: "Those are *men-stealers* who abduct, *keep*, sell, or buy slaves or freemen." GROTIUS.

If God permitted man to hold man as property, why did he punish for stealing that kind of property infinitely more than for stealing any other kind of property? Why punish with death for stealing a very little of *that* sort of property, and make a mere fine the penalty for stealing a thousand times as much, of any other sort of property—especially if by his own act, God had annihilated the difference between man and *property*, by putting him on a level with it?

The guilt of a crime, depends much upon the nature, character, and condition of the victim. To steal is a crime, whoever the thief, or whatever the plunder. To steal bread from a full man, is theft; to steal it from a starving man, is both theft and murder. If I steal my neighbor's property, the crime consists not in altering the *nature* of the article, but in taking as *mine* what is *his*. But when I take my neighbor himself, and first make him *property*, and then *my* property, the latter act, which was the sole crime in the former case, dwindles to nothing. The sin in stealing a man, is not the transfer from its owner to another of that which is already property, but the turning of *personality* into *property*. True, the attributes of man remain, but the rights and immunities which grow out of them are annihilated. It is the first law both of reason and revelation, to regard things and beings as they are; and the sum of religion, to feel and act toward them according to their value. Knowingly to treat them otherwise is sin; and the degree of violence done to their nature, relations, and value, measures its guilt. When things are sundered which God has indissolubly joined, or confounded in one, which he has separated by infinite extremes; when sacred and eternal distinctions, which he has garnished with glory, are derided and set at nought, then, if ever, sin reddens to its "scarlet dye." The sin specified in the passage, is that of doing violence to the *nature* of a *man*—to his intrinsic value as a rational being. In the verse preceding the one under consideration, and in that which follows, the same principle is laid down. Verse 15, "He that smiteth his father or his mother shall surely be put to death." Verse. 17, "He that curseth his father or his mother, shall surely be put to death." If a Jew smote his neighbor, the law merely smote him in return; but if the blow was given to a *parent*, it struck the smiter dead. The parental relation is the *centre* of human society. God guards it with peculiar care. To violate that, is to violate all. Whoever tramples on that, shows that *no* relation has any sacredness in his eyes—that he is unfit to move among human relations who violates one so sacred and tender. Therefore, the Mosaic law uplifted his bleeding corpse, and brandished the ghastly terror around the parental relation to guard it from impious inroads.

Why such a difference in penalties, for the same act? Answer. 1. The relation violated was obvious—the distinction between parents and others self-evident, dictated by a law of nature. 2. The act was violence to nature—a suicide on constitutional susceptibilities. 3. The parental relation then, as

now, was the focal point of the social system, and required powerful safeguards. "*Honor thy father and thy mother*," stands at the head of those commands which prescribe the duties of man to man; and throughout the Bible, the parental state is God's favorite illustration of his own relations to the human family. In this case, death was to be inflicted not for smiting a *man*, but a *parent*—a *distinction* made sacred by God, and fortified by a bulwark of defence. In the next verse, "He that stealeth a man," &c., the SAME PRINCIPLE is wrought out in still stronger relief. The crime to be punished with death was not the taking of property from its owner, but violence to an *immortal nature*, the blotting out of a sacred *distinction*—making MEN "chattels."

The incessant pains taken in the Old Testament to separate human beings from brutes and things, shows God's regard for this, his own distinction. "In the beginning" he proclaimed it to the universe as it rose into being. Creation stood up at the instant of its birth, to do it homage. It paused in adoration while God ushered forth its crowning work. Why that dread pause and that creating arm held back in mid career and that high conference in the godhead? "Let us make man in OUR IMAGE after OUR LIKENESS, and let him have dominion over the fish of the sea, and over the fowl of the air, and over the cattle and over all the earth." Then while every living thing, with land, and sea, and firmament, and marshalled worlds, waited to swell the shout of morning stars—then God created man IN HIS OWN IMAGE; IN THE IMAGE OF GOD created he him." This solves the problem, IN THE IMAGE OF GOD, CREATED HE HIM. This distinction is often repeated and always with great solemnity. In Gen. i. 26-28, it is expressed in various forms. In Gen. v. 1, we find it again, "IN THE LIKENESS OF GOD MADE HE HIM." In Gen. ix. 6, again. After giving license to shed the blood of "every moving thing that liveth," it is added, "*Whoso sheddeth man's blood, by man shall his blood be shed, for IN THE IMAGE OF GOD MADE HE MAN.*" As though it had been said, "All these creatures are your property, designed for your use—they have the likeness of earth, and their spirits go downward; but this other being, MAN, has my own likeness: IN THE IMAGE OF GOD made I man; an intelligent, moral, immortal agent, invited to all that I can give and he can be. So in Lev. xxiv. 17, 18, 21, "He that killeth any MAN shall surely be put to death; and he that killeth a beast shall make it good, beast for beast; and he that

killeth a MAN he shall be put to death." So in Ps. viii. 5, 6, we have an enumeration of particulars, each separating infinitely MEN from brutes and things! 1. "*Thou hast made him a little lower than the angels.*" Slavery drags him down among *brutes*. 2. "*And hast crowned him with glory and honor.*" Slavery tears off his crown, and puts on a yoke. 3. "*Thou madest him to have dominion*^A *OVER the works of thy hands.*" Slavery breaks his sceptre, and cast him down *among* those works—yea, *beneath them*. 4. "*Thou hast put all things under his feet.*" Slavery puts HIM under the feet of an "owner." Who, but an impious scorner, dare thus strive with his Maker, and mutilate HIS IMAGE, and blaspheme the Holy One, who saith, "*Inasmuch as ye did it unto one of the least of these, ye did it unto ME.*"

^A: "Thou madest him to have dominion." In Gen. i. 28, God says to man, "*Have dominion* over the fish of the sea, and over the fowl of the air and over every living thing that moveth upon the earth," thus vesting in *every* human being the right of ownership over the earth, its products and animal life, and in *each* human being the *same* right. By so doing God prohibited the exercise of ownership by man over *man*; for the grant to *all* men of *equal* ownership, for ever *shut* out the possibility of their exercising ownership over *each other*, as whoever is the owner of a *man*, is the owner of his *right of property*—in other words, when one man becomes the property of another his rights become such too, his *right of property* is transferred to his "owner," and thus as far as *himself* is concerned, is annihilated. Finally, by originally vesting *all* men with dominion or ownership over property, God proclaimed the *right of all* to exercise it, and pronounced every man who takes it away a robber of the highest grade. Such is every slaveholder.

In further prosecuting this inquiry, the Patriarchal and Mosaic systems will be considered together, as each reflects light upon the other, and as many regulations of the latter are mere *legal* forms of Divine institutions previously existing. As a *system*, the latter alone is of Divine authority. Whatever were the usages of the patriarchs God has not made them our exemplars.^B The question to be settled by us, is not what were Jewish *customs*, but what were the rules that God gave for the regulation of those customs.

[B](#): Those who insist that the patriarchs held slaves, and sit with such delight under their shadow, hymning the praises of "those good old slaveholders and patriarchs," might at small cost greatly augment their numbers. A single stanza celebrating patriarchal *concubinage*, winding off with a chorus in honor of patriarchal *drunkenness*, would be a trumpet-call, summoning from brothels, bush and brake, highway and hedge, and sheltering fence, a brotherhood of kindred affinities, each claiming Abraham or Noah as his patron saint, and shouting, "My name is legion." A myriad choir and thunderous song!

Before entering upon an analysis of the condition of servants under these two states of society, we will consider the import of certain terms which describe the mode of procuring them.

IMPORT OF "BUY," AND "BOUGHT WITH MONEY."

As the Israelites were commanded to "buy" their servants, and as Abraham had servants "bought with money," it is argued that servants were articles of property! The sole ground for this belief is *the terms themselves*! How much might be saved, if in discussion, the thing to be proved were always *assumed*! To beg the question in debate, is vast economy of midnight oil, and a wholesale forestaller of wrinkles and gray hairs. Instead of protracted investigation into Scripture usage, painfully collating passages, to settle the meaning of terms, let every man interpret the oldest book in the world by the usages of his own time and place, and the work is done. And then instead of one revelation, they might be multiplied as the drops of the morning, and every man have an infallible clue to the mind of the Spirit, in the dialect of his own neighborhood! What a Babel-jargon, to take it for granted that the sense in which words are *now* used, is the *inspired* sense. David says, "I prevented the dawning of the morning, and cried." What, stop the earth in its revolution! Two hundred years ago, *prevent* was used in its strict Latin sense, to *come before*, or *anticipate*. It is always used in this sense in the Old and New Testaments. David's expression, in the English of the nineteenth century, would be "Before the dawning of the morning I cried." In almost every chapter of the Bible, words are used in a sense now nearly, or quite obsolete, and sometimes in a sense totally *opposite* to their present meaning. A few examples follow: "I purposed to come to you, but

was *let* (hindered) hitherto." "And the four *beasts* (living ones) fell down and worshiped God,"—"Whosoever shall *offend* (cause to sin) one of these little ones,"—Go out into the highways and *compel* (urge) them to come in,"—Only let your *conversation* (habitual conduct) be as becometh the Gospel,"—"The Lord Jesus Christ who shall judge the *quick* (living) and the dead,"—They that seek me *early* (earnestly) shall find me," So when tribulation or persecution ariseth *by-and-by* (immediately) they are offended." Nothing is more mutable than language. Words, like bodies, are always throwing off some particles and absorbing others. So long as they are mere representatives, elected by the whims of universal suffrage, their meaning will be a perfect volatile, and to cork it up for the next century is an employment sufficiently silly (to speak within bounds) for a modern Bible-Dictionary maker. There never was a shallower conceit than that of establishing the sense attached to a word centuries ago, by showing what it means *now*. Pity that fashionable mantuamakers were not a little quicker at taking hints from some Doctors of Divinity. How easily they might save their pious customers all qualms of conscience about the weekly shiftings of fashion, by proving that the last importation of Parisian indecency now "showing off" on promenade, was the very style of dress in which the modest and pious Sarah kneaded cakes for the angels. Since such a fashion flaunts along Broadway *now*, it *must* have trailed over Canaan four thousand years ago!

The inference that the word *buy*, used to describe the procuring of servants, means procuring them as *chattels*, seems based upon the fallacy, that whatever *costs* money *is* money; that whatever or whoever you pay money *for*, is an article of property, and the fact of your paying for it, *proves* it property. 1. The children of Israel were required to purchase their firstborn from under the obligations of the priesthood, Num. xviii. 15, 16; iii. 45-51; Ex. xiii. 13; xxxiv. 20. This custom still exists among the Jews, and the word *buy* is still used to describe the transaction. Does this prove that their firstborn were or are, held as property? They were *bought* as really as were *servants*. 2. The Israelites were required to pay money for their own souls. This is called sometimes a ransom, sometimes an atonement. Were their souls therefore marketable commodities? 3. When the Israelites set apart themselves or their children to the Lord by vow, for the performance of some service, an express statute provided that a *price* should be set upon the

"persons," and it prescribed the manner and *terms* of the "estimation" or valuation, by the payment of which, the persons might be *bought off* from the service vowed. The *price* for males from one month old to five years, was five shekels, for females, three; from five years old to twenty, for males, twenty shekels, for females, ten; from twenty years old to sixty, for males, fifty shekels, for females, thirty; above sixty years old, for males, fifteen shekels, for females, ten, Lev. xxvii. 2-8. What egregious folly to contend that all these descriptions of persons were goods and chattels because they were *bought* and their *prices* regulated by law! 4. Bible saints *bought* their wives. Boaz bought Ruth. "Moreover Ruth the Moabitess, the wife of Mahlon, have I *purchased* (bought) to be my wife." Ruth iv. 10.^A Hosea bought his wife. "So I *bought* her to me for fifteen pieces of silver, and for an homer of Barley, and an half homer of barley." Hosea iii. 2. Jacob bought his wives Rachael and Leah, and not having money, paid for them in labor—seven years a piece. Gen. xxix. 15-23. Moses probably bought his wife in the same way, and paid for her by his labor, as the servant of her father.^B Exod. ii. 21. Shechem, when negotiating with Jacob and his sons for Dinah, says, "Ask me never so much dowry and gift, and I will give according as ye shall say unto me." Gen. xxxiv. 11, 12. David purchased Michael, and Othniel, Achsah, by performing perilous services for the fathers of the damsels. 1 Sam. xviii. 25-27; Judg. i. 12, 13. That the purchase of wives, either with money or by service, was the general practice, is plain from such passages as Ex. xxii. 17, and 1 Sam. xviii. 25. Among the modern Jews this usage exists, though now a mere form, there being no *real* purchase. Yet among their marriage ceremonies, is one called "marrying by the penny." The similarity in the methods of procuring wives and servants, in the terms employed in describing the transactions, and in the prices paid for each, are worthy of notice. The highest price of wives (virgins) and servants was the same. Comp. Deut, xxii. 28, 29, and Ex. xxii. 17, with Lev. xxvii. 2-8. The *medium* price of wives and servants was the same. Comp. Hos. iii. 2, with Ex. xxi. 32. Hosea seems to have paid one half in money and the other half in grain. Further, the Israelitish female bought-servants were *wives*, their husbands and masters being the same persons. Ex. xxi. 8, Judg. xix. 3, 27. If *buying* servants proves them property, buying wives proves *them* property. Why not contend that the *wives* of the ancient fathers of the faithful were their "chattels," and used as ready change at a pinch; and thence deduce the rights of modern husbands?

Alas! Patriarchs and prophets are followed afar off! When will pious husbands live up to their Bible privileges, and become partakers with Old Testament worthies in the blessedness of a husband's rightful immunities! Refusing so to do, is questioning the morality of those "good old slaveholders and patriarchs, Abraham, Isaac, and Jacob."

A: In the verse preceding, Boaz says, "I have *bought* all that was Elimelech's * * * of the hand of Naomi." In the original, the same word (*kānā*) is used in both verses. In the 9th, "a parcel of land" is "bought," in the 10th a "wife" is "bought." If the Israelites had been as profound at inferences as our modern Commentators, they would have put such a fact as this to the rack till they had tortured out of it a divine warrant for holding their wives as property and speculating in the article whenever it happened to be scarce.

B: This custom still prevails in some eastern countries. The Crim Tartars, who are poor, serve an apprenticeship for their wives, during which they live under the same roof with them and at the close of it are adopted into the family.

This use of the word buy, is not peculiar to the Hebrew. In the Syriac, the common expression for "the espoused," is "the bought." Even so late as the 16th century, the common record of *marriages* in the old German Chronicles was, "A BOUGHT B."

The word translated *buy*, is, like other words, modified by the nature of the subject to which it is applied. Eve said, "I have *gotten* (bought) a man from the Lord." She named him Cain, that is *bought*. "He that heareth reproof, getteth (buyeth) understanding," Prov. xv. 32. So in Isa. xi. 11. "The Lord shall set his hand again to recover (to *buy*) the remnant of his people." So Ps. lxxviii. 54. "He brought them to his mountain which his right hand had *purchased*," (gotten.) Neh. v. 8. "We of our ability have *redeemed* (bought) our brethren the Jews, that were sold unto the heathen." Here "*bought*" is not applied to persons reduced to servitude, but to those taken *out* of it. Prov. viii. 22. "The Lord possessed (bought) me in the beginning of his way." Prov. xix. 8. "He that *getteth* (buyeth) wisdom loveth his own soul." Finally, to *buy* is a *secondary* meaning of the Hebrew word *kānā*.

Even at this day the word *buy* is used to describe the procuring of servants, where slavery is abolished. In the British West Indies, where slaves became apprentices in 1834, they are still, (1837,) "bought." This is the current word in West India newspapers. Ten years since servants were "*bought*" in New York, and still are in New Jersey, as really as in Virginia, yet the different senses in which the word is used in those states, puts no man in a quandary. Under the system of legal *indenture* in Illinois, servants now are "*bought*."^A Until recently immigrants to this country were "bought" in great numbers. By voluntary contract they engaged to work a given time to pay for their passage. This class of persons, called "redemptioners," consisted at one time of thousands. Multitudes are "bought" *out* of slavery by themselves or others. Under the same roof with the writer is a "servant bought with money." A few weeks since, she was a slave; when "bought," she was a slave no longer. Alas! for our leading politicians if "buying" men makes them "chattels." The Whigs say, that Calhoun has been "bought" by the administration; and the other party, that Clay and Webster have been "bought" by the Bank. The histories of the revolution tell us that Benedict Arnold was "bought" by British gold, and that Williams, Paulding, and Van Wert, could not be "bought" by Major Andre. When a northern clergyman marries a rich southern widow, country gossip thus hits off the indecency, "The cotton bags *bought* him." Sir Robert Walpole said, "Every man has his price, and whoever will pay it, can *buy* him," and John Randolph said, "The northern delegation is in the market; give me money enough, and I can *buy* them." The temperance publications tell us that candidates for office *buy* men with whiskey; and the oracles of street tattle, that the court, district attorney, and jury, in the late trial of Robinson were *bought*, yet we have no floating visions of "chattels personal," man-auctions, or coffles.

^A: The following statute is now in force in the free state of Illinois—"No negro, mulatto, or Indian, shall at any time *purchase* any servant other than of their own complexion: and if any of the persons aforesaid shall presume to *purchase* a white servant, such servant shall immediately become free, and shall be so held, deemed and taken."

In Connecticut, town paupers are "bought" by individuals, who, for a stipulated sum become responsible to the town for their comfortable support for one year. If these "bought" persons perform any labor for those

who "buy" them, it is wholly *voluntary*. It is hardly necessary to add that they are in no sense the "property" of their purchasers.^{[A](#)}

^{[A](#)}: "The select-men" of each town annually give notice, that at such a time and place, they will proceed to *sell* the poor of said town. The persons thus "sold" are "bought" by such persons, approved by the "select-men," as engage to furnish them with sufficient wholesome food, adequate clothing, shelter, medicine, &c., for such a sum as the parties may agree upon. The Connecticut papers frequently contain advertisements like the following:

"NOTICE—The poor of the town of Chatham will be SOLD on the first Monday in April, 1837, at the house of F. Penfield, Esq., at 9 o'clock in the forenoon,"—[Middletown Sentinel, Feb. 3, 1837.]

The transaction between Joseph and the Egyptians gives a clue to the use of "buy" and "bought with money." Gen. xlvii. 18-26. The Egyptians proposed to Joseph to become servants. When the bargain was closed, Joseph said, "Behold I have *bought you* this day," and yet it is plain that neither party regarded the persons *bought* as articles of property, but merely as bound to labor on certain conditions, to pay for their support during the famine. The idea attached by both parties to "buy us," and "behold I have bought you," was merely that of service voluntarily offered, and secured by contract, in return, for *value received*, and not at all that the Egyptians were bereft of their personal ownership, and made articles of property. And this buying of *services* (in this case it was but one-fifth part) is called in Scripture usage, *buying the persons*. This case claims special notice, as it is the only one where the whole transaction of buying servants is detailed—the preliminaries, the process, the mutual acquiescence, and the permanent relation resulting therefrom. In all other instances, the mere fact is stated without particulars. In this case, the whole process is laid open. 1. The persons "bought," *sold themselves*, and of their own accord. 2. Paying for the permanent *service* of persons, or even a portion of it, is called "buying" those persons; just as paying for the *use* of land or houses for a number of years in succession is called in Scripture usage *buying* them. See Lev. xxv. 28, 33, and xxvii. 24. The objector, at the outset, takes it for granted, that servants were bought of *third* persons; and thence infers that they were articles of property. Both the alleged fact and the inference are *sheer*

assumptions. No instance is recorded, under the Mosaic system, in which a *master sold his servant*.

That servants who were "bought," *sold themselves*, is a fair inference from various passages of Scripture.^A In Leviticus xxv. 47, the case of the Israelite, who became the servant of the stranger, the words are, "If he SELL HIMSELF unto the stranger." Yet the 51st verse informs us that this servant was "BOUGHT" and that the price of his purchase was paid to *himself*. The *same word*, and the *same form* of the word, which, in verse 47, is rendered *sell himself*, is in verse 39 of the same chapter, rendered *be sold*; in Deut. xxviii. 68, the same word is rendered "be sold." "And there ye shall BE SOLD unto your enemies for bond-men and bond-women and NO MAN SHALL BUY YOU." How could they "*be sold*" without *being bought*? Our translation makes it nonsense. The word *Mākar* rendered "*be sold*" is used here in Hithpael conjugation, which is generally reflexive in its force, and like the middle voice in Greek, represents what an individual does for himself, and should manifestly have been rendered "ye shall *offer yourselves* for sale, and there shall be no purchaser." For a clue to Scripture usage on this point, see 1 Kings xxi. 20. 25.—"Thou hast *sold thyself* to work evil." "There was none like unto Ahab which did sell *himself* to work wickedness."—2 Kings xvii. 17. "They used divination and enchantments, and *sold themselves* to do evil."—Isa. l. 1. "For your iniquities have ye *sold yourselves*." Isa. lii. 3, "Ye have *sold yourselves* FOR NOUGHT, and ye shall be redeemed without money." See also, Jer. xxxiv. 14; Rom. vii. 14, vi. 16; John, viii. 34, and the case of Joseph and the Egyptians, already quoted. In the purchase of wives, though spoken of rarely, it is generally stated that they were bought of *third* persons. If *servants* were bought of third persons, it is strange that no *instance* of it is on record.

^A: Those who insist that the servants which the Israelites were commanded to buy of "the heathen which were round about" them, were to be bought of *third persons*, virtually charge God with the inconsistency of recognizing and affirming the right of those very persons to freedom, upon whom, say they, he pronounced the doom of slavery. For they tell us, that the sentence of death uttered against those heathen was commuted into slavery, which punishment God denounced against them. Now if "the heathen round about" were doomed to slavery, the *sellers* were doomed as well as the *sold*.

Where, we ask, did the sellers get their right to sell? God by commanding the Israelites to BUY, affirmed the right of *somebody* to *sell*, and that the *ownership* of what was sold existed *somewhere*; which *right* and ownership he commanded them to *recognize* and *respect*. We repeat the question, where did the heathen *sellers* get their right to sell, since *they* were dispossessed of their right to *themselves* and doomed to slavery equally with those whom they sold. Did God's decree vest in them a right to *others* while it annulled their right to *themselves*? If, as the objector's argument assumes, one part of "the heathen round about" were *already* held as slaves by the other part, *such* of course were not *doomed* to slavery, for they were already slaves. So also, if those heathen who held them as slaves had a *right* to hold them, which right God commanded the Israelites to *buy out*, thus requiring them to recognize *it* as a *right*, and on no account to procure its transfer to themselves without paying to the holders an equivalent, surely, these *slaveholders* were not doomed by God to be slaves, for according to the objector, God had himself affirmed their right to *hold others as slaves*, and commanded his people to respect it.

We now proceed to inquire into the *condition* of servants under the patriarchal and Mosaic systems.

I. THE RIGHTS AND PRIVILEGES OF SERVANTS.

The leading design of the laws defining the relations of master and servant, was the good of both parties—more especially the good of the *servants*. While the master's interests were guarded from injury, those of the servants were *promoted*. These laws made a merciful provision for the poorer classes, both of the Israelites and Strangers, not laying on burdens, but lightening them—they were a grant of *privileges* and *favors*.

I. BUYING SERVANTS WAS REGARDED AS A KINDNESS TO THE PERSONS BOUGHT, and as establishing between them and their purchasers a bond of affection and confidence. This is plain from the frequent use of it to illustrate the love and care of God for his chosen people. Deut. xxxii. 6; Ex. xv. 16; Ps. lxxiv. 2; Prov. viii. 22.

II. NO STRANGER COULD JOIN THE FAMILY OF AN ISRAELITE WITHOUT BECOMING A PROSELYTE. Compliance with this condition was the *price of the privilege*. Gen. xvii. 9-14, 23, 27. In other words, to become a servant was virtually to become an Israelite.^A In the light of this fact, look at the relation sustained by a proselyted servant to his master. Was it a sentence consigning to *punishment*, or a ticket of admission to *privileges*?

^A: The rites by which a stranger became a proselyte transformed him into a Jew. Compare 1 Chron. ii. 17, with 2 Sam. xvii. 25. In Esther viii. 17, it is said "Many of the people of the land *became Jews*." In the Septuagint, the passage is thus rendered, "Many of the heathen were circumcised and became Jews." The intimate union and incorporation of the proselytes with the Hebrews is shown by such passages as Isa. lvi. 6, 7, 8; Eph. ii. 11, 22; Num. x. 29-32. Calmet, Art. Proselyte, says "They were admitted to all the prerogatives of the people of the Lord." Mahommed doubtless borrowed from the laws and usages of the Jews, his well known regulation for admitting to all civil and religious privileges, all proselytes of whatever nation or religion.

III. EXPULSION FROM THE FAMILY WAS THE DEPRIVATION OF A PRIVILEGE IF NOT A PUNISHMENT. When Sarah took umbrage at the conduct of Hagar and Ishmael, her servants, "She said unto Abraham *cast out* this bond-woman and her son." * * And Abraham rose up early in the morning and took bread and a bottle of water and gave it unto Hagar and the child, and *sent her away*. Gen. xxi. 10, 14; in Luke xvi. 1-8, our Lord tells us of the steward or head-servant of a rich man who defrauded his master, and was, in consequence, excluded from his household. The servant anticipating such a punishment, says, "I am resolved what to do, that when I am *put out* of the stewardship, they may receive me into their houses." The case of Gehazi, the servant of Elisha, appears to be a similar one. He was guilty of fraud in procuring a large sum of money from Naaman, and of deliberate lying to his master, on account of which Elisha seems to have discarded him. 2 Kings v. 20-27. In this connection we may add that if a servant neglected the observance of any ceremonial rite, and was on that account excommunicated from the congregation of Israel, such excommunication excluded him also from the *family* of an Israelite. In other

words he could be a *servant* no longer than he was an *Israelite*. To forfeit the latter *distinction* involved the forfeiture of the former *privilege*—which proves that it *was* a privilege.

IV. THE HEBREW SERVANT COULD COMPEL HIS MASTER TO KEEP HIM.

When the six years' contract had expired, if the servant *demand*ed it, the law *obliged* the master to retain him permanently, however little he might need his services. Deut. xv. 12-17; Ex. xxi. 2-6. This shows that the system was framed to advance the interest and gratify the wishes of the servant quite as much as those of the master.

V. SERVANTS WERE ADMITTED INTO COVENANT WITH GOD. Deut. xxix. 10-13.

VI. THEY WERE GUESTS AT ALL NATIONAL AND FAMILY FESTIVALS Ex. xii. 43-44; Deut xii. 12, 18, xvi. 10-16.

VII. THEY WERE STATEDLY INSTRUCTED IN MORALITY AND RELIGION. Deut. xxxi. 10-13; Josh. viii. 33-35; 2 Chron. xvii. 8-9, xxxv. 3, and xxxiv. 30. Neh. viii. 7, 8.

VIII. THEY WERE RELEASED FROM THEIR REGULAR LABOR NEARLY ONE HALF OF THE WHOLE TIME. During which they had their entire support, and the same instruction that was provided for the other members of the Hebrew community. The Law secured to them,

1. *Every seventh year*; Lev. xxv. 3-6; thus giving to those who were servants during the entire period between the jubilees, *eight whole years*, (including the jubilee year,) of unbroken rest.

2. *Every seventh day*. This in forty-two years, the eight being subtracted from the fifty, would amount to just *six years*.

3. *The three annual festivals*. Ex. xxiii. 17, xxxiv. 23. The *Passover*, which commenced on the 15th of the 1st month, and lasted seven days, Deut. xvi. 3, 8. The Pentecost, or Feast of Weeks, which began on the 6th day of the

3d month, and lasted seven days. Deut. xvi. 10, 11. The Feast of Tabernacles, which commenced on the 15th of the 7th month, and lasted eight days. Deut. xvi. 13, 15; Lev. xxiii. 34-39. As all met in one place, much time would be spent on the journey. Cumbered caravans move slowly. After their arrival, a day or two would be requisite for divers preparations before the celebration, besides some time at the close of it, in preparations for return. If we assign three weeks to each festival—including the time spent on the journeys, and the delays before and after the celebration, together with the *festival week*, it will be a small allowance for the cessation of their regular labor. As there were three festivals in the year, the main body of the servants would be absent from their stated employments at least *nine weeks annually*, which would amount in forty-two years, subtracting the sabbaths, to six years and eighty-four days.

4. *The new moons*. The Jewish year had twelve; Josephus says that the Jews always kept *two* days for the new moon. See Calmet on the Jewish Calendar, and Horne's Introduction; also 1 Sam. xx, 18, 19, 27. This, in forty-two years, would be two years 280 days.

5. *The feast of trumpets*. On the first day of the seventh month, and of the civil year. Lev. xxiii. 24, 25.

6. *The atonement day*. On the tenth of the seventh month Lev. xxiii. 27.

These two feasts would consume not less than sixty-five days not reckoned above.

Thus it appears that those who continued servants during the period between the jubilees, were by law released from their labor, TWENTY-THREE YEARS AND SIXTY-FOUR DAYS, OUT OF FIFTY YEARS, and those who remained a less time, in nearly the same proportion. In this calculation, besides making a donation of all the *fractions* to the objector, we have left out those numerous *local* festivals to which frequent allusion is made, Judg. xxi. 19; 1 Sam. ix. 12. 22. etc., and the various *family* festivals, such as at the weaning of children; at marriages; at sheep shearings; at circumcisions; at the making of covenants, &c., to which reference is often made, as in 1 Sam, xx. 6. 28, 29. Neither have we included the festivals instituted at a later period of the Jewish history—the feast of Purim, Esth.

ix. 28, 29; and of the Dedication, which lasted eight days. John x. 22; 1 Mac. iv. 59.

Finally, the Mosaic system secured to servants, an amount of time which, if distributed, would be almost ONE HALF OF THE DAYS IN EACH YEAR. Meanwhile, they were supported, and furnished with opportunities of instruction. If this time were distributed over *every day*, the servants would have to themselves nearly *one half of each day*.

The service of those Strangers who were *national* servants or tributaries, was regulated upon the same benevolent principle, and secured to them TWO-THIRDS of the whole year. "A month they were in Lebanon, and two months they were at home." 1 Kings, v. 13-15. Compared with 2 Chron. 11. 17-19, viii. 7-9; 1 Kings, ix 20. 22. The regulations under which the inhabitants of Gibeon, Chephirah, Beeroth and Kirjath-jearim, (afterwards called *Nethinims*) performed service for the Israelites, must have secured to them nearly the whole of their time. If, as is probable, they served in courses corresponding to those of their priests whom they assisted, they were in actual service less than one month annually.

IX. THE SERVANT WAS PROTECTED BY LAW EQUALLY WITH THE OTHER MEMBERS OF THE COMMUNITY

Proof.—"Judge righteously between every man and his brother and THE STRANGER THAT IS WITH HIM." "Ye shall not RESPECT PERSONS in judgment, but ye shall hear the SMALL as well as the great." Deut. i. 16, 19. Also Lev. xix. 15. xxiv. 22. "Ye shall have one manner of law as well for the STRANGER, as for one of your own country." So Num. xv. 29. "Ye shall have ONE LAW for him that sinneth through ignorance, both for him that is born among the children of Israel and for the STRANGER that sojourneth among them." Deut. xxvii. 19. "Cursed be he that PERVERTETH THE JUDGMENT OF THE STRANGER."^A Deut. xxvii. 19.

^A: In a work entitled, "Instruction in the Mosaic Religion" by Professor Jholson, of the Jewish seminary at Frankfort-on-the-Main, translated into English by Rabbi Leeser, we find the following.—Sec. 165.

"Question. Does holy writ any where make a difference between the Israelite and the other who is no Israelite, in those laws and prohibitions which forbid us the *committal of any thing against our fellow men*?"

"Answer. No where we do find a trace of such a difference. See Lev. xix. 33-36."

"God says thou shalt not murder, *steal*, cheat, &c. In every place the action *itself* is prohibited as being an abomination to God *without respect to the persons against whom it is committed*."

X. THE MOSAIC SYSTEM ENJOINED THE GREATEST AFFECTION AND KINDNESS TOWARDS SERVANTS, FOREIGN AS WELL AS JEWISH.

"The stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself." Lev. xix. 34. "For the Lord your God * * REGARDETH NOT PERSONS. He doth execute the judgment of the fatherless and widow, and LOVETH THE STRANGER, in giving him food and raiment, LOVE YE THEREFORE THE STRANGER." Deut. x. 17, 19. "Thou shalt neither vex a STRANGER nor oppress him." Ex. xxii. 21. "Thou shalt not oppress a STRANGER, for ye know the heart of a stranger." Ex. xxiii. 9. "If thy brother be waxen poor thou shalt relieve him, yea, though he be a STRANGER or a sojourner, that he may live with thee, take thou no usury of him or increase, but fear thy God." Lev. xxv. 35, 36. Could this same stranger be taken by one that feared his God, and held as a slave, and robbed of time, earnings, and all his rights?

XI. SERVANTS WERE PLACED UPON A LEVEL WITH THEIR MASTERS IN ALL CIVIL AND RELIGIOUS RIGHTS. Num. xv. 15, 16, 29; ix. 14; Deut. i. 16, 17; Lev. xxiv. 22. To these may be added that numerous class of passages which represents God as regarding *alike* the natural rights of *all* men, and making for all an *equal* provision. Such as, 2 Chron. xix. 7; Prov. xxiv. 23, xxviii. 21; Job. xxxiv. 19, 2 Sam. xiv. 14; Acts x. 35; Eph. vi. 9.

Finally—With such watchful jealousy did the Mosaic Institutes guard the *rights* of servants, as to make the mere fact of a servant's escape from his

master presumptive evidence that his master had *oppressed* him; and on that presumption, annulled his master's authority over him, gave him license to go wherever he pleased, and commanded all to protect him. Deut. xxiii. 15, 16. As this regulation will be examined under a subsequent head, where its full discussion more appropriately belongs, we notice it here merely to point out its bearings on the topic under consideration.

THESE ARE REGULATIONS OF THAT MOSAIC SYSTEM WHICH IS CLAIMED BY SLAVEHOLDERS AS THE PROTOTYPE OF AMERICAN SLAVERY.

II. WERE PERSONS MADE SERVANTS AGAINST THEIR WILLS?

We argue that they became servants of *their own accord*, because,

I. TO BECOME A SERVANT WAS TO BECOME A PROSELYTE.

Whoever of the strangers became a servant, he was required to abjure idolatry, to enter into covenant with God^A, be circumcised in token of it, be bound to keep the Sabbath, the Passover, the Pentecost, and the Feast of Tabernacles, and to receive instruction in the moral and ceremonial law. Were the servants *forced* through all these processes? Was the renunciation of idolatry *compulsory*? Were they *dragged* into covenant with God? Were they seized and circumcised by *main strength*? Were they *compelled* mechanically to chew and swallow the flesh of the Paschal lamb, while they abhorred the institution, spurned the laws that enjoined it, detested its author and its executors, and instead of rejoicing in the deliverance which it commemorated, bewailed it as a calamity, and cursed the day of its consummation? Were they *driven* from all parts of the land three times in the year to the annual festivals? Were they drugged with instruction which they nauseated? Were they goaded through a round of ceremonies, to them senseless and disgusting mummeries; and drilled into the tactics of a creed rank with loathed abominations? We repeat it, to become a *servant*, was to become a *proselyte*. Did God authorize his people to make proselytes at the point of the bayonet? by the terror of pains and penalties? by converting men into *merchandise*? Were *proselyte* and *chattel* synonymes in the Divine vocabulary? Must a man be sunk to a *thing* before taken into covenant with

God? Was this the stipulated condition of adoption? the sure and sacred passport to the communion of the saints?

[A](#): Maimonides, a contemporary with Jarchi, and who stands with him at the head of Jewish writers, gives the following testimony on this point:

"Whether a servant be born in the power of an Israelite, or whether he be purchased from the heathen, the master is to bring them both into the covenant.

"But he that is in the *house* is entered on the eighth day, and he that is bought with money, on the day on which his master receives him, unless the slave be *unwilling*. For if the master receive a grown slave, and he be *unwilling*, his master is to bear with him, to seek to win him over by instruction, and by love and kindness, for one year. After which, should he *refuse* so long, it is forbidden to keep him longer than a year. And the master must send him back to the strangers from whence he came. For the God of Jacob will not accept any other than the worship of a *willing* heart."—Maimon, Hilcoth Miloth, Chap. 1, Sec. 8.

The ancient Jewish Doctors assert that the servant from the Strangers who at the close of his probationary year, refused to adopt the Jewish religion and was on that account sent back to his own people, received a *full compensation* for his services, besides the payment of his expenses. But that *postponement* of the circumcision of the foreign servant for a year (*or even at all* after he had entered the family of an Israelite) of which the Mishnic doctors speak, seems to have been *a mere usage*. We find nothing of it in the regulations of the Mosaic system. Circumcision was manifestly a rite strictly *initiatory*. Whether it was a rite merely *national* or *spiritual*, or *both*, comes not within the scope of this inquiry.

II. THE SURRENDER OF FUGITIVE SERVANTS TO THEIR MASTERS WAS PROHIBITED. "Thou shalt not deliver unto his master the servant which is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best; thou shalt not oppress him." Deut. xxiii. 15, 16.

As though God had said, "To deliver him up would be to recognize the *right* of the master to hold him; his *fleeing* shows his *choice*, proclaims his wrongs and his title to protection; you shall not force him back and thus recognize the *right* of the master to hold him in such a condition as induces him to flee to others for protection." It may be said that this command referred only to the servants of *heathen* masters in the surrounding nations. We answer: the terms of the command are unlimited. But the objection, if valid, would merely shift the pressure of the difficulty to another point. Did God require them to protect the *free choice* of a *single* servant from the heathen, and yet *authorize* the same persons, to crush the free choice of *thousands* of servants from the heathen? Suppose a case. A *foreign* servant escapes to the Israelites; God says, "He shall dwell with thee, in that place which *he shall choose*, in one of thy gates where it *liketh him* best." Now, suppose this same servant, instead of coming into Israel of his own accord, had been *dragged* in by some kidnapper, who bought him of his master, and forced him into a condition against his will; would He who forbade such treatment of the stranger, who *voluntarily* came into the land, sanction the same treatment of the *same person*, provided in addition to this last outrage, the previous one had been committed of forcing him into the nation against his will? To commit violence on the free choice of a foreign servant is forsooth a horrible enormity, provided you *begin* the violence *after* he has come among you. But if you commit the first act on the *other side of the line*; if you begin the outrage by buying him from a third person against his will, and then tear him from home, drag him across the line into the land of Israel, and hold him as a slave—ah! that alters the case, and you may perpetrate the violence now with impunity! Would *greater* favor have been shown to this new comer than to the old residents—those who had been servants in Jewish families perhaps for a generation? Were the Israelites commanded to exercise towards *him*, uncircumcised and out of the covenant, a justice and kindness denied to the multitudes who *were* circumcised, and *within* the covenant? But, the objector finds small gain to his argument on the supposition that the covenant respected merely the fugitives from the surrounding nations, while it left the servants of the Israelites in a condition against their wills. In that case, the surrounding nations would adopt retaliatory measures, and become so many asylums for Jewish fugitives. As these nations were not only on every side of them, but in their midst, such a proclamation would have been an effectual lure to

men whose condition was a constant counteraction of will. Besides the same command which protected the servant from the power of his foreign *master*, protected him equally from the power of an *Israelite*. It was not, merely "Thou shalt not deliver him unto his *master*," but "he shall dwell with thee, in that place which *he shall choose* in one of thy gates where it liketh *him* best." Every Israelite was forbidden to put him in any condition *against his will*. What was this but a proclamation, that all who *chose* to live in the land and obey the laws, were left to their own free will, to dispose of their services at such a rate, to such persons, and in such places as they pleased? Besides, grant that this command prohibited the sending back of *foreign* servants only, there was no law requiring the return of servants who had escaped from the *Israelites*. *Property* lost, and *cattle* escaped, they were required to return, but not escaped *servants*. These verses contain, 1st, a command, "Thou shalt not deliver," &c., 2d, a declaration of the fugitive's right of *free choice*, and of God's will that he should exercise it at his own discretion; and 3d, a command guarding this right, namely, "Thou shalt not oppress him," as though God had said, "If you restrain him from exercising his *own choice*, as to the place and condition of his residence, it is *oppression*, and shall not be tolerated."[A](#)

[A](#): Perhaps it may be objected that this view of Deut. xxiii. 15, 16, makes nonsense of Ex. xxi. 27, which provides that if a man strikes out his servant's tooth he shall let him go free. Small favor indeed if the servant might set himself free whenever he pleased! Answer—The former passage might remove the servant from the master's *authority*, without annulling the master's legal claims upon the servant, if he had paid him in advance and had not received from him an equivalent, and this equally, whether his master were a Jew or a Gentile. The latter passage, "He shall let him go free *for his tooth's sake*," not only freed the servant from the master's authority, but also from any pecuniary claim which the master might have on account of having paid his wages in advance; and this *as a compensation*, for the loss of a tooth.

III. THE SERVANTS HAD PECULIAR OPPORTUNITIES AND FACILITIES FOR ESCAPE. Three times every year, all the males over twelve years, were required to attend the national feasts. They were thus absent from their homes not less than three weeks at each time, making nine

weeks annually. As these caravans moved over the country, were there military scouts lining the way, to intercept deserters?—a corporal's guard at each pass of the mountains, sentinels pacing the hilltops, and light-horse scouring the defiles? The Israelites must have had some safe contrivance for taking their "*slaves*" three times in a year to Jerusalem and back. When a body of slaves is moved any distance in our *republic*, they are handcuffed and chained together, to keep them from running away, or beating their drivers' brains out. Was this the *Mosaic* plan, or an improvement introduced by Samuel, or was it left for the wisdom of Solomon? The usage, doubtless, claims a paternity not less venerable and biblical! Perhaps they were lashed upon camels, and transported in bundles, or caged up and trundled on wheels to and fro, and while at the Holy City, "lodged in jail for safe keeping," the Sanhedrim appointing special religious services for their benefit, and their "drivers" officiating at "ORAL instruction." Meanwhile, what became of the sturdy *handmaids* left at home? What hindered them from stalking off in a body? Perhaps the Israelitish matrons stood sentry in rotation round the kitchens, while the young ladies scoured the country, as mounted rangers, picking up stragglers by day, and patrolled the streets, keeping a sharp look-out at night!

IV. WILFUL NEGLECT OF CEREMONIAL RITES DISSOLVED THE RELATION.

Suppose the servants from the heathen had, upon entering Jewish families, refused circumcision; if *slaves*, how simple the process of emancipation! Their *refusal* did the job. Or, suppose they had refused to attend the annual feasts, or had eaten leavened bread during the Passover, or compounded the ingredients of the anointing oil, or had touched a dead body, a bone, or a grave, or in any way had contracted ceremonial uncleanness, and refused to be cleansed with the "water of separation," they would have been "cut off from the people;" *excommunicated*. Ex. xii. 19; xxx. 33; Num. xix. 16.

V. SERVANTS OF THE PATRIARCHS NECESSARILY VOLUNTARY.

Abraham's servants are an illustration. At one time he had three hundred and eighteen *young men* "born in his house," and many more *not* born in his house. His servants of all ages were probably MANY THOUSANDS. How did Abraham and Sarah contrive to hold fast so many thousand servants

against their wills? The most natural supposition is that the Patriarch and his wife "took turns" in surrounding them! The neighboring tribes, instead of constituting a picket guard to hem in his servants, would have been far more likely to sweep them and him into captivity, as they did Lot and his household. Besides, there was neither "constitution" nor "compact," to send back Abraham's fugitives, nor a truckling police to pounce upon them, nor gentlemen-kidnappers, suing for his patronage, volunteering to howl on their track, boasting their blood-hound scent, and pledging their honour to hunt down and deliver up, provided they had a description of the "flesh-marks," and were suitably stimulated by pieces of silver.^A Abraham seems also to have been sadly deficient in all the auxiliaries of family government, such as stocks, hand-cuffs, foot-chains, yokes, gags, and thumb-screws. His destitution of these patriarchal indispensables is the more afflicting, since he faithfully trained "his household to do justice and judgment," though so deplorably destitute of the needful aids.

^A: The following is a standing newspaper advertisement of one of these professional man-catchers, a member of the New York bar, who coolly plies his trade in the commercial emporium, sustained by the complacent greetings and courtesies of "HONORABLE MEN!"

"IMPORTANT TO THE SOUTH.—F.H. Pettis, native of Orange County, Va., being located in the city of New York, in the practice of law, announces to his friends and the public in general, that he has been engaged as Counsel and Adviser in General for a party whose business it is in the northern cities to arrest and secure runaway slaves. He has been thus engaged for several years, and as the act of Congress alone governs now in this city, in business of this sort, which renders it easy for the recovery of such property, he invites post paid communications to him, inclosing a fee of \$20 in each case, and a power of Attorney minutely descriptive of the party absconded, and if in the northern region, he, or she will soon be had.

"Mr. Pettis will attend promptly to all law business confided to him.

"N.B. New York City is estimated to contain 5,000 Runaway Slaves.

"PETTIS."

Probably Job had even more servants than Abraham. See Job. i. 3, 14-19, and xlii. 12. That his thousands of servants staid with him entirely of their own accord, is proved by the *fact* of their staying with him. Suppose they had wished to quit his service, and so the whole army had filed off before him in full retreat, how could the patriarch have brought them to halt? Doubtless with his wife, seven sons, and three daughters for allies, he would have soon out-flanked the fugitive host and dragged each of them back to his wonted chain and staple.

But the impossibility of Job's servants being held against their wills, is not the only proof of their voluntary condition. We have his own explicit testimony that he had not "withheld from the poor their *desire*." Job. xxxi. 16. Of course he could hardly have made them live with him, and forced them to work for him against *their desire*.

When Isaac sojourned in the country of the Philistines he "had *great store* of servants." And we have his testimony that the Philistines hated him, added to that of inspiration that they "envied" him. Of course they would hardly volunteer to organize patrols and committees of vigilance to keep his servants from running away, and to drive back all who were found beyond the limits of his plantation without a "pass!" If the thousands of Isaac's servants were held against their wills, who held them?

The servants of the Jews, during the building of the wall of Jerusalem, under Nehemiah, may be included under this head. That they remained with their masters of their own accord, we argue from the fact, that the circumstances of the Jews made it impossible for them to *compel* their residence and service. They were few in number, without resources, defensive fortifications, or munitions of war, and surrounded withal by a host of foes, scoffing at their feebleness and inviting desertion from their ranks. Yet so far from the Jews attempting in any way to restrain their servants, or resorting to precautions to prevent escape, they put arms into their hands, and enrolled them as a night-guard, for the defence of the city. By cheerfully engaging in this service and in labor by day, when with entire ease they might all have left their masters, marched over to the enemy, and been received with shoutings, the servants testified that their condition was

one of *their own choice*, and that they regarded their own interests as inseparably identified with those of their masters. Neh. iv. 23.

VI. NO INSTANCES OF ISRAELITISH MASTERS SELLING

SERVANTS. Neither Abraham nor Isaac seem ever to have sold one, though they had "great store of servants." Jacob was himself a servant in the family of Laban twenty-one years. He had afterward a large number of servants. Joseph invited him to come into Egypt, and to bring all that he had with him—"thou and thy children, and thy children's children, and thy flocks and thy herds, and ALL THAT THOU HAST." Gen. xlv. 10. Jacob took his flocks and herds but *no servants*. Yet we are told that Jacob "took his journey with *all that he had*." Gen. xlv. 1. And after his arrival in Egypt, Joseph said to Pharaoh "my father, and my brethren, and their flocks, and their herds and *all that they have*, are come." Gen. xlvii. 1. The servants doubtless, served under their *own contracts*, and when Jacob went into Egypt, they *chose* to stay in their own country.

The government might sell *thieves*, if they had no property, until their services had made good the injury, and paid the legal fine. Ex. xxii. 3. But *masters* seem to have had no power to sell their *servants*. To give the master a *right* to sell his servant, would annihilate the servant's right of choice in his own disposal; but says the objector, "to give the master a right to *buy* a servant, equally annihilates the servant's *right of choice*." Answer. It is one thing to have a right to buy a man, and a quite another thing to have a right to buy him of *another* man.^{[A](#)}

^{[A](#)}: There is no evidence that masters had the power to dispose of even the *services* of their servants, as men hire out their laborers whom they employ by the year; but whether they had or not, affects not the argument.

Though servants were not bought of their masters, yet young females were bought of their *fathers*. But their purchase as *servants* was their betrothal as WIVES. Ex. xxi. 7, 8. "If a man sell his daughter to be a maid-servant, she shall not go out as the men-servants do. If she please not her master WHO HATH BETROTHED HER TO HIMSELF, he shall let her be redeemed."^{[B](#)}

B: The comment of Maimonides on this passage is as follows:—"A Hebrew handmaid might not be sold but to one who laid himself under obligations, to espouse her to himself or to his son, when she was fit to be betrothed."—*Maimonides—Hilcoth—Obedim*, Ch. IV. Sec. XI. Jarchi, on the same passage, says, "He is bound to espouse her to be his wife, for the *money of her purchase* is the money of her *espousal*."

VII. VOLUNTARY SERVANTS FROM THE STRANGERS.

We infer that *all* the servants from the Strangers were voluntary in becoming such, since we have direct testimony that some of them were so. "Thou shalt not oppress an hired servant that is poor and needy, whether he be of thy brethren, OR OF THY STRANGERS that are in thy land within thy gates." Deut. xxiv. 14. We learn from this that some of the servants, which the Israelites obtained from the strangers were procured by presenting the inducement of *wages* to their *free choice*, thus recognizing their right to sell their services to others, or not, at their own pleasure. Did the Israelites, when they went among the heathen to procure servants, take money in one hand and ropes in the other? Did they *ask* one man to engage in their service, and *drag* along with them the next that they met, in spite of his struggles. Did they knock for admission at one door and break down the next? Did they go through one village with friendly salutations and respectful demeanor, and with the air of those soliciting favors, offer wages to the inhabitants as an inducement to engage in their service—while they sent on their agents to prowl through the next, with a kidnapping posse at their heels, to tear from their homes as many as they could get within their clutches?

VIII. HEBREW SERVANTS VOLUNTARY.

We infer that the Hebrew servant was voluntary in COMMENCING his service, because he was preeminently so IN CONTINUING it. If, at the year of release, it was the servant's *choice* to remain with his master, the law required his ear to be bored by the judges of the land, thus making it impossible for him to be held against his will. Yea more, his master was *compelled* to keep him, however much he might wish to get rid of him.

IX. THE MANNER OF PROCURING SERVANTS, AN APPEAL TO CHOICE.

The Israelites were commanded to offer them a suitable inducement, and then leave them to decide. They might neither seize them by *force*, nor frighten them by *threats*, nor wheedle them by false pretences, nor *borrow* them, nor *beg* them; but they were commanded to BUY them^A—that is, they were to recognize the *right* of the individuals to *dispose* of their own services, and their right to *refuse all offers*, and thus oblige those who made them, *to do their own work*. Suppose all, with one accord, had *refused* to become servants, what provision did the Mosaic law make for such an emergency? NONE.

^A: The case of thieves, whose services were sold until they had earned enough to make restitution to the person wronged, and to pay the legal penalty, *stands by itself*, and has nothing to do with the condition of servants.

X. INCIDENTAL CORROBORATIVES. Various incidental expressions corroborate the idea that servants became such by their own contract. Job. xli. 4, is an illustration, "Will he (Leviathan) make a COVENANT with thee? wilt thou take him for a SERVANT forever?" Isa. xiv. 1, 2 is also an illustration. "The strangers shall be joined with them (the Israelites) and *they shall CLEAVE* to the house of Jacob, and the house of Israel shall possess them in the land of the Lord, for servants and handmaids."

The transaction which made the Egyptians the SERVANTS OF PHARAOH was voluntary throughout. See Gen. xlvii. 18-26. Of their own accord they came to Joseph and said, "There is not aught left but our *bodies* and our lands; *buy* us;" then in the 25th verse, "We will be Pharaoh's servants." To these it may be added, that the sacrifices and offerings which ALL were required to present, were to be made VOLUNTARILY. Lev. i. 2. 3.

The pertinence and point of our Lord's declaration in Luke xvi. 13, is destroyed on the supposition that servants did not become such by *their own choice*. "No servant can serve two masters: for either he will hate the one and love the other, or else he will hold to the one and despise the other." Let it be kept in mind, that our Lord was a *Jew*. The lost sheep of the house

of Israel were his flock. Wherever he went, they were around him: whenever he spake, they were his auditors. His public preaching and his private teaching and conversation, were full of references to their own institutions, laws and usages, and of illustrations drawn from them. In the verse quoted, he illustrates the impossibility of their making choice of God as their portion, and becoming his servants, while they chose the world, and were *its* servants. To make this clear, he refers to one of their own institutions, that of *domestic service*, with which, in all its relations, incidents and usages, they were perfectly familiar. He reminds them of the well-known impossibility of any person being the servant of two masters, and declares the sole ground of that impossibility to be, the fact that the servant *chooses* the service of the one, and *spurns* that of the other. "He shall *hold to* the one and *despise* (reject) the other." As though our Lord had said, "No one can become the servant of another, when his will revolts from his service, and when the conditions of it tend to make him hate the man." Since the fact that the servant *spurns* one of two masters, makes it impossible for him to serve *that one*, if he spurned *both* it would make it impossible for him to serve *either*. So, also, if the fact that an individual did not "hold to" or choose the service of another, proves that he could not become his servant, then the question, whether or not he should become the servant of another was suspended on *his own will*. Further, the phraseology of the passage shows that the *choice* of the servant decided the question. "He will HOLD TO the one,"—hence there is no difficulty in the way of his serving *him*; but "no servant can serve" a master whom he does not "*hold to*," or *cleave to*, whose service he does not *choose*. This is the sole ground of the impossibility asserted by our Lord.

The last clause of the verse furnishes an application of the principle asserted in the former part, "Ye cannot serve God and mammon." Now in what does the impossibility of serving both God and the world consist? Solely in the fact that the will which chooses the one refuses the other, and the affections which "hold to" the one, reject the other. Thus the question, Which of the two is to be served, is suspended alone upon the *choice* of the individual.

XI. RICH STRANGERS DID NOT BECOME SERVANTS. Indeed, so far were they from becoming servants themselves, that they bought and held Jewish servants. Lev. xxv. 47. Since *rich* strangers did not become servants

to the Israelites, we infer that those who *did*, became such not because they were *strangers*, but because they were *poor*,—not because, on account of their being heathen, they were *compelled by force* to become servants, but because, on account of their *poverty*, they *chose* to become servants to better their condition.

XII. INSTANCES OF VOLUNTARY SERVANTS. Mention is often made of persons becoming servants who were manifestly VOLUNTARY. As the Prophet Elisha. 1 Kings xix. 21; 2 Kings iii. 11. Elijah was his *master*. 2 Kings ii. 5. The word translated master, is the same that is so rendered in almost every instance where masters are spoken of under the Mosaic and patriarchal systems. Moses was the servant of Jethro. Ex. iii. 1; iv. 10. Joshua was the servant of Moses. Ex. xxxiii. 11. Num. xi. 28. Jacob was the servant of Laban. Gen. xxix. 18-27. See also the case of the Gibeonites who *voluntarily* became servants to the Israelites and afterwards performed service for the "house of God" throughout the subsequent Jewish history, were incorporate with the Israelites, registered in the genealogies, and manifestly of their own accord remained with them, and "*clave*" to them. Neh. x. 28, 29; xi. 3; Ez. vii. 7.

Finally, in all the regulations respecting servants and their service, no form of expression is employed from which it could be inferred, that servants were made such, and held in that condition by force. Add to this the entire absence of all the machinery, appurtenances and incidents of *compulsion*.

Voluntary service on the part of servants would have been in keeping with regulations which abounded in the Mosaic system and sustained by a multitude of analogies. Compulsory service on the other hand, could have harmonized with nothing, and would have been the solitary disturbing force, marring its design, counteracting its tendencies, and confusing and falsifying its types. The directions given to regulate the performance of service for the *public*, lay great stress on the *willingness* of those employed to perform it. For the spirit and usages that obtained under the Mosaic system in this respect, see 1 Chron. xxviii. 21; Ex. xxxv. 5, 21, 22, 29; 1 Chron. xxix. 5, 6, 9, 14, 17; Ex. xxv. 2; Judges v. 2; Lev. xxii. 29; 2 Chron. xxxv. 8; Ezra i. 6; Ex. xxxv; Neh. xi. 2.^{[A](#)}

A: We should naturally infer that the directions which regulated the rendering of service to individuals, would proceed upon the same principle in this respect with those which regulated the rendering of service to the *public*. Otherwise the Mosaic system, instead of constituting in its different parts a harmonious *whole*, would be divided against itself; its principles counteracting and nullifying each other.

Again, the voluntariness of servants is a natural inference from the fact that the Hebrew word *ebēdh*, uniformly rendered *servant*, is applied to a great variety of classes and descriptions of persons under the patriarchal and Jewish dispensations, *all of whom* were voluntary and most of them eminently so. For instance, it is applied to persons rendering acts of *worship* about seventy times, whereas it is applied to *servants* not more than half that number of times.

To this we may add, that the illustrations drawn from the condition and service of *servants* and the ideas which the term servant is employed to convey when applied figuratively to moral subjects would, in most instances, lose all their force, and often become absurdities if the will of the servant *resisted* his service, and he performed it only by *compulsion*. Many passages will at once occur to those who are familiar with the Bible. We give a single example. "*To whom YE YIELD YOURSELVES servants to obey, his servants ye are to whom ye obey.*" Rom. vi. 16. It would hardly be possible to assert the voluntariness of servants more strongly in a direct proposition than it is here asserted by implication.

III. WERE SERVANTS FORCED TO WORK WITHOUT PAY

As the servants became and continued such of *their own accord*, it would be no small marvel if they *chose* to work without pay. Their becoming servants, pre-supposes *compensation* as a motive. That they *were paid* for their labor, we argue.

1. BECAUSE GOD REBUKED THE USING OF SERVICE WITHOUT WAGES. "Wo unto him that buildeth his house by unrighteousness, and his chambers by wrong; THAT USETH HIS NEIGHBOR'S SERVICE WITHOUT WAGES, AND GIVETH HIM NOT FOR HIS WORK." Jer.

xxii. 13. The Hebrew word *reā*, translated *neighbor*, means any one with whom we have to do—all descriptions of persons, even those who prosecute us in lawsuits, and enemies while in the act of fighting us—"As when a man riseth against his NEIGHBOR and slayeth him." Deut. xxii. 26. "Go not forth hastily to strive, lest thou know not what to do in the end thereof, when thy NEIGHBOR hath put thee to shame." Prov. xxv. 8. "Thou shalt not bear false witness against thy NEIGHBOR." Ex. xx. 16. "If a man come presumptuously upon his NEIGHBOR to slay him with guile." Ex. xxi. 14, &c. The doctrine plainly inculcated in this passage is, that every man's labor, or "service," being his own property, he is entitled to the profit of it, and that for another to "use" it without paying him the value of it, is "unrighteousness." The last clause of the verse "and giveth him not for his work," reaffirms the same principle, that every man is to be *paid* for "his work." In the context, the prophet contrasts the unrighteousness of those who used the labor of others without pay, with the justice and equity practiced by their patriarchal ancestor toward the poor. "Did not thy father eat and drink and *do judgment and justice*, and then it was well with him. He *judged the cause of the poor and needy*; then it was well with him. But thine eyes and thine heart are not but for thy *covetousness*, and for to shed innocent blood, and for *oppression*, and for violence to do it." Jer. xxii. 15, 16. 17. [A](#)

[A](#): Paul lays down the same principle in the form of a precept "Masters give unto your servants that which is JUST and EQUAL." Col. iv. 1. Thus not only asserting the *right* of the servant to an equivalent for his labor, and the duty of the master to render it, but condemning all those relations between master and servant which were not founded upon justice and equality of rights. The apostle James enforces the same principle. "Behold, the hire of the laborers, who have reaped down your fields, which is of you kept back *by fraud*, crieth." James v. 4. As though he had said, "wages are the *right* of laborers; those who work for you have a just claim on you for *pay*; this you refuse to render, and thus *defraud* them by keeping from them what *belongs* to them." See also Mal. iii 5.

II. GOD TESTIFIES THAT IN OUR DUTY TO OUR FELLOW MEN,
ALL THE LAW AND THE PROPHETS HANG UPON THIS
COMMAND, "THOU SHALT LOVE THY NEIGHBOR AS THYSELF."

Our Savior, in giving this command, quoted *verbatim* one of the laws of the Mosaic system. Lev. xix. 18. In the 34th verse of the same chapter, Moses applies this law to the treatment of strangers, "The stranger that dwelleth with you shall be unto you as one born among you, and THOU SHALT LOVE HIM AS THYSELF." If it be loving others as ourselves, to make them work for us without pay; to rob them of food and clothing also, would be a stronger illustration still of the law of love! *Super*-disinterested benevolence! And if it be doing unto others as we would have them do to us, to make them work for *our own* good alone, Paul should be called to order for his hard sayings against human nature, especially for that libellous matter in Eph. v. 29, "No man ever yet hated his own flesh, but nourisheth it and cherisheth it."

III. SERVANTS WERE OFTEN WEALTHY. As persons became servants FROM POVERTY, we argue that they were compensated, since they frequently owned property, and sometimes a large amount. Ziba, the servant of Mephibosheth, gave David "Two hundred loaves of bread, and a hundred bunches of raisins, and a hundred of summer fruits, and a bottle of wine." 2 Sam. xvi. 1. The extent of his possessions can be inferred from the fact, that though the father of fifteen sons, he had twenty servants. In Lev. xxv. 47-49, where a servant, reduced to poverty, sold himself, it is declared that he may be *redeemed*, either by his kindred, or by HIMSELF. Having been forced to sell himself from poverty, he must have acquired considerable property *after* he became a servant. If it had not been common for servants to acquire property over which they had the control, the servant of Elisha would hardly have ventured to take a large sum of money, (nearly \$3000^A) from Naaman, 2 Kings v. 22, 23. As it was procured by deceit, he wished to conceal the means used in getting it; but if servants could "own nothing, nor acquire anything," to embark in such an enterprise would have been consummate stupidity. The fact of having in his possession two talents of silver, would of itself convict him of theft.^B But since it was common for servants to own property, he might have it, and invest or use it, without attracting special attention, and that consideration alone would have been a strong motive to the act. His master, though he rebuked him for using such means to get the money, not only does not take it from him, but seems to expect that he would invest it in real estate, and cattle, and would procure servants with it. 2 Kings v. 26. We find the servant of Saul having money,

and relieving his master in an emergency. 1 Sam. ix. 8. Arza, the servant of Elah, was the *owner of a house*. That it was somewhat magnificent, would be a natural inference from its being a resort of the king. 1 Kings xvi. 9. When Jacob became the servant of Laban, it was evidently from poverty, yet Laban said to him, Tell me "what shall thy *wages* be?" After Jacob had been his servant for ten years, he proposed to set up for himself, but Laban said "Appoint me thy wages and I will give it," and he paid him his price. During the twenty years that Jacob was a servant, he always worked for wages and at his own price. Gen. xxix. 15, 18; xxx. 28-33. The case of the Gibeonites, who, after becoming servants, still occupied their cities, and remained in many respects, a distinct people for centuries;^C and that of the 150,000 Canaanites, the *servants* of Solomon, who worked out their "tribute of bond-service" in levies, periodically relieving each other, are additional illustrations of independence in the acquisition and ownership of property.

^A: Though we have not sufficient data to decide upon the *relative* value of that sum, *then* and now, yet we have enough to warrant us in saying that two talents of silver, had far more value *then* than three thousand dollars have *now*.

^B: Whoever heard of the slaves in our southern states stealing a large amount of money? They "*know how to take care of themselves*" quite too well for that. When they steal, they are careful to do it on such a small scale, or in the taking of *such things* as will make detection difficult. No doubt they steal now and then, and a gaping marvel would it be if they did not. Why should they not follow in the footsteps of their masters and mistresses? Dull scholars indeed! if, after so many lessons from *proficients* in the art, who drive the business by *wholesale*, they should not occasionally copy their betters, fall into the *fashion*, and try their hand in a small way, at a practice which is the *only permanent and universal* business carried on around them! Ignoble truly! never to feel the stirrings of high impulse, prompting to imitate the eminent pattern set before them in the daily vocation of "Honorable" and "Excellencies," and to emulate the illustrious examples of Doctors of Divinity, and *Right and Very Reverends*! Hear President Jefferson's testimony. In his Notes on Virginia, pp. 207-8, speaking of slaves, he says, "That disposition to theft with which they have been branded, must be ascribed to their *situation*, and not to any special

depravity of the moral sense. It is a problem which I give the master to solve, whether the religious precepts against the violation of property were not framed for HIM as well as for his slave—and whether the slave may not as justifiably take a *little* from one who has taken ALL from him, as he may *slay* one who would slay him?"

C: The Nethinims, which name was afterwards given to the Gibeonites on account of their being *set apart* for the service of the tabernacle, had their own houses and cities and "dwelt every one in his own possession." Neh. xi. 3. 21; Ezra ii. 70; 1 Chron. ix. 2.

Again. The Israelites often *hired* servants from the strangers. Deut. xxiv. 17.

Since then it is certain that they gave wages to a part of their Canaanitish servants, thus recognizing their *right* to a reward for their labor, we infer that they did not rob the rest of their earnings.

If God gave them a license to make the strangers work for them without pay—if this was good and acceptable in His sight, and *right and just in itself*, they must have been great fools to have wasted their money by paying wages when they could have saved it, by making the strangers do all their work for nothing! Besides, by refusing to avail themselves of this "Divine license," they despised the blessing and cast contempt on the giver! But far be it from us to do the Israelites injustice; perhaps they seized all the Canaanites they could lay their hands on, and forced them to work without pay, but not being able to catch enough to do their work, were obliged to offer wages in order to eke out the supply!

The parable of our Lord, contained in Mat. xviii. 23-34, not only derives its significance from the fact, that servants can both *own* and *owe* and *earn* property, over which they had the control, but would be made a medley of contradictions on any other supposition.—1. Their lord at a set time proceeded to "take account" and "reckon" with his servants; the phraseology itself showing that the relations between the parties, were those of debt and credit. 2. As the reckoning went on, one of his servants was found to *owe* him ten thousand talents. From the fact that the servant *owed* this to his master, we naturally infer, that he must have been at some time, and in some way, the responsible *owner* of that amount, or of its substantial

equivalent. Not that he had had that amount put into his hands to invest, or disburse, in his master's name, merely as his *agent*, for in that case no claim of *debt* for value received would lie, but, that having sustained the responsibilities of legal *proprietorship*, he was under the liabilities resulting therefrom. 3. Not having on hand wherewith to pay, he says to his master "have patience with me *and I will pay thee all.*" If the servant had been his master's *property*, his time and earnings belonged to the master as a matter of course, hence the promise to earn and pay over that amount, was virtually saying to his master, "I will take money out of your pocket with which to pay my debt to you," thus adding insult to injury. The promise of the servant to pay the debt on condition that the time for payment should be postponed, not only proceeds upon the fact that his time was his own, that he was constantly earning property or in circumstances that enabled him to earn it, and that he was the *proprietor* of his earnings, but that his master had *full knowledge* of that fact.—In a word, the supposition that the master was the *owner* of the servant, would annihilate all legal claim upon him for value received, and that the servant was the *property* of the master, would absolve him from all obligations of debt, or rather would always *forestall* such obligations—for the relations of owner and creditor in such case, would annihilate each other, as would those of *property* and *debtor*. The fact that the same servant was the creditor of one of his fellow servants, who owed him a considerable sum, and that at last he was imprisoned until he should pay all that was due to his master, are additional corroborations of the same point.

IV. HEIRSHIP.—Servants frequently inherited their master's property; especially if he had no sons, or if they had dishonored the family. Eliezer, the servant of Abraham, Gen. xv. 23; Ziba, the servant of Mephibosheth; Jarha, the servant of Sheshan, who married his daughter, and thus became his heir, he having no sons, and the *husbandmen* who said of their master's son, "this is the HEIR, let us kill him, and the INHERITANCE WILL BE OURS," are illustrations; also Prov. xxx. 23, an *handmaid* (or *maid-servant*,) that is *heir* to her mistress; also Prov. xvii. 2—"A wise servant shall have rule over a son that causeth shame, and SHALL HAVE PART OF THE INHERITANCE AMONG THE BRETHREN." This passage gives servants precedence as heirs, even over the wives and daughters of their masters. Did masters hold by force, and plunder of earnings, a class of

persons, from which, in frequent contingencies, they selected both heirs for their property, and husbands for their daughters?

V. ALL WERE REQUIRED TO PRESENT OFFERINGS AND SACRIFICES. Deut. xvi. 16, 17; 2 Chron. xv. 9-11; Numb. ix. 13, 14. Beside this, "every man" from twenty years old and above, was required to pay a tax of half a shekel at the taking of the census; this is called "an offering unto the Lord to make an atonement for their souls." Ex. xxx. 12-16. See also Ex. xxxiv. 20. Servants must have had permanently the means of *acquiring* property to meet these expenditures.

VI. SERVANTS WHO WENT OUT AT THE SEVENTH YEAR, WERE "FURNISHED LIBERALLY." Deut. xv. 10-14. "Thou shalt furnish him liberally out of thy flock, and out of thy floor, and out of thy wine press, of that wherewith the Lord thy God hath blessed thee, thou shalt give him." [A](#) If it be said that the servants from the Strangers did not receive a like bountiful supply, we answer, neither did the most honorable class of *Israelitish* servants, the free-holders; and for the same reason, *they did not go out in the seventh year*, but continued until the jubilee. If the fact that the Gentile servants did not receive such a *gratuity* proves that they were robbed of their *earnings*, it proves that the most valued class of *Hebrew* servants were robbed of theirs also; a conclusion too stubborn for even pro-slavery masticators, however unscrupulous.

[A](#): The comment of Maimonides on this passage is as follows—"Thou shalt furnish him liberally,' &c. That is to say, '*Loading, ye shall load him,*' likewise every one of his family with as much as he can take with him—abundant benefits. And if it be avariciously asked, 'How much must I give him?' I say unto you, *not less than thirty shekels*, which is the valuation of a servant, as declared in Ex. xxi. 32."—Maimonides, Hilcoth Obedim, Chap. ii. Sec. 3.

VII. SERVANTS WERE BOUGHT. In other words, they received compensation in advance. [A](#) Having shown, under a previous head, that servants *sold themselves*, and of course received the compensation for themselves, except in cases where parents hired out the time of their children till they became of age, [B](#) a mere reference to the fact is all that is

required for the purposes of this argument. As all the strangers in the land were required to pay an annual tribute to the government, the Israelites might often "buy" them as family servants, by stipulating with them to pay their annual tribute. This assumption of their obligations to the government might cover the whole of the servant's time of service, or a part of it, at the pleasure of the parties.

[A](#): But, says the objector, if servants received their pay in advance, and if the Israelites were forbidden to surrender the fugitive to his master, it would operate practically as a bounty offered to all servants who would leave their master's service encouraging them to make contracts, get their pay in advance and then run away, thus cheating their masters out of their money as well as their own services.—We answer, the prohibition, Deut xxiii. 15. 16, "Thou shalt not deliver unto his master," &c., sets the servant free from his *authority* and of course, from all those liabilities of injury, to which *as his servant*, he was subjected, but not from the obligation of legal contracts. If the servant had received pay in advance, and had not rendered an equivalent for this "value received," he was not absolved from his obligation to do so, but he was absolved from all obligations to pay his master in *that particular way*, that is, *by working for him as his servant*.

[B](#): Among the Israelites, girls became of age at twelve, and boys at thirteen years.

VIII. THE RIGHT OF SERVANTS TO COMPENSATION IS RECOGNISED IN Ex. xxi. 27. "And if he smite out his man-servant's, or his maid-servant's tooth, he shall let him go free for his tooth's sake." This regulation is manifestly based upon the *right* of the servant to the *use* of himself and all his powers, faculties and personal conveniences, and consequently his just claim for remuneration, upon him, who should however *unintentionally*, deprive him of the use even of the least of them. If the servant had a right to his *tooth* and the use of it, upon the same principle, he had a right to the rest of his body and the use of it. If he had a right to the *fraction*, and if it was his to hold, to use, and to have pay for; he had a right to the *sum total*, and it was his to hold, to use, and to have pay for.

IX. WE FIND MASTERS AT ONE TIME HAVING A LARGE NUMBER OF SERVANTS, AND AFTERWARDS NONE, WITH NO INTIMATION IN ANY CASE THAT THEY WERE SOLD. The wages of servants would enable them to set up in business for themselves. Jacob, after being Laban's servant for twenty-one years, became thus an independent herdsman, and had many servants. Gen. xxx. 43; xxxii. 16. But all these servants had left him before he went down into Egypt, having doubtless acquired enough to commence business for themselves. Gen. xlv. 10, 11; xlvi. 1-7, 32. The case of Ziba, the servant of Mephibosheth, who had twenty servants, has been already mentioned.

X. GOD'S TESTIMONY TO THE CHARACTER OF ABRAHAM. Gen. xviii. 19. "For I know him that he will command his children and his household after him, and they shall keep THE WAY OF THE LORD TO DO JUSTICE AND JUDGMENT." God here testifies that Abraham taught his servants "the way of the Lord." What was the "way of the Lord" respecting the payment of wages where service was rendered? "Wo unto him that useth this neighbor's service WITHOUT WAGES!" Jer. xxii. 13. "Masters, give unto your servants that which is JUST AND EQUAL." Col. iv. 1. "Render unto all their DUES." Rom. xiii. 7. "The laborer is WORTHY of HIS HIRE." Luke x. 7. How did Abraham teach his servants to "*do justice*" to others? By doing injustice to *them*? Did he exhort them to "render to all their dues" by keeping back *their own*? Did he teach them that "the laborer was worthy of his hire" by robbing them of *theirs*? Did he beget in them a reverence for honesty by pilfering all their time and labor? Did he teach them "not to defraud" others "in any matter" by denying *them* "what was just and equal?" If each of Abraham's pupils under such a catechism did not become a very *Aristides* in justice, then illustrious examples, patriarchal dignity, and *practical* lessons, can make but slow headway against human perverseness!

XI. SPECIFIC PRECEPTS OF THE MOSAIC LAW ENFORCING GENERAL PRINCIPLES. Out of many, we select the following: (1.) "Thou shalt not muzzle the ox when he treadeth out the corn." Deut. xxv. 4. Here is a general principle applied to a familiar case. The ox representing all domestic animals. Isa. xxx. 24. A *particular* kind of service, *all* kinds; and a law requiring an abundant provision for the wants of an animal ministering

to man in a *certain* way,—a general principle of treatment covering all times, modes, and instrumentalities of service. The object of the law was; not merely to enjoin tenderness towards brutes, but to inculcate the duty of rewarding those who serve us; and if such care be enjoined, by God, both for the ample sustenance and present enjoyment of *a brute*, what would be a meet return for the services of *man*?—MAN with his varied wants, exalted nature and immortal destiny! Paul says expressly, that this principle lies at the bottom of the statute. 1 Cor. ix. 9, 10, "For it is written in the law of Moses, Thou shalt not muzzle the mouth of the ox that treadeth out the corn. Doth God take care for oxen? Or saith he it altogether for OUR sakes? that he that ploweth should plow in HOPE, and that he that thresheth in hope should be PARTAKER OF HIS HOPE." In the context, Paul innumbrates the four grand divisions of labor among the Jews in illustration of the principle that the laborer, whatever may be the service he performs, is entitled to a *reward*. The priests, Levites and all engaged in sacred things—the military, those who tended flocks and herds, and those who cultivated the soil. As the latter employment engaged the great body of the Israelites, the Apostle amplifies his illustration under that head by much detail—and enumerates the five great departments of agricultural labor among the Jews—vine-dressing, plowing, sowing, reaping and threshing, as the representatives of universal labor. In his epistle to Timothy. 1 Tim. v. 18. Paul quotes again this precept of the Mosaic law, and connects with it the declaration of our Lord. Luke x. 7. "The laborer is worthy of his hire,"—as both inculcating the *same* doctrine, that he who labors, whatever the employment, or whoever the laborer, is entitled to a reward. The Apostle thus declares the principle of right respecting the performance of service for others, and the rule of duty towards those who perform it, to be the same under both dispensations. (2.) "If thy brother be waxen poor, and fallen in decay with thee, then thou shalt relieve him, YEA THOUGH HE BE A STRANGER or a SOJOURNER that he may live with thee. Take thou no usury of him, or increase, but fear thy God. Thou shalt not give him thy money upon usury, nor lend him thy victuals for increase." Lev. xxv. 35-37. Now, we ask, by what process of pro-slavery legerdemain, this regulation can be made to harmonize with the doctrine of WORK WITHOUT PAY? Did God declare the poor stranger entitled to RELIEF, and in the same breath, authorize them to "use his service without wages;" force him to work and ROB HIM OF HIS EARNINGS?

IV.—WERE MASTERS THE PROPRIETORS OF SERVANTS AS LEGAL PROPERTY?

This topic has been unavoidably somewhat anticipated, in the foregoing discussion, but a variety of additional considerations remain to be noticed.

I. SERVANTS WERE NOT SUBJECTED TO THE USES NOR LIABLE TO THE CONTINGENCIES OF PROPERTY. 1 *They were never taken in payment for their masters' debts.* Children were sometimes taken (without legal authority) for the debts of a father. 2 Kings iv. 1; Job xxiv. 9; Isa. l. 1; Matt. xviii. 25. Creditors took from debtors property of all kinds, to satisfy their demands. Job xxiv. 3, cattle are taken; Prov. xxii. 27, household furniture; Lev. xxv. 25-28, the productions of the soil; Lev. xxv. 27-30, houses; Ex. xxii. 26, 27; Deut. xxiv. 10-13; Matt. v. 40, clothing; but *servants were taken in no instance.* 2. *Servants were never given as pledges.* Property of all sorts was pledged for value received; household furniture, clothing, cattle, money, signets, personal ornaments, &c., but no servants. 3. *Servants were not put into the hands of others, or consigned to their keeping.* The precept giving directions how to proceed in a case where property that has life is delivered to another "to keep," and "it die or be hurt or driven away," enumerates oxen, asses, sheep or "any *beast*," but not "*servants*." Ex. xxii. 10. 4. *All lost property was to be restored.* Oxen, asses, sheep, raiment, and "all lost things," are specified—servants *not*. Deut. xxii 1-3. Besides, the Israelites were forbidden to return the runaway servant. Deut. xxiii, 15. 5. *Servants were not sold.* When by flagrant misconduct, unfaithfulness or from whatever cause, they had justly forfeited their privilege of membership in an Israelitish family, they were not sold, but *expelled* from the household. Luke xvi. 2-4; 2 Kings v. 20, 27; Gen. xxi. 14. 6 *The Israelites never received servants as tribute.* At different times all the nations round about them were their tributaries and paid them annually large amounts. They received property of all kinds in payment of tribute. Gold, silver, brass, iron, precious stone, and vessels, armor, spices, raiment, harness, horses, mules, sheep, goats, &c., are in various places enumerated, but *servants*, never. 7. *The Israelites never gave away their servants as presents.* They made costly presents, of great variety. Lands, houses, all kinds of domestic animals, beds, merchandize, family utensils, precious

metals, grain, honey, butter, cheese, fruits, oil, wine, raiment, armor, &c., are among their recorded *gifts*. Giving presents to superiors and persons of rank, was a standing usage. 1 Sam. x. 27; xvi. 20; 2 Chron. xvii. 5. Abraham to Abimelech, Gen. xxi. 27; Jacob to the viceroy of Egypt, Gen. xliii. 11; Joseph to his brethren and father, Gen. xlv. 22, 23; Benhadad to Elisha, 2 Kings viii. 8, 9; Ahaz to Tiglath Pilezer, 2 Kings vi. 8; Solomon to the Queen of Sheba, 1 Kings x. 13; Jeroboam to Ahijah, 1 Kings xiv. 3; Asa to Benhadad, 1 Kings xv. 18, 19. Abigail the wife of Nabal to David, 1 Sam. xxv. 18. David to the elders of Judah, 1 Sam. xxx. 26. Jehoshaphat to his sons, 2 Chron. xxi. 3. The Israelites to David, 1 Chron. xii. 39, 40. Shobi Machir and Barzillai to David, 2 Sam. xvii. 28, 29. But no servants were given as presents, though it was a prevailing fashion in the surrounding nations. Gen. xii. 16, xx. 14. In the last passage we are told that Abimelech king of the Philistines "took sheep and oxen and men servants and women servants and gave them unto Abraham." Not long after this Abraham made Abimelech a present, the same kind with that which he had received from him except that he gave him *no servants*. "And Abraham took sheep and oxen and gave them unto Abimelech." Gen. xxi. 27. It may be objected that Laban "GAVE" handmaids to his daughters, Jacob's wives. Without enlarging on the nature of the polygamy then prevalent, suffice it to say that the handmaids of wives were regarded as wives, though of inferior dignity and authority. That Jacob so regarded his handmaids, is proved by his curse upon Reuben, Gen. xlix. 4, and 1 Chron. v. 1; also by the equality of their children with those of Rachel and Leah. But had it been otherwise—had Laban given them as *articles of property*, then, indeed, the example of this "good old slaveholder and patriarch," Saint Laban, would have been a forecloser to all argument. Ah! we remember his jealousy for *religion*—his holy indignation when he found that his "GODS" were stolen! How he mustered his clan, and plunged over the desert in hot pursuit seven days by forced marches; how he ransacked a whole caravan, sifting the contents of every tent, little heeding such small matters as domestic privacy, or female seclusion, for lo! the zeal of his "IMAGES" had eaten him up! No wonder that slavery, in its Bible-navigation, drifting dismantled before the free gusts, should scud under the lee of such a pious worthy to haul up and refit; invoking his protection, and the benediction, of his "GODS!" Again, it may be objected that, servants were enumerated in inventories of property. If that proves *servants* property, it proves *wives* property. "Thou shall not covet thy

neighbor's house, thou shall not covet thy neighbor's WIFE, nor his man-servant, nor his maid-servant, nor his ox, nor his ass, nor any thing that is thy neighbor's." Ex. xx. 17. In inventories of mere property, if servants are included, it is in such a way as to show that they are not regarded as property. Eccl. ii. 7, 8. But when the design is to show, not merely the wealth, but the *greatness* and *power* of any one, servants are spoken of, as well as property. In a word, if *riches* alone are spoken of, no mention is made of servants; if *greatness*, servants and property. Gen. xiii. 2, 5. "And Abraham was very rich in cattle, in silver, and in gold." Yet we are told, in the verse preceding, that he came up out of Egypt "with *all* that he had." "And Lot also had flocks, and herds, and tents." In the seventh verse servants are mentioned, "And there was a strife between the HERDMEN of Abraham's cattle and the HERDMEN of Lot's cattle." It is said of Isaac. "And the man waxed *great*, and went forward, and grew until he became *very great*. For he had possession of flocks, and possession of herds, and *great store of servants*." In immediate connection with this we find Abimelech the king of the Philistines saying to him. "Thou art much *mightier* than we." Shortly after this avowal, Isaac is waited upon by a deputation consisting of Abimelech, Phicol the chief captain of his army, and Ahuzzath, who says to him "Let there be now an oath betwixt us and thee, and let us make a covenant with thee, that thou wilt *do us no hurt*." Gen. xxvi. 13, 14, 16, 26, 28, 29.—A plain concession of the *power* which Isaac had both for aggression and defence in his "great store of *servants*;" that is, of willing and affectionate adherents to him as a just and benevolent prince. When Hamor and Shechem speak to the Hivites of the *riches* of Abraham and his sons, they say, "Shall not their *cattle* and their *substance* and *every beast of theirs* be ours?" Gen. xxxiv. 23. See also Josh. xxii. 8; Gen. xxxiv. 23; Job. xlii. 12; 2 Chron. xxi. 3; xxxii. 27-29; Job. i. 3-5; Deut. viii. 12-17; Gen. xxiv. 35; xxvi. 13; xxx. 43. Jacob's wives say to him, "All the *riches* which God has taken from our father that is ours and our children's." Then follows an inventory of property—"All his cattle," "all his goods," "the cattle of his getting." His numerous servants are not included with his property. Comp. Gen. xxx. 43, with Gen. xxxi. 16-18. When Jacob sent messengers to Esau, wishing to impress him with an idea of his state and sway, he bade them tell him not only of his RICHES, but of his GREATNESS; that he had "oxen, and asses, and flocks, and men-servants, and maid-servants." Gen. xxxii. 4, 5. Yet in the present which he sent, there

were no servants; though he manifestly selected the *most valuable* kinds of property. Gen. xxxii. 14, 15; see also Gen. xxxvi. 6, 7; xxxiv. 23. As flocks and herds were the staples of wealth, a large number of servants presupposed large possessions of cattle, which would require many herdsmen. When Jacob and his sons went down into Egypt it is repeatedly asserted that they took *all that they had*. "Their cattle and their goods which they had gotten in the land of Canaan," "Their flocks and their herds" are mentioned, but no *servants*. And as we have besides a full catalogue of the *household*, we know that he took with him no servants. That Jacob *had* many servants before his migration into Egypt, we learn from Gen. xxx. 43; xxxii. 5, 16, 19. That he was not the *proprietor* of these servants as his property is a probable inference from the fact that he did not take them with him, since we are expressly told that he did take all his *property*. Gen. xlv. 10; xlvi. 1, 32; xlvii. 1. When servants are spoken of in connection with *mere property*, the terms used to express the latter do not include the former. The Hebrew word *miknē*, is an illustration. It is derived from *kānā*, to procure, to buy, and its meaning is, a *possession, wealth, riches*. It occurs more than forty times in the Old Testament, and is applied always to *mere property*, generally to domestic animals, but never to servants. In some instances, servants are mentioned in distinction from the *miknē*. "And Abraham took Sarah his wife, and Lot his brother's son, and all their SUBSTANCE that they had gathered; and the souls that they had gotten in Haran, and they went forth to go into the land of Canaan." Gen. xii. 5. Many will have it, that these *souls* were a part of Abraham's *substance* (notwithstanding the pains here taken to separate them from it)—that they were slaves taken with him in his migration as a part of his family effects. Who but slaveholders, either actually or in heart, would torture into the principle and practice of slavery, such a harmless phrase as "*the souls that they had gotten?*" Until the African slave trade breathed its haze into the eyes of the church and smote her with palsy and decay, commentators saw no slavery in, "The souls that they had gotten." In the Targum of Onkelos^A it is rendered, "The souls whom they had brought to obey the law in Haran." In the Targum of Jonathan, "The souls whom they had made proselytes in Haran." In the Targum of Jerusalem, "The souls proselyted in Haran." Jarchi, the prince of Jewish commentators, "The souls whom they had brought under the Divine wings." Jerome, one of the most learned of the Christian fathers, "The persons whom they had proselyted." The Persian

version, the Vulgate, the Syriac, the Arabic, and the Samaritan all render it, "All the wealth which they had gathered, and the souls which they had made in Haran." Menochius, a commentator who wrote before our present translation of the Bible, renders it, "Quas de idolatraria converterant." "Those whom they had converted from idolatry." Paulus Fagius,^B "Quas instituerant in religione." "Those whom they had established in religion." Luke Francke, a German commentator who lived two centuries ago, "Quas legi subjicerant."—"Those whom they had brought to obey the law." The same distinction is made between *persons* and property, in the enumeration of Esau's household and the inventory of his effects. "And Esau took his wives and his sons and his daughters, and all the *persons* of his house, and his cattle, and all his beasts, and all his *substance* which he had got in the land of Canaan, and went into the country from the face of his brother Jacob. For their *riches* were more than that they might dwell together; and the land could not bear them because of their *cattle*." Gen. xxxvi. 6, 7.

^A: The Targums are Chaldee paraphrases of parts of the Old Testament. The Targum of Onkelos is, for the most part, a very accurate and faithful translation of the original, and was probably made at about the commencement of the Christian era. The Targum of Jonathan Ben Uzziel, bears about the same date. The Targum of Jerusalem was probably about five hundred years later. The Israelites, during their captivity in Babylon, lost, as a body, their own language. These translations into the Chaldee, the language which they acquired in Babylon, were thus called for by the necessity of the case.

^B: This eminent Hebrew scholar was invited to England to superintend the translation of the Bible into English, under the patronage of Henry the Eighth. He had hardly commenced the work when he died. This was nearly a century before the date of our present translation.

II. THE CONDITION AND SOCIAL ESTIMATION OF SERVANTS MAKE THE DOCTRINE THAT THEY WERE COMMODITIES, AN ABSURDITY. As the head of a Jewish family possessed the same power over his wife, children, and grandchildren (if they were in his family) as over his servants, if the latter were articles of property, the former were equally such. If there were nothing else in the Mosaic Institutes or history

establishing the social equality of the servants with their masters and their master's wives and children, those precepts which required that they should be guests at all the public feasts, and equal participants in the family and social rejoicings, would be quite sufficient to settle the question. Deut. xii. 12, 18; xvi. 10, 11, 13, 14. Ex. xii. 43, 44. St. Paul's testimony in Gal. iv. 1, shows the condition of servants: "Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all." That the interests of Abraham's servants were identified with those of their master's family, and that the utmost confidence was reposed in them, is shown in their being armed. Gen. xiv. 14, 15. When Abraham's servant went to Padanaram, the young Princess Rebecca did not disdain to say to him. "Drink, MY LORD," as "she hasted and let down her pitcher upon her hand, and gave him drink." Laban, the brother of Rebecca, "ungirded his camels, and brought him water to wash his feet, and the men's feet that were with him!" In the arrangements of Jacob's household on his journey from Padanaram to Canaan, we find his two maid servants treated in the same manner and provided with the same accommodations as Rachel and Leah. Each of them had a separate tent appropriated to her use. Gen. xxxi. 33. The social equality of servants with their masters and other members of their master's families, is an obvious deduction from Ex. xxi. 7, 10, from which we learn that the sale of a young Jewish female as a servant, was also *betrothed as a wife*, either to her master, or to one of his sons. In 1 Sam. ix. is an account of a festival in the city of Zuph, at which Samuel presided. None but those bidden, sat down at the feast, and only "about thirty persons" were invited. Quite a select party!—the elite of the city. Saul and his servant had just arrived at Zuph, and *both* of them, at Samuel's solicitation, accompany him as invited guests. "And Samuel took Saul and his SERVANT, and brought THEM into the PARLOR (!) and made THEM sit in the CHIEFEST SEATS among those that were bidden." A *servant* invited by the chief judge, ruler, and prophet in Israel, to dine publicly with a select party, in company with his master, who was at the same time anointed King of Israel! and this servant introduced by Samuel into the PARLOR, and assigned, with his master, to the *chiefest seat* at the table! This was "*one* of the servants" of Kish, Saul's father; not the steward or the chief of them—not at all a *picked* man, but "*one* of the servants;" *any* one that could be most easily spared, as no endowments specially rare would be likely to find scope in looking after asses. David seems to have been for a

time in all respects a servant in Saul's family. He "*stood before him.*" "And Saul sent to Jesse, saying, let David, I pray thee, *stand before me.*" He was Saul's personal servant, went on his errands, played on the harp for his amusement, bore his armor for him, and when he wished to visit his parents, asked permission of Jonathan, Saul's son. Saul also calls him "my servant." 1 Sam. xvi. 21-23; xviii. 5; xx. 5, 6; xxii. 8. Yet David sat with the king at meat, married his daughter, and lived on terms of the closest intimacy with the heir apparent of the throne. Abimelech, who was first elected king of Shechem, and afterwards reigned over all Israel, *was the son of a MAID-SERVANT.* His mother's family seems to have been of much note in the city of Shechem, where her brothers manifestly held great sway. Judg. ix. 1-6, 18. Jarha, an Egyptian, the servant of Sheshan, married his daughter. Tobiah, "the servant" and an Ammonite married the daughter of Shecaniah one of the chief men among the Jews in Jerusalem and was the intimate associate of Sanballat the governor of the Samaritans. We find Elah, the King of Israel, at a festive entertainment, in the house of Arza, his steward, or head servant, with whom he seems to have been on terms of familiarity. 1 Kings xvi. 8, 9. See also the intercourse between Gideon and his servants. Judg. vi. 27, and vii. 10, 11. The Levite of Mount Ephraim and his servant. Judg. xx. 3, 9, 11, 13, 19, 21, 22. King Saul and his servant Doeg, one of his herdmen. 1 Sam. xx. 1, 7; xxii. 9, 18, 22. King David and Ziba, the servant of Mephibosheth. 2 Sam. xvi. 1-4. Jonathan and his servant. 1 Sam. xiv. 1-14. Elisha and his servant, Gehazi. 2 Kings iv. v. vi. Also between Joram king of Israel and the servant of Elisha. 2 Kings viii. 4, 5, and between Naaman "the Captain of the host of the king of Syria" and the same person. 2 Kings v. 21-23. The fact stated under a previous head that servants were always invited guests at public and social festivals, is in perfect keeping with the foregoing exemplifications of the prevalent estimation in which servants were held by the Israelites.

Probably no one of the Old Testament patriarchs had more servants than Job; "This man was the greatest man of all the men of the east." Job, i. 3. We are not left in the dark as to the condition of his servants. After asserting his integrity, his strict justice, honesty, and equity, in his dealings with his fellow men, and declaring "I delivered the poor," "I was eyes to the blind and feet was I to the lame," "I was a father to the poor, and the cause which I knew not I searched out," * * * he says "If I did despise the cause of my

man-servant or my maid-servant when they **CONTENDED** with me * * * then let mine arm fall from the shoulder blade, and mine arm be broken from the bone." Job. xxix. 12, 15, 16; xxxi. 13, 22. The language employed in this passage is the phraseology applied in judicial proceedings to those who implead one another, and whether it be understood literally or figuratively, shows that whatever difference existed between Job and his servants in other respects, so far as *rights* are concerned, they were on equal ground with him, and that in the matter of daily intercourse, there was not the least restraint on their *free speech* in calling in question all his transactions with them, and that the relations and claims of both parties were adjudicated on the principles of equity and reciprocal right. "If I *despised* the cause of my man-servant," &c. In other words, if I treated it lightly, as though servants were not men, had not rights, and had not a claim for just dues and just estimation as human beings. "When they *contended* with me," that is, when they plead their rights, claimed what was due to them, or questioned the justice of any of my dealings with them.

In the context Job virtually affirms as the ground of his just and equitable treatment of his servants, that they had the same rights as he had, and were, as human beings, entitled to equal consideration with himself. By what language could he more forcibly utter his conviction of the oneness of their common origin and of the identity of their common nature, necessities, attribute and rights? As soon as he has said, "If I did despise the cause of my man-servant," &c., he follows it up with "What then shall I do when God raiseth up? and when he visiteth, what shall I answer him? Did not he that made me in the womb, make *him*? and did not one fashion us in the womb." In the next verse Job glories in the fact that he has not "*withheld from the poor their desire*." Is it the "desire" of the poor to be *compelled* by the rich to work for them, and without *pay*?

III. THE CASE OF THE GIBEONITES. The condition of the inhabitants of Gibeon, Chephirah, Beeroth, and Kirjathjearim, under the Hebrew commonwealth, is quoted in triumph by the advocates of slavery; and truly they are right welcome to all the crumbs that can be gleaned from it. Milton's devils made desperate snatches at fruit that turned to ashes on their lips. The spirit of slavery raves under tormenting gnawings, and casts about in blind phrenzy for something to ease, or even to mock them. But for this,

it would never have clutched at the Gibeonites, for even the incantations of the demon cauldron could not extract from their case enough to tantalize starvation's self. But to the question. What was the condition of the Gibeonites under the Israelites? 1. *It was voluntary*. Their own proposition to Joshua was to become servants. Josh. ix. 8, 11. It was accepted, but the kind of service which they should perform, was not specified until their gross imposition came to light; they were then assigned to menial offices in the Tabernacle. 2. *They were not domestic servants in the families of the Israelites*. They still resided in their own cities, cultivated their own fields, tended their flocks and herds, and exercised the functions of a *distinct*, though not independent community. They were subject to the Jewish nation as *tributaries*. So far from being distributed among the Israelites and their internal organization as a distinct people abolished, they remained a separate, and, in some respects, an independent community for many centuries. When attacked by the Amorites, they applied to the Israelites as confederates for aid—it was rendered, their enemies routed, and themselves left unmolested in their cities. Josh. x. 6-18. Long afterwards, Saul slew some of them, and God sent upon Israel a three years' famine for it. David inquired of the Gibeonites, "What shall I do for you, and wherewith shall I make the atonement?" At their demand, he delivered up to them seven of Saul's descendants. 2 Sam. xxi. 1-9. The whole transaction was a formal recognition of the Gibeonites as a distinct people. There is no intimation that they served either families or individuals of the Israelites, but only the "house of God," or the Tabernacle. This was established first at Gilgal, a days' journey from their cities; and then at Shiloh, nearly two days' journey from them; where it continued about 350 years. During this period the Gibeonites inhabited their ancient cities and territory. Only a few, comparatively, could have been absent at any one time in attendance on the Tabernacle. Wherever allusion is made to them in the history, the main body are spoken of as *at home*. It is preposterous to suppose that all the inhabitants of these four cities could find employment at the Tabernacle. One of them "was a great city, as one of the royal cities;" so large, that a confederacy of five kings, apparently the most powerful in the land, was deemed necessary for its destruction. It is probable that the men were divided into classes, ministering in rotation—each class a few days or weeks at a time. As the priests whose assistants they were, served by courses in rotation a week at a time; it is not improbable that their periods

of service were so arranged as to correspond. This service was their *national tribute* to the Israelites, for the privilege of residence and protection under their government. No service seems to have been required of the *females*. As these Gibeonites were Canaanites, and as they had greatly exasperated the Israelites by impudent imposition and lying, we might assuredly expect that they would reduce *them* to the condition of chattels, if there was *any* case in which God permitted them to do so.

IV. EGYPTIAN BONDAGE ANALYZED. Throughout the Mosaic system, God warns the Israelites against holding their servants in such a condition as they were held in by the Egyptians. How often are they pointed back to the grindings of their prison-house! What motives to the exercise of justice and kindness towards their servants, are held out to their fears in threatened judgments; to their hopes in promised good; and to all within them that could feel, by those oft repeated words of tenderness and terror! "For ye were bondmen in the land of Egypt"—waking anew the memory of tears and anguish, and of the wrath that avenged them. But what was the bondage of the Israelites in Egypt? Of what rights were they plundered and what did they retain?

1. *They were not dispersed among the families of Egypt,[A] but formed a separate community.* Gen. xlv. 34. Ex. viii. 22, 24; ix. 26; x. 23; xi. 7; iv. 29; ii. 9; xvi. 22; xvii. 5; vi. 14. 2. *They had the exclusive possession of the land of Goshen,[B]"the best part of the land" of Egypt.* Gen. xlv. 18; xlvii. 6, 11, 27; Ex. viii. 22; ix. 26; xii. 4. Goshen must have been at a considerable distance from those parts of Egypt inhabited by the Egyptians; so far at least as to prevent their contact with the Israelites, since the reason assigned for locating them in Goshen was, that shepherds were "an abomination to the Egyptians;" besides, their employments would naturally lead them out of the settled parts of Egypt to find a free range of pasturage for their immense flocks and herds. 3. *They lived in permanent dwellings.* These were *houses*, not *tents*. In Ex. xii. 7, 22, the two side *posts*, and the upper door *posts*, and the lintel of the houses are mentioned. Each family seems to have occupied a house *by itself*. Acts vii. 20. Ex. xii. 4—and judging from the regulation about the eating of the Passover, they could hardly have been small ones, Ex. xii. 4; probably contained separate apartments, as the entertainment of sojourners seems to have been a

common usage. Ex. iii. 23; and also places for concealment. Ex. ii. 2, 3; Acts vii. 20. They appear to have been well apparelled. Ex. xii. 11. 4. *They owned "flocks and herds," and "very much cattle."* Ex. xii. 4, 6, 32, 37, 38. From the fact that *"every man"* was commanded to kill either a lamb or a kid, one year old, for the Passover, before the people left Egypt, we infer that even the poorest of the Israelites owned a flock either of sheep or goats. Further, the immense multitude of their flocks and herds may be judged of from the expostulation of Moses with Jehovah. Num. xii. 21, 22. "The people among whom I am are six hundred thousand footmen, and thou hast said I will give them flesh that they may eat a whole month; shall the flocks and the herds be slain for them to *suffice* them." As these six hundred thousand were only the *men* "from twenty years old and upward, that were able to go forth to war," Ex. i. 45, 46; the whole number of the Israelites could not have been less than three millions and a half. Flocks and herds to "suffice" all these for food, might surely be called "very much cattle." 5. *They had their own form of government*, and preserved their tribe and family divisions, and their internal organization throughout, though still a province of Egypt, and *tributary* to it. Ex. ii. 1; xii. 19, 21; vi. 14, 25; v. 19; iii. 16, 18. 6. *They had in a considerable measure, the disposal of their own time.* Ex. iii. 16, 18; xii. 6; ii. 9; and iv. 27, 29-31. *They seem to have practised the fine arts.* Ex. xxxii. 4; xxxv. 22, 35. 7. *They were all armed.* Ex. xxxii. 27. 8. *They held their possessions independently, and the Egyptians seem to have regarded them as inviolable.* No intimation is given that the Egyptians dispossessed them of their habitations, or took away their flocks, or herds, or crops, or implements of agriculture, or any article of property. 9. *All the females seem to have known something of domestic refinements.* They were familiar with instruments of music, and skilled in the working of fine fabrics. Ex. xv. 20; xxxv. 25, 26; and both males and females were able to read and write. Deut. xi. 18-20; xvii. 19; xxvii. 3. 10. *Service seems to have been exacted from none but adult males.* Nothing is said from which the bond service of females could be inferred; the hiding of Moses three months by his mother, and the payment of wages to her by Pharaoh's daughter, go against such a supposition. Ex. ii. 29. 11. *Their food was abundant and of great variety.* So far from being fed upon a fixed allowance of a single article, and hastily prepared, "they sat by the flesh-pots," and "did eat bread to the full." Ex. xvi. 3; and their bread was prepared with leaven. Ex. xii. 15, 39. They ate "the fish freely, the

cucumbers, and the melons, and the leeks, and the onions, and the garlic." Num. xi. 4, 5; xx. 5. Probably but a small portion of the people were in the service of the Egyptians at any one time. The extent and variety of their own possessions, together with such a cultivation of their crops as would provide them with bread, and such care of their immense flocks and herds, as would secure their profitable increase, must have kept at home the main body of the nation. During the plague of darkness, God informs us that "ALL the children of Israel had light in their dwellings." We infer that they were *there* to enjoy it. See also Ex. ix. 26. It seems improbable that the making of brick, the only service named during the latter part of their sojourn in Egypt, could have furnished permanent employment for the bulk of the nation. See also Ex. iv. 29-31. Besides, when Eastern nations employed tributaries, it was as now, in the use of the levy, requiring them to furnish a given quota, drafted off periodically, so that comparatively but a small portion of the nation would be absent *at any one time*. The adult males of the Israelites were probably divided into companies, which relieved each other at stated intervals of weeks or months. It might have been during one of these periodical furloughs from service that Aaron performed the journey to Horeb. Ex. iv. 27. At the least calculation this journey must have consumed *eight weeks*. Probably one-fifth part of the proceeds of their labor was required of the Israelites in common with the Egyptians. Gen. xlvii. 24, 26. Instead of taking it from their *crops*, (Goshen being better for *pasturage*) they exacted it of them in brick making; and labor might have been exacted only from the *poorer* Israelites, the wealthy being able to pay their tribute in money. The fact that all the elders of Israel seem to have controlled their own time, (See Ex. iv. 29; iii. 16; v. 20,) favors the supposition. Ex. iv. 27, 31. Contrast this bondage of Egypt with American slavery. Have our slaves "flocks and herds even very much cattle?" Do they live in commodious houses of their own, "sit by the flesh-pots," "eat fish freely," and "eat bread to the full"? Do they live in a separate community, in their distinct tribes, under their own rulers, in the exclusive occupation of an extensive tract of country for the culture of their crops, and for rearing immense herds of their own cattle—and all these held inviolable by their masters? Are our female slaves free from exactions of labor and liabilities of outrage? or when employed, are they paid wages, as was the Israelitish woman by the king's daughter? Have they the disposal of their own time, and the means for cultivating social refinements, for

practising the fine arts, and for personal improvement? THE ISRAELITES UNDER THE BONDAGE OF EGYPT, ENJOYED ALL THESE RIGHTS AND PRIVILEGES. True, "all the service wherein they made them serve was with rigor." But what was this when compared with the incessant toil of American slaves; the robbery of all their time and earnings, and even the "power to own any thing, or acquire any thing?" a "quart of corn a-day," the legal allowance of food!^C their *only* clothing for one half the year, "*one* shirt and *one* pair of pantaloons!"^D *two hours and a half* only, for rest and refreshment in the twenty-four!^E—their dwellings, *hovels*, unfit for human residence, with but one apartment, where both sexes and all ages herd promiscuously at night, like the beasts of the field.^F Add to this, the ignorance, and degradation;^G the daily Sunderings of kindred, the revelries of lust, the lacerations and baptisms of blood, sanctioned by law, and patronized by public sentiment. What was the bondage of Egypt when compared with this? And yet for her oppression of the poor, God smote her with plagues, and trampled her as the mire, till she passed away in his wrath, and the place that knew her in her pride, knew her no more. Ah! "I have seen the afflictions of my people, and I have heard their groanings, and am come down to deliver them." HE DID COME, and Egypt sank a ruinous heap, and her blood closed over her. If such was God's retribution for the oppression of heathen Egypt, of how much sorer punishment shall a Christian people be thought worthy, who cloak with religion a system, in comparison with which the bondage of Egypt dwindles to nothing? Let those believe who can, that God commissioned his people to rob others of *all* their rights, while he denounced against them wrath to the uttermost, if they practised the *far lighter* oppression of Egypt—which robbed its victims of only the least and cheapest of their rights, and left the females unplundered even of these. What! Is God divided against himself? When He had just turned Egypt into a funeral pile; while his curse yet blazed upon her unburied dead, and his bolts still hissed amidst her slaughter, and the smoke of her torment went upwards because she had "ROBBED THE POOR," did He license the VICTIMS of robbery to rob the poor of ALL? As *Lawgiver*, did he *create* a system tenfold more grinding than that for which he had just hurled Pharaoh headlong, and overwhelmed his princes and his hosts, till "hell was moved to meet them at their coming?"

[C](#): See law of North Carolina, Haywood's Manual 524-5. To show that slaveholders are not better than their laws. We give a few testimonies. Rev. Thomas Clay, of Georgia, (a slaveholder,) in an address before the Georgia presbytery, in 1834, speaking of the slave's allowance of food, says:—"The quantity allowed by custom is a *peck of corn a week*."

The Maryland Journal and Baltimore Advertiser of May 30, 1788, says, "a *single peck of corn a week, or the like measure of rice*, is the ordinary quantity of provision for a *hard-working* slave; to which a small quantity of meat is occasionally, though *rarely*, added."

The Gradual Emancipation Society of North Carolina, in their Report for 1836, signed Moses Swaim, President, and William Swaim, Secretary, says, in describing the condition of slaves in the Eastern part of that State, "The master puts the unfortunate wretches upon short allowances, scarcely sufficient for their sustenance, so that a *great part* of them go *half naked* and *half starved* much of the time." See Minutes of the American Convention, convened in Baltimore, Oct. 25, 1826.

Rev. John Rankin, a native of Tennessee, and for many years a preacher in slave states, says of the food of slaves, "It *often* happens that what will *barely keep them alive*, is all that a cruel avarice will allow them. Hence, in some instances, their allowance has been reduced to a *single pint of corn each*, during the day and night. And some have no better allowance than a small portion of cotton seed; while perhaps they are not permitted to taste meat so much as once in the course of seven years. *Thousands of them are pressed with the gnawings of cruel hunger during their whole lives*." Rankin's Letters on Slavery, pp. 57, 58.

Hon. Robert J. Turnbull, of Charleston, S.C., a slaveholder, says, "The subsistence of the slaves consists, from March until August, of corn ground into grits, or meal, made into what is called *hominy*, or baked into corn bread. The other six months, they are fed upon the sweet potatoe. Meat, when given, is only by way of *indulgence or favor*." See "*Refutation of the Calumnies circulated against the Southern and Western States*," by a South Carolinian. Charleston, 1822.

Asa A. Stone, a theological student, residing at Natchez, Mississippi, wrote a letter to the editor of the New York Evangelist in 1835, in which he says, "On almost every plantation, the hands suffer more or less from hunger at some seasons of almost every year. There is always a *good deal of suffering* from hunger. On many plantations, and particularly in Louisiana, the slaves are in a condition of *almost utter famishment* during a great portion of the year."

At the commencement of his letter, Mr. S. says, "Intending, as I do, that my statements shall be relied on, and knowing that, should you think fit to publish this communication, they will come to this country, where their correctness may be tested by comparison with real life, I make them with the utmost care and precaution."

President Edwards, the younger, in a sermon preached half a century ago, at New Haven, Conn., says, speaking of the allowance of food given to slaves—"They are supplied with barely enough to keep them from starving."

In the debate on the Missouri question in the U.S. Congress, 1819-20, the admission of Missouri to the Union, as a slave state, was urged, among other grounds as a measure of humanity to the slaves of the south. Mr. Smyth, a member of Congress, from Virginia, and a large slaveholder, said, "The plan of our opponents seems to be to confine the slave population to the southern states, to the countries where sugar, cotton, and tobacco are cultivated. But, sir, by confining the slaves to a part of the country where crops are raised for exportation, and the bread and meat are purchased, *you doom them to scarcity and hunger*. Is it not obvious that the way to render their situation more comfortable is to allow them to be taken where there is not the same motive to force the slave to INCESSANT TOIL that there is in the country where cotton, sugar, and tobacco are raised for exportation. It is proposed to hem in the blacks *where they are* HARD WORKED and ILL FED, that they may be rendered unproductive and the race be prevented from increasing. * * * The proposed measure would be EXTREME CRUELTY to the blacks. * * * You would * * * doom them to SCARCITY and HARD LABOR."—[Speech of Mr. Smyth, of Va., Jan. 28, 1820.]—See National Intelligencer.

[D](#): See law of Louisiana, Martin's Digest, 6, 10. Mr. Bouldin, a Virginia slaveholder, in a speech in Congress, Feb. 16, 1835, (see National Intelligencer of that date,) said "*he knew* that many negroes had died from exposure to weather." Mr. B. adds, "they are clad in a flimsy fabric that will turn neither wind nor water."

Rev. John Rankin says, in his Letters on slavery, page 57, "In every slaveholding state, *many slaves suffer extremely*, both while they labor and while they sleep, *for want of clothing* to keep them warm. Often they are driven through frost and snow without either stocking or shoe, until the path they tread is died with their blood. And when they return to their miserable huts at night, they find not there the means of comfortable rest; but *on the cold ground they must lie without covering, and shiver while they slumber.*"

[E](#): See law of Louisiana, act of July 7, 1806, Martin's Digest, 6, 10-12. The law of South Carolina permits the master to *compel* his slaves to work fifteen hours in the twenty-four, in summer, and fourteen in the winter—which would be in winter, from daybreak in the morning until *four hours* after sunset!—See 2 Brevard's Digest, 243. The preamble of this law commences thus: "Whereas, *many owners of slaves do confine them so closely to hard labor that they have not sufficient time for natural rest*: be it therefore enacted," &c. In a work entitled "Travels in Louisiana in 1802," translated from the French, by John Davis, is the following testimony under this head:—

"The labor of Slaves in Louisiana is *not* severe, unless it be at the rolling of sugars, an interval of from two to three months, then they work *both night and day*. Abridged of their sleep, they scarce retire to rest during the whole period." See page 81. On the 87th page of the same work, the writer says, "*Both in summer and winter the slaves must be in the field by the first dawn of day.*" And yet he says, "the labor of the slave is *not* severe, except at the rolling of sugars!" The work abounds in eulogies of slavery.

In the "History of South Carolina and Georgia," vol. 1, p. 120, is the following: "*So laborious* is the task of raising, beating, and cleaning rice, that had it been possible to obtain European servants in sufficient numbers, *thousands and tens of thousands MUST HAVE PERISHED.*"

In an article on the agriculture of Louisiana, published in the second number of the "Western Review" is the following:—"The work is admitted to be severe for the hands, (slaves) requiring, when the process of making sugar is commenced, TO BE PRESSED NIGHT AND DAY."

Mr. Philemon Bliss, of Ohio, in his letters from Florida, in 1835, says, "The negroes commence labor by daylight in the morning, and excepting the plowboys, who must feed and rest their horses, do not leave the field till dark in the evening."

Mr. Stone, in his letter from Natchez, an extract of which was given above, says, "It is a general rule on all regular plantations, that the slaves rise in season in the morning, to *be in the field as soon as it is light enough for them to see to work*, and remain there until it is *so dark that they cannot see*. This is the case at all seasons of the year."

President Edwards, in the sermon already extracted from, says, "The slaves are kept at hard labor from *five o'clock in the morning till nine at night*, excepting time to eat twice during the day."

Hon. R.J. Turnbull, a South Carolina slaveholder, already quoted, speaking of the harvesting of cotton, says: "*All the pregnant women* even, on the plantation, and weak and *sickly* negroes incapable of other labor, are then *in requisition*." * * * See "Refutation of the Calumnies circulated against the Southern and Western States," by a South Carolinian.

[E](#): A late number of the "Western Medical Reformer" contains a dissertation by a Kentucky physician, on *Cachexia Africana*, or African consumption, in which the writer says—

"This form of disease deserves more attention from the medical profession than it has heretofore elicited. Among the causes may be named the mode and manner in which the negroes live. They are *crowded* together in a *small hut*, sometimes having an imperfect, and sometimes no floor—and seldom raised from the ground, illy ventilated, and surrounded with filth. Their diet and clothing, are also causes which might be enumerated as exciting agents. They live on a coarse, crude and unwholesome diet, and are imperfectly

clothed, both summer and winter; sleeping upon filthy and frequently damp beds."

Hon. R.J. Turnbull, of South Carolina, whose testimony on another point has been given above, says of the slaves, that they live in "*clay cabins*, with clay chimneys," &c. Mr. Clay, a Georgia slaveholder, from whom an extract has been given already, says, speaking of the dwellings of the slaves, "Too many individuals of both sexes are crowded into one house, and the proper separation of apartments *cannot* be observed. That the slaves are insensible to the evils arising from it, does not in the least lessen the unhappy consequences." Clay's Address before the Presbytery of Georgia.—P. 13.

G: Rev. C.C. Jones, late of Georgia, now Professor in the Theological Seminary at Columbia, South Carolina, made a report before the presbytery of Georgia, in 1833, on the moral condition of the slave population, which report was published under the direction of the presbytery. In that report Mr. Jones says, "They, the slaves, are shut out from our sympathies and efforts as immortal beings, and are educated and disciplined as creatures of profit, and of profit only, for this world."

In a sermon preached by Mr. Jones, before two associations of planters, in Georgia, in 1831, speaking of the slaves he says, "They are a nation of HEATHEN in our very midst." "What have we done for our poor negroes? With shame we must confess that we have done NOTHING!" "How can you pray for Christ's kingdom to come while you are neglecting a people perishing for lack of vision around your very doors." "We withhold the Bible from our servants and keep them in ignorance of it, while we *will* not use the means to have it read and explained to them." Jones' Sermon, pp. 7, 9.

An official report of the Presbyterian Synod of South Carolina and Georgia, adopted at its session in Columbia, S.C., and published in the Charleston Observer of March 22, 1834, speaking of the slaves, says, "There are over *two millions* of *human beings*, in the condition of HEATHEN, and, in some respects, *in a worse condition*!" * * * "From long continued and close observation, we believe that their moral and religious condition is such, as that they may justly be considered the *heathen* of this Christian country, and will *bear comparison with heathen in any country in the world*." * * * "The

negroes are destitute of the privileges of the gospel, and *ever will be under the present state of things.*" Report, &c., p. 4.

A writer in the Church Advocate, published in Lexington, Ky., says, "The poor negroes are left in the ways of spiritual darkness, no efforts are being made for their enlightenment, no seed is being sown, nothing but a moral wilderness is seen, over which the soul sickens—the heart of Christian sympathy bleeds. Here nothing is presented but a moral waste, as *extensive as our influence*, as appalling as the valley of death."

The following is an extract of a letter from Bishop Andrew of the Methodist Episcopal Church, to Messrs. Garrit and Maffit, editors of the "Western Methodist," then published at Nashville, Tennessee.

"*Augusta, Jan. 29, 1835.*

"The Christians of the South owe a heavy debt to slaves on their plantations, and the ministers of Christ especially are debtors to the whole slave population. I fear a cry goes up to heaven on this subject against us; and how, I ask, shall the scores who have left the ministry of the Word, that they may make corn and cotton, and buy and sell, and get gain, meet this cry at the bar of God? and what shall the hundreds of money-making and money-loving masters, who have grown rich by the toil and sweat of their slaves, and *left their souls to perish*, say when they go with them to the judgment of the great day?"

"The Kentucky Union for the moral and religious improvement of the colored race,"—an association composed of some of the most influential ministers and laymen of Kentucky, says in a general circular to the religious public, "To the female character among the black population, we cannot allude but with feelings of the bitterest shame. A similar condition of moral pollution, and utter disregard of a pure and virtuous reputation, is to be found only *without the pale of Christendom*. That such a state of society should exist in a Christian nation, without calling forth any particular attention to its existence, though ever before our eyes and in our families, is a moral phenomenon at once unaccountable and disgraceful."

Rev. James A. Thome, a native of Kentucky, and still residing there, said in a speech in New York, May 1834, speaking of licentiousness among the slaves, "I would not have you fail to understand that this is a *general* evil. Sir, what I now say, I say from deliberate conviction of its truth; that the slave states are Sodoms, and almost every village family is a brothel. (In this, I refer to the inmates of the kitchen, and not to the whites.)"

A writer in the "Western Luminary," published in Lexington, Ky., made the following declaration to the same point in the number of that paper for May 7, 1835: "There is one topic to which I will allude, which will serve to establish the heathenism of this population. I allude to the UNIVERSAL LICENTIOUSNESS which prevails. *Chastity is no virtue among them*—its violation neither injures female character in their own estimation, or that of their master or mistress—no instruction is ever given, *no censure pronounced*. I speak not of the world. I SPEAK OF CHRISTIAN FAMILIES GENERALLY."

Rev. Mr. Converse, long a resident of Virginia, and agent of the Colonization Society, said, in a sermon before the Vt. C.S.—"Almost nothing is done to instruct the slaves in the principles and duties of the Christian religion. * * * The majority are emphatically *heathens*. * * Pious masters (with some honorable exceptions) are criminally negligent of giving religious instruction to their slaves. * * * They can and do instruct their own children, and *perhaps* their house servants; while those called "field hands" live, and labor, and die, without being told by their *pious* masters (?) that Jesus Christ died to save sinners."

The page is already so loaded with references that we forbear. For testimony from the mouths of slaveholders to the terrible lacerations and other nameless outrages inflicted on the slaves, the reader is referred to the number of the Anti-Slavery Record for Jan. 1837.

We now proceed to examine the various objections which will doubtless be set in array against all the foregoing conclusions.

OBJECTIONS CONSIDERED.

The advocates of slavery find themselves at their wit's end in pressing the Bible into their service. Every movement shows them hard pushed. Their ever-varying shifts, their forced constructions and blind guesswork, proclaim both their *cause* desperate, and themselves. Meanwhile their invocations for help to "those good old slaveholders and patriarchs, Abraham, Isaac, and Jacob," [A](#) sent up without ceasing from the midst of their convulsions, avail as little as did the screams and lacerations of the prophets of Baal to bring an answer of fire. The Bible defences thrown around slavery by the professed ministers of the Gospel, do so torture common sense, Scripture, and historical facts it were hard to tell whether absurdity, fatuity, ignorance, or blasphemy, predominates, in the compound; each strives so lustily for the mastery, it may be set down a drawn battle. How often has it been bruited that the color of the negro is the *Cain-mark*, propagated downward. Cain's posterity started an opposition to the ark, forsooth, and rode out the flood with flying streamers! How could miracle be more worthily employed, or better vindicate the ways of God to man than by pointing such an argument, and filling out for slaveholders a Divine title-deed!

[A](#): The Presbytery of Harmony, South Carolina, at their meeting in Wainsborough, S.C., Oct. 28, 1836, appointed a special committee to report on slavery. The following resolution is a part of the report adopted by the Presbytery.

"Resolved, That slavery has existed from the days of those GOOD OLD SLAVEHOLDERS AND PATRIARCHS, Abraham, Isaac and Jacob, who are now in the kingdom of Heaven."

Abraham receives abundant honor at the hands of slave-holding divines. Not because he was the "father of the faithful," forsook home and country for the truth's sake, was the most eminent preacher and practiser of righteousness in his day; nay, verily, for all this he gets faint praise; but then he had "SERVANTS BOUGHT WITH MONEY!!!" This is the finishing touch of his character, and its effect on slaveholders is electrical. Prose fledges into poetry, cold compliments warm into praise, eulogy rarifies into panegyric and goes off in rhapsody. In their ecstasies over Abraham, Isaac's paramount claims to their homage are lamentably lost sight of. It is quite

unaccountable, that in their manifold oglings over Abraham's "servants bought with money," no slaveholder is ever caught casting loving side-glances at Gen. xxvii. 29, 37, where Isaac, addressing Jacob, says, "Be *lord* over thy brethren and let thy mother's sons *bow down* to thee." And afterwards, addressing Esau, he says, speaking of the birth-right immunities confirmed to Jacob, "Behold I have made him thy *Lord* and all his brethren have I GIVEN TO HIM FOR SERVANTS!"

Here is a charter for slaveholding, under the sign manual of that "good old slaveholder and patriarch, Isaac." Yea, more—a "Divine Warrant" for a father holding his *children* as slaves and bequeathing them as property to his heirs! Better still, it proves that the favorite practice amongst our slaveholders of bequeathing their *colored* children to those of a different hue, was a "Divine institution," for Isaac "*gave*" Esau, who was "*red* all over," to Jacob, "*as a servant*." Now gentlemen, "honor to whom honor." Let Isaac no longer be stinted of the glory that is his due as the great prototype of that "peculiar domestic institution," of which you are eminent patrons, that nice discrimination, by which a father, in his will, makes part of his children *property*, and the rest, their *proprietors*, whenever the propriety of such a disposition is indicated, as in the case of Jacob and Esau, by the decisive tokens of COLOR and HAIR, (for, to show that Esau was Jacob's *rightful* property after he was "given to him" by Isaac "for a servant," the difference in *hair* as well as color, is expressly stated by inspiration!)

One prominent feature of patriarchal example has been quite overlooked by slaveholders. We mean the special care of Isaac to inform Jacob that those "given to him as servants" were "HIS BRETHREN," (twice repeated.) The deep veneration of slaveholders for every thing patriarchal, clears them from all suspicion of *designedly* neglecting this authoritative precedent, and their admirable zeal to perpetuate patriarchal fashions, proves this seeming neglect, a mere *oversight*: and is an all-sufficient guarantee that henceforward they will religiously illustrate in their own practice, the beauty of this hitherto neglected patriarchal usage. True, it would be an odd codicil to a will, for a slaveholder, after bequeathing to *some* of his children, all his slaves, to add a supplement, informing them that such and such and such of them were their *brothers and sisters*. Doubtless it would be at first a

sore trial also, but what *pious* slaveholder would not be sustained under it by the reflection that he was humbly following in the footsteps of his illustrious patriarchal predecessors!

Great reformers must make great sacrifices, and if the world is to be brought back to the purity of patriarchal times, upon whom will the ends of the earth come, to whom will all trembling hearts and failing eyes spontaneously turn as leaders to conduct the forlorn hope through the wilderness to that promised land, if not to slaveholders, those disinterested pioneers whose self-denying labors have founded far and wide the "patriarchal institution" of *concubinage*, and through evil report and good report, have faithfully stamped their own image and superscription, in variegated hues, upon the faces of a swarming progeny from generation to generation.

OBJECTION I. "*Cursed be Canaan, a servant of servants shall he be unto his brethren.*" Gen. ix. 25.

This prophecy of Noah is the *vade mecum* of slaveholders, and they never venture abroad without it; it is a pocket-piece for sudden occasion, a keepsake to dote over, a charm to spell-bind opposition, and a magnet to draw to their standard "whatsoever worketh abomination or maketh a lie." But "cursed be Canaan" is a poor drug to ease a throbbing conscience—a mocking lullaby to unquiet tossings. Those who justify negro slavery by the curse on Canaan, *assume* as usual all the points in debate. 1. That *slavery* was prophesied, rather than mere *service* to others, and *individual* bondage rather than *national* subjection and tribute. 2. That the *prediction* of crime justifies it; or at least absolves those whose crimes fulfil it. How piously the Pharaohs might have quoted the prophecy, "*Thy seed shall be a stranger in a land that is not theirs, and they shall afflict them four hundred years.*" And then, what saints were those that crucified the Lord of glory! 3. That the Africans are descended from Canaan. Africa was peopled from Egypt and Ethiopia, which countries were settled by Mizraim and Cush. For the location and boundaries of Canaan's posterity, see Gen. x. 15-19. So a prophecy of evil to one people, is quoted to justify its infliction upon another. Perhaps it may be argued that Canaan includes all Ham's posterity. If so, the prophecy is yet unfulfilled. The other sons of Ham settled Egypt

and Assyria, and, conjointly with Shem, Persia, and afterward, to some extent, the Grecian and Roman empires. The history of these nations gives no verification of the prophecy. Whereas, the history of Canaan's descendants for more than three thousand years, is a record of its fulfillment. First, they were put to tribute by the Israelites; then by the Medes and Persians; then by the Macedonians, Grecians and Romans, successively; and finally, were subjected by the Ottoman dynasty, where they yet remain. Thus Canaan has been for ages the servant mainly of Shem and Japhet, and secondarily of the other sons of Ham. It may still be objected, that though Canaan alone is *named*, yet the 22d and 24th verses show the posterity of Ham in general to be meant. "And Ham, the father of Canaan, saw the nakedness of his father, and told his two brethren without." "And Noah awoke from his wine, and knew what his YOUNGER son had done unto him, and said," &c. It is argued that this "*younger son*" cannot be Canaan, as he was the *grandson* of Noah, and therefore it must be Ham. We answer, whoever that "*younger son*" was, Canaan alone was named in the curse. Besides, the Hebrew word *Ben*, signifies son, grandson, or *any one* of the posterity of an individual.^A "*Know ye Laban, the SON (grandson) of Nahor?*" Gen. xxix. 5. "*Mephibosheth the SON (grandson) of Saul.*" 2 Sam. xix. 24; 2 Sam. ix. 6. "*The driving of Jehu the SON (grandson) of Nimshi.*" 2 Kings ix. 20. See also Ruth iv. 17; 2 Sam. xxi. 6; Gen. xxxi. 55. Shall we forbid the inspired writer to use the same word when speaking of Noah's grandson? Further, Ham was not the "*younger son*." The order of enumeration makes him the *second* son. If it be said that Bible usage varies, the order of birth not always being observed in enumerations; the reply is, that, enumeration in that order, is the *rule*, in any other order the *exception*. Besides, if a younger member of a family takes precedence of older ones in the family record, it is a mark of pre-eminence, either in endowments, or providential instrumentality. Abraham, though sixty years younger than his eldest brother, stands first in the family genealogy. Nothing in Ham's history shows him pre-eminent; besides, the Hebrew word *Hăkkātān* rendered "*the younger*," means the *little, small*. The same word is used in Isa. lx. 22. "*A LITTLE ONE shall become a thousand.*" Isa. xxii. 24. "*All vessels of SMALL quantity.*" Ps. cxv. 13. "*He will bless them that fear the Lord both SMALL and great.*" Ex. xviii, 22. "*But every SMALL matter they shall judge.*" It would be a literal rendering of Gen. ix. 24, if it were translated thus, "when Noah knew what his little son,"^B or grandson (*Bēno*

Hākkātān) "had done unto him, he said cursed be Canaan," &c. Further, even if the Africans were the descendants of Canaan, the assumption that their enslavement fulfils this prophecy, lacks even plausibility, for, only a *fraction* of the inhabitants of Africa have at any time been the slaves of other nations. If the objector say in reply, that a large majority of the Africans have always been slaves *at home*, we answer: *It is false in point of fact*, though zealously bruited often to serve a turn; and *if it were true*, how does it help the argument? The prophecy was, "Cursed be Canaan, a servant of servants shall he be *unto his* BRETHREN.," not unto *himself*!

A: So *āṽ*, the Hebrew word for father, signifies any ancestor, however remote. 2 Chron. xvii. 3; xxviii. 1; xxxiv. 2; Dan. v. 2.

B: The French follows the same analogy; *grandson* being *petit fils* (little son.)

OBJECTION II.—"*If a man smite his servant or his maid with a rod, and he die under his hand, he shall surely be punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money.*" Ex. xxi. 20, 21. What was the design of this regulation? Was it to grant masters an indulgence to beat servants with impunity, and an assurance, that if they beat them to death, the offence should not be *capital*? This is substantially what commentators tell us. What Deity do such men worship? Some blood-gorged Moloch, enthroned on human hecatombs, and snuffing carnage for incense? Did He who thundered from Sinai's flames, "THOU SHALT NOT KILL," offer a bounty on *murder*? Whoever analyzes the Mosaic system, will often find a moot court in session, trying law points, settling definitions, or laying down rules of evidence. Num. xxxv. 10-22; Deut. xix. 4-6; Lev. xxiv. 19-22; Ex. xxi. 18, 19, are some of the cases stated, with tests furnished the judges by which to detect *the intent*, in actions brought before them. Their ignorance of judicial proceedings, laws of evidence, &c., made such instructions necessary. The detail gone into, in the verses quoted, is manifestly to enable them to get at the *motive* and find out whether the master *designed* to kill. 1. "If a man smite his servant with a *rod*."—The instrument used, gives a clue to the *intent*. See Num. xxxv. 16-18. A *rod*, not an axe, nor a sword, nor a bludgeon, nor any other death-weapon—hence, from the *kind* of instrument, no design to *kill* would be inferred; for

intent to kill would hardly have taken a *rod* for its weapon. But if the servant "*die under his hand*," then the unfitness of the instrument, is point blank against him; for, striking with a *rod* so as to cause death, presupposed very many blows and great violence, and this kept up till the death-gasp, showed an *intent to kill*. Hence "He shall *surely* be punished." But if he continued a day or two, the *length of time that he lived*, the *kind* of instrument used, and the master's pecuniary interest in his *life*, ("he is his *money*,") all made a strong case of presumptive evidence, showing that the master did not *design* to kill. Further, the word *nākām*, here rendered *punished*, occurs thirty-five times in the Old Testament, and in almost every place is translated "*avenge*," in a few, "*to take vengeance*," or "*to revenge*," and in this instance ALONE, "*punish*." As it stands in our translation, the pronoun preceding it, refers to the *master*, whereas it should refer to the *crime*, and the word rendered *punished*, should have been rendered *avenged*. The meaning is this: If a man smite his servant or his maid with a rod, and he die under his hand, IT (the death) shall surely be avenged, or literally, *by avenging it shall be avenged*; that is, the *death* of the servant shall be *avenged* by the *death* of the master. So in the next verse, "If he continue a day or two," his death is not to be avenged by the *death* of the *master*, as in that case the crime was to be adjudged *manslaughter*, and not *murder*. In the following verse, another case of personal injury is stated, for which the injurer is to pay *a sum of money*; and yet our translators employ the same phraseology in both places! One, an instance of deliberate, wanton, killing by piecemeal; the other, an accidental, and comparatively slight injury—of the inflicter, in both cases, they say the same thing! Now, just the discrimination to be looked for where GOD legislates, is marked in the original. In the case of the servant wilfully murdered, He says, "It (the death) shall surely be *avenged*," that is, the life of the wrong doer shall expiate the crime. The same word is used in the Old Testament, when the greatest wrongs are redressed, by devoting the perpetrators to *destruction*. In the case of the unintentional injury, in the following verse, God says, "He shall surely be *fin*ed, (*ānāsh*.)" "He shall *pay* as the judges determine." The simple meaning of the word *ānāsh*, is to lay a fine. It is used in Deut. xxii. 19: "They shall *amerce* him in one hundred shekels," and in 2 Chron. xxxvi. 3: "He condemned (*mulcted*) the land in a hundred talents of silver and a talent of gold." That *avenging* the death of the servant, was neither imprisonment, nor stripes, nor a fine but that it was *taking the master's life*

we infer, 1. From the *use* of the word *nākām*. See Gen. iv. 24; Josh. x. 13; Judg. xv. 7; xvi. 28; 1 Sam. xiv. 24; xviii. 25; xxv. 31; 2 Sam. iv. 8; Judg. v. 2; 1 Sam. xxv. 26-33. 2. From the express statute, Lev. xxiv. 17: "He that killeth ANY man shall surely be put to death." Also, Num. xxxv. 30, 31: "Whoso killeth ANY person, the murderer shall be put to death. Moreover, ye shall take NO SATISFACTION for the life of a murderer which is guilty of death, but he shall surely be put to death." 3. The Targum of Jonathan gives the verse thus, "Death by the sword shall surely be adjudged." The Targum of Jerusalem, "Vengeance shall be taken for him to the *uttermost*." Jarchi, the same. The Samaritan version: "He shall die the death." Again, the clause "for he is his money," is quoted to prove that the servant is his master's property, and therefore, if he died, the master was not to be punished. The assumption is, that the phrase, "HE IS HIS MONEY," proves not only that the servant is *worth money* to the master, but that he is an *article of property*. If the advocates of slavery insist upon taking this principle of interpretation into the Bible, and turning it loose, let them stand and draw in self-defence. If they endorse for it at one point, they must stand sponsors all around the circle. It will be too late to cry for quarter when its stroke clears the table, and tilts them among the sweepings beneath. The Bible abounds with such expressions as the following: "This (bread) *is* my body;" "all they (the Israelites) *are* brass and tin;" this (water) *is* the blood of the men who went in jeopardy of their lives;" "the Lord God *is* a sun;" "the seven good ears *are* seven years;" "the tree of the field *is* man's life;" "God *is* a consuming fire;" "he *is* his money," &c. A passion for the exact *literalities* of the Bible is too amiable, not to be gratified in this case. The words in the original are (*Káspo-hu*), "his *silver* is he." The objector's principle of interpretation is a philosopher's stone! Its miracle touch transmutes five feet eight inches of flesh and bones into *solid silver*! Quite a *permanent* servant, if not so nimble withal—reasoning against "*forever*," is forestalled henceforth, and, Deut. xxiii. 15, quite outwitted. The obvious meaning of the phrase, "*He is his money*," is, he is *worth money* to his master, and since, if the master had killed him, it would have taken money out of his pocket, the *pecuniary loss*, the *kind of instrument used*, and the *fact of his living sometime after the injury*, (if the master *meant* to kill, he would be likely to *do* it while about it.) all together make a strong case of presumptive evidence clearing the master from *intent to kill*. But let us look at the objector's *inferences*. One is, that as the master might dispose of his

property as he pleased, he was not to be punished, if he destroyed it. Whether the servant died under the master's hand, or after a day or two, he was *equally* his property, and the objector admits that in the *first* case the master is to be "surely punished" for destroying *his own property*! The other inference is, that since the continuance of a day or two, cleared the master of *intent to kill*, the loss of the servant would be a sufficient punishment for inflicting the injury which caused his death. This inference makes the Mosaic law false to its own principles. A *pecuniary loss* was no part of the legal claim, where a person took the *life* of another. In such case, the law spurned money, whatever the sum. God would not cheapen human life, by balancing it with such a weight. "Ye shall take NO SATISFACTION for the life of a murderer, but he shall surely be put to death." Num. xxxv. 31. Even in excusable homicide, where an axe slipped from the helve and killed a man, no sum of money availed to release from confinement in the city of refuge, until the death of the High Priest. Num. xxxv. 32. The doctrine that the loss of the servant would be a penalty *adequate* to the desert of the master, admits his *guilt* and his desert of *some* punishment, and it prescribes a kind of punishment, rejected by the law, in all cases where man took the life of man, whether with or without intent to kill. In short, the objector annuls an integral part of the system—makes a *new* law, and coolly metes out such penalty as he thinks fit. Divine legislation revised and improved! The master who struck out his servant's tooth, whether intentionally or not, was required to set him free. The *pecuniary loss* to the master was the same as though he had killed him. Look at the two cases. A master beats his servant so that he dies of his wounds; another accidentally strikes out his servant's tooth,—*the pecuniary loss of both masters is the same*. If the loss of the servant's services is punishment sufficient for the crime of killing him, would God command the same punishment for the accidental knocking out of a *tooth*? Indeed, unless the injury was done *inadvertently*, the loss of the servant's services was only a part of the punishment—mere reparation to the *individual* for injury done; the main punishment, that strictly *judicial*, was reparation to the *community*. To set the servant *free*, and thus proclaim his injury, his right to redress, and the measure of it—answered not the ends of *public* justice. The law made an example of the offender, that "those that remain might hear and fear." "If a man cause a blemish in his neighbor, as he hath done, so shall it be done unto him. Breach for breach, eye for eye, tooth for tooth. Ye shall have one manner of

law as well for the STRANGER as for one of your own country." Lev. xxiv. 19, 20, 22. Finally, if a master smote out *his* servant's tooth, the law smote out his tooth—thus redressing the *public* wrong; and it cancelled the servant's obligation to the master, thus giving some compensation for the injury done, and exempting him from perilous liabilities in future.

OBJECTION III. "Both thy bondmen and bondmaids which thou shalt have, shall be of the heathen that are round about you, of them shall ye buy bondmen and bondmaids. Moreover of the children of the strangers that do sojourn among you, of them shall ye buy, and of their families that are with you, which they begat in your land, and they shall be your possession. And ye shall take them as an inheritance for your children after you, to inherit them for a possession; they shall be your bondmen forever." Lev. xxv. 44-46.

The *points* in these verses, urged as proof, that the Mosaic system sanctioned slavery, are 1. The word "BONDMEN." 2. "BUY." 3. "INHERITANCE AND POSSESSION." 4. "FOREVER."

We will now ascertain what sanction to slavery is derivable from these terms.

1. "BONDMEN." The fact that servants from the heathen are called "*bondmen*," while others are called "*servants*," is quoted as proof that the former were slaves. As the caprices of King James' translators were not inspired, we need stand in no special awe of them. The word here rendered bondmen is uniformly rendered servants elsewhere. The Hebrew word "*ēbēdh*," the plural of which is here translated "*bondmen*," is often applied to Christ. "Behold my *servant* (bondman, slave?) whom I uphold." Isa. xlii. 1. "Behold my *servant* (Christ) shall deal prudently." Isa. lii. 13. "And he said it is a light thing that thou (Christ) shouldst be my *servant*." Isa. xlix. 6. "To a *servant* of rulers." Isa. xlix. 7. "By his knowledge shall my righteous *servant* (Christ) justify many." Is. liii. 11. "Behold I will bring forth my *servant* the BRANCH." Zech. iii. 8. In 1 Kings xii. 6, 7, it is applied to King Rehoboam. "And they spake unto him, saying if thou wilt be a *servant*

unto this people, then they will be thy *servants* forever." In 2 Chron. xii. 7, 8, 9, 13, to the king and all the nation. The word is used to designate those who perform service for *individuals or families*, about thirty-five times in the Old Testament. To designate *tributaries* about twenty-five times. To designate the *subjects of government*, about thirty-three times. To designate the worshippers both of the true God, and of false gods, about seventy times. It is also used in salutations and courteous addresses nearly one hundred times. In fine, the word is applied to all persons doing service for others, and that *merely to designate them as the performers of such service*, whatever it might be, or whatever the ground on which it might be rendered. To argue from the fact, of this word being used to designate domestic servants, that they were made servants by *force*, worked without pay, and held as articles of property, is such a gross assumption and absurdity as to make formal refutation ridiculous. We repeat what has been shown above, that the word rendered bondmen in Lev. xxv. 44, is used to point out persons rendering service for others, totally irrespective of the principle on which that service was rendered; as is manifest from the fact that it is applied indiscriminately to tributaries, to domestics, to all the subjects of governments, to magistrates, to all governmental officers, to younger sons—defining their relation to the first born, who is called *lord* and *ruler*—to prophets, to kings, and to the Messiah. To argue from the meaning of the word *ěbēdh* as used in the Old Testament, that those to whom it was applied rendered service against their will, and without pay, does violence to the scripture use of the term, sets at nought all rules of interpretation, and outrages common sense. If *any* inference as to the meaning of the term is to be drawn from the condition and relations of the various classes of persons, to whom it is applied, the only legitimate one would seem to be, that the term designates a person who renders service to another in return for something of value received from him. The same remark applies to the Hebrew verb *ābādh*, to serve, answering to the noun *ěbēdh* (servant). It is used in the Old Testament to describe the *serving* of tributaries, of worshippers, of domestics, of Levites, of sons to a father, of younger brothers to the elder, of subjects to a ruler, of hirelings, of soldiers, of public officers to the government, of a host to his guests, &c. Of these it is used to describe the serving of *worshippers* more than forty times, of *tributaries*, about thirty five, and of servants or domestics, about *ten*.

If the Israelites not only held slaves, but multitudes of them, if Abraham had thousands, and if they abounded under the Mosaic system, why had their language no word that *meant slave*? That language must be woefully poverty-stricken, which has no signs to represent the most common and familiar objects and conditions. To represent by the same word, and without figure, property, and the owner of that property, is a solecism. Ziba was an "ēbēdh," yet he "owned" (!) twenty ēbēdhs! In our language, we have both *servant* and *slave*. Why? Because we have both the *things*, and need *signs* for them. If the tongue had a sheath, as swords have scabbards, we should have some *name* for it: but our dictionaries give us none. Why? Because there is no such *thing*. But the objector asks, "Would not the Israelites use their word ēbēdh if they spoke of the slave of a heathen?" Answer. Their *national* servants or tributaries, are spoken of frequently, but domestics servants so rarely, that no necessity existed, even if they were slaves, for coining a new word. Besides, the fact of their being domestics, under *heathen laws and usages*, proclaimed their liabilities; their *locality* made a *specific* term unnecessary. But if the Israelites had not only *servants*, but a multitude of *slaves*, a *word meaning slave*, would have been indispensable for every day convenience. Further, the laws of the Mosaic system were so many sentinels on the outposts to warn off foreign practices. The border ground of Canaan, was quarantine ground, enforcing the strictest non-intercourse in usages between the without and the within.

2. "BUY." The *buying* of servants, is discussed at length. pp. [17-23](#). To that discussion the reader is referred. We will add in this place but a single consideration. This regulation requiring the Israelites to "*buy*" servants of the heathen, prohibited their taking them without buying. *Buying* supposes two parties: a *price* demanded by one and paid by the other, and consequently, the *consent* of both buyer and seller, to the transaction. Of course the command to the Israelites to *buy* servants of the heathen, prohibited their getting them unless they first got *somebody's* consent to the transaction, and paid to *somebody* a fair equivalent. Now, who were these *somebodies*? This at least is plain, they were not *Israelites*, but heathen. "Of *them* shall ye buy." Who then were these *somebodies*, whose right was so paramount, that *their* consent must be got and the price paid must go into *their* pockets? Were they the persons themselves who became servants, or some *other* persons. "Some *other* persons to be sure," says the objector, "the

countrymen or the neighbors of those who become servants." Ah! this then is the import of the Divine command to the Israelites.

"When you go among the heathen round about to get a man to work for you, I straightly charge you to go first to his *neighbors*, get *their* consent that you may have him, settle the terms with *them*, and pay to them a fair equivalent. If it is not *their* choice to let him go, I charge you not to take him on your peril. If *they* consent, and you pay *them* the full value of his labor, then you may go and catch the man and drag him home with you, and make him work for you, and I will bless you in the work of your hands and you shall eat of the fat of the land. As to the man himself, his choice is nothing, and you need give him nothing for his work: but take care and pay his *neighbors* well for him, and respect *their* free choice in taking him, for to deprive a heathen man by force and without pay of the *use of himself* is well pleasing in my sight, but to deprive his heathen neighbors of the use of him is that abominable thing which my soul hateth."

3. "FOREVER." This is quoted to prove that servants were to serve during their life time, and their posterity from generation to generation.^A No such idea is contained in the passage. The word "forever," instead of defining the length of *individual* service, proclaims the permanence of the regulation laid down in the two verses preceding, namely, that their *permanent domestics* should be of the *Strangers*, and not of the Israelites; it declares the duration of that general provision. As if God had said, "You shall *always* get your *permanent* laborers from the nations round about you; your servants shall *always* be of that class of persons." As it stands in the original, it is plain—"Forever of them shall ye serve yourselves." This is the literal rendering.

^A: One would think that the explicit testimony of our Lord should for ever forestall all cavil on this point. "*The servant abideth not in the house FOR EVER, but the Son, abideth ever.*" John viii. 35.

That "*forever*" refers to the permanent relations of a *community*, rather than to the services of *individuals*, is a fair inference from the form of the expression, "Both thy bondmen, &c., shall be of the *heathen*. OF THEM shall ye buy." "They shall be your possession." "THEY shall be your

bondmen forever." "But over your brethren the CHILDREN OF ISRAEL," &c. To say nothing of the uncertainty of *these individuals* surviving those *after* whom they are to live, the language used applies more naturally to a *body* of people, than to *individual* servants. Besides *perpetual* service cannot be argued from the term *forever*. The ninth and tenth verses of the same chapter limit it absolutely by the jubilee. "Then thou shalt cause the trumpet of the jubilee to sound * * throughout ALL your land." "And ye shall proclaim liberty throughout all the land unto ALL the inhabitants thereof." It may be objected that "inhabitants" here means *Israelitish* inhabitants alone. The command is, "Proclaim liberty throughout all the land unto ALL *the inhabitants thereof*." Besides, in the sixth verse, there is an enumeration of the different classes of the inhabitants, in which servants and Strangers are included; and in all the regulations of the jubilee, and the sabbatical year, the Strangers are included in the precepts, prohibitions, and promises. Again: the year of jubilee was ushered in by the day of atonement. What did these institutions show forth? The day of atonement prefigured the atonement of Christ, and the year of jubilee, the gospel jubilee. And did they prefigure an atonement and a jubilee to *Jews* only? Were they types of sins remitted, and of salvation proclaimed to the nation of Israel alone? Is there no redemption for us Gentiles in these ends of the earth, and is our hope presumption and impiety? Did that old partition wall survive the shock that made earth quake, and hid the sun, burst graves and rocks, and rent the temple veil? and did the Gospel only rear it higher to thunder direr perdition from its frowning battlements on all without? No! The God of OUR salvation lives. "Good tidings of great joy shall be to ALL people." One shout shall swell from all the ransomed, "Thou hast redeemed us unto God by thy blood out of EVERY kindred, and tongue, and people, and nation."

To deny that the blessings of the jubilee extended to the servants from the *Gentiles*, makes Christianity *Judaism*.^{[A](#)} It not only eclipses the glory of the Gospel, but strikes out its sun. The refusal to release servants at the jubilee falsified and disannulled a grand leading type of the atonement, and was a libel on the doctrine of Christ's redemption. But even if *forever* did refer to *individual* service, we have ample precedents for limiting the term by the jubilee. The same word defines the length of time which *Jewish* servants served who did not go out at the end of their six years' term. And all admit

that they went out at the jubilee. Ex. xxi. 2-6; Deut. xv. 12-17. The 23d verse of the same chapter is quoted to prove that "*forever*" in the 46th verse extends beyond the jubilee. "The land shall not be sold FOREVER, for the land is mine"—since it would hardly be used in different senses in the same general connection. As *forever*, in the 46th verse, respects the *general arrangement*, and not *individual service* the objection does not touch the argument. Besides, in the 46th verse, the word used is *Olam*, meaning *throughout the period*, whatever that may be. Whereas in the 23d verse, it is *Tsemithuth*, meaning, a *cutting off*, or *to be cut off*; and the import of it is, that the owner of an inheritance shall not forfeit his *proprietaryship* of it; though it may for a time pass from his control into the hands of his creditors or others, yet the owner shall be permitted to *redeem* it, and even if that be not done, it shall not be "*cut off*," but shall revert to him at the jubilee.

A: So far from the Strangers not being released by the proclamation of liberty on the morning of the jubilee, they were the only persons who were, as a body, released by it. The rule regulating the service of Hebrew servants was, "Six years shall he serve, and in the seventh year he shall go out free." The *free holders* who had "fallen into decay," and had in consequence mortgaged their inheritances to their more prosperous neighbors, and become in some sort their servants, were released by the jubilee, and again resumed their inheritances. This was the only class of Jewish servants (and it could not have been numerous,) which was released by the jubilee; all others went out at the close of their six years' term.

3. "INHERITANCE AND POSSESSION." "Ye shall take them as an INHERITANCE for your children after you to inherit them for a POSSESSION. This, as has been already remarked refers to the *nations*, and not to the *individual* servants procured from the senations. The holding of servants as a *possession* is discussed at large pp. [47-64](#). To what is there advanced we here subjoin a few brief considerations. We have already shown, that servants could not be held as a *property* possession, and inheritance; that they became such of their *own accord*, were paid wages, released from their regular labor nearly *half the days in each year*, thoroughly *instructed* and *protected* in all their personal, social, and religious rights, equally with their masters. All remaining, after these ample reservations, would be small temptation, either to the lust of power or of

lucre; a profitable "possession" and "inheritance," truly! What if our American slaves were all placed in *just such a condition*! Alas, for that soft, melodious circumlocution, "OUR PECULIAR species of property!" Verily, emphasis would be cadence, and euphony and irony meet together! What eager snatches at mere words, and bald technics, irrespective of connection, principles of construction, Bible usages, or limitations of meaning by other passages—and all to eke out such a sense as sanctifies existing usages, thus making God pander for lust. The words *nahal* and *nahala*, inherit and inheritance, by no means necessarily signify *articles of property*. "The people answered the king and said, "we have none *inheritance* in the son of Jesse." 2 Chron. x. 16. Did they mean gravely to disclaim the holding of their king as an article of *property*? "Children are an *heritage* (inheritance) of the Lord." Ps. cxxvii. 3. "Pardon our iniquity, and take us for thine *inheritance*." Ex. xxxiv. 9. When God pardons his enemies, and adopts them as children, does he make them *articles of property*? Are forgiveness, and chattel-making, synonymes? "*I am their inheritance*." Ezek. xlv. 28. "I shall give thee the heathen for thine *inheritance*." Ps. ii. 18. See also Deut. iv. 20; Josh. xiii. 33; Ps. lxxxii. 8; lxxviii. 62, 71; Prov. xiv. 18.

The question whether the servants were a PROPERTY-"*possession*," has been already discussed, pp. [47-64](#), we need add in this place but a word. As an illustration of the condition of servants from the heathen that were the "possession" of Israelitish families, and of the way in which they became servants, the reader is referred to Isa. xiv. 1, 2. "For the Lord will have mercy on Jacob, and will yet choose Israel, and set them in their own land; and the strangers will be *joined* with them, and *they shall CLEAVE to the house of Jacob*. And the people shall take them and bring them to their place, and the house of Israel shall *possess* them in the land of the Lord for servants and handmaids; and they shall take them captives, whose captives they were; and they shall rule over the oppressors."

We learn from these verses, 1st. That these servants which were to be "*possessed*" by the Israelites, were to be "joined with them," i.e., become proselytes to their religion. 2d. That they should "*CLEAVE to the house of Jacob*," i.e., that they would forsake their own people voluntarily, attach themselves to the Israelites as servants, and of their own free choice leave home and friends, to accompany them on their return, and to take up their

permanent abode with them, in the same manner that Ruth accompanied Naomi from Moab to the land of Israel, and that the "souls gotten" by Abraham in Padanaram, accompanied him when he left it and went to Canaan. "And the house of Israel shall *possess* them for servants," i.e. shall *have* them for servants.

In the passage under consideration, "they shall be your *possession*," the original word translated "possession" is *ahuzza*. The same word is used in Gen. xlvii. 11. "And Joseph placed his father and his brethren, and gave them a *possession* in the land of Egypt." Gen. xlvii. 11. In what sense was Goshen the *possession* of the Israelites? Answer, in the sense of *having it to live in*, not in the sense of having it as *owners*. In what sense were the Israelites to *possess* these nations, and *take them* as an *inheritance for their children*? Answer, they possessed them as a permanent source of supply for domestic or household servants. And this relation to these nations was to go down to posterity as a standing regulation, having the certainty and regularity of a descent by inheritance. The sense of the whole regulation may be given thus: "Thy permanent domestics, which thou shalt have, shall be of the nations that are round about you, of *them* shall ye buy male and female domestics." "Moreover of the children of the foreigners that do sojourn among you, of *them* shall ye buy, and of their families that are with you, which they begat in your land, and *they* shall be your permanent resource." "And ye shall take them as a *perpetual* source of supply to whom your children after you shall resort for servants. ALWAYS, of *them* shall ye serve yourselves." The design of the passage is manifest from its structure. So far from being a permission to purchase slaves, it was a prohibition to employ Israelites for a certain term and in a certain grade of service, and to point out the *class* of persons from which they were to get their supply of servants, and the way in which they were to get them.^{[A](#)}

^{[A](#)}: Rabbi Leeser, who translated from the German the work entitled "Instruction in the Mosaic Religion" by Professor Jholson of the Jewish seminary at Frankfort-on-the-Main, in his comment on these verses, says, "It must be observed that it was prohibited to SUBJECT *a Stranger to slavery*. The *buying* of slaves *alone* is permitted, but not stealing them."

Now whatever we call that condition in which servants were, whether servitude or slavery, and whatever we call the persons in that condition, whether servants or *slaves*, we have at all events, the testimony that the Israelites were prohibited to *subject* a Stranger to that condition, or in other words, the free choice of the servant was not to be compelled.

OBJECTION IV. "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a BOND-SERVANT but as an HIRED-SERVANT, and as a sojourner shall he be with thee, and shall serve thee unto the year of jubilee." Lev. xxv. 39, 40.

As only *one* class is called "*hired*," it is inferred that servants of the other class were *not paid* for their labor. That God, while thundering anathemas against those who "used their neighbor's service without wages," granted a special indulgence to his chosen people to force others to work, and rob them of earnings, provided always, in selecting their victims, they spared "the gentlemen of property and standing," and pounced only upon the strangers and the common people. The inference that "*hired*" is synonymous with *paid*, and that those servants not *called* "*hired*," were *not paid* for their labor, is a mere assumption. The meaning of the English verb to *hire*, is to procure for a *temporary* use at a certain price—to engage a person to temporary service for wages. That is also the meaning of the Hebrew word "*saukar*." It is not used when the procurement of *permanent* service is spoken of. Now, we ask, would *permanent* servants, those who constituted a stationary part of the family, have been designated by the same term that marks *temporary* servants? The every-day distinctions in this matter, are familiar as table-talk. In many families the domestics perform only the *regular* work. Whatever is occasional merely, as the washing of a family, is done by persons hired expressly for the purpose. The familiar distinction between the two classes, is "servants," and "hired help," (not *paid* help.) *Both* classes are *paid*. One is permanent, and the other occasional and temporary, and *therefore* in this case called "*hired*." ^A A variety of particulars are recorded distinguishing, *hired* from *bought* servants. 1. Hired servants were paid daily at the close of their work. Lev. xix. 13; Deut. xxiv. 14, 15; Job. vii. 2; Matt. xx. 8. "*Bought*" servants were

paid in advance, (a reason for their being called *bought*,) and those that went out at the seventh year received a *gratuity*. Deut. xv. 12, 13. 2. The "hired" were paid *in money*, the "bought" received their *gratuity*, at least, in grain, cattle, and the product of the vintage. Deut. xv. 14. 3. The "hired" *lived* in their own families, the "bought" were a part of their masters' families. 4. The "hired" supported their families out of their wages; the "bought" and their families were supported by the master *beside* their wages. 5. Hired servants were expected to work more *constantly*, and to have more *working hours* in the day than the bought servants. This we infer from the fact, that "a hireling's day," was a sort of proverbial phrase, meaning a *full* day. No subtraction of time being made from it. So *a hireling's year* signifies an entire year without abatement. Job. vii. 1; xiv. 6; Isa. xvi. 14; xxi. 16.

A: To suppose a servant robbed of his earnings because he is not called a *hired* servant, is profound induction! If I employ a man at twelve dollars a month to work my farm, he is my "*hired*" man, but if *I give him such a portion of the crop*, or in other words, if he works my farm "*on shares*," every farmer knows that he is no longer called a "*hired*" man. Yet he works the same farm, in the same way, at the same times, and with the same teams and tools; and does the same amount of work in the year, and perhaps clears twenty dollars a month, instead of twelve. Now as he is no longer called "hired," and as he still works my farm, suppose my neighbors sagely infer, that since he is not my "*hired*" laborer, I *rob* him of his earnings, and with all the gravity of owls, pronounce their oracular decision, and hoot it abroad. My neighbors are deep divers! like some theological professors, they go not only to the bottom but come up covered with the tokens.

The "bought" servants, were, *as a class, superior to the hired*—were more trust-worthy, were held in higher estimation, had greater privileges, and occupied a more elevated station in society. 1. They were intimately incorporated with the family of the master, were guests at family festivals, and social solemnities, from which hired servants were excluded. Lev. xxii. 10, 11; Ex. xii. 43, 45. 2. Their interests were far more identified with those of their masters' family. They were often, actually or prospectively, heirs of their masters' estates, as in the case of Eliezer, of Ziba, and the sons of Bilhah, and Zilpah. When there were no sons, or when they were unworthy,

bought servants were made heirs. Prov. xvii. 2. We find traces of this usage in the New Testament. "But when the husbandmen saw him, they reasoned among themselves saying, this is the *heir*, come let us kill him, *that the inheritance may be ours.*" Luke xx. 14. In no instance does a *hired* servant inherit his master's estate. 3. Marriages took place between servants and their master's daughters. "Sheshan had a *servant*, an Egyptian, whose name was Jarha. And Sheshan gave his daughter to Jarha his servant to wife." 1 Chron. ii. 34, 35. There is no instance of a *hired* servant forming such an alliance. 4. Bought servants and their descendants were treated with the same affection and respect as the other members of the family.^A The treatment of Abraham's servants. Gen. xxiv. and xviii. 1-7; the intercourse between Gideon and Phurah Judg. vii. 10, 11; Saul and his servant, 1 Sam. ix. 5, 22; Jonathan and his servant, 1 Sam. xiv. 1-14, and Elisha and Gehazi are illustrations. The tenderness exercised towards home-born servants or the children of *handmaids*, and the strength of the tie that bound them to the family, are employed by the Psalmist to illustrate the regard of God for him, his care over him, and his own endearing relation to him, when in the last extremity he prays, "Save the son of thy *handmaid*." Ps. lxxxvi. 16. So also in Ps. cxvi. 16. Oh Lord, truly I am thy servant; I am thy servant, and the son of thy *handmaid*. Also, Jer. ii. 14. Is Israel a servant? Is he a *home-born*?^B WHY IS HE SPOILED? No such tie seems to have existed between *hired* servants and their masters. Their untrustworthiness was proverbial. John x. 12, 13. They were reckoned at but half the value of bought servants. Deut. xv. 18. None but the *lowest class* of the people engaged as hired servants, and the kinds of labor assigned to them required little knowledge and skill. No persons seem to have become hired servants except such as were forced to it from extreme poverty. The hired servant is called "poor and needy," and the reason assigned by God why he should be paid as soon as he had finished his work is, "For *he is poor*, and setteth his heart upon it." Deut. xxiv. 14, 15. See also, 1 Sam. ii. 5. Various passages show the low repute and trifling character of the class from which they were hired. Judg. ix. 4; 1 Sam. ii. 5. The superior condition of bought servants is manifest in the high trust confided to them, and in their dignity and authority in the household. In no instance is a *hired* servant thus distinguished. The *bought* servant is manifestly the master's representative in the family, sometimes with plenipotentiary powers over adult children, even negotiating marriage for them. Abraham adjured his servant, not to take a wife for Isaac of the

daughters of the Canaanites. The servant himself selected the individual. Servants exercised discretionary power in the management of their masters' estates, "And the servant took ten camels of the camels of his master, *for all the goods of his master were in his hand.*" Gen. xxiv. 10. The reason assigned is not that such was Abraham's direction, but that the servant had discretionary control. Servants had also discretionary power in the *disposal of property*. Gen. xxiv. 22, 30, 53. The condition of Ziba in the house of Mephibosheth, is a case in point. So is Prov. xvii. 2. Distinct traces of this estimation are to be found in the New Testament, Matt. xxiv. 45; Luke xii. 42, 44. So in the parable of the talents, the master seems to have set up each of his servants in trade with a large capital. The unjust steward had large *discretionary* power, was "accused of wasting his master's goods," and manifestly regulated with his debtors the *terms* of settlement. Luke xvi. 4-8. Such trusts were never reposed in *hired* servants.

[A](#): "For the *purchased servant* who is an Israelite, or proselyte, shall fare as his master. The master shall not eat fine bread, and his servant bread of bran. Nor yet drink old wine, and give his servant new: nor sleep on soft pillows, and bedding, and his servant on straw. I say unto you, that he that gets a *purchased* servant does well to make him as his friend, or he will prove to his employer as if he got himself a master."—Maimonides, in Mishna Kiddushim. Chap. 1, Sec. 2.

[B](#): Our translators in rendering it "Is he a home-born SLAVE," were wise beyond what is written.

The inferior condition of *hired* servants, is illustrated in the parable of the prodigal son. When he came to himself, the memory of his home, and of the abundance enjoyed by even the *lowest* class of servants in his father's household, while he was perishing with hunger among the swine and husks, so filled him with anguish at the contrast, that he exclaimed, "How many *hired* servants of my father, have bread enough and to spare, and I perish with hunger." His proud heart broke. "I will arise," he cried, "and go to my father;" and then to assure his father of the depth of his humility, resolved to add; "Make me as one of thy *hired* servants." If *hired* servants were the *superior* class—to bespeak the situation, savored little of that sense of unworthiness that seeks the dust with hidden face, and cries "unclean."

Unhumbled nature *climbs*; or if it falls, clings fast, where first it may. Humility sinks of its own weight, and in the lowest deep, digs lower. The design of the parable was to illustrate on the one hand, the joy of God, as he beholds afar off, the returning sinner "seeking an injured father's face," who runs to clasp and bless him with an unchiding welcome; and on the other, the contrition of the penitent, turning homeward with tears from his wanderings, his stricken spirit breaking with its ill-desert he sobs aloud, "The lowest place, *the lowest place*, I can abide no other." Or in those inimitable words, "Father I have sinned against Heaven, and in thy sight, and am no more worthy to be called thy son; make me as one of thy HIRED servants." The supposition that *hired* servants were the *highest* class, takes from the parable an element of winning beauty and pathos.

It is manifest to every careful student of the Bible, that *one* class of servants, was on terms of equality with the children and other members of the family. Hence the force of Paul's declaration, Gal. iv. 1, "Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all." If this were the *hired* class, the prodigal was a sorry specimen of humility. Would our Lord have put such language upon the lips of one held up by himself, as a model of gospel humility, to illustrate its deep sense of all ill-desert? If this is *humility*, put it on stilts, and set it a strutting, while pride takes lessons, and blunders in aping it.

Israelites and Strangers belonged indiscriminately to *each* class of the servants, the *bought* and the *hired*. That those in the former class, whether Jews or Strangers, rose to honors and authority in the family circle, which were not conferred on *hired* servants, has been shown. It should be added, however, that in the enjoyment of privileges, merely *political*, the hired servants from the *Israelites*, were more favored than even the bought servants from the *Strangers*. No one from the Strangers, however wealthy or highly endowed, was eligible to the highest office, nor could he own the soil. This last disability seems to have been one reason for the different periods of service required of the two classes of bought servants. The Israelite was to serve six years—the Stranger until the jubilee. As the Strangers could not own the soil, nor houses, except within walled towns, they would naturally attach themselves to Israelitish families. Those who

were wealthy, or skilled in manufactures, instead of becoming servants would need servants for their own use, and as inducements for the Strangers to become servants to the Israelites, were greater than persons of their own nation could hold out to them, these wealthy Strangers would naturally procure the poorer Israelites for servants. Lev. xxv. 47. In a word, such was the political condition of the Strangers, that the Jewish polity offered a virtual bounty, to such as would become permanent servants, and thus secure those privileges already enumerated, and for their children in the second generation a permanent inheritance. Ezek. xlvii. 21-23. None but the monied aristocracy would be likely to decline such offers. On the other hand, the Israelites, owning all the soil, and an inheritance of land being a sacred possession, to hold it free of incumbrance was with every Israelite, a delicate point, both of family honor and personal character. 1 Kings xxi. 3. Hence, to forego the control of one's inheritance, after the division of the paternal domain, or to be kept out of it after having acceded to it, was a burden grievous to be borne. To mitigate as much as possible such a calamity, the law released the Israelitish servant at the end of six^A years; as, during that time—if of the first class—the partition of the patrimonial land might have taken place or, if of the second, enough money might have been earned to disencumber his estate, and thus he might assume his station as a lord of the soil. If neither contingency had occurred, then after another six years the opportunity was again offered, and so on, until the jubilee. So while strong motives urged the Israelite to discontinue his service as soon as the exigency had passed which made him a servant, every consideration impelled the *Stranger* to *prolong* his term of service;^B and the same kindness which dictated the law of six years' service for the Israelite, assigned as the general rule, a much longer period to the Gentile servant, who had every inducement to protract the term. It should be borne in mind, that adult Jews ordinarily became servants, only as a temporary expedient to relieve themselves from embarrassment, and ceased to be such when that object was effected. The poverty that forced them to it was a calamity, and their service was either a means of relief, or a measure of prevention; not pursued as a permanent business, but resorted to on emergencies—a sort of episode in the main scope of their lives. Whereas with the Stranger, it was a *permanent employment*, pursued both as a *means* of bettering their own condition, and that of their posterity, and as an *end* for its own sake,

conferring on them privileges, and a social estimation not otherwise attainable.

A: Another reason for protracting the service until the seventh year, seems to have been the coincidence of that period with other arrangements, in the Jewish economy. Its pecuniary responsibilities, social relations, and general internal structure, were *graduated* upon a septennial scale. Besides, as those Israelites who had become servants through poverty, would not sell themselves, till other expedients to recruit their finances had failed—(Lev. xxv. 35)—their *becoming servants* proclaimed such a state of their affairs, as demanded the labor of a *course of years* fully to reinstate them.

B: The Stranger had the same inducements to prefer a long term of service that those have who cannot own land, to prefer a long *lease*.

We see from the foregoing, why servants purchased from the heathen, are called by way of distinction, *the servants*, (not *bondmen*.) 1. They followed it as a *permanent business*. 2. Their term of service was *much longer* than that of the other class. 3. As a class, they doubtless greatly outnumbered the Israelitish servants. 4. All the Strangers that dwelt in the land were *tributaries*, required to pay an annual tax to the government, either in money, or in public service, (called a "*tribute of bond-service*;") in other words, all the Strangers were *national servants*, to the Israelites, and the same Hebrew word used to designate *individual* servants, equally designates *national* servants or tributaries. 2 Sam. viii. 2, 6, 14; 2 Chron. viii. 7-9; Deut, xx. 11; 2 Sam. x. 19; 1 Kings ix. 21, 22; 1 Kings iv. 21; Gen. xxvii. 29. The same word is applied to the Israelites, when they paid tribute to other nations. 2 Kings xvii. 3.; Judg. iii. 8, 14; Gen. xlix. 15. Another distinction between the Jewish and Gentile bought servants, was in their *kinds* of service. The servants from the Strangers were properly the *domestics*, or household servants, employed in all family work, in offices of personal attendance, and in such mechanical labor, as was required by increasing wants and needed repairs. The Jewish bought servants seem almost exclusively *agricultural*. Besides being better fitted for it by previous habits, agriculture, and the tending of cattle, were regarded by the Israelites as the most honorable of all occupations. After Saul was elected king, and escorted to Gibeah, the next report of him is, "*And behold Saul*

came after the herd out of the field." 1 Sam. xi. 5. Elisha "was plowing with twelve yoke of oxen." 1 Kings xix. 19. King Uzziah "loved husbandry." 2 Chron. xxvi. 10. Gideon was "*threshing wheat*" when called to lead the host against the Midianites. Judg. vi. 11. The superior honorableness of agriculture is shown, in that it was protected and supported by the fundamental law of the theocracy—God indicating it as the chief prop of the government. The Israelites were like permanent fixtures on their soil, so did they cling to it. To be agriculturists on their own patrimonial inheritances, was with them the grand claim to honorable estimation. When Ahab proposed to Naboth that he should sell him his vineyard, king though he was, he might well have anticipated from an Israelitish freeholder, just such an indignant burst as that which his proposal drew forth, "And Naboth said to Ahab, the Lord forbid it me that I should give the inheritance of my fathers unto thee." 1 Kings xxi. 2, 3. Agriculture being pre-eminently a *Jewish* employment, to assign a native Israelite to other employments as a business, was to break up his habits, do violence to cherished predilections, and put him to a kind of labor in which he had no skill, and which he deemed degrading.^C In short, it was in the earlier ages of the Mosaic system, practically to *unjew* him, a hardship and a rigor grievous to be borne, as it annihilated a visible distinction between the descendants of Abraham and the Strangers. *To guard this and another fundamental distinction*, God instituted the regulation, "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a bond-servant." In other words, thou shalt not put him to servant's work—to the business, and into the condition of domestics. In the Persian version it is translated, "Thou shalt not assign to him the work of *servitude*." In the Septuagint, "He shall not serve thee with the service of a *domestic*." In the Syriac, "Thou shalt not employ him after the manner of servants." In the Samaritan, "Thou shalt not require him to serve in the service of a servant." In the Targum of Onkelos, "He shall not serve thee with the service of a household servant." In the Targum of Jonathan, "Thou shalt not cause him to serve according to the usages of the servitude of servants."^D The meaning of the passage is, *thou shalt not assign him to the same grade, nor put him to the same service, with permanent domestics*. The remainder of the regulation is—"But as an hired servant and as a sojourner shall he be with thee." Hired servants were not incorporated into the families of their masters; they still retained their own family organization, without the

surrender of any domestic privilege, honor, or authority; and this, even though they resided under the same roof with their master. The same substantially may be said of the sojourner though he was not the owner of the land which he cultivated, and of course had not the control of an inheritance, yet he was not in a condition that implied subjection to him whose land he tilled, or that demanded the surrender of any *right*, or exacted from him any homage, or stamped him with any inferiority; unless, it be supposed that a degree of inferiority would naturally attach to a state of *dependence* however qualified. While bought servants were associated with their master's families at meals, at the Passover, and at other family festivals, hired servants and sojourners were not. Ex. xii. 44, 45; Lev. xxii. 10, 11. Hired servants were not subject to the authority of their masters in any such sense as the master's wife, children, and bought servants. Hence the only form of oppressing hired servants spoken of in the Scriptures as practicable to masters, is that of *keeping back their wages*. To have taken away such privileges in the case under consideration, would have been pre-eminent "*rigor*;" for it was not a servant born in the house of a master, nor a minor, whose minority had been sold by the father, neither was it one who had not yet acceded to his inheritance, nor finally, one who had received the *assignment* of his inheritance, but was working off from it an incumbrance, before entering upon its possession and control. But it was that of *the head of a family*, who had known better days, now reduced to poverty, forced to relinquish the loved inheritance of his fathers, with the competence and respectful consideration its possession secured to him, and to be indebted to a neighbor for shelter, sustenance, and employment. So sad a reverse, might well claim sympathy; but one consolation cheers him in the house of his pilgrimage; he is an *Israelite*—*Abraham is his father* and now in his calamity he clings closer than ever, to the distinction conferred by his birth-right. To rob him of this, were "the unkindest cut of all." To have assigned him to a grade of service filled only by those whose permanent business was serving, would have been to "rule over him with" peculiar "*rigor*." "Thou shalt not compel him to serve as a bond-servant," or literally, *thou shalt not serve thyself with him, with the service of a servant*, guaranties his political privileges, and a kind and grade of service comporting with his character and relations as an Israelite. And "as a *hired* servant, and as a sojourner shall he be with thee," secures to him his family organization, the respect and authority due to its head, and the general consideration resulting

from such a station. Being already in possession of his inheritance, and the head of a household, the law so arranged the conditions of his service as to *alleviate* as much as possible the calamity which had reduced him from independence and authority, to penury and subjection. The import of the command which concludes this topic in the forty-third verse, ("Thou shalt not rule over him with rigor,") is manifestly this, you shall not disregard those differences in previous associations, station, authority, and political privileges, upon which this regulation is based; for to hold this class of servants *irrespective* of these distinctions, and annihilating them, is to "rule with rigor." The same command is repeated in the forty-sixth verse, and applied to the distinction between servants of Jewish, and those of Gentile extraction, and forbids the overlooking of distinctive Jewish peculiarities, the disregard of which would be *rigorous* in the extreme.^E The construction commonly put upon the phrase "rule with rigor," and the inference drawn from it, have an air vastly oracular. It is interpreted to mean, "you shall not make him a chattel, and strip him of legal protection, nor force him to work without pay." The inference is like unto it, viz., since the command forbade such outrages upon the Israelites, it permitted and commissioned their infliction upon the Strangers. Such impious and shallow smattering captivates scoffers and libertines; its flippancy and blasphemy, and the strong scent of its loose-reined license works like a charm upon them. What boots it to reason against such rampant affinities! In Ex. i. 13, it is said that the Egyptians, "made the children of Israel to *serve* with rigor." This rigor is affirmed of the *amount of labor* extorted and the *mode* of the exaction. The expression "serve with rigor," is never applied to the service of servants under the Mosaic system. The phrase, "thou shalt not RULE over him with rigor," does not prohibit unreasonable exactions of labor, nor inflictions of cruelty. Such were provided against otherwise. But it forbids confounding the distinctions between a Jew and a Stranger, by assigning the former to the same grade of service, for the same term of time and under the same political disabilities as the latter.

^C: The Babylonish captivity seems to have greatly modified Jewish usage in this respect. Before that event, their cities were comparatively small, and few were engaged in mechanical or mercantile employments. Afterward their cities enlarged apace and trades multiplied.

D: Jarchi's comment on "Thou shalt not compel him to serve as a bond-servant" is, "The Hebrew servant is not to be required to do any thing which is accounted degrading—such as all offices of personal attendance, as loosing his master's shoe-latchet, bringing him water to wash his hands and feet, waiting on him at table, dressing him, carrying things to and from the bath. The Hebrew servant is to work with his master as a son or brother, in the business of his farm, or other labor, until his legal release."

E: The disabilities of the Strangers, which were distinctions, based on a different national descent, and important to the preservation of nation characteristics, and a national worship, did not at all affect their *social* estimation. They were regarded according to their character and worth as *persons*, irrespective of their foreign origin, employments and political condition.

We are now prepared to review at a glance, the condition of the different classes of servants, with the modifications peculiar to each.

In the possession of all fundamental rights, all classes of servants were on an absolute equality, all were equally protected by law in their persons, character, property and social relations; all were voluntary, all were compensated for their labor, and released from it nearly one half of the days in each year; all were furnished with stated instruction; none in either class were in any sense articles of property, all were regarded as *men*, with the rights, interests, hopes and destinies of *men*. In all these respects, *all* classes of servants among the Israelites, formed but ONE CLASS. The *different* classes, and the differences in *each* class, were, 1. *Hired Servants*. This class consisted both of Israelites and Strangers. Their employments were different. The *Israelite* was an agricultural servant. The Stranger was a *domestic* and *personal* servant, and in some instances *mechanical*; both were occasional and temporary. Both lived in their own families, their wages were *money*, and they were paid when their work was done. 2. *Bought Servants*, (including those "born in the house.") This class also, consisted of Israelites and Strangers, the same difference in their kinds of employment as noticed before. Both were paid in advance,^A and neither was temporary. The Israelitish servant, with the exception of the *freeholder*, completed his term in six years. The Stranger was a permanent servant, continuing until the jubilee. A marked distinction obtained also between different classes of *Jewish* bought servants. Ordinarily, they were merged in their master's family, and, like his wife and children, subject to his authority; (and, like them, protected by law from its abuse.) But the *freeholder* was an exception; his family relations and authority remained unaffected, nor was he subjected as an inferior to the control of his master, though dependent on him for employment.

^A: The payment *in advance*, doubtless lessened the price of the purchase; the servant thus having the use of the money, and the master assuming all the risks of life, and health for labor; at the expiration of the six years' contract, the master having suffered no loss from the risk incurred at the

making of it, was obliged by law to release the servant with a liberal gratuity. The reason assigned for this is, "he hath been worth a double hired servant unto thee in serving thee six years," as if it had been said, as you have experienced no loss from the risks of life, and ability to labor, incurred in the purchase, and which lessened the price, and as, by being your servant for six years, he has saved you the time and trouble of looking up and hiring laborers on emergencies, therefore, "thou shalt furnish him liberally," &c.

This gratuity at the close of the service shews the *principle* of the relation; *equivalent* for value received.

It should be kept in mind, that *both* classes of servants, the Israelite and the Stranger, not only enjoyed *equal, natural and religious rights*, but *all the civil and political privileges* enjoyed by those of their own people who were *not* servants. They also shared in common with them the political disabilities which appertained to all Strangers, whether servants of Jewish masters, or masters of Jewish servants. Further, the disabilities of the servants from the Strangers were exclusively *political* and *national*. 1. They, in common with all Strangers, could not own the soil. 2. They were ineligible to civil offices. 3. They were assigned to employments less honorable than those in which Israelitish servants engaged; agriculture being regarded as fundamental to the existence of the state, other employments were in less repute, and deemed *unjewish*.

Finally, the Strangers, whether servants or masters, were all protected equally with the descendants of Abraham. In respect to political privileges, their condition was much like that of unnaturalized foreigners in the United States; whatever their wealth or intelligence, or moral principle, or love for our institutions, they can neither go to the ballot-box, nor own the soil, nor be eligible to office. Let a native American, be suddenly bereft of these privileges, and loaded with the disabilities of an alien, and what to the foreigner would be a light matter, to *him*, would be the severity of *rigor*. The recent condition of the Jews and Catholics in England, is another illustration. Rothschild, the late banker, though the richest private citizen in the world, and perhaps master of scores of English servants, who sued for the smallest crumbs of his favor, was, as a subject of the government, inferior to the lowest among them. Suppose an Englishman of the

Established Church, were by law deprived of power to own the soil, of eligibility to office and of the electoral franchise, would Englishmen think it a misapplication of language, if it were said, the government "rules over him with rigor?" And yet his person, property, reputation, conscience, all his social relations, the disposal of his time, the right of locomotion at pleasure, and of natural liberty in all respects, are just as much protected by law as the Lord Chancellor's.

FINALLY.—As the Mosaic system was a great compound type, rife with meaning in doctrine and duty; the practical power of the whole, depended upon the exact observance of those distinctions and relations which constituted its significancy. Hence, the care to preserve inviolate the distinction between a *descendant of Abraham* and a *Stranger*, even when the Stranger was a proselyte, had gone through the initiatory ordinances, entered the congregation, and become incorporated with the Israelites by family alliance. The regulation laid down in Ex. xxi. 2-6, is an illustration. In this case, the Israelitish servant, whose term expired in six years, married one of his master's *permanent female domestics*; but her marriage did not release her master from *his* part of the contract for her whole term of service, nor from his legal obligation to support and educate her children. Neither did it do away that distinction, which marked her national descent by a specific *grade* and *term* of service, nor impair her obligation to fulfil *her* part of the contract. Her relations as a permanent domestic grew out of a distinction guarded with great care throughout the Mosaic system. To render it void, would have been to divide the system against itself. This God would not tolerate. Nor, on the other hand, would he permit the master to throw off the responsibility of instructing her children, nor the care and expense of their helpless infancy and rearing. He was bound to support and educate them, and all her children born afterwards during her term of service. The whole arrangement beautifully illustrates that wise and tender regard for the interests of all the parties concerned, which arrays the Mosaic system in robes of glory, and causes it to shine as the sun in the kingdom of our Father.^B By this law, the children had secured to them a mother's tender care. If the husband loved his wife and children, he could compel his master to keep him, whether he had any occasion for his services or not. If he did not love them, to be rid of him was a blessing; and in that case, the regulation would prove an act for the relief of an afflicted family. It is not

by any means to be inferred, that the release of the servant in the seventh year, either absolved him from the obligations of marriage, or shut him out from the society of his family. He could doubtless procure a service at no great distance from them, and might often do it, to get higher wages, or a kind of employment better suited to his taste and skill. The great number of days on which the law released servants from regular labor, would enable him to spend much more time with his family, than can be spent by most of the agents of our benevolent societies with *their* families, or by many merchants, editors, artists, &c., whose daily business is in New York, while their families reside from ten to one hundred miles in the country.

[B](#): Whoever profoundly studies the Mosaic Institutes with a teachable and reverential spirit, will feel the truth and power of that solemn appeal and interrogatory of God to his people Israel, when he had made an end of setting before them all his statutes and ordinances. "What nation is there so great, that hath statutes and judgments SO RIGHTEOUS, as *all* this law which I set before you this day." Deut. iv. 8.

We conclude this inquiry by touching upon an objection, which, though not formally stated, has been already set aside by the tenor of the foregoing argument. It is this,—"The slavery of the Canaanites by the Israelites, was appointed by God as a commutation of the punishment of death denounced against them for their sins." [A](#) If the absurdity of a sentence consigning persons to death, and at the same time to perpetual slavery, did not sufficiently laugh at itself; it would be small self-denial, in a case so tempting, to make up the deficiency by a general contribution. Only *one* statute was ever given respecting the disposition to be made of the inhabitants of Canaan. If the sentence of death was pronounced against them, and afterwards *commuted*, when? where? by whom? and in what terms was the commutation, and where is it recorded? Grant, for argument's sake, that all the Canaanites were sentenced to unconditional extermination; how can a right to *enslave* them, be drawn from such premises? The punishment of death is one of the highest recognitions of man's moral nature possible. It proclaims him rational, accountable, guilty, deserving death for having done his utmost to cheapen human life, when the proof of its priceless worth lived in his own nature. But to make him a *slave*, cheapens to nothing *universal human nature*, and instead of healing a

wound, gives a death-stab. What! repair an injury to rational being in the robbery of one of its rights, not only by robbing it of all, but by annihilating their *foundation*, the everlasting distinction between persons and things? To make a man a chattel, is not the *punishment*, but the *annihilation* of a *human* being, and, so far as it goes, of *all* human beings. This commutation of the punishment of death, into perpetual slavery, what a fortunate discovery! Alas! for the honor of Deity, if commentators had not manned the forlorn hope, and by a timely movement rescued the Divine character, at the very crisis of its fate, from the perilous position in which inspiration had carelessly left it! Here a question arises of sufficient importance for a separate dissertation; but must for the present be disposed of in a few paragraphs. WERE THE CANAANITES SENTENCED BY GOD TO INDIVIDUAL AND UNCONDITIONAL EXTERMINATION? As the limits of this inquiry forbid our giving all the grounds of dissent from commonly received opinions, the suggestions made, will be thrown out merely as QUERIES, rather than laid down as *doctrines*. The directions as to the disposal of the Canaanites, are mainly in the following passages, Ex. xxiii. 23-33; xxxiv. 11; Deut. vii. 16-24; ix. 3; xxxi. 3-5. In these verses, the Israelites are commanded to "destroy the Canaanites," to "drive out," "consume," "utterly overthrow," "put out," "dispossess them," &c. Did these commands enjoin the unconditional and universal destruction of the *individuals*, or merely of the *body politic*? The word *hārām*, to destroy, signifies *national*, as well as individual destruction; the destruction of *political* existence, equally with *personal*; of governmental organization, equally with the lives of the subjects. Besides, if we interpret the words destroy, consume, overthrow, &c., to mean *personal* destruction, what meaning shall we give to the expressions, "drive out before thee," "cast out before thee," "expel," "put out," "dispossess," &c., which are used in the same and in parallel passages? In addition to those quoted above, see Josh. iii. 10; xvii. 18; xxiii. 5; xxiv. 18; Judg. i. 20, 29-35; vi. 9. "I will *destroy* all the people to whom thou shalt come, and I will make all thine enemies *turn their backs unto thee*." Ex. xxiii. 27. Here "*all their enemies*" were to *turn their backs*, and "*all the people*" to be "*destroyed*." Does this mean that God would let all their *enemies* escape, but kill their *friends*, or that he would *first* kill "all the people" and THEN make them "turn their backs," an army of runaway corpses? In Josh. xxiv. 8, God says, speaking of the Amorites, "I *destroyed* them from before you." In the 18th verse of the same chapter, it is

said, "The Lord *drive out* from before us all the people, even the Amorites which dwelt in the land." In Num. xxxii. 39, we are told that "the children of Machir the son of Manasseh, went to Gilead, and took it, and *dispossessed* the Amorite which was in it." If these commands required the destruction of all the *individuals*, the Mosaic law was at war with itself, for directions as to the treatment of native residents form a large part of it. See Lev. xix. 34; xxv. 35, 36; xxiv. 22.; Ex. xxiii. 9; xxii. 21; Deut. i. 16, 17; x. 17, 19; xxvii. 19. We find, also, that provision was made for them in the cities of refuge, Num. xxxv. 15,—the gleanings of the harvest and vintage were theirs, Lev. xix. 9, 10; xxiii. 22;—the blessings of the Sabbath, Ex. xx. 10;—the privilege of offering sacrifices secured, Lev. xxii. 18; and stated religious instruction provided for them. Deut. xxxi. 9, 12. Now does this same law require the *individual extermination* of those whose lives and interests it thus protects? These laws were given to the Israelites, long *before* they entered Canaan; and they must have inferred from them, that a multitude of the inhabitants of the land were to *continue in it*, under their government. Again Joshua was selected as the leader of Israel to execute God's threatenings upon Canaan. He had no discretionary power. God's commands were his official instructions. Going beyond them would have been usurpation; refusing to carry them out, rebellion and treason. Saul was rejected from being king for disobeying God's commands in a single instance. Now if God commanded the individual destruction of all the Canaanites Joshua disobeyed him in every instance. For at his death, the Israelites still "*dwelt among them*," and each nation is mentioned by name. Judg. i. 27-36, and yet we are told that Joshua "left nothing undone of all that the Lord commanded Moses;" and that he "took all that land." Josh. xi. 15-22. Also, that "there *stood not a man* of *all* their enemies before them." Josh. xxi. 44. How can this be if the command to destroy, destroy utterly, &c., enjoined *individual* extermination, and the command to drive out, unconditional expulsion from the country, rather than their expulsion from the *possession* or *ownership* of it, as the lords of the soil? That the latter is the true sense to be attached to those terms, we argue, further from the fact that the same terms are employed by God to describe the punishment which he would inflict upon the Israelites if they served other Gods. "Ye shall utterly perish," "be utterly destroyed," "consumed," &c., are some of them.—See Deut. iv. 20; viii. 19, 20.^B Josh. xxiii. 12, 13-16; 1. Sam. xii. 25. The Israelites *did* serve other Gods, and Jehovah *did* execute upon them his

threatenings—and thus himself *interpreted* these threatenings. He subverted their *government*, dispossessed them of their land, divested them of national power, and made them *tributaries*, but did not *exterminate* them. He "destroyed them utterly" as an independent body politic, but not as individuals. Multitudes of the Canaanites were slain, but not a case can be found in which one was either killed or expelled who *acquiesced* in the transfer of the territory, and its sovereignty, from the inhabitants of the land to the Israelites. Witness the case of Rahab and her kindred, and that of the Gibeonites. [C](#) The Canaanites knew of the miracles wrought for the Israelites; and that their land had been transferred to them as a judgment for their sins. Josh. ii. 9-11; ix. 9, 10, 24. Many of them were awed by these wonders, and made no resistance. Others defied God and came out to battle. These last occupied the fortified cities, were the most inveterate heathen—the aristocracy of idolatry, the kings, the nobility and gentry, the priests, with their crowds of satellites, and retainers that aided in idolatrous rites, and the military forces, with the chief profligates of both sexes. Many facts corroborate the general position. Witness that command (Deut. xxiii. 15, 16,) which, not only prohibited the surrender of the fugitive servant to his master, but required the Israelites to receive him with kindness, permit him to dwell where he pleased, and to protect and cherish him. Whenever any servant, even a Canaanite, fled from his master to the Israelites, Jehovah, so far from commanding them to *kill* him, straitly charged them, "He shall dwell with thee, even among you, in that place which *he* shall choose—in one of thy gates where it liketh *him* best—thou shalt not oppress him." Deut. xxiii. 16. The Canaanitish servant by thus fleeing to the Israelites, submitted himself as a dutiful subject to their national government, and pledged his allegiance. Suppose *all* the Canaanites had thus submitted themselves to the Jewish theocracy, and conformed to the requirements of the Mosaic institutes, would not *all* have been spared upon the same principle that *one* was? Again, look at the multitude of *tributaries* in the midst of Israel, and that too, after they had "waxed strong," and the uttermost nations quaked at the terror of their name—the Canaanites, Philistines and others, who became proselytes—as the Nethenims, Uriah the Hittite—Rahab, who married one of the princes of Judah—Jether, an Ishmaelite, who married Abigail the sister of David and was the father of Amasa, the captain of the host of Israel. Comp. 1 Chron. ii. 17, with 2 Sam. xvii. 25.—Ittai—the six hundred Gittites, David's body guard. 2. Sam xv.

18, 21. Obededom the Gittite, adopted into the tribe of Levi. Comp. 2 Sam. vi. 10, 11, with 1 Chron. xv. 18, and xxvi. 4, 5—Jaziz, and Obil. 1 Chron. xxvii. 30, 31. Jephunneh the Kenezite, Josh. xiv. 6, and father of Caleb a ruler of the tribe of Judah. Numb. xiii. 2, 6—the Kenites registered in the genealogies of the tribe of Judah, Judg. i. 16; 1 Chron. ii. 55, and the one hundred and fifty thousand Canaanites, employed by Solomon in the building of the Temple.^D Besides, the greatest miracle on record, was wrought to save a portion of those very Canaanites, and for the destruction of those who would exterminate them. Josh. x. 12-14. Further—the terms employed in the directions regulating the disposal of the Canaanites, such as "drive out," "put out," "cast out," "expel," "dispossess," &c., seem used interchangeably with "consume," "destroy," "overthrow," &c., and thus indicate the sense in which the latter words are used. As an illustration of the meaning generally attached to these and similar terms, we refer to the history of the Amalekites. "I will utterly put out the remembrance of Amalek from under heaven." Ex. xvii. 14. "Thou shalt blot out the remembrance of Amalek from under heaven; thou shalt not forget it." Deut. xxv. 19. "Smite Amalek and *utterly destroy* all that they have, and spare them not, but slay both man and woman, infant and suckling, ox and sheep." 1 Sam. xv. 2, 3. "Saul smote the Amalekites, and he took Agag the king of the Amalekites, alive and **UTTERLY DESTROYED ALL THE PEOPLE** with the edge of the sword." Verses 7, 8. In verse 20, Saul says, "I have brought Agag, the king of Amalek, and have *utterly destroyed* the Amalekites." In 1 Sam. xxx. 1, 2, we find the Amalekites marching an army into Israel, and sweeping everything before them—and this in about eighteen years after they had all been "UTTERLY DESTROYED!" In 1 Kings ii. 15-17, is another illustration. We are informed that Joab remained in Edom six months with all Israel, "until he had *cut off every male*" in Edom. In the next verse we learn that Hadad and "certain Edomites" were not slain. Deut. xx. 16, 17, will probably be quoted against the preceding view. We argue that the command in these verses, did not include all the individuals of the Canaanitish nations, but only the inhabitants of the *cities*, (and even those conditionally,) because, only the inhabitants of *cities* are specified—"of the *cities* of these people thou shalt save alive nothing that breatheth." Cities then, as now, were pest-houses of vice, they reeked with abominations little practised in the country. On this account, their influence would be far more perilous to the Israelites than that of the country.

Besides, they were the centres of idolatry—there were the temples and altars, and idols, and priests, without number. Even their buildings, streets, and public walks were so many visibilities of idolatry. The reason assigned in the 18th verse for exterminating them, strengthens the idea—"that they teach you not to do after all the abominations which they have done unto their gods." This would be a reason for exterminating all the nations and individuals *around* them, as all were idolaters; but God commanded them, in certain cases, to spare the inhabitants. Contact with *any* of them would be perilous—with the inhabitants of the *cities* peculiarly, and of the *Canaanitish* cities pre-eminently so. The 10th and 11th verses contain the general rule prescribing the method in which cities were to be summoned to surrender. They were first to receive the offer of peace—if it was accepted, the inhabitants became *tributaries*—but if they came out against Israel in battle, the *men* were to be killed, and the woman and little ones saved alive. The 15th verse restricts this lenient treatment to the inhabitants of the cities *afar off*. The 16th directs as to the disposal of the inhabitants of the Canaanitish cities. They were to save alive "nothing that breathed." The common mistake has been, in supposing that the command in the 15th verse refers to the *whole system of directions preceding*, commencing with the 10th, whereas it manifestly refers only to the *inflictions* specified in the 12th, 13th, and, 14th, making a distinction between those *Canaanitish* cities that *fought*, and the cities *afar off* that fought—in one case destroying the males and females, and in the other, the *males* only. The offer of peace, and the *conditional preservation*, were as really guaranteed to *Canaanitish* cities as to others. Their inhabitants were not to be exterminated unless they came out against Israel in battle. Whatever be the import of the commands respecting the disposition to be made of the Canaanites, all admit the fact that the Israelites did *not* utterly exterminate them. Now, if entire and unconditional extermination was the command of God, it was *never* obeyed by the Israelites, consequently the truth of God stood pledged to consign *them* to the same doom which he had pronounced upon the Canaanites, but which they had refused to visit upon them. "If ye will not drive out all the inhabitants of the land from before you, then it shall come to pass that * * *I shall do unto you as I thought to do unto them.*" Num. xxxiii. 55, 56. As the Israelites were not exterminated, we infer that God did not pronounce *that* doom upon them; and as he *did* pronounce upon them the *same* doom, whatever it was, which they should *refuse* to visit upon the Canaanites, it

follows that the doom of unconditional *extermination* was *not* pronounced against the Canaanites. But let us settle this question by the "law and the testimony." "There was not a city that made peace with the children of Israel save the Hivites, the inhabitants of Gibeon; all others they took in battle. For it was of the Lord to harden their hearts, that they should COME OUT AGAINST ISRAEL IN BATTLE, that he might destroy them utterly, and that they might have no favor, but that he might destroy them, as the Lord commanded Moses." Josh. xi. 19. 20. That is, if they had *not* come out against Israel in battle, they would have had "favor" shown them, and would not have been "*destroyed utterly*." The great design was to *transfer the territory* of the Canaanites to the Israelites, and along with it, *absolute sovereignty in every respect*; to annihilate their political organizations, civil polity, and jurisprudence, and their system of religion, with all its rights and appendages; and to substitute therefor, a pure theocracy, administered by Jehovah, with the Israelites as His representatives and agents. In a word the people were to be *denationalized*, their political existence annihilated, their idol temples, altars, groves, images, pictures, and heathen rites destroyed, and themselves put under tribute. Those who resisted the execution of Jehovah's purpose were to be killed, while those who quietly submitted to it were to be spared. All had the choice of these alternatives, either free egress out of the land;^E or acquiescence in the decree, with life and residence as tributaries, under the protection of the government; or resistance to the execution of the decree, with death. "*And it shall come to pass, if they will diligently learn the ways of my people, to swear by my name, the Lord liveth, as they taught my people to swear by Baal; THEN SHALL THEY BE BUILT IN THE MIDST OF MY PEOPLE.*"

^A: In the prophecy, Gen. ix. 25, the subjection of the Canaanites as a conquered people rendering tribute to other nations, is foretold by inspiration. The fulfilment of this prediction, seems to have commenced in the subjection of the Canaanites to the Israelites as tributaries. If the Israelites had exterminated them, as the objector asserts they were commanded to do; the prediction would have been *falsified*.

^B: These two verses are so explicit we quote them entire—"And it shall be if thou do at all forget the Lord thy God and walk after other Gods and serve them, and worship them, I testify against you this day that ye shall

surely *perish*, as the nations which the Lord destroyed before your face, so shall ye perish." The following passages are, if possible still more explicit—"The Lord shall send upon thee cursing, vexation and rebuke in all that thou settest thine hand unto for to do, until thou be *destroyed*, and until thou perish quickly." "The Lord shall make the pestilence cleave unto thee until he have *consumed* thee." "They (the 'sword,' 'blasting,' &c.) shall pursue thee until thou *perish*." "From heaven shall it come down upon thee until thou be *destroyed*." "All these curses shall come upon thee till thou be *destroyed*." "He shall put a yoke of iron upon thy neck until he have *destroyed* thee." "The Lord shall bring a nation against thee, a nation of fierce countenance, which shall not regard the person of the old, nor show favor to the young, * * until he have *destroyed* thee." All these, with other similar threatenings of *destruction*, are contained in the twenty-eighth chapter of Deut. See verses 20-25, 45, 48, 51. In the *same* chapter God declares that as a punishment for the same transgressions, the Israelites shall "be *removed* into all the kingdoms of the earth," thus showing that the terms employed in the other verses, "destroy," "perish," "perish quickly," "consume," &c., instead of signifying utter, personal destruction doubtless meant their destruction as an independent nation. In Josh. xxiv. 8, 18, "destroyed" and "drive out," are used synonymously.

C: Perhaps it will be objected, that the preservation of the Gibeonites, and of Rahab and her kindred, was a violation of the command of God. We answer, if it had been, we might expect some such intimation. If God had straitly commanded them to *exterminate all the Canaanites*, their pledge to save them alive, was neither a repeal of the statute, nor absolution for the breach of it. If *unconditional destruction* was the import of the command, would God have permitted such an act to pass without rebuke? Would he have established such a precedent when Israel had hardly passed the threshold of Canaan, and was then striking the first blow of a half century war? What if they *had* passed their word to Rahab and the Gibeonites? Was that more binding than God's command? So Saul seems to have passed *his* word to Agag; yet Samuel hewed him in pieces, because in saving his life, Saul had violated God's command. When Saul sought to slay the Gibeonites in "his zeal for the children of Israel and Judah," God sent upon Israel a three years' famine for it. When David inquired of them what atonement he should make, they say, "The man that devised against us, that we should be

destroyed from *remaining in any of the coast of Israel*, let seven of his sons be delivered," &c. 2 Sam. xxi. 1-6.

D: If the Canaanites were devoted by God to unconditional extermination, to have employed them in the erection of the temple,—what was it but the climax of impiety? As well might they pollute its altars with swine's flesh or make their sons pass through the fire to Moloch.

E: Suppose all the Canaanitish nations had abandoned their territory at the tidings of Israel's approach, did God's command require the Israelites to chase them to ends of the earth, and hunt them out, until every Canaanite was destroyed? It is too preposterous for belief, and yet it follows legitimately from that construction, which interprets the terms "consume," "destroy," "destroy utterly," &c. to mean unconditional, individual extermination.

[The original design of the preceding Inquiry embraced a much wider range of topics. It was soon found, however, that to fill up the outline would be to make a volume. Much of the foregoing has therefore been thrown into a mere series of *indices*, to trains of thought and classes of proof, which, however limited or imperfect, may perhaps, afford some facilities to those who have little leisure for protracted investigation.]

NO. 5.

THE

ANTI-SLAVERY EXAMINER.

THE

POWER OF CONGRESS

**OVER THE
DISTRICT OF COLUMBIA.**

* * * * *

REPRINTED FROM THE NEW-YORK EVENING POST, WITH
ADDITIONS BY THE AUTHOR.

* * * * *

NEW-YORK:

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY,
NO. 143 NASSAU-STREET.
1838.

* * * * *

This periodical contains 3 1/2 sheets.—Postage under 100 miles, 6 cts.; over 100, 10 cts.

POWER OF CONGRESS

OVER THE

DISTRICT OF COLUMBIA.

A civilized community presupposes a government of law. If that government be a republic, its citizens are the sole *sources*, as well as the *subjects* of its power. Its constitution is their bill of directions to their own agents—a grant authorizing the exercise of certain powers, and prohibiting that of others. In the Constitution of the United States, whatever else may be obscure, the clause granting power to Congress over the Federal District may well defy misconstruction. Art. 1, Sec. 6, Clause 18: "The Congress shall have power to exercise exclusive legislation, *in all cases whatsoever*, over such District." Congress may make laws for the District "in all cases," not of all *kinds*; not all *laws* whatsoever, but laws "in all cases whatsoever." The grant respects the *subjects* of legislation, *not* the moral nature of the laws. The law-making power every where is subject to *moral* restrictions, whether limited by constitutions or not. No legislature can authorize murder, nor make honesty penal, nor virtue a crime, nor exact impossibilities. In these and similar respects, the power of Congress is held in check by principles, existing in the nature of things, not imposed by the Constitution, but presupposed and assumed by it. The power of Congress over the District is restricted only by those principles that limit ordinary legislation, and, in some respects, it has even wider scope.

In common with the legislatures of the States, Congress cannot constitutionally pass ex post facto laws in criminal cases, nor suspend the writ of habeas corpus, nor pass a bill of attainder, nor abridge the freedom

of speech and of the press, nor invade the right of the people to be secure in their persons, houses, papers, and effects, nor enact laws respecting an establishment of religion. These are general limitations. Congress cannot do these things *any where*. The exact import, therefore, of the clause "in all cases whatsoever," is, *on all subjects within the appropriate sphere of legislation*. Some legislatures are restrained by constitutions, from the exercise of powers strictly within the proper sphere of legislation. Congressional power over the District has no such restraint. It traverses the whole field of legitimate legislation. All the power which any legislature has within its own jurisdiction, Congress holds over the District of Columbia.

It has been objected that the clause in question respects merely police regulations, and that its sole design was to enable Congress to protect itself against popular tumults. But if the convention that framed the Constitution aimed to provide for a *single* case only, why did they provide for "*all* cases whatsoever?" Besides, this clause was opposed in many of the state conventions, because the grant of power was extended to "*all* cases whatsoever," instead of being restricted to police regulations *alone*. In the Virginia Convention, George Mason, the father of the Virginia Constitution, Patrick Henry, Mr. Grayson, and others, assailed it on that ground. Mr. Mason said, "This clause gives an unlimited authority in every possible case within the District. He would willingly give them exclusive power as far as respected the police and good government of the place, but he would give them no more." Mr. Grayson exclaimed against so large a grant of power—said that control over the *police* was all-sufficient, and "that the Continental Congress never had an idea of exclusive legislation in all cases." Patrick Henry said: "Shall we be told, when about to grant such illimitable authority, that it will never be exercised? Is it consistent with any principle of prudence or good policy, to grant *unlimited, unbounded authority*?" Mr. Madison said in reply: "I did conceive that the clause under consideration was one of those parts which would speak its own praise. I cannot comprehend that the power of legislation over a small District, will involve the dangers which he apprehends. When any power is given, its delegation necessarily involves authority to make laws to execute it. * * * * The powers which are found necessary to be given, are therefore delegated *generally*, and particular and minute specification is left to the Legislature.

* * * It is not within the limits of human capacity to delineate on paper all those particular cases and circumstances, in which legislation by the general legislature, would be necessary." Governor Randolph said: "Holland has no ten miles square, but she has the Hague where the deputies of the States assemble. But the influence which it has given the province of Holland, to have the seat of government within its territory, subject in some respects to its control, has been injurious to the other provinces. The wisdom of the convention is therefore manifest in granting to Congress exclusive jurisdiction over the place of their session." (*See debates in the Virginia Convention*, p. 320.) In the forty-third number of the "Federalist," Mr. Madison says: "The indispensable necessity of *complete* authority at the seat of government, carries its own evidence with it."

Finally, that the grant in question is to be interpreted according to the obvious import of its *terms*, and not in such a way as to restrict it to *police* regulations, is proved by the fact, that the State of Virginia proposed an amendment to the United States Constitution at the time of its adoption, providing that this clause "should be so construed as to give power only over the *police and good government* of said District," *which amendment was rejected*. Fourteen other amendments, proposed at the same time by Virginia, were *adopted*.

The former part, of the clause under consideration, "Congress shall have power to exercise *exclusive* legislation," gives sole jurisdiction, and the latter part, "in all cases whatsoever," defines the *extent* of it. Since, then, Congress is the *sole* legislature within the District, and since its power is limited only by the checks common to all legislatures, it follows that what the law-making power is intrinsically competent to do *any* where, Congress is competent to do in the District of Columbia.

STATEMENT OF THE QUESTION AT ISSUE.

Having disposed of preliminaries, we proceed to argue the *real question* at issue. Is the law-making power competent to abolish slavery when not restricted in that particular by constitutional provisions—or, *Is the abolition of slavery within the appropriate sphere of legislation?*

In every government, absolute sovereignty exists *somewhere*. In the United States it exists primarily with the *people*, and *ultimate* sovereignty *always* exists with them. In each of the States, the legislature possesses a *representative* sovereignty, delegated by the people through the Constitution—the people thus committing to the legislature a portion of their sovereignty, and specifying in their constitutions the amount and the conditions of the grant. That the *people* in any state where slavery exists, have the power to abolish it, none will deny. If the legislature have not the power, it is because *the people* have reserved it to themselves. Had they lodged with the legislature "power to exercise exclusive legislation in all cases whatsoever," they would have parted with their sovereignty over the legislation of the State, and so far forth the legislature would have become *the people*, clothed with all their functions, and as such competent, *during the continuance of the grant*, to do whatever the people might have done before the surrender of their power: consequently, they would have the power to abolish slavery. The sovereignty of the District of Columbia exists *somewhere*—where is it lodged? The citizens of the District have no legislature of their own, no representation in Congress, and no political power whatever. Maryland and Virginia have surrendered to the United States their "full and absolute right and entire sovereignty," and the people of the United States have committed to Congress by the Constitution, the power to "exercise exclusive legislation in all cases whatsoever over such District."

Thus, the sovereignty of the District of Columbia, is shown to reside solely in the Congress of the United States; and since the power of the people of a state to abolish slavery within their own limits, results from their entire sovereignty within the state, so the power of Congress to abolish slavery in the District, results from its entire *sovereignty* within the District. If it be objected that Congress can have no more power over the District, than was held by the legislatures of Maryland and Virginia, we ask what clause in the constitution graduates the power of Congress by the standard of a state legislature? Was the United States constitution worked into its present shape under the measuring line and square of Virginia and Maryland? and is its power to be bevelled down till it can run in the grooves of state legislation? There is a deal of prating about constitutional power over the District, as though Congress were indebted for it to Maryland and Virginia. The powers

of those states, whether few or many, prodigies or nullities, have nothing to do with the question. As well thrust in the powers of the Grand Lama to join issue upon, or twist papal bulls into constitutional tether, with which to curb congressional action. The Constitution of the United States gives power to Congress, and takes it away, and *it alone*. Maryland and Virginia adopted the Constitution *before* they ceded to the united States the territory of the District. By their acts of cession, they abdicated their own sovereignty over the District, and thus made room for that provided by the United States constitution, which sovereignty was to commence as soon as a cession of territory by states, and its acceptance by Congress furnished a sphere for its exercise.

That the abolition of slavery is within the sphere of legislation, I argue, *secondly*, from the fact, that *slavery as a legal system, is the creature of legislation*. The law by *creating* slavery, not only affirmed its *existence* to be within the sphere and under the control of legislation, but equally, the *conditions* and *terms* of its existence, and the *question* whether or not it *should* exist. Of course legislation would not travel *out* of its sphere, in abolishing what is *within* it, and what was recognised to be within it, by its own act. Cannot legislatures repeal their own laws? If law can take from a man his rights, it can give them back again. If it can say, "your body belongs to your neighbor," it can say, "it belongs to *yourself*, and I will sustain your right." If it can annul a man's right to himself, held by express grant from his Maker, and can create for another an artificial title to him, can it not annul the artificial title, and leave the original owner to hold himself by his original title?

3. *The abolition of slavery has always been considered within the appropriate sphere of legislation*. Almost every civilized nation has abolished slavery by law. The history of legislation since the revival of letters, is a record crowded with testimony to the universally admitted competency of the law-making power to abolish slavery. It is so manifestly an attribute not merely of absolute sovereignty, but even of ordinary legislation, that the competency of a legislature to exercise it, may well nigh be reckoned among the legal axioms of the civilized world. Even the night of the dark ages was not dark enough to make this invisible.

The Abolition decree of the great council of England was passed in 1102. The memorable Irish decree, "that all the English slaves in the whole of Ireland, be immediately emancipated and restored to their former liberty," was issued in 1171. Slavery in England was abolished by a general charter of emancipation in 1381. Passing over many instances of the abolition of slavery by law, both during the middle ages and since the reformation, we find them multiplying as we approach our own times. In 1776 slavery was abolished in Prussia by special edict. In St. Domingo, Cayenne, Guadaloupe and Martinique, in 1794, where more than 600,000 slaves were emancipated by the French government. In Java, 1811; in Ceylon, 1815; in Buenos Ayres, 1816; in St. Helena, 1819; in Colombia, 1821; by the Congress of Chili in 1821; in Cape Colony, 1823; in Malacca, 1825; in the southern provinces of Birmah, in 1826; in Bolivia, 1826; in Peru, Guatemala, and Monte Video, 1828, in Jamaica, Barbadoes, Bermudas, Bahamas, the Mauritius, St. Christopher's, Nevis, the Virgin Islands, Antigua, Montserrat, Dominica, St. Vincents, Grenada, Barbice, Tobago, St. Lucia, Trinidad, Honduras, Demarara, and the Cape of Good Hope, on the 1st of August, 1834. But waving details, suffice it to say, that England, France, Spain, Portugal, Sweden, Denmark, Austria, Prussia, and Germany, have all and often given their testimony to the competency of the law to abolish slavery. In our own country, the Legislature of Pennsylvania passed an act of abolition in 1780, Connecticut, in 1784; Rhode Island, 1784; New-York, 1799; New-Jersey, in 1804; Vermont, by Constitution, in 1777; Massachusetts, in 1780; and New Hampshire, in 1784.

When the competency of the law-making power to abolish slavery, has thus been recognised every where and for ages, when it has been embodied in the highest precedents, and celebrated in the thousand jubilees of regenerated liberty, is it forsooth an achievement of modern discovery, that such a power is a nullity?—that all these acts of abolition are void, and that the millions disenthralled by them, are, either themselves or their posterity, still legally in bondage?

4. *Legislative power has abolished slavery in its parts.* The law of South Carolina prohibits the working of slaves more than fifteen hours in the twenty-four. [See *Brevard's Digest*, 253.] In other words, it takes from the slaveholder his power over nine hours of the slave's time daily; and if it can

take nine hours it may take twenty-four—if two-fifths, then five-fifths. The laws of Georgia prohibit the working of slaves on the first day of the week; and if they can do it for the first, they can for the six following. Laws embodying the same principle have existed for ages in nearly all governments that have tolerated slavery.

The law of North Carolina prohibits the "immoderate" correction of slaves. If it has power to prohibit *immoderate* correction, it can prohibit *moderate* correction—all correction, which would be virtual emancipation; for, take from the master the power to inflict pain, and he is master no longer. Cease to ply the slave with the stimulus of fear, and he is free. Laws similar to this exist in slaveholding governments generally.

The Constitution of Mississippi gives the General Assembly power to make laws "to oblige the owners of slaves to *treat them with humanity*." The Constitution of Missouri has the same clause, and an additional one making it the DUTY of the legislature to pass such laws as may be necessary to secure the *humane* treatment of the slaves. This grant of power to those legislatures empowers them to decide what *is* and what is *not* "humane treatment." Otherwise it gives no "power"—the clause is mere waste paper, and flouts in the face of a mocked and befooled legislature. A clause giving power to require "humane treatment" covers all the *particulars* of such treatment—gives power to exact it in all *respects*—*requiring* certain acts, and *prohibiting* others—maiming, branding, chaining together, allowing each but a quart of corn a day,^A and but "one shirt and one pair of pantaloons" in six months^B—separating families, destroying marriages, floggings for learning the alphabet and reading the Bible—robbing them of their oath, of jury trial, and of the right to worship God according to conscience—the legislature has power to specify each of these acts—declare that it is not "*humane* treatment," and PROHIBIT it.—The legislature may also believe that driving men and women into the field, and forcing them to work without pay as long as they live, is not "humane treatment," and being constitutionally bound "to *oblige*" masters to practise "humane treatment"—they have the *power* to *prohibit such* treatment, and are bound to do it.

^A: Law of North Carolina, Haywood's Manual, 524-5.

[B](#): Law of Louisiana, Martin's Digest, 610.

The law of Louisiana makes slaves real estate, prohibiting the holder, if he be also a *land* holder, to separate them from the soil.[C](#) If it has power to prohibit the sale *without* the soil, it can prohibit the sale *with* it; and if it can prohibit the *sale* as property, it can prohibit the *holding* as property. Similar laws exist in the French, Spanish, and Portuguese colonies.

[C](#): Virginia made slaves real estate by a law passed in 1705. (*Beverly's Hist. of Va.*, p. 98.) I do not find the precise time when this law was repealed, probably when Virginia became the chief slave breeder for the cotton-growing and sugar-planting country, and made young men and women "from fifteen to twenty-five" the main staple production of the State.

The law of Louisiana requires the master to give his slaves a certain amount of food and clothing, (*Martin's Digest*, 610.) If it can oblige the master to give the slave *one* thing, it can oblige him to give him another: if food and clothing, then wages, liberty, his own body. Such laws exist in most slaveholding governments.

By the slave laws of Connecticut, under which slaves are now held, (for even Connecticut is still a slave State,) slaves might receive and hold property, and prosecute suits in their own name as plaintiffs: [This last was also the law of Virginia in 1795. See Tucker's "Dissertation on Slavery," p. 73.] There were also laws making marriage contracts legal, in certain contingencies, and punishing infringements of them, [*Reeve's Law of Baron and Femme*," p. 310-1.] Each of the laws enumerated above, does, *in principle*, abolish slavery; and all of them together abolish it *in fact*. True, not as a *whole*, and at a *stroke*, nor all in one place; but in its *parts*, by piecemeal, at divers times and places; thus showing that the abolition of slavery is within the boundary of *legislation*.

5. *The competency of the law-making power to abolish slavery has been recognized by all the slaveholding States, either directly or by implication.* Some States recognize it in their *Constitutions*, by giving the legislature power to emancipate such slaves as may "have rendered the state some distinguished service," and others by express prohibitory restrictions. The *Constitutions* of Mississippi, Arkansas, and other States, restrict the power

of the legislature in this respect. Why this express prohibition, if the law-making power cannot abolish slavery? A stately farce, indeed, formally to construct a special clause, and with appropriate rites induct it into the Constitution, for the express purpose of restricting a nonentity!—to take from the lawmaking power what it *never had*, and what *cannot* pertain to it! The legislatures of those States have no power to abolish slavery, simply because their Constitutions have expressly *taken away* that power. The people of Arkansas, Mississippi, &c., well knew the competency of the law-making power to abolish slavery, and hence their zeal to *restrict* it. The fact that these and other States have inhibited their legislatures from the exercise of this power, shows that the abolition of slavery is acknowledged to be a proper subject of legislation, when Constitutions impose no restrictions.

The slaveholding States have recognised this power in their *laws*. The Virginia Legislature passed a law in 1786 to prevent the further importation of Slaves, of which the following is an extract: "And be it further enacted that every slave imported into this commonwealth contrary to the true intent and meaning of this act, shall upon such importation become *free*." By a law of Virginia, passed Dec. 17, 1792, a slave brought into the state and kept *there a year*, was *free*. The Maryland Court of Appeals at the December term 1813 (see case of Stewart vs. Oakes,) decided that a slave owned in Maryland, and sent by his master into Virginia to work at different periods, making one year in the whole, became *free*, being *emancipated* by the law of Virginia quoted above. North Carolina and Georgia in their acts of cession, transferring to the United States the territory now constituting the States of Tennessee, Alabama and Mississippi, made it a condition of the grant, that the provisions of the ordinance of '87, should be secured to the inhabitants *with the exception of the sixth article which prohibits slavery*; thus conceding, both the competency of law to abolish slavery, and the power of Congress to do it, within its jurisdiction. Besides, these acts show the prevalent belief at that time, in the slaveholding States, that the general government had adopted a line of policy aiming at the exclusion of slavery from the entire territory of the United States, not included within the original States, and that this policy would be pursued unless prevented by specific and formal stipulation.

Slaveholding states have asserted this power *in their judicial decisions*. In numerous cases their highest courts have decided that if the legal owner of slaves takes them into those States where slavery has been abolished either by law or by the constitution, such removal emancipates them, such law or constitution abolishing their slavery. This principle is asserted in the decision of the Supreme Court of Louisiana, in the case of Lunsford vs. Coquillon, 14 Martin's La. Reps. 401. Also by the Supreme Court of Virginia, in the case of Hunter vs. Fulcher, 1 Leigh's Reps. 172. The same doctrine was laid down by Judge Washington, of the United States Supreme Court, in the case of Butler vs. Hopper, Washington's Circuit Court Reps. 508. This principle was also decided by the Court of Appeals in Kentucky; case of Rankin vs. Lydia, 2 Marshall's Reps. 407; see also, Wilson vs. Isbell, 5 Call's Reps. 425, Spotts vs. Gillespie, 6 Randolph's Reps. 566. The State vs. Lasselle, 1 Blackford's Reps. 60, Marie Louise vs. Mariot, 8 La. Reps. 475. In this case, which was tried in 1836, the slave had been taken by her master to France and brought back; Judge Mathews, of the Supreme Court of Louisiana, decided that "residence for one moment" under the laws of France emancipated her.

6. *Eminent statesmen, themselves slaveholders, have conceded this power.* Washington, in a letter to Robert Morris, dated April 12, 1786, says: "There is not a man living, who wishes more sincerely than I do, to see a plan adopted for the abolition of slavery; but there is only one proper and effectual mode by which it can be accomplished, and that is by *legislative* authority." In a letter to Lafayette, dated May 10, 1786, he says: "It (the abolition of slavery) certainly might, and assuredly ought to be effected, and that too by *legislative* authority." In a letter to John Fenton Mercer, dated Sept. 9, 1786, he says: "It is among my first wishes to see some plan adopted by which slavery in this country may be abolished by *law*." In a letter to Sir John Sinclair, he says: "There are in Pennsylvania, *laws* for the gradual abolition of slavery, which neither Maryland nor Virginia have at present, but which nothing is more certain that that they *must have*, and at a period not remote." Speaking of movements in the Virginia Legislature in 1777, for the passage of a law emancipating the slaves, Mr. Jefferson says: "The principles of the amendment were agreed on, that is to say, the freedom of all born after a certain day; but it was found that the public mind would not bear the proposition, yet the day is not far distant, when *it must*

bear and adopt it."—Jefferson's Memoirs, v. 1, p. 35. It is well known that Jefferson, Pendleton, Mason, Wythe and Lee, while acting as a committee of the Virginia House of Delegates to revise the State Laws, prepared a plan for the gradual emancipation of the slaves by law. These men were the great lights of Virginia. Mason, the author of the Virginia Constitution; Pendleton, the President of the memorable Virginia Convention in 1787, and President of the Virginia Court of Appeals; Wythe was the Blackstone of the Virginia bench, for a quarter of a century Chancellor of the State, the professor of law in the University of William and Mary, and the preceptor of Jefferson, Madison, and Chief Justice Marshall. He was author of the celebrated remonstrance to the English House of Commons on the subject of the stamp act. As to Jefferson, his *name* is his biography.

Every slaveholding member of Congress from the States of Maryland, Virginia, North and South Carolina, and Georgia, voted for the celebrated ordinance of 1787, which *abolished* the slavery then existing in the Northwest Territory. Patrick Henry, in his well known letter to Robert Pleasants, of Virginia, January 18, 1773, says: "I believe a time will come when an opportunity will be offered to *abolish* this lamentable evil." William Pinkney, of Maryland, advocated the abolition of slavery by law, in the legislature of that State, in 1789. Luther Martin urged the same measure both in the Federal Convention, and in his report to the Legislature of Maryland. In 1796, St. George Tucker, professor of law in the University of William and Mary, and Judge of the General Court, published an elaborate dissertation on slavery, addressed to the General Assembly of the State, and urging upon them the abolition of slavery by *law*.

John Jay, while New-York was yet a slave State, and himself in law a slaveholder, said in a letter from Spain, in 1786, "An excellent law might be made out of the Pennsylvania one, for the gradual abolition of slavery. Were I in your legislature, I would present a bill for the purpose, drawn up with great care, and I would never cease moving it till it became a law, or I ceased to be a member."

Daniel D. Tompkins, in a message to the Legislature of New-York, January 8, 1812, said: "To devise the means for the gradual and ultimate

extermination from amongst us of slavery, is work worthy the representatives of a polished and enlightened nation."

The Virginia Legislature asserted this power in 1832. At the close of a month's debate, the following proceedings were had. I extract from an editorial article of the Richmond Whig, of January 26, 1832.

"The report of the Select Committee, adverse to legislation on the subject of Abolition, was in these words: *Resolved*, as the opinion of this Committee, that it is INEXPEDIENT FOR THE PRESENT, to make any legislative enactments for the abolition of Slavery." This Report Mr. Preston moved to reverse, and thus to declare that it *was* expedient, *now* to make Legislative enactments for the abolition of slavery. This was meeting the question in its strongest form. It demanded action, and immediate action. On this proposition the vote was 58 to 73. Many of the most decided friends of abolition voted against the amendment; because they thought public opinion not sufficiently prepared for it, and that it might prejudice the cause to move too rapidly. The vote on Mr. Witcher's motion to postpone the whole subject indefinitely, indicates the true state of opinion in the House.—That was the test question, and was so intended and proclaimed by its mover. That motion was *negatived*, 71 to 60; showing a majority of 11, who by that vote, declared their belief that "at the proper time, and in the proper mode, Virginia ought to commence a system of gradual abolition."

8. *The Congress of the United States have asserted this power.* The ordinance of '87, declaring that there should be "neither slavery nor involuntary servitude," in the North Western territory, abolished the slavery then existing there. The Supreme Court of Mississippi, in its decision in the case of Harvey vs. Decker, Walker's Mi. Reps. 36, declared that the ordinance emancipated the slaves then held there. In this decision the question is argued ably and at great length. The Supreme Court of Louisiana made the same decision in the case of Forsyth vs. Nash, 4 Martin's La. Reps 385. The same doctrine was laid down by Judge Porter, (late United States Senator from Louisiana,) in his decision at the March term of the La. Supreme Court, 1830, in the case of Merry vs. Chexnaider, 20 Martin's Reps. 699.

That the ordinance abolished the slavery then existing, is also shown by the fact, that persons holding slaves in the territory petitioned for the repeal of the article abolishing slavery, assigning that as a reason. "The petition of the citizens of Randolph and St. Clair counties in the Illinois country, stating that they were in possession of slaves, and praying the repeal of that act (the 6th article of the ordinance of '87) and the passage of a law legalizing slavery there." [Am. State papers, Public Lands, v. 1. p. 69,] Congress passed this ordinance before the United States Constitution was adopted, when it derived all its authority from the articles of Confederation, which conferred powers of legislation far more restricted than those conferred on Congress over the District and Territories by the United States Constitution. Now, we ask, how does the Constitution *abridge* the powers which Congress possessed under the articles of confederation?

The abolition of the slave trade by Congress, in 1808, is another illustration of the competency of legislative power to abolish slavery. The African slave trade has become such a mere *technic*, in common parlance, that the fact of its being *proper slavery* is overlooked. The buying and selling, the transportation, and the horrors of the middle passage, were mere *incidents* of the slavery in which the victims were held. Let things be called by their own names. When Congress abolished the African slave trade, it abolished SLAVERY—supreme slavery—power frantic with license, trampling a whole hemisphere scathed with its fires, and running down with blood. True, Congress did not, in the abolition of the slave trade, abolish *all* the slavery within its jurisdiction, but it did abolish all the slavery in *one part* of its jurisdiction. What has rifled it of power to abolish slavery in *another* part of its jurisdiction, especially in that part where it has "exclusive legislation in all cases whatsoever?"

9. *The Constitution of the United States recognizes this power by the most conclusive implication.* In Art. 1, sec. 3, clause 1, it prohibits the abolition of the slave trade previous to 1808: thus implying the power of Congress to do it at once, but for the restriction; and its power to do it *unconditionally*, when that restriction ceased. Again: In Art. 4, sec. 2, "No person held to service or labor in one state under the laws thereof, escaping into another, shall in consequence of any law or regulation therein, be discharged from said service or labor." This clause was inserted, as all admit, to prevent the

runaway slave from being emancipated by the *laws* of the free states. If these laws had *no power* to emancipate, why this constitutional guard to prevent it?

The insertion of the clause, was the testimony of the eminent jurists that framed the Constitution, to the existence of the *power*, and their public proclamation, that the abolition of slavery was within the appropriate sphere of legislation. The right of the owner to that which is rightfully property, is founded on a principle of *universal law*, and is recognised and protected by all civilized nations; property in slaves is, by general consent, an *exception*; hence slaveholders insisted upon the insertion of this clause in the United States Constitution that they might secure by an *express provision*, that from which protection is withheld, by the acknowledged principles of universal law.^A By demanding this provision, slaveholders consented that their slaves should not be recognised as property by the United States Constitution, and hence they found their claim, on the fact of their being "*persons*, and *held to service*."

^A: The fact, that under the articles of Confederation, slaveholders, whose slaves had escaped into free states, had no legal power to force them back,—that *now* they have no power to recover, by process of law, their slaves who escape to Canada, the South American States, or to Europe—the case already cited in which the Supreme Court of Louisiana decided, that residence "*for one moment*," under the laws of France emancipated an American slave—the case of *Fulton, vs. Lewis*, 3 Har. and John's Reps., 56, where the slave of a St. Domingo slaveholder, who brought him to Maryland in '93, was pronounced free by the Maryland Court of Appeals—these, with other facts and cases "too numerous to mention," are illustrations of the acknowledged truth here asserted, that by the consent of the civilized world, and on the principles of universal law, slaves are not "*property*," but *self-proprietors*, and that whenever held as property under law, it is only by *positive legislative acts*, forcibly setting aside the law of nature, the common law, and the principles of universal justice and right between man and man,—principles paramount to all law, and from which alone law derives its intrinsic authoritative sanction.

But waiving all concessions, whether of constitutions, laws, judicial decisions, or common consent, I take the position that the power of Congress to abolish slavery in the District, follows from the fact, that as the sole legislature there, it has unquestionable power *to adopt the Common Law, as the legal system within its exclusive jurisdiction*. This has been done, with certain restrictions, in most of the States, either by legislative acts or by constitutional implication. THE COMMON LAW KNOWS NO SLAVES. Its principles annihilate slavery wherever they touch it. It is a universal, unconditional, abolition act. Wherever slavery is a legal system, it is so only by *statute* law, and in violation of common law. The declaration of Lord Chief Justice Holt, that "by the common law, no man can have property in another," is an acknowledged axiom, and based upon the well known common law definition of property. "The subjects of dominion or property are *things*, as contra-distinguished from *persons*." Let Congress adopt the common law in the District of Columbia, and slavery there is at once abolished. Congress may well be at home in common law legislation, for the common law is the grand element of the United States Constitution. All its *fundamental* provisions are instinct with its spirit; and its existence, principles and paramount authority, are presupposed and assumed throughout the whole. The preamble of the Constitution plants the standard of the Common Law immovably in its foreground. "We, the people of the United States, in order to ESTABLISH JUSTICE, &c., do ordain and establish this Constitution;" thus proclaiming *devotion to justice*, as the controlling motive in the organization of the Government, and its secure establishment the chief object of its aims. By this most solemn recognition, the common law, that grand legal embodiment of "*justice*" and fundamental right was made the groundwork of the Constitution, and intrenched behind its strongest munitions. The second clause of Sec. 9, Art. 1; Sec. 4, Art. 2, and the last clause of Sec. 2, Art. 3, with Articles 7, 8, 9, and 13 of the Amendments, are also express recognitions of the common law as the presiding Genius of the Constitution.

By adopting the common law within its exclusive jurisdiction Congress would carry out the principles of our glorious Declaration, and follow the highest precedents in our national history and jurisprudence. It is a political maxim as old as civil legislation, that laws should be strictly homogeneous with the principles of the government whose will they express, embodying

and carrying them out—being indeed the *principles themselves*, in preceptive form—representatives alike of the nature and the power of the Government—standing illustrations of its genius and spirit, while they proclaim and enforce its authority. Who needs be told that slavery is in antagonism to the principles of the Declaration, and the spirit of the Constitution, and that these and the principles of the common law gravitate toward each other with irrepressible affinities, and mingle into one? The common law came hither with our pilgrim fathers; it was their birthright, their panoply, their glory, and their song of rejoicing in the house of their pilgrimage. It covered them in the day of their calamity, and their trust was under the shadow of its wings. From the first settlement of the country, the genius of our institutions and our national spirit have claimed it as a common possession, and exulted in it with a common pride. A century ago, Governor Pownall, one of the most eminent constitutional jurists of colonial times, said of the common law, "In all the colonies the common law is received as the foundation and main body of their law." In the Declaration of Rights, made by the Continental Congress at its first session in '74, there was the following resolution: "Resolved, That the respective colonies are entitled to the common law of England, and especially to the great and inestimable privilege of being tried by their peers of the vicinage according to the course of that law." Soon after the organization of the general government, Chief Justice Ellsworth, in one of his decisions on the bench of the United States Supreme Court, said: "The common law of this country remains the same as it was before the revolution." Chief Justice Marshall, in his decision in the case of *Livingston vs. Jefferson*, said: "When our ancestors migrated to America, they brought with them the common law of their native country, so far as it was applicable to their new situation and I do not conceive that the revolution in any degree changed the relations of man to man, or the law which regulates them. In breaking our political connection with the parent state, we did not break our connection with each other." [See *Hall's Law Journal*, new series.] Mr. Duponceau, in his "Dissertation on the Jurisdiction of Courts in the United States," says, "I consider the common law of England the *jus commune* of the United States. I think I can lay it down as a correct principle, that the common law of England, as it was at the time of the declaration of Independence, still continues to be the national law of this country, so far as it is applicable to our present state, and subject to the modifications it has received here in the

course of nearly half a century." Chief Justice Taylor of North Carolina, in his decision in the case of the State vs. Reed, in 1823, Hawkes' N.C. Reps. 454, says, "a law of *paramount obligation to the statute* was violated by the offence—COMMON LAW, founded upon the law of nature, and confirmed by revelation." The legislation of the United States abounds in recognitions of the principles of the common law, asserting their paramount binding power. Sparing details, of which our national state papers are full, we illustrate by a single instance. It was made a condition of the admission of Louisiana into the Union, that the right of trial by jury should be secured to all her citizens,—the United States government thus employing its power to enlarge the jurisdiction of the common law in this its great representative.

Having shown that the abolition of slavery is within the competency of the law-making power, when unrestricted by constitutional provisions, and that the legislation of Congress over the District *is* thus unrestricted, its power to abolish slavery there is established.

Besides this general ground, the power of Congress to abolish slavery in the District may be based upon another equally tenable. We argue it from the fact, that slavery exists there *now* by an act of Congress. In the act of 16th July, 1790, Congress accepted portions of territory offered by the states of Maryland and Virginia, and enacted that the laws, as they then were, should continue in force, "until Congress shall otherwise by law provide;" thus making the slave codes of Maryland and Virginia its own. Under these laws, adopted by Congress, and in effect re-enacted and made laws of the District, the slaves there are now held.

Is Congress so impotent in its own "exclusive jurisdiction" that it *cannot* "otherwise by law provide?" If it can say, what *shall* be considered property, it can say what shall *not* be considered property. Suppose a legislature enacts, that marriage contracts shall be mere bills of sale, making a husband the proprietor of his wife, as his *bona fide* property; and suppose husbands should herd their wives in droves for the market as beasts of burden, or for the brothel as victims of lust, and then prate about their inviolable legal property, and deny the power of the legislature, which stamped them property, to undo its own wrong, and secure to wives by law the rights of human beings. Would such cant about "legal rights" be heeded where

reason and justice held sway, and where law, based upon fundamental morality, received homage? If a frantic legislature pronounces woman a chattel, has it no power, with returning reason, to take back the blasphemy? Is the impious edict irrepealable? Be it, that with legal forms it has stamped wives "wares." Can no legislation blot out the brand? Must the handwriting of Deity on human nature be expunged for ever? Has law no power to stay the erasing pen, and tear off the scrawled label that covers up the IMAGE OF GOD? We now proceed to show that

THE POWER OF CONGRESS TO ABOLISH SLAVERY IN THE DISTRICT HAS BEEN, TILL RECENTLY, UNIVERSALLY CONCEDED.

1. It has been assumed by Congress itself. The following record stands on the journals of the House of Representatives for 1804, p. 225: "On motion made and seconded that the House do come to the following resolution: 'Resolved, That from and after the 4th day of July, 1805, all blacks and people of color that shall be born within the District of Columbia, or whose mothers shall be the property of any person residing within said District, shall be free, the males at the age of ----, and the females at the age of ----. The main question being taken that the House do agree to said motion as originally proposed, it was negatived by a majority of 46.'" Though the motion was lost, it was on the ground of its alleged *inexpediency* alone, and not because Congress lacked the constitutional power. In the debate which preceded the vote, the *power* of Congress was conceded. In March, 1816, the House of Representatives passed the following resolution:—"Resolved, That a committee be appointed to inquire into the existence of an inhuman and illegal traffic in slaves, carried on in and through the District of Columbia, and to report whether any and what measures are necessary for *putting a stop to the same*."

On the 9th of January, 1829, the House of Representatives passed the following resolution by a vote of 114 to 66: "Resolved, That the Committee on the District of Columbia be instructed to inquire into the *expediency* of providing by *law* for the gradual abolition of slavery within the District, in such manner that the interests of no individual shall be injured thereby." Among those who voted in the affirmative were Messrs. Barney of Md.,

Armstrong of Va., A.H. Shepperd of N.C., Blair of Tenn., Chilton and Lyon of Ky., Johns of Delaware, and others from slave states.

2. It has been conceded directly, or impliedly, by all the committees on the District of Columbia that have reported on the subject. In a report of the committee on the District, Jan. 11, 1837, by their chairman, Mr. Powell of Virginia, there is the following declaration "The Congress of the United States, has by the constitution exclusive jurisdiction over the District, and has power upon this subject, (*slavery*) as upon all other subjects of legislation, to exercise *unlimited discretion*." Reps. of Comms. 2d Session, 19th Cong. v. I. No. 43. In February, 1829, the committee on the District, Mr. Alexander of Virginia, Chairman, in their report pursuant to Mr. Miner's resolutions, recognize a contingent abolition proceeding upon the consent of the people. In December, 1831, the committee on the District, Mr. Doddridge of Virginia, Chairman, reported, "That until the adjoining states act on the subject (*slavery*) it would be (not *unconstitutional* but) unwise and impolitic, if not unjust, for Congress to interfere." In April, 1836, a special committee on abolition memorials reported the following resolutions by their Chairman, Mr. Pinckney of South Carolina: "Resolved, that Congress possesses no constitutional authority to interfere in any way with the institution of slavery in any of the states of this confederacy."

"Resolved, That Congress *ought not to interfere* in any way with slavery in the District of Columbia." "Ought not to interfere," carefully avoiding the phraseology of the first resolution, and thus in effect conceding the constitutional power. In a widely circulated "Address to the electors of the Charleston District," Mr. Pinckney is thus denounced by his own constituents: "He has proposed a resolution which is received by the plain common sense of the whole country as a concession that Congress has authority to abolish slavery in the District of Columbia."

3. It has been conceded by the *citizens of the District*. A petition for the gradual abolition of slavery in the District, signed by nearly eleven hundred of its citizens, was presented to Congress, March 24, 1837. Among the signers to this petition, were Chief Justice Cranch, Judge Van Ness, Judge Morsel, Prof. J.M. Staughton, Rev. Dr. Balch, Rev. Dr. Keith, John M. Munroe, and a large number of the most influential inhabitants of the

District. Mr. Dickson, of New York, asserted on the floor of Congress in 1835, that the signers of this petition owned more than half of the property in the District. The accuracy of this statement has never been questioned.

This power has been conceded by *grand juries of the District*. The grand jury of the county of Alexandria, at the March term 1802, presented the domestic slave trade as a grievance, and said, "We consider these grievances demanding *legislative* redress." Jan. 19, 1829, Mr. Alexander, of Virginia, presented a representation of the grand jury in the city of Washington, remonstrating against "any measure for the abolition of slavery within said District, unless accompanied by measures for the removal of the emancipated from the same;" thus, not only conceding the power to emancipate slaves, but affirming an additional power, that of *excluding them when free*. See Journal H.R. 1828-9, p. 174.

4. This power has been conceded by *State Legislatures*. In 1828 the Legislature of Pennsylvania instructed their Senators in Congress "to procure, if practicable, the passage of a law to abolish slavery in the District of Columbia." Jan. 28, 1829, the House of Assembly of New York passed a resolution, that their "Senators in Congress be instructed to make every possible exertion to effect the passage of a law for the abolition of Slavery in the District of Columbia." In February, 1837, the Senate of Massachusetts "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery and the slave trade therein, and that the early exercise of such right is demanded by the enlightened sentiment of the civilized world, by the principles of the revolution, and by humanity." The House of Representatives passed the following resolution at the same session: "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery in said District, and that its exercise should only be restrained by a regard to the public good."

November 1, 1837, the Legislature of Vermont, "Resolved, that Congress have the full power by the constitution to abolish slavery and the slave trade in the District of Columbia, and in the territories." The Legislature of Vermont passed in substance the same resolution, at its session in 1836.

May 30, 1836, a committee of the Pennsylvania Legislature reported the following resolution: "Resolved, That Congress does possess the constitutional power, and it is expedient to abolish slavery and the slave trade within the District of Columbia."

In January, 1836, the Legislature of South Carolina "Resolved, That we should consider the abolition of slavery in the District of Columbia as a violation of the rights of the citizens of that District derived from the *implied* conditions on which that territory was ceded to the General Government." Instead of denying the constitutional power, they virtually admit its existence, by striving to smother it under an *implication*. In February, 1836, the Legislature of North Carolina "Resolved, That, although by the Constitution all legislative power over the District of Columbia is vested in the Congress of the United States, yet we would deprecate any legislative action on the part of that body towards liberating the slaves of that District, as a breach of faith towards those States by whom the territory was originally ceded, and will regard such interference as the first step towards a general emancipation of the slaves of the South." Here is a full concession of the *power*, February 2, 1836, the Virginia Legislature passed unanimously the following resolution: "Resolved, by the General Assembly of Virginia, that the following article be proposed to the several states of this Union, and to Congress, as an amendment of the Constitution of the United States: 'The powers of Congress shall not be so construed as to authorize the passage of any law for the emancipation of slaves in the District of Columbia, without the consent of the individual proprietors thereof, unless by the sanction of the Legislatures of Virginia and Maryland, and under such conditions as they shall by law prescribe.'"

Fifty years after the formation of the United States constitution the states are solemnly called upon by the Virginia Legislature, to amend that instrument by a clause asserting that, in the grant to Congress of "exclusive legislation in all cases whatsoever" over the District, the "case" of slavery is not included!! What could have dictated such a resolution but the conviction that the power to abolish slavery is an irresistible interference from the constitution *as it is*. The fact that the same legislature passed afterward a resolution, though by no means unanimously, that Congress does not possess the power, abates not a tittle of the testimony in the first

resolution. March 23d, 1824, "Mr. Brown presented the resolutions of the General Assembly of Ohio, recommending to Congress the consideration of a system for the gradual emancipation of persons of color held in servitude in the United States." On the same day, "Mr. Noble, of Indiana, communicated a resolution from the legislature of that state, respecting the gradual emancipation of slaves within the United States." Journal of the United States Senate, for 1824-5, p. 231.

The Ohio and Indiana resolutions, by taking for granted the *general* power of Congress over the subject of slavery, do virtually assert its *special* power within its *exclusive* jurisdiction.

5. The power of Congress to abolish slavery in the District, has been conceded by bodies of citizens in the slave states. The petition of eleven hundred citizens of the District of Columbia, in 1827, has been already mentioned. "March 5, 1830, Mr. Washington presented a memorial of inhabitants of the county of Frederick, in the state of Maryland, praying that provision may be made for the gradual abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 358.

March 30, 1828. Mr. A.H. Shepperd, of North Carolina, presented a memorial of citizens of that state, "praying Congress to take measures for the entire abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 379.

January 14, 1822. Mr. Rhea, of Tennessee, presented a memorial of citizens of that state, praying "that provision may be made, whereby all slaves which may hereafter be born in the District of Columbia, shall be free at a certain period of their lives." Journal H.R. 1821-22, p. 142.

December 13, 1824. Mr. Saunders of North Carolina, presented a memorial of citizens of that state, praying "that measures may be taken for the gradual abolition of slavery in the United States." Journal H.R. 1824-25, p. 27.

December 16, 1828. "Mr. Barnard presented the memorial of the American Convention for promoting the abolition of slavery, held in Baltimore, praying that slavery may be abolished in the District of Columbia." Journal U.S. Senate, 1828-29, p. 24.

6. Distinguished statesmen and jurists in the slaveholding states, have conceded the power of Congress to abolish slavery in the District. The testimony of Messrs. Doddridge, Powell, and Alexander, of Virginia, Chief Justice Cranch, and Judges Morsell and Van Ness, of the District, has already been given. In the debate in Congress on the memorial of the Society of Friends, in 1790, Mr. Madison, in speaking of the territories of the United States, explicitly declared, from his own knowledge of the views of the members of the convention that framed the constitution, as well as from the obvious import of its terms, that in the territories "Congress have certainly the power to regulate the subject of slavery." Congress can have no more power over the territories than that of "exclusive legislation in all cases whatsoever," consequently, according to Mr. Madison, "it has certainly the power to regulate the subject of slavery in the" *District*. In March, 1816, John Randolph introduced a resolution for putting a stop to the domestic slave trade within the District. December 12, 1827, Mr. Barney, of Maryland, presented a memorial for abolition in the District, and moved that it be printed. Mr. McDuffie, of South Carolina, objected to the printing, but "expressly admitted the right of Congress to grant to the people of the District any measures which they might deem necessary to free themselves from the deplorable evil."—(See letter of Mr. Claiborne, of Mississippi, to his constituents, published in the Washington Globe, May 9, 1836.) The sentiments of Henry Clay on the subject are well known. In a speech before the U.S. Senate, in 1836, he declared the power of Congress to abolish slavery in the District "unquestionable." Messrs. Blair, of Tennessee, Chilton, Lyon, and Richard M. Johnson, of Kentucky, A.H. Shepperd, of North Carolina, Messrs. Armstrong and Smyth, of Virginia, Messrs. Dorsey, Archer, and Barney, of Maryland, and Johns, of Delaware, with numerous others from slave states, have asserted the power of Congress to abolish slavery in the District. In the speech of Mr. Smyth, of Virginia, on the Missouri question, January 28, 1820, he says on this point: "If the future freedom of the blacks is your real object, and not a mere pretence, why do you not begin *here*? Within the ten miles square, you have *undoubted power* to exercise exclusive legislation. *Produce a bill to emancipate the slaves in the District of Columbia*, or, if you prefer it, to emancipate those born hereafter."

To this may be added the testimony of the present Vice President of the United States, Hon. Richard M. Johnson, of Kentucky. In a speech before the United States' Senate, February 1, 1820, (National Intelligencer, April 29, 1820,) he says: "Congress has the express power stipulated by the Constitution, to exercise exclusive legislation over this District of ten miles square. Here slavery is sanctioned by law. In the District of Columbia, containing a population of 30,000 souls, and probably as many slaves as the whole territory of Missouri, THE POWER OF PROVIDING FOR THEIR EMANCIPATION RESTS WITH CONGRESS ALONE. Why, then, let me ask, Mr. President, why all this sensibility—this commiseration—this heart-rending sympathy for the slaves of Missouri, and this cold insensibility, this eternal apathy, towards the slaves in the District of Columbia?"

It is quite unnecessary to add, that the most distinguished northern statesmen of both political parties, have always affirmed the power of Congress to abolish slavery in the District. President Van Buren in his letter of March 6, 1836, to a committee of gentlemen in North Carolina, says, "I would not, from the light now before me, feel myself safe in pronouncing that Congress does not possess the power of abolishing slavery in the District of Columbia." This declaration of the President is consistent with his avowed sentiments touching the Missouri question, on which he coincided with such men as Daniel D. Tompkins, De Witt Clinton, and others, whose names are a host. ^A It is consistent also, with his recommendation in his late message on the 5th of last month, in which, speaking of the District, he strongly urges upon Congress "a thorough and careful revision of its local government," speaks of the "entire dependence" of the people of the District "upon Congress," recommends that a "uniform system of local government" be adopted, and adds, that "although it was selected as the seat of the General Government, the site of its public edifices, the depository of its archives, and the residence of officers intrusted with large amounts of public property, and the management of public business, yet it never has been subjected to, or received, that *special* and *comprehensive* legislation which these circumstances peculiarly demanded."

^A: Mr. Van Buren, when a member of the Senate of New-York, voted for the following preamble and resolutions, which passed unanimously:—Jan.

28th, 1820. "Whereas, the inhibiting the further extension of slavery in the United States, is a subject of deep concern to the people of this state: and whereas, we consider slavery as an evil much to be deplored, and that *every constitutional barrier should be interposed to prevent its further extension*: and that the constitution of the United States *clearly gives congress the right* to require new states, not comprised within the original boundary of the United States, to *make the prohibition of slavery* a condition of their admission into the Union: Therefore,

"Resolved, That our Senators be instructed, and our members of Congress be requested, to oppose the admission as a state into the Union, of any territory not comprised as aforesaid, without making *the prohibition of slavery* therein an indispensable condition of admission."

The tenor of Senator Tallmadge's speech on the right of petition, in the last Congress, and of Mr. Webster's on the reception of abolition memorials, may be taken as universal exponents of the sentiments of northern statesmen as to the power of Congress to abolish slavery in the District of Columbia.

After presenting this array of evidence, *direct testimony* to show that the power of Congress to abolish slavery in the District, has always till recently been *universally conceded*, is perhaps quite superfluous. We subjoin; however, the following:

The Vice-President of the United States in his speech on the Missouri question, quoted above, after contending that the restriction of slavery in Missouri would be unconstitutional, adds, "But I am at a loss to conceive why gentlemen should arouse all their sympathies upon this occasion, when they permit them to lie dormant upon the same subject, in relation to other sections of country, in which THEIR POWER COULD NOT BE QUESTIONED." Then follows immediately the assertion of congressional power to abolish slavery in the District, as already quoted. In the speech of Mr. Smyth, of Va., also quoted above, he declares the power of Congress to abolish slavery in the District to be "UNDOUBTED."

Mr. Sutherland, of Pennsylvania, in a speech in the House of Representatives, on the motion to print Mr. Pinckney's Report, is thus

reported in the Washington Globe, of May 9th, '36. "He replied to the remark that the report conceded that Congress had a right to legislate upon the subject in the District of Columbia, and said that SUCH A RIGHT HAD NEVER BEEN, TILL RECENTLY, DENIED."

The American Quarterly Review, published at Philadelphia, with a large circulation and list of contributors in the slave states, holds the following language in the September No. 1833, p. 55: "Under this 'exclusive jurisdiction,' granted by the constitution, Congress has power to abolish slavery and the slave trade in the District of Columbia. It would hardly be necessary to state this as a distinct proposition, had it not been occasionally questioned. The truth of the assertion, however, is too obvious to admit of argument—and we believe HAS NEVER BEEN DISPUTED BY PERSONS WHO ARE FAMILIAR WITH THE CONSTITUTION."

Finally—an explicit, and unexpected admission, that an "*over-whelming majority*" of the *present* Congress concede the power to abolish slavery in the District, has just been made by a member of Congress from South Carolina, in a letter published in the Charleston Mercury of Dec. 27, well known as the mouth-piece of Mr. Calhoun. The following is an extract:

"The time has arrived when we must have new guarantees under the constitution, or the union must be dissolved. *Our views of the constitution are not those of the majority. An overwhelming majority think that by the constitution, Congress may abolish slavery in the District of Columbia—may abolish the slave trade between the States; that is, it may prohibit their being carried out of the State in which they are—and prohibit it in all the territories, Florida among them. They think, NOT WITHOUT STRONG REASONS, that the power of Congress extends to all of these subjects.*"

In another letter, the same correspondent says:

"*The fact is, it is vain to attempt, AS THE CONSTITUTION IS NOW, to keep the question of slavery out of the halls of Congress,—until, by some decisive action, WE COMPEL SILENCE, or alter the constitution, agitation and insult is our eternal fate in the confederacy.*"

OBJECTIONS TO THE FOREGOING CONCLUSIONS CONSIDERED.

We now proceed to notice briefly the main arguments that have been employed in Congress and elsewhere against the power of Congress to abolish slavery in the District. One of the most plausible, is that "the conditions on which Maryland and Virginia ceded the District to the United States, would be violated, if Congress should abolish slavery there." The reply to this is, that Congress had no power to *accept* a cession coupled with conditions restricting the power given it by the constitution. Nothing short of a convention of the states, and an alteration of the constitution, abridging its grant of power, could have empowered Congress to accept a territory on any other conditions than that of exercising "exclusive legislation, in all cases whatsoever," over it.

To show the futility of the objection, here follow the acts of cession. The cession of Maryland was made in November, 1788, and is as follows: "An act to cede to Congress a district of ten miles square in this state for the seat of the government of the United States."

"Be it enacted, by the General Assembly of Maryland, that the representatives of this state in the House of Representatives of the Congress of the United States, appointed to assemble at New-York, on the first Wednesday of March next, be, and they are hereby authorized and required on the behalf of this state, to cede to the Congress of the United States, any district in this state, not exceeding ten miles square, which the Congress may fix upon, and accept for the seat of government of the United States." Laws of Maryland, vol. 2, chap. 46.

The cession from Virginia was made by act of the Legislature of that State on the 3d of December, 1788, in the following words:

"Be it enacted by the General Assembly, That a tract of country, not exceeding ten miles square, or any lesser quantity, to be located within the limits of the State, and in any part thereof, as Congress may, by law, direct, shall be, and the same is hereby for ever ceded and relinquished to the Congress and Government of the United States, in full and absolute right,

and exclusive jurisdiction, as well of soil, as of persons residing or to reside thereon, pursuant to the tenor and effect of the eighth section of the first article of the government of the constitution of the United States."

But were there no provisos to these acts? The Maryland act had *none*. That part of the District therefore, which includes the cities of Washington and Georgetown, can lay claim to nothing with which to ward off the power of Congress. The Virginia act had this proviso: "Sect. 2. Provided, that nothing herein contained, shall be construed to vest in the United States any right of property in the *soil*, or to affect the rights of individuals *therein*, otherwise than the same shall or may be transferred by such individuals to the United States."

This specification touching the soil was merely definitive and explanatory of that clause in the act of cession, "*full and absolute right*." Instead of restraining the power of Congress on *slavery* and other subjects, it even gives it wider scope; for exceptions to *parts* of a rule, give double confirmation to those parts not embraced in the exceptions. If it was the *design* of the proviso to restrict congressional action on the subject of *slavery*, why is the *soil alone* specified? As legal instruments are not paragons of economy in words, might not "John Doe," out of his abundance, and without spoiling his style, have afforded an additional word—at least a hint—that slavery was *meant*, though nothing was *said* about it? The subject must have been too "delicate," even for the most distant allusion! The mystery of silence is solved!!

But again, Maryland and Virginia, in their acts of cession, declare them to be "in pursuance of" that clause of the constitution which gives to Congress "exclusive legislation in all cases whatsoever over" the ten miles square—thus, instead of *restricting* that clause, both States gave an express and decided confirmation of it. Now, their acts of cession either accorded with that clause of the constitution, or they conflicted with it. If they conflicted with it, *accepting* the cessions was a violation of the constitution. If they accorded, the objector has already had his answer. The fact that Congress accepted the cessions, proves that in its view their *terms* did not conflict with the constitutional grant of "power to exercise exclusive legislation in all cases whatsoever over such District." The inquiry whether these acts of

cession were consistent or inconsistent with the United States constitution, is totally irrelevant to the question at issue. What saith the CONSTITUTION? That is the question. Not, what saith Virginia, or Maryland, or—equally to the point—John Bull! If Maryland and Virginia had been the authorized interpreters of the constitution for the Union, these acts of cession could hardly have been magnified more than they were by Messrs. Garland and Wise in the last Congress. A true understanding of the constitution can be had, forsooth, only by holding it up in the light of Maryland and Virginia legislation!

We are told, again, that those States would not have ceded the District if they had supposed the constitution gave Congress power to abolish slavery in it.

This comes with an ill grace from Maryland and Virginia. They *knew* the constitution. They were parties to it. They had sifted it, clause by clause, in their State conventions. They had weighed its words in the balance—they had tested them as by fire; and finally, after long pondering, they *adopted* the constitution. And *afterward*, self-moved, they ceded the ten miles square, and declared the cession made "in pursuance of" that oft-cited clause, "Congress shall have power to exercise exclusive legislation in all cases whatsoever over such District," &c. And now verily "they would not have ceded if they had *supposed*!" &c. Cede it they *did*, and "in full and absolute right both of soil and persons." Congress accepted the cession—state power over the District ceased, and congressional power over it commenced—and now, the sole question to be settled is, *the amount of power over the District, lodged in Congress by the constitution*. The constitution—the CONSTITUTION—that is the point. Maryland and Virginia "suppositions" must be potent suppositions, to abrogate a clause in the United States Constitution! That clause either gives Congress power to abolish slavery in the District, or it does *not*—and that point is to be settled, not by state "suppositions," nor state usages, nor state legislation, but *by the terms of the clause themselves*.

Southern members of Congress, in the recent discussions, have conceded the power of a contingent abolition in the District, by suspending it upon the consent of the people. Such a doctrine from *declaimers* like Messrs.

Alford, of Georgia, and Walker, of Mississippi, would excite no surprise; but that it should be honored with the endorsement of such men as Mr. Rives and Mr. Calhoun, is quite unaccountable. Are attributes of *sovereignty* mere creatures of *contingency*? Is delegated *authority* mere conditional *permission*? Is a *constitutional power* to be exercised by those who hold it, only by popular *sufferance*? Must it lie helpless at the pool of public sentiment, waiting the gracious troubling of its waters? Is it a lifeless corpse, save only when popular "consent" deigns to put breath into its nostrils? Besides, if the consent of the people of the District be necessary, the consent of the *whole* people must be had—not that of a majority, however large. Majorities, to be authoritative, must be *legal*—and a legal majority without legislative power, right of representation, or even the electoral franchise, would be an anomaly. In the District of Columbia, such a thing as a majority in a legal sense is unknown to law. To talk of the power of a majority, or the will of a majority there, is mere mouthing. A majority? Then it has an authoritative will—and an organ to make it known—and an executive to carry it into effect—Where are they? We repeat it—if the consent of the people of the District be necessary, the consent of *every one* is necessary—and *universal* consent will come only with the Greek Kalends and a "perpetual motion." A single individual might thus perpetuate slavery in defiance of the expressed will of a whole people. The most common form of this fallacy is given by Mr. Wise, of Virginia, in his speech, February 16, 1835, in which he denied the power of Congress to abolish slavery in the District, unless the inhabitants owning slaves petitioned for it!! Southern members of Congress at the present session ring changes almost daily upon the same fallacy. What! pray Congress *to use* a power which it *has not*? "It is required of a man according to what he *hath*," saith the Scripture. I commend Mr. Wise to Paul for his ethics. Would that he had got his *logic* of him! If Congress does not possess the power, why taunt it with its weakness, by asking its exercise? Why mock it by demanding impossibilities? Petitioning, according to Mr. Wise, is, in matters of legislation, omnipotence itself; the very source of all constitutional power; for, *asking* Congress to do what it *cannot* do, gives it the power—to pray the exercise of a power that is *not*, *creates* it. A beautiful theory! Let us work it both ways. If to petition for the exercise of a power that is *not*, creates it—to petition against the exercise of a power that *is*, annihilates it. As southern gentlemen are partial to summary

processes, pray, sirs, try the virtue of your own recipe on "exclusive legislation in all cases whatsoever;" a better subject for experiment and test of the prescription could not be had. But if the petitions of the citizens of the District give Congress the *right* to abolish slavery, they impose the *duty*; if they confer constitutional authority, they create constitutional obligation. If Congress *may* abolish because of an expression of their will, it *must* abolish at the bidding of that will. If the people of the District are a *source of power* to Congress, their *expressed will* has the force of a constitutional provision, and has the same binding power upon the National Legislature. To make Congress dependent on the District for authority, is to make it a *subject* of its authority, restraining the exercise of its own discretion, and sinking it into a mere organ of the District's will. We proceed to another objection.

"The southern states would not have ratified the constitution, if they had supposed that it gave this power." It is a sufficient answer to this objection, that the northern states would not have ratified it, if they had supposed that it *withheld* the power. If "suppositions" are to take the place of the constitution—coming from both sides, they neutralize each other. To argue a constitutional question by *guessing* at the "suppositions" that might have been made by the parties to it, would find small favor in a court of law. But even a desperate shift is some easement when sorely pushed. If this question is to be settled by "suppositions," suppositions shall be forth coming, and that without stint.

First, then, I affirm that the North ratified the constitution, "supposing" that slavery had begun to wax old, and would speedily vanish away, and especially that the abolition of the slave trade, which by the constitution was to be surrendered to Congress after twenty years, would cast it headlong.

Would the North have adopted the constitution, giving three-fifths of the "slave property" a representation, if it has "supposed" that the slaves would have increased from half a million to two millions and a half by 1838—and that the census of 1840 would give to the slave states, 30 representatives of "slave property?"

If they had "supposed" that this representation would have controlled the legislation of the government, and carried against the North every question vital to its interests, would Alexander Hamilton, Benjamin Franklin, Roger Sherman, Elbridge Gerry, William Livingston, John Langdon, and Rufus King have been such madmen, as to sign the constitution, and the Northern States such suicides as to ratify it? Every self-preserving instinct would have shrieked at such an infatuate immolation. At the adoption of the United States constitution, slavery was regarded as a fast waning system. This conviction was universal. Washington, Jefferson, Patrick Henry, Grayson, St. George Tucker, Madison, Wythe, Pendleton, Lee, Blair, Mason, Page, Parker, Edmund Randolph, Iredell, Spaight, Ramsey, William Pinckney, Luther Martin, James McHenry, Samuel Chase, and nearly all the illustrious names south of the Potomac, proclaimed it before the sun, that the days of slavery were beginning to be numbered. A reason urged in the convention that formed the United States constitution, why the word slave should not be used in it, was, that *when slavery should cease* there might remain upon the National Charter no record that it had even been. (See speech of Mr. Burrill, of R.I., on the Missouri question.)

I now proceed to show by testimony, that at the date of the United States constitution, and for several years before and after that period, slavery was rapidly on the wane; that the American Revolution with the great events preceding accompanying, and following it, had wrought an immense and almost universal change in the public sentiment of the nation of the subject, powerfully impelling it toward the entire abolition of the system—and that it was the *general belief* that measures for its abolition throughout the Union, would be commenced by the individual States generally before the lapse of many years. A great mass of testimony establishing this position is at hand and might be presented, but narrow space, little time, the patience of readers, and the importance of speedy publication, counsel brevity. Let the following proofs suffice. First, a few dates as points of observation.

The first *general* Congress met in 1774. The revolutionary war commenced in '75. Independence was declared in '76. The articles of confederacy were adopted by the thirteen states in '78. Independence acknowledged in '83. The convention for forming the U.S. constitution was held in '87, the state

conventions for considering it in '87, and '88. The first Congress under the constitution in '89.

Dr. Rush, of Pennsylvania, one of the signers of the Declaration of Independence, in a letter to the celebrated Granville Sharpe, May 1, 1773, says: "A spirit of humanity and religion begins to awaken in several of the colonies in favor of the poor negroes. The clergy begin to bear a public testimony against this violation of the laws of nature and christianity. Great events have been brought about by small beginnings. *Anthony Benezet stood alone a few years ago in opposing negro slavery in Philadelphia*, and NOW THREE-FOURTHS OF THE PROVINCE AS WELL AS OF THE CITY CRY OUT AGAINST IT."—(Stuart's Life of Sharpe, p. 21.)

In the preamble to the act prohibiting the importation of slaves into Rhode Island, June 1774, is the following: "Whereas, the inhabitants of America are generally engaged in the preservation of their own rights and liberties, among which that of personal freedom must be considered the greatest, and as those who are desirous of enjoying all the advantages of liberty themselves, *should be willing to extend personal liberty to others*, therefore," &c.

October 20, 1774, the Continental Congress passed the following: "We, for ourselves and the inhabitants of the several colonies whom we represent, *firmly agree and associate under the sacred ties of virtue, honor, and love of our country*, as follows:

"2d Article. *We will neither import nor purchase any slaves imported* after the first day of December next, after which time we will *wholly discontinue* the slave trade, and we will neither be concerned in it ourselves, nor will we hire our vessels, nor sell our commodities or manufactures to those who are concerned in it."

The Continental Congress, in 1775, setting forth the causes and the necessity for taking up arms, say: "*If it were possible* for men who exercise their reason to believe that the Divine Author of our existence intended a part of the human race *to hold an absolute property in*, and *unbounded power over others*, marked out by infinite goodness and wisdom as objects of a legal domination, never rightfully resistible, however severe and

oppressive, the inhabitants of these colonies might at least require from the Parliament of Great Britain some evidence that this dreadful authority over them has been granted to that body."

In 1776, the celebrated Dr. Hopkins, then at the head of New England divines, published a pamphlet entitled, "An Address to the owners of negro slaves in the American colonies," from which the following is an extract: "The conviction of the unjustifiableness of this practice (slavery) has been *increasing, and greatly spreading of late, and many* who have had slaves, have found themselves so unable to justify their own conduct in holding them in bondage, as to be induced to *set them at liberty*. May this conviction soon reach every owner of slaves in *North America!* Slavery is, *in every instance*, wrong, unrighteous, and oppressive—a very great and crying sin—*there being nothing of the kind equal to it on the face of the earth.*"

The same year the American Congress issued a solemn MANIFESTO to the world. These were its first words: "We hold these truths to be self-evident, that *all* men are created equal, that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness." *Once*, these were words of power; *now*, "a rhetorical flourish."

The celebrated Patrick Henry of Virginia, in a letter, of Jan. 18, 1773, to Robert Pleasants, afterwards president of the Virginia Abolition Society, says: "Believe me, I shall honor the Quakers for their noble efforts to abolish slavery. It is a debt we owe to the purity of our religion to show that it is at variance with that law that warrants slavery. I exhort you to persevere in so worthy a resolution."

In 1779, the Continental Congress ordered a pamphlet to be published, entitled, "Observations on the American Revolution," from which the following is an extract: "The great principle (of government) is and ever will remain in force, *that men are by nature free*; as accountable to him that made them, they must be so; and so long as we have any idea of divine *justice*, we must associate that of *human freedom*. Whether men can part with their liberty, is among the questions which have exercised the ablest writers; but it is *conceded on all hands, that the right to be free CAN*

NEVER BE ALIENATED—still less is it practicable for one generation to mortgage the privileges of another."

Extract from the Pennsylvania act for the Abolition of Slavery, passed March 1, 1780: * * * "We conceive that it is our duty, and we rejoice that it is in our power, to extend a portion of that freedom to others which has been extended to us. Weaned by a long course of experience from those narrow prejudices and partialities we have imbibed, we find our hearts enlarged with kindness and benevolence towards men of all conditions and nations: * * * Therefore be it enacted, that no child born hereafter be a slave," &c.

Jefferson, in his Notes on Virginia, written just before the close of the Revolutionary War, says: "I think a change already perceptible since the origin of the present revolution. The spirit of the master is abating, that of the slave is rising from the dust, his condition mollifying, *the way I hope preparing under the auspices of heaven*, FOR A TOTAL EMANCIPATION, and that this is disposed, in the order of events, to be with the consent of the masters, rather than by their extirpation."

In a letter to Dr. Price, of London, who had just published a pamphlet in favor of the abolition of slavery, Mr. Jefferson, then Minister at Paris, (August 7, 1785,) says: "From the mouth to the head of the Chesapeake, *the bulk of the people will approve of your pamphlet in theory*, and it will find a respectable minority ready to *adopt it in practice*—a minority which, for weight and worth of character, *preponderates against the greater number*." Speaking of Virginia, he says: "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression,—a conflict in which THE SACRED SIDE IS GAINING DAILY RECRUITS. Be not, therefore discouraged—what you have written will do a *great deal of good*; and could you still trouble yourself with our welfare, no man is more able to give aid to the laboring side. The College of William and Mary, in Williamsburg, since the remodelling of its plan, is the place where are collected together all the young men of Virginia, under preparation for public life. They are there under the direction (most of them) of a Mr. Wythe, one of the most virtuous of characters, and *whose sentiments on the subject of slavery are unequivocal*. I am satisfied, if you

could resolve to address an exhortation to those young men with all the eloquence of which you are master that *its influence on the future decision of this important question would be great, perhaps decisive*. Thus, you see, that so far from thinking you have cause to repent of what you have done, *I wish you to do more, and wish it on an assurance of its effect*."—Jefferson's Posthumous Works, vol. 1, p. 268.

In 1786, John Jay, afterward Chief Justice of the United States, drafted and signed a petition to the Legislature of New York, on the subject of slavery, beginning with these words:

"Your memorialists being deeply affected by the situation of those, who, although FREE BY THE LAWS OF GOD, are held in slavery by the laws of the State," &c.

This memorial bore also the signature of the celebrated Alexander Hamilton; Robert R. Livingston, afterward Secretary of Foreign Affairs of the United States, and Chancellor of the State of New York; James Duane, Mayor of the City of New York, and many others of the most eminent individuals in the State.

In the preamble of an instrument, by which Mr. Jay emancipated a slave in 1784, is the following passage:

"Whereas, the children of men are by nature equally free, and cannot, without injustice, be either reduced to or HELD in slavery."

In his letter while Minister at Spain, in 1786, he says, speaking of the abolition of slavery: "Till America comes into this measure, her prayers to heaven will be IMPIOUS. This is a strong expression, but it is just. I believe God governs the world; and I believe it to be a maxim in his, as in our court, that those who ask for equity *ought to do it*."

In 1785, the New York Manumission Society was formed. John Jay was chosen its first President, and held the office five years. Alexander Hamilton was its second President, and after holding the office one year, resigned upon his removal to Philadelphia as Secretary of the United States' Treasury. In 1787, the Pennsylvania Abolition Society was formed.

Benjamin Franklin, warm from the discussions of the convention that formed the United States constitution, was chosen President, and Benjamin Rush, Secretary—both signers of the Declaration of Independence. In 1789, the Maryland Abolition Society was formed. Among its officers were Samuel Chace, Judge of the United States Supreme Court, and Luther Martin, a member of the convention that formed the United States constitution. In 1790, the Connecticut Abolition Society was formed. The first President was Rev. Dr. Stiles, President of Yale College, and the Secretary, Simeon Baldwin, (the late Judge Baldwin of New Haven.) In 1791, this Society sent a memorial to Congress, from which the following is an extract:

"From a sober conviction of the unrighteousness of slavery, your petitioners have long beheld, with grief, our fellow men doomed to perpetual bondage, in a country which boasts of her freedom. Your petitioners are fully of opinion, that calm reflection will at last convince the world, that the whole system of African slavery is unjust in its nature—impolitic in its principles—and, in its consequences, ruinous to the industry and enterprise of the citizens of these States. From a conviction of these truths, your petitioners were led, by motives, we conceive, of general philanthropy, to associate ourselves for the protection and assistance of this unfortunate part of our fellow men; and, though this Society has been *lately* established, it has now become *generally extensive* through this state, and, we fully believe, *embraces, on this subject, the sentiments of a large majority of its citizens.*"

The same year the Virginia Abolition Society was formed. This Society, and the Maryland Society, had auxiliaries in different parts of those States. Both societies sent up memorials to Congress. The memorial of the Virginia Society is headed—"The memorial of the *Virginia Society*, for promoting the Abolition of Slavery, &c." The following is an extract:

"Your memorialists, fully believing that 'righteousness exalteth a nation,' and that slavery is not only an odious degradation, but an *outrageous violation of one of the most essential rights of human nature, and utterly repugnant to the precepts of the gospel*, which breathes 'peace on earth, good will to men;' lament that a practice, so inconsistent with true policy and the inalienable rights of men, should subsist in so enlightened an age,

and among a people professing, that all mankind are, by nature, equally entitled to freedom."

About the same time a Society was formed in New-Jersey. It had an acting committee of five members in each county in the State. The following is an extract from the preamble to its constitution:

"It is our boast, that we live under a government founded on principles of justice and reason, wherein *life, liberty, and the pursuit of happiness*, are recognised as the universal rights of men; and whilst we are anxious to preserve these rights to ourselves, and transmit them inviolate, to our posterity, we *abhor that inconsistent, illiberal, and interested policy, which withholds those rights, from an unfortunate and degraded class of our fellow creatures.*"

Among other distinguished individuals who were efficient officers of these Abolition Societies, and delegates from their respective state societies, at the annual meetings of the American convention for promoting the abolition of slavery, were Hon. Uriah Tracy, United States' Senator, from Connecticut; Hon. Zephaniah Swift, Chief Justice of the same State; Hon. Cesar A. Rodney, Attorney General of the United States; Hon. James A. Bayard, United States Senator, from Delaware; Governor Bloomfield, of New Jersey; Hon. Wm. Rawle, the late venerable head of the Philadelphia bar; Dr. Casper Wistar, of Philadelphia; Messrs. Foster and Tillinghast, of Rhode Island; Messrs. Ridgeley, Buchanan, and Wilkinson, of Maryland; and Messrs. Pleasants, McLean, and Anthony, of Virginia.

In July, 1787, the old Congress passed the celebrated ordinance, abolishing slavery in the northwestern territory, and declaring that it should never thereafter exist there. This ordinance was passed while the convention that formed the United States constitution was in session. At the first session of Congress under the constitution, this ordinance was ratified by a special act. Washington, fresh from the discussions of the convention, in which *more than forty days had been spent in adjusting the question of slavery, gave it his approval.* The act passed with only one dissenting voice, (that of Mr. Yates, of New-York,) *the South equally with the North avowing the fitness and expediency of the measure of general considerations, and indicating*

thus early the line of national policy, to be pursued by the United States Government on the subject of slavery.

In the debates in the North Carolina Convention, Mr. Iredell, afterward a Judge of the United States' Supreme Court, said, "*When the entire abolition of slavery takes place*, it will be an event which must be pleasing to every generous mind and every friend of human nature." Mr. Galloway said, "I wish to see this abominable trade put an end to. I apprehend the clause (touching the slave trade) means to *bring forward manumission*." Luther Martin, of Md., a member of the convention that formed the United States constitution, said, "We ought to authorize the General Government to make such regulations as shall be thought most advantageous for *the gradual abolition of slavery*, and the *emancipation of the slaves* which are already in the States." Judge Wilson, of Pennsylvania, one of the framers of the constitution, said, in the Pennsylvania convention of '87, Deb. Pa. Con. p. 303, 156: "I consider this (the clause relative to the slave trade) as laying the foundation for *banishing slavery out of this country*. It will produce the same kind of gradual change which was produced in Pennsylvania; the new states which are to be formed will be under the control of Congress in this particular, and *slaves will never be introduced* among them. It presents us with the pleasing prospect that the rights of mankind will be acknowledged and established *throughout the Union*. Yet the lapse of a few years, and Congress will have power to *exterminate slavery* within our borders." In the Virginia convention of '87, Mr. Mason, author of the Virginia constitution, said, "The augmentation of slaves weakens the States, and such a trade is *diabolical* in itself, and disgraceful to mankind. As much as I value a union of all the states, I would not admit the southern states, (i.e., South Carolina and Georgia,) into the union, *unless they agree to a discontinuance of this disgraceful trade*." Mr. Tyler opposed with great power the clause prohibiting the abolition of the slave trade till 1808, and said, "My earnest desire is, that it shall be handed down to posterity that I oppose this wicked clause." Mr. Johnson said, "The principle of emancipation *has begun since the revolution. Let us do what we will, it will come round*."—[Deb. Va. Con. p. 463.] Patrick Henry, arguing the power of Congress under the United States constitution to abolish slavery in the States, said, in the same convention, "Another thing will contribute to bring this event (the abolition of slavery) about. Slavery is *detested*. We feel its fatal effects; we deplore it

with all the pity of humanity."—[*Deb. Va. Con.* p. 431.] In the Mass. Con. of '88, Judge Dawes said, "Although slavery is not smitten by an apoplexy, yet *it has received a mortal wound*, and will die of consumption."—[*Deb. Mass. Con.* p. 60.] General Heath said that, "Slavery was confined to the States *now existing*, *it could not be extended*. By their ordinance, Congress had declared that the new States should be republican States, and *have no slavery*."—p. 147.

In the debate in the first Congress, February 11th and 12th, 1789, on the petitions of the Society of Friends, and the Pennsylvania Abolition Society, Mr. Parker, of Virginia, said, "I hope, Mr. Speaker, the petition of these respectable people will be attended to *with all the readiness the importance of its object demands*; and I cannot help expressing the pleasure I feel in finding *so considerable a part* of the community attending to matters of such a momentous concern to the *future prosperity* and happiness of the people of America. I think it my duty, as a citizen of the Union, *to espouse their cause*."

Mr. Page, of Virginia, (afterward Governor)—"Was *in favor* of the commitment; he hoped that the designs of the respectable memorialists would not be stopped at the threshold, in order to preclude a fair discussion of the prayer of the memorial. With respect to the alarm that was apprehended, he conjectured there was none; but there might be just cause, if the memorial was *not* taken into consideration. He placed himself in the case of a slave, and said, that on hearing that Congress had refused to listen to the decent suggestions of a respectable part of the community, he should infer, that the general government, *from which was expected great good would result to EVERY CLASS of citizens*, had shut their ears against the voice of humanity, and he should despair of any alleviation of the miseries he and his posterity had in prospect; if any thing could induce him to rebel, it must be a stroke like this, impressing on his mind all the horrors of despair. But if he was told, that application was made in his behalf, and that Congress were willing to hear what could be urged in favor of discouraging the practice of importing his fellow-wretches, he would trust in their justice and humanity, and *wait the decision patiently*."

Mr. Scott, of Pennsylvania: "I cannot, for my part, conceive how any person *can be said to acquire a property in another*; but enough of those who reduce men to the state of transferable goods, or use them like beasts of burden, who deliver them up as the property or patrimony of another man. Let us argue on principles countenanced by reason, and becoming humanity. *I do not know how far I might go, if I was one of the judges of the United States, and those people were to come before me and claim their emancipation, but I am sure I would go as far as I could.*"

Mr. Burke, of South Carolina, said, "He *saw the disposition of the House*, and he feared it would be referred to a committee, maugre all their opposition."

Mr. Smith, of South Carolina, said, "That on entering into this government, they (South Carolina and Georgia) apprehended that the other states, not knowing the necessity the citizens of the Southern states were under to hold this species of property, *would, from motives of humanity and benevolence, be led to vote for a general emancipation*; and had they not seen, that the constitution provided against the effect of such a disposition, I may be bold to say, they never would have adopted it."

In the debate, at the same session, May 13th, 1789, on the petition of the Society of Friends respecting the slave trade, Mr. Parker, of Virginia, said, "He hoped Congress would do all that lay in their power to *restore to human nature its inherent privileges*, and if possible, wipe off the stigma, which America labored under. The inconsistency in our principles, with which we are justly charged *should be done away*, that we may show by our actions the pure beneficence of the doctrine we held out to the world in our Declaration of Independence."

Mr. Jackson of Georgia, said, "IT WAS THE FASHION OF THE DAY TO FAVOR THE LIBERTY OF THE SLAVES. * * * * * What is to be done for compensation? Will Virginia set all her negroes free? Will they give up the money they have cost them; and to whom? *When this practice comes to be tried, then the sound of liberty will lose those charms which make it grateful to the ravished ear.*"

Mr. Madison of Virginia,—“The dictates of humanity, the principles of the people, the national safety and happiness, and prudent policy, require it of us. The constitution has particularly called our attention to it. * * * * * I conceive the constitution in this particular was formed in order that the Government, whilst it was restrained from having a total prohibition, might be able to *give some testimony of the sense of America*, with respect to the African trade. * * * * * It is to be hoped, that by expressing a national disapprobation of this trade, we may destroy it, and save ourselves from reproaches, AND OUR POSTERITY THE IMBECILITY EVER ATTENDANT ON A COUNTRY FILLED WITH SLAVES. I do not wish to say any thing harsh to the hearing of gentlemen who entertain different sentiments from me, or different sentiments from those I represent. But if there is any one point in which it is clearly the policy of this nation, so far as we constitutionally can, *to vary the practice* obtaining under some of the state governments, it is this. But it is *certain* a majority of the states are *opposed to this practice*.”—[Cong. Reg. v. 1, p. 308-12.]

A writer in the "Gazette of the United States," Feb. 20th, 1790, (then the government paper,) who opposes the abolition of slavery, and avows himself a *slaveholder*, says, "I have seen in the papers accounts of *large associations*, and applications to Government for *the abolition of slavery*. Religion, humanity, and the generosity natural to a free people, are the *noble principles which dictate those measures*. SUCH MOTIVES COMMAND RESPECT, AND ARE ABOVE ANY EULOGIUM WORDS CAN BESTOW."

It is well known, that in the convention that formed the constitution of Kentucky in 1780, the effort to prohibit slavery was nearly successful. The writer has frequently heard it asserted in Kentucky, and has had it from some who were members of that convention, that a decided majority of that body would have voted for its exclusion but for the great efforts and influence of two large slaveholders—men of commanding talents and sway—Messrs. Breckenridge and Nicholas. The following extract from a speech made in that convention by a member of it, Mr. Rice, a native Virginian, is a specimen of the *free discussion* that prevailed on that "delicate subject." Said Mr. Rice: "I do a man greater injury, when I deprive him of his liberty, than when I deprive him of his property. It is vain for me to plead that I

have the sanction of law; for this makes the injury the greater—it arms the community against him, and makes his case desperate. The owners of such slaves then are *licensed robbers*, and not the just proprietors of what they claim. Freeing them is not depriving them of property, but *restoring it to the right owner*. In America, a slave is a standing monument of the tyranny and inconsistency of human governments. The master is the enemy of the slave; he *has made open war upon him*, AND IS DAILY CARRYING IT ON in unremitted efforts. Can any one imagine, then, that the slave is indebted to his master, and *bound to serve him*? Whence can the obligation arise? What is it founded upon? What is my duty to an enemy that is carrying on war against me? I do not deny, but in some circumstances, it is the duty of the slave to serve; but it is a duty he owes himself, and not his master."

President Edwards, the younger, said, in a sermon preached before the Connecticut Abolition Society, Sept. 15, 1791: "Thirty years ago, scarcely a man in this country thought either the slave trade or the slavery of negroes to be wrong; but now how many and able advocates in private life, in our legislatures, in Congress, have appeared, and have openly and irrefragably pleaded the rights of humanity in this as well as other instances? And if we judge of the future by the past, *within fifty years from this time, it will be as shameful for a man to hold a negro slave, as to be guilty of common robbery or theft.*"

In 1794, the General Assembly of the Presbyterian church adopted its "Scripture proofs," notes, comments, &c. Among these was the following:

"1 Tim. i. 10. The law is made for manstealers. This crime among the Jews exposed the perpetrators of it to capital punishment. Exodus xxi. 16. And the apostle here classes them with *sinner of the first rank*. The word he uses, in its original import comprehends all who are concerned in bringing any of the human race into slavery, or in *retaining* them in it. *Stealers of men* are all those who bring off slaves or freemen, and *keep, sell, or buy* them."

In 1794, Dr. Rush declared: "Domestic slavery is repugnant to the principles of Christianity. It prostrates every benevolent and just principle of action in the human heart. It is rebellion against the authority of a common Father. It is a practical denial of the extent and efficacy of the

death of a common Savior. It is an usurpation of the prerogative of the great Sovereign of the universe, who has solemnly claimed an exclusive property in the souls of men."

In 1795, Mr. Fiske, then an officer of Dartmouth College, afterward a Judge in Tennessee, said, in an oration published that year, speaking of slaves: "I steadfastly maintain, that we must bring them to *an equal standing, in point of privileges, with the whites!* They must enjoy all the rights belonging to human nature."

When the petition on the abolition of the slave trade was under discussion in the Congress of '89, Mr. Brown, of North Carolina, said, "The emancipation of the slaves *will be effected* in time; it ought to be a gradual business, but he hoped that Congress would not *precipitate* it to the great injury of the southern States." Mr. Hartley, of Pennsylvania said, in the sane debate, "*He was not a little surprised to hear the cause of slavery advocated in that house.*" WASHINGTON, in a letter to Sir John Sinclair, says, "There are, in Pennsylvania, laws for the gradual abolition of slavery which neither Maryland nor Virginia have at present, but which *nothing is more certain* than that they *must have*, and at a period NOT REMOTE." In 1782, Virginia passed her celebrated manumission act. Within nine years from that time nearly eleven thousand slaves were voluntarily emancipated by their masters. Judge Tucker's "Dissertation on Slavery," p. 72. In 1787, Maryland passed an act legalizing manumission. Mr. Dorsey, of Maryland, in a speech in Congress, December 27th, 1826, speaking of manumissions under that act, said, that "*The progress of emancipation was astonishing*, the State became crowded with a free black population."

The celebrated William Pinkney, in a speech before the Maryland House of Delegates, in 1789, on the emancipation of slaves, said, "Sir, by the eternal principles of natural justice, *no master in the state has a right to hold his slave in bondage for a single hour.* I would as soon believe the incoherent tale of a schoolboy, who should tell me he had been frightened by a ghost, as that the grant of this permission (to emancipate) ought in any degree to alarm us. Are we apprehensive that these men will become more dangerous by becoming freemen? Are we alarmed, lest by being admitted into the enjoyment of civil rights, they will be inspired with a deadly enmity against

the rights of others? Strange, unaccountable paradox! How much more rational would it be, to argue that the natural enemy of the privileges of a freeman, is he who is robbed of them himself! Dishonorable to the species is the idea that they would ever prove injurious to our interests—released from the shackles of slavery, by the justice of government and the bounty of individuals—the want of fidelity and attachment would be next to impossible."

Hon. James Campbell, in an address before the Pennsylvania Society of the Cincinnati, July 4, 1787, said, "Our separation from Great Britain has extended the empire of *humanity*. The time *is not far distant* when our sister states, in imitation of our example, *shall turn their vassals into freemen*." The Convention that formed the United States' constitution being then in session, attended at the delivery of this oration with General Washington at their head.

A Baltimore paper of September 8th, 1780, contains the following notice of Major General Gates: "A few days ago passed through this town the Hon. General Gates and lady. The General, previous to leaving Virginia, summoned his numerous family of slaves about him, and amidst their tears of affection and gratitude, gave them their FREEDOM."

In 1791 the university of William and Mary, in Virginia, conferred upon Granville Sharpe the degree of Doctor of Laws. Sharpe was at that time the acknowledged head of British abolitionists. His indefatigable exertions, prosecuted for years in the case of Somerset, procured that memorable decision in the Court of King's Bench, which settled the principle that no slave could be held in England. He was most uncompromising in his opposition to slavery, and for twenty years previous he had spoken, written, and accomplished more against it than any man living.

In the "Memoirs of the Revolutionary War in the Southern Department," by Gen. Lee, of Va., Commandant of the Partizan Legion, is the following: "The Constitution of the United States, adopted lately with so much difficulty, has effectually provided against this evil, (by importation) after a few years. It is much to be lamented that having done so much in this way, *a provision had not been made for the gradual abolition of slavery*."—p. 233, 4.

Mr. Tucker, of Virginia, Judge of the Supreme Court of that state, and professor of law in the University of William and Mary, addressed a letter to the General Assembly of that state, in 1796, urging the abolition of slavery; from which the following is an extract. Speaking of the slaves in Virginia, he says: "Should we not, at the time of the revolution, have loosed their chains and broken their fetters; or if the difficulties and dangers of such an experiment prohibited the attempt, during the convulsions of a revolution, is it not our duty, *to embrace the first moment* of constitutional health and vigor to effectuate so desirable an object, and to remove from us a stigma with which our enemies will never fail to upbraid us, nor consciences to reproach us?"

Mr. Faulkner, in a speech before the Virginia Legislature, Jan. 20, 1832, said:—"The idea of a gradual emancipation and removal of the slaves from this commonwealth, is coeval with the declaration of our independence from the British yoke. It sprung into existence during the first session of the General Assembly, subsequent to the formation of your republican government. When Virginia stood sustained in her legislation by the pure and philosophic intellect of Pendleton—by the patriotism of Mason and Lee—by the searching vigor and sagacity of Wythe, and by the all-embracing, all-comprehensive genius of Thomas Jefferson! Sir, it was a committee composed of those five illustrious men, who, in 1777, submitted to the general assembly of this state, then in session, *a plan for the gradual emancipation of the slaves of this commonwealth.*"

Hon. Benjamin Watkins Leigh, late United States' senator from Virginia, in his letters to the people of Virginia, in 1832, signed Appomattox, p. 43, says: "I thought, till very lately, that it was known to every body that during the Revolution, *and for many years after, the abolition of slavery was a favorite topic with many of our ablest statesmen*, who entertained, with respect, all the schemes which wisdom or ingenuity could suggest for accomplishing the object. Mr. Wythe, to the day of his death, *was for a simple abolition, considering the objection to color as founded in prejudice.* By degrees, all projects of the kind were abandoned. Mr. Jefferson *retained* his opinion, and now we have these projects revived."

Governor Barbour, of Virginia, in his speech in the U.S. Senate, on the Missouri question, Jan. 1820, said:—"We are asked why has Virginia *changed her policy* in reference to slavery? That the sentiments *of our most distinguished men*, for thirty years *entirely corresponded* with the course which the friends of the restriction (of slavery in Missouri) now advocated; and that the Virginia delegation, one of which was the late President of the United States, voted for the restriction, (of slavery) in the northwestern territory, and that Mr. Jefferson has delineated a gloomy picture of the baneful effects of slavery. When it is recollected that the Notes of Mr. Jefferson were written during the progress of the revolution, it is no matter of surprise that the writer should have imbibed a large portion of that enthusiasm which such an occasion was so well calculated to produce. As to the consent of the Virginia delegation to the restriction in question, whether the result of a disposition to restrain the slave trade indirectly, or the influence of that *enthusiasm* to which I have just alluded, * * * * it is not now important to decide. We have witnessed its effects. The liberality of Virginia, or, as the result may prove, her folly, which submitted to, or, if you will, PROPOSED *this measure*, (abolition of slavery in the N.W. territory) has eventuated in effects which speak a monitory lesson. *How is the representation from this quarter on the present question?*"

Mr. Imlay, in his early history of Kentucky, p. 185, says: "We have disgraced the fair face of humanity, and trampled upon the sacred privileges of man, at the very moment that we were exclaiming against the tyranny of your (the English) ministry. But in contending for the birthright of freedom, we have learned to feel *for the bondage of others*, and in the libations we offer to the goddess of liberty, we *contemplate an emancipation of the slaves of this country*, as honorable to themselves as it will be glorious to us."

In the debate in Congress, Jan. 20, 1806, on Mr. Sloan's motion to lay a tax on the importation of slaves, Mr. Clark of Va. said: "He was no advocate for a system of slavery." Mr. Marion, of S. Carolina, said: "He never had purchased, nor should he ever purchase a slave." Mr. Southard said: "Not revenue, but an expression of the *national sentiment* is the principal object." Mr. Smilie—"I rejoice that the word (slave) is not in the Constitution; its not being there does honor to the worthies who would not suffer it to

become a *part* of it." Mr. Alston, of N. Carolina—"In two years we shall have the power to prohibit the trade altogether. Then this House will be UNANIMOUS. No one will object to our exercising our full constitutional powers." National Intelligencer, Jany. 24, 1806.

These witnesses need no vouchers to entitle them to credit—nor their testimony comments to make it intelligible—their *names* are their *endorsers* and their strong words their own interpreters. We waive all comments. Our readers are of age. Whosoever hath ears to *hear*, let him HEAR. And whosoever will not hear the fathers of the revolution, the founders of the government, its chief magistrates, judges, legislators and sages, who dared and periled all under the burdens, and in the heat of the day that tried men's souls—then "neither will he be persuaded though THEY rose from the dead."

Some of the points established by the testimony are—The universal expectation that the *moral* influence of Congress, of state legislatures, of seminaries of learning, of churches, of the ministers of religion, and of public sentiment widely embodied in abolition societies, would be exerted against slavery, calling forth by argument and appeal the moral sense of the nation, and creating a power of opinion that would abolish the system throughout the union. In a word, that free speech and a free press would be wielded against slavery without ceasing and without restriction. Full well did the south know, not only that the national government would probably legislate against slavery wherever the constitution placed it within its reach, but she knew also that Congress had already marked out the line of national policy to be pursued on the subject—had committed itself before the world to a course of action against slavery, wherever she could move upon it without encountering a conflicting jurisdiction—that the nation had established by solemn ordinance memorable precedent for subsequent action, by abolishing slavery in the northwest territory, and by declaring that it should never thenceforward exist there; and this too, as soon as by cession of Virginia and other states, the territory came under Congressional control. The south knew also that the sixth article in the ordinance prohibiting slavery was first proposed by the largest slaveholding state in the confederacy—that the chairman of the committee that reported the ordinance was a slaveholder—that the ordinance was enacted by Congress

during the session of the convention that formed the United States Constitution—that the provisions of the ordinance were, both while in prospect, and when under discussion, matters of universal notoriety and *approval* with all parties, and when finally passed, received the vote of *every member of Congress from each of the slaveholding states*. The south also had every reason for believing that the first Congress under the constitution would *ratify* that ordinance—as it *did* unanimously.

A crowd of reflections, suggest by the preceding testimony, press for utterance. The right of petition ravished and trampled by its constitutional guardians, and insult and defiance hurled in the faces of the SOVEREIGN PEOPLE while calmly remonstrating *with their* SERVANTS for violence committed on the nation's charter and their own dearest rights! Add to this "the right of peaceably assembling" violently wrested—the rights of minorities, *rights* no longer—free speech struck dumb—free *men* outlawed and murdered—free presses cast into the streets and their fragments strewed with shoutings, or flourished in triumph before the gaze of approving crowds as proud members of prostrate law!

The spirit and power of our fathers, where are they? Their deep homage always and every where rendered to FREE THOUGHT, with its *inseparable signs—free speech and a free press*—their reverence for justice, liberty, *rights* and all-pervading law, where are they?

But we turn from these considerations—though the times on which we have fallen, and those towards which we are borne with headlong haste, call for their discussion as with the voices of departing life—and proceed to topics relevant to the argument before us.

The seventh article of the amendments to the constitution is alleged to withhold from Congress the power to abolish slavery in the District. "No person shall be deprived of life, liberty, or property, without due process of law." All the slaves in the District have been "deprived of liberty" by legislative acts. Now, these legislative acts "depriving" them "of liberty," were either "due process of law," or they were *not*. If they *were*, then a legislative act, taking from the master that "property" which is the identical "liberty" previously taken from the slave, would be "due process of law" *also*, and of course a *constitutional* act; but if the legislative acts

"depriving" them of "liberty" were *not* "due process of law," then the slaves were deprived of liberty *unconstitutionally*, and these acts are *void*. In that case the *constitution emancipates them*.

If the objector reply, by saying that the import of the phrase "due process of law," is *judicial* process solely, it is granted, and that fact is our rejoinder; for no slave in the District *has* been deprived of his liberty by "a judicial process," or, in other words, by "due process of law;" consequently, upon the objector's own admission, every slave in the District has been deprived of liberty *unconstitutionally*, and is therefore *free by the constitution*. This is asserted only of the slaves under the "exclusive legislation" of Congress.

The last clause of the article under consideration is quoted for the same purpose: "Nor shall private property be taken for public use without just compensation." Each of the state constitutions has a clause of similar purport. The abolition of slavery in the District by Congress, would not, as we shall presently show, violate this clause either directly or by implication. Granting for argument's sake, that slaves are "private property," and that to emancipate them, would be to "take private property" for "public use," the objector admits the power of Congress to do *this*, provided it will do something *else*, that is, *pay* for them. Thus, instead of denying *the power*, the objector not only admits, but *affirms* it, as the ground of the inference that compensation must accompany it. So far from disproving the existence of *one* power, the objector asserts the existence of *two*—one, the power to take the slaves from their masters, the other, the power to take the property of the United States to pay for them.

If Congress cannot constitutionally impair the right of private property, or take it without compensation, it cannot constitutionally, *legalize* the perpetration of such acts, by *others*, nor *protect* those who commit them. Does the power to rob a man of his earnings, rob the earner of his *right* to them? Who has a better right to the *product* than the producer?—to the *interest*, than the owner of the *principal*?—to the hands and arms, than he from whose shoulders they swing?—to the body and soul, than he whose they *are*? Congress not only impairs but annihilates the right of private property, while it withholds from the slaves of the District their title to *themselves*. What! Congress powerless to protect a man's right to *himself*,

when it can make inviolable the right to a *dog*? But, waving this, I deny that the abolition of slavery in the District would violate this clause. What does the clause prohibit? The "taking" of "private property" for "public use." Suppose Congress should emancipate the slaves in the District, what would it "*take*?" Nothing. What would it "*hold*?" Nothing. What would it put to "public use?" Nothing. Instead of *taking* "private property," Congress, by abolishing slavery, would say "private property shall not *be* taken; and those who have been robbed of it already, shall be kept out of it no longer; and since every man's right to his own body is *paramount*, he shall be protected in it." True, Congress may not arbitrarily take property, *as* property, from one man and give it to another—and in the abolition of slavery no such thing is done. A legislative act changes the *condition* of the slave—makes him his own *proprietor* instead of the property of another. It determines a question of *original right* between two classes of persons—doing an act of justice to one, and restraining the other from acts of injustice; or, in other words, preventing one from robbing the other, by granting to the injured party the protection of just and equitable laws.

Congress, by an act of abolition, would change the condition of seven thousand "persons" in the District, but would "take" nothing. To construe this provision so as to enable the citizens of the District to hold as property, and in perpetuity, whatever they please, or to hold it as property in all circumstances—all necessity, public welfare, and the will and power of the government to the contrary notwithstanding—is a total perversion of its whole *intent*. The *design* of the provision, was to throw up a barrier against Governmental aggrandizement. The right to "take property" for *State uses* is one thing;—the right so to adjust the *tenures* by which property is held, that *each may have his own secured to him*, is another thing, and clearly within the scope of legislation. Besides, if Congress were to "take" the slaves in the District, it would be *adopting*, not abolishing slavery—becoming a slaveholder itself, instead of requiring others to be such no longer. The clause in question, prohibits the "taking" of individual property for public uses, to be employed or disposed of *as* property for governmental purposes. Congress, by abolishing slavery in the District, would do no such thing. It would merely change the *condition* of that which has been recognised as a qualified property by congressional acts, though previously declared "persons" by the constitution. More than this is done continually by

Congress and every other Legislature. Property the most absolute and unqualified, is annihilated by legislative acts. The embargo and non-intercourse act, prostrated at a stroke, a forest of shipping, and sank millions of capital. To say nothing of the power of Congress to take hundreds of millions from the people by direct taxation, who doubts its power to abolish at once the whole tariff system, change the seat of Government, arrest the progress of national works, prohibit any branch of commerce with the Indian tribes or with foreign nations, change the locality of forts, arsenals, magazines, dock yards, &c., to abolish the Post Office system, the privilege of patents and copyrights, &c. By such acts Congress might, in the exercise of its acknowledged powers, annihilate property to an incalculable amount, and that without becoming liable to claims for compensation.

Finally, this clause prohibits the taking for public use of "*property*." The constitution of the United States does not recognise slaves as "PROPERTY" any where, and it does not recognise them in *any sense* in the District of Columbia. All allusions to them in the constitution recognise them as "persons." Every reference to them points *solely* to the element of *personality*; and thus, by the strongest implication, declares that the constitution *knows* them only as "persons," and *will* not recognise them in any other light. If they escape into free States, the constitution authorizes their being taken back. But how? Not as the property of an "owner," but as "persons;" and the peculiarity of the expression is a marked recognition of their *personality*—a refusal to recognise them as chattels—"persons *held* to service." Are *oxen* "*held* to service?" That can be affirmed only of *persons*. Again, slaves give political power as "persons." The constitution, in settling the principle of representation, requires their enumeration in the census. How? As property? Then why not include race horses and game cocks? Slaves, like other inhabitants, are enumerated as "persons." So by the constitution, the government was pledged to non-interference with "the migration or importation of such *persons*" as the States might think proper to admit until 1808, and authorized the laying of a tax on each "person" so admitted. Further, slaves are recognized as "persons" by the exaction of their *allegiance* to the government. For offences against the government slaves are tried as *persons*; as persons they are entitled to counsel for their defence, to the rules of evidence, and to "due process of the law," and as *persons* they are punished. True, they are loaded with cruel disabilities in

courts of law, such as greatly obstruct and often inevitably defeat the ends of justice, yet they are still recognised as *persons*. Even in the legislation of Congress, and in the diplomacy of the general government, notwithstanding the frequent and wide departures from the integrity of the constitution on this subject, slaves are not recognised as *property* without qualification. Congress has always refused to grant compensation for slaves killed or taken by the enemy, even when these slaves had been impressed into the United States' service. In half a score of cases since the last war, Congress has rejected such applications for compensation. Besides, both in Congressional acts, and in our national diplomacy, slaves and property are not used as convertible terms. When mentioned in treaties and state papers it is in such a way as to distinguish them from mere property, and generally by a recognition of their *personality*. In the invariable recognition of slaves as *persons*, the United States' constitution caught the mantle of the glorious Declaration, and most worthily wears it.—It recognizes all human beings as "men," "persons," and thus as "equals." In the original draft of the Declaration, as it came from the head of Jefferson, it is alleged that Great Britain had "waged a cruel war against *human* nature itself, violating its most sacred rights of life and liberty in the persons of a distant people, carrying them into slavery, * * determined to keep up a market where MEN should be bought and sold,"—thus disdaining to make the charter of freedom a warrant for the arrest of *men*, that they might be shorn both of liberty and humanity.

The celebrated Roger Sherman, one of the committee of five appointed to draft the Declaration of Independence, and also a member of the Convention that formed the United States' Constitution, said, in the first Congress after its adoption: "The constitution *does not consider these persons, (slaves,) as a species of property.*"—[Lloyd's Cong. Reg. v. 1, p. 313.] That the United States' Constitution does not make slaves "property," is shown in the fact, that no person, either as a citizen of the United States, or by having his domicile within the United States' government, can hold slaves. He can hold them only by deriving his power from *state* laws, or from the law of Congress, if he hold slaves within the District. But no person resident within the United States' jurisdiction, and *not* within the District, nor within a state whose laws support slavery, nor "held to service"

under the laws of such state or district, having escaped therefrom, *can be held as a slave*.

Men can hold *property* under the United States' government though residing beyond the bounds of any state, district, or territory. An inhabitant of the Wisconsin Territory can hold property there under the laws of the United States, but he cannot hold *slaves* there under the United States' laws, nor by virtue of the United States' Constitution, nor upon the ground of his United States citizenship, nor by having his domicile within the United States jurisdiction. The constitution no where recognizes the right to "slave property," *but merely the fact that the states have jurisdiction each in its own limits, and that there are certain "persons" within their jurisdictions "held to service" by their own laws.*

Finally, in the clause under consideration, "private property" is not to be taken "without *just* compensation." "JUST!" If justice is to be appealed to in determining the amount of compensation, let her determine the *grounds* also. If it be her province to say *how much* compensation is "just," it is hers to say whether *any* is "just,"—whether the slave is "just" property *at all*, rather than a "*person*." Then, if justice adjudges the slave to be "private property," it adjudges him to be *his own* property, since the right to one's *self* is the first right—the source of all others—the original stock by which they are accumulated—the principal, of which they are the interest. And since the slave's "private property" has been "taken," and since "compensation" is impossible—there being no *equivalent* for one's self—the least that can be done is to restore to him his original private property.

Having shown that in abolishing slavery, "property" would not be "taken for public use," it may be added that, in those states where slavery has been abolished by law, no claim for compensation has been allowed. Indeed the manifest absurdity of demanding it, seems to have quite forestalled the *setting up* of such a claim.

The abolition of slavery in the District, instead of being a legislative anomaly, would proceed upon the principles of every day legislation. It has been shown already, that the United States' Constitution does not recognize slaves as "property." Yet ordinary legislation is full of precedents, showing that even *absolute* property is in many respects wholly subject to

legislation. The repeal of the law of entailments—all those acts that control the alienation of property, its disposal by will, its passing to heirs by descent, with the question, who shall be heirs, and what shall be the rule of distribution among them, or whether property shall be transmitted at all by descent, rather than escheat to the state—these, with statutes of limitation, and various other classes of legislative acts, serve to illustrate the acknowledged scope of the law-making power, even where property *is in every sense absolute*. Persons whose property is thus affected by public laws, receive from the government no compensation for their losses, unless the state has been put into possession of the property taken from them.

The preamble of the United States' Constitution declares it to be a fundamental object of the organization of the government "to ESTABLISH JUSTICE." Has Congress *no power* to do that for which it was made the *depository of power*? CANNOT the United States Government fulfil the purpose *for which it was brought into being*?

To abolish slavery, is to take from no rightful owner his property; but to "*establish justice*" between two parties. To emancipate the slave, is to "*establish justice*" between him and his master—to throw around the person, character, conscience, liberty, and domestic relations of the one, *the same law* that secures and blesses the other. In other words, to prevent by *legal restraints* one class of men from seizing upon another class, and robbing them at pleasure of their earnings, their time, their liberty, their kindred, and the very use and ownership of their own persons. Finally, to abolish slavery is to proclaim and *enact* that innocence and helplessness—now *free plunder*—are entitled to *legal protection*; and that power, avarice, and lust, shall no longer gorge upon their spoils under the license, and by the ministrations of *law*! Congress, by possessing "exclusive legislation in all cases whatsoever," has a *general protective power* for ALL the inhabitants of the District. If it has no power to protect *one* man, it has none to protect another—none to protect *any*—and if it *can* protect *one* man and is *bound* to protect him, it *can* protect *every* man—all men—and is *bound* to do it. All admit the power of Congress to protect the masters in the District against their slaves. What part of the constitution gives the power? The clause so often quoted,—"*power of legislation in all cases whatsoever*," equally in the "*case*" of defending the blacks against the whites, as in that of

defending the whites against the blacks. The power is given also by Art. 1, Sec. 8, clause 15—"Congress shall have power to suppress insurrections"—a power to protect, as well blacks against whites, as whites against blacks. If the constitution gives power to protect *one* class against the other, it gives power to protect *either* against the other. Suppose the blacks in the District should seize the whites, drive them into the fields and kitchens, force them to work without pay, flog them, imprison them, and sell them at their pleasure, where would Congress find power to restrain such acts? Answer; a *general* power in the clause so often cited, and an *express* one in that cited above—"Congress shall have power, to suppress insurrections." So much for a *supposed* case. Here follows a *real* one. The whites in the District are *perpetrating these identical acts* upon seven thousand blacks daily. That Congress has power to restrain these acts in one case, all assert, and in so doing they assert the power "in *all* cases whatsoever." For the grant of power to suppress insurrections, is an *unconditional* grant, not hampered by provisos as to the color, shape, size, sex, language, creed, or condition of the insurgents. Congress derives its power to suppress this *actual* insurrection, from the same source whence it derived its power to suppress the *same* acts in the case *supposed*. If one case is an insurrection, the other is. The *acts* in both are the same; the *actors* only are different. In the one case, ignorant and degraded—goaded by the memory of the past, stung by the present, and driven to desperation by the fearful looking for of wrongs for ever to come. In the other, enlightened into the nature of *rights*, the principles of justice, and the dictates of the law of love, unprovoked by wrongs, with cool deliberation, and by system, they perpetrate these acts upon those to whom they owe unnumbered obligations for *whole lives* of unrequited service. On which side may palliation be pleaded, and which party may most reasonably claim an abatement of the rigors of law? If Congress has power to suppress such acts *at all*, it has power to suppress them *in all*.

It has been shown already that *allegiance* is exacted of the slave. Is the government of the United States unable to grant *protection* where it exacts *allegiance*? It is an axiom of the civilized world, and a maxim even with savages, that allegiance and protection are reciprocal and correlative. Are principles powerless with us which exact homage of barbarians? *Protection*

is the CONSTITUTIONAL RIGHT of every human being under the exclusive legislation of Congress who has not forfeited it by crime.

In conclusion, I argue the power of Congress to abolish slavery in the District, froth Art. 1, sec. 8, clause 1, of the constitution: "Congress shall have power to provide for the common defence and the general welfare of the United States." Has the government of the United States no power under this grant, to legislate within its own exclusive jurisdiction on subjects that vitally affect its interests? Suppose the slaves in the District should rise upon their masters, and the United States' government, in quelling the insurrection, should kill any number of them. Could their masters claim compensation of the government? Manifestly not; even though no proof existed that the particular slaves killed were insurgents. This was precisely the point at issue between those masters, whose slaves were killed by the State troops at the time of the Southampton insurrection, and the Virginia Legislature; no evidence was brought to show that the slaves killed by the troops were insurgents; yet the Virginia Legislature decided that their masters were *not entitled to compensation*. They proceeded on the sound principle, that a government may in self protection destroy the claim of its subjects even to that which has been recognised as property by its own acts. If in providing for the common defence the United States government, in the case supposed, would have power to destroy slaves both as *property and persons*, it surely might stop half-way, destroy them as *property* while it legalized their existence as *persons*, and thus provided for the common defence by giving them a personal and powerful interest in the government, and securing their strength for its defence.

Like other Legislatures, Congress has power to abate nuisances—to remove or tear down unsafe buildings—to destroy infected cargoes—to lay injunctions upon manufactories injurious to the public health—and thus to "provide for the common defence and general welfare" by destroying individual property, when it puts in jeopardy the public weal.

Granting, for argument's sake, that slaves are "property" in the District of Columbia—if Congress has a right to annihilate property in the District when the public safety requires it, it may surely annihilate its existence *as property* when public safety requires it, especially if it transform into a

protection and *defence* that which as *property* periled the public interests. In the District of Columbia there are, besides the United States' Capitol, the President's house, the national offices, &c. of the Departments of State, Treasury, War, and Navy, the General Post-office, and Patent Office. It is also the residence of the President, all the highest officers of the government, both houses of Congress, and all the foreign ambassadors. In this same District there are also *seven thousand slaves*. Jefferson, in his Notes on Va. p. 241, says of slavery, that "the State permitting one half of its citizens to trample on the rights of the other, *transforms them into enemies*;" and Richard Henry Lee, in the Va. House of Burgesses in 1758, declared that to those who held them, "*slaves must be natural enemies*." Is Congress so *impotent* that it *cannot* exercise that right pronounced both by municipal and national law, the most sacred and universal—the right of self-preservation and defence? Is it shut up to the *necessity* of keeping seven thousand "enemies" in the heart of the nation's citadel? Does the iron fiat of the constitution doom it to such imbecility that it *cannot* arrest the process that *made* them "enemies," and still goads to deadlier hate by fiery trials, and day by day adds others to their number? Is *this* providing for the common defence and general welfare? If to rob men of rights excites their hate, freely to restore them and make amends, will win their love.

By emancipating the slaves in the District, the government of the United States would disband an army of "enemies," and enlist "for the common defence and general welfare," a body guard of *friends* seven thousand strong. In the last war, a handful of British soldiers sacked Washington city, burned the capitol, the President's house, and the national offices and archives; and no marvel, for thousands of the inhabitants of the District had been "TRANSFORMED INTO ENEMIES." Would *they* beat back invasion? If the national government had exercised its constitutional "power to provide for the common defence and to promote the general welfare," by turning those "enemies" into friends, then, instead of a hostile ambush lurking in every thicket inviting assault, and secret foes in every house paralyzing defence, an army of allies would have rallied in the hour of her calamity, and shouted defiance from their munitions of rocks; whilst the banner of the republic, then trampled in dust, would have floated securely over FREEMEN exulting amidst bulwarks of strength.

To show that Congress can abolish slavery in the District, under the grant of power "to provide for the common defence and to promote the general welfare," I quote an extract from a speech of Mr. Madison, of Va., in the first Congress under the constitution, May 13, 1789. Speaking of the abolition of the slave trade, Mr. Madison says: "I should venture to say it is as much for the interests of Georgia and South Carolina, as of any state in the union. Every addition they receive to their number of slaves tends to *weaken* them, and renders them less capable of self-defence. In case of hostilities with foreign nations, they will be the means of *inviting* attack instead of repelling invasion. It is a necessary duty of the general government to protect every part of the empire against danger, as well *internal* as external. *Every thing, therefore, which tends to increase this danger, though it may be a local affair, yet if it involves national expense or safety, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government.*" See Cong. Reg. vol. 1, p. 310-11.

WYTHE.

POSTSCRIPT

My apology for adding a *postscript*, to a discussion already perhaps too protracted, is the fact that the preceding sheets were in the hands of the printer, and all but the concluding pages had gone through the press, before the passage of Mr. Calhoun's late resolutions in the Senate of the United States. A proceeding so extraordinary,—if indeed the time has not passed when *any* acts of Congress in derogation of freedom and in deference to slavery, can be deemed extraordinary,—should not be suffered to pass in silence at such a crisis as the present; especially as the passage of one of the resolutions by a vote of 36 to 8, exhibits a shift of position on the part of the South, as sudden as it is unaccountable, being nothing less than the surrender of a fortress which until then they had defended with the pertinacity of a blind and almost infuriated fatuity. Upon the discussions during the pendency of the resolutions, and upon the vote, by which they were carried, I make no comment, save only to record my exultation in the fact there exhibited, that great emergencies are *true touchstones*, and that henceforward, until this question is settled, whoever holds a seat in

Congress will find upon, and all around him, a pressure strong enough to TEST him—a focal blaze that will find its way through the carefully adjusted cloak of fair pretension, and the sevenfold brass of two-faced political intrigue, and *no-faced non-committalism*, piercing to the dividing asunder of joints and marrow. Be it known to every northern man who aspires to a seat in Congress, that hereafter it is the destiny of congressional action on this subject, to be a MIGHTY REVELATOR—making secret thoughts public property, and proclaiming on the house-tops what is whispered in the ear—smiting off masks, and bursting open sepulchres beautiful outwardly, and heaving up to the sun their dead men's bones. To such we say,—*Remember the Missouri Question, and the fate of those who then sold the North, and their own birthright!*

Passing by the resolutions generally without remark—the attention of the reader is specially solicited to Mr. Clay's substitute for Mr. Calhoun's fifth resolution.

"Resolved, That when the District of Columbia was ceded by the states of Virginia and Maryland to the United States, domestic slavery existed in both of these states, including the ceded territory, and that, as it still continues in both of them, it could not be abolished within the District without a violation of that good faith, which was implied in the cession and in the acceptance of the territory; nor, unless compensation were made to the proprietors of slaves, without a manifest infringement of an amendment to the constitution of the United States; nor without exciting a degree of just alarm and apprehension in the states recognising slavery, far transcending in mischievous tendency, any possible benefit which could be accomplished by the abolition."

By voting for this resolution, the south by a simultaneous movement, shifted its mode of defence, not so much by taking a position entirely new, as by attempting to refortify an old one—never much trusted in, and abandoned mainly long ago, as being unable to hold out against assault however unskilfully directed. In the debate on this resolution, though the southern members of Congress did not *professedly* retreat from the ground hitherto maintained by them—that Congress has no power by the

constitution to abolish slavery in the District—yet in the main they silently drew off from it.

The passage of this resolution—with the vote of every southern senator, forms a new era in the discussion of this question.

We cannot join in the lamentations of those who bewail it. We hail it, and rejoice in it. It was as we would have had it—offered by a southern senator, advocated by southern senators, and on the ground that it "was no compromise"—that it embodied the true southern principle—that "this resolution stood on as high ground as Mr. Calhoun's."—(Mr. Preston)—"that Mr. Clay's resolution was as strong as Mr. Calhoun's"—(Mr. Rives)—that "the resolution he (Mr. Calhoun) now refused to support, was as strong as his own, and that in supporting it, there was no abandonment of principle by the south."—(Mr. Walker, of Mi.)—further, that it was advocated by the southern senators generally as an expression of their views, and as setting the question of slavery in the District on its *true* ground—that finally when the question was taken, every slaveholding senator, including Mr. Calhoun himself, voted for the resolution.

By passing this resolution, and with such avowals, the south has surrendered irrevocably the whole question at issue between them and the petitioners for abolition in the District. It has, unwittingly but explicitly, conceded the main question argued in the preceding pages.

The *only* ground taken against the right of Congress to abolish slavery in the District is, that slavery existed in Maryland and Virginia when the cession was made, and "*as it still continues in both of them*, it could not be abolished without a violation of that good faith which was implied in the cession," &c. The *sole argument* is *not* that exclusive *sovereignty* has no power to abolish slavery within its jurisdiction, *nor* that the powers of even *ordinary legislation* cannot do it,—nor that the clause granting Congress "exclusive legislation in all cases whatsoever over such District," gives no power to do it; but that the *unexpressed expectation* of one of the parties that the other would not "in *all* cases" use the power which said party had consented *might be used "in all cases," prohibits* the use of it. The only cardinal point in the discussion, is here not only *yielded*, but formally laid down by the South as the leading article in their creed on the question of

Congressional jurisdiction over slavery in the District. The *sole reason* given why Congress should not abolish, and the sole evidence that if it did, such abolition would be a violation of "good faith," is that "*slavery still continues in those states*,"—thus explicitly admitting, that if slavery did *not* "still continue" in those States, Congress *could* abolish it in the District. The same admission is made also in the *premises*, which state that slavery existed in those states *at the time of the cession*, &c. Admitting that if it had *not* existed there then, but had grown up in the District under *United States' laws*, Congress might constitutionally abolish it. Or that if the ceded parts of those states had been the *only* parts in which slaves were held under their laws, Congress might have abolished in such a contingency also. The cession in that case leaving no slaves in those states,—no "good faith," would be "implied" in it, nor any "violated," by an act of abolition. The principle of the resolution makes this further admission, that if Maryland and Virginia should at once abolish their slavery, Congress might at once abolish it in the District. The principle goes even further than this, and *requires* Congress in such case to abolish slavery in the District "by the *good faith implied* in the cession and acceptance of the territory." Since according to the spirit and scope of the resolution, this "implied good faith" of Maryland and Virginia in making the cession, was that Congress would do nothing within the District which should go to counteract the policy, or bring into disrepute the "institutions," or call in question the usages, or even in any way ruffle the prejudices of those states, or do what *they* might think would unfavorably bear upon their interests; *themselves* of course being the judges.

But let us dissect another limb of the resolution. What is to be understood by "that good faith which was IMPLIED?" It is of course an admission that such a condition was not *expressed* in the acts of cession—that in their *terms* there is nothing restricting the power of Congress on the subject of slavery in the District—not a *word* alluding to it, nor one inserted with such an *intent*. This "implied faith," then, rests on no clause or word in the United States' Constitution, or in the acts of cession, or in the acts of Congress accepting the cession, nor does it rest on any declarations of the legislatures of Maryland and Virginia made at the time, or in that generation, nor on any *act* of theirs, nor on any declaration of the *people* of those states, nor on the testimony of the Washingtons, Jeffersons, Madisons,

Chaces, Martins, and Jennifers, of those states and times. The assertion rests *on itself alone!* Mr. Clay and the other senators who voted for the resolution, *guess* that Maryland and Virginia *supposed* that Congress would by no means *use* the power given them by the constitution, except in such ways as would be well pleasing in the eyes of those states; especially as one of them was the "Ancient Dominion!" And now after the lapse of half a century, this *assumed expectation* of Maryland and Virginia, the existence of which is mere matter of conjecture with the 36 senators, is conjured up and duly installed upon the judgment-seat of final appeal, before whose nod constitutions are to flee away, and with whom, solemn grants of power and explicit guaranties are when weighed in the balance, altogether lighter than vanity!

But let us survey it in another light. Why did Maryland and Virginia leave so much to be "*implied*?" Why did they not in some way *express* what lay so near their hearts? Had their vocabulary run so low that a single word could not be eked out for the occasion? Or were those states so bashful of a sudden that they dare not speak out and tell what they wanted? Or did they take it for granted that Congress would always act in the premises according to their wishes, and that too, without their *making known* their wishes? If, as honorable senators tell us, Maryland and Virginia did verily travail with such abounding *faith*, why brought they forth no *works*?

It is as true in *legislation* as in religion, that the only *evidence* of "faith" is *works*, and that "faith" *without* works is *dead*, i.e. has no power. But here, forsooth, a blind implication with nothing *expressed*, an "implied" *faith* without works, is *omnipotent*. Mr. Clay is lawyer enough to know that even a *senatorial hypothesis* as to *what must have been the understanding* of Maryland and Virginia about congressional exercise of constitutional power, *abrogates no grant*, and that to plead it in a court of law, would be of small service except to jostle "their honors" gravity! He need not be told that the constitution gives Congress "power to exercise exclusive legislation in all cases whatsoever over such District." Nor that the legislatures of Maryland and Virginia constructed their acts of cession with this clause *before their eyes*, and that both of them declared those acts made "in *pursuance*" of said clause. Those states were aware that the United States in their constitution had left nothing to be "*implied*" as to the power of

Congress over the District;—an admonition quite sufficient one would think to put them on their guard, and induce them to eschew vague implications and resort to *stipulations*. Full well did they know also that these were times when, in matters of high import, *nothing* was left to be "implied." The colonies were then panting from a twenty years' conflict with the mother country, about bills of rights, charters, treaties, constitutions, grants, limitations, and *acts of cession*. The severities of a long and terrible discipline had taught them to guard at all points *legislative grants*, that their exact import and limit might be self-evident—leaving no scope for a blind "faith," that *somehow* in the lottery of chances there would be no blanks, but making all sure by the use of explicit terms, and wisely chosen words, and *just enough* of them. The Constitution of the United States with its amendments, those of the individual states, the national treaties, the public documents of the general and state governments at that period, show the universal conviction of legislative bodies, that when great public interests were at stake, nothing should be left to be "implied."

Further: suppose Maryland and Virginia had expressed their "implied faith" in *words*, and embodied it in their acts of cession as a proviso, declaring that Congress should not "exercise exclusive legislation in *all* cases whatsoever over the District," but that the "case" of *slavery* should be an exception: who does not know that Congress, if it had accepted the cession on those terms, would have violated the Constitution; and who that has ever studied the free mood of those times in its bearings on slavery—proofs of which are given in scores on the preceding pages—can for an instant believe that the people of the United States would have altered their Constitution for the purpose of providing for slavery an inviolable sanctuary; that when driven in from its outposts, and everywhere retreating discomfited before the march of freedom, it might be received into everlasting habitations on the common homestead and hearth-stone of this free republic? Besides, who can believe that Virginia made such a condition, or cherished such a purpose, when at that very moment, Washington, Jefferson, Wythe, Patrick Henry St. George Tucker, and almost all her illustrious men, were advocating the abolition of slavery by law. When Washington had said, two years before, Maryland and Virginia "must have laws for the gradual abolition of slavery and at a period *not remote*;" and when Jefferson in his letter to Price, three years before the cession, had

said, speaking of Virginia, "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression—a conflict in which THE SACRED SIDE IS GAINING DAILY RECRUITS;" when voluntary emancipations on the soil were then progressing at the rate of between one and two thousand annually, (See Judge Tucker's "Dissertation on Slavery," p. 73;) when the public sentiment of Virginia had undergone, and was undergoing so mighty a revolution that the idea of the continuance of slavery as a permanent system could not be *tolerated*, though she then contained about half the slaves in the Union. Was this the time to stipulate for the *perpetuity* of slavery under the exclusive legislation of Congress? and that too at the *same* session of Congress when *every one* of her delegation voted for the abolition of slavery in the North West Territory; a territory which she had herself ceded to Congress, and along with it had surrendered her jurisdiction over many of her citizens, inhabitants of that territory, who held slaves there—and whose slaves were emancipated by that act of Congress, in which all her delegation with one accord participated?

Now in view of the universal belief then prevalent, that slavery in this country was doomed to short life, and especially that in Maryland and Virginia it would be *speedily* abolished—are we to be told that these states *designed* to bind Congress *never* to terminate it? Are we to adopt the monstrous conclusion that this was the *intent* of the Ancient Dominion—thus to *bind* the United States by an "implied faith," and that when the United States *accepted* the cession, she did solemnly thus plight her troth, and that Virginia did then so *understand* it? Verily one would think that honorable senators supposed themselves deputed to do our *thinking* as well as our legislation, or rather, that they themselves were absolved from such drudgery by virtue of their office!

Another absurdity of this dogma about "implied faith" is, that where there was no power to exact an *express* pledge, there was none to demand an *implied* one, and where there was no power to *give* the one, there was none to give the *other*. We have shown already that Congress could not have accepted the cession with such a condition. To have signed away a part of its constitutional grant of power would have been a *breach* of the Constitution. Further, the Congress which accepted the cession was

competent to pass a resolution pledging itself not to *use all* the power over the District committed to it by the Constitution. But here its power ended. Its resolution would only bind *itself*. Could it bind the *next* Congress by its authority? Could the members of one Congress say to the members of another, because we do not choose to exercise all the authority vested in us by the Constitution, therefore you *shall* not? This would have been a prohibition to do what the Constitution gives power to do. Each successive Congress would still have gone to the Constitution for its power, brushing away in its course the cobwebs stretched across its path by the officiousness of an impertinent predecessor. Again, the legislatures of Virginia and Maryland, had no power to bind Congress, either by an express or an implied pledge, never to abolish slavery in the District. Those legislatures had no power to bind *themselves* never to abolish slavery within their own territories—the ceded parts included. Where then would they get power to bind *another* not to do what they had no power to bind themselves not to do? If a legislature could not in this respect control the successive legislatures of its own State, could it control the successive Congresses of the United States?

But perhaps we shall be told, that the "implied faith" in the acts of cession of Maryland and Virginia was *not* that Congress should *never* abolish slavery in the District, but that it should not do it until *they* had done it within their bounds! Verily this "faith" comes little short of the faith of miracles! "A good rule that works both ways." First, Maryland and Virginia have "good faith" that Congress will *not* abolish until *they* do; and then just as "good faith" that Congress *will* abolish *when* they do! Excellently accommodated! Did those States suppose that Congress would legislate over the national domain, the common jurisdiction of *all*, for Maryland and Virginia alone? And who, did they suppose, would be judges in the matter?—themselves merely? or the whole Union?

This "good faith implied in the cession" is no longer of doubtful interpretation. The principle at the bottom of it, when fairly stated, is this:—That the Government of the United States are bound in "good faith" to do in the District of Columbia, without demurring, just what and when, Maryland and Virginia do in their own States. In short, that the general government is eased of all the burdens of legislation within its exclusive jurisdiction, save

that of hiring a scrivener to copy off the acts of the Maryland and Virginia legislatures as fast as they are passed, and engross them, under the title of "Laws of the United States, for the District of Columbia!" A slight additional expense would also be incurred in keeping up an express between the capitols of those States and Washington city, bringing Congress from time to time its "*instructions*" from head quarters—instructions not to be disregarded without a violation of that, "good faith implied in the session," &c.

This sets in strong light the advantages of "our glorious Union," if the doctrine of Mr. Clay and the thirty-six Senators be orthodox. The people of the United States have been permitted to set up at their own expense, and on their own territory, two great *sounding boards* called "Senate Chamber" and "Representatives' Hall," for the purpose of sending abroad "by authority" *national echoes* of *state* legislation!—permitted also to keep in their pay a corps of pliant *national* musicians, with peremptory instructions to sound on any line of the staff according as Virginia and Maryland may give the *sovereign* key note!

Though this may have the seeming of mere raillery, yet an analysis of the resolution and of the discussions upon it, will convince every fair mind that it is but the legitimate carrying out of the *principle* pervading both. They proceed virtually upon the hypothesis that the will and pleasure of Virginia and Maryland are *paramount* to those of the *Union*. If the main design of setting apart a federal district had been originally the accommodation of Maryland, Virginia, and the south, with the United States as an *agent* to consummate the object, there could hardly have been higher assumption or louder vaunting. The sole object of *having* such a District was in effect totally perverted in the resolution of Mr. Clay, and in the discussions of the entire southern delegation, upon its passage. Instead of taking the ground, that the benefit of the whole Union was the sole *object* of a federal district, that it was designed to guard and promote the interests of *all* the states, and that it was to be legislated over *for this end*—the resolution proceeds upon an hypothesis *totally the reverse*. It takes a single point of *state* policy, and exalts it above NATIONAL interests, utterly overshadowing them; abrogating national *rights*; making void a clause of the Constitution; humbling the general government into a subject—crouching for favors to a

superior, and that too *on its own exclusive jurisdiction*. All the attributes of sovereignty vested in Congress by the Constitution it impales upon the point of an alleged *implication*. And this is Mr. Clay's peace-offering, to appease the lust of power and the ravengings of state encroachment! A "*compromise*," forsooth! that sinks the general government on *its own territory* into a mere colony, with Virginia and Maryland for its "mother country!" It is refreshing to turn from these shallow, distorted constructions and servile cringings, to the high bearing of other southern men in other times; men, who in their character of legislators and lawyers, disdained to accommodate their interpretations of constitutions and charters to geographical lines, or to bend them to the purposes of a political canvass. In the celebrated case of *Cohens vs. the State of Virginia*, Hon. William Pinkney, late of Baltimore, and Hon. Walter Jones, of Washington city, with other eminent constitutional lawyers, prepared an elaborate written opinion, from which the following is an extract: "Nor is there any danger to be apprehended from allowing to Congressional legislation with regard to the District of Columbia, its FULLEST EFFECT. Congress is responsible to the States, and to the people for that legislation. It is in truth the legislation of the states over a district placed under their control for *their own benefit*, not for that of the District, except as the prosperity of the District is involved, and necessary to the *general advantage*."—[Life of Pinkney, p. 612.]

The profound legal opinion, from which this is an extract, was elaborated at great length many years since, by a number of the most distinguished lawyers in the United States, whose signatures are appended to it. It is specific and to the point. It asserts, 1st, that Congressional legislation over the District, is "the legislation of the *States* and the *people*," (not of *two* states, and a mere *fraction* of the people.) 2d, "Over a District placed under *their* control," i.e. under the control of the *whole* of the States, not under the control of *two twenty-sixths* of them. 3d, That it was thus put under their control "*for THEIR OWN benefit*," the benefit of *all* the States *equally*; not to secure special benefits to Maryland and Virginia, (or what it might be *conjectured* they would regard as benefits.) 4th, It concludes by asserting that the design of this exclusive control of Congress over the District was "not for the benefit of the *District*," except as that is *connected* with, and a *means of promoting* the *general* advantage. If this is the case with the *District*, which is *directly* concerned, it is pre-eminently so with Maryland

and Virginia, who are but *indirectly* interested, and would be but remotely affected by it. The argument of Mr. Madison in the Congress of '89, an extract from which has been given on a preceding page, lays down the same principle; that though any matter "*may be a local affair, yet if it involves national EXPENSE OR SAFETY, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government.*" Cong. Reg. vol. 1. p. 310, 11.

But these are only the initiatory absurdities of this "good faith *implied*." The thirty-six senators aptly illustrate the principle, that error not only conflicts with truth, but is generally at issue with itself. For if it would be a violation of "good faith" to Maryland and Virginia, for Congress to abolish slavery in the District, it would be *equally* a violation for Congress to do it *with the consent*, or even at the earnest and unanimous petition of the people of the District: yet for years it has been the southern doctrine, that if the people of the District demand of Congress relief in this respect, it has power, as their local legislature, to grant it, and by abolishing slavery there, carry out the will of the citizens. But now new light has broken in! The optics of the thirty-six have pierced the millstone with a deeper insight, and discoveries thicken faster than they can be telegraphed! Congress has no power, O no, not a modicum, to help the slaveholders of the District, however loudly they may clamor for it. The southern doctrine, that Congress is to the District a mere local Legislature to do its pleasure, is tumbled from the genitive into the vocative! Hard fate—and that too at the hands of those who begat it! The reasonings of Messrs. Pinckney, Wise, and Leigh, are now found to be wholly at fault, and the chancleer rhetoric of Messrs. Glascock and Garland stalks featherless and crest-fallen. For, Mr. Clay's resolution sweeps by the board all those stereotyped common-places, as "Congress a local Legislature," "consent of the District," "bound to consult the wishes of the District," &c. &c., which for the last two sessions of Congress have served to eke out scanty supplies. It declares, that *as slavery existed in Maryland and Virginia at the time of the cession, and as it still continues in both those states, it could not be abolished in the District without a violation of 'that good faith', &c.*

But let us see where this principle of the *thirty-six* will lead us. If "implied faith" to Maryland and Virginia *restrains* Congress from the abolition of slavery in the District, it *requires* Congress to do in the District what those states have done within their bounds, i.e., restrain *others* from abolishing it. Upon the same principle Congress is *bound*, by the doctrine of Mr. Clay's resolution, to *prohibit emancipation* within the District. There is no *stopping place* for this plighted "faith." Congress must not only refrain from laying violent hands on slavery, *itself*, and see to it that the slaveholders themselves do not, but it is bound to keep the system up to the Maryland and Virginia standard of vigor!

Again, if the good faith of Congress to Virginia and Maryland requires that slavery should exist in the District, while it exists in those states, it requires that it should exist there *as* it exists in those states. If to abolish *every* form of slavery in the District would violate good faith, to abolish *the* form existing in those states, and to substitute a totally different one, would also violate it. The Congressional "good faith" is to be kept not only with *slavery*, but with the *Maryland and Virginia systems* of slavery. The faith of those states not being in the preservation of *a* system, but of *their* system; otherwise Congress, instead of *sustaining*, would counteract their policy—principles would be brought into action there conflicting with their system, and thus the true spirit of the "implied" pledge would be violated. On this principle, so long as slaves are "chattels personal" in Virginia and Maryland, Congress could not make them *real estate*, inseparable from the soil, as in Louisiana; nor could it permit slaves to read, nor to worship God according to conscience; nor could it grant them trial by jury, nor legalize marriage; nor require the master to give sufficient food and clothing; nor prohibit the violent sundering of families—because such provisions would conflict with the existing slave laws of Virginia and Maryland, and thus violate the "good faith implied," &c. So the principle of the resolution binds Congress in all these particulars: 1st. Not to abolish slavery in the District *until* Virginia and Maryland abolish. 2d. Not to abolish any *part* of it that exists in those states. 3d. Not to abolish any *form* or *appendage* of it still existing in those states. 4th. *To abolish* when they do. 5th. To increase or abate its rigor *when, how, and as* the same are modified by those states. In a word, Congressional action in the District is to float passively in the wake of legislative action on the subject in those states.

But here comes a dilemma. Suppose the legislation of those states should steer different courses—then there would be *two* wakes! Can Congress float in both? Yea, verily! Nothing is too hard for it! Its obsequiousness equals its "power of legislation in *all* cases whatsoever." It can float *up* on the Virginia tide, and ebb down on the Maryland at the same time. What Maryland does, Congress will do in the Maryland part. What Virginia does, Congress will do in the Virginia part. Though Congress might not always be able to run at the bidding of both *at once*, especially in different directions, yet if it obeyed orders cheerfully, and "kept in its place," according to its "good faith implied," impossibilities might not be rigidly exacted. True, we have the highest sanction for the maxim that no *man* can serve two masters—but if "corporations have *no* souls," analogy would absolve Congress on that score, or at most give it only *a very small soul*—not large enough to be at all in the way, as an *exception* to the universal rule laid down to the maxim!

In following out the absurdities of this "*implied* good faith," it will be seen at once that the doctrine of Mr. Clay's Resolution extends to *all the subjects of legislation* existing in Maryland and Virginia, which exist also within the District. Every system, "institution," law, and established usage there, is placed beyond Congressional control equally with slavery, and by the same "implied faith." The abolition of the lottery system in the District as an *immorality*, was a flagrant breach of this "good faith" to Maryland and Virginia, as the system "still continued in those states." So to abolish imprisonment for debt, and capital punishment, to remodel the bank system, the power of corporations, the militia law, laws of limitation, &c., in the District, *unless Virginia and Maryland took the lead*, would violate the "good faith implied in the cession," &c.

That in the acts of cession no such "good faith" was "implied by Virginia and Maryland" as is claimed in the Resolution, we argue from the fact, that in 1781 Virginia ceded to the United States all her northwest territory, with the special proviso that her citizens inhabiting that territory should "have their *possessions* and *titles* confirmed to them, and be *protected* in the enjoyment of their *rights* and liberties." (See Journals of Congress vol. 9, p. 63.) The cession was made in the form of a deed, and signed by Thomas Jefferson, Samuel Hardy, Arthur Lee, and James Monroe. Many of these

inhabitants *held slaves*. Three years after the cession, the Virginia delegation in Congress *proposed* the passage of an ordinance which should abolish slavery, in that territory, and declare that it should never thereafter exist there. All the members of Congress from Virginia and Maryland voted for this ordinance. Suppose some member of Congress had during the passage of the ordinance introduced the following resolution: "Resolved, That when the northwest territory was ceded by Virginia to the United States, domestic slavery existed in that State, including the ceded territory, and as it still continues in that State, it could not be abolished within the territory without a violation of that good faith, which was implied in the cession and in the acceptance of the territory." What would have been the indignant response of Grayson, Griffin, Madison, and the Lees, in the Congress of '87, to such a resolution, and of Carrington, Chairman of the Committee, who reported the ratification of the ordinance in the Congress of '89, and of Page and Parker, who with every other member of the Virginia delegation supported it?

But to enumerate all the absurdities into which the thirty-six Senators have plunged themselves, would be to make a quarto inventory. We decline the task; and in conclusion, merely add that Mr. Clay in presenting this resolution, and each of the thirty-six Senators who voted for it, entered on the records of the Senate, and proclaimed to the world, a most unworthy accusation against the MILLIONS of American citizens who have during nearly half a century petitioned the national legislature to abolish slavery in the District of Colombia,—charging them either with the ignorance or the impiety of praying the nation to violate its "PLIGHTED FAITH." The resolution virtually indicts at the bar of public opinion, and brands with odium, all the Manumission Societies, the *first* petitioners for the abolition of slavery in the District, and for a long time the only ones, petitioning from year to year through evil report and good report, still petitioning, by individual societies and in their national conventions.

But as if it were not enough to table the charge against such men as Benjamin Rush, William Rawle, John Sergeant, Robert Vaux, Cadwallader Colden, and Peter A. Jay,—to whom we may add Rufus King, James Hillhouse, William Pinkney, Thomas Addis Emmett, Daniel D. Tompkins, De Witt Clinton, James Kent, and Daniel Webster, besides eleven hundred

citizens of the District itself; headed by their Chief Justice and judges—even the sovereign States of Pennsylvania, New-York, Massachusetts, and Vermont, whose legislatures have either memorialized Congress to abolish slavery in the District, or instructed their Senators to move such a measure, must be gravely informed by Messrs. Clay, Norvell, Niles, Smith, Pierce, Benton, Black, Tipton, and other honorable Senators, either that their perception is so dull, they know not whereof they affirm, or that their moral sense is so blunted they can demand without compunction a violation of the nation's faith!

We have spoken already of the concessions unwittingly made in this resolution to the true doctrine of Congressional power over the District. For that concession, important as it is, we have small thanks to render. That such a resolution, passed with such an *intent*, and pressing at a thousand points on relations and interests vital to the free states, should be hailed, as it has been, by a portion of the northern press as a "compromise" originating in deference to northern interests, and to be received by us as a free-will offering of disinterested benevolence, demanding our gratitude to the mover,—may well cover us with shame. We deserve the humiliation and have well earned the mockery. Let it come!

If, after having been set up at auction in the public sales-room of the nation, and for thirty years, and by each of a score of "compromises," treacherously knocked off to the lowest bidder, and that without money and without price, the North, plundered and betrayed, *will not*, in this her accepted time, consider the things that belong to her peace before they are hidden from her eyes, then let her eat of the fruit of her own way, and be filled with her own devices! Let the shorn and blinded giant grind in the prison-house of the Philistines, till taught the folly of intrusting to Delilahs the secret and the custody of his strength.

Have the free States bound themselves by an oath never to profit by the lessons of experience? If lost to *reason*, are they dead to *instinct* also? Can nothing rouse them to cast about for self preservation? And shall a life of tame surrenders be terminated by suicidal sacrifice?

A "COMPROMISE!" Bitter irony! Is the plucked and hood-winked North to be wheedled by the sorcery of another Missouri compromise? A

compromise in which the South gained all, and the North lost all, and lost it for ever. A compromise which embargoed the free laborer of the North and West, and clutched at the staff he leaned upon, to turn it into a bludgeon and fell him with its stroke. A compromise which wrested from liberty her boundless birthright domain, stretching westward to the sunset, while it gave to slavery loose reins and a free course, from the Mississippi to the Pacific.

The resolution, as it finally passed, is here inserted. The original Resolution, as moved by Mr. Clay, was inserted at the head of this postscript with the impression that it was the *amended* form. It will be seen however, that it underwent no material modification.

"Resolved, That the interference by the citizens of any of the states, with the view to the abolition of slavery in the District, is endangering the rights and security of the people of the District; and that any act or measure of Congress designed to abolish slavery in the District, would be a violation of the faith implied in the cessions by the states of Virginia and Maryland, a just cause of alarm to the people of the slaveholding states, and have a direct and inevitable tendency to disturb and endanger the Union."

The vote upon the Resolution stood as follows:

Yeas.—Messrs. Allen, Bayard, Benton, Black, Buchanan, Brown, Calhoun, Clay, of Alabama, Clay, of Kentucky, Clayton, Crittenden, Cuthbert, Fulton, Grundy, Hubbard, King, Lumpkin, Lyon, Nicholas, Niles, Norvell, Pierce, Preston, Rives, Roane, Robinson, Sevier, Smith, of Connecticut, Strange, Tallmadge, Tipton, Walker, White, Williams, Wright, Young.

Nays.—Messrs. DAVIS, KNIGHT, McKEAN, MORRIS, PRENTISS, RUGGLES, SMITH, of Indiana, SWIFT, WEBSTER.

THE

ANTI-SLAVERY EXAMINER

No. 5

* * * * *

THE

POWER OF CONGRESS

OVER THE

DISTRICT OF COLUMBIA.

* * * * *

ORIGINALLY PUBLISHED IN THE NEW-YORK EVENING POST,
UNDER THE SIGNATURE OF "WYTHE."

* * * * *

WITH ADDITIONS BY THE AUTHOR.

* * * * *

NEW-YORK:

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY
NO. 143 NASSAU-STREET.

1838.

* * * * *

This periodical contains 3-1/2 sheets—Postage under 100 miles, 6 cts., over 100, 10 cts.

POWER OF CONGRESS OVER THE DISTRICT OF COLUMBIA.

A civilized community presupposes a government of law. If that government be a republic, its citizens are the sole *sources*, as well as the *subjects* of its power. Its constitution is their bill of directions to their own agents—a grant authorizing the exercise of certain powers, and prohibiting that of others. In the Constitution of the United States, whatever else may be obscure, the clause granting power to Congress over the Federal District may well defy misconstruction. Art. 1, Sec. 8, Clause 18: "The Congress shall have power to exercise exclusive legislation, *in all cases whatsoever*, over such District." Congress may make laws for the District "in all cases," not of all *kinds*; not all *laws* whatsoever, but laws "in all cases whatsoever." The grant respects the *subjects* of legislation, *not* the moral nature of the laws. The law-making power every where is subject to *moral* restrictions, whether limited by constitutions or not. No legislature can authorize

murder, nor make honesty penal, nor virtue a crime, nor exact impossibilities. In these and similar respects, the power of Congress is held in check by principles, existing in the nature of things, not imposed by the Constitution, but presupposed and assumed by it. The power of Congress over the District is restricted only by those principles that limit ordinary legislation, and, in some respects, it has even wider scope.

In common with the legislatures of the States, Congress cannot constitutionally pass *ex post facto* laws in criminal cases, nor suspend the writ of habeas corpus, nor pass a bill of attainder, nor abridge the freedom of speech and of the press, nor invade the right of the people to be secure in their persons, houses, papers, and effects, nor enact laws respecting an establishment of religion. These are general limitations. Congress cannot do these things *any where*. The exact import, therefore, of the clause "in all cases whatsoever," is, *on all subjects within the appropriate sphere of legislation*. Some legislatures are restrained by constitutions, from the exercise of powers strictly within the proper sphere of legislation. Congressional power over the District has no such restraint. It traverses the whole field of legitimate legislation. All the power which any legislature has within its own jurisdiction, Congress holds over the District of Columbia.

It has been objected that the clause in question respects merely police regulations, and that its sole design was to enable Congress to protect itself against popular tumults. But if the convention that framed the Constitution aimed to provide for a *single* case only, why did they provide for "*all* cases whatsoever?" Besides, this clause was opposed in many of the state conventions, because the grant of power was not restricted to police regulations *alone*. In the Virginia Convention, George Mason, the father of the Virginia Constitution, Patrick Henry, Mr. Grayson, and others, assailed it on that ground. Mr. Mason said, "This clause gives an unlimited authority in every possible case within the District. He would willingly give them exclusive power as far as respected the police and good government of the place, but he would give them no more." Mr. Grayson said, that control over the *police* was all-sufficient, and "that the Continental Congress never had an idea of exclusive legislation in all cases." Patrick Henry said, "Is it consistent with any principle of prudence or good policy, to grant *unlimited*,

unbounded authority?" Mr. Madison said in reply: "I did conceive that the clause under consideration was one of those parts which would speak its own praise. When any power is given, its delegation necessarily involves authority to make laws to execute it.... The powers which are found necessary to be given, are therefore delegated *generally*, and particular and minute specification is left to the Legislature.... It is not within the limits of human capacity to delineate on paper all those particular cases and circumstances, in which legislation by the general legislature, would be necessary." Governor Randolph said: "Holland has no ten miles square, but she has the Hague where the deputies of the States assemble. But the influence which it has given the province of Holland, to have the seat of government within its territory, subject in some respects to its control, has been injurious to the other provinces." The wisdom of the convention is therefore manifest in granting to Congress exclusive jurisdiction over the place of their session. [*Deb. Va. Con.*, p. 320.] In the forty-third number of the "Federalist," Mr. Madison says: "The indispensable necessity of *complete* authority at the seat of government, carries its own evidence with it."

Finally, that the grant in question is to be interpreted according to the obvious import of its *terms*, is proved by the fact, that Virginia proposed an amendment to the United States' Constitution at the time of its adoption, providing that this clause "should be so construed as to give power only over the *police and good government* of said District," *which amendment was rejected*.

The former part of the clause under consideration, "Congress shall have power to exercise *exclusive* legislation," gives *sole* jurisdiction, and the latter part, "in all cases whatsoever," defines the *extent* of it. Since, then, Congress is the *sole* legislature within the District, and since its power is limited only by the checks common to all legislatures, it follows that what the law-making power is intrinsically competent to do *any* where, Congress is competent to do in the District of Columbia. Having disposed of preliminaries, we proceed to state and argue the *real question* at issue.

**IS THE LAW-MAKING POWER COMPETENT TO
ABOLISH SLAVERY WHEN NOT RESTRICTED IN THAT**

PARTICULAR BY CONSTITUTIONAL PROVISIONS—or, IS THE ABOLITION OF SLAVERY WITHIN THE APPROPRIATE SPHERE OF LEGISLATION?

In every government, absolute sovereignty exists *somewhere*. In the United States it exists primarily with the *people*, and *ultimate* sovereignty *always* exists with them. In each of the States, the legislature possesses a *representative* sovereignty, delegated by the people through the Constitution—the people thus committing to the legislature a portion of their sovereignty, and specifying in their constitutions the amount and the conditions of the grant. That the *people* in any state where slavery exists, have the power to abolish it, none will deny. If the legislature have not the power, it is because *the people* have reserved it to themselves. Had they lodged with the legislature "power to exercise exclusive legislation in all cases whatsoever," they would have parted with their sovereignty over the legislation of the State, and so far forth the legislature would have become *the people*, clothed with all their functions, and as such competent, *during the continuance of the grant*, to do whatever the people might have done before the surrender of their power: consequently, they would have the power to abolish slavery. The sovereignty of the District of Columbia exists *somewhere*—where is it lodged? The citizens of the District have no legislature of their own, no representation in Congress, and no political power whatever. Maryland and Virginia have surrendered to the United States their "full and absolute right and entire sovereignty," and the people of the United States have committed to Congress by the Constitution, the power to "exercise exclusive legislation in all cases whatsoever over such District."

Thus, the sovereignty of the District of Columbia, is shown to reside solely in the Congress of the United States; and since the power of the people of a state to abolish slavery within their own limits, results from their entire sovereignty within that state, so the power of Congress to abolish slavery in the District, results from its entire *sovereignty* within the District. If it be objected that Congress can have no more power over the District, than was held by the legislatures of Maryland and Virginia, we ask what clause in the constitution graduates the power of Congress by the standard of a state legislature? Was the United States' constitution worked into its present

shape under the measuring line and square of Virginia and Maryland? and is its power to be bevelled down till it can run in the grooves of state legislation? There is a deal of prating about constitutional power over the District, as though Congress were indebted for it to Maryland and Virginia. The powers of those states, whether few or many, prodigies or nullities, have nothing to do with the question. As well thrust in the powers of the Grand Lama to join issue upon, or twist papal bulls into constitutional tether, with which to curb congressional action. The Constitution of the United States gives power to Congress, and takes it away, and *it alone*. Maryland and Virginia adopted the Constitution *before* they ceded to the United States the territory of the District. By their acts of cession, they abdicated their own sovereignty over the District, and thus made room for that provided by the United States' constitution, which sovereignty was to commence as soon as a cession of territory by states, and its acceptance by Congress, furnished a sphere for its exercise. That the abolition of slavery is within the sphere of legislation, I argue,

2. FROM THE FACT, THAT SLAVERY, AS A LEGAL SYSTEM, IS THE CREATURE OF LEGISLATION. The law, by *creating* slavery, not only affirmed its *existence* to be within the sphere and under the control of legislation, but equally, the *conditions* and *terms* of its existence, and the *question* whether or not it *should* exist. Of course legislation would not travel *out* of its sphere, in abolishing what is *within* it, and what was recognised to be within it, by its own act. Cannot legislatures repeal their own laws? If law can take from a man his rights, it can give them back again. If it can say, "your body belongs to your neighbor," it can say, "it belongs to *yourself*." If it can annul a man's right to himself, held by express grant from his Maker, and can create for another an *artificial* title to him, can it not annul the artificial title, and leave the original owner to hold himself by his original title?

3. THE ABOLITION OF SLAVERY HAS ALWAYS BEEN CONSIDERED WITHIN THE APPROPRIATE SPHERE OF LEGISLATION. Almost every civilized nation has abolished slavery by law. The history of legislation since the revival of letters, is a record crowded with testimony to the universally admitted competency of the law-making power to abolish slavery. It is so manifestly an attribute not merely

of absolute sovereignty, but even of ordinary legislation, that the competency of a legislature to exercise it, may well nigh be reckoned among the legal axioms of the civilized world. Even the night of the dark ages was not dark enough to make this invisible.

The Abolition decree of the great council of England was passed in 1102. The memorable Irish decree, "that all the English slaves in the whole of Ireland, be immediately emancipated and restored to their former liberty," was issued in 1171. Slavery in England was abolished by a general charter of emancipation in 1381. Passing over many instances of the abolition of slavery by law, both during the middle ages and since the reformation, we find them multiplying as we approach our own times. In 1776 slavery was abolished in Prussia by special edict. In St. Domingo, Cayenne, Guadeloupe, and Martinique, in 1794, where more than 690,000 slaves were emancipated by the French government. In Java, 1811; in Ceylon, 1815; in Buenos Ayres, 1816; in St. Helena, 1819; in Colombia, 1821; by the Congress of Chili in 1821; in Cape Colony, 1823; in Malacca, 1825; in the southern provinces of Birmah, 1826; in Bolivia, 1826; in Peru, Guatemala, and Monte Video, 1828, in Jamaica, Barbadoes, Bermudas, Bahamas, the Mauritius, St. Christophers, Nevis, the Virgin Islands, Antigua, Montserrat, Dominica, St. Vincents, Grenada, Berbice, Tobago, St. Lucia, Trinidad, Honduras, Demarara, and the Cape of Good Hope, on the 1st of August, 1834. But waving details, suffice it to say, that England, France, Spain, Portugal, Sweden, Denmark, Austria, Prussia, and Germany, have all and often given their testimony to the competency of the legislative power to abolish slavery. In our own country, the Legislature of Pennsylvania passed an act of abolition in 1780, Connecticut, in 1784; Rhode Island, 1784; New-York, 1799; New-Jersey, in 1804; Vermont, by Constitution, in 1777; Massachusetts, in 1780; and New Hampshire, in 1784.

When the competency of the law-making power to abolish slavery, has thus been recognised every where and for ages, when it has been embodied in the highest precedents, and celebrated in the thousand jubilees of regenerated liberty, is it an achievement of modern discovery, that such a power is a nullity?—that all these acts of abolition are void, and that the

millions disenthralled by them, are, either themselves or their posterity, still legally in bondage?

4. LEGISLATIVE POWER HAS ABOLISHED SLAVERY IN ITS PARTS. The law of South Carolina prohibits the working of slaves more than fifteen hours in the twenty-four. In other words, it takes from the slaveholder his power over nine hours of the slave's time daily; and if it can take nine hours it may take twenty-four. The laws of Georgia prohibit the working of slaves on the first day of the week; and if they can do it for the first, they can for the six following.

The law of North Carolina prohibits the "immoderate" correction of slaves. If it has power to prohibit immoderate correction, it can prohibit *moderate* correction—all correction, which would be virtual emancipation; for, take from the master the power to inflict pain, and he is master no longer. Cease to ply the slave with the stimulus of fear; and he is free.

The Constitution of Mississippi gives the General Assembly power to make laws "to oblige the owners of slaves to *treat them with humanity*." The Constitution of Missouri has the same clause, and an additional one making it the DUTY of the legislature to pass such laws as may be necessary to secure the *humane* treatment of the slaves. This grant to those legislatures, empowers them to decide what *is* and what is *not* "humane treatment." Otherwise it gives no "power"—the clause is mere waste paper, and flouts in the face of a befooled legislature. A clause giving power to require "humane treatment" covers all the *particulars* of such treatment—gives power to exact it in *all respects*—*requiring* certain acts, and *prohibiting* others—maiming, branding, chaining together, separating families, floggings for learning the alphabet, for reading the Bible, for worshiping God according to conscience—the legislature has power to specify each of these acts—declare that it is not "*humane* treatment," and PROHIBIT it.—The legislature may also believe that driving men and women into the field, and forcing them to work without pay, is not "humane treatment," and being Constitutionally bound "to *oblige*" masters to practise "humane treatment"—they have the power to *prohibit such* treatment, and are bound to do it.

The law of Louisiana makes slaves real estate, prohibiting the holder, if he be also a *land* holder, to separate them from the soil.^A If it has power to prohibit the sale *without* the soil, it can prohibit the sale *with* it; and if it can prohibit the *sale* as property, it can prohibit the *holding* as property. Similar laws exist in the French, Spanish, and Portuguese colonies.

^A: Virginia made slaves real estate by a law passed in 1705. (*Beverly's Hist. of Va.*, p. 98.) I do not find the precise time when this law was repealed, probably when Virginia became the chief slave breeder for the cotton-growing and sugar-planting country, and made young men and women "from fifteen to twenty-five" the main staple production of the State.

The law of Louisiana requires the master to give his slaves a certain amount of food and clothing. If it can oblige the master to give the slave *one* thing, it can oblige him to give him another: if food and clothing, then wages, liberty, his own body.

By the laws of Connecticut, slaves may receive and hold property, and prosecute suits in their own name as plaintiffs: [This last was also the law of Virginia in 1795. See Tucker's "Dissertation on Slavery," p. 73.] There were also laws making marriage contracts legal, in certain contingencies, and punishing infringements of them, ["*Reeve's Law of Baron and Femme*," p. 340-1.] Each of the laws enumerated above, does, *in principle*, abolish slavery; and all of them together abolish it in fact. True, not as a *whole*, and at a *stroke*, nor all in one place; but in its *parts*, by piecemeal, at divers times and places; thus showing that the abolition of slavery is within the boundary of legislation.

5. THE COMPETENCY OF THE LAW-MAKING POWER TO ABOLISH SLAVERY, HAS BEEN RECOGNIZED BY ALL THE SLAVEHOLDING STATES, EITHER DIRECTLY OR BY IMPLICATION. Some States recognize it in their *Constitutions*, by giving the legislature power to emancipate such slaves as may "have rendered the state some distinguished service," and others by express prohibitory restrictions. The Constitution of Mississippi, Arkansas, and other States, restrict the power of the legislature in this respect. Why this express prohibition, if the law-making power *cannot* abolish slavery? A stately farce, indeed, to construct a special clause,

and with appropriate rites induct it into the Constitution, for the express purpose of restricting a nonentity!—to take from the law-making power what it *never had*, and what *cannot* pertain to it! The legislatures of those States have no power to abolish slavery, simply because their Constitutions have expressly *taken away* that power. The people of Arkansas, Mississippi, &c., well knew the competency of the law-making power to abolish slavery, and hence their zeal to *restrict* it.

The slaveholding States have recognised this power in their *laws*. The Virginia Legislature passed a law in 1786 to prevent the further importation of Slaves, of which the following is an extract: "And be it further enacted that every slave imported into this commonwealth contrary to the true intent and meaning of this act, shall upon such importation become *free*." By a law of Virginia, passed Dec. 17, 1792, a slave brought into the state and kept *there a year*, was *free*. The Maryland Court of Appeals at the December term 1813 [case of Stewart vs. Oakes,] decided that a slave owned in Maryland, and sent by his master into Virginia to work at different periods, making one year in the whole, became *free*, being *emancipated* by the law of Virginia quoted above. North Carolina and Georgia in their acts of cession, transferring to the United States the territory now constituting the States of Tennessee, Alabama and Mississippi, made it a condition of the grant, that the provisions of the ordinance of '87, should be secured to the inhabitants *with the exception of the sixth article which prohibits slavery*; thus conceding, both the competency of law to abolish slavery, and the power of Congress to do it, within its jurisdiction. (These acts show the prevalent belief at that time, in the slaveholding States, that the general government had adopted a line of policy aiming at the exclusion of slavery from the entire territory of the United States, not included within the original States, and that this policy would be pursued unless prevented by specific and formal stipulation.)

Slaveholding states have asserted this power *in their judicial decisions*. In numerous cases their highest courts have decided that if the legal owner of slaves takes them into those States where slavery has been abolished either by law or by the constitution, such removal emancipates them, such law or constitution abolishing their slavery. This principle is asserted in the decision of the Supreme Court of Louisiana, in the case of Lunsford vs.

Coquillon, 14 Martin's La. Reps. 401. Also by the Supreme Court of Virginia, in the case of Hunter vs. Fulcher, 1 Leigh's Reps. 172. The same doctrine was laid down by Judge Washington, of the United States Supreme Court, in the case of Butler vs. Hopper, Washington's Circuit Court Reps. 508. This principle was also decided by the Court of Appeals in Kentucky; case of Rankin vs. Lydia, 2 Marshall's Reps. 407; see also, Wilson vs. Isbell, 5 Call's Reps. 425, Spotts vs. Gillespie, 6 Randolph's Reps. 566. The State vs. Lasselle, 1 Blackford's Reps. 60, Marie Louise vs. Mariot, 8 La. Reps. 475. In this case, which was tried in 1836, the slave had been taken by her master to France and brought back; Judge Mathews, of the Supreme Court of Louisiana, decided that "residence for one moment" under the laws of France emancipated her.

6. EMINENT STATESMEN, THEMSELVES SLAVEHOLDERS, HAVE CONCEDED THIS POWER. Washington, in a letter to Robert Morris, dated April 12, 1786, says: "There is not a man living, who wishes more sincerely than I do, to see a plan adopted for the abolition of slavery; but there is only one proper and effectual mode by which it can be accomplished, and that is by *legislative* authority." In a letter to Lafayette, dated May 10, 1786, he says: "It (the abolition of slavery) certainly might, and assuredly ought to be effected, and that too by *legislative* authority." In a letter to John Fenton Mercer, dated Sept. 9, 1786, he says: "It is among my first wishes to see some plan adopted by which slavery in this country may be abolished by *law*." In a letter to Sir John Sinclair, he says: "There are in Pennsylvania, *laws* for the gradual abolition of slavery, which neither Maryland nor Virginia have at present, but which nothing is more certain than that they *must have*, and at a period not remote." Speaking of movements in the Virginia Legislature in 1777, for the passage of a law emancipating the slaves, Mr. Jefferson says: "The principles of the amendment were agreed on, that is to say, the freedom of all born after a certain day; but it was found that the public mind would not bear the proposition, yet the day is not far distant, when *it must bear and adopt it*."—Jefferson's Memoirs, v. 1, p. 35. It is well known that Jefferson, Pendleton, Mason, Wythe and Lee, while acting as a committee of the Virginia House of Delegates to revise the State Laws, prepared a plan for the gradual emancipation of the slaves by law. These men were the great lights of Virginia. Mason, the author of the Virginia Constitution;

Pendleton, the President of the memorable Virginia Convention in 1787, and President of the Virginia Court of Appeals; Wythe was the Blackstone of the Virginia bench, for a quarter of a century Chancellor of the State, the professor of law in the University of William and Mary, and the preceptor of Jefferson, Madison, and Chief Justice Marshall. He was author of the celebrated remonstrance to the English House of Commons on the subject of the stamp act. As to Jefferson, his *name* is his biography.

Every slaveholding member of Congress from the States of Maryland, Virginia, North and South Carolina, and Georgia, voted for the celebrated ordinance of 1787, which *abolished* the slavery then existing in the Northwest Territory. Patrick Henry, in his well known letter to Robert Pleasants, of Virginia, January 18, 1773, says: "I believe a time will come when an opportunity will be offered to *abolish* this lamentable evil." William Pinkney, of Maryland, advocated the abolition of slavery by law, in the legislature of that State, in 1789. Luther Martin urged the same measure both in the Federal Convention, and in his report to the Legislature of Maryland. In 1796, St. George Tucker, of Virginia, professor of law in the University of William and Mary, and Judge of the General Court, published an elaborate dissertation on slavery, addressed to the General Assembly of the State, and urging upon them the abolition of slavery by *law*.

John Jay, while New York was yet a slave State, and himself in law a slaveholder, said in a letter from Spain, in 1786, "An excellent law might be made out of the Pennsylvania one, for the gradual abolition of slavery. Were I in your legislature, I would present a bill for the purpose, drawn up with great care, and I would never cease moving it till it became a law, or I ceased to be a member."

Daniel D. Tompkins, in a message to the Legislature of New-York January 8, 1812, said: "To devise the means for the gradual and ultimate *extermination* from amongst us of slavery, is a work worthy the representatives of a polished and enlightened nation."

The Virginia Legislature asserted this power in 1832. At the close of a month's debate, the following proceedings were had. I extract from an editorial article of the Richmond Whig, of January 26, 1832.

"The report of the Select Committee, adverse to legislation on the subject of Abolition, was in these words: *Resolved*, as the opinion of this Committee, that it is INEXPEDIENT FOR THE PRESENT, to make any *legislative enactments for the abolition of Slavery*." This Report Mr. Preston moved to reverse, and thus to declare that it was expedient, *now* to make legislative enactments for the abolition of slavery. This was meeting the question in its strongest form. It demanded action, and immediate action. On this proposition the vote was 58 to 73. Many of the most decided friends of abolition voted against the amendment; because they thought public opinion not sufficiently prepared for it, and that it might prejudice the cause to move too rapidly. The vote on Mr. Witcher's motion to postpone the whole subject indefinitely, indicates the true state of opinion in the House.—That was the test question, and was so intended and proclaimed by its mover. That motion was *negatived*, 71 to 60; showing a majority of 11, who by that vote, declared their belief that "at the proper time, and in the proper mode, Virginia ought to commence a system of gradual abolition."

7. THE CONGRESS OF THE UNITED STATES HAVE ASSERTED THIS POWER. The ordinance of '87, declaring that there should be "neither slavery nor involuntary servitude," in the North Western territory, abolished the slavery then existing there. The Supreme Court of Mississippi, in its decision in the case of Harvey vs. Decker, Walker's Mi. Reps. 36, declared that the ordinance emancipated the slaves then held there. In this decision the question is argued ably and at great length. The Supreme Court of La. made the same decision in the case of Forsyth vs. Nash, 4 Martin's La. Reps. 395. The same doctrine was laid down by Judge Porter, (late United States Senator from La.,) in his decision at the March term of the La. Supreme Court, 1830, in the case of Merry vs. Chexnaider, 20 Martin's Reps. 699.

That the ordinance abolished the slavery then existing there is also shown by the fact, that persons holding slaves in the territory petitioned for the repeal of the article abolishing slavery, assigning *that* as a reason. "The petition of the citizens of Randolph and St. Clair counties in the Illinois country, stating that they were in possession of slaves, and praying the

repeal of that act (the 6th article of the ordinance of '87) and the passage of a law legalizing slavery there." [Am. State papers, Public Lands, v. 1. p. 69.] Congress passed this ordinance before the United States Constitution was adopted, when it derived all its authority from the articles of Confederation, which conferred powers of legislation far more restricted than those conferred on Congress over the District and Territories by the United States Constitution. Now, we ask, how does the Constitution *abridge* the powers which Congress possessed under the articles of confederation?

The abolition of the slave trade by Congress, in 1808, is another illustration of the competency of legislative power to abolish slavery. The African slave trade has become such a mere *technic*, in common parlance, that the fact of its being *proper slavery* is overlooked. The buying and selling, the transportation, and the horrors of the middle passage, were mere *incidents* of the slavery in which the victims were held. Let things be called by their own names. When Congress abolished the African slave trade, it abolished SLAVERY—supreme slavery—power frantic with license, trampling a whole hemisphere scathed with its fires, and running down with blood. True, Congress did not, in the abolition of the slave trade, abolish *all* the slavery within its jurisdiction, but it did abolish all the slavery in *one* part of its jurisdiction. What has rifled it of power to abolish slavery in *another* part of its jurisdiction, especially in that part where it has "exclusive legislation in all cases whatsoever?"

8. THE CONSTITUTION OF THE UNITED STATES RECOGNISES THIS POWER BY THE MOST CONCLUSIVE IMPLICATION. In Art. 1, sec. 3, clause 1, it prohibits the abolition of the slave trade previous to 1808: thus implying the power of Congress to do it at once, but for the restriction; and its power to do it *unconditionally*, when that restriction ceased. Again; In Art. 4, sec. 2, "No person held to service or labor in one state under the laws thereof, escaping into another, shall in consequence of any law or regulation therein, be discharged from said service or labor." This clause was inserted, as all admit, to prevent the runaway slave from being emancipated by the *laws* of the free states. If these laws had *no power* to emancipate, why this constitutional guard to prevent it?

The insertion of the clause, was the testimony of the eminent jurists that framed the Constitution, to the existence of the *power*, and their public proclamation, that the abolition of slavery was within the appropriate sphere of legislation. The right of the owner to that which is rightfully property, is founded on a principle of *universal law*, and is recognised and protected by all civilized nations; property in slaves is, by general consent, an *exception*; hence slaveholders insisted upon the insertion of this clause in the United States Constitution, that they might secure by an *express provision*, that from which protection is withheld, by the acknowledged principles of universal law.^A By demanding this provision, slaveholders consented that their slaves should not be recognised as property by the United States Constitution, and hence they found their claim, on the fact of their being "*persons, and held to service.*"

^A: The fact, that under the articles of Confederation, slaveholders, whose slaves had escaped into free states, had no legal power to force them back,—that *now* they have no power to recover, by process of law, their slaves who escape to Canada, the South American States, or to Europe—the case already cited, in which the Supreme Court of Louisiana decided, that residence "*for one moment,*" under the laws of France emancipated an American slave—the case of *Fulton vs. Lewis*, 3 Har. and John's Reps., 56, where the slave of a St. Domingo slaveholder, who brought him to Maryland in '93, was pronounced free by the Maryland Court of Appeals—are illustrations of the acknowledged truth here asserted, that by the consent of the civilized world, and on the principles of universal law, slaves are not "*property,*" and that whenever held as property under *law*, it is only by *positive legislative acts*, forcibly setting aside the law of nature, the common law, and the principles of universal justice and right between man and man,—principles paramount to all law, and from which alone law, derives its intrinsic authoritative sanction.

9. CONGRESS HAS UNQUESTIONABLE POWER TO ADOPT THE COMMON LAW, AS THE LEGAL SYSTEM, WITHIN ITS EXCLUSIVE JURISDICTION.—This has been done, with certain restrictions, in most of the States, either by legislative acts or by constitutional implication. THE COMMON LAW KNOWS NO SLAVES. Its principles annihilate slavery wherever they touch it. It is a universal, unconditional, abolition act.

Wherever slavery is a legal system, it is so only by *statute* law, and in violation of the common law. The declaration of Lord Chief Justice Holt, that, "by the common law, no man can have property in another," is an acknowledged axiom, and based upon the well known common law definition of property. "The subjects of dominion or property are *things*, as contra-distinguished from *persons*." Let Congress adopt the common law in the District of Columbia, and slavery there is at once abolished. Congress may well be at home in common law legislation, for the common law is the grand element of the United States Constitution. All its *fundamental* provisions are instinct with its spirit; and its existence, principles, and paramount authority, are presupposed and assumed throughout the whole. The preamble of the Constitution plants the standard of the Common Law immovably in its foreground. "We, the people of the United States, in order to ESTABLISH JUSTICE, &c., do ordain and establish this Constitution;" thus proclaiming *devotion to JUSTICE*, as the controlling motive in the organization of the Government, and its secure establishment the chief object of its aims. By this most solemn recognition, the common law, that grand legal embodiment of "*justice*" and fundamental right—was made the Groundwork of the Constitution, and intrenched behind its strongest munitions. The second clause of Sec. 9, Art. 1; Sec. 4, Art. 2, and the last clause of Sec. 2, Art. 3, with Articles 7, 8, 9, and 13 of the Amendments, are also express recognitions of the common law as the presiding Genius of the Constitution.

By adopting the common law within its exclusive jurisdiction Congress would carry out the principles of our glorious Declaration, and follow the highest precedents in our national history and jurisprudence. It is a political maxim as old as civil legislation, that laws should be strictly homogeneous with the principles of the government whose will they express, embodying and carrying them out—being indeed the *principles themselves*, in preceptive form—representatives alike of the nature and the power of the Government—standing illustrations of its genius and spirit, while they proclaim and enforce its authority. Who needs be told that slavery makes war upon the principles of the Declaration, and the spirit of the Constitution, and that these and the principles of the common law gravitate toward each other with irrepressible affinities, and mingle into one? The common law came hither with our pilgrim fathers; it was their birthright,

their panoply, their glory, and their song of rejoicing in the house of their pilgrimage. It covered them in the day of their calamity, and their trust was under the shadow of its wings. From the first settlement of the country, the genius of our institutions and our national spirit have claimed it as a common possession, and exulted in it with a common pride. A century ago, Governor Pownall, one of the most eminent constitutional jurists of colonial times, said of the common law, "In all the colonies the common law is received as the foundation and main body of their law." In the Declaration of Rights, made by the Continental Congress at its first session in '74, there was the following resolution: "Resolved, That the respective colonies are entitled to the common law of England, and especially to the great and inestimable privilege of being tried by their peers of the vicinage according to the course of that law." Soon after the organization of the general government, Chief Justice Ellsworth, in one of his decisions on the bench of the United States Supreme Court, said: "The common law of this country remains the same as it was before the revolution." Chief Justice Marshall, in his decision in the case of *Livingston vs. Jefferson*, said: "When our ancestors migrated to America, they brought with them the common law of their native country, so far as it was applicable to their new situation, and I do not conceive that the revolution in any degree changed the relations of man to man, or the law which regulates them. In breaking our political connection with the parent state, we did not break our connection with each other." [*Hall's Law Journal, new series.*] Mr. Duponceau, in his "Dissertation on the Jurisdiction of Courts in the United States," says, "I consider the common law of England the *jus commune* of the United States. I think I can lay it down as a correct principle, that the common law of England, as it was at the time of the Declaration of Independence, still continues to be the national law of this country, so far as it is applicable to our present state, and subject to the modifications it has received here in the course of nearly half a century." Chief Justice Taylor of North Carolina, in his decision in the case of the *State vs. Reed*, in 1823, Hawkes' N.C. Reps. 454, says, "a law of *paramount obligation to the statute*, was violated by the offence—COMMON LAW founded upon the law of nature, and confirmed by revelation." The legislation of the United States abounds in recognitions of the principles of the common law, asserting their paramount binding power. Sparing details, of which our national state papers are full, we illustrate by a single instance. It was made a condition of the admission of

Louisiana into the Union, that the right of trial by jury should be secured to all her citizens,—the United States government thus employing its power to enlarge the jurisdiction of the common law in this its great representative.

Having shown that the abolition of slavery is within the competency of the law-making power, when unrestricted by constitutional provisions, and that the legislation of Congress over the District is thus unrestricted, its power to abolish slavery there is established.

We argue it further, from the fact, that slavery exists there *now* by an act of Congress. In the act of 16th July, 1790, Congress accepted portions of territory offered by the states of Maryland and Virginia, and enacted that the laws, as they then were, should continue in force, "until Congress shall otherwise by law provide." Under these laws, adopted by Congress, and in effect re-enacted and made laws of the District, the slaves there are now held.

Is Congress so impotent in its own "exclusive jurisdiction" that it *cannot* "otherwise by law provide?" If it can say, what *shall* be considered property, it can say what shall *not* be considered property. Suppose a legislature should enact that marriage contracts shall be mere bills of sale, making a husband the proprietor of his wife, as his *bona fide* property; and suppose husbands should herd their wives in droves for the market as beasts of burden, or for the brothel as victims of lust, and then prate about their inviolable legal property, and deny the power of the legislature, which stamped them "property," to undo its own wrong, and secure to wives by law the rights of human beings. Would such cant about "legal rights" be heeded where reason and justice held sway, and where law, based upon fundamental morality, received homage? If a frantic legislature pronounces woman a chattel, has it no power, with returning reason, to take back the blasphemy? Is the impious edict irrepealable? Be it, that with legal forms it has stamped wives "wares." Can no legislation blot out the brand? Must the handwriting of Deity on human nature be expunged for ever? Has law no power to stay the erasing pen, and tear off the scrawled label that covers up the IMAGE OF GOD?

II. THE POWER OF CONGRESS TO ABOLISH SLAVERY IN THE DISTRICT HAS BEEN, TILL RECENTLY, UNIVERSALLY CONCEDED.

1. IT HAS BEEN ASSUMED BY CONGRESS ITSELF. The following record stands on the journals of the House of Representatives for 1804, p. 225: "On motion made and seconded that the House do come to the following resolution: 'Resolved, That from and after the 4th day of July, 1805, all blacks and people of color that shall be born within the District of Columbia, or whose mothers shall be the property of any person residing within said District, shall be free, the males at the age of ----, and the females at the age of ----. The main question being taken that the house do agree to said motion as originally proposed, it was negatived by a majority of 46.'" Though the motion was lost, it was on the ground of its alleged *inexpediency* alone. In the debate which preceded the vote, the *power* of Congress was conceded. In March, 1816, the House of Representatives passed the following resolution:—"Resolved, That a committee be appointed to inquire into the existence of an inhuman and illegal traffic in slaves, carried on in and through the District of Columbia, and to report whether any and what measures are necessary for *putting a stop to the same*."

On the 9th of January, 1829, the House of Representatives passed the following resolution by a vote of 114 to 66: "Resolved, That the Committee on the District of Columbia, be instructed to inquire into the *expediency* of providing by *law* for the gradual abolition of slavery within the District, in such manner that the interests of no individual shall be injured thereby." Among those who voted in the affirmative were Messrs. Barney of Md., Armstrong of Va., A.H. Shepperd of N.C., Blair of Tenn., Chilton and Lyon of Ky., Johns of Del., and others from slave states.

2. IT HAS BEEN CONCEDED BY COMMITTEES OF CONGRESS, OF THE DISTRICT OF COLUMBIA.—In a report of the committee on the District, Jan. 11, 1837, by their chairman, Mr. Powell of Va., there is the following declaration:—"The Congress of the United States, has by the constitution exclusive jurisdiction over the District, and has power upon this subject, (*slavery*,) as upon all other subjects of legislation, to exercise

unlimited discretion." Reps. of Comms. 2d Sess. 19th Cong. v. iv. No. 43. In December, 1831, the committee on the District, Dr. Doddridge of Va., Chairman, reported, "That until the adjoining states act on the subject, (slavery) it would be (not *unconstitutional* but) unwise and impolitic, if not unjust, for Congress to interfere." In April, 1836, a special committee on abolition memorials reported the following resolutions by their Chairman, Mr. Pinckney of South Carolina: "Resolved, That Congress possesses no constitutional authority to interfere in any way with the institution of slavery in any of the states of this confederacy."

"Resolved, That Congress *ought not to interfere* in any way with slavery in the District of Columbia." "Ought not to interfere," carefully avoiding the phraseology of the first resolution, and thus in effect conceding the constitutional power. In a widely circulated "Address to the electors of the Charleston District," Mr. Pinkney is thus denounced by his own constituents: "He has proposed a resolution which is received by the plain common sense of the whole country as a concession that Congress has authority to abolish slavery in the District of Columbia."

3. IT HAS BEEN CONCEDED BY THE CITIZENS OF THE DISTRICT. A petition for the gradual abolition of slavery in the District, signed by nearly eleven hundred of its citizens, was presented to Congress, March 24, 1827. Among the signers to this petition, were Chief Justice Cranch, Judge Van Ness, Judge Morsel, Prof. J.M. Staughton, and a large number of the most influential inhabitants of the District. Mr. Dickson, of New York, asserted on the floor of Congress in 1835, that the signers of this petition owned more than half of the property in the District. The accuracy of this statement has never been questioned.

THIS POWER HAS BEEN CONCEDED BY GRAND JURIES OF THE DISTRICT. The Grand jury of the county of Alexandria, at the March term, 1802, presented the domestic slave trade as a grievance, and said, "We consider these grievances demanding *legislative* redress." Jan. 19, 1829, Mr. Alexander, of Virginia, presented a representation of the grand jury in the city of Washington, remonstrating against "any measure for the abolition of slavery within said District, unless accompanied by measures for the removal of the emancipated from the same;" thus, not only conceding the

power to emancipate slaves, but affirming an additional power, that of *excluding them when free*. Journal H.R. 1828-9, p. 174.

4. THIS POWER HAS BEEN CONCEDED BY STATE LEGISLATURES. In 1828 the Legislature of Pennsylvania instructed their Senators in Congress "to procure, if practicable, the passage of a law to abolish slavery in the District of Columbia." Jan. 28, 1829, the House of Assembly of New-York passed a resolution, that their "Senators in Congress be instructed to make every possible exertion to effect the passage of a law for the abolition of Slavery in the District of Columbia." In February, 1837, the Senate of Massachusetts "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery and the slave trade therein." The House of Representatives passed the following resolution at the same session: "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery in said District."

November 1, 1837, the Legislature of Vermont, "Resolved, that Congress have the full power by the constitution to abolish slavery and the slave trade in the District of Columbia, and in the territories."

May 30, 1836, a committee of the Pennsylvania Legislature reported the following resolution: "Resolved, That Congress does possess the constitutional power, and it is expedient to abolish slavery and the slave trade within the District of Columbia."

In January, 1836, the Legislature of South Carolina "Resolved, That we should consider the abolition of Slavery in the District of Columbia as a violation of the rights of the citizens of that District derived from the *implied* conditions on which that territory was ceded to the General Government." Instead of denying the constitutional power, they virtually admit its existence, by striving to smother it under an *implication*. In February, 1836, the Legislature of North Carolina "Resolved, That, although by the Constitution *all legislative power* over the District of Columbia is vested in the Congress of the United States, yet we would deprecate any legislative action on the part of that body towards liberating the slaves of that District, as a breach of faith towards those States by whom the territory was originally ceded. Here is a full concession of the *power*."

February 2, 1836, the Virginia Legislature passed unanimously the following resolution: "Resolved, by the General Assembly of Virginia, that the following article be proposed to the several states of this Union, and to Congress, as an amendment of the Constitution of the United States: "The powers of Congress shall not be so construed as to authorize the passage of any law for the emancipation of slaves in the District of Columbia, without the consent of the individual proprietors thereof, unless by the sanction of the Legislatures of Virginia and Maryland, and under such conditions as they shall by law prescribe."

Fifty years after the formation of the United States' constitution the states are solemnly called upon by the Virginia Legislature, to amend that instrument by a clause asserting that, in the grant to Congress of "exclusive legislation in all cases whatsoever" over the District, the "case" of slavery is not included!! What could have dictated such a resolution but the conviction that the power to abolish slavery is an irresistible inference from the constitution *as it is*. The fact that the same legislature passed afterward a resolution, though by no means unanimously, that Congress does not possess the power, abates not a tittle of the testimony in the first resolution. March 23d, 1824, "Mr. Brown presented the resolutions of the General Assembly of Ohio, recommending to Congress the consideration of a system for the gradual emancipation of persons of color held in servitude in the United States." On the same day, "Mr. Noble, of Indiana, communicated a resolution from the legislature of that state, respecting the gradual emancipation of slaves within the United States." Journal of the United States Senate, for 1824-5, p. 231.

The Ohio and Indiana resolutions, by taking for granted the *general* power of Congress over the subject of slavery, do virtually assert its *special* power within its *exclusive* jurisdiction.

5. THIS POWER HAS BEEN CONCEDED BY BODIES OF CITIZENS IN THE SLAVE STATES. The petition of eleven hundred citizens of the District, has been already mentioned. "March 5, 1830, Mr. Washington presented a memorial of inhabitants of the county of Frederick, in the state of Maryland, praying that provision be made for the gradual abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 358.

March 30, 1828. Mr. A.H. Shepperd, of North Carolina, presented a memorial of citizens of that state, "praying Congress to take measures for the entire abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 379.

January 14, 1822. Mr. Rhea, of Tennessee, presented a memorial of citizens of that state, praying "that provision may be made, whereby all slaves which may hereafter be born in the District of Columbia, shall be free at a certain period of their lives." Journal H.R. 1821-22, p. 142.

December 13, 1824. Mr. Saunders of North Carolina, presented a memorial of citizens of that state, praying "that measures may be taken for the gradual abolition of slavery in the United States." Journal H.R. 1824-25, p. 27.

December 16, 1828. "Mr. Barnard presented the memorial of the American Convention for promoting the abolition of slavery, held in Baltimore, praying that slavery may be abolished in the District of Columbia." Journal U.S. Senate, 1828-29, p. 24.

6. DISTINGUISHED STATESMEN AND JURISTS IN THE SLAVEHOLDING STATES, HAVE CONCEDED THIS POWER. The testimony of Messrs. Doddridge, and Powell, of Virginia, Chief Justice Cranch, and Judges Morsel and Van Ness, of the District, has already been given. In the debate in Congress on the memorial of the Society of Friends, in 1790, Mr. Madison, in speaking of the territories of the United States, explicitly declared, from his own knowledge of the views of the members of the convention that framed the constitution, as well as from the obvious import of its terms, that in the territories, "Congress have certainly the power to regulate the subject of slavery." Congress can have no more power over the territories than that of "exclusive legislation in all cases whatsoever," consequently, according to Mr. Madison, "it has certainly the power to regulate the subject of slavery in the" *District*. In March, 1816, Mr. Randolph of Va. introduced a resolution for putting a stop to the domestic slave trade within the District. December 12, 1827, Mr. Barney, of Md. presented a memorial for abolition in the District, and moved that it be printed. Mr. McDuffie, of S.C., objected to the printing, but "expressly admitted the right of Congress to grant to the people of the District any measures which they might deem necessary to free themselves from the

deplorable evil."—[See letter of Mr. Claiborne of Miss. to his constituents, published in the Washington Globe, May 9, 1836.] The sentiments of Mr. Clay, of Kentucky, on the subject are well known. In a speech before the U.S. Senate, in 1836, he declared the power of Congress to abolish slavery in the District "unquestionable." Messrs. Blair, of Tenn., and Chilton, Lyon, and R.M. Johnson, of Ky., A.H. Shepperd, of N.C., Messrs. Armstrong and Smyth, of Va., Messrs. Dorsey, Archer, and Barney, of Md., and Johns, of Del., with numerous others from slave states, have asserted the power of Congress to abolish slavery in the District. In the speech of Mr. Smyth, of Va., on the Missouri question, January 28, 1820, he says on this point: "If the future freedom of the blacks is your real object, and not a mere pretence, why do you not begin *here*? Within the ten miles square, you have *undoubted power* to exercise exclusive legislation. *Produce a bill to emancipate the slaves in the District of Columbia*, or, if you prefer it, to emancipate those born hereafter."

To this may be added the testimony of the present Vice President of the United States, Hon. Richard M. Johnson, of Kentucky. In a speech before the U.S. Senate, Feb. 1, 1820, (National Intelligencer, April 20, 1820) he says: "In the District of Columbia, containing a population of 30,000 souls, and probably as many slaves as the whole territory of Missouri, THE POWER OF PROVIDING FOR THEIR EMANCIPATION RESTS WITH CONGRESS ALONE. Why, then, this heart-rending sympathy for the slaves of Missouri, and this cold insensibility, this eternal apathy, towards the slaves in the District of Columbia?"

It is quite unnecessary to add, that the most distinguished northern statesmen of both political parties, have always affirmed the power of Congress to abolish slavery in the District: President Van Buren in his letter of March 6, 1836, to a committee of gentlemen in North Carolina, says, "I would not, from the light now before me, feel myself safe in pronouncing that Congress does not possess the power of abolishing slavery in the District of Columbia." This declaration of the President is consistent with his avowed sentiments touching the Missouri question, on which he coincided with such men as Daniel D. Tompkins, De Witt Clinton, and others, whose names are a host.^A It is consistent, also, with his recommendation in his late message, in which, speaking of the District, he

strongly urges upon Congress "a thorough and careful revision of its local government," speaks of the "entire dependence" of the people of the District "upon Congress," recommends that a "uniform system of local government" be adopted, and adds, that "although it was selected as the seat of the General Government, the site of its public edifices, the depository of its archives, and the residence of officers entrusted with large amounts of public property, and the management of public business, yet it never has been subjected to, or received, that *special* and *comprehensive* legislation which these circumstances peculiarly demanded."

[A](#): Mr. Van Buren, when a member of the Senate of New-York, voted for the following preamble and resolutions, which passed unanimously:—Jan 28th, 1820. "Whereas the inhibiting the further extension of slavery in the United States, is a subject of deep concern to the people of this state: and whereas, we consider slavery as an evil much to be deplored, and that *every constitutional barrier should be interposed to prevent its further extension*: and that the constitution of the United States *clearly gives congress the right* to require new states, not comprised within the original boundary of the United States, to *make the prohibition of slavery* a condition of their admission into the Union: Therefore,

"Resolved, That our Senators be instructed, and our members of Congress be requested, to oppose the admission as a state into the Union, of an territory not comprised as aforesaid, without making *the prohibition of slavery* therein an indispensable condition of admission."

The tenor of Mr. Tallmadge's speech on the right of petition, and of Mr. Webster's on the reception of abolition memorials, may be taken as universal exponents of the sentiments of northern statesmen as to the power of Congress to abolish slavery in the District of Columbia.

An explicit declaration, that an "*overwhelming majority*" of the *present* Congress concede the power to abolish slavery in the District, has just been made by Hon. Robert Barnwell Rhett, a member of Congress from South Carolina, in a letter published in the Charleston Mercury of Dec. 27, 1837. The following is an extract:

"The time has arrived when we must have new guaranties under the constitution, or the Union must be dissolved. *Our views of the constitution are not those of the majority.* AN OVERWHELMING MAJORITY *think that by the constitution, Congress may abolish slavery in the District of Columbia—may abolish the slave trade between the States; that is, it may prohibit their being carried out of the State in which they are—and prohibit it in all the territories, Florida among them. They think, NOT WITHOUT STRONG REASONS, that the power of Congress extends to all of these subjects.*"

Direct testimony to show that the power of Congress to abolish slavery in the District, has always till recently been *universally conceded*, is perhaps quite superfluous. We subjoin, however, the following:

The Vice-President of the United States in his speech on the Missouri question, quoted above, after contending that the restriction of slavery in Missouri would be unconstitutional, declares, that the power of Congress over slavery in the District "COULD NOT BE QUESTIONED." In the speech of Mr. Smyth, of Va., also quoted above, he declares the power of Congress to abolish slavery in the District to be "UNDOUBTED."

Mr. Sutherland, of Penn., in a speech in the House of Representatives, on the motion to print Mr. Pinckney's Report, is thus reported in the Washington Globe, of May 9th, '36. "He replied to the remark that the report conceded that Congress had a right to legislate upon the subject in the District of Columbia, and said that SUCH A RIGHT HAD NEVER BEEN, TILL RECENTLY, DENIED."

The American Quarterly Review, published at Philadelphia, with a large circulation and list of contributors in the slave states, holds the following language in the September No. 1833, p. 55: "Under this 'exclusive jurisdiction,' granted by the constitution, Congress has power to abolish slavery and the slave trade in the District of Columbia. It would hardly be necessary to state this as a distinct proposition, had it not been occasionally questioned. The truth of the assertion, however, is too obvious to admit of argument—and we believe HAS NEVER BEEN DISPUTED BY PERSONS WHO ARE FAMILIAR WITH THE CONSTITUTION."

OBJECTIONS TO THE FOREGOING CONCLUSIONS CONSIDERED.

We now proceed to notice briefly the main arguments that have been employed in Congress, and elsewhere against the power of Congress to abolish slavery in the District. One of the most plausible is; that "the conditions on which Maryland and Virginia ceded the District to the United States, would be violated, if Congress should abolish slavery there." The reply to this is, that Congress had no power to *accept* a cession coupled with conditions restricting that "power of exclusive legislation in all cases whatsoever, over such District," which was given it by the constitution.

To show the futility of the objection, we insert here the acts of cession. The cession of Maryland was made in November, 1788, and is as follows: "An act to cede to Congress a district of ten miles square in this state for the seat of the government of the United States."

"Be it enacted, by the General Assembly of Maryland, that the representatives of this state in the House of Representatives of the Congress of the United States, appointed to assemble at New-York, on the first Wednesday of March next, be, and they are hereby authorized and required on the behalf of this state, to cede to the Congress of the United States, any district in this state, not exceeding ten miles square, which the Congress may fix upon, and accept for the seat of government of the United States." Laws of Md., v. 2., c. 46.

The cession of Virginia was made on the 3d of December, 1788, in the following words:

"Be it enacted by the General Assembly, That a tract of country, not exceeding ten miles square, or any lesser quantity, to be located within the limits of the State, and in any part thereof, as Congress may, by law, direct, shall be, and the same is hereby forever ceded and relinquished to the Congress and Government of the United States, in full and absolute right, and exclusive jurisdiction, as well of soil, as of persons residing or to reside thereon, pursuant to the tenor and effect of the eighth section of the first article of the government of the constitution of the United States."

But were there no provisos to these acts? The Maryland act had *none*. The Virginia act had this proviso: "Sect. 2. Provided, that nothing herein contained, shall be construed to vest in the United States any right of property in the soil, or to affect the rights of individuals *therein*, otherwise than the same shall or may be transferred by such individuals to the United States."

This specification touching the soil was merely definitive and explanatory of that clause in the act of cession, "*full and absolute right*." Instead of restraining the power of Congress on *slavery* and other subjects, it even gives it freer course; for exceptions to *parts* of a rule, give double confirmation to those parts not embraced in the exceptions. If it was the *design* of the proviso to restrict congressional action on the subject of *slavery*, why is the *soil alone* specified? As legal instruments are not paragons of economy in words, might not "John Doe," out of his abundance, and without spoiling his style, have afforded an additional word—at least a hint—that slavery was *meant*, though nothing was *said* about it?

But again, Maryland and Virginia, in their acts of cession, declare them to be "in pursuance of" that clause of the constitution which gives to Congress "exclusive legislation in all cases whatsoever over" the ten miles square—thus, instead of *restricting* that clause, both States *confirm* it. Now, their acts of cession either accorded with that clause of the constitution, or they conflicted with it. If they conflicted with it, *accepting* the cessions was a violation of the constitution. The fact that Congress accepted the cessions, proves that in its view their *terms* did not conflict with its constitutional grant of power. The inquiry whether these acts of cession were consistent or inconsistent with the United States' constitution, is totally irrelevant to the question at issue. What saith the CONSTITUTION? That is the question. Not, what saith Virginia, or Maryland, or—equally to the point—John Bull! If Maryland and Virginia had been the authorized interpreters of the constitution for the Union, these acts of cession could hardly have been magnified more than they have been recently by the southern delegation in Congress. A true understanding of the constitution can be had, forsooth, only by holding it up in the light of Maryland and Virginia legislation!

We are told, again, that those States would not have ceded the District if they had supposed the constitution gave Congress power to abolish slavery in it.

This comes with an ill grace from Maryland and Virginia. They *knew* the constitution. They were parties to it. They had sifted it clause by clause, in their State conventions. They had weighed its words in the balance—they had tested them as by fire; and finally, after long pondering, they *adopted* the constitution. And *afterward*, self-moved, they ceded the ten miles square, and declared the cession made "in pursuance of" that oft-cited clause, "Congress shall have power to exercise exclusive legislation in all cases whatsoever over such District." And now verily "they would not have ceded if they had *supposed*!" &c. Cede it they *did*, and in "full and absolute right both of soil and persons." Congress accepted the cession—state power over the District ceased, and congressional power over it commenced—and now, the sole question to be settled is, *the amount of power over the District, lodged in Congress by the constitution*. The constitution—THE CONSTITUTION—that is the point. Maryland and Virginia "suppositions" must be potent suppositions to abrogate a clause of the United States' Constitution! That clause either gives Congress power to abolish slavery in the District, or it does *not*—and that point is to be settled, not by state "suppositions," nor state usages, nor state legislation, but *by the terms of the clause themselves*.

Southern members of Congress, in the recent discussions, have conceded the power of a contingent abolition in the District, by suspending it upon the *consent* of the people. Such a doctrine from *declaimers* like Messrs. Alford, of Georgia, and Walker, of Mississippi, would excite no surprise; but that it should be honored with the endorsement of such men as Mr. Rives and Mr. Calhoun, is quite unaccountable. Are attributes of *sovereignty* mere creatures of *contingency*? Is delegated *authority* mere conditional *permission*? Is a *constitutional power* to be exercised by those who hold it, only by popular *sufferance*? Must it lie helpless at the pool of public sentiment, waiting the gracious troubling of its waters? Is it a lifeless corpse, save only when popular "consent" deigns to puff breath into its nostrils? Besides, if the consent of the people of the District be necessary, the consent of the *whole* people must be had—not that of a majority,

however large. Majorities, to be authoritative, must be *legal*—and a legal majority without legislative power, or right of representation, or even the electoral franchise, would be truly an anomaly! In the District of Columbia, such a thing as a majority in a legal sense is unknown to law. To talk of the power of a majority, or the will of a majority there, is mere mouthing. A majority? Then it has an authoritative will—and an organ to make it known—and an executive to carry it into effect—Where are they? We repeat it—if the consent of the people of the District be necessary, the consent of *every one* is necessary—and *universal* consent will come only with the Greek Kalends and a "perpetual motion." A single individual might thus *perpetuate* slavery in defiance of the expressed will of a whole people. The most common form of this fallacy is given by Mr. Wise, of Virginia, in his speech, February 16, 1835, in which he denied the power of Congress to abolish slavery in the District, unless the inhabitants owning slaves petitioned for it!! Southern members of Congress at the present session ring changes almost daily upon the same fallacy. What! pray Congress *to use* a power which it *has not*? "It is required of a man according to what he *hath*," saith the Scripture. I commend Mr. Wise to Paul for his ethics. Would that he had got his *logic* of him! If Congress does not possess the power, why taunt it with its weakness, by asking its exercise? Why mock it by demanding impossibilities? Petitioning, according to Mr. Wise, is, in matters of legislation, omnipotence itself; the very *source* of all constitutional power; for, *asking* Congress to do what it *cannot* do, gives it the power—to pray the exercise of a power that is *not*, *creates* it. A beautiful theory! Let us work it both ways. If to petition for the exercise of a power that is *not*, creates it—to petition against the exercise of a power that *is*, annihilates it. As southern gentlemen are partial to summary processes, pray, sirs, try the virtue of your own recipe on "exclusive legislation in all cases whatsoever;" a better subject for experiment and test of the prescription could not be had. But if the petitions of the citizens of the District give Congress the *right* to abolish slavery, they impose the *duty*; if they confer constitutional *authority*, they create constitutional *obligation*. If Congress *may* abolish because of an expression of their will, it *must* abolish at the bidding of that will. If the people of the District are a *source of power* to Congress, their *expressed* will has the force of a constitutional provision, and has the same binding power upon the National Legislature. To make Congress dependent on the District for authority, is to make it a

subject of its authority, restraining the exercise of its own discretion, and sinking it into a mere organ of the District's will. We proceed to another objection.

"The southern states would not have ratified the constitution, if they had supposed that it gave this power." It is a sufficient answer to this objection, that the northern states would not have ratified it, if they had supposed that it *withheld* the power. If "suppositions" are to take the place of the constitution—coming from both sides, they neutralize each other. To argue a constitutional question by *guessing* at the "suppositions" that might have been made by the parties to it, would find small favor in a court of law. But even a desperate shift is some easement when sorely pushed. If this question is to be settled by "suppositions" suppositions shall be forthcoming, and that without stint.

First, then, I affirm that the North ratified the constitution, "supposing" that slavery had begun to wax old, and would speedily vanish away, and especially that the abolition of the slave trade, which by the constitution was to be surrendered to Congress after twenty years, would cast it headlong.

Would the North have adopted the constitution, giving three-fifths of the "slave property" a representation, if it had "supposed" that the slaves would have increased from half a million to two millions and a half by 1838—and that the census of 1840 would give to the slave states thirty representatives of "slave property?"

If they had "supposed" that this representation would have controlled the legislation of the government, and carried against the North every question vital to its interests, would Hamilton, Franklin, Sherman, Gerry, Livingston, Langdon, and Rufus King have been such madmen, as to sign the constitution, and the Northern States such suicides as to ratify it? Every self-preserving instinct would have shrieked at such an infatuate immolation. At the adoption of the United States constitution, slavery was regarded as a fast waning system. This conviction was universal. Washington, Jefferson, Henry, Grayson, Tucker, Madison, Wythe, Pendleton, Lee, Blair, Mason, Page, Parker, Randolph, Iredell, Spaight, Ramsey, Pinkney, Martin, McHenry, Chase, and nearly all the illustrious

names south of the Potomac, proclaimed it before the sun. A reason urged in the convention that formed the United States constitution, why the word slave should not be used in it, was, that *when slavery should cease*, there might remain upon the National Charter no record that it had ever been. (See speech of Mr. Burrill, of R.I., on the Missouri question.)

I now proceed to show by testimony, that at the date of the United States constitution, and for several years before and after that period, slavery was rapidly on the wane; that the American Revolution with the great events preceding, accompanying, and following it, had wrought an immense and almost universal change in the public sentiment of the nation on the subject, powerfully impelling it toward the entire abolition of the system—and that it was the *general belief* that measures for its abolition throughout the Union, would be commenced by the individual States generally before the lapse of many years. A great mass of testimony establishing this position might be presented, but narrow space, and the importance of speedy publication, counsel brevity. Let the following proofs suffice. First, a few dates as points of observation.

The first *general* Congress met in 1774. The revolutionary war commenced in '75. Independence was declared in '76. The articles of confederation were adopted by the thirteen states in '78. Independence acknowledged in '83. The convention for forming the U.S. constitution was held in '87, the state conventions for considering it in '87, and '88. The first Congress under the constitution in '89.

Dr. Rush, of Pennsylvania, one of the signers of the Declaration of Independence, in a letter to Granville Sharpe, May 1, 1773, says "A spirit of humanity and religion begins to awaken in several of the colonies in favor of the poor negroes. Great events have been brought about by small beginnings. *Anthony Benezet stood alone a few years ago in opposing negro slavery in Philadelphia*, and NOW THREE-FOURTHS OF THE PROVINCE AS WELL AS OF THE CITY CRY OUT AGAINST IT."— [Stuart's Life of Sharpe, p. 21.]

In the preamble to the act prohibiting the importation of slaves into Rhode Island, June, 1774, is the following: "Whereas the inhabitants of America are generally engaged in the preservation of their own rights and liberties,

among which that of personal freedom must be considered the greatest, and as those who are desirous of enjoying all the advantages of liberty themselves, *should be willing to extend personal liberty to others*, therefore," &c.

October 20, 1774, the Continental Congress passed the following: "We, for ourselves and the inhabitants of the several colonies whom we represent, *firmly agree and associate under the sacred ties of virtue, honor, and love of our country*, as follows:

"2d Article. *We will neither import nor purchase any slaves imported after the first day of December next, after which time we will wholly discontinue the slave trade, and we will neither be concerned in it ourselves, nor will we hire our vessels, nor sell our commodities or manufactures to those who are concerned in it.*"

The Continental Congress, in 1775, setting forth the causes and the necessity for taking up arms, say: "*If it were possible* for men who exercise their reason to believe that the divine Author of our existence intended a part of the human race to *hold an absolute property in, and unbounded power over others*," &c.

In 1776, Dr. Hopkins, then at the head of New England divines, in "An Address to the owners of negro slaves in the American colonies," says: "The conviction of the unjustifiableness of this practice (slavery) has been *increasing, and greatly spreading of late*, and *many* who have had slaves, have found themselves so unable to justify their own conduct in holding them in bondage, as to be induced to *set them at liberty*. * * * * Slavery is, *in every instance*, wrong, unrighteous, and oppressive—a very great and crying sin—*there being nothing of the kind equal to it on the face of the earth.*"

The same year the American Congress issued a solemn MANIFESTO to the world. These were its first words: "We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness." *Once*, these were words of power; *now*, "a rhetorical flourish."

The celebrated Patrick Henry of Virginia, in a letter, of Jan. 18, 1773, to Robert Pleasants, afterwards president of the Virginia Abolition Society, says: "Believe me, I shall honor the Quakers for their noble efforts to abolish slavery. It is a debt we owe to the purity of our religion to show that it is at variance with that law that warrants slavery. I exhort you to persevere in so worthy a resolution."

In 1779, the Continental Congress ordered a pamphlet to be published, entitled, "Observations on the American Revolution," from which the following is an extract: "The great principle (of government) is and ever will remain in force, *that men are by nature free*; and so long as we have any idea of divine *justice*, we must associate that of *human freedom*. It is *conceded on all hands, that the right to be free CAN NEVER BE ALIENATED.*"

Extract from the Pennsylvania act for the abolition of slavery, passed March 1, 1780: * * "We conceive that it is our duty, and we rejoice that it is in our power, to extend a portion of that freedom to others which has been extended to us. Weaned by a long course of experience from those narrow prejudices and partialities we had imbibed, we find our hearts enlarged with kindness and benevolence towards men of all conditions and nations: * * * Therefore be it enacted, that no child born hereafter be a slave," &c.

Jefferson, in his Notes on Virginia, written just before the close of the Revolutionary War, says: "I think a change already perceptible since the origin of the present revolution. The spirit of the master is abating, that of the slave is rising from the dust, his condition mollifying, *the way I hope preparing under the auspices of heaven*, FOR A TOTAL EMANCIPATION."

In a letter to Dr. Price, of London, who had just published a pamphlet in favor of the abolition of slavery, Mr. Jefferson, then minister at Paris, (August 7, 1785,) says: "From the mouth to the head of the Chesapeake, *the bulk of the people will approve of your pamphlet in theory*, and it will find a respectable minority ready to *adopt it in practice*—a minority which, for weight and worth of character, *preponderates against the greater number.*" Speaking of Virginia, he says: "This is the next state to which we may turn

our eyes for the interesting spectacle of justice in conflict with avarice and oppression,—a conflict in which THE SACRED SIDE IS GAINING DAILY RECRUITS. Be not, therefore, discouraged—what you have written will do a *great deal of good*; and could you still trouble yourself with our welfare, no man is more able to give aid to the laboring side. The College of William and Mary, since the remodelling of its plan, is the place where are collected together all the young men of Virginia, under preparation for public life. They are there under the direction (most of them) of a Mr. Wythe, one of the most virtuous of characters, and *whose sentiments on the subject of slavery are unequivocal*. I am satisfied, if you could resolve to address an exhortation to those young men with all that eloquence of which you are master, that *its influence on the future decision of this important question would be great, perhaps decisive*. Thus, you see, that so far from thinking you have cause to repent of what you have done, *I wish you to do more, and wish it on an assurance of its effect*."—Jefferson's Posthumous Works, vol. 1, p. 268.

In 1786, John Jay drafted and signed a petition to the Legislature of New York, on the subject of slavery, beginning with these words: "Your memorialists being deeply affected by the situation of those, who, although FREE BY THE LAW OF GOD, are held in slavery by the laws of the State," &c. This memorial bore also the signatures of the celebrated Alexander Hamilton; Robert R. Livingston, afterward Secretary of Foreign Affairs of the United States, and Chancellor of the State of New-York; James Duane, Major of the City of New-York, and many others of the most eminent individuals in the State.

In the preamble of an instrument, by which Mr. Jay emancipated a slave in 1784, is the following passage:

"Whereas, the children of men are by nature equally free, and cannot, without injustice, be either reduced to or HELD in slavery."

In his letter while Minister at Spain, in 1786, he says, speaking of the abolition of slavery: "Till America comes into this measure, her prayers to heaven will be IMPIOUS. I believe God governs the world; and I believe it to be a maxim in his, as in our court, that those who ask for equity *ought to do it*."

In 1785, the New-York Manumission Society was formed. John Jay was chosen its first President, and held the office for five years. Alexander Hamilton was its second President, and after holding the office one year, resigned upon his removal to Philadelphia as Secretary of the United States' Treasury. In 1787, the Pennsylvania Abolition Society was formed. Benjamin Franklin, warm from the discussions of the convention that formed the U.S. constitution, was chosen President, and Benjamin Rush, Secretary—both signers of the Declaration of Independence. In 1789, the Maryland Abolition Society was formed. Among its officers were Samuel Chace, Judge of the U.S. Supreme Court, and Luther Martin, a member of the convention that formed the U.S. constitution. In 1790, the Connecticut Abolition Society was formed. The first President was Rev. Dr. Stiles, President of Yale College, and the Secretary, Simeon Baldwin, (the late Judge Baldwin of New Haven.) In 1791, this Society sent a memorial to Congress, from which the following is an extract:

"From a sober conviction of the unrighteousness of slavery, your petitioners have long beheld, with grief, our fellow men doomed to perpetual bondage, in a country which boasts of her freedom. Your petitioners are fully of opinion; that calm reflection will at last convince the world, that the whole system of African slavery IS unjust in its nature—impolitic in its principles—and, in its consequences, ruinous to the industry and enterprise of the citizens of these States. From a conviction of those truths, your petitioners were led, by motives, we conceive, of general philanthropy, to associate ourselves for the protection and assistance of this unfortunate part of our fellow men; and, though this Society has been *lately* established, it has now become *generally extensive* through this state, and, we fully believe, *embraces, on this subject, the sentiments of a large majority of its citizens.*"

The same year the Virginia Abolition Society was formed. This Society, and the Maryland Society, had auxiliaries in different parts of those States. Both societies sent up memorials to Congress. The memorial of the Virginia Society is headed—"The memorial of the *Virginia Society*, for promoting the Abolition of Slavery, &c." The following is an extract:

"Your memorialists, fully believing that slavery is not only an odious degradation, but an *outrageous violation of one of the most essential rights of human nature, and utterly repugnant to the precepts of the gospel*, lament that a practice so inconsistent with true policy and the inalienable rights of men, should subsist in so enlightened an age, and among a people professing, that all mankind are, by nature, equally entitled to freedom."

About the same time a Society was formed in New Jersey. It had an acting committee of five members in each county in the State. The following is an extract from the preamble to its constitution:

"It is our boast, that we live under a government wherein *life, liberty, and the pursuit of happiness*, are recognized as the universal rights of men; and whilst we are anxious to preserve these rights to ourselves, and transmit them inviolate, to our posterity, we *abhor that inconsistent, illiberal, and interested policy, which withholds those rights from an unfortunate and degraded class of our fellow creatures.*"

Among other distinguished individuals who were efficient officers of these Abolition Societies, and delegates from their respective state societies, at the annual meetings of the American convention for promoting the abolition of slavery, were Hon. Uriah Tracy, United States' Senator, from Connecticut; Hon. Zephaniah Swift, Chief Justice of the same State; Hon. Cesar A. Rodney, Attorney General of the United States; Hon. James A. Bayard, United States' Senator, from Delaware; Governor Bloomfield, of New-Jersey; Hon. Wm. Rawle, the late venerable head of the Philadelphia bar; Dr. Caspar Wistar, of Philadelphia; Messrs. Foster and Tillinghast, of Rhode Island; Messrs. Ridgely, Buchanan, and Wilkinson, of Maryland; and Messrs. Pleasants, McLean, and Anthony, of Virginia.

In July, 1787, the old Congress passed the celebrated ordinance abolishing slavery in the northwestern territory, and declaring that it should never thereafter exist there. This ordinance was passed while the convention that formed the United States' constitution was in session. At the first session of Congress under the constitution, this ordinance was ratified by a special act. Washington, fresh from the discussions of the convention, in which *more*

than forty days had been spent in adjusting the question of slavery, gave it his approval. The act passed with only one dissenting voice, (that of Mr. Yates, of New York,) the South equally with the North avowing the fitness and expediency of the measure on general considerations, and indicating thus early the line of national policy, to be pursued by the United States' Government on the subject of slavery.

In the debates in the North Carolina Convention, Mr. Iredell, afterward a Judge of the United States' Supreme Court, said, "*When the entire abolition of slavery takes place*, it will be an event which must be pleasing to every generous mind and every friend of human nature." Mr. Galloway said, "I wish to see this abominable trade put an end to. I apprehend the clause (touching the slave trade) means *to bring forward manumission*." Luther Martin, of Maryland, a member of the convention that formed the United States Constitution, said, "We ought to authorize the General Government to make such regulations as shall be thought most advantageous for *the gradual abolition of slavery*, and the *emancipation of the slaves* which are already in the States." Judge Wilson, of Pennsylvania, one of the framers of the constitution, said, in the Pennsylvania convention of '87, [Deb. Pa. Con. p. 303, 156:] "I consider this (the clause relative to the slave trade) as laying the foundation for *banishing slavery out of this country*. It will produce the same kind of gradual change which was produced in Pennsylvania; the new states which are to be formed will be under the control of Congress in this particular, and *slaves will never be introduced* among them. It presents us with the pleasing prospect that the rights of mankind will be acknowledged and established *throughout the Union*. Yet the lapse of a few years, and Congress will have power to *exterminate slavery* within our borders." In the Virginia convention of '87, Mr. Mason, author of the Virginia constitution, said, "The augmentation of slaves weakens the States, and such a trade is *diabolical* in itself, and disgraceful to mankind. As much as I value a union of all the states, I would not admit the southern states, (i.e., South Carolina and Georgia,) into the union, *unless they agree to a discontinuance of this disgraceful trade*." Mr. Tyler opposed with great power the clause prohibiting the abolition of the slave trade till 1808, and said, "My earnest desire is, that it shall be handed down to posterity that I oppose this wicked clause." Mr. Johnson said, "The principle of emancipation *has begun since the revolution. Let us do what we will, it will come round*."—[Deb. Va. Con.

p. 463.] Patrick Henry, arguing the power of Congress under the United States' constitution to abolish slavery in the States, said, in the same convention, "Another thing will contribute to bring this event (the abolition of slavery) about. Slavery is *detested*. We feel its fatal effects; we deplore it with all the pity of humanity."—[Deb. Va. Con. p. 431.] In the Mass. Con. of '88, Judge Dawes said, "Although slavery is not smitten by an apoplexy, yet *it has received a mortal wound*, and will die of consumption."—[Deb. Mass. Con. p. 60.] General Heath said that, "Slavery was confined to the States *now existing*, it *could not be extended*. By their ordinance, Congress had declared that the new States should be republican States, *and have no slavery*."—p. 147.

In the debate, in the first Congress, February 11th and 12th, 1789, on the petitions of the Society of Friends, and the Pennsylvania Abolition Society, Mr. Parker, of Virginia, said, "I cannot help expressing the pleasure I feel in finding *so considerable a part* of the community attending to matters of such a momentous concern to the *future prosperity* and happiness of the people of America. I think it my duty, as a citizen of the Union, *to espouse their cause*."

Mr. Page, of Virginia, (afterward Governor)—"Was *in favor* of the commitment; he hoped that the designs of the respectable memorialists would not be stopped at the threshold, in order to preclude a fair discussion of the prayer of the memorial. With respect to the alarm that was apprehended, he conjectured there was none; but there might be just cause, if the memorial was *not* taken into consideration. He placed himself in the case of a slave, and said, that on hearing that Congress had refused to listen to the decent suggestions of a respectable part of the community, he should infer, that the general government, *from which was expected great good would result to EVERY CLASS of citizens*, had shut their ears against the voice of humanity, and he should despair of any alleviation of the miseries he and his posterity had in prospect; if any thing could induce him to rebel, it must be a stroke like this, impressing on his mind all the horrors of despair. But if he was told, that application was made in his behalf, and that Congress were willing to hear what could be urged in favor of discouraging the practice of importing his fellow-wretches, he would trust in their justice and humanity, and *wait the decision patiently*."

Mr. Scott of Pennsylvania: "I cannot, for my part, conceive how any person *can be said to acquire a property in another*. Let us argue on principles countenanced by reason, and becoming humanity. *I do not know how far I might go, if I was one of the judges of the United States, and those people were to come before me and claim their emancipation, but I am sure I would go as far as I could.*"

Mr. Burke, of South Carolina, said, "He *saw the disposition of the House*, and he feared it would be referred to a committee, *maugre all their opposition.*"

Mr. Smith of South Carolina, said, "That on entering into this government, they (South Carolina and Georgia) apprehended that the other states, * * * *would, from motives of humanity and benevolence, be led to vote for a general emancipation.*"

In the debate, at the same session, May 13th, 1789, on the petition of the Society of Friends respecting the slave trade, Mr. Parker, of Virginia, said, "He hoped Congress would do all that lay in their power *to restore to human nature its inherent privileges*. The inconsistency in our principles, with which we are justly charged *should be done away.*"

Mr. Jackson, of Georgia, said, "IT WAS THE FASHION OF THE DAY TO FAVOR THE LIBERTY OF THE SLAVES. * * * * Will Virginia set her negroes free? *When this practice comes to be tried, then the sound of liberty will lose those charms which make it grateful to the ravished ear.*"

Mr. Madison, of Virginia,—"The dictates of humanity, the principles of the people, the national safety and happiness, and prudent policy, require it of us. * * * * I conceive the constitution in this particular was formed in order that the Government, whilst it was restrained from laying a total prohibition, might be able to *give some testimony of the sense of America*, with respect to the African trade. * * * * It is to be hoped, that by expressing a national disapprobation of this trade, we may destroy it, and save ourselves from reproaches, AND OUR POSTERITY THE IMBECILITY EVER ATTENDANT ON A COUNTRY FILLED WITH SLAVES. If there is any one point in which it is clearly the policy of

this nation, so far as we constitutionally can, *to vary the practice* obtaining under some of the state governments, it is this. But it is *certain* a majority of the states are *opposed to this practice*."—Cong. Reg. v. 1, p. 308-12.

A writer in the "Gazette of the United States," Feb. 20th, 1790, (then the government paper,) who opposes the abolition of slavery, and avows himself a *slaveholder*, says, "I have seen in the papers accounts of *large associations*, and applications to Government for *the abolition of slavery*. Religion, humanity, and the generosity natural to a free people, are the *noble principles which dictate those measures*. SUCH MOTIVES COMMAND RESPECT, AND ARE ABOVE ANY EULOGIUM WORDS CAN BESTOW."

In the convention that formed the constitution of Kentucky in 1790, the effort to prohibit slavery was nearly successful. A decided majority of that body would undoubtedly have voted for its exclusion, but for the great efforts and influence of two large slaveholders—men of commanding talents and sway—Messrs. Breckenridge and Nicholas. The following extract from a speech made in that convention by a member of it, Mr. Rice a native Virginian, is a specimen of the *free discussion* that prevailed on that "delicate subject." Said Mr. Rice: "I do a man greater injury, when I deprive him of his liberty, than when I deprive him of his property. It is vain for me to plead that I have the sanction of law; for this makes the injury the greater—it arms the community against him, and makes his case desperate. The owners of such slaves then are *licensed robbers*, and not the just proprietors of what they claim. Freeing them is not depriving them of property, but *restoring it to the right owner*. In America, a slave is a standing monument of the tyranny and inconsistency of human governments. The master is the enemy of the slave; he *has made open war upon him*, AND IS DAILY CARRYING IT ON in unremitted efforts. Can any one imagine, then, that the slave is indebted to his master, and *bound to serve him*? Whence can the obligation arise? What is it founded upon? What is my duty to an enemy that is carrying on war against me? I do not deny, but in some circumstances, it is the duty of the slave to serve; but it is a duty he owes himself, and not his master."

President Edwards, the younger, said, in a sermon preached before the Connecticut Abolition Society, Sept. 15, 1791: "Thirty years ago, scarcely a man in this country thought either the slave trade or the slavery of negroes to be wrong; but now how many and able advocates in private life, in our legislatures, in Congress, have appeared, and have openly and irrefragably pleaded the rights of humanity in this as well as other instances? And if we judge of the future by the past, *within fifty years from this time, it will be as shameful for a man to hold a negro slave, as to be guilty of common robbery or theft.*"

In 1794, the General Assembly of the Presbyterian church adopted its "Scripture proofs," notes, comments, &c. Among these was the following:

"1 Tim. i. 10. The law is made for manstealers. This crime among the Jews exposed the perpetrators of it to capital punishment. Exodus xxi. 16. And the apostle here classes them with *sinner of the first rank*. The word he uses, in its original import comprehends all who are concerned in bringing any of the human race into slavery, or in *retaining* them in it. *Stealers of men* are all those who bring off slaves or freemen, and *keep*, sell, or buy them."

In 1794, Dr. Rush declared: "Domestic slavery is repugnant to the principles of Christianity. It prostrates every benevolent and just principle of action in the human heart. It is rebellion against the authority of a common Father. It is a practical denial of the extent and efficacy of the death of a common Savior. It is an usurpation of the prerogative of the great Sovereign of the universe, who has solemnly claimed an exclusive property in the souls of men."

In 1790, Mr. Fiske, then an officer of Dartmouth College, afterward a Judge in Tennessee, said, in an oration published that year, speaking of slaves: "I steadfastly maintain, that we must bring them to *an equal standing, in point of privileges, with the whites!* They must enjoy all the rights belonging to human nature."

When the petition on the abolition of the slave trade was under discussion in the Congress of '89, Mr. Brown, of North Carolina, said, "The emancipation of the slaves *will be effected* in time; it ought to be a gradual

business, but he hoped that Congress would not *precipitate* it to the great injury of the southern States." Mr. Hartley, of Pennsylvania, said, in the same debate, "*He was not a little surprised to hear the cause of slavery advocated in that house.*" WASHINGTON, in a letter to Sir John Sinclair, says, "There are, in Pennsylvania, laws for the gradual abolition of slavery which neither Maryland nor Virginia have at present, but which *nothing is more certain* than that they *must have*, and at a period NOT REMOTE." In 1782, Virginia passed her celebrated manumission act. Within nine years from that time nearly eleven thousand slaves were voluntarily emancipated by their masters. Judge Tucker's "Dissertation on Slavery," p. 72. In 1787, Maryland passed an act legalizing manumission. Mr. Dorsey, of Maryland, in a speech in Congress, December 27th, 1826, speaking of manumissions under that act, said, that "*The progress of emancipation was astonishing*, the State became crowded with a free black population."

The celebrated William Pinkney, in a speech before the Maryland House of Delegates, in 1789, on the emancipation of slaves, said, "Sir, by the eternal principles of natural justice, *no master in the state has a right to hold his slave in bondage for a single hour....* I would as soon believe the incoherent tale of a schoolboy, who should tell me he had been frightened by a ghost, as that the grant of this permission (to emancipate) ought in any degree to alarm us. Are we apprehensive that these men will become more dangerous by becoming freemen? Are we alarmed, lest by being admitted into the enjoyment of civil rights, they will be inspired with a deadly enmity against the rights of others? Strange, unaccountable paradox! How much more rational would it be, to argue that the natural enemy of the privileges of a freeman, is he who is robbed of them himself! Dishonorable to the species is the idea that they would ever prove injurious to our interests—released from the shackles of slavery, by the justice of government and the bounty of individuals—the want of fidelity and attachment would be next to impossible."

Hon. James Campbell, in an address before the Pennsylvania Society of the Cincinnati, July 4, 1787, said, "Our separation from Great Britain has extended the empire of humanity. The time *is not far distant* when our sister states, in imitation of our example, *shall turn their vassals into freemen.*" The Convention that formed the United States' Constitution being then in

session, attended at the delivery of this oration with General Washington at their head.

A Baltimore paper of September 8th, 1780, contains the following notice of Major General Gates: "A few days ago passed through this town the Hon. General Gates and lady. The General, previous to leaving Virginia, summoned his numerous family of slaves about him, and amidst their tears of affection and gratitude, gave them their FREEDOM."

In 1791 the university of William and Mary, in Virginia, conferred upon Granville Sharpe the degree of Doctor of Laws. Sharpe was at that time the acknowledged head of British abolitionists. His indefatigable exertions, prosecuted for years in the case of Somerset, procured that memorable decision in the Court of King's Bench, which settled the principle that no slave could be held in England. He was most uncompromising in his opposition to slavery, and for twenty years previous he had spoken, written, and accomplished more against it than any man living.

In the "Memoirs of the Revolutionary War in the Southern Department," by Gen. Lee, of Va., Commandant of the Partizan Legion, is the following: "The Constitution of the United States, adopted lately with so much difficulty, has effectually provided against this evil, (by importation) after a few years. It is much to be lamented that having done so much in this way, *a provision had not been made for the gradual abolition of slavery.*"—p. 233, 4.

Mr. Tucker, of Virginia, Judge of the Supreme Court of that state, and professor of law in the University of William and Mary, addressed a letter to the General Assembly of that state, in 1796, urging the abolition of slavery; from which the following is an extract. Speaking of the slaves in Virginia, he says: "Should we not, at the time of the revolution, have loosed their chains and broken their fetters; or if the difficulties and dangers of such an experiment prohibited the attempt, during the convulsions of a revolution, is it not our duty, *to embrace the first moment* of constitutional health and vigor to effectuate so desirable an object, and to remove from us a stigma with which our enemies will never fail to upbraid us, nor our consciences to reproach us?"

Mr. Faulkner, in a speech before the Virginia Legislature, Jan. 20, 1832, said—"The idea of a gradual emancipation and removal of the slaves from this commonwealth, is coeval with the declaration of our independence from the British yoke. It sprung into existence during the first session of the General Assembly, subsequent to the formation of your republican government. When Virginia stood sustained in her legislation by the pure and philosophic intellect of Pendleton—by the patriotism of Mason and Lee—by the searching vigor and sagacity of Wythe, and by the all-embracing, all-comprehensive genius of Thomas Jefferson! Sir, it was a committee composed of those five illustrious men, who, in 1777, submitted to the general assembly of this state, then in session, *a plan for the gradual emancipation of the slaves of this commonwealth.*"

Hon. Benjamin Watkins Leigh, late United States' senator from Virginia, in his letters to the people of Virginia, in 1832, signed Appomattox, p. 43, says: "I thought, till very lately, that it was known to every body that during the Revolution, *and for many years after, the abolition of slavery was a favorite topic with many of our ablest statesmen*, who entertained, with respect, all the schemes which wisdom or ingenuity could suggest for accomplishing the object. Mr. Wythe, to the day of his death, *was for a simple abolition, considering the objection to color as founded in prejudice.* By degrees, all projects of the kind were abandoned. Mr. Jefferson *retained* his opinion, and now we have these projects revived."

Governor Barbour, of Virginia, in his speech in the U.S. Senate, on the Missouri question, Jan. 1820, said:—"We are asked why has Virginia *changed her policy* in reference to slavery? That the sentiments of *our most distinguished men*, for thirty years *entirely corresponded* with the course which the friends of the restriction (of slavery in Missouri) now advocated; and that the Virginia delegation, one of whom was the late President of the United States, voted for the restriction, (of slavery) in the northwestern territory, and that Mr. Jefferson has delineated a gloomy picture of the baneful effects of slavery. When it is recollected that the Notes of Mr. Jefferson were written during the progress of the revolution, it is no matter of surprise that the writer should have imbibed a large portion of that enthusiasm which such an occasion was so well calculated to produce. As to the consent of the Virginia delegation to the restriction in question, whether

the result of a disposition to restrain the slave trade indirectly, or the influence of that enthusiasm to which I have just alluded, * * * * it is not now important to decide. We have witnessed its effects. The liberality of Virginia, or, as the result may prove, her folly, which submitted to, or, if you will, PROPOSED *this measure*, (abolition of slavery in the N.W. territory) has eventuated in effects which speak a monitory lesson. *How is the representation from this quarter on the present question?"*

Mr. Imlay, in his early history of Kentucky, p. 185, says: "We have disgraced the fair face of humanity, and trampled upon the sacred privileges of man, at the very moment that we were exclaiming against the tyranny of your (the English) ministry. But in contending for the birthright of freedom, we have learned to feel *for the bondage of others*, and in the libations we offer to the goddess of liberty, we *contemplate an emancipation of the slaves of this country*, as honorable to themselves as it will be glorious to us."

In the debate in Congress, Jan, 20, 1806, on Mr. Sloan's motion to lay a tax on the importation of slaves, Mr. Clark of Va. said: "He was no advocate for a system of slavery." Mr. Marion, of S. Carolina, said: "He never had purchased, nor should he ever purchase a slave." Mr. Southard said: "Not revenue, but an expression of the *national sentiment* is the principal object." Mr. Smilie—"I rejoice that the word (slave) is not in the constitution; its not being there does honor to the worthies who would not suffer it to become a *part* of it." Mr. Alston, of N. Carolina—"In two years we shall have the power to prohibit the trade altogether. Then this House will be UNANIMOUS. No one will object to our exercising our full constitutional powers." National Intelligencer, Jan. 24, 1806.

These witnesses need no vouchers to entitle them to credit; nor their testimony comments to make it intelligible—their *names* are their *endorsers* and their strong words their own interpreters. We wave all comments. Our readers are of age. Whosoever hath ears to *hear*, let him HEAR. And whosoever will not hear the fathers of the revolution, the founders of the government, its chief magistrates, judges, legislators and sages, who dared and periled all under the burdens, and in the heat of the day that tried men's

souls—then "neither will he be persuaded though THEY rose from the dead."

Some of the points established by the testimony are—The universal expectation that the *moral* influence of Congress, of state legislatures, of seminaries of learning, of churches, of the ministers of religion, and of public sentiment widely embodied in abolition societies, would be exerted against slavery, calling forth by argument and appeal the moral sense of the nation, and creating a power of opinion that would abolish the system throughout the union. In a word, that free speech and a free press would be wielded against slavery without ceasing and without restriction. Full well did the south know, not only that the national government would probably legislate against slavery wherever the constitution placed it within its reach, but she knew also that Congress had already marked out the line of national policy to be pursued on the subject—had committed itself before the world to a course of action against slavery, wherever she could move upon it without encountering a conflicting jurisdiction—that the nation had established by solemn ordinance memorable precedent for subsequent action, by abolishing slavery in the northwest territory, and by declaring that it should never thenceforward exist there; and this too, as soon as by cession of Virginia and other states, the territory came under Congressional control. The south knew also that the sixth article in the ordinance prohibiting slavery was first proposed by the largest slaveholding state in the confederacy—that the chairman of the committee that reported the ordinance was a slaveholder—that the ordinance was enacted by Congress during the session of the convention that formed the United States Constitution—that the provisions of the ordinance were, both while in prospect, and when under discussion, matters of universal notoriety and *approval* with all parties, and when finally passed, received the vote of *every member of Congress from each of the slaveholding states*. The south also had every reason for believing that the first Congress under the constitution would *ratify* that ordinance—as it *did* unanimously.

A crowd of reflections, suggested by the preceding testimony, press for utterance. The right of petition ravished and trampled by its constitutional guardians, and insult and defiance hurled in the faces of the SOVEREIGN PEOPLE while calmly remonstrating *with their* SERVANTS for violence

committed on the nation's charter and their own dearest rights! Add to this "the right of peaceably assembling" violently wrested—the rights of minorities, *rights* no longer—free speech struck dumb—free *men* outlawed and murdered—free presses cast into the streets and their fragments strewn with shoutings, or flourished in triumph before the gaze of approving crowds as proud members of prostrate law!

The spirit and power of our fathers, where are they? Their deep homage always and every where rendered to FREE THOUGHT, with its *inseparable signs—free speech and a free press*—their reverence for justice, liberty, *rights* and all-pervading law, where are they?

But we turn from these considerations—though the times on which we have fallen, and those towards which we are borne with headlong haste, call for their discussion as with the voices of departing life—and proceed to topics relevant to the argument before us.

The seventh article of the amendments to the constitution is alleged to withhold from Congress the power to abolish slavery in the District. "No person shall be deprived of life, liberty, or property, without due process of law." All the slaves in the District have been "deprived of liberty" by legislative acts. Now, these legislative acts "depriving" them "of liberty," were either "due process of law," or they were *not*. If they *were*, then a legislative act, taking from the master that "property" which is the identical "liberty" previously taken from the slave, would be "due process of law" *also*, and of course a *constitutional* act; but if the legislative acts "depriving" them of "liberty" were *not* "due process of law," then the slaves were deprived of liberty *unconstitutionally*, and these acts are *void*. In that case the *constitution emancipates them*.

If the objector reply, by saying that the import of the phrase "due process of law," is *judicial* process solely, it is granted, and that fact is our rejoinder; for no slave in the District *has* been deprived of his liberty by "a judicial process," or, in other words, by "due process of law;" consequently, upon the objector's own admission, every slave in the District has been deprived of liberty *unconstitutionally*, and is therefore *free by the constitution*. This is asserted only of the slaves under the "exclusive legislation" of Congress.

The last clause of the article under consideration is quoted for the same purpose: "Nor shall private property be taken for public use without just compensation." Each of the state constitutions has a clause of similar purport. The abolition of slavery in the District by Congress, would not, as we shall presently show, violate this clause either directly or by implication. Granting for argument's sake, that slaves are "private property," and that to emancipate them, would be to "take private property" for "public use," the objector admits the power of Congress to do *this*, provided it will do something *else*, that is, *pay* for them. Thus, instead of denying the *power*, the objector not only admits, but *affirms* it, as the ground of the inference that compensation must accompany it. So far from disproving the existence of *one* power, the objector asserts the existence of *two*—one, the power to take the slaves from their masters, the other, the power to take the property of the United States to pay for them.

If Congress cannot constitutionally impair the right of private property, or take it without compensation, it cannot constitutionally, *legalise* the perpetration of such acts, by *others*, nor *protect* those who commit them. Does the power to rob a man of his earnings, rob the earner of his right to them? Who has a better right to the *product* than the producer?—to the *interest*, than the owner of the *principal*?—to the hands and arms, than he from whose shoulders they swing?—to the body and soul, than he whose they *are*? Congress not only impairs but annihilates the right of private property, while it withholds from the slaves of the District their title to *themselves*. What! Congress powerless to protect a man's right to *himself*, when it can make inviolable the right to a *dog*! But, waving this, I deny that the abolition of slavery in the District would violate this clause. What does the clause prohibit? The "taking" of "private property" for "public use." Suppose Congress should emancipate the slaves in the District, what would it "*take*?" Nothing. What would it *hold*? Nothing. What would it put to "public use?" Nothing. Instead of *taking* "private property," Congress, by abolishing slavery, would say "*private property* shall not *be* taken; and those who have been robbed of it already, shall be kept out of it no longer; and since every man's right to his own body is *paramount*, he shall be protected in it." True, Congress may not arbitrarily take property, *as* property, from one man and give it to another—and in the abolition of slavery no such thing is done. A legislative act changes the *condition* of the

slave—makes him his own *proprietor* instead of the property of another. It determines a question of *original right* between two classes of persons—doing an act of justice to one, and restraining the other from acts of injustice; or, in other words, preventing one from robbing the other, by granting to the injured party the protection of just and equitable laws.

Congress, by an act of abolition, would change the condition of seven thousand "persons" in the District, but would "take" nothing. To construe this provision so as to enable the citizens of the District to hold as property, and in perpetuity, whatever they please, or to hold it as property in all circumstances—all necessity, public welfare, and the will and power of the government to the contrary notwithstanding—is a total perversion of its whole *intent*. The *design* of the provision, was to throw up a barrier against Governmental aggrandizement. The right to "take property" for *State uses* is one thing;—the right so to adjust the *tenures* by which property is held, that *each may have his own secured to him*, is another thing, and clearly within the scope of legislation. Besides, if Congress were to "take" the slaves in the District, it would be *adopting*, not abolishing slavery—becoming a slaveholder itself, instead of requiring others to be such no longer. The clause in question, prohibits the "taking" of individual property for public uses, to be employed or disposed of as property for governmental purposes. Congress, by abolishing slavery in the District, would do no such thing. It would merely change the *condition* of that which has been recognised as a qualified property by congressional acts, though previously declared "persons" by the constitution. More than this is done continually by Congress and every other Legislature. Property the most absolute and unqualified, is annihilated by legislative acts. The embargo and non-intercourse act, prostrated at a stroke, a forest of shipping, and sunk millions of capital. To say nothing of the power of Congress to take hundreds of millions from the people by direct taxation, who doubts its power to abolish at once the whole tariff system, change the seat of Government, arrest the progress of national works, prohibit any branch of commerce with the Indian tribes or with foreign nations, change the locality of forts, arsenals, magazines, dock yards, &c., to abolish the Post Office system, the privilege of patents and copyrights, &c. By such acts Congress might, in the exercise of its acknowledged powers, annihilate property to an

incalculable amount, and that without becoming liable to claims for compensation.

Finally, this clause prohibits the taking for public use of "*property*." The constitution of the United States does not recognise slaves as "PROPERTY" any where, and it does not recognise them in *any sense* in the District of Columbia. All allusions to them in the constitution recognise them as "persons." Every reference to them points *solely* to the element of *personality*; and thus, by the strongest implication, declares that the constitution *knows* them only as "persons," and *will* not recognise them in any other light. If they escape into free States, the constitution authorizes their being taken back. But how? Not as the property of an "owner," but as "persons;" and the peculiarity of the expression is a marked recognition of their *personality*—a refusal to recognise them as chattels—"persons *held* to service." Are *oxen* "*held* to service?" That can be affirmed only of *persons*. Again, slaves give political power as "persons." The constitution, in settling the principle of representation, requires their enumeration in the census. How? As property? Then why not include race horses and game cocks? Slaves, like other inhabitants, are enumerated as "persons." So by the constitution, the government was pledged to non-interference with "the migration or importation of such persons" as the States might think proper to admit until 1808, and authorized the laying of a tax on each "person" so admitted. Further, slaves are recognised as *persons* by the exaction of their *allegiance* to the government. For offences against the government slaves are tried as *persons*; as persons they are entitled to counsel for their defence, to the rules of evidence, and to "due process of law," and as *persons* they are punished. True, they are loaded with cruel disabilities in courts of law, such as greatly obstruct and often inevitably defeat the ends of justice, yet they are still recognised as *persons*. Even in the legislation of Congress, and in the diplomacy of the general government, notwithstanding the frequent and wide departures from the integrity of the constitution on this subject, slaves are not recognised as *property* without qualification. Congress has always refused to grant compensation for slaves killed or taken by the enemy, even when these slaves had been impressed into the United States' service. In half a score of cases since the last war, Congress has rejected such applications for compensation. Besides, both in Congressional acts, and in our national diplomacy, slaves and property are

not used as convertible terms. When mentioned in treaties and state papers it is in such a way as to distinguish them from mere property, and generally by a recognition of their *personality*. In the invariable recognition of slaves as *persons*, the United States' constitution caught the mantle of the glorious Declaration, and most worthily wears it.—It recognizes all human beings as "men," "persons," and thus as "equals." In the original draft of the Declaration, as it came from the hand of Jefferson, it is alleged that Great Britain had "waged a cruel war against *human* nature itself, violating its most sacred rights of life and liberty in the persons of a distant people, carrying them into slavery, * * determined to keep up a market where MEN should be bought and sold,"—thus disdaining to make the charter of freedom a warrant for the arrest of *men*, that they might be shorn both of liberty and humanity.

The celebrated Roger Sherman, one of the committee of five appointed to draft the Declaration of Independence, and also a member of the convention that formed the United States' constitution, said, in the first Congress after its adoption: "The constitution *does not consider these persons, (slaves,) as a species of property.*"—[Lloyd's Cong. Reg. v. 1, p. 313.] That the United States' Constitution does not make slaves "property," is shown in the fact that no person, either as a citizen of the United States, or by having his domicile within the United States' government, can hold slaves. He can hold them only by deriving his power from *state* laws, or from the laws of Congress, if he hold slaves within the District. But no person resident within the United States' jurisdiction, and not within the District, nor within a state whose laws support slavery, nor "held to service" under the laws of such state or district, having escaped therefrom, *can be held as a slave*.

Men can hold *property* under the United States' government though residing beyond the bounds of any state, district, or territory. An inhabitant of the Wisconsin Territory can hold property there under the laws of the United States, but he cannot hold *slaves* there under the United States' laws, nor by virtue of the United States' Constitution, nor upon the ground of his United States citizenship, nor by having his domicile within the United States' jurisdiction. The constitution no where recognizes the right to "slave property," *but merely the fact that the states have jurisdiction each in its*

own limits, and that there are certain "persons" within their jurisdictions "held to service" by their own laws.

Finally, in the clause under consideration, "private property" is not to be taken "without *just* compensation." "JUST!" If justice is to be appealed to in determining the amount of compensation, let her determine the *grounds* also. If it be her province to say *how much* compensation is "just," it is hers to say whether *any* is "just,"—whether the slave is "just" property *at all*, rather than a "*person*." Then, if justice adjudges the slave to be "private property," it adjudges him to be *his own* property, since the right to one's *self* is the first right—the source of all others—the original stock by which they are accumulated—the principal, of which they are the interest. And since the slave's "private property" has been "taken," and since "compensation" is impossible—there being no *equivalent* for one's self—the least that can be done is to restore to him his original private property.

Having shown that in abolishing slavery, "property" would not be "taken for public use," it may be added that, in those states where slavery has been abolished by law, no claim for compensation has been allowed. Indeed the manifest absurdity of demanding it, seems to have quite forstalled the *setting up* of such a claim.

The abolition of slavery in the District, instead of being a legislative anomaly, would proceed upon the principles of every day legislation. It has been shown already, that the United States' Constitution does not recognize slaves as "property." Yet ordinary legislation is full of precedents, showing that even *absolute* property is in many respects wholly subject to legislation. The repeal of the law of entailments—all those acts that control the alienation of property, its disposal by will, its passing to heirs by descent, with the question, who shall be heirs, and what shall be the rule of distribution among them, or whether property shall be transmitted at all by descent, rather than escheat to the state—these, with statutes of limitation, and various other classes of legislative acts, serve to illustrate the acknowledged scope of the law-making power, even where property *is in every sense absolute*. Persons whose property is thus affected by public laws, receive from the government no compensation for their losses, unless the state has been put in possession of the property taken from them.

The preamble of the United States' Constitution declares it to be a fundamental object of the organization of the government "to ESTABLISH JUSTICE." Has Congress *no power* to do that for which it was made the *depository of power*? CANNOT the United States' Government fulfil the purpose *for which it was brought into being*?

To abolish slavery, is to take from no rightful owner his property; but to "*establish justice*" between two parties. To emancipate the slave, is to "*establish justice*" between him and his master—to throw around the person, character, conscience, liberty, and domestic relations of the one, *the same law* that secures and blesses the other. In other words, to prevent by *legal restraints* one class of men from seizing upon another class, and robbing them at pleasure of their earnings, their time, their liberty, their kindred, and the very use and ownership of their own persons. Finally, to abolish slavery is to proclaim and *enact* that innocence and helplessness—now *free plunder*—are entitled to *legal protection*; and that power, avarice, and lust, shall no longer gorge upon their spoils under the license, and by the ministrations of *law*! Congress, by possessing "exclusive legislation in all cases whatsoever," has a *general protective power* for ALL the inhabitants of the District. If it has no power to protect *one* man, it has none to protect another—none to protect *any*—and if it *can* protect *one* man and is *bound* to protect him, it *can* protect *every* man—all men—and is *bound* to do it. All admit the power of Congress to protect the masters in the District against their slaves. What part of the constitution gives the power? The clause so often quoted,—"*power of legislation in all cases whatsoever*," equally in the "*case*" of defending the blacks against the whites, as in that of defending the whites against the blacks. The power is given also by Art. 1, Sec. 8, clause 15—"Congress shall have power to suppress insurrections"—a power to protect, as well blacks against whites, as whites against blacks. If the constitution gives power to protect *one* class against the other, it gives power to protect *either* against the other. Suppose the blacks in the District should seize the whites, drive them into the fields and kitchens, force them to work without pay, flog them, imprison them, and sell them at their pleasure, where would Congress find power to restrain such acts? Answer; a *general* power in the clause so often cited, and an *express* one in that cited above—"Congress shall have power to suppress insurrections." So much for a *supposed* case. Here follows a *real* one. The whites in the District *are*

perpetrating these identical acts upon seven thousand blacks daily. That Congress has power to restrain these acts in *one* case, all assert, and in so doing they assert the power "in *all* cases whatsoever." For the grant of power to suppress insurrections, is an *unconditional* grant, not hampered by provisos as to the color, shape, size, sex, language, creed, or condition of the insurgents. Congress derives its power to suppress this *actual* insurrection, from the same source whence it derived its power to suppress the *same* acts in the case *supposed*. If one case is an insurrection, the other is. The *acts* in both are the same; the *actors* only are different. In the one case, ignorant and degraded—goaded by the memory of the past, stung by the present, and driven to desperation by the fearful looking for of wrongs for ever to come. In the other, enlightened into the nature of *rights*, the principles of justice, and the dictates of the law of love, unprovoked by wrongs, with cool deliberation, and by system, they perpetrate these acts upon those to whom they owe unnumbered obligations for *whole lives* of unrequited service. On which side may palliation be pleaded, and which party may most reasonably claim an abatement of the rigors of law? If Congress has power to suppress such acts *at all*, it has power to suppress them *in all*.

It has been shown already that *allegiance* is exacted of the slave. Is the government of the United States unable to grant *protection* where it exacts *allegiance*? It is an axiom of the civilized world, and a maxim even with savages, that allegiance and protection are reciprocal and correlative. Are principles powerless with us which exact homage of barbarians? *Protection is the CONSTITUTIONAL RIGHT of every human being under the exclusive legislation of Congress who has not forfeited it by crime.*

In conclusion, I argue the power of Congress to abolish slavery in the District, from Art. 1, sec, 8, clause 1, of the constitution; "Congress shall have power to provide for the common defence and the general welfare of the United States." Has the government of the United States no power under this grant, to legislate within its own exclusive jurisdiction on subjects that vitally affect its interests? Suppose the slaves in the district should rise upon their masters, and the United States' government, in quelling the insurrection, should kill any number of them. Could their masters claim compensation of the government? Manifestly not; even though no proof

existed that the particular slaves killed were insurgents. This was precisely the point at issue between those masters, whose slaves were killed by the State troops at the time of the Southampton insurrection, and the Virginia Legislature: no evidence was brought to show that the slaves killed by the troops were insurgents; yet the Virginia Legislature decided that their masters were *not entitled to compensation*. They proceeded on the sound principle, that a government may in self-protection destroy the claim of its subjects even to that which has been recognized as property by its own acts. If in providing for the common defence, the United States' government, in the case supposed, would have power to destroy slaves both as *property* and *persons*, it surely might stop *half-way*, destroy them *as property* while it legalized their existence as *persons*, and thus provided for the common defence by giving them a personal and powerful interest in the government, and securing their strength for its defence.

Like other Legislatures, Congress has power to abate nuisances—to remove or tear down unsafe buildings—to destroy infected cargoes—to lay injunctions upon manufactories injurious to the public health—and thus to "provide for the common defence and general welfare" by destroying individual property, when such property puts in jeopardy the public weal.

Granting, for argument's sake, that slaves are "property" in the District of Columbia—if Congress has a right to annihilate property in the District when the public safety requires it, it may surely annihilate its existence *as property* when the public safety requires it, especially if it transform into a *protection* and *defence* that which as *property* perilled the public interests. In the District of Columbia there are, besides the United States' Capitol, the President's house, the national offices, &c. of the Departments of State, Treasury, War, and Navy, the General Post-office, and Patent Office. It is also the residence of the President, all the highest officers of the government, both houses of Congress, and all the foreign ambassadors. In this same District there are also *seven thousand slaves*. Jefferson, in his Notes on Va. p. 241, says of slavery, that "the State permitting one half of its citizens to trample on the rights of the other, *transforms them into enemies*;" and Richard Henry Lee, in the Va. house of Burgesses in 1758, declared that to those who held them, "*slaves must be natural enemies*." Is Congress so *impotent* that it *cannot* exercise that right pronounced both by

municipal and national law, the most sacred and universal—the right of self-preservation and defence? Is it shut up to the *necessity* of keeping seven thousand "enemies" in the heart of the nation's citadel? Does the iron fiat of the constitution doom it to such imbecility that it *cannot* arrest the process that *made* them "enemies," and still goads to deadlier hate by fiery trials, and day by day adds others to their number? Is *this* providing for the common defence and general welfare? If to rob men of rights excites their hate, freely to restore them and make amends, will win their love.

By emancipating the slaves in the District, the government of the United States would disband an army of "enemies," and enlist "for the common defence and general welfare," a body guard of *friends* seven thousand strong. In the last year, a handful of British soldiers sacked Washington city, burned the capitol, the President's house, and the national offices and archives; and no marvel, for thousands of the inhabitants of the District had been "TRANSFORMED INTO ENEMIES." Would *they* beat back invasion? If the national government had exercised its constitutional "power to provide for the common defence and to promote the general welfare," by turning those "enemies" into friends, then, instead of a hostile ambush lurking in every thicket inviting assault, and secret foes in every house paralyzing defence, an army of allies would have rallied in the hour of her calamity, and shouted defiance from their munitions of rocks; whilst the banner of the republic, then trampled in dust, would have floated securely over FREEMEN exulting amidst bulwarks of strength.

To show that Congress can abolish slavery in the District, under the grant of power "to provide for the common defence and to promote the general welfare," I quote an extract from a speech of Mr. Madison, of Va., in the first Congress under the constitution, May 13, 1789. Speaking of the abolition of the slave trade, Mr. Madison says: "I should venture to say it is as much for the interests of Georgia and South Carolina, as of any state in the union. Every addition they receive to their number of slaves tends to *weaken* them, and renders them less capable of self-defence. In case of hostilities with foreign nations, they will be the means of *inviting* attack instead of repelling invasion. It is a necessary duty of the general government to protect every part of the empire against danger, as well *internal* as external. *Every thing, therefore, which tends to increase this*

danger, though it may be a local affair, yet if it involves national expense or safety, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government." See Cong. Reg. vol. 1, p. 310, 11.

POSTSCRIPT

My apology for adding a *postscript*, to a discussion already perhaps too protracted, is the fact that the preceding sheets were in the hands of the printer, and all but the concluding pages had gone through the press, before the passage of Mr. Calhoun's late resolutions in the Senate of the United States. A proceeding so extraordinary,—if indeed the time has not passed when *any* acts of Congress in derogation of freedom and in deference to slavery, can be deemed extraordinary,—should not be suffered to pass in silence at such a crisis as the present; especially as the passage of one of the resolutions by a vote of 36 to 9, exhibits a shift of position on the part of the South, as sudden as it is unaccountable, being nothing less than the surrender of a fortress which until then they had defended with the pertinacity of a blind and almost infuriated fatuity. Upon the discussions during the pendency of the resolutions, and upon the vote, by which they were carried, I make no comment, save only to record my exultation in the fact there exhibited, that great emergencies are *true touchstones*, and that henceforward, until this question is settled, whoever holds a seat in Congress will find upon, and all around him, a pressure strong enough to TEST him—a focal blaze that will find its way through the carefully adjusted cloak of fair pretension, and the sevenfold brass of two-faced political intrigue, and *no-faced non-committalism*, piercing to the dividing asunder of joints and marrow. Be it known to every northern man who aspires to a seat in Congress, that hereafter it is the destiny of congressional action on this subject, to be a MIGHTY REVELATOR—making secret thoughts public property, and proclaiming on the house-tops what is whispered in the ear—smiting off masks, and bursting open sepulchres beautiful outwardly, and heaving up to the sun their dead men's bones. To such we say,—*Remember the Missouri Question, and the fate of those who then sold the North, and their own birthright!*

Passing by the resolutions generally without remark—the attention of the reader is specially solicited to Mr. Clay's substitute for Mr. Calhoun's fifth resolution.

"Resolved, That when the District of Columbia was ceded by the states of Virginia and Maryland to the United States, domestic slavery existed in both of these states, including the ceded territory, and that, as it still continues in both of them, it could not be abolished within the District without a violation of that good faith, which was implied in the cession and in the acceptance of the territory; nor, unless compensation were made to the proprietors of slaves, without a manifest infringement of an amendment to the constitution of the United States; nor without exciting a degree of just alarm and apprehension in the states recognizing slavery, far transcending in mischievous tendency, any possible benefit which could be accomplished by the abolition."

By voting for this resolution, the south, by a simultaneous movement, shifted its mode of defense, not so much by taking a position entirely new, as by attempting to refortify an old one—never much trusted in, and abandoned mainly long ago, as being unable to hold out against assault however unskilfully directed. In the debate on this resolution, though the southern members of Congress did not *professedly* retreat from the ground hitherto maintained by them—that Congress has no power by the constitution to abolish slavery in the District—yet in the main they silently drew off from it.

The passage of this resolution—with the vote of every southern senator, forms a new era in the discussion of this question.

We cannot join in the lamentations of those who bewail it. We hail it, and rejoice in it. It was as we would have had it—offered by a southern senator, advocated by southern senators, and on the ground that it "was no compromise"—that it embodied the true southern principle—that "this resolution stood on as high ground as Mr. Calhoun's"—(Mr. Preston)—"that Mr. Clay's resolution was as strong as Mr. Calhoun's"—(Mr. Rives)—that "the resolution he (Mr. Calhoun) now refused to support, was as strong as his own, and that in supporting it, there was no abandonment of principle by the south."—(Mr. Walker, of Mi.)—further, that it was advocated by the

southern senators generally as an expression of their views, and as setting the question of slavery in the District on its *true* ground—that finally when the question was taken, every slaveholding senator, including Mr. Calhoun himself, voted for the resolution.

By passing this resolution, and with such avowals, the south has surrendered irrevocably the whole question at issue between them and the petitioners for abolition in the District. It has, unwittingly but explicitly, conceded the main question argued in the preceding pages.

The *only* ground taken against the right of Congress to abolish slavery in the District is, that it existed in Maryland and Virginia when the cession was made, and "*as it still continues in both of them*, it could not be abolished without a violation of that good faith which was implied in the cession." &c. The *sole argument* is *not* that exclusive *sovereignty* has no power to abolish slavery within its jurisdiction, *nor* that the powers of even *ordinary legislation* cannot do it,—*nor* that the clause granting Congress "exclusive legislation in all cases whatsoever over such District," gives no power to do it; but that the *unexpressed expectation* of one of the parties that the other would not "*in all cases*" use the power which said party had consented *might be used* "*in all cases*," *prohibits* the use of it. The only cardinal point in the discussion, is here not only *yielded*, but formally laid down by the South as the leading article in their creed on the question of Congressional jurisdiction over slavery in the District. The *sole reason* given why Congress should not abolish, and the sole evidence that if it did, such abolition would be a violation of "good faith," is that "*slavery still continues in those states*,"—thus explicitly admitting, that if slavery did *not* "still continue" in those States, Congress *could* abolish it in the District. The same admission is made also in the *premises*, which state that slavery existed in those states *at the time of the cession*, &c. Admitting that if it had *not* existed there then, but had grown up in the District under *United States' laws*, Congress might constitutionally abolish it. Or that if the ceded parts of those states had been the *only* parts in which slaves were held under their laws, Congress might have abolished in such a contingency also. The cession in that case leaving no slaves in those states,—no "good faith," would be "implied" in it, nor any "violated," by an act of abolition. The principle of the resolution makes this further admission, that if Maryland

and Virginia should at once abolish their slavery, Congress might at once abolish it in the District. The principle goes even further than this, and *requires* Congress in such case to abolish slavery in the District "by the *good faith implied* in the cession and acceptance of the territory." Since, according to the spirit and scope of the resolution, this "implied good faith" of Maryland and Virginia in making the cession, was that Congress would do nothing within the District which should go to counteract the policy, or bring into disrepute the "institutions," or call in question the usages, or even in any way ruffle the prejudices of those states, or do what *they* might think would unfavorably bear upon their interests; *themselves* of course being the judges.

But let us dissect another limb of the resolution. What is to be understood by "that good faith which was IMPLIED?" It is of course an admission that such a condition was not *expressed* in the acts of cession—that in their *terms* there is nothing restricting the power of Congress on the subject of slavery in the District—not a word alluding to it, nor one inserted with such an *intent*. This "implied faith," then, rests on no clause or word in the United States' Constitution, or in the acts of cession, or in the acts of Congress accepting the cession, nor does it rest on any declarations of the legislatures of Maryland and Virginia made at the time, or in that generation, nor on any *act* of theirs, nor on any declaration of the people of those states, nor on the testimony of the Washingtons, Jeffersons, Madisons, Chaces, Martins, and Jennifers, of those states and times. The assertion rests *on itself alone*! Mr. Clay and the other senators who voted for the resolution, *guess* that Maryland and Virginia supposed that Congress would by no means *use* the power given them by the constitution, except in such ways as would be well pleasing in the eyes of those states; especially as one of them was the "Ancient Dominion!" And now after the lapse of half a century, this *assumed expectation* of Maryland and Virginia, the existence of which is mere matter of conjecture with the 36 senators, is conjured up and duly installed upon the judgment-seat of final appeal, before whose nod constitutions are to flee away, and with whom, solemn grants of power and explicit guaranties are, when weighed in the balance, altogether lighter than vanity!

But let us survey it in another light. Why did Maryland and Virginia leave so much to be "*implied*?" Why did they not in some way express what lay so near their hearts? Had their vocabulary run so low that a single word could not be eked out for the occasion? Or were those states so bashful of a sudden that they dare not speak out and tell what they wanted? Or did they take it for granted that Congress would always act in the premises according to their wishes, and that too, without their *making known* their wishes? If, as honorable senators tell us, Maryland and Virginia did verily travail with such abounding *faith*, why brought they forth no *works*?

It is as true in *legislation* as in religion, that the only *evidence* of "faith" is *works*, and that "faith" *without* works is *dead*, i.e. has no *power*. But here, forsooth, a blind implication with nothing *expressed*, an "implied" *faith* without works, is *omnipotent*. Mr. Clay is lawyer enough to know that even a *senatorial hypothesis* as to what must have been the *understanding* of Maryland and Virginia about congressional exercise of constitutional power, *abrogates no grant*, and that to plead it in a court of law, would be of small service except to jostle "their Honors'" gravity! He need not be told that the constitution gives Congress "power to exercise exclusive legislation in all cases whatsoever over such District." Nor that the legislatures of Maryland and Virginia constructed their acts of cession with this clause *before their eyes*, and that both of them declared those acts made "in *pursuance*" of said clause. Those states were aware that the United States in their constitution had left nothing to be "*implied*" as to the power of Congress over the District;—an admonition quite sufficient one would think to put them on their guard, and induce them to eschew vague implications and resort to *stipulations*. Full well did they know also that those were times when, in matters of high import, *nothing* was left to be "implied." The colonies were then panting from a twenty years' conflict with the mother country, about bills of rights, charters, treaties, constitutions, grants, limitations, and *acts of cession*. The severities of a long and terrible discipline had taught them to guard at all points *legislative grants*, that their exact import and limit might be self-evident—leaving no scope for a blind "faith," that *somehow* in the lottery of chances there would be no blanks, but making all sure by the use of explicit terms, and wisely chosen words, and *just enough* of them. The Constitution of the United States with its amendments, those of the individual states, the national treaties, the public

documents of the general and state governments at that period, show the universal conviction of legislative bodies, that when great public interest were at stake, nothing should be left to be "implied."

Further: suppose Maryland and Virginia had expressed their "implied faith" in *words*, and embodied it in their acts of cession as a proviso, declaring that Congress should not "exercise exclusive legislation in *all* cases whatsoever over the District," but that the "case" of *slavery* should be an exception: who does not know that Congress, if it had accepted the cession on those terms, would have violated the Constitution; and who that has ever studied the free mood of those times in its bearings on slavery—proofs of which are given in scores on the preceding pages—can for an instant believe that the people of the United States would have altered their Constitution for the purpose of providing for slavery an inviolable sanctuary; that when driven in from its outposts, and everywhere retreating discomfited before the march of freedom, it might be received into everlasting habitations on the common homestead and hearth-stone of this free republic? Besides, who can believe that Virginia made such a condition, or cherished such a purpose, when at that very moment, Washington, Jefferson, Wythe, Patrick Henry, St. George Tucker, and almost all her illustrious men, were advocating the abolition of slavery by law. When Washington had said, two years before, Maryland and Virginia "must have laws for the gradual abolition of slavery and at a period *not remote*;" and when Jefferson in his letter to Price, three years before the cession, had said, speaking of Virginia, "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression—a conflict in which THE SACRED SIDE IS GAINING DAILY RECRUITS;" when voluntary emancipations on the soil were then progressing at the rate of between one and two thousand annually, (See Judge Tucker's "Dissertation on Slavery," p. 73;) when the public sentiment of Virginia had undergone, and was undergoing so mighty a revolution that the idea of the continuance of slavery as a permanent system could not be *tolerated*, though she then contained about half the slaves in the Union. Was this the time to stipulated for the *perpetuity* of slavery under the exclusive legislation of Congress? and that too at the *same* session of Congress when *every one* of her delegation voted for the abolition of slavery in the North West Territory; a territory which she had

herself ceded to Congress, and along with it had surrendered her jurisdiction over many of her citizens, inhabitants of that territory, who held slaves there—and whose slaves were emancipated by that act of Congress, in which all her delegation with one accord participated?

Now in view of the universal belief then prevalent, that slavery in this country was doomed to short life, and especially that in Maryland and Virginia it would be *speedily* abolished—are we to be told that those states *designed* to bind Congress *never* to terminate it? Are we to adopt the monstrous conclusion that this was the intent of the Ancient Dominion—thus to *bind* the United States by an "implied faith," and that when the United States *accepted* the cession, she did solemnly thus plight her troth, and that Virginia did then so *understand* it? Verily one would think that honorable senators supposed themselves deputed to do our *thinking* as well as our legislation, or rather, that they themselves were absolved from such drudgery by virtue of their office!

Another absurdity of this dogma about "implied faith" is, that where there was no power to exact an *express* pledge, there was none to demand an *implied* one, and where there was no power to *give* the one, there was none to give the *other*. We have shown already that Congress could not have accepted the cession with such a condition. To have signed away a part of its constitutional grant of power would have been a *breach* of the Constitution. Further, the Congress which accepted the cession was competent to pass a resolution pledging itself not to *use all* the power over the District committed to it by the Constitution. But here its power ended. Its resolution would only bind *itself*. Could it bind the *next* Congress by its authority? Could the members of one Congress say to the members of another, because we do not choose to exercise all the authority vested in us by the Constitution, therefore you *shall* not? This would have been a prohibition to do what the Constitution gives power to do. Each successive Congress would still have gone to the Constitution for its power, brushing away in its course the cobwebs stretched across its path by the officiousness of an impertinent predecessor. Again, the legislatures of Virginia and Maryland, had no power to bind Congress, either by an express or an implied pledge, never to abolish slavery in the District. Those legislatures had no power to bind *themselves* never to abolish slavery within their own

territories—the ceded parts included. Where then would they get power to bind *another* not to do what they had no power to bind themselves not to do? If a legislature could not in this respect control the successive legislatures of its own State, could it control the successive Congresses of the United States?

But perhaps we shall be told, that the "implied faith" in the acts of cession of Maryland and Virginia was *not* that Congress should *never* abolish slavery in the District, but that it should not do it until *they* had done it within their bounds! Verily this "faith" comes little short of the faith of miracles! "A good rule that works both ways." First, Maryland and Virginia have "good faith" that Congress will *not* abolish until *they* do; and then just as "good faith" that Congress *will* abolish *when* they do! Excellently accommodated! Did those States suppose that Congress would legislate over the national domain, the common jurisdiction of *all*, for Maryland and Virginia alone? And who, did they suppose, would be judges in the matter?—themselves merely? or the whole Union?

This "good faith implied in the cession" is no longer of doubtful interpretation. The principle at the bottom of it, when fairly stated, is this:—That the Government of the United States are bound in "good faith" to do in the District of Columbia, without demurring, just what and when, Maryland and Virginia do in their own States. In short, that the general government is eased of all the burdens of legislation within its exclusive jurisdiction, save that of hiring a scrivener to copy off the acts of the Maryland and Virginia legislatures as fast as they are passed, and engross them, under the title of "Laws of the United States, for the District of Columbia!" A slight additional expense would also be incurred in keeping up an express between the capitols of those States and Washington city, bringing Congress from time to time its "*instructions*" from head quarters—instructions not to be disregarded without a violation of that "good faith implied in the cession," &c.

This sets in strong light the advantages of "our glorious Union," if the doctrine of Mr. Clay and the thirty-six Senators be orthodox. The people of the United States have been permitted to set up at their own expense, and on their own territory, two great *sounding boards* called "Senate Chamber" and

"Representatives' Hall," for the purpose of sending abroad "by authority" *national* echoes of *state* legislation!—permitted also to keep in their pay a corps of pliant *national* musicians, with peremptory instructions to sound on any line of the staff according as Virginia and Maryland may give the *sovereign* key note!

Though this may have the seeming of mere raillery, yet an analysis of the resolution and of the discussions upon it, will convince every fair mind that it is but the legitimate carrying out of the *principle* pervading both. They proceed virtually upon the hypothesis that the will and pleasure of Virginia and Maryland are *paramount* to those of the *Union*. If the main design of setting apart a federal district had been originally the accommodation of Maryland, Virginia, and the south, with the United States as an *agent* to consummate the object, there could hardly have been higher assumption or louder vaunting. The sole object of *having* such a District was in effect totally perverted in the resolution of Mr. Clay, and in the discussions of the entire southern delegation, upon its passage. Instead of taking the ground, that the benefit of the whole Union was the sole *object* of a federal district, that it was designed to guard and promote the interests of *all* the states, and that it was to be legislated over *for this end*—the resolution proceeds upon an hypothesis *totally the reverse*. It takes a single point of *state* policy, and exalts it above NATIONAL interests, utterly overshadowing them; abrogating national *rights*; making void a clause of the Constitution; humbling the general government into a subject—crouching for favors to a superior, and that too *on its own exclusive jurisdiction*. All the attributes of sovereignty vested in Congress by the Constitution it impales upon the point of an alleged *implication*. And this is Mr. Clay's peace-offering, to appease the lust of power and the ravengings of state encroachment! A "compromise," forsooth! that sinks the general Government on *its own territory* into a mere colony, with Virginia and Maryland for its "mother country!" It is refreshing to turn from these shallow, distorted constructions and servile cringings, to the high bearing of other southern men in other times; men, who in their character of legislators and lawyers, disdained to accommodate their interpretations of constitutions and charters to geographical lines, or to bend them to the purposes of a political canvass. In the celebrated case of Cohens vs. the State of Virginia, Hon. William Pinkney, late of Baltimore, and Hon. Walter Jones, of Washington city, with

other eminent constitutional lawyers, prepared an elaborate written opinion, from which the following is an extract: "Nor is there any danger to be apprehended from allowing to Congressional legislation with regard to the District of Columbia, its FULLEST EFFECT. Congress is responsible to the States, and to the people for that legislation. It is in truth the legislation of the states over a district placed under their control for *their own benefit*, not for that of the District, except as the prosperity of the District is involved, and necessary to the *general advantage*."—[Life of Pinkney, p. 612.]

The profound legal opinion, from which this is an extract, was elaborated at great length many years since, by a number of the most distinguished lawyers in the United States, whose signatures are appended to it. It is specific and to the point. It asserts, 1st, that Congressional legislation over the District, is "the legislation of the *States* and the *people*," (not of *two* states, and a mere *fraction* of the people;) 2d. "Over a District placed under *their* control," i.e. under the control of the *whole* of the States, not under the control of *two twenty-sixths* of them. 3d. That it was thus put under their Control "*for THEIR OWN benefit*," the benefit of all the States *equally*; not to secure special benefits to Maryland and Virginia, (or what it might be *conjectured* they would regard as benefits.) 4th. It concludes by asserting that the design of this exclusive control of Congress over the District was "not for the benefit of the *District*," except as that is *connected* with, and a *means of promoting* the *general advantage*. If this is the case with the *District*, which is *directly* concerned, it is pre-eminently so with Maryland and Virginia, who are but *indirectly* interested, and would be but remotely affected by it. The argument of Mr. Madison in the Congress of '89, an extract from which has been given on a preceding page, lays down the same principle; that though any matter "*may be a local affair, yet if it involves national EXPENSE OR SAFETY, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government.*" Cong. Reg. vol. 1. p. 310, 11.

But these are only the initiatory absurdities of this "good faith *implied*." The thirty-six senators aptly illustrate the principle, that error not only conflicts with truth, but is generally at issue with itself. For if it would be a violation of "good faith" to Maryland and Virginia, for Congress to abolish slavery in

the District, it would be *equally* a violation for Congress to do it *with the consent*, or even at the earnest and unanimous petition of the people of the District: yet for years it has been the southern doctrine, that if the people of the District demand of Congress relief in this respect, it has power, as their local legislature, to grant it, and by abolishing slavery there, carry out the will of the citizens. But now new light has broken in! The optics of the thirty-six have pierced the millstone with a deeper insight, and discoveries thicken faster than they can be telegraphed! Congress has no power, O no, not a modicum, to help the slaveholders of the District, however loudly they may clamor for it. The southern doctrine, that Congress is to the District a mere local Legislature to do its pleasure, is tumbled from the genitive into the vocative! Hard fate—and that too at the hands of those who begat it! The reasonings of Messrs. Pinckney, Wise, and Leigh, are now found to be wholly at fault, and the chancery rhetoric of Messrs. Glascock and Garland stalks featherless and crest-fallen. For, Mr. Clay's resolution sweeps by the board all those stereotyped common-places, as "Congress a local Legislature," "consent of the District," "bound to consult the wishes of the District," &c. &c., which for the last two sessions of Congress have served to eke out scanty supplies. It declares, that *as slavery existed in Maryland and Virginia at the time of the cession, and as it still continues in both those states, it could not be abolished in the District without a violation of 'that good faith,' &c.*

But let us see where this principle of the *thirty-six* will lead us. If "implied faith" to Maryland and Virginia *restrains* Congress from the abolition of slavery in the District, it *requires* Congress to do in the District what those states have done within their bounds, i.e., restrain *others* from abolishing it. Upon the same principle Congress is *bound*, by the doctrine of Mr. Clay's resolution, to *prohibit emancipation* within the District. There is no *stopping place* for this plighted "faith." Congress must not only refrain from laying violent hands on slavery, *itself*, and see to it that the slaveholders themselves do not, but it is bound to keep the system up to the Maryland and Virginia standard of vigor!

Again, if the good faith of Congress to Virginia and Maryland requires that slavery should exist in the District, while it exists in those states, it requires that it should exist there *as* it exists in those states. If to abolish *every* form

of slavery in the District would violate good faith, to abolish *the* form existing in those states, and to substitute a totally different one, would also violate it. The Congressional "good faith" is to be kept not only with *slavery*, but with the *Maryland and Virginia systems* of slavery. The faith of those states not being in the preservation of *a* system, but of *their* system; otherwise Congress, instead of *sustaining*, would counteract their policy—principles would be brought into action there conflicting with their system, and thus the true spirit of the "implied" pledge would be violated. On this principle, so long as slaves are "chattels personal" in Virginia and Maryland, Congress could not make them *real estate*, inseparable from the soil, as in Louisiana; nor could it permit slaves to read, nor to worship God according to conscience; nor could it grant them trial by jury, nor legalize marriage; nor require the master to give sufficient food and clothing; nor prohibit the violent sundering of families—because such provisions would conflict with the existing slave laws of Virginia and Maryland, and thus violate the "good faith implied," &c. So the principle of the resolution binds Congress in all these particulars: 1st. Not to abolish slavery in the District *until* Virginia and Maryland abolish. 2d. Not to abolish any *part* of it that exists in those states. 3d. Not to abolish any *form* or *appendage* of it still existing in those states. 4th. *To abolish* when they do. 5th. To increase or abate its rigors *when, how, and as* the same are modified by those states. In a word, Congressional action in the District is to float passively in the wake of legislative action on the subject in those states.

But here comes a dilemma. Suppose the legislation of those states should steer different courses—then there would be *two* wakes! Can Congress float in both? Yea, verily! Nothing is too hard for it! Its obsequiousness equals its "power of legislation in *all* cases whatsoever." It can float *up* on the Virginia tide, and ebb down on the Maryland at the same time. What Maryland does, Congress will do in the Maryland part. What Virginia does, Congress will do in the Virginia part. Though Congress might not always be able to run at the bidding of both *at once*, especially in different directions, yet if it obeyed orders cheerfully, and "kept in its place," according to its "good faith implied," impossibilities might not be rigidly exacted. True, we have the highest sanction for the maxim that no *man* can serve two masters—but if "corporations have *no* souls," analogy would absolve Congress on that score, or at most give it only *a very small soul*—not large enough to be

at all in the way, as an *exception* to the universal rule laid down in the maxim!

In following out the absurdities of this "*implied* good faith," it will be seen at once that the doctrine of Mr. Clay's Resolution extends to *all the subjects of legislation* existing in Maryland and Virginia, which exist also within the District. Every system, "institution," law, and established usage there, is placed beyond Congressional control equally with slavery, and by the same "implied faith." The abolition of the lottery system in the District as an *immorality*, was a flagrant breach of this "good faith" to Maryland and Virginia, as the system "still continued in those states." So to abolish imprisonment for debt, and capital punishment, to remodel the bank system, the power of corporations, the militia law, laws of limitation, &c., in the District, *unless Virginia and Maryland took the lead*, would violate the "good faith implied in the cession," &c.

That in the acts of cession no such "good faith" was "implied by Virginia and Maryland" as is claimed in the Resolution, we argue from the fact, that in 1784 Virginia ceded to the United States all her northwest territory, with the special proviso that her citizens inhabiting that territory should "have their *possessions* and *titles* confirmed to them, and be *protected* in the enjoyment of their *rights* and liberties." (See Journals of Congress, vol. 9, p. 63.) The cession was made in the form of a deed, and signed by Thomas Jefferson, Samuel Hardy, Arthur Lee, and James Monroe. Many of these inhabitants *held slaves*. Three years after the cession, the Virginia delegation in Congress *proposed* the passage of an ordinance which should abolish slavery, in that territory, and declare that it should never thereafter exist there. All the members of Congress from Virginia and Maryland voted for this ordinance. Suppose some member of Congress had during the passage of the ordinance introduced the following resolution: "Resolved, That when the northwest territory was ceded by Virginia to the United States, domestic slavery existed in that State, including the ceded territory, and as it still continues in that State, it could not be abolished within the territory without a violation of that good faith, which was implied in the cession and in the acceptance of the territory." What would have been the indignant response of Grayson, Griffin, Madison, and the Lees, in the Congress of '87, to such a resolution, and of Carrington, Chairman of the

Committee, who reported the ratification of the ordinance in the Congress of '89, and of Page and Parker, who with every other member of the Virginia delegation supported it!

But to enumerate all the absurdities into which the thirty-six Senators have plunged themselves, would be to make a quarto inventory. We decline the task; and in conclusion, merely add that Mr. Clay, in presenting this resolution, and each of the thirty-six Senators who voted for it, entered on the records of the Senate, and proclaimed to the world, a most unworthy accusation against the MILLIONS of American citizens who have during nearly half a century petitioned the national legislature to abolish slavery in the District of Columbia,—charging them either with the ignorance or the impiety of praying the nation to violate its "PLIGHTED FAITH." The resolution virtually indicts at the bar of public opinion, and brands with odium, all the Manumission Societies, the *first* petitioners for the abolition of slavery in the District, and for a long time the only ones, petitioning from year to year through evil report and good report, still petitioning, by individual societies and in their national conventions.

But as if it were not enough to table the charge against such men as Benjamin Rush, William Rawle, John Sergeant, Robert Vaux, Cadwallader Colden, and Peter A. Jay,—to whom we may add Rufus King, James Hillhouse, William Pinkney, Thomas Addis Emmett, Daniel D. Tompkins, De Witt Clinton, James Kent, and Daniel Webster, besides eleven hundred citizens of the District itself, headed by their Chief Justice and judges—even the sovereign States of Pennsylvania, New-York, Massachusetts, and Vermont, whose legislatures have either memorialized Congress to abolish slavery in the District, or instructed their Senators to move such a measure, must be gravely informed by Messrs. Clay, Norvell, Niles, Smith, Pierce, Benton, Black, Tipton, and other honorable Senators, either that their perception is so dull, they know not what of they affirm, or that their moral sense is so blunted they can demand without compunction a violation of the nation's faith!

We have spoken already of the concessions unwittingly made in this resolution to the true doctrine of Congressional power over the District. For that concession, important as it is, we have small thanks to render. That

such a resolution, passed with such an *intent*, and pressing at a thousand points on relations and interests vital to the free states, should be hailed, as it has been, by a portion of the northern press as a "compromise" originating in deference to northern interests, and to be received by us as a free-will offering of disinterested benevolence, demanding our gratitude to the mover,—may well cover us with shame. We deserve the humiliation and have well earned the mockery. Let it come!

If, after having been set up at auction in the public sales-room of the nation, and for thirty years, and by each of a score of "compromises," treacherously knocked off to the lowest bidder, and that without money and without price, the North, plundered and betrayed, *will not*, in this her accepted time, consider the things that belong to her peace before they are hidden from her eyes, then let her eat of the fruit of her own way, and be filled with her own devices! Let the shorn and blinded giant grind in the prison-house of the Philistines, till taught the folly of intrusting to Delilahs the secret and the custody of his strength.

Have the free States bound themselves by an oath never to profit by the lessons of experience? If lost to *reason*, are they dead to *instinct* also? Can nothing rouse them to cast about for self preservation? And shall a life of tame surrenders be terminated by suicidal sacrifice?

A "COMPROMISE!" Bitter irony! Is the plucked and hood-winked North to be wheedled by the sorcery of another Missouri compromise? A compromise in which the South gained all, and the North lost all, and lost it for ever. A compromise which embargoed the free laborer of the North and West, and clutched at the staff he leaned upon, to turn it into a bludgeon and fell him with its stroke. A compromise which wrested from liberty her boundless birthright domain, stretching westward to the sunset, while it gave to slavery loose reins and a free course, from the Mississippi to the Pacific.

The resolution, as it finally passed, is here inserted. The original Resolution, as moved by Mr. Clay, was inserted at the head of this postscript with the impression that it was the *amended* form. It will be seen however, that it underwent no material modification.

"Resolved, That the interference by the citizens of any of the states, with the view to the abolition of slavery in the District, is endangering the rights and security of the people of the District; and that any act or measure of Congress designed to abolish slavery in the District, would be a violation of the faith implied in the cessions by the states of Virginia and Maryland, a just cause of alarm to the people of the slaveholding states, and have a direct and inevitable tendency to disturb and endanger the Union."

The vote upon the Resolution stood as follows:

Yeas.—Messrs. Allen, Bayard, Benton, Black, Buchanan, Brown, Calhoun, Clay, of Alabama, Clay, of Kentucky, Clayton, Crittenden, Cuthbert, Fulton, Grundy, Hubbard, King, Lumpkin, Lyon, Nicholas, Niles, Norvell, Pierce, Preston, Rives, Roane, Robinson, Sevier, Smith, of Connecticut, Strange, Tallmadge, Tipton, Walker, White, Williams, Wright, Young.

Nays.—Messrs. DAVIS, KNIGHT, McKEAN, MORRIS, PRENTISS, RUGGLES, SMITH, of Indiana, SWIFT, WEBSTER.

1836 By The American Anti-Slavery Society.

*** END OF THE PROJECT GUTENBERG EBOOK THE ANTI-SLAVERY EXAMINER, PART 1 OF 4 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.